

THE
HISTORY
OF THE
RISE, PROGRESS, AND ESTABLISHMENT
OF THE
INDEPENDENCE
OF THE
United States of America :
INCLUDING
AN ACCOUNT OF THE LATE WAR,
AND OF THE
THIRTEEN COLONIES,
FROM THEIR ORIGIN TO THAT PERIOD.

BY WILLIAM GORDON, D. D.

*Quid verum*** curo, et rogo et omnis in hoc sum.*

HORAT. i Ep. i Lib.

THE THIRD AMERICAN EDITION.

VOL. II.

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THE
RISE, PROGRESS, AND CONCLUSION
OF THE
NORTH AMERICAN REVOLUTION.

LETTER I.

Roxbury, April 26, 1776.

You have been informed of the measures which the promoters of independency adopted for the ripening of that event; in the advice which congress were prevailed upon to give to the New-Hampshire, the South-Carolina, and Virginia conventions.

[Jan. 5, 1776.] The New-Hampshire provincial convention proceeded in their design, and voted, “that this congress take up civil government in form following—We being authorised in particular to establish some form of government, provided that measure be recommended by the continental congress, and a recommendation being transmitted—the sudden departure of his excellency John Wentworth and several of the council leaving us destitute of legislation, and no executive courts being open to punish criminal offenders—therefore protesting that we never meant to throw off our dependence upon Great-Britain, and that we shall rejoice if such a reconciliation, between us and our parent state, can be effected, as shall be approved by the continental congress—do resolve; that the congress do assume the name and power of a house of representatives: that they proceed to choose twelve persons, to be a distinct branch of the legislature, by the name of a council for this colony; and that no act shall be valid unless passed by both branches.” But this procedure was not universally approved.

A memorial and remonstrance of the freeholders and inhabitants of Portsmouth was presented to the convention sitting at Exeter. [Jan. 10.] It sets forth, that “the memorialists are greatly alarmed, by the information, that they are about to dissolve their existence as a convention and assume that of a house of representatives, and to proceed to the election of twelve counsellors, who are to act as another branch of legislation for the future government of this colony.” They remonstrate against the procedure from an opinion that the inhabitants will not generally approve it; and wish therefore that the minds of the people may be fully taken on such a momentuous concernment, for that it is their inherent right to know the plan, before adopted and carried into execution. They say also, “it amounts to an open declaration of independency, which we can by no means countenance.” A dissent and protest was brought into convention, [Jan. 12.] by several of the representatives; the purport of it was, “We dissent and protest against the present plan of taking up government for the following reasons—the vote of the continental congress countenancing the same, was obtained by the unwearied importunity of our delegates there, as appears by their letter;—the said vote does not appear to have been unanimous, but we have reason to think otherwise;—New-York and Virginia (which are in similar circumstances with us, and are much larger and more opulent, and we presume much wiser, and to which we would pay all due deference), have not attempted any thing of the kind, nor as we can learn have desired it;—it appears assuming for so small a colony to take the lead in a matter of so great importance;—our constituents never expected us to make a new form of government, but only to set the judicial and executive wheels in motion;—it appears to us, too much like setting up an independency on the mother country.” The convention however proceeded in their plan; but when it was executed, and the body had assumed the form of two houses, they had the consistency to receive petitions [Jan. 18.] from the towns of Portsmouth, Dover, Newington, Rochester, Stratham, North-Hampton, Rye, New-Market, Kensington, Greenland, and part of Brentwood, against taking up government in the new established form. Both houses met in the town-house, the petitions were read, considered, and fully argued by the council for the petitioners. It was voted, [Jan. 27.] that the committee write to the continental congress, and lay the plan of government taken up by the colony before them, and let them know that a number of members of this house dissented from and protested against the same, because of its being

supposed to breathe too much of the spirit of independency; and request to know the judgment of the congress thereon. Whatever letter the committee might write was porbably forwarded under cover to one of their own delegates; and by the advice of certain members was not brought before congress as a body, till the day after they had given their sanction to the plan, by admitting upon their journals, on the 29th of February, the credentials of the delegates chosen by the house of representatives on January the 23d.

When Mr. S. Adams saw the instructions given by the capital of New-Hampshire, he was dissatisfied, and fearful, lest if that colony took a wrong step, it should wholly defeat the design, he owned, he had much at heart. He had been alarmed before in the beginning of the month, when a motion was made in congress to this purpose.—“Whereas we have been charged with aiming at independency, a committee shall be appointed to explain to the people at large the principles and grounds of our opposition, &c.” It would not do for Mr. S. Adams evidently to interest himself in opposing the motion, though he was apprehensive that they should get themselves on dangerous ground; but some other delegates prevailed so far as to have the matter postponed; and yet they could not prevent the assigning of a day to consider it. Some little time before, he had conversed with another gentleman, probably a Virginia delegate, about a confederation; when they agreed it must soon be brought on, and that if all the colonies would not come into it, it had better be done by those that incline to it. Mr. Adams promised, he would endeavour to unite the New-England colonies in confederation, if none of the rest would join in it; the other approved of it, and said that if Mr. S. Adams succeeded, he would cast in his lot among them. Many of the principal gentlemen in the Massachusetts have been long urging their delegates at congress to bring forward independency; the more so, for a persuasion that, resistance unto blood having been once made against the governmental measures the British spirit will never be quieted, with any thing short of those concessions and satisfactions, which Americans never make. General Washington has no wish, that the congress would declare the colonies independent: but many other officers, especially among the New-Englanders, are desirous of it; though the situation of their military affairs could of late afford them no reasonable encouragement. They have been obliged to change their army by a new enlistment under the mouths of their enemy’s cannon; and while employed in this operation, had

not for some time men enough to defend their lives had the British troops commenced an attack. They had to guard an extent of better than a dozen miles, with few more troops than what were in Boston. Such was the want of muskets, that in order to supply the new enlisted soldiers, they forcibly detained those belonging to the privates whose time was out, and who refused to serve longer; but not without paying for them.

Gen. Green wrote from—Prospect Hill, January 4, 1776. “Had the enemy been fully acquainted with our situation, I cannot pretend to say what might have been the consequences. I this day manned the lines upon this hill, and feel a degree of pleasure that I have not felt for several days. Our situation has been critical. We have no part of the militia on this hill; and the night after the old troops went off, I could not have mustered seven hundred men, notwithstanding the returns of the new enlisted troops amounted to nineteen hundred and upward. I am now strong enough to defend myself against all the force in Boston.” Gen. Washington thus expressed himself on the first of the month: “It is not perhaps in the power of history to furnish a case like ours—to maintain a post within musket shot of the enemy for six months together without——(*powder*, he avoided inserting the word lest the letter should miscarry;) and at the same time to disband one army and recruit another, within that distance of twenty odd British regiments, is more than probable was ever attempted.”

The conduct of the New-Yorkers not answering the desires of captain Sears, he had for some time taken up his abode in Connecticut. Being apprehensive, that general Clinton who was preparing to go upon some expedition with a body of troops, might possibly be destined for New-York, and considering of what importance it was that the city should not be possessed by him, he came to gen. Washington, and urged the necessity of its being secured by American forces. But the general could spare no troops, every man of them being wanted in the environs of Boston. Sears proposed that Washington should write to gov. Trumbull, pressing him to raise two regiments for the service. His application was strengthened by a letter of gen. Lee’s, who wrote to the commander in chief, [Jan. 5.] “New-York must be secured, but it will never, I am afraid, be secured by direct orders of congress for obvious reasons. I propose that you should detach me into Connecticut, and lend your name for collecting a body of volunteers. I am assured, that I shall find no difficulty in assembling a sufficient number for the purpose wanted. This measure I think absolutely necessary to our

salvation; and if it meets with your approbation, the sooner it is entered upon the better—indeed the delay of a single day may be fatal.” Mr. John Adams being at Watertown with the general court, gen. Washington desired his opinion on Lee’s plan. Mr. John Adams, in a letter of the next day, [Jan. 6.] showed that the plan was practicable, expedient, and lay properly within his excellency’s authority, without further directions from congress. He took notice that a body of people on Long-Island were intrenching themselves professedly to oppose the American system; that there was a body of tories in the city of New-York waiting only for a force to protect them; and that the Jersey troops had been already ordered to that city. The measures to be taken being settled, the dispatches were got ready, and Capt. Sears set off with them, for Connecticut. [Jan. 8.] Gov. Trumbull was much pleased, got the committee of safety together, hastened the business, and col. Waterbury and col. Ward’s regiments were raised and ready to march, by the time gen. Lee got to Stamford, within fifty miles of New-York, and near upon two hundred and fifty miles from Cambridge. Lee set off on the 11th; and when at New-Haven, one hundred and sixty miles distant, wrote on the 16th to Washington. “I shall send immediately an express to congress informing them of my situation and at the same time conjuring them not to suffer the accursed provincial congress of New-York to defeat measures so absolutely necessary to our salvation.” Many of the New-York provincial congress (if not the majority) were adjudged real tories, some so deemed might be only timed whigs. By the 22d. gen. Lee had collected at Stamford 1200 Connecticut troops. The New-York committee of safety were very averse to his marching them into the city, and wrote to him upon the occasion. He answered with much prudence, judgment and resolution; and sent to the continental congress for advice. They directed him to repair to the city, and appoint three of their members to meet him there, and advise with him on the measures proper to be pursued. He was detained at Stamford with the gout. The members from congress and col. Waterbury being at New-York, gen. Lee directed capt. Sears to take Waterbury’s regiment, and march it immediately for the city. At King’s-bridge he was met by a number of citizens, who intreated him to halt, for that the enemy had declared that if any troops came in, they would burn the city. Sears pleaded his orders, and marched on. When nearer the city he was applied to afresh, and strongly urged to remain at a distance from it; he observed, that neither the members of congress nor col. Waterbury, had sent him any orders; he therefore

continued his march into the city. The citizens were in the utmost confusion, expecting the enemy would execute their threats, but they refrained. [Feb. 4.] Gen. Lee came on when able; and arrived at New-York in less than two hours after gen. Clinton arrived at the Hook, in the Mercury, together with a transport brig. Their arrival threw the city into such a convulsion as it never knew before. Though it was the Sabbath the inhabitants were engaged in moving away their effects the whole day, and continued it all night. Gen. Clinton sailed from Boston on the 19th, with a number of grenadiers and light infantry, as supposed for Virginia. He touched at the Hook, probably to consult gov. Tryon, and see whether any thing effectual could be done to strengthen the British interest in New-York. After a short tarriance, he proceeded to the southward. Gen. Lee, upon his arrival gave out, "If the men of war set one house on fire in consequence of my coming, I will chain a hundred of their friends together by the neck, and make the house their funeral pile." He would in all likelihood, have retaliated in some formidable manner. While Clinton remained at the Hook, various works were erected for the defence of the city. Nine days before his arrival, on the 26th of January, and a week after his sailing, care was taken to send over to Long-Island seven hundred of the Jersey militia, and three hundred of the Jersey regulars, to disarm those persons in Queen's county who opposed American liberty, and to secure their leaders, which was accomplished.

The congress, receiving information of the disaffection of the inhabitants of Tryon county, resolved upon disarming them, and providing for the future tranquility of those parts. They committed the business to gen. Scuyler. The general having no troops at Albany to carry into execution their resolutions, was under the necessity of communicating his business to the sub-committee of the county, after having administered an oath of secrecy. They contrived to call upon 700 militia; but so great was the zeal of the people, that they followed in such numbers (although the weather was cold in the extreme) that by the time he reached Caghnawaga, he had near 3000 men, including 900 of the Tryon county militia. [Jan. 16.]. On Tuesday the 16th, the general marched to Schenectady; and in the evening, a deputation from the Mohawk Indians delivered him a speech in a haughty tone, evidently calculated to prevent his proceeding to Sir John Johnson's, who was thought, or known to be making military preparations. Scuyler, in his answer told them, that he had full proof, that many people in Johnstown, and the neighbourhood thereof, had for a considerable time past made

preparations to carry into execution the wicked design of the king's evil counsellors, and added, "We have no objection, nay, we wish that you and your warriors should be present to hear what we shall propose to Sir John, and the people in and about Johnstown, who are our enemies. But we beg of you to tell your warriors, that although we have no quarrel with them, yet if we should be under the disagreeable necessity of fighting with our enemies, and your warriors should join them and fight against us, that we will repel force by force." They replied and said, "Brother Scuyler, the great man, attend. Every thing that has been said to us, brother, has been perfectly agreeable to us, &c." A letter was sent to Sir John Johnson, requesting a meeting with him the next day, and assuring him, that he and such persons whom he might choose to attend him, should pass safe and unmolested to the place where he might meet him, and from thence back to the place of his abode. Sir John accordingly met gen. Scuyler about sixteen miles beyond Schenectady accompanied by some of the leading Scotchmen, and two or three others, when proposals were made to him: he begged time to answer until the next evening, to which Scuyler consented. [Jan. 18.] On Thursday the general approached within four miles of Johnstown. Sir John sent out answers to the proposals of the preceding day, which not being satisfactory, the general determined to march his troops to Johnson-hall, without delay: but gave Sir John till twelve at night to reconsider the matter, after which he would receive no proposals. At twelve an answer came from Sir John, in behalf of himself, the inhabitants of Kingsborough, and the neighbouring adjacent. It was agreed to deliver up all cannon, arms, and military stores whatsoever, that to his knowledge were in the country, a few favourite family arms excepted: that Sir John, having given his parole of honour not to take up arms against America, shall confine himself to certain limits:—that the Scotch inhabitants shall surrender their arms, and the general may take any six prisoners from among them as he chooses, without resistance, to be treated however with humanity, and with all due deference to rank: that the inhabitants shall give up their arms, and enter into like engagements with the Scotch inhabitants:—and that all the men referred to in the above articles shall be paraded at Johnstown on Saturday at twelve o'clock, and ground their arms in the presence of such troops as the general may appoint. These terms were agreed to, and on the next day general Scuyler marched to Johnstown. [Jan. 20.] On Saturday he drew up his men in the street; and the highlanders, between two and three hundred marched

to the front where they grounded their arms. These secured the general dismissed them with an exhortation, pointing out the only conduct which could insure them protection. In the evening he returned to Cagnage, leaving col. Herkimer and the committee of Tryon county to receive the arms of the remainder, and to fix on six of the principal leaders to send to him. He expected that the whole disarmed, or to be disarmed, would amount to above six hundred. Gen. Scuyler's conduct was highly approved by congress: and those who accompanied him in the expedition were praised for their patriotic services.

The following detached articles of intelligence must not be omitted. In the first week in January, gov. Franklin's dispatches for the ministry were seized by lord Sterling's troops and sent to congress. About the middle of the month, the Jersey men descried a transport at sea. They procured several boats, and sailed in quest of her with four days provision. Lord Sterling commanded. Upon their coming up and along side of her, she was taken without any resistance, for the sailors swore they would not fight for common wages. The Americans are making saltpetre all over the continent, from New-Hampshire to Virginia inclusively.

Let us return to the neighbourhood of Boston.

[Feb. 8.] Major Knowlton was dispatched with a hundred men to make an incursion into Charlestown, and burn a number of houses, that they might be no longer of service to the enemy. He crossed the mill-dam upon the ice, between Cobble Hill and Bunker's Hill; and immediately proceeded down the street on the westerly side of the last hill, and destroyed about ten houses, and brought off a few muskets. He performed the whole in less than an hour, without the loss of a single man killed or wounded, though the British garrison kept up a considerable fire of musketry from Bunker's Hill. This expedition confounded the amusement carrying on in Boston, at the same instant.

The British soldiers were much afflicted with sickness and the scurvy, occasioned by the want of vegetables and fresh provisions, notwithstanding the powerful exertions made at home to throw in supplies. Many of the vessels, which were loaded in England with live stock, vegetables and porter, had been either taken on the coast of America, or blown off to the West-Indies, by the severe north-west winds, which usually prevail during the winter months. Out of 40 sail of transports only eight had arrived. None

of these things however hindered the officers from amusing themselves, all they could, in the present situation. They had their balls and theatre, that so they might forget themselves, while seemingly forgotten by their native country. It so happened that they had finished attending the *Busy Body*; and the scenes were changed, that the farce of the *Blockade of Boston*, said to be written by gen. Burgoyne, might be performed. The figure designed for gen. Washington had just made his appearance (as we are told) upon the stage, with a large wig and long rusty sword, together with his orderly serjeant, who had on his shoulders a rusty gun seven feet long; now it was, that one of the regular serjeants came running on the stage, threw down his bayonet and called out lustily, "the Yankees are attacking Bunker's Hill." They who were unacquainted with the farce, thought that this was a part of it, but when gen. Howe cried out, *officers to your alarm posts*, instead of mirth and laughing, there was shrieking, crying, fainting, &c.

The inhabitants of the town have been supplied with fresh provisions once in a while from Nova-Scotia. Within two days of the above affair, a sloop arrived with beef, poultry and hay, the hay sold for a guinea a hundred weight, the beef for one and six-pence the pound, geese nine shilling a piece, and other articles proportionably, in sterling money.

There was such a continued backwardness in the Americans to serve in the army, that gen. Washington was more and more convinced that it could never be raised to the new establishment by voluntary enlistments. [Jan. 18.] Such was its present inequality to capital operations, that it was unanimously agreed in a council of war, to request thirteen regiments of militia to be at Cambridge by the first of February, and to remain if wanted to the last of March, that so a vigorous attempt might be made on the army at Boston, if practicable. The news of the unsuccessful attempt upon Quebec, and gen. Montgomery's death. [Jan. 24.] was publicly known not only in the American quarters but at Boston. Let me give you an account of the siege down to the latest intelligence from thence.

The garrison of Quebec, when gen. Montgomery appeared before it, consisted of col. Maclean's men, a hundred and seventy; a company of the seventh regiment, sixty; marines, forty; militia, about eight hundred; and seamen belonging to the king's frigates and to the merchant ships which wintered in the harbor, four hundred and fifty; in all, fifteen hundred and twenty. The general was at the head of upwards of eight hundred men^[1] only

so small was the force he brought with him, after leaving a corps at Montreal; and so much was Arnold's detachment reduced, by the return of col. Enoe's division and other unfavorable circumstances. Thus you see the besiegers were little more than half the garrison. Upon his appearing before the city he sent forward a flag of truce which was fired upon by order of Sir Guy Carleton; [Dec. 6, 1775.] at this gen. Montgomery was so provoked, that the next day he wrote to Sir Guy a letter, in which he departed from the common mode of conveying his sentiments, and made use of threats and language that he would otherwise have probably declined. Notwithstanding the inclemency of the season he set about erecting works. His batteries were composed of snow and water, which soon became solid ice. He planted on them five pieces of ordnance, twelve and nine pounders, with one howitzer; but the artillery was inadequate, and made no impression; it was therefore soon in contemplation to storm the city. [Dec. 16.] A council was held by all the commanding officers of col. Arnold's detachment in the evening; and a large majority was for storming the garrison, as soon as the men were provided with bayonets, spears, hatchets, and hand grenades. In a few days several of the men were ill of the small-pox those who were well and fit for service were ordered to wear hemlock sprigs in their hats to distinguish them in the attack upon the works. [Dec. 25.] Col. Arnold's detachment paraded in the evening, at capt. Morgan's quarters, when gen. Montgomery attended, and addressed them on the subject of an assault on Quebec, in a sensible spirited manner. The scheme of storming was wholly the general's who in the council of war on the occasion, showed the necessity, practicability, and importance of it, in such a clear and convincing manner, that they were all agreed and full in the measure. But he was forced into the scheme from this circumstance, that a part of his army had to serve no longer than to the end of the year, and three companies of Arnold's detachment were uneasy, and were determined to return home. His army did not now exceed eight hundred sick and well; only seven hundred and thirty were fit for duty.^[2] The attempt had the appearance of rashness, but the general was persuaded that men, who had behaved so well, would follow him, and that many of Sir Guy Carleton's forces would not fight, when actual service commenced. The general in his dispatches wrote, [Dec. 36.] "I have so early reported to you my determination to return home, I take it for granted measures are taken to supply my place. Should not any body arrive, I must conclude congress mean to leave the management of affairs in

gen. Wooster's hands, (Wooster was at Montreal.) If this business should terminate in a blockade, I shall think myself at liberty to return. However if possible, I shall first make an effort for the reduction of the town. I had reason to believe, when I wrote last, the troops well inclined for a coup de main. I have since discovered, that three companies of col. Arnold's detachment are averse. They are within a few day of being free from their engagements: I must try every measure to prevent their departure." [Dec. 27.] The next day at evening the troops assembled by his order, with design to make an attack and were about to march, when a fresh order came for their returning to quarters—the weather being thought not proper. Several men deserting to the enemy, the general was induced to alter his plan, so that no part of it transpired to the besieged. [Dec. 30.] The weather being stormy, and the ladders being ready, the troops were ordered to parade at two o'clock the next morning.

[Dec. 31.] The troops assemble at the time appointed—they that are to make the attack by the way of Cape Diamond, at the general's quarters on the heights of Abraham, and are headed by the general—they that are to make the attack through the suburbs of St. Roe, at the guard-house in St. Roe, and are headed by col. Arnold. The division under Montgomery consists of the 1st. 2d. 3d. and 4th. battalions of the New-York troops, and part of col. Easton's regiment; but of about two hundred men only. The division under Arnold is made up out of the two battalions detached from Cambridge, and amount to about three hundred. Col. Livingston, with a regiment of one hundred and sixty Canadians, and major Brown with part of a regiment of Massachusetts troops, are to make a false attack upon the walls to the southward of St. John's gate, and in the mean time to set fire to the gate with the combustibles prepared for that purpose. The colonel is also to give the signals for the combination of attack, which is to begin exactly at five o'clock. (It is said that capt. Frazer of the emigrants, then on picket, going his rounds, saw the rockets fired off as signals, and from his knowledge of the service forming a conjecture of what would happen, beat to arms without orders, and so prepared the garrison for defence.) The different routes the assailing bodies have to make, the depth of the snow, and other obstacles, prevent the execution of Livingston's command. The general moves with his division, attended by a number of carpenters, to the pickets at Cape Diamond. These are soon cut with the saws, and the general pulls them down with his own hands. He enters with his aid de camp Mr.

M'Pherson, Mr. Antill the engineer, capt. Cheeseman, and the carpenters. As they are entering, their guides forsake them; which alarms the general and other officers, who are unacquainted with the pass and situation of the enemy's artillery. They however press on. The general observing that the troops do not follow with spirit, calls out "Fie! for shame! shall the New-York troops desert the cause in the critical moment? Will you not follow when your general leads? Push on brave boys, Quebec is ours." A few act with resolution, advance, and attack the guard-house, when the enemy give a discharge of grape shot from their cannon, and of small arms; which occasions the fall of the general, his aid de camp, capt. Cheeseman and others. The firing from the guard-house ceases, by the enemy's quitting their post, and the opportunity offers for the assailants to push forward with success. But the deputy quarter master general Campbell, with the rank of a colonel, assumes the command; and not being equal to the special service of the moment, unhappily orders a retreat, which takes place and the wounded are carried off to the camp.

We now come to col. Arnold's division, which is ordered to proceed in the following manner, viz. a lieutenant and thirty men are to march in front as an advanced guard; then the artillery company with a field piece mounted on a sled; after that the main body, of which capt. Morgan's company is first. The advanced party is to open, when near the battery raised upon a wharf, which the assailants are obliged to attack in their way; and when the field piece has given them a shot or two, the advanced party are to rush forward with the ladders, and force the battery, while capt. Morgan's company are to march round the wharf if possible, on the ice. But the snow being deep, the piece of artillery is brought on very slowly, and is finally obliged to be left behind. The main body also are led wrong. There is no road, the way is dark and intricate, among stores, houses, boats and wharfs; and they are harassed at the same time with a constant fire of the enemy from the walls, which kills and wounds numbers, without their being able in the least to annoy them. The field piece not coming up, the advanced party with capt. Morgan's company attack the battery, some firing into the port-holes, or kind of embrasures, while others scale the battery with ladders and immediately take possession of it and of the guard consisting of thirty men. This attack is executed with such dispatch, that the enemy discharge only one of their cannon. One or two men are lost on each side. Colonel Arnold receives a wound in one of his legs with a musket ball, and

is carried to the general hospital. When the prisoners are taken care of, and a few men come up (which is in about half an hour) the men attempt the next barrier, but cannot force it as the main body is some time before it can arrive, occasioned by the beforementioned obstacles. The enemy moreover, having the opportunity, from the retreat of Montgomery's division after his fall, turn their whole force and attention upon this, so that before it can attempt the second barrier the assailed get such a number of men behind the barrier, and in the houses, that the assailants are surrounded with a fire from treble their number, and find it impossible to force it, the former being under cover, while the latter are quite exposed: here they lose some brave officers and men. What adds to their embarrassment, they fail of being aided by a company of their comrades, who were quartered on the north side of the river St. Charles, and not having notice in season, in endeavouring to join the main body, are surprised and mostly taken prisoners, by a party, who make a sortie through palace gate. They who are near the second barrier, at length take possession of some houses, and from them keep up a constant fire for some time; but as the party, which sallied out of palace gate, comes upon the rear of the assailants, and the number of these is greatly lessened by killed and wounded, it is thought best to retreat to the first battery. This they do with the greatest part of their men, where, upon a consultation of officers present, it is the unanimous opinion, that a further retreat is impracticable. They maintain their ground till ten o'clock and all hope of relief being over, are at last obliged to surrender prisoners of war, with great reluctance.

By the best account that can be obtained at present, they have lost in killed and wounded about a hundred—one captain and two lieutenants killed—col. Arnold, two captains, two lieutenants, and a brigade major, wounded. The loss of the general's division is, the general, his aid, capt. Cheeseman, and half a score privates killed, beside the wounded. The general was shot through both his thighs and his head. His body was taken up the next day: an elegant coffin was prepared, and he was decently entered the Thursday after. We are told, that when his body was taken up his features were not in the least distorted, but his countenance appeared regular, serene and placid—like the soul that had lately animated it. The general was tall and slender, well limbed, of easy, graceful and manly address.—He had the voluntary love, esteem and confidence of the whole army. He was of a good family in Ireland, and served with reputation in the

late war with France. His excellent qualities and disposition procured him an uncommon share of private affection—his abilities, of public esteem. His death is considered as a greater loss to the American cause, than all the others with which it was accompanied.

When the continental troops had collected after the unsuccessful attack on Quebec, there was a dispute who should command and whether it was advisable to raise the siege, or tarry until a reinforcement should arrive. A council of war agreed, that col. Arnold should command, and should continue the siege, or rather the blockade, which was accordingly done, apparently at no small risk, as they had not many more than four hundred men fit for duty. But they retired about three miles from the city, and posted themselves advantageously^[3]. After mentioning, that the prisoners made in the attempt to surprise Montreal have been sent to Great-Britain, and col. Allen in irons, let us return to Boston and its environs.

[Feb. 14.] About four in the morning, a party from the castle under col. Leslie joined another, amounting to about five hundred, sent over the ice to Dorchester Neck by gen. Howe. They burnt about half a dozen houses; but the general's scheme failed. He had been up the whole night, getting ready for an attack with a large body of troops. He expected, that the burning of the houses would occasion such an alarm, as to put the American officers upon sending from Roxbury lines a large reinforcement, and thereby giving him an advantageous opportunity of attacking them; but at day break, he found their men as usual at their alarm posts, so that he declined it. The strength of the ice having been tried in one place, and the frost continuing, general Washington was desirous of embracing the season for passing over it, from Cambridge side into Boston. He laid before a council of war [Feb. 16.] the following question: "A stroke well aimed at this critical juncture, may put a final period to the war, and restore peace and tranquility so much to be wished for, and therefore whether, part of Cambridge and Roxbury bays being frozen over, a general assault should not be made on Boston?" General Ward opposed the idea, saying, "The attack must be made with a view of bringing on an engagement, or of driving the enemy out of Boston, and either end will be answered much better by possessing Dorchester heights." General Gates was also against it. The commander in chief was evidently for it. He did not appear enough sensible of the importance of Dorchester heights; and probably confided too much in the courage and perseverance of the continental troops and militia. When the votes were

called for, the majority were against the attack. The commander in chief could not refrain from showing that he was greatly dissatisfied. But a negative being put on the question, the next point to be considered was, whether they should possess themselves of Dorchester heights, with a view of drawing the enemy out. This was agreed upon; and the conducting of the business was left wholly to general Ward, who with generals Thomas and Spencer, commanded on that quarter. They had been for some time collecting fascines, gabions, &c. unknown to general Washington, in expectation that the same would be wanted for this purpose. Had they not practised such foresight, it is to be much doubted whether they could have been in sufficient forwardness. The militia, which were called for from the New-England colonies to assist in some grand operation meant to be undertaken between the first of February and the end of March, collected apace; but the want of arms was prodigious. Every thing was carried on with the utmost expedition; that so the heights might be occupied as soon as possible. The design was no secret, and many were fearful, that general Howe would secure them before the Americans—but he could not spare a sufficient force for the purpose. Not only so, but there was neither water nor covering upon the heights; and had a corps been employed by him to gain the possession of them, it would have been in danger of being surrounded, of having its communication cut off, and of being obliged to surrender in less than twenty-four hours, through the severity of the weather.

[Feb. 26.] The Americans had got forty-five batteaus, each to carry eighty men, and two floating batteries, stationed at the mouth of Cambridge river; by the help of these, they meant to rush into the west of Boston, should the enemy make a serious affair of Dorchester. A council of war was called to fix the time for going upon the heights. The quarter master general, colonel Mifflin, was summoned to the council for the first time. He went prepossessed in favor of the night of March the fourth, a friend having reminded him, that probably the action would be the next day; and that it would have a wonderful effect upon the spirits of the New-Englanders, to tell them when about engaging—“remember the fifth of March, and avenge yourselves for the massacre at Boston.” When required to give his opinion, he spake in favor of the aforementioned night, and supported it in opposition to the contrary sentiment of general Gates, who for some reasons deemed it an improper time. After a debate it was carried for that night by a majority of one. It was included, that several regiments of militia from the

neighbouring towns, should march in, and do duty for a few days on the lines of Dorchester and Roxbury. Among other preparations which had been making against the day of action, the doctors, surgeons, mates, &c. had been preparing two thousand bandages for broken legs, arms and dangerous wounds.—

Though this circumstance was well known in camp, the men did not appear daunted at the idea of the horrid carnage it imparted. There was a spirit of animation among them, intimating a strong desire of coming to blows with the enemy. To conceal the design of the Americans, and to divert the enemy's attention, a very heavy service of cannon and mortars began to play upon the town, between ten and eleven, on Saturday night, [March 2.] from Cobble Hill, Lechmere's point and Lamb'sdam, a fortified battery at Roxbury. The firing was continued all that, and the two succeeding nights. The first night, two seven inch, and one ten inch, and the *congress* mortar burst; the last after firing twice or thrice. Till the Saturday night, the enemy did not believe that the continentals had so many warlike instruments. But Mr. Henry Knox, who was unanimously elected by congress colonel of the regiment of artillery the 17th of last November, had been to Tyconderoga, and brought from thence and Crown Point across the lakes, while frozen sufficient to bear cannons, mortars and howitzers, to the number of fifty and better. Shells, &c. they had got from the king's store at New-York, and out of the ordnance brig. The cannonade and bombardment did little damage, only shattered some houses and hurt a few soldiers.

[March 4.] All things being ready on Monday; as soon as the evening admits, the expedition goes forward. The covering party of 800 men lead the way; then come the carts with the intrenching tools; after them the main working body of about 1200 under general Thomas: a train of more than 300 carts, loaded with fascines, hay in bundles of 7 or 800 weight, &c. close the martial procession. The bundles of hay are designed for Dorchester neck, which is very low, and exposed to be raked by the enemy; and are to be laid on the side next to them, to cover the Americans in passing and repassing. Every man knows his place and business. The covering party, when upon the ground, divides; half goes to the point nearest to Boston, the other to that next to the castle. All possible silence is observed. But there is no occasion to order the whips to be taken from the waggoners, lest their impatience, and the difficulty of the roads should induce them to make use of them, and occasion an alarm^[4]. The whips used

by the drivers of these ox carts, are not formed for making much noise, and can give no alarm at a distance. The men in driving their oxen commonly make most noise with their voices; and now a regard to their own safety dictates to them, to speak to their cattle, as they move on, in a whispering note. There are no bad roads to require an exertion; for the frost having been of long continuance, they are so hard frozen as to be quite good. The wind lies so as to carry what noise cannot be avoided by driving the stakes and picking against the ground, (still frozen above eighteen inches deep in many places) into the harbour between the town and the castle, so that it cannot be heard and regarded by any who have no suspicion of what is carrying on especially as there is a continued cannonade on both sides. Many of the carts make three trips some four; for a vast quantity of materials have been collected, especially chandeliers and fascines. By ten o'clock at night the troops have raised two forts, one upon each hill, sufficient to defend them from small arms and grape shot. The night is remarkably mild, a finer for working could not have been selected out of the three hundred and sixty-five. They continue working with the utmost spirit, till relieved the Tuesday morning (March 5.) about three. It is so hazy below the height that the men cannot be seen, though it is a bright moonlight night, above on the hills. It is some time after day break before the ministerialists in Boston can clearly discern the new erected forts. They loom to great advantage, and are thought to be much larger than is really the case. General Howe is astonished upon seeing what has been done; scratches his head and is heard to say, "I know not what I shall do; the rebels have done more in one night, than my whole army would have done in months." The admiral informs him, that if the Americans possess those heights he cannot keep one of his majesty's ships in the harbour. A council of war determines to attempt dislodging them.

General Washington has settled his plan of defence and offence. Boston is so surrounded on every land side by neighbouring hills, that nothing can take place on the wharves or next to the water, but it may be noted by the help of glasses. Proper signals having been agreed on, by means of the hills, which are in view one of another, intelligence can be conveyed instantly from Dorchester heights to Roxbury, and from Roxbury to Cambridge and so the reverse. This mode of communicating information is the speediest and safest. General Washington's plan is, in case any number of the enemy leave Boston to attack the heights and are defeated, to communicate such

defeat by the proper signal, when 4000 provincials are to cross over from Cambridge side, and attempt the town in the confusion that the regulars will be under. The boats are prepared, and the men paraded ready to embark. General Sullivan commands the first division, and general Green the second. Gen. Heath objected to the command when offered, and remains in perfect safety with the troops left in Cambridge. The whole force which the commander in chief now has, including all the militia, is not much short of 20,000.

All is hurry and bustle in Boston. General Howe orders the ladders in town to be cut to ten feet lengths, that they may be fit for scaling. A large body of troops are to embark on board the transports, and to proceed down the harbour, with a view of landing in the hollow between the furtherest of the two fortified hills and the castle. The men are observed by one, at whose door they are drawn up before embarking, to look in general, pale and dejected; and are heard to say, "It will be another Bunker's Hill affair, or worse"—they have adopted the prevailing mistake of Bunker's for Breed's Hill. Some show great resolution and boast of what they will do with the rebels. When these troops, amounting to about 2,000, and designed to be under the command of lord Percy, are upon the wharves, and passing in the boats to the transports, the Americans expect they are intended for an immediate attack, clap their hands for joy, and wish them to come on. General Washington happens at that instant to be on one of the heights; thinks with his men; and says to those who are at hand,—“Remember it is the fifth of March, and avenge the death of your brethren.” It is instantly asked by such as are not near enough to hear,—“What says the general?” His words are given in answer. They fly from man to man through all the troops upon the spot, and add fuel to the martial fire already kindled, and burning with uncommon intenseness. The surrounding hills and elevations about Boston, affording a secure view of the ground on which the contending parties are expected to engage, are alive with the numerous spectators that throng them. A more interesting and bloody scene is apprehended to be just upon commencing, than what presented at Charlestown. They wait, as do the troops, officers and privates, the morning through; and till far into the afternoon, when they are convinced of the tide's being so far ebbcd, that no attack can be made by general Howe on the Tuesday, which indeed is not his intention, for he is preparing to do it on the Wednesday. The transports go down in the evening toward the castle, a

floating battery is also towed down, but the wind is unfavorable, and before they reach their destination blows up fresh, and forces three of the vessels ashore on Governor's Island. A storm succeeds at night, such as few remember ever to have heard; and toward morning it rains excessively hard.

[March 6.] The design of general Howe was hereby frustrated, and a deal of bloodshed providentially prevented. A council of war, was called in the morning, and agreed to evacuate the town as soon as possible. The time that had been gained by the Americans for strengthening their works, before any attempt could be now made upon them, took away all hope of success; which would have been more precarious than expected by reason of colonel Mifflin's having advised to, and provided a large number of barrels, filled with stones, gravel and sand, that were placed round the works, to be rolled down and break the lines of any hostile advancing troops, when ascending the hills. He is entitled to much praise for all his exertions, and particularly for his conduct on this occasion. There was a full supply of teams and other requisites for the service; and though the men were for a while without cover, and suffered from the rain and cold, yet before Thursday evening he had a number of barracks up; they having been framed beforehand, and brought upon the ground on Monday night. [March 7.] There was a general hurry and confusion in Boston; both troops and tories were as busy as possible in preparing to quit the town, and to carry off all they could of their military stores and valuable effects. The number of transports and vessels was short of what were wanted. In the beginning of last November, gen. Howe received a letter from lord Dartmouth, advising to the evacuation of Boston, and the removal of his troops to New-York. He excused himself by pleading he had not sufficient shipping. He was now obliged to evacuate with fewer.

[March 8.] A flag was sent out from the select men, acquainting general Washington with the intention of the troops, and that general Howe was disposed to leave the town standing, provided he could retire uninterrupted by the country. General Washington brought himself under no obligation; but expressed himself in words which admitted of a favorable construction, and intimated his good wishes for the town's-people. He was at a loss to know where it was that general Howe intended going; and though inclined to believe it was Halifax, yet to guard against the evil of a mistake, while the British were preparing to be gone, he sent off the riflemen by land to New-York, to assist in securing that city.

[March 9.] General Howe issued a proclamation, ordering all woollen and linen goods to be delivered to Crean Brush, esq. be they in whose hands they might. [March 10.] Sundry shops belonging to persons in the country, were broke open and all the goods, of whatever sort or kind, taken by the said Brush and put on board ship to be conveyed away. The next day shops were stripped by him of all their goods, though the owners were in town. [March 12.] There was a licentious plundering of shops, stores and dwelling-houses, by soldiers and sailors, carrying destruction wherever they went: what they could not carry away they destroyed. The next day the same scene were renewed though expressly forbid in orders, and the guilty threatened with death, if detected in that or firing a house. [March 14.] The streets were barricaded in different parts of the town, and dispositions made, as though the troops would soon take there departure. Stores &c. were plundered by sailors from the ships of war, led by their officers under pretence of orders from the admiral. [March 15.] Proclamation was made by the crier for every inhabitants to keep to his house from eleven o'clock in the morning till night, lest they should ennoy the troops in their intended embarkation; but the wind coming about to east, they mostly returned to their barracks again.—[March 16.] The troops waiting only for a fair wind to embark, had little else to study but mischief, which they practised to a great degree, by breaking open stores and tossing the contents, being private proverty, into the dock; destroying the furniture of every house they could get into, and otherwise committing every kind of wantonness, which disappointed malice could suggest.

[March 17.] A breast work was discovered, to be thrown up by the Americans at Nook's Hill on Dorchester peninsula, which from its proximity, had an entire command of Boston Neck and the south end of the town—a work which the king's troops had most fearfully dreaded. In consequence of it, they began to embark at four o'clock in the morning, and were all on board and under sail before ten.^[5] When it was certain that they were quite gone, search was made, for fear of what might be, and fires were discovered in several houses so circumstanced as to intimate a design of setting them on fire, which was happily frustrated. Nothing but prevailing prejudice will impute such design to any other than some unprincipled privates: though an officer of rank was strongly suspected of having plundered under an official character, and of having connived at the rascally conduct of smaller villains. What so hastened the British upon a sight of the

works at Nook's Hill, was probably an apprehension, that the Americans would possess themselves of Noddle's Island, and by erecting batteries at both places, enclose the harbor with the fire of their cannon. When the king's troops withdrew from Charlestown, they left centries standing as usual with their firelocks shouldered; but it was soon suspected what regiment they belonged to, and that they were only effigies set there by the flying enemy. It appears by one of the orderly books which was left behind, that their force was 7575, exclusive of the staff; so that with the marines and sailors, Howe might have been considered as 10,000 strong, had it not been for the mutual jealousies which took place between the army and navy.

The difficulties which the troops were under, from being so unexpectedly obliged to evacuate Boston, were much increased by the numbers who were under the necessity of removing with them. Many who were disaffected to the American cause had fled there with their families for safety: besides these, there were not a few of the old inhabitants, who concluded it was far more prudent for them to withdraw than remain. Both together, with their families, made up some hundreds, and with their effects encumbered the transports; to which must be added the plunder taken from the town, consisting of furniture and various other articles of a bulky nature. The suddenness of the evacuation prevented an application to Halifax for a supply of shipping to lessen the embarrassments. When the fleet got down to King and Nantasket roads, they remained there several days, and during that period, burnt the blockhouse and barracks on Castle-Island, blowed up and demolished the fortifications; but they did not undertake to carry off the cannon, and only attempted rendering them unserviceable, which was affected as to several.

General Washington was soon acquainted with the evacuation of the town, when measures were taken to preserve the peace and order of it, by placing guards and giving directions as to the admission of persons into it. The day of evacuating being the Sabbath, was in favor of regularity. On the Monday [Mar. 18.] his excellency sent off five regiments under gen. Heath. After marching about a hundred miles, they embarked and went from New-London through the Sound to New-York by water. The rest, excepting a few which were left in Boston, took the same route, when the fleet put to sea, the American army was well supplied with flour, while in the neighbourhood of Boston, without any particular interruption, owing to capt. Wallace's having been ordered to cruise about Rhode-Island, instead

of New-London. Consequently the flour for the army always got safe from New-York or elsewhere to New-London, from thence to Norwich, and then by land to the place of destination.—About a week after the evacuation, the British fleet sailed as was soon known, for Halifax; but commodore Banks was left with two or three men of war to protect the vessels that should arrive from Great-Britain or Ireland; some of which will undoubtedly be taken notwithstanding such precaution. It was but three day before the evacuation, that capt. Manly took a transpart of 400 tons burthen, laden with pease, potatoes, pork, sourcrout and ten packages of medicine.

When admission into Boston was allowed, the American troops were very desirous of seeing the town. Many of them came from inland places and were never in a sea-port; their curiosity was much excited on a variety of accounts. But the small-pox was in several parts of it; and therefore they only, who were past the disorder were to be admitted. Such however was the desire of numbers, that they were guilty of a deception, to obtain entrance. The thought of being liable to catch the distemper would have terrified them in the highest degree a little while back; but to gratify a different passion, they suppressed their fears, which might operate for the preventing of their taking the infection. The works of the enemy naturally engaged their attention. These, by judicious persons who have surveyed them, are acknowledged to be excellent, and every one is convinced, that it would have been a most hazardous attempt to have endeavored forcing them.

General Washington appointed persons to procure an account and to take care of the articles which the British troops left behind. Beside others, there were at the Castle-Island and Boston 250 pieces of cannon, great and small, more than half of which may be rendered serviceable by the aids of ingenuity; the heaviest have been the least injured—four thirteen and a half inch mortars, two of them with their beds weighing five tons each—2,500 chaldron of sea coal—25,000 hushels of wheat—2,300 bushels of barley—600 bushels of oats—100 jars of oil, containing a barrel each—and 150 horses. Some of the ordnance were thrown into the water; but the Americans will recover them. The joy of the inhabitants, whether such as remained in town or withdrew for personal security, upon finding themselves restored to the safe and peaceable enjoyment of their ancient rights, freed from what they deemed an odious tyrannical authority, in a situation to triumph over the disgrace of their enemies, and with the

prospect of speedy relief from the distresses which they had been under for many tedious months—that joy is more easily conceived than expressed. They received the commander in chief with every mark of respect and gratitude, which could be shown to a deliverer.

[Mar. 28.] At his excellency's request, Dr. Elliot preached a thanksgiving sermon on the opening afresh of the Thursday's lecture. That you may not be at the trouble of turning to your Bible, take his text in manuscript, "Look upon Zion the city of our solemnities; thine eyes shall see Jerusalem a quiet habitation, a tabernacle that shall not be taken down; not one of the stakes thereof shall ever be removed, neither shall any of the cords thereof be broken." When you are minded to examine the context, look for chap. xxxiii. 20. of Isaiah. The general and a number of officers attended. A dinner was provided for his excellency and other gentlemen in public and private life.

The day after the lecture, (March 29.) the Massachusetts's council and house of representatives complimented him in a joint address. They took notice, among many other things, of his attention to the civil constitution of the colony; of the regard he had always shown for the lives and health of those under his command; of his having attended to the preservation of their metropolis, in the quiet possession of which they now were, without that effusion of blood they so much wished to avoid. When they expressed their good wishes for him at the close, they began with, "May you still go on, approved by heaven, revered by all good men, and dreaded by those tyrants who claim their fellow men as their property"—and finished with, "May future generations in the peaceful enjoyment of that freedom, the exercise of which your sword shall have established, raise the richest and most lasting monuments to the name of a *Washington*." His answer was proper, moderate, and becoming his situation. It will be to his honor to mention, that in private conversation, he expressed himself to this purpose: "The recovery of Boston, by the speedy flight of the enemy, is more satisfactory than a victory gained at the expence of much blood-shed." When he sent off an express to Lord Stirling, at New-York, he wrote, "Gen. Howe abandoned Boston without destroying it. The town is in a much better situation, and less injured than I expected, from the reports I had received; though to be sure, it is much damaged, and many houses despoiled of their valuable furniture." The following anecdote of the general may be acceptable. A gentleman who had heard the Rev. Mr. Davis relate, that col. Washington

had mentioned—he knew of no music so pleasing as the whistling of bullets; being alone in conversation with him at Cambridge, asked him whether it was as had been related; the general answered—“If I said so, it was when I was young.” Let us take a transient notice of the hardships experienced by the Boston inhabitants, whether they remained in the town or withdrew from it, and resided elsewhere till the evacuation. Notwithstanding the universal profession of patriotism, advantages were too generally taken for oppressing them, by extravagant charges. A sensible writer justly censured such proceedings in the Connecticut Gazette; and complained, that the refugees were obliged to pay far higher rents for houses than usual, and in some instances double. The greatest sufferings of those who remained, arose from the want of fuel and from provisions, not to mention such as resulted from the presence of the British army and navy. Fresh provisions were not alway to be had, and were mostly too dear for the lower class to obtain; but at length the rations of the soldiers were so plentiful, that by the aid of these and arrivals from Europe, they that remained in the town had a tolerable supply of pork, peas, salt butter, sweet oil and bread, at a moderate price. But the intense cold of the season rendered the want of fuel extremely grievous. Families, which had been accustomed to plenty, were obliged to burn with the most sparing hand, and to save by going to their beds very early, and leaving them as late. Many kept to them in the sharpest weather, other than as they got up to dress their victuals and eat their meals. Numbers, to supply the want of fuel, pulled up the floors of their houses, the stairs, and whatever offered. The wooden buildings, taken down by order of gen. Howe, were appropriated to the use of the royal refugees. It was as much charity to the poorer inhabitants to admit them to a small fire, as to furnish them with victuals. You must recollect the hard frosts you have in Britain, once in a great number of years, to conceive of what persons must endure through the want of fuel, from the long continued frosts of this country. The houses which the British officers inhabited while in Boston, were generally left in good condition; but afterwards much damaged when tenanted by the Americans, whose style of life did not lead them to pay attention to neatness and elegance.

New-York, most probably, is henceforward to be the grand scene of action. Gen. Lee has left the city some time, and is gone to the southward. While there, he took care to remove the good cannon on the battery, and at the king’s store amounting to about a hundred, to a place of safety; a third

of them are thirty-two pounders. He also drew up another tremendous oath to be administered to the tories, and sent captain Sears over to Queen's county with it; which led congress to resolve, "That no oath by way of test be imposed upon, exacted or required of any of the inhabitants of these colonies, by any military officer." In many of the streets of the city there are breast-works, barricadoes, &c. and more are making, together with forts in abundance. Actual service began in the colony, (April 6.) A British sloop sent her boat ashore on Staten-Island to get water, and a party of riflemen took the boat and crew prisoners. The firing between the sloop and the riflemen lasted all day. The city, in a week's time, was thronged with provincials; and it might be concluded, that the environs were not very safe from so undisciplined a multitude; but there are few instances of so great a number of troops being together with so little mischief done by them. However as they (especially the Connecticut soldiers, whom some pronounced the dirtiest people on the continent) are not particularly attentive to cleanliness, the owners of the houses where they are quartered, if they ever get possession of them, must be years in cleaning them, unless they get new floors, and new plaister the walls. Gov. Tryon has lost his credit with the citizens, and is now spoken of with contempt and disgust.

The governor of *Virginia*, Lord Dunmore, was no less popular than Tryon at one time; but is at length as little respected by the Virginians as the other is by the New-Yorkers. The measures he has continued to pursue, have only encreased, instead of diminishing the general resentment. We left him on board a ship off Norfolk, on the 14th of December, and col. Robert Howe in possession of the town. The Liverpool frigate arrived from Great-Britain. Soon after, the captain sent a flag of truce, and demanded to be informed whether his majesty's ships of war would be supplied from the shore with provisions: the reply was in the negative; and the ships in the harbour being continually annoyed by the riflemen from behind the buildings and warehouses on the wharfs, it was determined to dislodge them by destroying the same. Previous notice was given, that the women, children, and other innocent persons, might remove from the danger. (Jan. 1.) The entrance of the new year was signalized at four o'clock in the morning, by a violent cannonade from the Liverpool, two sloops of war, and the governor's armed ship the Dunmore; seconded by parties of sailors and marines, who landed and fired the houses next the water. Where buildings instead of being covered with tile, slate, or lead, are covered with shingles, (thin light pieces

of fir or cedar, half a yard in length, and about six inches broad) let the wind be ever so moderate, they will, upon being fired, be likely to communicate the conflagration to a distance, should the weather be dry, by the lighted burning shingles being driven by the force of the flames to the tops of other houses. Thus it happened here; and most of the town was destroyed. Col. Howe, by his positive orders and presence, did all he could to extinguish the fire; but in vain. It is not improbable, that some of the soldiers and negroes, regardless of all orders, instead of extinguishing, used all their endeavours to spread the flames; and thought themselves justified, upon the principle of the property's belonging to persons inimical to the liberties of America. A part of the town escaped; the owners were mostly whigs. Their houses however, were afterward valued, and then burnt by the direction of the ruling civil authority. Thus the whole town was reduced to ashes, that the enemy might have no shelter, should they be inclined to establish a post on the spot. A few men were killed and wounded on both sides at the burning of Norfolk, the most populous and considerable town for commerce of any in the colony. It contained about 6000 inhabitants, and many in affluent circumstances. The whole loss is estimated at more than three hundred thousand pounds sterling. However urgent the necessity, it was an odious business for a governor to be himself a principal actor in burning and destroying the best town in his government. The Americans afterward cut off every possible resource from the ships, burnt and destroyed the houses and plantations within reach of the water; and obliged the people, chiefly royalists, to remove with their cattle and provisions further into the country. The horrid distresses brought upon numbers of innocent persons by these operations, must pain the feelings of all who are not hardened by a party spirit.

Governor Martin demands our next attention. Though he was obliged to take refuge on board a ship of war, he contemplated the reduction of North-Carolina to royal obedience. He had been informed, that a squadron of men of war, with seven regiments, under the conduct of Sir Peter Parker and Lord Cornwallis, were to leave Ireland on an expedition to the southern provinces in the beginning of the year, and that *North-Carolina* was their first, if not principal object. He knew also that Gen. Clinton, with a small detachment, was on his way to meet them at Cape Fear. He had for some time formed a connection with the regulators, and highland-emigrants, in the western parts of the province. To these people he sent several

commissions for the raising and commanding of regiments, and granted another to Mr. M'Donald to act as their general. He also commanded all persons by proclamation, to repair to the royal standard which was to be erected by the general about the middle of February. The highlanders and regulators collected and embodied at Cross Creek the beginning of the month; and by the 19th amounted to about fifteen or sixteen hundred. Gen. Moore hearing that they were assembling, marched with his own regiment, and all the militia he could collect, about 1100 in all, to an important post within seven miles of Cross Creek, which he secured on the 15th Feb. On the 12th they marched within four miles of him, and sent in, by a flag of truce, [Feb. 20.] the governor's proclamation, a manifesto, and a letter to the general, which he answered. That and the following night they crossed the north-west river, and took their rout to Negro Head Point. On information hereof gen. Moore sent an express to col. Caswell, who was upon his march with 800 men to join him, and directed him how to proceed upon the occasion. Colonels Lillington and Ashe were ordered, if possible to reinforce him; and if they could not, to take possession of Moore's Creek bridge. The general pursued the enemy; but did not come up with them. He proposed getting to and securing the bridge, which was about ten miles from them. Want of horses occasioned a delay; but col. Lillington had taken his stand there just in time, and the next afternoon was reinforced by col. Caswell. The colonels immediately raised a small breast-work and destroyed part of the bridge. The next morning at break of day, [Feb. 27.] an alarm gun was fired, directly after which, scarcely leaving the Americans a moment to prepare, the enemy with capt. M'Cleod at their head (gen. M'Donald being ill) made their attack. Finding a small intrenchment next the bridge quite empty, they concluded that the Americans had abandoned their post, and in the most furious manner advanced within thirty paces of their breast-work and artillery, where they met with a warm reception. Captains M'Cleod and Cambell fell within a few paces of it; and in a few minutes the whole army was put to flight, and shamefully abandoned their general, who was the next day taken prisoner. They lost only about 70 killed and wounded. The Americans had only two wounded, one of them survived. The conquerors took 13 waggon, 350 guns and shot bags, about 150 swords and dirks, and 1500 excellent rifles. The joy this conquest diffused among the North-Carolinians is inconceivable, the importance of it being heightened by gen. Clinton and lord William Campbell's being then at Cape

Fear in sanguine expectation of being joined by the vanquished. The Americans under colonels Caswell and Lillington were about 1000 strong. Parties of men have been dispersed through the colony, to apprehend suspected persons, and disarm all the highlanders and regulators routed in the battle who are discharged if privates, but the officers are secured. It was but a few months since——capt. M’Cleod and another officer took a solemn oath before the committee at New-bern, that their business in North-Carolina was only to see their friends and relations.

In *South-Carolina*, when the recommendation of the continental congress for the establishment of a form of government came to be considered, a great part of the provincial congress opposed the measure; it had so much the appearance of an eternal separation from a country, by a reconciliation with which many yet hoped for a return of ancient happiness. While they were suspended on this important debate, an express arrived from Savannah, with the act of parliament, passed December 21, 1775, confiscating all the American property found floating upon the water; and compelling all the crews belonging to American vessels, without distinction of persons to serve as common sailors in the British ships of war. By this act they considered all the colonists from New-Hampshire to Georgia inclusively, as thrown out of the king’s protection. The timely arrival of it turned the scale, silenced all who were advocates for a reconciliation, and produced a majority for an independent constitution. In less than an hour after the act was read in the convention, an order was issued to seize for the public, a Jamaica vessel laden with sugar, which had put into Charlestown in her way for London; though she had the day before obtained leave to pass the forts, and meant to sail in the afternoon. Still the attachment of numbers to Great-Britain was so strong, that though they assented to the establishment of an independent constitution; yet it was carried after a long debate, that it is only to exist, “till a reconciliation with Great-Britain and the colonies shall take place^[6].”

The transactions in *Georgia* remain to be related. Gen. Howe, while at Boston, in order to obtain rice, sent major Grant and capt. Maitland with four transports and 200 marines to Savannah. The South-Carolina congress having timely information, commissioned col. Stephen Bull to act in aid of the Georgians: he accordingly marched a body to their assistance. A battery was erected, which fired smartly upon the transports on their arrival in the harbour. Upon this they went round an island in the night to get at some

vessels going to Great-Britain. About four o'clock in the morning of March the third, the enemy, by collusion with the masters and others, got on board these ships, where they attempted to conceal themselves. But knowledge of it being obtained, 300 men were immediately marched opposite the shipping, with three four pounders, and threw up a breast-work. Firing between both parties after a while ensued. At length it was determined to burn the vessels, orders were issued to fire the *Inverness* and cut her loose; which being executed the marines in the utmost confusion, got on shore in the marsh, while the riflemen and field pieces were incessantly galling them. The shipping were also in the utmost disorder. Some got up the river under cover of an armed sloop, while others caught the flame, and, as they passed and repassed with the tide, were the subject of gratulation and applause. Seven loaded vessels were burnt, and the intention of gen. Howe entirely frustrated.

Philadelphia will detain us for a while. Congress resolved, (Jan. 15.) "That to express the veneration of the U. Colonies for their late general, Richard Montgomery, and the deep sense they entertain of the many signal and important services of that gallant officer; and to transmit to future ages, as examples truly worthy of imitation, his patriotism, conduct, boldness of enterprise, insuperable perseverance, and contempt of danger and death, a monument be procured from Paris or any other part of France, with an inscription sacred to his memory, and expressive of his amiable character and heroic achievements; and that Dr. Smith be desired to prepare and deliver a funeral oration in honor of the general, and those officers and soldiers, who so magnanimously fought and fell with him in maintaining the principles of American liberty."

They ordered gen. Thomas to take the command of the troops in Canada; endeavouring to collect gold and silver, in exchange for continental bills of credit, for the service in that quarter; and appointed [Mar. 20.] Dr. Franklin, Samuel Chase, and Charles Carroll, esqrs. commissioners to form a union between the people of the United Colonies and those of that province.—They left New-York in the beginning of April on their way thither. As the priests have been prevailed upon to refuse the sacraments to those of the Canadians, who are deemed rebels, and as it operates powerfully against the American interests, a priest is gone from Maryland to perform all the needful services of the Romish religion. Congress came to the resolution, (Mar. 23.) "That the inhabitants of these colonies be permitted to fit out

armed vessels to cruise on the enemies of the United Colonies;" and many others which related to it. They took notice, in the declaration which preceded them, of the act of parliament passed the 21st of December. This act has made many converts to independency in all the colonies. [Mar. 25.] After reading gen. Washington's letter of the 19th, informing congress of the evacuation of Boston, they ordered thanks to be presented to him, in their own and in the name of the Thirteen United Colonies; and to the officers and soldiers under his command; and that a medal of gold be struck in commemoration of the event, and presented to his excellency. They resolved (April 6.) to admit of the importation of any goods and merchandize, (if not of the growth, production and manufacture of, or brought from any country under the dominion of the king of Great-Britain) except East India tea. They on the same day determined, "That no slaves be imported into any of the colonies." They ordered (April 10.) a speech to be delivered to capt. White Eyes, whom they, no less than lord Dunmore, in compliance with the expectation of the Indian, addressed with a—"brother capt. White Eyes."

The disuse of tea is again fashionable through the United Colonies. It became so in the Massachusetts, soon after the East India Company's teas were destroyed on December the 16th, 1773. Coffee, which is about nine-pence sterling the pound, is substituted by vast numbers for the once favourite herb of China; now the more readily exploded for having been the accidental occasion of the troubles with which the colonists are exercised.

[April 1.] Dr. Warren's merit obliges me to mention, that the lodge of Free Masons, whereof he was late grand master, agreed to take up his remains, and in the usual funeral solemnities of that society, decently to inter the same. The spot where he was buried, was pointed out with those attending circumstances that assured them, that they had gained the possession thereof, though consisting of bones only; which were honourably interred in Boston, (April 8) being attended by a grand procession of the society, accompanied by a crowd of spectators.

Commodore Ezekiel Hopkins's naval expedition is the last article of intelligence to be related. The fleet consisted of two ships, two brigs, and a sloop, all armed and well manned, including better than 200 marines. On the 17th of February they left Cape-Henlopen, and after a pleasant passage of fifteen days, came to an anchor off the island of Abacco, about seventeen

leagues from New-Providence, which gave the commodore an opportunity of enquiring into the state of the last island, and of learning that it was well supplied with warlike stores; on which it was deemed a proper object. The marines were embarked on board some small vessels belonging to New-Providence, which had been taken; and the whole sailed Saturday evening, March the 2d; the next morning all the men were landed at the east end of the island. They were marched toward the fort built about half way between the landing and town. Upon their approaching it, the garrison fired upon them, then spiked up the cannon, and retired to the fort within the town. The Americans took possession of that which had been abandoned, (March 3) and stayed there the whole night to refresh themselves. The next morning they marched forward to the town, and entered it without meeting any interruption. The officer went to the governor, and demanded the keys of the fort which were immediately given. Upon taking possession of it, he found 40 cannon mounted and all well loaded, beside a great quantity of shot and shells, with 15 brass mortars, but missed of the grand article, 150 casks of powder, which the governor carefully sent off the night before. They remained on the island, till they had gotten all the stores on board the fleet, and then the whole took their departure on the 17th. They brought away with them governor Monford Brown, the lieut. governor, and a counsellor.

[April 4.] The fleet fell in with a British schooner, on the east end of Long-Island, and took her. The next day they took a bomb brig of eight guns and two howitzers, ten swivels and forty-eight men, well found with all sorts of stores, arms, powder, &c. On the 6th, about one in the morning, they fell in with his majesty's ship the Glasgow (of twenty nine pounders and 150 men) and her tender. At half past two, the Cabot brigantine, capt. Hopkins, jun. came up with the Glasgow, and upon finding who she was, immediately fired her broadside; when the Glasgow made her a return of two-fold, and with the weight of her metal damaged her so much in her hull and rigging, as obliged her to retire for a while to refit. On her retiring, the Alfred of twenty nine pounders on the lower, and ten six pounders on the upper deck, commanded by the commodore, capt. Hopkins, sen. came up and engaged the Glasgow for three glasses as hot as possible on both sides. While thus engaged, the Columbus, capt. Whipple, of eighteen nine pounders on the lower, and ten six pounders on the upper deck, ran under the Glasgow's stern, raked her as she passed, and then luft on her lee beam,

while the Anandona brig of sixteen six pounders, took her station on the larboard quarter of the Glasgow; the Providence sloop of twelve six pounders altered her station occasionally. By day light the station of the American vessels was changed, as the two ships had dropt on each quarter of the Glasgow, while one of the brigs kept a stern, giving a continual fire. Captain Tyringham Howe, of the Glasgow, perceiving the force of the American fleet, seemingly increased by a large ship and a snow, which kept to windward as soon as the action began, and discerning none of captain Wallace's fleet to afford him the prospect of support, very prudently made all the sail he could crowd, and stood in for Newport. The bravery of captain Howe's behaviour is to be commended. That he should have escaped from a force, so much superior when united, does not give satisfaction to the Americans, and is imputed to some failure in conduct or courage on the side of their commanders. Commodore Hopkins, in his account of the action, has written, "We received considerable damage in our ship, but the greatest was in having our wheel-rope and blocks shot away, which gave the Glasgow time to make sail; and I did not think proper to follow, as it would have brought on an action with the whole of their fleet, and I had upward of thirty of our best seamen on board the prizes: I therefore thought it most prudent to give over the chace, and secure our prizes; and having taken the Glasgow's tender, arrived the seventh with all the fleet"—at New-London. [April 16.] The congress have given orders, "that the cannon and such other stores as are not necessary for the fleet, be landed and left at New-London; and that such of the cannon and wheels as governor Trumbull shall direct, may be employed for the defence of that harbor.

Commodore Hopkins is thought not to have followed his instructions and to have displeased by departing from them.—The Alfred had six men killed and as many wounded. The Cabot had four men killed and seven wounded, the captain among the latter. The Columbus had one man who lost his arm. The Glasgow had one man killed, and three wounded by the musketry from the Americans. The main damage on each side lay in the hulls and rigging.

Many of your papers, it is observed, are very liberal in bestowing upon the colonists the appellation of rebels, traitors, cowards, &c. while those printed on this side the Atlantic are calling the parties employed against the Americans by sea and land, pirates, banditti, ministerial butchers, butchering assassins, cut-throats, thieves, &c. These abusive names take

with the unthinking multitude, whether in high or low life, and set a keener edge upon the spirit of party; but are productive of much cruelty, and tend to beget a rooted antipathy. You will not object to any expence, that may attend the conveyance of this letter by way of France, no other safe one offering at present. My correspondent there will cheerfully undertake the care of any you may want to forward to America.

LETTER II.

London, May 25. 1776.

FRIEND G.

The choice of George Washington, esq. by congress, to be commander in chief of the American army, is adjudged highly prudent by the first military characters that have served in America, and who conjecture from his acceptance, that the reduction of the colonies by an armed force will be more difficult than is generally expected. The ministers of state however are bent upon making the attempt. They have not profited by the Lexington skirmishes, nor the Breed's Hill battle. It would be happier for the nation, would they copy the conduct of the Spanish court, toward the inhabitants of Biscay, near upon a hundred and fifty years back, in 1632, the court laid a duty upon salt, contrary to the privileges of the people. Upon this the inhabitants of Bilboa rose, and massacred all the officers appointed to collect it, and all the officers of the grand admiral. Three thousand troops were sent to punish them for rebellion; these they fought, and totally defeated, driving most of them into the sea, which discouraged the court from pursuing their plan of taxation, and induced them to leave those, whom they had considered in a state of rebellion, to the full enjoyment of their ancient privileges^[7]. It is thought that a treaty with the court of Petersburg for 20,000 Russians, was at one time the last year in considerable forwardness; but that the extreme distance of the service, the difficulty of recal, the little probability of the return of many, and the critical state of public affairs through Europe, rendered it abortive, after the most sanguine hopes of success.

In all the European countries, where public affairs are a subject of writing or conversation, the general voice is rather favorable to the Americans. In this particularly, the lower class of people are adverse to the war. They have boldly and without restraint condemned the conduct of their rulers in terms

of the utmost acrimony. But this has not been regarded, other than as it has obstructed the recruiting service, which never proceeded so heavily before. The reluctance of individuals has been striking and peculiar; they have not only refused the usual proffers of encouragement, but reprobated, with indignation, the cause in which they were solicited to engage, and exerted themselves to hinder others engaging. Neither protestants, nor catholics in any number, have been prevailed upon either in England or Ireland, to enlist for the American service, though the bounties have been raised, and the usual standard lowered, to facilitate the levies. The recruiting officers have declared, they never before met with so many mortifications in this branch of military business. But among the higher orders of men, a strange insensibility with respect to public affairs seemingly prevailed. The accounts of the late military actions, as well as political proceedings of no less importance, were received nearly with as much indifference, as if they wholly concerned other nations with whom we were scarce connected. You must except from these observations the people of North-Britain, who, almost to a man, so far as they can be described under any particular denomination, not only applauded, but proffered life and fortune in support of the present measures. The same approbation was also given and assurances made, though with less earnestness and unanimity, by a number of towns in England.

The loss of the American commerce was not generally felt. The prodigious remittances of corn during the British scarcity, and the larger than usual sums which the colonists were enabled to pay from the advanced prices of various articles, these together occasioned an extraordinary influx of money; while an unusual demand for goods and manufactures of various sorts, from different parts of Europe, produced a quick circulation of trade, kept up the spirit of the mercantile classes, and prevented their complaining for want of the American market. Great numbers at the same time were rendered perfectly unconcerned at what had happened in America, or were even rejoiced, because of the benefits they were receiving from the contest. The war being carried on at such a distance, gave employment and emolument to an amazing number of people; and caused that bustle of business and plenty of cash, which checked all observation of deficiencies in other branches of traffic. Add, that a tribe of contractors, dealers, and gamesters in stocks and money transactions, were themselves animated, and encouraged others to join in justifying and supporting governmental

measures. Hence, that apathy which has been noted; and which continued till toward the meeting of parliament.

The ministry gave into great expences, to supply the army at Boston with fresh provisions and other articles. It is said that five thousand oxen, and fourteen thousand of the largest and fattest sheep, beside a vast number of hogs, were purchased and sent out alive. Vegetables of all kinds were bought up in incredible quantities. Ten thousand butts of strong beer were supplied by two brewers. The seemingly trifling necessities of vegetables, casks and vinegar, amount in two distinct articles, detached from the general comprehension of other provisions, to near twenty-two thousand pounds: and the hay; oats and beans, for the single regiment of light cavalry there, amount to nearly as much. To whatever it was owing, the transports were not ready to sail, till the year was far spent. By this mean they were detained on the coasts by contrary winds, or tossed about by tempests, until the greater part of their live cargoes of hogs, and particularly of sheep, perished, so that the channel was every where strewed with their floating carcasses. A large part of the vegetables must also have been destroyed by excessive fermentation.

The retaliation practised by congress in cutting off the British fisheries from all colonial provisions and supplies, threw the whole business upon the banks and coasts of Newfoundland into the greatest confusion, and brought distress upon all who were employed by sea or land in that quarter. Instead of prosecuting the service they went upon, many of the ships were constrained to make the best of their way to any place where provisions could be procured. It was computed, that to the value of full half a million sterling was left in the bowles of the deep, and forever lost to mankind, by the first operation of the fishery bill.

The storm which happened last September the 11th, during the fishing season, and of which you will have received some general accounts, may probably be reckoned by the Americans, as it is here by the more serious or those who favour them, a providential retaliation of the supreme Ruler on such as had deprived them, by a parliamentary act, of that sustenance, which seemed to be given them as their peculiar property. Lest you should not have had the particulars, let me mention, that a most dreadful tempest, of a particular kind, discharged itself on the coasts of Newfoundland. The sea rose near upon thirty feet almost instantly. Above seven hundred boats,

with all their people, perished, and eleven ships with most of their crews. At Havre-de-Grace, no fewer than three hundred boats were lost. The devastation was hardly less on the land; the waters broke in beyond their usual bounds, and occasioned vast destruction.—The shores presented a shocking spectacle.

As the time approached for the meeting of a parliament, addresses were poured in from different quarters, condemning the conduct of the Americans; approving of all the acts of government; and in general recommending a perseverance in the same until the colonies shall be reduced to a thorough obedience.—Manchester distinguished itself by taking the lead. These addresses necessarily implied an approbation of the measure that was then in execution, viz. the sending of five battalions of Hanoverian troops, to replace the like number of British, in the garrisons of Gibraltar and Minorca thereby to increase the force in America with the addition of the latter. The electoral regiments sailed for the places of destination the first of November.

Petitions of a contrary tendency to the addresses were presented from several places. Great bodies of American, African and West-India merchants, with a majority of the inhabitants of the cities of London and Bristol, still struggled to have matters restored to their ancient state, but to no purpose. At a numerous meeting of the freeholders of Middlesex, [Sep. 25.] after agreeing to instruct their members in behalf of public liberty, it was moved and carried, “that a letter should be addressed from the freeholders of Middlesex to those of Great-Britain.” The tenor of it is in favour of a reconciliation with America, and against the prosecution of the ministerial war. Four days after, (Sept. 29.) the lord mayor, Mr. Wilkes, acquainted the livery with his having received a letter from the continental congress, which was read; when it was moved and passed in the affirmative, “that a letter addressed from the livery of London to the electors of Great-Britain should be read;” which was done, and afterward published. Three days before the meeting of parliament, an event took place, which for a while engaged the public attention. Rumours of combinations in favour of the Americans, had been frequent. It was said, that they were privately abetted by the advice and correspondence, and assisted by the purses of personages of high rank and importance. These reports spread much alarm through the nation, and, exasperated those who considered the Americans as rebels. Hints and suspicions were given and taken; and at length a seeming

foundation for them appeared. (Oct. 23.) Mr. Sayre, an American born, and a banker in London, was secured; and being examined before the secretary of state, lord Rochford, and confronted by his accuser, was committed to the tower for high treason, on the ridiculous charge, of a design of seizing his majesty at noon day, in his passage to the house of peers; of conveying him a prisoner to the tower, and afterwards out of the kingdom; and of overturning the whole form of government, by bribing a few sergeants of the guards, who were also to bribe their men. After a close and severe confinement of five days, an habeas corpus was granted, and he was brought before the lord chief justice of the king's bench, who admitted him to bail, on his own security, in the trifling sum of five hundred pounds, and that of two securities in as much, for his appearance to answer the charge. No prosecution was attempted, and at the session in December it was moved to have his recognisance discharged, which was granted accordingly. The secretary will be sued for illegal imprisonment, though it is thought his conduct is justifiable in point of law.—(Oct. 26.) His majesty opened the session of parliament with a speech, which proposed sanguinary measures, and charged the American leaders with having nothing in view, but the establishment of an independent empire. It says, “I have received the most friendly offers of foreign assistance; and if I shall make any treaties in consequence thereof, they shall be laid before you.—And I have, in testimony of my affection for my people, sent to the garrisons of Gibraltar and Port Mahon, a part of my electoral troops; that a larger number of the established forces of this kingdom, may be applied to the maintenance of its authority. When the deluded multitude, against whom this force will be directed, shall become sensible of their error, I shall be ready to receive the misled with tenderness and mercy. I shall give authority to certain persons to grant general or particular pardons and indemnities, in such manner, and to such persons, as they shall think fit, and to receive the submission of any province which shall be disposed to return to its allegiance. It may also be proper to authorise the persons so commissioned to restore such province, so returning to its allegiance, to the free exercise of its trade and commerce, and to the same protection and security as if such province had never revolted.” When an address to his majesty in answer to the speech, had been moved and seconded in the house of commons, lord John Cavendish moved for an amendment; which occasioned a long debate, that was carried on with the utmost eagerness and unceasing energy on both sides. The

employment of foreign troops to reduce America, was an object animadverted upon by opposition with peculiar violence and indignation.

General Conway though in place, opposed administration; and condemned, in the most decisive terms, the American war, declaring it to be cruel, unnecessary and unnatural—calling it in plain terms, a butchery of his fellow subjects. He reprobated every idea of conquering America, upon all the grounds of justice, expediency and practicability. He declared in the most unreserved terms against the right of taxation, and wished to see the declaratory law repealed (though it had passed under his own auspices when in administration) rather than it should be employed to colour designs, the most opposite to the intentions, publicly declared, of those who supported it in parliament, and particularly opposite to the fullest declaration of his own at the time of his moving it. The ministry made as good a defence as their cause would admit; and pleaded, “We are now in a situation which doth not afford a possibility of receding without shame, ruin and disgrace.” Lord North acknowledged, that he had been deceived; that he did not imagine that all America would have armed in the cause. Administration, he said, proceeded upon the information they had received; if other gentlemen were in possession of better, why did they not communicate it? Administration had opposite information, but they adhered to that which came from persons whose interest made them parties with the inclinations of ministry. That which they neglected, as proceeded from mistake or a wrong bias, they now find to have been the truest.

The space of a whole night was consumed in the debates upon the royal speech; it was near five in the morning when the motion made by the opposition was rejected by 278, against 108; after which the address was carried without a division.

In the house of lords, the debate on the address was also long and warm. The duke of Grafton suddenly and unexpectedly quitted administration. He went into a decisive condemnation of all the acts of government for some time past, with respect to America, as well as of the measures held out by the speech. He declared that he had been deceived and misled upon that subject; and that, by the withholding of information and the misrepresentation of facts, he had been induced to lend his countenance to measures which he never approved; and that he was blindly led to give a support to the one of coercing America, from a firm persuasion held out,

that matters would never come to an extremity of that nature, and that an appearance of coercion was all that was requisite to establish a reconciliation. He asserted that nothing less than a total repeal of all the American laws which had been passed since 1763, could now restore peace and happiness. The lords in administration did not deny the imperfectness of their information in some matters, but pleaded the impracticability of obtaining such knowledge as might have prevented several disappointments. They were obliged to depend upon the sagacity and judgment of those whom they trusted. They had taken all possible pains to proceed upon sure grounds. It would be unjust to make them answerable for failures which were occasioned by events totally unexpected by the shrewdest persons upon the spot; to such alone must be attributed the general want of success in the plans pursued in the course of the present year. There were two remarkable instances of this kind; the one was the total alteration of circumstances in the province of *New-York*, the other was the implicit acquiescence of the southern colonies in the views and arrangements of the northern. These were events that accelerated with irresistible rapidity the revolution of affairs through the continent, and equally surprised the ministry, who from their intelligence, could be no wise apprehensive of such an unhappy turn. The defection of *New-York* they imputed to its being compelled into measures by the Connecticut insurgents, which the people there would never have otherwise adopted. They pleaded, "We must either reduce the colonies to submission, or for ever relinquish all dominion over them, and all advantage from North-America." The motion for the address was at length carried by 76 votes against 33. But a protest against it was drawn up, and signed by nineteen peers. In that they condemned the war commenced against America with the utmost freedom and asperity; and also censured with equal severity, the employing of foreign troops and various other parts of the ministerial conduct.

As none of the measures adopted by administration gave more umbrage than the employment of the Hanoverian troops, opposition determined to bring it before parliament in the most solemn and serious manner. A motion was accordingly made in the house of lords, declaring that to employ foreign troops without the previous consent of parliament, was dangerous and unconstitutional, as being clearly against law. In the debate which followed, various arguments were used for and against the legality of

introducing foreign forces into the kingdom or its dependencies without consent of parliament. As an act of indemnity would have been a recognizance of its illegality, it was studiously warded off, as well as the motion itself which was defeated by the previous question, carried by a majority of 75 to 32. In the house of commons, the debates on this subject were no less elaborate, and consisted of much the same reasonings. The motion was similar to that in the house of lords, and was lost in like manner, 81 for, and 203 against it. Thus was a question, of which the magnitude is equal to that of any other fundamental point in the constitution, put off to future decision. While it was in agitation, an incomparable majority of the public agreed in the opinion adopted by the opposition. However they might differ concerning measures to be pursued respecting America, they cordially united with them in condemning the admission of foreign troops into the kingdom or its dependencies, without the express assent of parliament.

That the designs of the Americans might be completely frustrated, it was proposed in a committee of supply, that the naval establishment of sailors and marines should be augmented to 28,000 men, and that the number of ships of war on the American station should amount to eighty. The land forces were to consist of 25,000 of the selected troops in the service. These formidable preparations called up the attention of several principal members in the opposition. In order, if possible, to render the operations of war unnecessary, it was proposed to facilitate the means of reconciliation. [Nov. 7.] To this purpose, Mr. T. Luttrell moved for an address to his majesty, “humbly requesting, that he will authorize the commissioners who may be empowered to act in America, to receive proposals for conciliation from any general convention or congress, or other collective body that shall be found most perfectly to convey the sentiments of one or more of the several continental colonies, suspending all enquiry into the legal or illegal forms under which such colony or colonies may be disposed to treat, as the most effectual means to prevent the further effusion of blood, and to reconcile the honor and permanent interest of Great-Britain with the requisitions of his majesty’s American subjects.” The motion was seconded, but when the question was put, it passed in the negative without a division. Lord Barrington, in stating the army estimates, observed that the number of effective men in the army at Boston by the last returns, was 7415; but that the forces in America were augmented to 34 battalions, amounting in the

whole to upward of 25,000 men. This augmentation being considerable, he thought it necessary to speak a few words on the subject. He said, he understood that the idea of taxation was entirely given up, and that being the case, it was absolutely necessary to secure the constitutional dependence of that country. The general plan of administration, he believed to be, first to arm, and send out commissioners; and then if the Americans should continue to resist, to employ against them the whole power sent out, in forcing them to obedience. His hint about the idea of taxation being entirely given up, alarmed many gentlemen who had supported government in their coercive measures, with a view, and in a firm persuasion that the revenue to be drawn from America, would, in a proportionable degree, lessen their own burdens.

Neither the secretary of state, who received the congressional petition brought by governor Penn, nor any other minister or person in authority, had since his arrival proposed a single question to him, or desired the smallest information from him. This circumstance gave countenance to the charge, that a system had been chalked out for ministers, which they were obliged blindly to pursue and to act in, merely as machines, without being at liberty to form an opinion as to justice, eligibility or consequence. [Nov. 10.] The duke of Richmond procured however, an examination of governor *Penn* before the house of lords. It appeared from his examination—that congress was in the highest veneration imaginable by all ranks and orders of men—that he believed implicit obedience was paid to their resolutions through all the provinces—that in Pennsylvania 20,000 effective men had voluntarily enrolled themselves to enter into actual service if necessity required; and that among them were persons of the most respectable character in the province—that he presumed the major part were in flourishing situations—that beside these 20,000, there were 4000 minute-men, whose duty was pointed out by their description. They were to be ready for service at a minutes warning—that the Pennsylvanians perfectly understood the art of making gun-powder—that they had made that and salt-petre—that the art of casting cannon had been carried to great perfection—that small arms had been made to as great a degree of perfection as could be imagined—that the Americans were equally expert with the Europeans at ship-building—that he was sure the language of congress expressed the sense of the people of America in general, as far as it applied to Pennsylvania; and for the other provinces he affirmed the

same, though from information only—that the petition which he had presented to the king, had been considered as an olive branch, and that he had been complimented by his friends as the messenger of peace—that he imagined the Americans, who placed much reliance on the petition, would be driven to desperation by its nonsuccess—that he was apprehensive that sooner than yield to what were supposed to be the unjust claims of Great-Britain, the Americans would take the resolution of calling in the aid of foreign assistance—and that, in his opinion, the neglect with which the last petition was treated, would induce the Americans to resign all hopes of pacific negotiations. When he was afterward cross-examined he answered to some questions put to him—that except in the case of taxation, he apprehended the Americans would have no objection to acknowledge the sovereignty of Great-Britain,—that he knew nothing of the proceedings of the congress, they were generally transacted under the seal of secrecy—and that in case a formidable force should be sent over to America in support of government, he did not imagine there were many who would openly profess submission to the authority of parliament. When governor Penn had withdrawn, the duke of Richmond, after speaking a few words, moved, “That the matter of the American petition affords ground for conciliation of the unhappy difference subsisting between the mother country and the colonies, and that it is highly necessary that proper steps be immediately taken for attaining so desirable an object.” After a long and violent debate, the motion in favor of the petition was rejected by a division of 86 against 33, including proxies.

The house of commons was filled with no less altercation in consequence of the demands for the supplies on account of the American war. The land-tax was to be raised to four shillings in the pound. This augmentation occasioned the country gentlemen to turn their attention to an object particularly interesting to themselves. They had supported coercive measures, in expectation that a revenue would arise from the colonies, to lessen the weight of the burdens with which this country is loaded. Actuated by such hope, they were willing to advance money, while they had a prospect of being relieved from exactions in future, by contributions to be drawn from America. It was therefore with no small surprize and concern that they observed, by the language of ministry, that the idea of taxation was in a manner abandoned as inexpedient or impracticable. They declared, that if that essential object was relinquished, they also should recede from their

intention of granting money for the prosecuting of a contest, from which no substantial benefits were to be derived; and which was attended with an expence, that nothing but the well founded expectation of large pecuniary future emoluments could encourage them to support. These discontents of the landed gentlemen were a serious alarm to ministry. The only method of pacifying them was a solem assurance that the intention of obtaining a revenue from America had never been dropped. Whatever language might have been held on this subject, no more was meant, than that in times of so much trouble and confusion, it was not advisable to mix that with other causes of dissention and clamor in the colonies; but, though abandoned for the present, the idea fully subsisted in prospect. This explanatory answer having quieted the country gentlemen, the land tax was fixed at four shillings in the pound, by a majority of four to one.

An address, petition and memorial, has been transmitted from the representatives of *Nova-Scotia* to the king and parliament, in consequence of the minister's conciliatory proposition during the last session. It proposes the raising of a revenue in the colony, by paying a certain fixed sum in the hundred on the importation of foreign goods. By which regulation the revenue will always bear a due proportion to the wealth and consumption of the colony. The rate of this duty is to be ascertained by parliament, and to remain unalterably fixed; the only future regulation to be allowed is, for making the duty correspond with the comparative value of money at the time the rates are settled. But it prays "that when the exigencies of the state may require any further supplies from this province, that then such requisitions may be made in the usual manner formerly practised;" by which the petitioners evidently mean to secure themselves the right of granting their own money in all such exigencies. It also contains a list of grievances of which they entreat the redress, while they intimate the necessity of such redress to insure a permanent connection, and to retain the affections of the people.

As the petition proposed the raising of a revenue under the direction of parliament, [Nov. 15.] administration received it; and on the day appointed the house of commons went into a committee upon it; when upon the motion of lord North it was resolved, "That the proposition in the petition is fit to be accepted, and that the amount of the duty should be eight pounds *per centum*, upon all such commodities—that on the formal settlement of this matter, all other taxes and duties should cease, such only excepted as

regulated commerce; the produce of which was to be carried to the account of the province—and that a direct importation into Nova-Scotia, of all wines, oranges, lemons, currants and raisins, from the place of their growth and produce, should be admitted. A fortnight after, the resolutions were reported, with a view to frame a bill agreeable to the prayer of the petitioners. But a multiplicity of greater objects engaging the time and attention of the ministers, and further consideration, occasioned a total relinquishment of this business.

[Nov. 16.] The rapidity with which ministry carried all their measures, did not prevent Mr. Burke's moving for a conciliatory bill. The motion was prefaced by a petition from the principal clothing towns in the county of Wilts; and that was intended to counteract another, which had been procured for a contrary purpose, and to prevent (in the petitioners words) the dreadful effects which might arise from such misrepresentation being conveyed to parliament. The debate that followed was not terminated till four in the morning, when the previous question being put, the motion was negatived by a majority of 210 to 105.

Some days after, the bill for prohibiting all intercourse with the Thirteen United Colonies was brought into parliament. You will have received it long before you can get this letter; and must have observed, that commissioners, whom it enables the crown to appoint, have only the power of simply granting pardons, but are not authorized to enquire into grievances, much less to offer the redress of them. This bill roused immediately the utmost fury of opposition; but the ministry were prepared to meet it without being moved from the ground they had taken. In the course of the various arguments and methods of reasoning employed against the bill, no few sarcasms were introduced. Among others, it was observed by one of its staunchest opposers, that the guardian genius of America had that day presided with full influence in the midst of the British councils. He had inspired the measures that had been resolved upon by those who directed the affairs of the country. They were evidently calculated to answer all the purposes which the most violent Americans, and their most zealous adherents could propose, by inducing the people in the colonies to unite in the most inflexible determination to cast off all dependence on this government, and to establish a free and independent state of their own. He therefore moved, that the title of the bill should be altered, and worded in such a manner as should express its real intent and meaning; in which case,

he was of opinion, it should be stiled a bill for carrying more effectually into execution the resolves of congress. After a long and vehement altercation, the motion for the bill was carried, (Dec. 11.) by 192 votes against 64.

In the house of lords, the opposition to the bill was no less keen and severe. It was reprobated as neither equitable, expedient or politic. This bill (it is said) completes the measures of that severity which refuses to listen to representations of a people, who persist in spite of ill treatment, to call themselves the subjects of Great-Britain; and who implore its clemency to suspend the sword lifted to strike them, till one more hearing has been granted them.

In the course of this famous debate, it was observed by a great law lord, that the question of original right or wrong, was not so much to be attended to, as the indispensable necessity of self-defence. We are now engaged in a war, and must exert ourselves to prosecute it with success. The critical situation of our circumstances compels us to fight. The laconic speech, which a Scotch general in the army of Gustavus Adolphus made to his soldiers, is precisely applicable to our situation. Pointing to the enemy he said, "See you those men, kill them, my lads, or they will kill you." After a contest which lasted till midnight, the motion for the commitment of the bill was carried by a division of 78 to 19.

It was followed by a protest of unusual length, and great energy, wherein it underwent a severe scrutiny. A minute investigation was made of every obnoxious part, and no censures were spared of which it was thought deserving. The protesting peers were Richmond, Ponsondy, Fitzwilliam, Abergavenny, Rockingham, Chedworth, Abingdon and Manchester. We dissent, say they, in one place, "Because we reject with indignation that clause of this bill, which by a refinement in tyranny, and in a sentence worse than death, obliges the unhappy men, who shall be made captives in this predatory war, to bear arms against their families, kindred, friends and country; and after being plundered themselves, to become accomplices in plundering their brethren." His majesty went to the house of peers, (Dec. 21.) and gave his assent to the above bill; and to others at the same time.

In the course of the debates upon the American business, the great importance of the colonies to the mother country was urged, by the ministry, as a reason for exerting the force of the nation in order to reduce

them to obedience, though upon other occasions they had been spoken of as little consequence. That this reduction might be the sooner and more effectually secured, the states-general were solicited, by a letter of his majesty's own hand-writing, to dispose of their Scotch brigade, to serve against the Americans the ensuing campaign. The request, however, was not granted. The opinion gave by *John Derk van der Chapelle*, in the assembly of the states of Overysse, was pointedly against it. When entered upon his last observation, he says, "Though not as principals, yet as auxiliaries, our troops would be employed toward suppressing (that what some please to call) a rebellion in the American colonies; for which purpose I would rather see Janissaries hired, than troops of a free state."

"In what an odious light must this unnatural civil war appear to all Europe; a war in which even savages (if credit can be given to news-paper information) refuse to engage; more odious still would it appear for a people to take a part therein who were themselves once slaves, bore that hateful name, but at last had spirit to fight themselves free. But above all, it must appear superlatively detestable to me, who think the Americans worthy of every man's esteem, and look on them as a brave people, defending in a becoming, manly and religious manner, those rights, which as men, they derive from God, not from the legislature of Great-Britain."

"Their mode of proceeding will, I hope, serve as an example to every nation deprived by any means of its privileges; yet fortunate enough in being able to make suitable efforts toward retaining or regaining them."

But though his majesty's request to their high mightinesses was not complied with, his message to the parliament of Ireland had met with success, and they had voted on the 15th of November, "that 4000 troops out of the 12,000 voted for the defence of that kingdom, be spared for his majesty's service abroad (the message had mentioned America) the same to be no charge to Ireland after quitting the kingdom." But they declined voting, "that 4000 protestant troops be received to replace the like number sent abroad; these likewise to be no charge to Ireland;" which proposition was also contained in the message.

[Dec. 29.] Sir Peter Parker and earl Cornwallis, with the *Acteon* and *Thunder bomb*, sailed from Portsmouth for Corke, to convoy the troops and transports there to America. The *Acteon* put into Falmouth, and took on board col. Ethan Allen and his fellow prisoners, who had been confined in

Pendennis castle, Cornwall; from whence they were removed by direction of government, upon a discovery that there was an intention of bringing them before the proper magistrate by the habeas corpus act, in order to ascertain whether they were legally chargable with any crime that could warrant their confinement. No assistance was given to Allen in England; but when the ship arrived at Corke, a subscription for him was begun in Ireland, and an ample supply of necessaries given him, of which he and his friends were in great need. About the 20th of Jan. 1776, the fleet and transports were ready to sail; but the lord lieutenant of Ireland, doubting his power of permitting the troops to go, a clause, giving particular leave on this occasion, was inserted in one of the Irish bills. When the bill came to England, the clause was struck out upon the idea, "that the king had a right by his prerogative to send the troops." The lord lieutenant still retaining his doubts, the clause was inserted in another bill, which was hurried through with all possible dispatch. But so much time was lost by this affair, that it was the 13th of February before the fleet could sail. It consisted of forty-three sail, and about 2500 troops. On the 18th they met with a terrible storm that dispersed them. Some of their transports put back to Corke, others got into Plymouth, Portsmouth and the Western ports. The carcass bomb got into Portsmouth: When she parted with Sir Peter he had only twenty-five sail with him. It is generally thought, he is destined for the middle or southern colonies.

A single rifleman taken prisoner and brought over to England being carried before the mayor to be examined was dismissed; as no crime was charged upon him, of which that magistrate could take cognizance.

His majesty having entered into treaty with the landgrave of *Hesse-Cassel*, the duke of *Brunswick* and other *German* princes, for 17000 men, to be employed in America, Lord North moved, [Feb. 29.] "that these treaties be referred to the committee of supply." The troops were represented as equal to any in Europe for the regularity of their discipline: and one reason assigned for hiring them was, that men could be more readily had that way than by recruiting at home, and upon the whole on cheaper terms. But the measure of employing foreign auxiliaries was reprobated in all its parts by opposition: however, after debating till past two in the morning, his lordship's motion was agreed to by a majority of 242 to 88. When the treaties came before the house of lords, they met with equal opposition. The duke of Richmond moved for an address to the king, requesting him to

countermand the march of the German auxiliaries, and to give immediate orders for a suspension of hostilities in America, in order to lay a foundation for a treaty, to compose the differences between Great-Britain and her colonies. He took an historical view of the treaties between the British and Hessian court for many years past: showing that this had gradually risen in its demands, in every successive treaty. The present was said to have exceeded all the former in the exorbitancy of its conditions. He asserted, from the calculations he had made, that the body of 17,300 foreigners taken into British pay, would, including all contingencies, occasion an expence of no less than £.1,500,000 within the course of a twelvemonth.—It was said in the debates—the colonies are to be devoted to the horrors of war, and to be treated as a nation from which we have experienced every kind of contumelious usage. Unprovided with a sufficient number of troops for the cruel purposes designed, or unable to prevail upon the natives of this country to lend their hands to such a sanguinary business, ministers have applied to those foreign princes who trade in human blood, and hired armies of mercenaries for the work of destruction. An army of foreigners is now to be introduced into the British dominions, not to protect them from invasion, not to deliver them from the ravages of an hostile army, but to assist one half of the inhabitants in massacreing the other. This foreign connection will be productive of the most fatal events. Hitherto this unhappy dispute has been confined to the people of the British empire; the colonies have not shown a disposition for the calling in of any other nation as an umpire. They apparently depend upon themselves for its support and termination; and do not, in all probability, imagine that we can be so imprudent as to associate others to our domestic feuds. But when they see that we have recourse to this odious expedient, they will no longer think themselves bound to stand singly in the contest: they will, after our example, apply to strangers for assistance. They will connect themselves with such, as instead of requiring subsidies, will supply them with men and money—such as will espouse their quarrel, not from mercenary motives, but from hostile considerations to this country—from ancient habits of inveteracy—from a thirst of revenge for the losses and humiliations occasioned by our arms.

The plea of necessity was the constant shield with which the ministry covered all the measures that had been lately adopted. But with regard to the present, they asserted——Treating with foreign princes for the loan of

their troops is far from being detrimental; the terms are not exorbitant, considering how indispensably they were known to be wanted, the extraordinary service they are to go upon, the lands and seas they are to traverse in going forth and coming home, and the great uncertainty of their return. The computation of the expences attending them are over-rated. But had the expence been greater, the emergency is such that we must have complied with any terms demanded. The Americans have thrown themselves out of our protection, and are become strangers; so that we should not scruple to employ against them, both our own forces and those of our allies. Little is to be apprehended from the countenance that foreign powers may give to America; it is so evident that their plainest interest militates against their undertaking the defence of the colonies, that it is not a subject deserving of discussion.

After violent debates, the question was carried in favor of ministry, by 100 votes to 32. But not without a protest, wherein the lords say, “We have reason to apprehend, that when the colonies come to understand that Great-Britain is forming alliances and hiring foreign troops for their destruction, they may think they are well justified by the example, in endeavoring to avail themselves of the like assistance; and that France, Spain, Prussia or other powers of Europe, may think they have as good a right as Hesse, Brunswick and Hanau, to interfere in our domestic quarrels.” When this business was decided, another came on, which occasioned no less ferment. The secretary of war gave notice [March 11.] that the sum of £.845,000 would be necessary to defray the extraordinary expences from the commencement of March the preceding year, to the end of last January. This information excited one of the most violent storms of opposition ever known. “Never, said they, was so vast a demand for contingent expences incurred in so short a time.” From the various calculations made on this occasion, they inferred that no less than one hundred pounds a man had been expended on the garrison of Boston, within less than the term of a year; during which time they had been reduced to great extremities through want of provisions; and had endured a variety of wretchedness. The ministry, though assailed with much vehemence, stood their ground, upon the approbation and authority of parliament. They argued—As to the expenditure of those sums, which are loaded with heavy censures, it ought to be remembered, that the operations they were employed in, were numerous and chargable; and that the various undertakings which had been

resolved upon, were of so novel and difficult a nature, as to require the most resolute exertions and the most liberal support. The Massachusetts had exercised that resistance for which, not imagining it would have been carried to such extremities, they had not made an adequate preparation; but now that nothing less than the most daring and stubborn opposition was expected from the colonists, they should no longer withhold their strength; but should put it forth in such a manner as would shew that Britain was fully able to crush them. A session or two more of firmness and vigor, would bring about an alteration of affairs, and make the colonies repent of the provocations they had given to this country. The motion for the supply was carried by a majority of 180 to 57.

[March 14.] A fresh attempt was made in the house of lords to prevent a continuance of hostilities. The duke of Grafton moved, that an address should be presented to the throne, requesting that, in order to stop the further effusion of blood, and to manifest the sincere desire of king and parliament to restore peace, and redress grievances, a proclamation might be issued, declaring, that if the colonies should present a petition to the commander in chief of his majesty's forces in America, or to the commissioners appointed for such purposes, setting fourth what they considered to be their just rights and real grievances, the king would consent to a suspension of arms, and refer their petition to parliament, where they might be confident it would be duly considered and answered. All the reasonings of those who supported the motion were totally ineffectual: it was rejected by a majority of near three to one. Thus ended a debate, which put a period, for a while, to all attempts for conciliatory measures in either house of parliament. But the lord mayor, alderman, and commons of the city of London, still continued their endeavors, in an humble and decent address, which they presented to his majesty. [March 22.] The answer, though not according to their petition, was no wise irritating; and expressed as much mercy and clemency to the Americans, adjudged to be in a state of rebellion, as could be expected, considering what coercion was going forward. Some of the Brunswick troops sailed from Spithead [April 4.] under convoy of two men of war, and were followed the next day by generals Burgoyne and Philips; Burgoyne had left Boston in December, and returned home after a short passage.

[May 6.] Letters patent, by his majesty's order, passed under the great seal constituting lord Howe and general Howe, to be his majesty's

commissioners for restoring peace to the colonies in North-America, and for granting pardon to such of his majesty's subjects there, now in rebellion, as shall deserve the royall mercy. The same day, commodore Hotham, with all the transports, having the first division of Hessians on board, sailed from St. Helen's for North-America. The troops are to assist in forcing the rebels to ask mercy. Five days after, his lordship followed in the Eagle man of war.

According to the estimates laid before parliament, the army to be employed against the Americans, in different quarters amounts to 55,000 men, besides all the recruits raised in Canada and other parts of the continent, which may amount to 5000. These estimates must however have supposed the regiments full. But after deducting for deficiencies in all conceivable ways, we may allow the whole land force, with which the united colonies will have to combat, to be at least 40,000 privates and officers.

[May 23.] His majesty went to the house of peers; gave his royal assent to such bills as were presented; and then put an end to the session. In his speech he said, "It is with pleasure I inform you, that the assurances which I have received of the dispositions of the several powers in Europe, promise a continuance of the general tranquility."

Many in Britain are more then ever disgusted with coercive measures, from the ill success which has attended their execution. The disasters which have happened, have made a deep impression upon their minds; and they are ready to impute them, rather to the iniquity, than to the imprudence of the schemes in agitation. But administration has been supported by both the press and the pulpit. Several pamphlets, composed with much art and ability, and recommended by many of the beauties of language, have painted in black and hateful colours, the claims and conduct of the Americans; and have, by that mean, not a little inflamed the resentment of the mother country. One of the leading methodist preachers, Mr. W——, has revived the doctrines of passive obedience and non-resistance, nearly as asserted in the last century. He declines practising them toward his superiors in the English church, of which he professes himself a member. The doctors Johnson and Shebbeare, as in duty and gratitude bound for their respective pensions, have published many ingenious things on the side of ministry. But none have distinguished themselves more among the political champions of the day, than Dr. Price. He published in February a most

admirable peace, stiled "Observations on the nature of civil liberty, the principles of government, and the justice and policy of the American war." Such was the avidity with which it was read, that it ran through four editions within a month. His opponents may write against it as much as they will, but they will never be able to confute it. On the 24th of March, at a court of common council, a motion was made and carried, "That the thanks of the court be given to Dr. Price, for his excellent pamphlet of civil liberty; also, that the freedom of the city be presented to him in a gold box." Three days after, at a court of assistants of the drapers company, a motion was made and carried to present the doctor with the freedom of that company. The doctor has conveyed his acknowledgments to the lord mayor, alderman, and common council; and expressed his hope that their approbation would lead the public to fix their views more on such measures as should save a sinking constitution, and preserve us from impending calamities.

You may wish to know the sentiments of the French relative to the American contest. Those of the nobility and gentry, who are tolerably versed in the English language, accustom themselves to the reading of the papers containing the disputes between Britain and the colonies. The generality conceive of the affair as a family quarrel, which the parties will make up after a while. Whatever they may wish, as to its continuance and increase, and however they may covertly contribute towards its support, they will decline, for the present, all public interference, and give the most satisfactory assurances to the court of London, from an apprehension that both sides would otherwise accommodate, unite and fall upon them. Should the late acts which parliament have passed, and the hiring of German auxiliaries, force the congress into a declaration of independence, they will still remain inactive, whatever preparations they may make, until some very favourable occurrences brings them forward. Till then, they will not think of taking the colonies by the hand; lest Britain should, upon its being done, offer every thing short of independence, and thereby unite them afresh to the mother country; which might disgrace France in the eyes of other European powers, if not expose her to worse consequences.

You will easily conceive of my eager expectation of hearing from you shortly. The operations in America will soon be extremely interesting. Let your informations be as early and frequent as possible.

LETTER III.

Roxbury, July 19, 1776.

The affairs of Canada shall employ our first attention. Sir Guy Carleton has treated the prisoners, taken at the attack of Quebec, both officers and privates, with the utmost humanity. In conversation with major Meigs, when returning his sword, Sir Guy said, "You were certainly deceived in our numbers, and did not expect we were so strong." The major answered, "No we knew your strength." Carleton persisted, "You must have been deceived: for you never could have attacked us, had you known that we were double your number." The major rejoined, "We were not deceived; but were persuaded, that many of your men would not fight, and thought that some of them might join us." The discourse was changed, and soon ended.

The blockade of Quebec was continued; but great were the fears of the Americans, as they had no more than 400 men to do duty, while there were upward of three times the number in the city. They were in daily expectation, that the latter would sally out upon them. At length capt. Seaborn, with twenty-seven men from the Massachusetts arrived for their encouragement; (Jan. 25.) and was followed by other small reinforcements, whereby they were enabled to rest one night out of two, which had not been the case for a month. They advanced, and began again to erect works before Quebec: but their ordnance proved inadequate. All the troops that could be spared from the garrison of Montreal were sent down: but it was not till late in February, that the army before the city amounted to 960, officers included; of rank and file fit for duty, the number was only 772. Mr. Beaujeu embodied a party of Canadians, with the design of raising the siege; but was encountered, and easily dispersed (Mar. 25.) by a detachment from the continentals. The misconduct of the American soldiery however, lost them the friendship of the Canadians. The account forwarded by an officer was to the following purport—"When gen. Montgomery first penetrated the country, the Canadians were friendly. His most unfortunate fate and other

accidents have produced such a change, that they can be no more looked upon as friends. Their clergy have been neglected, perhaps ill used, and so are unanimously, though privately against the Americans. The peasantry in general have been mal-treated; in some instances have been dragooned with the point of the bayonet, to furnish wood at a lower rate than the current price. They have had given them, for articles furnished, certificates which are not legible, or are without a signature; so that one half them have, of consequence, been rejected by the quarter-master-general. They have had promises of payment, without being paid; and so been brought to look upon the promises as vague, their labor and property as lost, and congress as bankrupt. With respect to the better sort of people, both French and English, seven-eighths wish to see the throats of the continentals cut. The whole country has been left without any kind of law, other than that of the arbitrary and despotic power of the sword, in the hands of the several commanding officers, too frequently abused in all cases of this nature. The Americans have themselves brought about by mismanagement, what Gen. Carleton himself could never effect. A priest's house has been entered with great violence, and his watch plundered from him. At another house the Americans ran in debt about twenty shillings sterling; and because the owner wanted to be paid, they ran him through the neck with the bayonet. Women and children have been terrified, and forced to furnish horses to private soldiers, without any prospect of pay. While the Canadians have in this way been alienated from, and embittered against the continentals, these have been practising the most scandalous waste of provisions, and by it, absurdly adding to the danger arising from their other conduct." On the receipt of this information, congress resolved [April 13.] "That instructions be sent to the commissioners, to cause justice to be done to the Canadians; and that the commanding officer in Canada be directed to be very attentive to military discipline, and to inflict exemplary punishment on all those who violate the military regulations established by congress." They had before ordered four battalions to Canada, they now added six more; and directed the commissary-general to forward 2000 barrels of pork thither with all possible dispatch.

While the troops lay before Quebec, they caught the smallpox from a girl who had been a nurse in the city hospital, and came out among them. The distemper spread, and the soldiers inoculated themselves for their own safety, regardless of all orders to the contrary. The reinforcements, which

were daily arriving, practised the same method; so that though, by the first of May, the army consisted of more than 3000 men, there were not 900 fit for duty at the several posts; and the whole were greatly scattered for want of barracks. What added to the distress, medicines and every thing necessary for the sick, were wanted. This was the situation of the troops when gen. *Thomas* arrived to take the command; but still something was attempted. The river about *Quebec* being sufficiently cleared from ice [May 3.] the Americans took the opportunity of the flood for sending up a fire-ship, about ten o'clock at night, in order to fire the shipping; and drew up ready to attack the walls, if the fire should take place. They were provided with ladders, and their scheme was well laid. Had it succeeded, the garrison must have been thrown into great confusion: and had that opportunity for making an assault been embraced, the town must have been in eminent danger of being taken. The ship coming from below was at first supposed to be a friend, arrived from sea to the relief of the besieged. Being night, it was not till she was very near the shipping, that she was discovered to be an enemy, when a heavy fire at her commenced; the people on board, finding that they were no longer concealed, lighted the train, and in a moment she was in a blaze; her sails took fire, and checked her way; and the tide beginning to ebb, she was carried down the river. The men made their escape in boats.

General *Thomas*, perceiving that nothing effectual could be done by the army in its present condition, learning that they had only three days provision, and apprehensive of the danger that would take place upon the arrival of British reinforcements [May 5.] called a council of war, when it was concluded to make the best retreat in their power. The measures which immediately followed, were sufficient indications to the enemy of what was intended. It so happened, that early in the morning [May 6.] after the retreat was concluded upon, the *Surprise* frigate, from Great-Britain arrived, and was soon followed by the *Iris* of 54 guns, and the *Martin* sloop, with succours. They had, by the zeal and activity of the officers and crews, forced their way through the ice while the passage up the river was deemed almost impracticable. They had on board 1000 marines, and two companies of the 29th regiment, which were landed with all expedition. About noon, gen. *Carleton* having joined them to his own troops, marched out, 800 strong, to attack the Americans, who had began their retreat before; for gen. *Thomas* could not hazard waiting an attack, as he was not able to collect

more than about 300 men, on account of their being so scattered on Point Levi, Isle of Orleans, Beau Port and other villages. The Americans abandoned their baggage, artillery, stores and other incumbrances. The sick got off as they could, creeping away from the hospitals, many with the small-pox full on them. The Canadians proved kind, secreted and took care of them till they were able to march off and join their comrades. Sir Guy Carleton did not take more than about 100 prisoners. The king's troops that had just arrived, were in no condition for a pursuit; but could the whole have followed with vigor, they must have taken or destroyed nearly all the American forces, for they had little ammunition. They retreated forty-five miles before they stopped, having marched almost the whole night. After halting a few days, they proceeded to Sorel, in a condition not to be expressed by words; but had the satisfaction of being joined there by four regiments, that were waiting for them. Here they remained, and were reinforced by the arrival of other battalions. During this period gen. Thomas sickened by the small-pox, and died. Having ordered that the troops should not enoculate, he would not have a recourse to that precaution for his own security. The Americans have lost in him one of their best generals. He was amiable in public and private life. Contented with domestic happiness, he was not ambitious of an exalted station; but was ready to serve his country in the most hazardous situation. General Thompson commanded after Thomas sickened, and when the latter died, the command devolved on general Sullivan, who had repaired to Canada early in May.

The Americans had for some time posted at the Cedars, a small fort forty-three miles above Montreal, a party of 390 men, under the command of col. Beadle. Capt. Foster, with a detachment of the 8th regiment, about 40, Canadians 100, and 500 Indians, but without cannon descended from the lakes, and approached toward the fort.^[8] The colonel, in a cowardly manner abandoned his command to major Butterfield, and repaired to Montreal for a reinforcement. The major having little or no more courage than the other, surrender the fort [May 15.] without making any resistance worth noticing. Meanwhile, major Henry Sherburne was detached with 140 men from Montreal; but col. Beadle, valuing safety more than fidelity or honor, refused to return with the reinforcement. It was the day after the surrender before major Sherburne could proceed from the lake (which he was obliged to cross) with 100 men including himself. The rest were left for guards and other services [May 20.] About five, they were attacked by a body of about

500 Indians and Canadians, who, under cover of a wood fired upon them. The Americans maintained an obstinate engagement for an hour and forty minutes; when the Indians having surrounded them, rushed upon and disarmed them. Many of them were sacrificed to Indian fury, butchered with tomahawks and other instruments of death. They lost in the action twenty-eight killed and wounded. About twenty were afterward killed in cold blood; and seven or eight were carried off by the Indians. The prisoners were immediately stripped almost naked, drove to the fort, and delivered to capt. Foster, whose success in taking the fort was not known before the action. The enemy had twenty-two killed, among them a chief warrior of the Seneca tribe, on account of whose death the prisoners were probably treated with the grosser insult and abuse. Arnold, who had been made a brigadier general the beginning of January, had commanded in Montreal some time, having returned thither upon gen. Wooster's going down to Quebec. He was desirous of remedying the evil that had taken place at the Cedars, and went forward with a party of between 8 and 900 men to the lake. When it was discovered that the general was approaching [May 26.] and making dispositions to attack the enemy, capt. Foster took care to acquaint him, that if he would not agree to a proposed cartel, (which major Sherburne and the other officers had been required to sign and had signed) but proceeded to attack him, every man of the prisoners would be put to instant death by the Indians. Gen. Arnold was extremely averse to entering into any agreement, but was at length induced by the motive of saving the prisoners. A cartel was concluded upon and signed on the 27th, for the exchange of 2 majors, 9 captains, 20 subalterns, and 443 soldiers. It was agreed [May 27.] that four American captain should be sent to Quebec as hostages, and remain there until the prisoners are exchanged.

Let us now direct our attention to Sir Guy Carleton, who had a fresh opportunity of exercising his humanity toward the Americans. That the sick, who were left behind and could not get off when the others fled from before Quebec, might not perish, he issued a proclamation, commanding the proper officers to find out and afford the unhappy persons all necessary relief at the public expence; and to render the benefit complete, and to prevent obstinacy or apprehension from marring its effect, he assured them, that upon recovering they should have free liberty of returning to their respective provinces.

Toward the end of May several regiments arrived; and the British force in Canada, when completed, was estimated at about 13,000 men. The general rendezvous was appointed to be at Three Rivers, half way between Quebec and Montreal, about 90 miles from each. The place takes its name from the vicinity of one of the branches of a large river, whose waters are discharged, through three mouths, into that of St. Lawrence. The British and Brunswick troops were at this time much separated. A considerable body was at Three Rivers under gen. Frazer. Another under gen. Nesbit lay near it on board the transports. A greater than either, with the generals Carleton, Burgoyne, Phillips and Reidesel, was in several divisions by land and water, on its way from Quebec. Gen. Sullivan, from the information he received, concluded upon an expedition against, as he apprehended, the British advance guard at Three Rivers, the execution of which was committed to gen. Thompson. The latter embarked at Sorel, with 1800 men, under colonels Maxwell, St. Clair and Wayne, in fifty boats, and coasting the south side of Lake St. Peter, where the St. Lawrence spreads to a great extent, arrived at Nicolet, from whence they fell down the river by night, and passed to the other side, with an intention of surprising the forces under gen. Frazer. Three Rivers is to be considered rather as a long village than a regular town. The plan was to land nine miles above the town, so seasonably as to march down under cover of the night, and to attack it a little before day-break. [June 8.] By reason of unexpected delays, it was so long ere the troops landed, that in a few minutes the day-light appeared. They had then to make a forced march of nine miles. They hastened, ran down hill and up, and got tired. The general pushed on, having procured a Canadian guide, who was either ignorant or unfaithful; for a little before sun-rise he found his forces were too much out of the way. They returned, but lost the road on the side of the river; were soon however, in view of some of the enemy's boats, between which and the flanking party several balls were exchanged. They then quickened their pace, and continued advancing in sight of the shipping, with drum beating and fife playing, as they knew they were discovered. They soon heard the speaking trumpets sound, "land the troops—land the troops." The general judging there was no possibility of passing the ships without being exposed to all their fire; and yet determining to persist in the expedition, filed off at a right angle from the river. He meant to take a circuitous route, and enter the town on the back side. A bad morass interposed; the troops entered it; they were then

about two miles from the town. A worse march, for about a mile and a half, did not offer in all Alnold's expedition, the men were almost mired. About nine o'clock they came to a cleared spot, formed and got into some order about ten. They advanced, but before the rear had got off the place of formation, the front received a heavy fire from the enemy, which struck them with terror. The fire was instantly repeated; and though the balls flew over the heads of the troops, without doing any material execution, they gave way and crowded back in the utmost confusion, which left them without a leader, so that every one did as he pleased. They turned their faces up the river, and hastened through the swamp as fast as possible. About eleven they began to collect, and after a while learnt from the Canadians, that the enemy had sent a detachment, with several field pieces by land, to cut off their retreat, and a party by water to seize their boats. About four they were told, that the enemy had secured the bridge before them, which it was supposed they must pass. They were also soon convinced, that a large body was close in their rear. Col. Maxwell ordered all who had collected together to halt, called the officers to him, and said, "What shall we do? Shall we fight those in the front or in the rear? or shall we tamely submit? or shall we turn off into the woods, and each man shift for himself?" The last proposal was preferred; but the enemy was so near that the rear of the Americans was exposed to another tremendous fire while going down the hill into the woods, but the balls flew over them without injuring any. The person who was trusted with the care of the boats, had removed them in time to a secure place, so that the loss of the Americans, which must otherwise have been much greater, amounted only to about 200 prisoners. The troops that escaped, began to collect about ten the next day, and by noon were considerably numerous. They got along by degrees, and by sunset the day following arrived opposite Sorel. [June 10.] General Thompson and colonel Irwin, the second in command, with some other officers, were taken. The killed and wounded of the king's troops was trifling. This attempt to surprize the British troops at Three Rivers, which may appear to have been a desperate undertaking, would scarce have been made, had it been known in time, how much they had been reinforced by fresh arrivals; and probably ought to have been abandoned the moment that the surprise was no longer possible.

The king's forces having joined at Three Rivers, proceeded by land and water to Sorel [June 14.] off which the fleet arrived in the evening, a few

hours after the rear of the Americans had left it. A considerable body was landed, and the command of the column given to gen. Burgoyne, with instructions to pursue the continental army up the river, to St. John's, but without hazarding any thing till another column on his right, should be able to co-operate with him. Sir Guy's extraordinary precaution in putting nothing to the hazard, when not absolutely necessary, gave the Americans the opportunity of escaping. Had Burgoyne been instructed to press on with the utmost expedition, great numbers of them must have been made prisoners, and but few would have crossed Lake Champlain.

Major Nathan Fuller, of col. Bond's Massachusetts regiment, was entrusted with the care of the baggage when the Americans retreated up the Sorel. It was put on board several vessels. They had a fine passage for a while, but at length were becalmed so long as to give the advance of the British an opportunity of approaching them apace. The major acquainted gen. Sullivan, who was considerably a-head, of the dangerous situation he should soon be in. The gen. sent a hundred batteaux to bring off the men and baggage, and gave orders for burning the vessels. The major had but just time to accomplish the work, and was in some danger before it was finished. [June 15.] General Arnold, with his troops, left Montreal and crossed from the island of Longueil to the continent, in his way to Chamblee. A great part of the British fleet and army sailed for the same place, and had not the wind failed, would probably have arrived at Longueil the same night and about the same time with gen. Arnold. The general carried away with him from Montreal a quantity of goods, which he ordered col. Hazen to take the charge of; but the colonel disapproving the measure, would have nothing to do with them. When the troops entered the road near Chamblee, they occasioned such an alarm in the place, that the three companies of artillery formed immediately and marched up the hill to meet them, which brought on a discovery of their belonging to gen. Arnold, and being from Montreal. When the army left Chamblee, the men were obliged to draw their loaded batteaux, to the number of 100 or more, some with cannon in them, up the rapids, by bodily strength and up to the middle in water. Here they destroyed the saw-mills, three vessels and three gondolas, together with all the batteaux which they could not bring off. Major Fuller commanded the rear, consisting of five hundred men, and had under his care the batteaux and baggage. The British entered Chamblee at one end while he quitted it at the other. When he was about a mile beyond the town,

all his party except seventy, pushed off to escape danger. Soon after you leave Chamblee, in the way to St. John's, the road enters a wood, which thickens as you advance in it. Though the road is open and good, yet the brush, wood and trees on each side, afford such a cover to parties, that you cannot ascertain their number, nor be sure that there are not ambushes in various places. The major had an active, sensible, bold officer in the second lieutenant, Mr. George,^[9] who remained with him. The lieutenant was ordered, with 27 men, to flank the advancing parties of the enemy. He, by dividing his men, concealing them on each side of the road, employing them in popping with their guns on the enemy, first in one place then in another, and so changing the scene of their attack, as though they were far more numerous, amused the advance of the enemy in such a manner as to save the rear. Major fuller imputes it very much to the conduct of lieutenant George, that the rear, and of course the boats and baggage were saved. The salvation of these was probably the salvation of the army. When the major found himself abandoned, he sent forward a messenger to col. Stark and other officers, who were not far before, acquainting them with his situation, and requesting their assistance. Cols. Stark, Poor, Porter and others, immediately put themselves under the command of the major, who had also sent on an express to St. John's, to inform gen. Sullivan of his danger, and the necessity of a speedy reinforcement. The general hastened away 1500 men under col. Bond, who met the major about half way between the two places, seven miles from Chamblee. The danger being ended by the arrival of the reinforcement, the major left the command to his colonel, and went forward to carry gen. Sullivan the agreeable news of all being safe, which, after the various false distracting reports that had reached him, was received with inconceivable transport. The major lost but two men in the retreat; the loss was occasioned by their getting drunk; but from them the enemy could learn nothing of the major's real condition time enough to take the advantage of it.^[10]

[June 18.] General *Burgoyne* arrived at *St. John's* in the evening. The Americans had taken away every thing and set fire to the forts and barracks. Major John Bigelow staid with about 40 men till they were destroyed, and at dusk pushed off his boats for *Isle aux Noix*, to which the whole army had repaired. Greater confusion than it had been in during the retreat, is seldom heard of; and yet the loss it sustained is too inconsiderable to be given in detail, or in sum total. From the *Isle* the army proceeded to *Crown-Point*

without any danger from a pursuit—every boat that could be found being destroyed, and every thing done to impede the enemy. The Americans had also the command of Lake Champlain, and will continue masters of it until a number of vessels can be procured to give Sir Guy Carleton a superiority, and enable him to traverse it with safety. Other matters will now demand our attention.

[June 15.] The *New-Hampshire* representatives voted unanimously, that their delegates at the continental congress be instructed to join with the other colonies in declaring the Thirteen United Colonies, a free and independent state (not states) &c. provided the regulation of their internal police be under the direction of their own assembly.

It appears by a return of the inhabitants, that the sum total of all the males, females, whites and negroes, amounts to 82,394—The total excess of males is 1131. The males in the continental army are 2488. If of these so many as 1357 survive the service and return, the males and females are equal. In about twenty years the inhabitants will be double the number. “It has been found by calculations, that America has doubled her numbers even by natural generation alone, upon an average, about once in eighteen years.”^[11] The continuance of the war, unless excessively destructive, will make no material difference. “In the French war, which lasted from 1755 to 1763 (during which time the colonies made great exertions, and had in the field a great number of men) it was found that the population had increased nearly as fast as in times of peace^[12].”

One Mugford, who had been a master of some trading vessel, applied to gen. Ward for the command of a continental cruiser which lay unemployed. By his importunity and professions he prevailed and had an order given him. The captain made all possible expedition, got possession of the vessel, procured powder and ball and with twenty men pushed immediately into Boston bay. After he was gone from the general, the latter received such a bad character of him, that he sent off an express to recal the order: but it was too late, Mugford had sailed. He was no sooner in the bay but the ship *Hope* of 270 tons, 4 guns, and 17 men, presented to view. She was last from Cork, and had on board 1500 barrels of powder, beside carbines and bayonets, travelling carriages for heavy cannon, a vast variety of tools, implements and necessaries for the army and artillery. Capt. Mugford in his cruiser of fifty tons and four guns ran up to her, [May 17.] and ordered her

to strike. The Hope, either from the sailors declining to fight, or from other motives, made no resistance. Commodore Banks lay a few miles off with his men of war, and in sight; and his boats might soon have been up with the ship. The captain of the Hope, sensible of this advantage, gave orders for the men to cut the top-sail halliards and ties.—Mugford heard the orders, and knew the consequence of executing them—that the sailing of the ship would be so long prevented, that the men of war's boats would recover her. He therefore opened with vollies of oaths and execrations: and in the most horrid manner threatened the captain and every one on board with immediate death if the orders were executed, upon which the captain was so terrified as to desist. When Mugford had taken possession of his prize, he was joined by two other small cruisers, who assisted in carrying her safe through Pulling-Point-Gut. The inhabitants of Boston, who have been devoutly engaged in keeping the continental fast, had on leaving their respective places of worship in the afternoon, the peculiar pleasure of seeing the most valuable prize, on account of the powder, taken since the commencement of the war, entering the harbour.

Captain Mugford having secured the Hope, and meaning to go out again without loss of time, sailed down and came to an anchor in Pulling-Point-Gut, with the Lady Washington, on Sunday evening. [May 19.] They were attacked, about nine o'clock, by thirteen boats from the men of war at Nantasket.—The boats were beaten off, with great loss on the part of the enemy, in the deaths of the brave lieutenant, who commanded, and several of his men, but Mugford exerting himself heroically, was killed, and was the only person lost on the side of the American cruisers.

The Massachusetts general court for promoting the making of salt-petre, had some time back agreed to take in all that could be made by the first of June at five and three-pence sterling the pound. On the week that closed the period of receiving it, they had purchased in this way 102,635lb. There are such quantities yet coming in, made before the first of June, that the court passed an order to receive for some time to come, at the said price, all that shall appear to be made before that time.

The harbor of Boston had been left in a defenceless state ever since the evacuation of the town, liable to the intrusions of a small naval force, which might have entered and fired the town, or laid it under contribution. The inhabitants of that and the neighbouring towns, being dissatisfied with its

continuing so, concluded upon assisting in erecting a fort upon Noddle's-Island.

In the beginning of May a number of volunteers both laity and clergy, repaired thither from time to time, and aided in the work till it was finished: while the poorer class were rewarded for their labours. Something having been done for the security of the harbor, general Benjamin Lincoln, while the court was sitting, entertained the thought of driving the British shipping from Nantasket, and planned a scheme for effecting it. They consisted of a fifty gun ship, commanded by commodore Banks, the Milford man of war, the Yankee Hero privateer, taken by the last and seven large transports lately arrived with highlanders, an armed brig and two schooners. The highlanders were supposed to be at least seven hundred. On Thursday the 13th of June, the Bostonians were acquainted by beat of drum, that an expedition was going to be undertaken against the enemy at Nantasket. Detachments from colonels Marshall and Witney's regiments, and a battalion of train, commanded by col. Crafts, were embarked at the Long wharf, together with cannon, ammunition, provisions, &c. and proceeded for Pettick's Island and Hull, where they were joined by more troops and sea-coast companies so as to make near six hundred men at each place. Militia from the towns in the vicinity of Boston harbour, with a detachment from the train and some field pieces, took post on Moon Island, at Hoff's-Neck, and at point Alderton. A detachment from the continental army under col. Whitcomb, with two eighteen pounders and a thirteen inch mortar, &c. were embarked for Long-Island, and there took post. The troops did not arrive at the several places of destination till near morning; but when arrived, were active and alert in the highest degree. The cannon were soon planted, and a shot from Long-Island announced their design; on which a signal was made for the fleet to get under way. The commodore bore and returned the American fire with spirit, till a shot from Long-Island pierced his upper works, when he got under sail. Several shells were thrown at him, which might hasten his departure.

Thus was free egress and ingress to the harbour for all friendly vessels, recovered on that very day on which, two years before, the sailing of every one of that kind from the port of Boston ceased by virtue of a British act of parliament. This circumstance was not thought of when the expedition commenced, but was merely accidental, though it could not be overlooked when it had happened. The same day the house of assembly received a letter

from the president of the general convention of Virginia, enclosing their resolutions with respect to independency.

Commodore Banks omitting to leave cruisers in the bay, afforded an opportunity to the American privateers of taking a number of highlanders. Three days after his quitting it [June 17.] the George and Annabella transports entered, after a passage of seven weeks from Scotland, during the course of which they had not an opportunity of speaking a single vessel that could give them the smallest information of the British troops having evacuated Boston. They were attacked in the morning by four privateers, with whom they engaged till evening; when the privateers bore away, on which the transports pushed for Boston harbour, not doubting but that they should receive protection, either from a fort or ship of force stationed for the security of British ships. They stood up for Nantasket Road, when an American battery opened upon them, which was the first serious proof they had of the situation of affairs at the port to which they were destined. They were too far embayed to retreat, as the wind had died away, and the tide of flood was not half expended. The privateers with which they had been engaged, joined by two others, made toward them. They prepared for action. By some misfortune the Annabella got aground so far a-stern of the George, that the latter expected but a feeble support from her musketry. About eleven at night, the privateers anchored close by, and hailed them to strike the British flag. The mate of the George, and every sailor on board, the captain excepted, refused to fight any longer; but every officer and private of the seventy-first regiment, who were in the ship, stood to their quarters with ready obedience to the lieutenant-colonel. On their refusing to strike, the action was renewed, when after a sharp combat of an hour and a half, they had expended every shot belonging to their artillery. They were then obliged to yield, there being no power of escaping, nor the most distant hope of relief. Their killed were eight privates and major Menzies, beside seventeen wounded. The major was buried with the honors of war at Boston. The prisoners experienced the utmost civility and good treatment. A week before the capture of these transports, the Ann, in the same service, was taken and carried into Marblehead, though commodore Banks was then at Nantasket. The number of highlanders taken is two hundred and sixty-seven privates, forty-eight others, beside the honorable Archibald Campbell, lieutenant-colonel to the second battalion of the seventy-first regiment.

[July 3.] On motion in the Massachusetts assembly, it was voted unanimously, “that if congress shall think proper to declare the colonies independent, this house will approve of the measure.”

There is no doubt of its being approved by all the colonies; but there has been manœuvring in order to produce the necessary disposition among the New-Yorkers; of which you will form the best idea from the following letter, written the beginning of May, from New-York, in answer to one of the preceding month from Philadelphia—“Soon after I received your letter, I sent for colonel Sears, Mr. John Smith and some others, whom I knew to be staunch, to spend an evening with me, that I might converse with them upon the subject (supposed to be that of taking up government.) It would not do to show your letter, or even hint that I had received it; but an opportunity for introducing the subject soon offered. A captain of my guard came and reported, that the committee of safety had sent some persons to the main-guard, who had no complaint lodged against them. I immediately sent to the committee, and they sent a sub-committee to wait upon me. I asked them what charge they had to lay against the prisoners. They informed me one was a collector who had not accounted for the money he had collected, and had abused their congress. The others were in for different crimes. I told them that I could by no means consent to have free citizens subjected to trials by court-martial. They must try them by proper courts, if such there were; and if not, the offenders must run at large, till necessity obliged them to constitute the proper courts. This opened the door for me, and I took advantage of it. The sub-committee thanked me for my care over the liberties of their fellow citizens, and owned the necessity of taking up government. Sears, Smith, &c. were strongly of that opinion, and all went home perfectly satisfied, and without suspecting the conversation was any thing more than accidental. The next day Greene and I were ordered to the jail to see some prisoners of war. There I found some persons in for robbery, and one for murder. As I found I had good success in the beginning I determined to keep on, and frequently took occasion to mention the great difficulty which must attend their present state:—that it would be tyrannical to execute those persons without a trial:—to try and execute them, by process in the name of a king, with whom we were at war, would be absurd; and if neither of these methods were taken, they must whether guilty or not suffer perpetual imprisonment. The argument took effect; and even tories themselves acknowledged it was best to take up government, till

reconciliation should take place.—This doctrine pleased me well; for *I knew if government was once assumed upon whatever motives, they would find that the Rubicon was passed, and that they could never return to their ancient form.* I then, by the advice of my privy council, drew up a piece purporting a petition to the committee of safety, to request leave from the continental congress to take up government.—This piece I enclose you, and though badly wrote, it steers so directly between whiggism and toryism, that no person can tell whether it was drawn by a whig or tory. My privy council informed me, that it had the desired effect; the whigs were fond of it because it took effect, their point was carried, and no retreat could ever take place; the tories were fond of it, because it held up the d—d reconciliation they were seeking after. Being well informed of my success, I thought it time to sound our colonel (thought to be M'Dougall.) I sent for him. We conversed freely upon the matter of taking up government. He owned the necessity of it, and said it would be carried into execution at all events, at the meeting of their convention. He informed me, that almost every person began to see the necessity, and that the instructions, then drawing up for their delegates, mentioned nothing about effecting a reconciliation, but to protect and defend America. When I found him in the true way to happiness, I dismissed him, and attacked others;—to tories I painted the evils attending their present state; to whigs I held up the advantage of seizing the precious moment, I soon found my party increase with surprising rapidity.”

Within seven days after this letter was sent to Philadelphia, congress resolved, [May 10.] “That it be recommended to the respective assemblies and conventions, of the united colonies where no government sufficient to the exigencies of their affairs hath been hitherto established, to adopt such government as shall in the opinion of the representatives of the people, best conduce to the happiness and safety of their constituents in particular, and America in general.” The following preamble was prepared and agreed to, five days after, “Whereas his Britannic majesty, in conjunction with the lords and commons of Great-Britain has, by a late act of parliament, excluded the inhabitants of these united colonies from the protection of his crown; and whereas no answer whatever to the humble petitions of the colonies for redress of grievancies and reconciliation with Great-Britain has been or is likely to be given, but the whole force of that kingdom, aided by foreign mercenaries, is to be exerted for the destruction of the good people

of these colonies; and whereas it appears absolutely irreconcilable to reason and good conscience, for the people of these colonies now to take the oaths and affirmations necessary for the support of any government under the crown of Great-Britain, and it is necessary that the exercise of every kind of authority, under the said crown should be totally suppressed, and all the powers of government exerted under the authority of the people of the colonies, for the preservation of internal peace, virtue and good order, as well as for the defence of their lives, liberties and properties against the hostile invasions and cruel depredations of their enemies, therefore resolved.” &c. as above.

[May 18.] The secret committee was ordered to endeavour to discover the design of the French in assembling so large a fleet and so great a number of troops in the West-Indies, and whether they mean to act for or against America. By this it appears that the congress have no assurance or certainty of support from France.

Corporal Cruz, the rifleman who was carried to England and discharged by the mayor, is arrived with dispatches from Arthur Lee, esq. containing intelligence of the whole naval and land force intended for the attack of the united colonies, and of the places for which they were destined. He got a passage to Halifax, from whence he made his escape to Boston; and then went on to head quarters at New-York. Soon after, congress resolved, [May 23.] That a committee of five be appointed to confer with generals Washington, Gates and Mifflin, upon the most speedy and effectual means for supporting the American cause in Canada. It was the opinion of the generals, that it would be impossible to keep the Indians in a state of neutrality; that they would undoubtedly take an active part, either for or against the Americans; and that it would be best immediately to engage them on their side, and to use their utmost endeavors to prevent their minds being poisoned by ministerial emissaries. When the committee brought in their report, it was resolved, among other things [May 25.] “That it is highly expedient to engage the Indians in the service of the united colonies.”

Upon the first intelligence received at Philadelphia of the troops to be employed against the Americans, a citizen of eminence wrote to his correspondent, “We now know who the commissioners are, and their numbers, viz. Messrs. the Hessians, Brunswickers, Waldeckers, English, Scotch and Irish. This gives the *coup de grace* to the British and American

connection. It has already wrought wonders in this city; conversions have been more rapid than ever under Mr. Whitefield. The Pennsylvania farmer (Dickinson) told me yesterday in the field, that his sentiments were changed; he had been desirous of keeping the door open as long as possible, and was now convinced that nothing was to be expected from our enemies but slavery.”

The detaching of the ten strongest regiments to Canada, made the most strenuous exertions necessary for getting New-York into a proper state of defence. Congress therefore authorised general Washington to direct the building of as many fire rafts, row gallies, armed boats and floating batteries, as might be judged requisite for the immediate defence of that port and of Hudson’s river. They afterward resolved [June 3.] that 13,800 militia be employed to reinforce the army; and that a flying camp be immediately established in the middle colonies, to consist of 10,000 men. They did not overlook Canada; but on the same day agreed that the general should be empowered to employ in that province a number of Indians, not exceeding two thousand; and two days after [June 5.] ordered that the standing committee for Indian affairs, do devise ways and means for carrying the same into effect. Within four and twenty hours after, they complimented the earl of Effingham, for the singularly noble part he had acted, by naming one of their frigates now building, the Effingham. The names of the rest are, the Congress, Randolph, Hancock, Washington, Trumbull, Raleigh, Montgomery, Warren, Boston, Virginia, Providence and Delaware.

[June 7.] Certain resolutions respecting independency, were moved and seconded, and the consideration of them referred till the next day. Richard Henry Lee, esq. one of the Virginia delegates, had given notice to congress, that on that day he should move for a declaration of independence; he accordingly made the motion. Various occurrences had contributed to ripen the colonies for the measure: several of which have been occasionally mentioned: others remain to be noticed. The North-Carolinians were at one time violent against a separation from Great-Britain; a delegate in their convention mentioning independence, the cry was—treason—treason; and he was called to order: but they have been wearied out by the proceedings of the British ministry, and the methods pursued and countenanced by governor Martin; so that all regard and fondness for the king and nation of Great-Britain has subsided, and independence has become the word most in

use among them. They ask, "Is it possible that any colony, after what has passed, can wish for reconciliation? The constant publications, which have appeared and been read with attention, have greatly promoted the spirit of independency: but no one so much as the pamphlet under the signature of Common Sense, written by Mr. Thomas Paine, an Englishman. The stile, manner, and language of the author is singular and captivating. He undertakes to prove the necessity, the advantages, and practicability of independence. That no lurking affection for the sovereign may impede it, kings are placed in a light, that tends not only to destroy all attachment to them, but to make them distasteful; their very office is attempted to be rendered odious; from whence the transition to the royal person is easy. Nothing could have been better timed than this performance. In unison with the sentiments and feelings of the people, it has produced most astonishing effects and been received with vast applause; read by almost every American; and recommended as a work replete with truth; and against which none but the partial and prejudiced can form any objections. It has satisfied multitudes, that it is their true interests immediately to cut the Gordian knot by which the American colonies have been bound to Great-Britain, and to open their commerce, as an independent people, to all the nations of the world. It has been greatly instrumental in producing a similarity of sentiment through the continent, upon the subject under the consideration of congress. On the 10th, the business was postponed to the 1st of July; but that no time might be lost, the next day Messrs. Jefferson, John Adams, Franklin, Sherman and R. R. Livingston, were appointed a committee to prepare a declaration of independence. Directly upon which, congress resolved, "That a committee be appointed to prepare and digest the form of a confederation to be entered into between these colonies; and that a committee be appointed to prepare a plan of treaties to be proposed to foreign powers."

Let us pass for a while to other matters.

[June 17.] Congress resolved to send major general *Gates* into Canada, to take the command of the forces in that province; but before the latter could reach them, they were at Crown-Point; this however could not be known by congress. They concluded upon authorizing gen. Washington to offer the Indians a reward of a hundred dollars for every commissioned officer, and thirty dollars for every private soldier of the king's troops, that they should take prisoners in the Indian country or on the frontiers of the united

colonies. The general's army is surrounded by a great number of secret foes, who, he is persuaded, will stick at nothing to effect their purposes of destroying it. They had laid a deep scheme for doing it, which was prosecuted with the utmost vigilance, but has been happily discovered. The general has full proof as to their intentions against the army; but is not so clear whether there was any thing personal designed against himself. The reliance however, which he has on the protection of an all-wise and beneficent Being, has secured him at least against the fear of it; and will prevent any change in his conduct from taking place through apprehension. ^[13] Two of the general's guard were concerned; a third, it is said, whom they tempted to join them, made the discovery. Several were taken into custody; and among them the mayor of New-York, who confessed the bringing of money from governor Tryon to pay for rifles made by a gunsmith now in irons. The mayor, after being twice examined, was remanded to prison, under a proper guard.

This affair produced a change in the politics of *New-Jersey*. That colony, it was thought, would be among the last to alter its government, whereas it will now be among the first that gets a settled constitution. Nothing more than a bare majority in favor of the alteration, was expected in the provincial congress; but the plot against the general wrought wonders; there were but four dissenting voices. On the 21st, however, before they could know the plot as a body, they proceeded to elect delegates for the continental congress, whom they empowered to join in declaring the united colonies independent of Great-Britain. In this election they left out William Livingston, esq. under a strong persuasion that he was not favorable to independency; and chose the Rev. Dr. Witherspoon, the president of the college at Princeton, from a conviction that he would support it with all his abilities.

[June 25.] Gen. *Howe* arrived at *Sandy-Hook* in the *Greyhound* frigate. He soon received from gov. Tryon a full account of the state and disposition of the province, as well as of the strength of the Americans. Gen. *Washington's* army was small, rather below nine thousand fit for duty. Of this little army, he wrote [June 28.] "at least 2000 are wholly destitute of arms, and near as many with arms in such condition as to be rather calculated to discourage than animate the user." The same day the British fleet arrived with gen. *Howe's* troops from Halifax. They took possession of Staten-Island July the 2d. On the 4th the American adjutant-general, col.

Joseph Reed, wrote to a member of congress, "With an army of force before and a secret one behind, we stand on a point of land, with 6000 old troops, if a year's service of about half, can entitle them to the name, and about 1500 new levies of this province, many disaffected, and more doubtful. In this situation we are, every man in the army, from the general to the private (acquainted with our true situation) is exceedingly discouraged. *Had I known the true posture of affairs, no consideration would have tempted me to have taken an active part of this scene; and this sentiment is universal.*" Gen. Howe is sufficiently strong, considering the goodness of his troops, to make a successful attempt upon the Americans; but being in daily expectation of the reinforcement from Europe, he will undoubtedly remain inactive till their arrival.

This then is a proper opportunity for relating the operations in South Carolina.

The designs of ministry against the southern colonies, were providentially discovered before the arrival of Sir *Peter Parker*. In the beginning of April capt. James Barron arrived at Williamsburgh, with dispatches from the secretary of state, for governor Eden of Maryland, which he took from on board a small vessel sent by lord Dunmore to carry them to Annapolis. The secretary's letter is dated Whitehall, December 23, 1775, and says,

“SIR,

“An armament of seven regiments, with a fleet of frigates and small ships, is now in readiness to proceed to the southern colonies, in order to attempt the restoration of legal government in that part of America. It will proceed in the first place to North-Carolina, and from thence either to South-Carolina or Virginia, as circumstances shall point out.” This discovery is ranked, by the American commander in chief, among many other signal interpositions of Providence, and as serving to inspire every reflecting mind with confidence. No one professes “a more firm reliance on the all-wise and powerful dispensations of the supreme Being, or thinks his aid more necessary.”

[April 18.] The *Ann* and *Isabella* arrived at Cape-Fear with part of the 17th regiment; she was the first vessel of Sir Peter Parker’s fleet. From her arrival to the second of May, thirteen transports got in. On the third of May, Sir Peter and twenty sail arrived with lord *Cornwallis*, gen. *Vaughan* and others; when they met with gen. *Clinton*, who after leaving New-York, proceeded to Virginia, where he saw lord Dunmore; but finding that no service could be effected in that colony, he repaired to Cape Fear river, and waited the arrival of the armament from Europe. [May 5.] Gen. Clinton issued out a proclamation from on board the *Pallas* transport, offering free pardon to all such as should lay down their arms, &c. excepting Cornelius Harnett and Robert Howe. The defeat of the highlanders and regulators in February, and the measures afterward taken for the safety of the colony, diverted the commanders from attempting any thing against it; and led them to conclude upon attacking *Charleston*, which they were in full expectation of subduing, as they had about 2800 land forces to co-operate with the men of war. Prior to their arrival and junction every exertion had been made to put the colony of *South-Carolina*, and especially its capital in a respectable posture of defence. As one mean conducing to it, works were erected on *Sullivan’s Island*, situated so near the channel as to be a very convenient post for annoying ships approaching the town; and about thirty cannon, 32, 18 and 19 pounders, were mounted on a fort constructed with palmetto. This is a tree peculiar to the southern states, which grows from twenty to forty feet high, without branches, and then terminates in something resembling the head of a cabbage. The wood is remarkably spongy. A bullet entering it, makes no extended fracture, but buries itself without injuring the parts adjacent.

On the first of June advices were received in Charleston, that a fleet of forty or fifty sail was at anchor about six leagues to the northward of *Sullivan’s Island*. The next day the alarm signal was fired, and expresses sent to the officers commanding the militia in the country, to repair to the

immediate defence of the capital, with the forces under their respective command. In a few days several hundred of the enemy's troops were landed on Long-Island, situated to the eastward of Sullivan's, and separated from it by a creek. On the 10th the Bristol, a 50 gun ship, her guns being previously taken out, got safe over the bar. About this time a proclamation was sent ashore, in which gen. Clinton promised pardon to the inhabitants upon their laying down their arms and quietly submitting to the re-establishment of royal government. It produced none of the effects wished from it. The militia of the country very generally obeyed the summons of president Rutledge, and repaired in great numbers to the capital. The regular regiments of the adjacent northern colonies, having been ordered to the assistance of their southern neighbors, arrived at this critical juncture. The whole were commanded by gen. Lee, who had been sent to the southward on gen. Clinton's leaving the Hook. The great opinion every where entertained of his ability and experience, add to the spirits of the troops and inhabitants. In a few days the Americans, including the militia of the town and country amounted to five or six thousand men. The first South-Carolina regular regiment, commanded by col. Gadsden, was stationed at Fort Johnson, on the most northerly point of James Island, and within point blank shot of the channel. The second and third regular regiments of the colony, commanded by cols. *Moultrie* and *Thompson*, occupied the two extremities of Sullivan's Island. The other forces had their posts assigned them at Haddrell's Point, James Island, and along the bay in front of the town. The streets near the water were in different places strongly barricaded. The stores on the wharfs, though immensely valuable, were pulled down, and lines of defence continued along the water's edge. Domestic conveniencies were exchanged for blankets and knapsacks, and gentlemen of the most independent fortune, labored with the hoe and spade in their hands. Gov. Rutledge, sore against his will, was obliged to adopt some absolute measures for the defence of the place. He pressed 700 negroes, with tools, &c. belonging to non-associators, to work upon the fortifications and trenches; and seized, for the present, the cash and papers of many associators in name only, to prevent their doing mischief, as they hung back in the hour of trial. In a few days, by the labor of the citizens, in conjunction with the negroes, such obstructions were thrown in the way, as would have greatly embarrassed the royal army, had it attempted landing in

the town. [June 26.] The Experiment, of 50 guns, safely crossed the bar, after taking similar precautions with the Bristol.

[June 28.] The fort on Sullivan's Island is now to be attacked by the two 50 gun ships the Bristol and Experiment, four frigates, the Active, Acteon, Solebay and Syren, each of 28 guns; the Sphynx, of 20 guns, the Friendship armed vessel, of 22 guns, the Ranger sloop and Thunder bomb, each of eight guns. The Thunder bomb, covered by the armed ship, takes her station in the morning, and begins to throw shells between the hours of ten and eleven. The Active, Bristol, Experiment and Solebay come boldly on to the attack. A little before eleven, the garrison fires four or five shot at the Active, while under sail. When she comes near the fort, she drops anchor, and pours in a broadside. Her example is followed by the three other vessels, and a most furious and incessant cannonade ensues. The Sphynx, Acteon and Syren are ordered to take their station between the end of the island and Charleston, partly to enfilade the works of the fort, partly to cut off the communication between the island and the continent, and partly to prevent any attempts that may be made to interrupt the grand attack. The western extremity of the fort, off which they are to be stationed, is so unfinished as to afford very imperfect cover to the men at the guns in that part, and also so situated as to expose the men in the other parts of the fort to a very dangerous cross fire. Providence on this occasion remarkably interposes in behalf of the garrison, and saves them from a fate, that undoubtedly would otherwise be inevitable. About twelve o'clock, as the three last-mentioned ships are advancing, they all get entangled with a shoal call the Middle Ground; two of them run foul of each other. The Acteon sticks fast. The Sphynx, before she clears herself, loses her bowsprit; but the Syren gets off without much injury. They are too late however, or in no condition for executing the intended service. The Thunder bomb, after having thrown about 60 shells, is so damaged as to be incapable of firing longer. While the continued fire from the ships seem sufficient to shake the bravest enemy, and daunt the courage of the most veteran soldier, the return made from the fort calls for the respect of the brave British seamen, though highly incommoded by it. The garrison, which consists of col. Moultrie, 344 regulars and a few volunteer militia, nearly all raw and unexperienced, stick to their guns with the greatest constancy and firmness, amidst a most dreadful roar of artillery. They fire deliberately and slowly, and take a cool and effective aim. The ships suffer accordingly. They are torn almost to

pieces, and the slaughter is deadful. Never did British valor shine more conspicuous, nor ever did their marine experience so rough an encounter, in an engagement of the same nature with any foreign enemy. The springs of the Bristol's cable being cut by the shot, she is for some time most dreadfully raked by the Americans. Capt. Morris, who commands her, though he has received a number of wounds, disdains quitting his duty, till his arm being at length shot off, he is carried away in circumstances that afford no possibility of recovery. Sir Peter Parker suffers a slight contusion. Every man stationed in the beginning of the action on the quarter deck of the Bristol, is either killed or wounded. In the whole she has 40 men killed and 71 wounded. The Experiment had 23 killed and 76 wounded. Capt. Scott, who commands her, loses his arm and receives many other wounds. Lord Campbell, the late governor of the colony, who serves as a volunteer, with the greatest spirit and bravery, and is so condescending as to accept of the direction of some guns of the lower gun deck, receives a hurt in his left side, which may finally prove mortal^[14]. The fire of the fort is principally directed against the Bristol and Experiment, which suffer very much in their hulls, masts and rigging. Not less than 70 balls go through the former. The Acteon has a lieutenant killed and six men wounded. The Solebay has eight men wounded. The loss of the garrison is only ten men killed and twenty-two wounded.

The guns at the fort were at on time so long silenced, that it was thought to have been abandoned. When the garrison had received a recruit of powder, the expenditure of their stock having obliged them to cease firing, they began it again, and did amazing execution by its excessive severity. During the long, hot and obstinate conflict between the American fort and the British men of war, the seamen looked frequently and impatiently to the eastward, expecting to see the land forces, under general Clinton and lord Cornwallis, advance from Long-Island, and march up to second the attack; but in this they were disappointed. Though the creek between that island and Sullivan's is easily fordable in general, yet at that time, through a long series of easterly winds it was uncommonly deep, and impassable at the usual place of passage. The British troops might have crossed higher up; but then they must have been exposed so completely and so long to the American fire, that they would have run the risk of being defeated. Col. Thompson, with 300 riflemen of his regiment; col. Clark, with 200 regulars of the North-Carolina line; col. Horry with 200 South-Carolina militia, and

the Raccoon company of militia riflemen, with an eighteen pounder and a field piece, were stationed at the east end of Sullivan's Island to oppose their crossing.

The British fire was kept up without intermission till near seven o'clock, when it slackened considerably. At half past nine, the firing on both sides ceased, and at eleven the shattered ships slipped their cables and withdrew from the scene of action, after an engagement which had been supported with uncommon courage and vigor on both sides for above ten hours. Next morning all the men of war, except the *Acteon*, had retired about two miles from the island. The garrison fired several shot at her; she at first returned them, but soon after the crew set her on fire and abandoned her, leaving the colours flying, the guns loaged, and all her ammunition and stores behind. She was in a short time boarded by a party of Americans, who brought off her colours, the ship's bell and as many sail and stores as three boats could contain. While the flames were bursting out on all sides, they fired three of her guns at the commodore, and then quitted her; and in less than half an hour after she blew up.

There were many thousand shot fired at the fort from the shipping; but the works suffered little damage; those which struck the fort were buried in its soft wood. Hardly a hut or tree on the island escaped. Seven thousand balls have been picked up since the engagement.

When the British fleet appeared off the coast, there was so scanty a stock of lead, that to supply the musquetry with balls, it became necessary to strip the windows of the dwelling houses in Charleston of their weights. Powder also was very scarce, notwithstanding a seasonably supply received a few days before the engagement. The proportion allotted for the defence of the fort was but barely enough for slow firing. It was expended with great deliberation. The officers, in turn, pointed the guns with such exactness, that most of their shot took effect on the shipping. In the beginning of the action the flag-staff was shot away. Sergeant Jasper of the grenadiers immediately jumped on the beach, took up the flag, and fastened it on a sponge-staff. He mounted the merlon with it in his hand; and though the ships were directing their incessant broad sides at the spot, deliberately fixed it. The day after the action, gov. Rutledge presented the sergeant with a sword, as a mark of respect for his distinguished valor. Seven of the wounded of the garrison lost their limbs; but not with these their spirits; for

they enthusiastically encouraged their comrades, never to abandon the standard of liberty and their country^[15]. This was particularly noticed of sergeant M'Donald who being mortally wounded by a cannon ball, employed the interval between the wounding and his death in exhortations to that purpose. He expired in a few minutes, when Jasper removed the body out of sight, calling out at the same instant, "revenge the brave mans death."

Charleston has certainly had a narrow escape. Gen. Lee, wrote to the board of war July the second, "For the want of cavalry, Charleston and its dependencies had certainly been lost, if the enemy had acted with that vigor and expedition we had reason to expect, but a most unaccountable langor and inertness on their parts have saved us." The unfinished state of the fort, the danger of its being enfiladed, and the difficulty of a retreat for want of a durable communication between the island and the main by a bridge, led the general to view the fort rather as untenable, and to incline to the abandoning of it: but when he found that col. Moultrie was determined at all adventures to attempt its defence, he satisfied himself with advising to a seasonable evacuation, and against risking too much in its support.—The colonel and his garrison have deserved the praises and thanks of their country and will undoubtedly meet with due honor.

Some think there was a capital mistake on the part of the British commander in stopping at the fort, when Charleston was the object; and that the fleet should have passed the island, in order to their attacking the town, which with a leading wind and tide, might have been done with a tenth part of the loss and damage that the ships have sustained. But had they passed the fort a successful attack upon the town was not a necessary consequence. The very attack of the fort would have been successful had the Acteon got safe to her station, instead of running aground.

The fate of this expedition will contribute greatly to establish the popular government it was intended to overset; while the news of it will fly like a meteor through the continent, and carry with it a most malignant influence on the royal cause. Sir Peter Parker will most probably sail soon, with the fleet and troops for the Hook, and in order the join lord Howe.

Now let us resume the momentous business of independency.

The *Pennsylvania* assembly withdrew from its union with congress, in consequence of instructions to their delegates, upon the congressional

resolve of May the 15th, for suppressing all authority derived from the crown of Great-Britain in the united colonies. The committee of the city and liberties of Philadelphia apprehended, that by this step an appeal was made to the people; and in compliance with the request of a large majority of the inhabitants, issued letters on the 20th of May (by virtue of a power given to them in the provincial convention held in January 1775) for calling a conference of the committees of the counties, in order to collect the sense of the inhabitants upon the aforesaid resolve of congress, and to bring about a re-union of the provinces with the other colonies, by calling a provincial convention, with a view to form a government for that purpose. They intimated their belief, that the assembly had been dragged into a compliance with most of the resolutions of congress from fear of a provincial convention. Messrs. John Bayard and Daniel Roberdeau were particularly active in this business. The deputies of the people assembled [June 24.] in full provincial conference, and unanimously declared their willingness to concur in a vote of congress declaring the united colonies free and independent states. A change in their delegates followed. Mr. Dickenson opposed openly, and upon principle, the declaration of independence, and was therefore removed.

The *Maryland* convention had instructed their delegates, last December, to propose the question of independency. These therefore, having given their vote against it, withdrew; not from a personal opposition, but in compliance with their public representation. Mr. Samuel Chase was strongly attached to it; and when he was returned to Maryland, procured county instructions to the members of convention, by which the last were induced to alter their own instructions. He transmitted an account of it to his friend in congress, in the following terms—"Annapolis [June 28.] Friday evening, nine o'clock. I am this moment from the house to procure an express to follow the post with an unanimous vote of our convention for *independence*, &c. See the glorious effects of county instructions. Our people have fire, if not smothered. S. Chase."

[July 1.] Congress resolved itself into a committee of the whole upon the subject of independency; but neither colonies nor members being unanimous, it was postponed till the next day.

[July 4.] They had it under further consideration, when the declaration of independence was agreed to and adopted. The title of it is,

A DECLARATION by the Representatives of the UNITED STATES OF AMERICA, in
Congress assembled.

The preamble follows in these words: “When, in the course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume, among the powers of the earth, the separate and equal station, to which the laws of nature and of nature’s God entitle them, a decent respect to the opinions of mankind, requires that they should declare the causes which impel them to the separation.

“We hold these truths to be self-evident—that all men are created equal—that they are endowed by their Creator, with certain unalienable rights—that among these are life, liberty, and the pursuit of happiness—That to secure these rights, governments are instituted among men, deriving their just powers, from the consent of the governed—that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to abolish it, and to institute a new government, laying its foundation on such principles, and organizing its powers in such form as to them shall seem most likely to effect their safety and happiness. Prudence, indeed, will dictate, that governments long established, should not be changed for light and transient causes—and accordingly all experience hath shown, that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same object, evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government, and to provide new guards for their future security. Such has been the patient sufferance of these colonies, and such is now the necessity which constrains them to alter their former systems of government.” The declaration proceeds to give “a history of repeated injuries and usurpations, all having in direct object the establishment of an absolute tyranny over these states. To prove this, let facts be submitted to a candid world.” It then enters upon a specification of injuries and complaints, to the following purport—

Assent has been refused to laws the most wholesome and necessary for the public good.

Governors have been forbidden to pass laws of immediate and pressing importance, unless suspended in their operation till assented to in Britain; and when so suspended, an attention to them has been utterly neglected.

Legislative bodies have been called together at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into a compliance with favorite measures.

Houses of representatives have been dissolved repeatedly, for opposing with manly firmness, invasions on the rights of the people.

For a long time after such dissolution, it has been refused to permit others to be elected; whereby the legislative power, incapable of annihilation, have returned to the people at large for their exercise; the state remaining in the mean time exposed to all the dangers of invasion from without, and convulsions within.

Endeavors have been made to prevent the population of these states, by obstructing the laws for naturalization of foreigners, refusing to pass others to encourage their migrations hither, and raising the conditions of new appropriations of land.

The administration of justice has been obstructed by the refusing of assent to laws for establishing judiciary powers.

Judges have been made dependent on the crown alone for the tenure of their offices, and the amount and payment of their salaries.

A multitude of new offices have been erected, and swarms of officers have been sent hither to harass the people, and eat out their substance.

Standing armies have been kept up among us in times of peace, without the consent of our legislatures.

The military has been rendered independent of, and superior to the civil power.

A plan has been formed to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws.

Acts have been passed by the British legislature, for quartering large bodies of armed troops among us—for protecting them by a mock trial, from punishment for any murders which they should commit on the inhabitants of these states—for cutting off our trade with all parts of the world—for imposing taxes on us without our consent—for depriving us, in

many cases, of the benefits of trial by jury—for transporting us beyond seas to be tried for pretended offences—for abolishing the free system of English laws in a neighboring province, establishing therein an arbitrary government, and enlarging its boundaries, so as to render it at once an example and fit instrument for introducing the same absolute rule into these colonies—for taking away our charters, abolishing our most valuable laws, and altering fundamentally the forms of our governments—for suspending our own legislatures, and declaring the British parliament invested with power to legislate for us in all cases whatsoever.

The crown of Great-Britain has abdicated government here, by declaring us out of its protection and waging war against us.

Our seas have been plundered, our coasts ravaged, our towns burnt, and the lives of our people destroyed.

Large armies of foreign mercenaries are at this time transporting, to complete the works of death, desolation and tyranny, already begun, with circumstances of cruelty and perfidy scarcely paralleled in the most barbarous ages, and totally unworthy a civilized nation.

Our fellow-citizens, taken captive on the high seas, have been constrained to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.

Domestic insurrections have been excited amongst us, and endeavors have been used to bring on the inhabitants of our frontiers the merciless Indian savages, whose known rule of warfare is an undistinguished destruction of all ages, sexes and conditions. The declaration proceeds, saying,

“In every stage of these oppressions, we have petitioned for redress in the most humble terms. Our repeated petitions have been answered only by repeated injury. Nor have we been wanting in attentions to our British brethren. We have warned them, from time to time, of attempts by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them by the ties of our common kindred to disavow these usurpations, which would inevitably interrupt our connections and correspondence.—They too have been deaf to the voice of justice and of consanguinity. We must therefore acquiesce in the necessity which

denounces our separation, and hold them, as we hold the rest of mankind, enemies in war, in peace friends. WE, therefore, the Representatives of the United States of America, in general Congress assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, DO, in the name, and by the authority of the good people of these colonies, solemnly publish and declare, That these United Colonies are, and of right ought to be, FREE AND INDEPENDENT STATES; that they are absolved from all allegiance to the British crown; and that all political connection between them and the state of Great-Britain, is, and ought to be totally dissolved; and that as Free and Independent States, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do. And for the support of this declaration, with a firm reliance on the protection of DIVINE PROVIDENCE, we mutually pledge to each other our lives, our fortunes, and our sacred honor.”

The declaration was by order of congress engrossed and signed by the following members, *JOHN HANCOCK*—NEW-HAMPSHIRE, *Josiah Bartlett, William Whipple, Mathew Thornton*—MASSACHUSETTS-BAY, *Samuel Adams, John Adams, Robert Treat Paine, Elbridge Gerry*—RHODE-ISLAND and PROVIDENCE PLANTATIONS, *Stephen Hopkins, William Ellery*—CONNECTICUT, *Roger Sherman, Samuel Huntington, William Williams, Oliver Wolcott*—NEW-YORK, *William Floyd, Philip Livingston, Francis Lewis, Lewis Morris*—NEW-JERSEY, *Richard Stockton, John Witherspoon, Francis Hopkinson, John Hart, Abraham Clark*—PENNSYLVANIA, *Robert Morris, Benjamin Rush, Benjamin Franklin, John Morton, George Clymer, James Smith, George Taylor, James Wilson, George Ross*—DELAWARE, *Cæsar Rodney, George Read*—MARYLAND, *Samuel Chase, William Paca, Thomas Stone, Charles Carroll of Carrollton*—VIRGINIA, *George Wythe, Richard Henry Lee, Thomas Jefferson, Benjamin Harrison, Thomas Neilson, jun., Francis Lightfoot Lee, Cartar Braxton*—NORTH-CAROLINA, *William Hooper, Joseph Hewes, John Penn*:—SOUTH-CAROLINA, *Edward Rutledge, Thomas Hayward, jun., Thomas Lynch, jun., Arthur Middleton*:—GEORGIA, *Button Gwinnett, Lyman Hall, George Walton*.

The declaration of Congress is intended for their act of separation from the crown of Great-Britain; they therefore no longer regard that prudential state maxim, *the king can do no wrong* in his official character; but, in making their complaints, charge the specified grievances to majesty itself;

by which they mean to justify, in the sight of mankind, the renunciation of their former allegiance. Thus has an event been produced which was not had in contemplation by any of the colonies, or even by any delegate, scarce by Mr. Samuel Adams, as what was so soon to happen, when congress first met in the year 1774. When Lexington engagement had taken place, he and some of his colleagues judged that the contest must then issue in independence, or slavery; and therefore laboured to establish the first, that the last might be prevented. But had a serious proposal of separating from the crown of Great-Britain been early introduced into congress, the dissolution of that body would have followed, through the general aversion of the people at large and of particular colonies to such separation. The Massachusetts delegates had a very nice part to act. The southern colonies were jealous of their republican spirit, and of their aiming at independency. These therefore, by a most prudent policy, secured those of the Virginia delegates that verged toward republicanism, with whom they intrusted any favourite measure which they wanted to have carried; and who brought the same forward and supported it in congress, against the other southern delegates, while their Massachusetts brethren attended the debates without showing themselves particularly interested, so that the jealousies of such as were most against it were not alarmed. They took occasion also, from the various occurrences that offered, gently to infuse their own sentiments into the minds of such as had before opposed them. Their wise procedure aided, on the one hand by certain trusty friends in congress, and on the other by the persevering blundering politics of the British ministry, have under the direction of Providence produced independency. It remains to be seen whether Providence will give to the same an abiding establishment. The measures which congress have adopted, may be deemed by some presumptuous, considering the weakness of their own army: the strength of the British, assisted by a powerful navy; and that they have not the least assurance of aid from foreign power. But how could it have been avoided? The people were ripe for it. Prudence dictated a compliance with their expectations and wishes. A disappointment might have disgusted, and produced disorder. The declaration may give confidence to the timid; and animate the friends of liberty to greater exertions. It may lead France to think, that the Americans have resources more than are known, and so incline her to entertain the thought of giving them assistance; while it admits of their applying for the same, with perfect consistency as an

independent people. They have nothing worse to apprehend from the declaration than before. The force destined to act against them proves, that if possible, they are to be reduced to unconditional submission; the declaration cannot add to the misery of such submission. Beside, the quarrel is in such a stage, that it cannot be ended with safety to the inhabitants, but by their separating from Great-Britain, and becoming independent: any thing short of that must now prove a continual source of dissention and wretchedness. The members of congress have had it for some time rung in their ears.

“The middle way, the best, we sometimes call,
“But ’tis in politics no way at all.”

[July 8.] This day at twelve o’clock, the declaration of independence was proclaimed at the state-house in Philadelphia, amidst the greatest acclamations. The day, in consequence of general orders, it was read at the head of each brigade of the continental army at New-York, and every where received with loud huzzas, and the utmost demonstrations of joy. The same evening the equestrian statue of the king was laid prostrate on the ground. The lead of which it is made, is doomed to be run into bullets. The New-York congress have unanimously resolved, that they will at the risk of their lives and fortunes, join with the other colonies in supporting the declaration; and have authorised their delegates to adopt all such measures as may be conducive to the happiness of the United States.

The New-Jersey convention have declared their late governor, William Franklin, esq. a virulent enemy to the country, and a person who may prove dangerous, and who ought to be confined in such place and manner as congress may direct; congress have ordered him to be sent under guard to governor Trumbull of Connecticut, who is to admit him to his parole; but if he refuses to give it, he is to be secured the same as other prisoners. Matters are drawing on to such a crisis, that the next letter must necessarily contain very interesting intelligence.

LETTER IV.

Roxbury, Sept. 16, 1776.

Lord Dunmore has at length quitted Virginia and joined the British forces. He arrived with lord Campbell and Sir Peter Parker off Staten-Island. [August 14.] His lordship continued on the coast, and in the rivers of Virginia, till the closeness and filth of the small vessels in which the fugitives were crowded, together with the heat of the weather, the badness and scarcity of water and provisions, produced the pestilential fever, which made great havock, especially among the negroes, many of whom were swept away. When at length every place was shut against him, and neither water nor provisions were to be obtained, but at the expence of blood, it was found necessary, toward the beginning of August, to burn several of the smaller and least valuable vessels, to prevent their falling into the hands of the Americans, and to send the remainder, amounting to between forty and fifty, with the exiled friends of government, to seek shelter in Florida, Bermudas, and the West-Indies; a great number of negroes were sent at the same time to the last of these places for sale. The Virginians lost about 1000 of them in the whole, including those who were killed or died while attached to his lordship's service. Thus have ended the hopes entertained of suppressing the opposition to government in Virginia by employing the negroes—a measure which being rather invidious than powerful, tended infinitely to inflame the discontents of the people without adding to the strength of the royal arms. The New-Jersey congress were so irritated by the plot for destroying the American army, that they used the utmost dispatch in forming their constitution, and finished it by the second of July.

Though they knew that the subject of independence was before the continental congress, and that these were upon the point of declaring the United Colonies independent: and though they had empowered their own delegates to join in the declaration, yet that not being made at the time, they closed with saying, “provided always, and it is the true intent and meaning

of this congress, that if a reconciliation between Great-Britain and these colonies should take place, and the latter be taken again under the protection and government of the crown of Britain, this charter shall be null and void, otherwise to remain firm and inviolable.”

The New-Jersey legislature, in the following September, chose William Livingston, esq; a gentleman of the law and of first-rate abilities, to be their governor. There was an equal number of votes for him and Mr. Stockton; but the latter having just at that moment, refused to furnish his team or horses for the service of the public, and the legislature coming to the knowledge of it, the choice of Mr. Livingston took place immediately.

[July 5.] The general convention of Virginia agreed upon a constitution. They began their session the fifth of May, and ten days after, when they were present 112 members, resolved unanimously, that their delegates should be instructed to propose to congress that the United Colonies be by that respectable body declared free and independent states. It might be from a full confidence of receiving such instructions, that Mr. R. Henry Lee gave notice, that he should move for a declaration of independence. One gentleman of eminence, who was employed in the great work of planning the constitution made it his incessant study so to frame the portrait of government, that a kindred with New-England might be discerned in it.

Let us now repair to New-York, and the neighbourhood.

Lord Howe arrived off Halifax toward the end of June; upon learning that the fleet and army had left that port on the 10th, and receiving the letter which the general his brother had left for him, he proceeded to New-York without coming to an anchor, and reached Staten-Island by the 12th of July; from whence he sent ashore by a flag to Amboy, a circular letter, together with a declaration to several of the late governors of the United States, then colonies, acquainting them with his powers, and desiring them to publish the same as generally as possible, for the information of the people. The declaration and letters were forwarded to congress by general Washington; and ordered by them to be published in the several news-papers, that the inhabitants might be informed of what nature the commissioners were, and what the terms, with the expectation of which the court of Britain had endeavoured to amuse and disarm them; and that the few who were still suspended by a hope founded either in the justice or moderation of the

parties concerned, might be convinced, that the valor alone of their country was to save its liberties.

[July 14.] Lord Howe sent up a flag to New-York with a letter, under the subscription of "George Washington, esq." but which the general refused to receive, as not being directed to him with the title and the stile suitable to his station. Congress applauded him for acting with a becoming dignity; and then directed that none of their officers should receive letters or messages that were not addressed to them according to their respective rank. Adjutant-general Paterson was at length sent [July 20.] with a letter addressed to "George Washington, &c. &c. &c." The general exempted him from being blind-folded, as customary in passing through fortifications, and received him with the greatest politeness; but notwithstanding all the adjutant could offer, the *et ceteras* would not remove the impediments to the correspondence attempted. The general told him, "it is true the *et ceteras* imply every thing; but it is no less true they imply any thing." The letter therefore was not accepted. The business served to discover the cast of the general's temper, and to show that he was firm and guarded. A conference ensued on the subject of prisoners, and complaints on both sides, relative to the treatment they had received. The adjutant asserted on his honor, that the prisoners at Boston, whenever the state of the army there admitted it, were treated with humanity, and even indulgence. Upon his observing that the commissioners were entrusted with great powers, the general answered, "Their powers are only to grant pardon. They who have committed no fault, want no pardons. The Americans are only defending what they think their indisputable rights." Thus ended a conference, from which it was evident, that all attempts in the same line, would prove ineffectual at present. The adjutant, through the whole conversation, addressed the general by the title of excellency, and behaved with the utmost attention and politeness. The arrival of the fleet and army in the neighborhood of New-York, made little impression on congress. They continued with the same inflexibility, in the pursuit of the measures they had adopted. Wherever the declaration of independence was published, it was received with the greatest joy. It reached Charleston within a few days, and was proclaimed in the most solemn manner to the troops under arms; and followed with all the usual parade of a public rejoicing. It found the people of South-Carolina exasperated against Great-Britain for her late hostile attack, and elated with their successful defence of the fort on

Sullivan's Island, henceforward to be called Fort Moultrie, in honor to the brave colonel who defended it. The declaration was equally acceptable to the military at New-York; and gave them fresh spirits and vigor. The fear of fighting for, what they apprehended would be a patched reconciliation, was finally at an end. Two days before, col. Paterson waited upon gen. Washington, and as if in defiance of all the then formidable appearances, independence was solemnly proclaimed by the civil authority; after which the king's arms, and an elegant picture of his majesty, were destroyed. The episcopal clergy, however, upon these proceedings shut up their churches.

The military operations on the part of the British being delayed for want of the expected reinforcements, the *Americans* had the opportunity of strengthening themselves. Having endeavored to fortify the entrance of the harbour, so as to make it dangerous for the shipping, they expected that the military operations would commence on the side of *Long-Island*, where they threw up lines and erected redoubts, next to New-York, in order to prevent gen. Howe's advancing to and possessing himself of those heights which overlook the city, and so attacking it from that quarter. Gen. Greene was entrusted with the command of this post; and studiously acquainted himself with all the defiles leading to it, that he might reap the full advantage of them whenever occasion required. Notwithstanding the efforts to prevent the passage of the British ships up the North-River, the same was effected [July 15.] by the *Phoenix*, the *Rose*, and two tenders, with little damage from a heavy cannonade. They sailed 25 miles, and took their station opposite Tarry-town, where the river is about four miles wide. Only 5000 of the new levies had arrived [July 21.] in the American camp, out of 15,000 ordered. The exertions of the states should have been far more vigorous, considering the formidable force their army had soon to cope with, such as no part of this new world had seen before, viz. a body of 30,000 excellent troops; great numbers of them experienced veterans, rendered the more formidable by the abundance of their military stores and warlike materials, by the goodness and quantity of the artillery with which they are provided, and by the numerous fleet that supports them.

The particular jealousies and prejudices of the continental troops from the different states, led them frequently to throw out reflections tending to irritate each other, and injure the common cause; so that the commander in chief interposed his influence to suppress it by general orders. [August 1.] This was a measure absolutely necessary, considering the state of his army;

which was as follows [Aug. 8.] for the several posts on New-York, Long and Governor's Islands and Powle's-Hook, 10,514 fit for duty; sick present, 3039; sick absent, 629; on command, 2946; on furlough, 97—total 17,225. These were little other than raw troops, and much scattered, some being 15 miles apart.^[16] The two fleets of transports, with the expected reinforcements, arrived [Aug. 12.] under convoy of commodore Hotham and the Repulse, as did the camp equipage; so that general Howe was enabled to proceed upon the operations of the campaign, which ought to have commenced at least two months sooner. The scarcity of lead obliged the citizens of New-York to part with their window leads for the use of the American army. One house supplied them with 1200lb. and another with 1000lb. Gen. Washington provided some fire ships for hostile purposes, and the defence of the North-River. One of them, commanded by capt. Fosdick and another by capt. Thomas, went up after the Phœnix and Rose [Aug. 16.] the night being dark, they passed the Phœnix without seeing her; capt. Thomas fell on board the tender belonging to them, and burnt her. The light gave direction to capt. Fosdick, who grappled the Phœnix, but by the lowness of his vessel and the dexterity of the Phœnix's hands, the latter got clear of the fire ship and sunk her. The enemy, however, thought it prudent to quit their station two days after; and just before day-light, taking the advantage of a fine wind, the tide and a very heavy rain, went down the river, through a continual fire from the American forts, but received no such damage as to prevent their rejoining the British fleet. Gen. Greene was so ill that he could serve no longer, and gen. Washington was obliged to appoint gen. *Sullivan* to command on *Long-Island*, notwithstanding the damage that might accrue to the public by the change at such a critical moment.

About one half of the Hessians were yet wanting; gen. Howe however, had under him the troops formerly at Boston, the reinforcement which arrived on the 12th, the forces from South-Carolina, which got in on the 14th, and some regiments from Florida and the West-Indies; so that he felt himself sufficiently strong to resolve upon attempting the island. The necessary measures being taken by the fleet for covering the descent, the army was landed [Aug. 22.] without opposition, between two small towns, Utrecht and Gravesend, not far from the Narrows, on the nearest shore to Staten-Island. The American works, erected under the eye of gen. Greene, cover the breadth of a small peninsula, having the East-River (which separates Long-Island from New-York) on the left, a marsh, extending to

the water side, on the right, with the bay and Governor's-Island at the back. —Within these works lies Brooklyne, where gen. Sullivan encamped with a strong force, a few miles distant from Utrecht. From the point of land which forms the east side of the Narrows, runs a ridge of hills about north-east, in length about five or six miles, covered with a thick wood, which terminates in a small rising land near Jamaica. Through these hills are three passes only; one near the Narrows; a second on the road called the Flatbush road; and a third called the Bedford road, being a cross road from Bedford to Flatbush, which lies on the southerly side of these hills. These passes through the mountains or hills, are easily defensible, being very narrow, and the lands high and mountainous on each side. These are the only roads which can be passed from the south side of the hills to the American lines, except a road leading round the easterly end of the hills to Jamaica. An early attention had been given to the importance of these passes. To the second of them the small American parties patrolling on the coast, retired upon the approach of the British boats with the troops. Lord Cornwallis pushed on immediately with the reserve and some other forces; but finding the Americans in possession of the pass, in compliance with orders, risked no attack. [Aug. 25.] Three days after, gen. *de Heister*, with two brigades of Hessians from Staten-Island, joined the army. It is said, that when landed, he was told by one high in command, "The Americans will give the foreigners no quarter;" and that he answered, "Well, as I know it, I am ready to fight on these terms." The foreign officers and soldiers were let to believe that the Americans are a set of savages and barbarians, and to dread falling into their hands, under the apprehension of meeting with the cruelest treatment. The common men were taught to expect, that if taken, they should have their bodies stuck full with pieces of pine wood, and then be burnt to death. The propagation of these falshoods might be considered as just retaliation upon congress for advising and adopting a plan for encouraging the Hessians and other foreigners to desert the British service. Officers and men are totally ignorant of the nature of the quarrel between Britain and the United States; and have high notions of subjection to princely authority. They detest the thoughts of rebellion, and the Americans being stiled rebels, they are hearty in desiring and attempting their reduction, and need no incentives to whet their resentments.

The Americans had on each of the three above mentioned passes or roads, a guard of eight hundred men; and to the east of them in the wood,

col. Miles was placed with his battalion, to guard the road from the south of the hills to Jamaica, and to watch the motion of the enemy on that side, with order to keep a party constantly reconnoitering to and across the Jamaica road. The sentinels were so placed as to keep a continual communication between the three guards on the three roads.

[Aug. 26.] Gen. Howe having fully settled a plan of surprise, gen. de Heister, with his Hessians, takes post at Flatbush in the evening, and composes the centre. About nine o'clock the same night, the principal army, containing much the greater part of the British forces, under the command of generals Clinton, earl Percy, and lord Cornwallis, march, in order to gain the road leading round the easterly end of the hills to Jamaica, and so to turn the left of the Americans. Col. Miles, whose duty it is to guard this road, suffers the British to march not less than six miles till they are near two miles in the rear of the guards before he discovers and gives notice of their approach. [Aug. 27.] Gen. Clinton arrives within half a mile of the road about two hours before day break, halts and settles his disposition for the attack. One of his patrols falls in with a patrol of American officers on horseback, who are trepanned, and made prisoners. Sullivan, though in expectation that they will bring him intelligence, neglects sending out a fresh patrol on finding himself disappointed. Clinton learning from the officers, that the Americans have not occupied the road, detaches a battalion of light-infantry to secure it; and advancing with his corps upon the appearance of day, possesses himself of the heights over which the road passes.

General Grant with the left wing advances along the coast by the west road, near the narrows. About midnight, the guard consisting all of New-Yorkers and Pennsylvanians, perceiving that there is danger at hand, flee without firing a gun, and bring to gen. Parsons, who commands them, the account of the enemy's advancing in great numbers by that road. Grants movement is to divert the attention of the Americans from the left, where the main attack is to be made by Clinton. Parsons perceives by fair daylight, that the British are got through the wood, and are descending on the north side. He takes twenty of his fugitive guard, being all he can collect, and posts them on a height in front of the British, about half a mile distant which halts their column, and gives time for lord *Stirling* to come up with his forces, amounting to about 1500, who possesses himself of a hill about two miles from camp.

The engagement begins, soon after day-break, by the Hessians from Flatbush, under gen. Heister, and by gen. Grant on the coast; and a warm cannonade with a brisk fire of small arms, is eagerly supported on both sides for some considerable time. The Americans opposing gen. Heister, are the first who are apprized of the march of the British troops under gen. Clinton. They accordingly retreat in large bodies, and in tolerable order to recover their camp; but are soon intercepted by the right wing under gen. Clinton; who having halted and refreshed his forces after passing the heights, continues his march, and getting into the rear of the left of the Americans, about half past eight o'clock, attacks them with his light-infantry and light dragoons, while quitting the heights to return to their lines. They are driven back, and again meet the Hessians. Thus they are alternately chased and intercepted. In these desperate circumstances, some of their regiments, overpowered and out-numbered as they are, force their way to camp, through all the dangers with which they are pressed. The Americans under lord Stirling, consisting of col. Miles's two battalions, col. Atlee's, col. Smallwood's and col. Hatch's regiments, and who are engaged with gen. Grant, behave with great bravery and resolution, charging the enemy and maintaining their posts from about eight in the morning till two in the afternoon; but are so late in their knowledge of what passes elsewhere, that their retreat is intercepted by some of the British troops, who, beside turning the hills and the American left, have traversed the whole extent of country in their rear. Several break through the enemy's line, and get into the woods. Gen. Parsons, with a small party, escapes by doing it. Numbers throw themselves into the marsh at Gowan's Cove; some are drowned, others perish in the mud; a considerable body however, escapes by this way to the lines. The nature of the country, and the variety of the ground occasion a continuance and extension of small engagements, pursuits and slaughter, which last for many hours before the scene closes.

The British troops displayed great valor and activity on this occasion so impetuous was their ardor, that it was with difficulty that they could be restrained, by gen. Howe's orders, from attacking the American lines. They would probably have entered them, had not the works been completed the night before the action, by closing an opening on the right, and placing an abbatis before it. The *Americans* were most completely surprised and effectually entrapped. Col. Smallwood's Maryland regiment suffered extremely, and was almost cut to pieces. It lost two hundred and fifty-nine

men. The loss was much regretted on account of their being young men of the best families in the country. All who were engaged in the actions of the day, did not display the same courage; nor was it to be expected from such raw troops. Many escaped from the want of discipline; for they broke at the sight of danger, and saved themselves through flight, whereas otherwise they must have been killed or taken. Large bodies however were captured. Generals Sullivan, lord Stirling and Udell, beside 3 colonels, 4 lieutenant-colonels, 3 majors, 18 captains, 43 lieutenants, 11 ensigns, an adjutant, 3 surgeons and 2 volunteers, were made prisoners, together with 1006 privates, in all 1097. As among the prisoners the wounded were included, an allowance between 4 and 500 for killed, drowned, perished in the woods, the mud and the like, must be reckoned sufficiently large. Only six brass ordnance were taken. The loss of the British, in killed and wounded, did not exceed 318; of whom only 61 were slain. The Hessians had 2 rank and file killed, and 23 privates and 3 officers wounded.

The brilliant success of the operations on Long-Island, may fascinate the judgment and crown the head of gen. Howe with laurels; but there are some sensible American officers, who judge that by commencing them in that quarter, he completely put into the hands of general Washington the only chance which offered for the defence of New-York; and that, if gen. Greene had not been prevented by sickness from continuing in command, all the passes or roads would have been so secured and defended, as that the royal army, in attempting or gaining them, would have been so crippled, as to have been arrested with regard to all future successful operations. Gen. Sullivan was too inattentive and confident. Though in the midst of royalists, he suffered them to go backward and forward just as they pleased. One of the American chaplains, fearing that the British would make a circuitous march, and take to the Jamaica road, asked him whether he had guarded that pass sufficiently, and received for answer, "Yes, so that an angel cannot force it."

It may be thought by many, that if general Howe, instead of commencing his operations on Long-Island, had run up the *North-River*, and landed above *New-York*, he would either have compelled gen. Washington to a sudden evacuation of the city, with the loss of nearly all the stores of the army; or to have fought, though very unequal in numbers and troops; or to have surrendered for want of provision. That such a movement might have been made, wind and tide favoring, without any particular danger of a

failure, had been established by the safe passage of the Phoenix and Rose up and down the river.

The victorious army encamped in front of the American works in the evening; and on the 28th at night, broke ground in form, about 4 or 500 yards distant from a redoubt which covered the left of the Americans. The same day gen. *Mifflin* crossed over from New-York with 1000 men; at night he made an offer to gen. *Washington* of going the rounds, which was accepted. He observed the approaches of the enemy, and the forwardness of their batteries; and was convinced that no time was to be lost. The next morning [Aug. 29.] he conversed with the general upon the subject, and said, "You must either fight or retreat immediately. What is your strength?" The general answered, "nine thousand." The other replied, "It is not sufficient, we must therefore retreat." They were both agreed as to the calling of a council of war; and gen. *Mifflin* was to propose a retreat. But as he was to make that proposal, lest his own character should suffer, he stipulated, that if a retreat should be agreed upon, he would command the rear; and if an action, the van. When the council was held, these reasons, among others, were mentioned for removing the army to New-York, viz. —"The heavy rains which have fallen two days and nights, with but little intermission, have injured the arms and spoiled a great part of the ammunition, and the soldiers, being without cover and obliged to lie in their lines, are worn out."——"From the time the enemy moved from Flatbush, several large ships have attempted to get up, as supposed, into the East-River, to cut off our communication, by which the whole army would be destroyed, but the wind being north-east, they have not been able to effect it."——"The troops are become dispirited by their incessant duty and watching." It was unanimously agreed to quit. Col. Glover, who belonged to Marblehead, was called upon with the whole of his regiment fit for duty, to take the command of the vessels and flat-bottomed boats. Most of the men were formerly employed in the fishery, and so peculiarly well qualified for the service.—The colonel went over himself from New-York, to give directions; and about seven o'clock at night, officers and men went to work with a spirit and resolution peculiar to that corps. The embarkation of the troops was committed to gen. *M'Dougall*. He was upon the spot at Brooklye ferry, at eight o'clock, the hour fixed for the commencement of this important movement. To his great mortification he found that the militia had not yet embarked. The getting them over protracted the time till

between ten and eleven o'clock. Meanwhile, about nine, the tide of ebb made, and the wind blew strong at north-east, which adding to the rapidity of the tide, rendered it impossible to effect the retreat in the course of the night, with only that number of row boats which they could command, and the state of the wind and tide put it out of the power of col. Glover's men to make any use of the sail boats. Gen. M'Dougall sent colonel Grayson, one of the commander in chief's aids, to report to his excellency their embarrassed situation; and gave it as his opinion, that the retreat was impracticable that night. The colonel returned soon after, not being able to find the commander in chief, on which the general went on with the embarkation, under all these discouragements. But about eleven the wind died away, and soon after sprung up at south-west, and blew fresh, which rendered the sail boats of use, and at the same time made the passage from the island to the city, direct, easy and expeditious. Providence further interposed in favor of the retreating army, by sending a thick fog about two o'clock in the morning [Aug. 30.] which hung over Long-Island, while on New-York side it was clear. During the embarkation, colonel Scammell was sent to gen. Mifflin with orders for a particular regiment to march down to the ferry; the colonel mistook the orders, and instead of a regiment understood the whole covering party, and delivered them accordingly. On that gen. Mifflin quitted the lines, and came down to the place of embarkation, to the great astonishment of gen. Washington, who with surprise enquired into the reason of such conduct. The mistake being cleared up, gen. Mifflin returned to the lines, after they had been abandoned about three-quarters of an hour, without its being discovered by the enemy, because of the fog. The fog and wind continued to favor the retreat, till the whole army, 9000 in number, with all the field artillery, such heavy ordnance as was of most value, ammunition, provision, cattle, horses, carts, &c. were safe over. The water was so remarkably smooth as to admit of the row boats being loaded within a few inches of the gunwale. Gen. Washington, though often entreated, would not leave the island till Mifflin, with his covering party, left the lines, at about six o'clock. The enemy were so nigh that they were heard at work with their pick-axes and shovels. In about half an hour after the lines were finally abandoned, the fog cleared off, and the British were seen taking possession of the American works. Four boats were on the river, three half-way over, full of troops; the fourth, within reach of the enemy's fire upon the shore, was compelled to return;

she had only three men in her, who tarried behind to plunder. The river is a mile or more across; and yet the retreat was effected in less than thirteen hours, a great part of which time it rained hard.

Had it not been for the providential shifting of the wind, not more than half the army could possibly have crossed, and the remainder, with a number of general officers, and all the heavy ordnance at least, must inevitably have fallen into the enemy's hand. Had it not been also for that heavenly messenger, the fog, to cover the first desertion of the lines, and the several proceedings of the Americans after day-break, they must have sustained considerable losses. The fog resembled a thick small mist, so that you could see but a little way before you. It was very unusual also to have a fog at that time of the year. My informer, a citizen of New-York, could not recollect his having known any at that season, within the space of twenty or thirty years.

Governor's-Island, on which were two regiments, was evacuated likewise, with the loss of only one man's arm, by a cannon shot from the ships. The Americans finished the removal of their military stores from thence [Sept. 2.] and took every thing off but a few pieces of cannon, notwithstanding the ships of war lay within a quarter of a mile of some part of it.^[17]

Since the affair of Long-Island, endeavors have been used to keep up the spirits of the people, by puffing accounts of the extraordinary bravery of the troops, and the destruction they made of the enemy. But that matters are not very promising, appears from a letter of gen. Mercer, who commands the flying camp, dated September the 4th, wherein he writes, "Gen. Washington has not, so far as I have seen, 5000 men to be depended on for the service of a campaign, and I have not 1000. Both our armies are composed of raw militia, perpetually fluctuating between the camp and their farms; poorly armed, and still worse disciplined. These are not a match for, were their numbers equal to, veteran troops, well fitted and urged on by able officers. Numbers and discipline must prevail at last. Giving soldiers, or even the lower orders of mankind, the choice of officers, will for ever mar the discipline of armies." The wretched choice of officers in the Massachusetts, is complained of in a letter of this purport to a gentleman of that state—"I can account for the strange military appointments in your state, on no other principle, than that your people mean to guard against the danger of an

army, by making it contemptible. Without officers we shall never have soldiers. They are sinking the state in the eyes of the whole continent. At the end of a campaign we find butchers, bakers, sutlers, and a large tribe of contractors, with fortunes made at the public expence, while a young officer of merit, on twenty-six dollars a month, is a beggar. A man of honor and spirit cannot herd with company unworthy of him; yet there is no one beneath a field officer, whose pay gives him a right to company above a shoe-black. The great number of southern officers now in York, who are but little used to the equality which prevails in New-England, are continually resenting the littleness of their pay.” A third gentleman tells a member of congress—“I cannot agree with you on the frequent calling out of the militia. They are uneasy, restless, and discontented. They leave their business in a most perplexing situation when called out suddenly, and must be very great sufferers in their private property. Their minds are always at home, in their shops, or on their farms. This renders them low spirited; a dejection fast seizes them; sickness and death are the consequences. The only purpose a militia can serve, under present regulations, is, on some sudden invasion, to assemble and repel the enemy, and return to their business again.”

The account will shock your humanity; and yet you must be told, that since the conquest of Long-Island, the American captives, in several instances, were tied up to be fired at by the royal troops, openly and without censure.^[18]

You will not wish a detention of this letter, that the intelligence from New-York may be brought down to a later period, it shall therefore be closed with an account of the troops to the northward, and of some proceedings in the Massachusetts.

The return of the troops serving in Canada, under gen. Sullivan, was 7006. When gen. Gates first joined them, the small-pox raged; not a cannon was mounted; the vessels were lumbered with stores; the men were dispirited with defeat and fatigue; in short, the whole was a scene variegated with every distress and disappointment which can conspire to ruin an army. Gen. Sullivan left it the 12th of July; when he first joined it in Canada, it was torn to pieces by sickness and unaccountable occurrences; its present security is thought to be owing to him; and therefore the field officers addressed him when leaving them; and said, “It is to you, Sir, the

public are indebted for the preservation of their property in Canada. It is to you we owe our safety thus far. Your humanity will call forth the silent tear and grateful ejaculation of the sick; your universal impartiality will force the applause of the wearied soldier.”

With the losses sustained at Quebec, Three Rivers, the Cedars, the consequent retreat from Canada, together with the deaths and desertions which have happened since the first of April, the northern army has been diminished upward of 5000, exclusive of 3000 sick. Till these were separated, and sent off to Fort George, at the head of Lake George, where the general hospital has been established, the camp itself had the appearance of a general hospital rather than an army. The small-pox had infected every thing belonging to it, the cloths, the blankets, the air, the very ground the men walked on. Gen. Gates exerted all his powers to prevent this pestilence from fixing at Skeensborough, to which place the militia ordered to reinforce him, were directed to repair. The army is now at Crown-Point, for a council of general officers unanimously determined to retire from thence, and take post at the strong ground opposite to the east point of Tyconderoga. By the end of the month affairs began to wear a less gloomy aspect. The fleet upon Lake Champlain increased rapidly. The militia began to come to Skeensborough. On the 6th of August the general was joined by 600 from New-Hampshire; but many, both officers and soldiers, were detained on their march by inoculating, contrary to orders, through fear of being infected with the small-pox in the natural way. While the army was in Canada, regularity was dispensed with, or neglected; and the ruin of affairs there was ascribed by some members of congress to the want of regular returns. Who was general, who quarter-master, who pay-master, who commissary, were important secrets, which all their penetration was never able to discover. Gates has sent them a return, the most systematical they have seen. The utmost exertions are applied in building galleys and gondolas, to continue a naval superiority upon the lake, whereby to prevent Sir Guy Carleton’s penetrating into the United States by way of Ty. The post opposite to it, occupied by the army, has been called Mount Independence, since the declaration of independence reached them; for that was received with the usual applause.

[Sept. 2.] The Massachusetts house of representatives have, in an address to congress, requested that they would form a confederation. [Sept. 14.] They have also chosen gen. Lincoln to command the militia ordered to

New-York. An attempt which is now making, to fix by an act of the general court, the price of various articles, may be well intended by the generality. The characters of many who are for the measure, are too fair to admit the suspicion of a bad intention. But the measure will at length prove ineffectual for the good meant to be answered by it, and be productive of great evil. The most conscientious and patriotic will be injured, while the crafty and unprincipled make their advantage of it. Prices of provision, and divers other articles, like water, will find their own level; and be high or low, according to the quantity of stock in hand, and the demand that there is for them. But warm theorists will not be easily convinced by any other arguments than those which result from experiments.

LETTER V.

Roxbury, Dec. 20, 1776.

The American army having providentially escaped from Long-Island, gen. Sullivan was immediately sent upon parole, with a verbal message from lord Howe to the congress; importing, that though he could not at present treat with them in that character, yet he was very desirous of having a conference with some of the members, whom he would consider as private gentlemen. He informed them that he, with the general, had full powers to compromise the dispute between Great-Britain and America, upon terms advantageous to both—that he wished a compact might be settled at a time, when no decisive blow was struck, and neither party could say that it was compelled to enter into such agreement—that, were they disposed to treat, many things which they had not yet asked, might and ought to be granted—and that, if upon the conference, they found any probable ground of an accommodation, the authority of congress would be afterward acknowledged to render the treaty complete. The general arrived at congress with this message on the 2d of September; and was desired to reduce it to writing. They received a letter at the same time from gen. Washington, acquainting them with the removal of the army from Long-Island. On the 5th, gen. Sullivan was requested to inform lord Howe, “that congress being the representatives of the free and independent states of America, they cannot with propriety send any of their members to confer with his lordship in their private characters, but that ever desirous of establishing peace on reasonable terms, they will send a committee of their body to know whether he has any authority to treat with persons authorised by congress for that purpose in behalf of America, and what that authority is, and to hear such propositions as he shall think fit to make respecting the same. The next day they elected by ballot, for their committee, Messrs. Franklin, John Adams, and Edward Rutledge. Eight days after, the committee met lord Howe, upon Staten-Island, opposite to Amboy, where

his lordship received and entertained them with the utmost politeness; the committee in their report, summed up the account of the conference, by mentioning that it did not appear to them, that his lordship's commission contained any other authority of importance than was contained in the act of parliament; for that as to the power of enquiring into the state of America, which his lordship mentioned to them, and of conferring and consulting with any persons the commissioners might think proper, and representing the result to the ministry, they apprehended any expectation from the effect of such power would have been too precarious for America to have relied upon, had she still continued in her state of dependence. Thus the hopes of negotiation by the commissioners ended. The friends to independency rejoiced that it was brought to so happy a conclusion. They almost trembled lest it should prove insnaring and something should take place under it, which, in the present distressed circumstance of their military affairs, might demolish the fabric they were erecting. It served to gain time for recovering from the shock occasioned by the losses sustained on Long-Island. If it delayed the operations of gen. Howe, it answered another valuable purpose; and it is hard otherwise to account for his delay. The committee managed with great dexterity; and maintained the dignity of congress. Their sentiments and language became their character. His lordship was explicitly and authoritatively assured, that neither the committee, nor the congress which sent them, had authority to treat in any other capacity than as *independent states*. His lordship had "no instructions on that subject." The Americans must therefore fight it out, and trust in God for success.

General Washington's situation, after evacuating Long-Island, was truly distressing. The check which the detachment had sustained, dispirited too great a proportion of the troops, and filled their minds with apprehension and despair. The militia were dismayed, intractable and impatient to return. Great numbers went off, by companies at a time, by half regiments, and in some instances, almost by whole ones. The flying camp was too literally such. Whole battalions of them ran off from Powle's (the mode of spelling Pauls two hundred years back^[19]) Hook and the height of Bergen, upon the firing of a broadside from a man of war, when no one was hurt by it. An entire disregard of that order and subordination necessary to the well-being of an army, made his condition still more alarming; and occasioned a want of confidence in the generality of the troops. The number of men fit for duty, taken in the main body and all the out posts, was for some days under

20,000; but the militia, too contemptible to merit the name of soldiers, with the new levies, alike despicable, composed more than a third of the army. The militia did inexpressible damage, by telling the other troops—"all is gone—the regulars must overcome." By such language the men became more and more disheartened. What is said of the militia is not peculiar to those from any one state: as to their intractableness, and disregard of order and subordination, it is common to all militia, and must be generally expected; for men who have been free, and never subject to restraint or any kind of controul, cannot, in a day, be taught the necessity, or be taught to see the expediency of strict discipline. Within nine days after the evacuation, the number of the sick, by the returns, formed one quarter of the whole army.

Such were circumstances, that they demanded the greatest harmony possible among the troops; whereas no small animosity prevailed between those of the northern and southern states, occasioned by general and illiberal reflections freely dealt out at head quarters. It was not countenanced by the commander in chief; but the adjutant general assiduously endeavoured to make and promote it; so that his excellency, in order to remedy it in some measure, appointed David Henley, esq. deputy adjutant general. The day this appointment was announced to the army in general orders, the 6th of September, a letter was written to a member of congress, which says, "The infamous desertions, the shameless ravages, seditious speeches and mutinous behaviour which prevail in your army, call in the loudest language for a reform. The militia here are only an armed rabble, and all the troops are without discipline. If the congress does not raise an army for three years or during the contest, all the best officers will quit it. Had we been wise to engage the men, at first, during the war, we should now have had an army to have met British troops on an equal footing. As to having recourse to a militia, it is a most wretched subterfuge, experience has demonstrated they will not stand fire. They will not fight from home. Men must learn to fight as they learn any thing else. We have an exceeding good commander in chief, who is not wanting in intrepidity, nor the truest patriotism. I wish him more able counsellors and spirited assistants. Be assured, Sir, that our men have in a great measure, lost that virtue which first engaged them to fight, and are sinking into an army of mercenaries."

One lieutenant colonel Zeidwitz was tried for writing a letter to the late governor Tryon, wherein he declared his attachment to the royal cause, and

promised his service upon certain conditions: he was sentenced to be cashiered, and rendered incapable of any future military command. This strange sentence was owing to a militia brigadier general, and others of a similar judgment who being members of the court, said “it was only an attempt to correspond;” and so the fellow escaped.

General *Washington* divided his army, leaving 4500 in the city of *New-York*, and posting 6,500 at *Hearlem*, and 12,000 at *Kingsbridge*.^[20] On the hills at, or in the neighborhood of these places forts had been erected, which the troops garrisoned.—The strongest was *Fort Washington*, nigh *Hearlem*, of difficult access, and overlooking the North-River, the passage of which it was meant to secure by the aid of *Fort Lee*, opposite to it on the Jersey side. When it became clear to the general, that the enemy meant to throw their whole army between part of his in *New-York* and its environs, and the remainder about *Kingsbridge*, he removed his quarters to col. *Roger Morris's*, ten miles from *New-York*, and not very distant from *Fort Washington*. The day before the committee of congress met lord *Howe*, five ships of war were sent up the East River; on which it was thought necessary to evacuate the city as fast as possible, and to remove the sick, the ordnance, stores and provisions. Colonel *Glover* was employed in this service; he began upon it about nine at night. By sun rise the next morning, his brigade had got safe over the Jerseys, the sick in and about the city amounting to 500. On the Saturday, he was ordered to have the tents struck, and the heavy baggage carried down the North-River to be transported up in boats, while the tents and light baggage were carried up in waggons. This was completed about nine at night, when an alarm took place; and he was ordered to march his brigade to *Haerlem* to join gen. *M'Dougall*, leaving the whole baggage of two regiments behind, which afterward fell into the enemy's hands. The next morning they marched to *Kingsbridge*. The poor lads had just unslung their packs, when up drives an express with an account that the enemy were landing: on which they marched back without any kind of refreshment, joined five other brigades, about 7000, and formed on *Haerlem* plains.

General *Howe*, having fully prepared for a descent on *New-York* Island, embarked a strong division of the army under the command of gen. *Clinton* and others, in boats at the head of *Newtown* inlet and at another place higher up, where they could not be observed by the Americans, who expected that the attack would be made on the side next to the East-River,

and had therefore thrown up works and lines to defend themselves. [Sept. 15.] About eleven o'clock, gen. *Howe's* troops landed, under cover of the five ships of war, in two divisions, between *Kep's-bay* and *Turtle-bay*, the Hessians in one place and the British in another. As soon as gen. *Washington* heard the firing of the men of war, he rode with all dispatch toward the lines; but to his great mortification, found the troops posted in them retreating with the utmost precipitation; and those ordered to support them, *Parsons* and *Fellow's* brigades, flying in every direction, and in the greatest confusion. His attempts to stop them were fruitless though he drew his sword and threatened to run them through, cocked and snapped his pistols. On the appearance of a small part of the enemy, not more than sixty or seventy, their disorder was increased, and they ran off without firing a single shot, and left the general in a hazardous situation, so that his attendants, to extricate him out of it, caught the bridle of his horse, and gave him a different direction. Three large ships were stationed in the *North-River*, opposite to those in the *East-River*; both of them kept up a constant cannonading with grape shot and langrage quite arcross the island. The Hessians upon their landing, seized and secured in a neighbouring building as enemies, some persons, who had been placed there to serve as guides, which for a while subjected them to difficulty.—When the British were completely landed, they marched on toward the *Kingsbridge* road. The American brigades, that had fled upon the enemy's approaching the lines, stopped not till met by col. *Glover's* and the five other bridges, who were hastening down to them. Upon the junction, the whole marched forward and took post on some heights, when all at once, about 8000 of he enemy as was thought, hove in sight on the next height and halted. Gen. *Washington* at first consented to his troops marching forward to give them battle; but on a second consideration, counter-ordered as he could not have any dependence on the militia and the flying camp, which composed half the number then present. When the Americans were withdrawn and no prospect of action remained, the British generals repaired to the house of Mr. *Robert Murray*, a gentleman of the quaker persuasion. The lady of the house being at home, entertained them most civilly, with what served for, or was *cakes* and *wine*. They were well pleased with the entertainment and tarried there near two hours or more; gov. *Tryon* seasoning the repast, at times, by joking Mrs. *Murray* about her American friends, for, she was known to be a steady advocate for the liberties of the country. Meanwhile, the Hessians and the

British, except a strong corps which marched down the road to take possessions of the city, remained upon their arms inactive; which gave gen. *Putnam* the opportunity of escaping with about 3500 men, including the guards, who had been left to shift for themselves, when colonel Glover had been ordered away from New-York. The general in order to escape any troops that might be advancing upon the direct road to the city, betook himself to that which lies along side the North-River, and marched to the end, where it turns off short to the right, and leads on to another and narrower, that goes to Blooming-dale. By this last road, he avoided every dangerous approach to the enemy, and retreated with safety. But nothing could have been easier than to have prevented his getting into it. A good body of troops with two field pieces, in about 20 minutes or less, could have taken such a position as would have necessarily cut off *Putnam's* retreat. Col. Grayson has repeatedly said speaking humorously, "Mrs. Murray saved the American army." On the day that gen. Howe's forces landed and the following one they made prisoners 354 privates and 17 officers.^[21] Many think the general was greatly mistaken in landing on the island instead of throwing his army around it above Kingsbridge, and thereby hemming in the whole body of the Americans at once. Such a manœuvre they view as having been within the compass of easy practice, considering what a naval and military apparatus he had at his service.

[Sept. 16.] On the Monday there was a tolerable skirmish between two battalions of light infantry and highlanders, and three companies of Hessian riflemen commanded by brigadier Leslie, and detachments from the American army under the command of lieut. col. Knolton, of Connecticut, and major Leich of Virginia. The col. received a mortal wound, and the major three balls through his body, but is likely to do well. Their parties behaved with great bravery, and being supplied with fresh troops, beat the enemy fairly from the field. The loss of the Americans except in col. Knolton, a most valuable and gallant officer was inconsiderable; that of the enemy between 80 and 100 wounded, and 15 or 20 killed. This little advantage inspired the Americans prodigiously. They found it required only resolution and good officers to make an enemy, they stood too much in dread of, give way.^[22] The men will fight if led on by good officers, and as certainly run away if commanded by scoundrels. Sunday was an instance of the last, and the next day a confirmation of the first assertion. On Sunday,

the officers, instead of heading and leading the men on to attack the enemy when landing, were the first to scamper off.

[Sept. 21.] A few day after the British had possessed themselves of New-York, a most terrible fire happened. A thousand houses, near one fourth of the city, were laid in ashes. Trinity church, the public charity school, the rector's house, and a Lutheran chapel were among the buildings which were consumed. The loss sustained in houses, &c. by the corporation of Trinity church, is thought, upon a moderate computation, to be more than £.15,600 sterling. The fire broke out at a dram-shop, close in with the water side, on Whitehall-slip, about one o'clock in the morning. The reports spread of its breaking out in several places at the same time, were erroneous. Every thing was very dry, and a brisk southerly wind blew. The flames soon caught the neighboring houses, spread, raged with inconceivable violence, and made all the subsequent havock. There were few citizens in town; and the fire engines and pumps were out of order. Two regiments went immediately to the place, and many boats full of men were sent from the fleet; to these, under Providence, it was owing that the whole city was not reduced to ashes. A gentleman^[23] who was at Bergen (opposite the spot where the fire first broke out) saw it soon after it began, observed its progress, and is persuaded that it was not purposely kindled, but was merely accidental,^[24] and the probable consequence of the sailors having been suffered to go on shore the day before to regale and frolic. The dryness of the materials, the brisk southerly wind, and the covering of the houses (shingles instead of slate or tiles) easily account for its spreading, without calling in the aid of incendiaries.

A brigadier writes concerning the animosity in the American army above noticed—"It has already risen to such a height, that the Pennsylvania and New-England troops would as soon fight each other as the enemy. Officers of all ranks are indiscriminately treated in a most contemptible manner, and whole colonies traduced and vilified as cheats, knaves, cowards, paltroons, hypocrites, and every term of reproach, for no other reason but because they are situated east of New-York. Every honor is paid to the merit of good men from the south; the merit, if such be possible, from the north, is not acknowledged; but if too apparent to be blasted with falshood, is carefully buried in oblivion. The cowardice or misbehavior of the south, is carefully covered over, the least misconduct in the gentlemen of the north, is published with large comments and aggravations."

Congress have at length adopted a new code for the government of the army. It was become absolutely necessary. “No laws can be too severe for the government of men who live by the sword, and who have this only reply for their ravages—*quis negat arma tenenti?*” This was the language of a gentleman whose concern in the army gave him the best opportunity of procuring certain information; and who said further to a member of congress—“Absolute tyranny is essential to the government of an army, and every man who carries arms, from the general officer to the private sentinel, must be content to be a temporary slave, if he would serve his country as a soldier. Almost every villanny and rascality that can disgrace the man, the soldier or the citizen, is daily practised without meeting the punishment they merit. So many of our officers want honor, and so many of our soldiers want virtue, civil, social, and military, that nothing but the severest punishments will keep both from practices which must ruin us. The infamous and cruel ravages, which have been made on the wretched distressed inhabitants of this unfortunate island (New-York) by many of our soldiers, must disgrace and expose our army to detestation. I have heard some tales of woe, occasioned by the robberies of our army, which would extort sighs from the hearts of tygers. Our men are at present only robbers; that they will soon be murderers unless some are hanged, I have little doubt.” The difficulty which the army has been under, from the want of almost every necessary, tents, campkettles, blankets and clothes of every kind, may have contributed toward the cause of these complaints. Unless the men can get supplied in a regular way, they will be inclined, notwithstanding the most positive general orders to the contrary, to help themselves, however irregularly; and when once they begin to trespass from necessity, they are tempted to proceed for convenience or pleasure.

[Sept. 24.] Nearly at the same time, an officer high in rank and much esteemed, communicated his thoughts in these words:—“We are now upon the eye of another dissolution of the army. Unless some speedy and effectual measures are adopted by congress, our cause will be lost. The few who act upon principles of disinterestedness are, comparatively speaking, no more than a drop in the ocean. As the war must be carried on systematically, you must establish your army upon a permanent footing, and give your officers good pay, that they may be, and support the character of gentlemen, and not be driven, by a scanty allowance, to the low and dirty arts, which many of them practise, to filch the public of more than the

difference of pay would amount to. The men must be engaged by a good bounty for the continuance of the war. To depend upon militia is assuredly resting on a broken staff. They cannot brook subordination. It would be cheaper to keep fifty or hundred thousand in constant pay, than depend upon half the number, and supply the other half occasionally by militia. If I was to declare upon oath, whether the militia have been most serviceable or hurtful, upon the whole, I should subscribe to the latter. No man who regards order, regularity and economy, or who has any regard for his own honor, character or peace of mind, will risk them upon militia.”—While the American cause is thus exposed, some gentlemen observe with pleasure of the enemy [Sept. 25.] that—“Though they are brave, and furnished with all matters, yet from some causes, they discover very little of the great or vast in their designs and executions.”

It is not strange that there is a number of bad officers in the continental service, when you consider that many were chosen by their own men, who elected them, not from a regard to merit or any love of discipline, but from the knowledge they had of their being ready to associate with them on the foot of equality. It was the case in divers instances, that when a company was forming, the men would choose those for officers who consented to throw their pay into a joint stock with the privates, from which captains, lieutenants ensigns, sergeants, corporals, with drummers and privates, drew equal shares. Can it then be wondered at, however mortifying it may prove, that a captain should be tried and broken for stealing his soldiers blankets, or that another officer should be found shaving his men in the face of distinguished characters! Time must and will clear the army or these despicable commission-bearers.

Too many of the regimental surgeons have made a practice of selling recommendations to furloughs and discharges at a less sum than a shilling a man. Only one of the number supposed to merit the same distinction, was drummed out of the army for such a scandalous conduct. Had all who deserved it, met the like reward, a good reform would have been made: that one is too pitiful a subject to have his name recorded. He charged each man six-pence sterling, and any one was welcome to a certificate for that sum. Several of the regimental surgeons had no professional abilities, had never seen an operation of surgery; were unlettered and ignorant to a degree scarcely to be imagined. Others were amazingly deficient in the article of professional apparatus. From one general return of fifteen regiments, it

appeared that for fifteen surgeons and as many mates, all the instruments (which were reported to be private property) amounted only to six sets of amputating—two of trepanning—fifteen cases of pocket instruments—seventy-five crooked and six straight needles—four incision knives for dilating wounds or other purposes—and three pair of forceps for extracting bullets.

Since the evacuation of New-York, the sick have suffered very much for want of necessaries, and have been in a miserable situation; but it appears to have been owing greatly to untoward circumstances, hurry, confusion, and actual want of the requisites for affording relief. The sick have amounted to many thousands, including what have been at different places; and many hundreds, if not some thousands, have been swept off by various diseases. Much censure has been cast upon Dr. Morgan, director-general of the hospital, for the sufferings which the sick have endured, more than is due, as apprehended. The army ought to have been early provided with medicines, instrumets and bandages, by a continental druggist or chosen committee, before the campaign began, instead of having them to procure afterward; and the militia which came late to the field, should have been provided by the different states, before they joined the army.

An unsuccessful attempt was made on the British out-post on Montresor-Island. A large party of Americans, in five flat-bottomed boats, under the command of colonel Jackson, went down Haerlem river to attack it, a little after four in the morning. They had two pieces of cannon with them; the post was guarded by about eighty men. The Brune frigate being at anchor near the island, fired at the boats in the dark, and sunk one of them. The colonel landed, and a skirmish ensued; but several of the officers and men behaved most scandalously; instead of supporting him they pushed off, so that he was obliged to retreat. He was himself wounded, and left two and twenty wounded behind. Major Thomas Henly, brother to the deputy adjutant-general, an intrepid officer, was killed.

General *Howe* had at length ripened his plan for cutting off gen. *Washington's* communication with the eastern states, and enclosing him on all sides in his fastnesses on the north end of New-York island; which ought to have been executed a month back, by a bold and unexpected removal of the troops from Long-Island in the first instance, to Rochelle or the neighborhood.

The greater part of the army, being embarked in flat boats and other small craft, passed through Hell-gate, a passage terrible in name, but no way dangerous at the proper time of tide; entered the Sound [Oct 12.] and landed early in the morning, on *Frog's-Neck*, in Westchester county, belonging to New-York, upon the side of Connecticut. Gen. Washington's army, fit for duty, present and on command at different posts, militia included, was about 19,000. Officers and men were in expectation of active service. The former were out frequently in reconnoitering parties; the latter were looking out for the arrival of gen. Lee, on his way to the camp. The Americans had no intention of quitting their ground upon the island and the neighborhood of Kingsbridge; but a number of regiments were sent forward to counteract the operations of the enemy. When the royal army was landed, the general's found they could not get upon the continent, by reason of the causeway's being broken down, and of works being erected to oppose them. Six days were spent here to little purpose, while a dozen other places were open, where the troops might have landed with scarce any or no opposition or difficulty attending them. On the last of these days the second division of foreign mercenaries arrived at New-York. The fleet consisted of seventy-two sail, having on board 4000 Hessians, 1000 Waldeckers, two companies of chasseurs or riflemen, 200 English recruits, and 2000 baggage horses. The horse transports were heavy sailing Dutchmen. They left St. Helen's the 28th of June, were obliged to put into Plymouth the 7th of July, and sailed from thence the 19th.

[Oct. 14.] General Lee arrived in the American camp two days after gen. Howe's landing. The troops were mightily elated with his presence, and felt themselves stronger by 1000 men upon the occasion; for they had great confidence in his abilities, and expected much from him, because of the success which had attended him at Charleston. The general found that there was a prevailing inclination among the chief officers for remaining on the island. He strongly urged the absolute necessity of removing toward East and Westchester. Gen. Washington called a council of war. [Oct. 16.] Lee asked what they meant by entertaining a thought of holding their position, while the enemy had the command of the water on each side of them, and were so strong both in their front and rear; and when there was a bridge before them, over which they must pass to escape being wholly enclosed. He soon convinced them how much they had been mistaken. All agreed that the bulk of the army should quit the island. He was also for withdrawing the

garrison from Fort Washington. Gen. Greene was otherwise minded, and argued, that the possessing of that post would divert a large body of the enemy, and keep them from joining the troops under general Howe. The latter had left earl Percy, with two brigades of British troops and one of Hessians, about 5000 men, in lines near Haerlem, to cover New-York from the insults of the garrison. Greene further urged the advantage it would be of in covering, with Fort Lee, the transportation of provision and other articles up the North-River, for the service of the American troops. He stated also, that the garrison could be brought off at any time by boats from the Jersey side of the river. It was concluded that the possession of Fort Washington and the lines annexed to it, should be continued; and more than 2000 men were assigned to this service.

General Howe, on the other hand, while at Frog's-Neck, received provisions, stores and a reinforcement [Oct. 18.] then re-embarked several corps, passed round Frog's-Neck, landed at the mouth of Hutchinson's river, and secured a passage for the main body, which crossed at the same place, advanced immediately, and lay that night upon their arms, with their right near Rochelle. On their march to this ground they were annoyed by a regiment or two of Americans and one of the rifle battalions, whom gen. Lee posted behind a wall, and secreted for that purpose. Their advanced party was repulsed twice; and the Americans did not leave the wall till the enemy advanced a third time, in solid columns, when they gave them several fires, and then retreated by gen. Lee's order. The British are thought to have lost a considerable number. The Americans had a few killed, and about sixty wounded. On the 21st the right and centre of the army moved two miles to the northward of Rochelle, on the road to the White Plains. Lieut. col. Rogers, with his corps of Rangers, was detached to possess Marrineck, where the carelessness of his sentries exposed him to surprise, by which he suffered. [Oct. 22.] Gen. Howe was joined by gen. Knyphausen, with the second division of Hessians and the regiment of Waldeckers.

General Washington, while moving the army from York island into the country, was careful to march and form the troops so as to make a front toward the enemy, from Eastchester almost to White Plains, on the east side of the highway, thereby to secure the march of those who were behind on their right, and to defend the removal of the sick, the cannon, stores, &c. Thus they made a line of small, detached and entrenched camps, occupying

every height and strong ground, from Valentine's Hill, about a mile from Kingsbridge on the right, to near the White Plains on the left. But the movement was attended with much difficulty, for want of waggons and artillery horses. The baggage and artillery were carried or drawn off by hand. When a part was forwarded, the other was fetched on. This was the general way of removing the camp equipage and other appendages of the army. The few teams which were at hand, were no ways equal to the service; and their deficiency could be made up only by the bodily labor of the men.

[Oct. 25.] The royal army moves in two columns, and takes a position with the *Brunx* in front; upon which the Americans quit their detached camps, and leaving a corps near Kingsbridge, assemble their main force at White Plains, behind entrenchments thrown up by the advanced corps. Every thing being prepared for bringing on an action, gen. Howe marches the troops early in the morning [Oct. 28.] in two columns toward the White Plains, the left being commanded by gen. Heister. All gen. Washington's advanced parties being drove back to their works before noon, the army forms with the right upon the road to Marrineck, about a mile distant from the American centre, and the left at the Brunx, about the same distance from the right flank of their intrenchments. Gen. M'Dougall, with about 1600 men possesses an advantageous hill separated from the right flank of the interenchments by the Brunx, which by its windings covers the general's troops from the left of the royal forces. Gen. Leslie, with the second brigade of British troops the Hessian grenadiers under col. Donop, and a battalion of the Hessian corps, are ordered to dislodge him. Previous to their attack col. Rall, commanding a brigade of the Hessians, on the left, passes the Brunx, and gains a post which enables him to annoy the flank of M'Dougall's corps, while engaged with the other forces in front. Four regiments of militia, upon the approach of about 250 light horse, run away and leave the general with 600 men; who defend the hill for about an hour, against the whole fire of twelve pieces artillery, and of the musketry and cavalry, with the loss of forty-seven men killed and seventy wounded.^[25] The gaining of this post take up some considerable time, which is prolonged by the Americans supporting a broken and scattered engagement in defence of the adjoining walls and enclosure. In the evening, the Hessian grenadiers are ordered forward within cannon shot of the intrenchments, the second brigade of the British forms in the rear, and the two Hessian brigades in the

left of the second. The right and centre do not quit the ground on which they have formed. In this position the whole royal army lie upon their arms during the night, expecting to attack the enemy's camp the next day. The next day [Oct. 19.] they advance to a hill, on which col. Glover commands, and where he has one brass twenty-four, a six, and a three pounder, and three iron twelve pounders. They form a line as far as he can see from right to left, and appear to be about 12,000. They approach in four columns, the cavalry and artillery in front, and continue doing it till within about three quarters of a mile of the hill, then file off to the left to take post on a hill to the colonel's right, which overlooks that he is posted on. They have to pass a valley. He reserves his fire till they get into it, in order to ascend the hill; he begins with the three pounder, next the six, reserving the brass twenty-four till the last. They are put into great confusion; however they ascend the hill with the light horse, and one piece of artillery, a three pounder, fire it four times and retreat.

Gen. Howe, observing that gen. Washington's lines were much strengthened by additional works, deferred all further attack till the arrival of more troops from those which had been left with lord Percy, to watch the garrison of Fort Washington. He had declined bringing on a general action, the preceding day, upon observing that gen. Washington had formed a second line;^[26] but the American discipline was so defective, that had the former attacked, the superior discipline of his troops would probably have obliged the first line to have given way, which by falling back upon the second, might have occasioned a total defeat. A general engagement was expected by the Americans; and the soldiers were very desirous of coming to blows with the enemy, and wished much to engage. During the engagement with gen. Leslie's corps, the American baggage was moving off in full sight of the enemy. The then position of the continental army, general Lee condemned as the most execrable. He was of opinion, that had the enemy attacked the centre, and brought on a general engagement, the Americans must have met with a total defeat, or have lost all there baggage, though they had now organized themselves, and had procured ox-teams and further conveniencies. On the other hand gen. Washington did not reinforce and support the right wing, for he meant that the enemy should attack the centre. The corps under general Leslie must have suffered very considerably, for from an authentic return of his own brigade, since found on the ground, it appears that the killed of it were a lieutenant colonel, 2

captains, a lieutenant, an ensign, a sergeant, and 22 privates; and that the wounded were 2 captains, 3 lieutenants, 12 sergeants, and 109 privates.^[27] The British made only 30 privates, and 4 officers and staff, prisoners at White Plains.^[28] But the Americans conjectured at first that they had suffered a much greater loss, not less than 400 in killed, wounded and missing. They were soon convinced of their mistake. A number of the militia who ran off at the sight of the light horse in the beginning and were missing for a while, were found afterward. The killed and wounded however, were probably more than given above, owing to the scattered engagements, distinct from that upon the hill. In the several skirmishes which have happened since the junction of Knyphausen, the Americans have taken a number of prisoners, Hessians, Waldeckers and a few British. The Germans were much afraid of being murdered as soon as they were caught, and were very agreeably disappointed on meeting with civility and kindness.

Gen. Howe, having been joined by the troops from Lord Percy, made dispositions for attacking the American lines early on the last of October; but an extreme wet night and morning prevented the execution at the time appointed, and it was not attempted afterward, though the day proved fair. Gen. Washington gained intelligence of his danger, by a deserter; drew off most of his troops at night, totally evacuated his camp early in the morning of November the first; and took higher ground toward the North-Castle district, leaving a strong rear guard on the heights and in the woods of White-Plains. An order was given by the British commander to attack this corps; but the execution of it was prevented by a violent rain. Col. Austin of the Massachusetts, who commanded the guards and sentries, being heated with liquor, burnt the town on White-Plains, unnecessarily and without any orders.

The British general, perceiving that Washington meant to avoid an engagement, and that the nature of the country would not admit of his being forced, made a sudden and unexpected removal [Nov. 5.] from the several posts he had taken in the front of the Americans, and advanced toward Kingsbridge and the North-River. Gen. Knyphausen had been sent off before, and encamped on the 2d near the bridge on New-York Island, the Americans who were in the neighbouring heights having quitted the same, and retired to Fort Washington.

An acceptable break here offers for amusing you with an anecdote or two. Gen. Lee, while at White-Plains, lodged in a small house close in with the road, by which gen. Washington had to pass when out on reconnoitring. Returning with his officers they called in and took a dinner. They were no sooner gone, than Lee told his aids, “You must look me out another place, for I shall have Washington and all his puppies continually calling upon me, and they will eat me up.” The next day Lee seeing Washington out upon the like business, and supposing that he should have another visit, ordered his servant to write with chalk upon the door—No *victuals dressed here to-day*. When the company approached and saw the writing, they pushed off with much good humor for their own table, without resenting the habitual oddity of the man.

It happened, that a garden of a widow woman, which lay between the two camps, was robbed at night. Her son a mere boy, and little of his age, asked leave for finding out and securing the pilferer, in case he should return; which being granted, he concealed himself with a gun among the weeds. A British grenadier, a strapping highlander, came and filled his large bag; when he had it on his shoulder, the boy left his covert, came softly behind him, cocked his gun, and called out to the fellow, “You are my prisoner; if you attempt to throw your bag down I will shoot you dead: go forward in that road.” The boy kept close to him, threatened, and was always prepared to execute his threatening. Thus the boy drove him into the American camp, where he was secured. When the grenadier was at liberty to throw down his bag, and saw who had made him prisoner, he was most horribly mortified, and exclaimed—“A British grenadier made prisoner by such a d——d brat—by such a d——d brat.” The American officers were highly entertained with the adventure, made a collection for the boy, and gave him some pounds. He returned fully satisfied with the losses his mother had sustained. The soldier had side arms, but they were of no use, as he could not get rid of his bag^[29].

[Nov. 8.] Gen. Washington wrote to gen. Greene at Fort Lee, “Sir, the late passage of the three vessels up the North-River, (which we have just received advice of) is so plain a proof of the inefficacy of all the obstructions we have thrown into it, that I cannot but think it will fully justify a change in the disposition which has been made. If we cannot prevent vessels passing up, and the enemy are possessed of the surrounding country, what valuable purpose can it answer, to attempt to hold a post from

which the expected benefit cannot be had? I am therefore inclined to think it will not be prudent to hazard the men and stores at Mount Washington; but as you are on the spot, leave it to you to give such orders as to evacuating Mount Washington, as you judge best, and so far revoking the order given to col. Magaw to defend it to the last. The best accounts from the enemy assure us of a considerable movement among their boats the last evening; and so far as can be collected from the various sources of intelligence, they must design a penetration into Jersey, and fall down upon your post. You will therefore immediately have all the stores, &c. removed, (from your post) which you do not deem necessary, for your defence; and as the enemy have drawn great relief, from the forage and provision they have found in the country, and which our tenderness spared, you will do well to prevent their receiving any fresh supplies there, by destroying it, if the inhabitants will not drive off their stock, and remove the hay, grain, &c. in time. Experience has shown that a contrary conduct is not of the least advantage to the poor inhabitants, from whom all their effects of every kind, are taken without distinction, and without the least satisfaction. Troops are filing off from hence as fast as our circumstances and situation will admit, in order to be transported over the river with all expedition.”

The next day general Greene answered—“Sir, upon the whole I cannot help thinking the garrison (at Fort Washington) is of advantage; and I cannot conceive it to be in any great danger; the men can be brought off at any time, but the stores may not be so easily removed; yet I think they can be got off in spite of the enemy, if matters grow desperate. This post is of no importance only in conjunction with Mount Washington. I was ever there the last evening, and the enemy seem to be disposing matters to besiege the place; but colonel Magaw thinks it will take them till December expires before they can carry it. If the enemy do not find it an object of importance, they will not trouble themselves about it; if they do, it is a full proof they feel an injury from our possessing it. Our giving it up will open a free communication with the country, by way of Kingsbridge, that must be a great advantage to them and injury to us.”

[Nov. 12.] Within a few days gen. Washington crossed the North-River with a part of his army, and stationed himself in the neighborhood of Fort Lee. The troops left at Northcastle, under general Lee [Nov. 14.] were 7500 strong, including the 3000 militia of general Lincoln’s division (whose time of service ended on the 17th) and 1700 of general Fellows’s brigade (whose

service ended on the 1st of December.) As the dissolution of the army was approaching apace with the end of the year, gen. Washington applied to the Massachusetts for 4000 men, militia. [Nov. 16.] Gen. Lee addressed the old, under Lincoln, and conjured the officers and soldiers, as they regarded the sacred cause in which they were engaged, to continue in their present posts a few days longer, till Thursday at the most, assuring them it was of the last importance. But they were not to be prevailed upon, though their own commander urged a compliance to the utmost of his power. All except general Lincoln and about 150 privates, went off the next day. Mean while the royal army approached Fort Washington, and on the 15th general Howe summoned the commanding officer to surrender, who answered, that he would defend himself to the last extremity. General Washington received an account of the summons at Hackinsack, immediately repaired to Fort Lee, and had partly crossed the North-River, when he met generals Putnam and Greene, who were just returning from thence, and informed him that the troops were in high spirits, and would make a good defence; it being late at night, he returned. Now was the moment for withdrawing the garrison, and one would think, that as the attack was fixed for the next day, gen. Howe designed by the summons, that it should be taken on the approaching night, and wished by that mean to save the men that he would otherwise lose. But defence had been concluded upon.

[Nov. 16.] The royal army therefore make four attacks upon the fort the next morning; while they are advancing, generals Washington, Putnam and Greene, and col. Knox, with their aids, having crossed the river, are making up to it. Some one or other perceiving the danger of their being soon shut in, urges their returning instantly. The commander in chief is hardly persuaded, and complies with reluctance; but the company insist upon it, and prevail. The first attack, on the north side, is conducted by gen. Knyphausen, at the head of two columns of Hessians and Waldeckers. The second, on the east side, is led on by gen. Matthew, at the head of the first and second battalions of light infantry, and two battalions of guards, supported by lord Cornwallis with a body of grenadiers and the thirty-third regiment. These forces advance by the East-River, and land out of flat boats, by Haerlem Creek, upon the enemy's right. The third attack, intended chiefly as a feint, is conducted by lieut. col. Sterling, with the forty-second regiment. The last attack is made by lord Percy, with the corps he

commands on the south of the island. All the attacks are supported with a numerous, powerful and well served artillery.

The Hessians under gen. Knyphausen, have a thick wood to pass, where col. Rawling's regiment of riflemen are posted; a warm engagement commences, and is continued for a considerable time, in which the former are much exposed, and lose in killed and wounded, near upon 800 men by that single regiment. Mean while the light-infantry land; and are exposed, as before landing, to a very brisk and continual fire from the enemy, who are covered by the rocks and trees among which they are posted. The former, however, extricate themselves by clambering up a very steep and rough mountain, when they soon disperse the enemy, and make way for the landing of the rest of the troops without opposition. Lord Percy having carried an advanced work on his side, col. Sterling is ordered to attempt a landing with the forty-second regiment, upon the left of the enemy's lines toward New-York; and two battalions of the second brigade are directed to support him. He advances his boats through a heavy fire, and forcing his way up a steep height, gains the summit, and takes 170 prisoners, and then penetrates across the island. The detachment from the flying camp of the Americans, having given way and quitted their station, without making a firm stand, col. Magaw leaves the lines, and throws himself into the fort, lest the royal army should get possession of it before him. Col. Rall, who leads the right column of gen. Knyphausen's attack, having forced the enemy in the mean time, pushes forward to their advanced works, and lodges his column within a hundred yards of the fort. This done, he summons them to surrender; and upon gen. Knyphausen's appearing, it is agreed that the troops be considered as prisoners of war, and that the officers should keep their baggage and side arms.

The number of prisoners, including officers, amounted to 2700, beside those taken by the forty-second regiment. Gen. Greene wished to have been entrusted with the defence of the fort on the day of attack, as did some other generals. He blames colonel Magaw for suffering the troops to crowd into the fort, upon their quitting the lines, instead of ordering them to the brow of the hill facing the north, where the Hessians attacked; and is of opinion, that if they had been placed there, the royal army might have been kept off till night, when the troops might have been removed. But the capital mistake was their not being removed the preceding night.

While the attack was carrying on, a captain Gooch boldly ventured to cross over from Fort Lee, with a letter from general Washington to colonel Magaw, acquainting him, that if he could hold out till night, the garrison should be taken off. He delivered the letter, pushed through the fire of the enemy, preferring that danger to being made a prisoner, and escaped unhurt. General Washington could view several parts of the attack; and when he saw his men bayoneted, and in that way killed, while begging quarter, he cried with the tenderness of a child, and exclaimed at the barbarity that was practised. His heart has not been yet steeled by plunging into acts of cruelty. When general Lee read the letter sent by express, giving an account of Fort Washington's being taken, resentment and vexation led him, unfeeling as he was in common, to weep plentifully. He wrote on the 19th to the commander in chief, "O! general, why would you be over-persuaded by men or inferior judgment to your own? It was a cursed affair." He had exclaimed before, upon hearing that the defence of it was to be risked, "Then we are undone."

From that moment it was apparent, that the British ships could safely pass up and down the North-River, in defiance of all the obstructions thrown in the channel, and of the forts Washington and Lee, the American commander concluded that these were no longer eligible, and that Fort Washington ought to be evacuated while it could be done; which occasioned his letter of the 8th. When he came to Fort Lee, soon after crossing the North-River, he found no measures had been taken toward such evacuation, in consequence of that letter. General Greene, of whose judgment he entertained a good opinion, decidedly opposed it; other opinions coincided with Greene's; it was thought politic to waste the campaign without coming to a general action on the one hand, and without suffering the enemy to over-run the country on the other; every impediment which stood in their way, was judged a mean to answer these purposes, and when thrown into the scale with those opinions which were opposed to evacuation, caused that warfare in the mind of the commander in chief, and that hesitation which have ended in the loss of the garrison. The advisability of attempting to hold the post, being repugnant to his own judgment, the event which has happened fills him with the greater regret. But he will exhibit an instance of generosity and magnanimity, by submitting silently to all the censure that may be cast upon him, sooner than injure the character of those whose advice has ensnared him.

It is imagined on good grounds, that the royal army lost in the attack full 1200 men in killed and wounded. The next object that engaged their attention was Fort Lee, situated upon a neck of land about ten miles long, running up the North-River on the one side, and on the other bounded by the Hackinsack and the English Neighborhood, a branch of it, neither of which are fordable near the fort. The neck joins the main land almost opposite to the communication between the North and East-Rivers at Kingsbridge. On the 18th November, in the morning, lord Cornwallis, by means of boats which entered the North-River through this communication, landed near Closter, only a mile and a half from the English Neighborhood. His force consisted of the first and second battalions of light infantry, two companies of chasseurs, two battalions of British, and two ditto of Hessian grenadiers, two battalions of guards, and the thirty-third and forty-second regiments. The account of this movement was brought to gen. Greene while in bed. Without waiting for gen. Washington's orders, he directed the troops to march immediately, and secure their retreat by possessing themselves of the English Neighborhood; he sent off at the same time, information to gen. Washington at Hackinsack town. Having gained the ground, and drawn up the troops in face of the enemy, he left them under the command of gen. Washington; and returned to pick up the stragglers and others, whom to the amount of about 300, he conveyed over the Hackinsack to a place of safety. By this decided movement of gen. Greene's 3000 Americans escaped; the capture of whom at this period, must have proved ruinous. Lord Cornwallis's intent was evidently to form a line across from the place of landing to Hackinsack bridge, and thereby to hem in the whole garrison between the North and Hackinsack rivers; but gen. Greene was too alert for him.—His lordship had but a mile and a half to march, whereas it was four miles from Fort Lee to the road, approaching the head of the English neighbourhood, where the other amused his lordship till gen. Washington arrived, and by a well concerted retreat, secured the bridge over the Hackinsack. But though the men were saved, some hundred barrels of flower, most of the cannon, and a considerable part of their tents and baggage, were taken: beside the trifling number of ninety-nine privates, and six officers and staff.

[Nov. 22.] General Washington retreated to Newark, where his whole force consisted of no more than 3500 men. He considered the cause as in the greatest danger; and said to col. Reed, "Should we retreat to the back

parts of Pennsylvania, will the Pennsylvanians support us?" The colonel answered, "If the lower counties are subdued, and give up, the back counties will do the same." The general passed his hand over his throat, and said, "My neck does not feel as though it was made for a halter. We must retire to Augusta county in Virginia. Numbers will be obliged to repair to us for safety; and we must try what we can do in carrying on a predatory war: and if overpowered we must cross the Allegany mountains." The general, after tarrying near a week without being molested, obtained information of lord Cornwallis's being in pursuit of him; he therefore marched for Brunswick, [Nov. 28.] leaving Newark the very morning that his lordship entered it. As his lordship's van advanced to Brunswick, by a forced march on the first of December, gen. Washington retreated to Princeton, having first delayed its passing the Rariton by breaking down a part of Brunswick bridge, and so secured his troops from being harrassed. Lord Cornwallis, having orders not to advance beyond Brunswick, discontinued his pursuit; but sent an express to gen. Howe at New-York, acquainting him, that by continuing it briskly he could entirely disperse the army under gen. Washington, and seize his heavy baggage, and artillery, before he could pass the Delaware. Gen. Howe returned for answer, that he would be with him in person immediately,^[30] but did not join him till the sixth. General Washington hoped to have made a stand at Brunswick, but was disappointed in his expectation of the militia; on the day he quitted it, the service of the Jersey and Maryland brigades expired, and neither of them would stay an hour longer; he wrote thefore to general Lee, "hasten your march as much as possible, or your arrival may be too late." On the 7th, lord Cornwallis's corps marched to Princeton, which the Americans quitted the same day. The next day the corps marched in two divisions; the first advanced to Trenton, and reached the Delaware, just as the rear guard of general Washington's army, under colonel Henly, gained the opposite shore, about twelve o'clock at night.

Lord Cornwallis, who halted with the rear division within six miles of Trenton, intended crossing a body very early the next morning, near two miles below Corriel's ferry; and got the troops in readiness, and the artillery prepared to cover the landing; for at that place it was only eight and twenty rod to a spit of sand on the Pennsylvania side, on which a sufficient number were to have landed, and then to have marched up to Corriel's ferry, and to have taken the boats that had been collected there by the Americans, and

left under a guard of only about ten men; with them it was meant to carry over the main body. In the vicinity of this place, a large sunken Durham boat (which came down three days before, laden with flour, and which could carry 100 men) lay concealed under a bank. This had been discovered and taken away by Mr. Mersereau, so that the British were disappointed in their expectation of finding it. They hailed one Thomson, a quaker, who lived on the other side of the Delaware, and enquired what was become of the boat, and were answered it was carried off. They continued reconnoitring up and down the river till ten o'clock, but finding no boats, returned to Pennytown. Men had been employed in time for taking off all the boats from the Jersey side of the Delaware; but Mr. Mersereau's attention would not admit of his confiding wholly in their care and prudence. He therefore went up the river to examine whether all the boats were really carried off or destroyed; upon discovering the above sunken one, which had escaped the observation of the men, and enquiring of a person in the neighborhood concerning her, he was told that she was an old one, and good for nothing; but not relying upon the information, he found her to be new, had the water baled out, and sent her off.^[31] The importance of this affair to the Americans, prevents the relation of it from being trifling. Had lord Cornwallis crossed into Pennsylvania as he proposed, the consequence would probably have been fatal to the Americans. Gen. Washington when he crossed, had about 2200 men; but the time of their service expiring, they left him in such a manner, that the second day after crossing he had but seventeen hundred.

The militia of Jersey had timely notice given them; and had they stepped forth in season, might have enabled gen. Washington to have prevented lord Cornwallis crossing the Hackinsack; but either disaffection, or the want of exertion in the principal gentlemen of the country (through depression of spirit at the threatening appearances that existed) or a fatal supineness and insensibility of danger, increased the actual evil, and made it absolutely necessary for gen. Washington to quit the Jerseys, and seek security on the other side of the Delaware. To whatever cause it was owing, the inhabitants, almost to a man, refused to turn out, so that he could not at any time bring more of them together than 1000 men, and even on these very little dependence was to be put. The proclamation issued the 30th of November, by lord Howe and gen. Howe, as the king's commissioners, added to gen. Washington's difficulties. In that, they commanded all persons assembled in

arms against his majesty's government, to disband and return to their dwellings; and all general or provincial congresses, &c. to desist from all their treasonable actings, and to relinquish all their usurped power. They declared that every person who, within sixty days, should appear before the governor, lieutenant-governor, or commander in chief of any of his majesties colonies, or before the general or commanding officer of his majesty's forces, &c. and claim the benefit of the proclamation, and testify his obedience to the laws by subscribing a certain declaration, should obtain a full and free pardon of all treasons, &c. by him committed, and of all forfeitures and penalties for the same. Numbers who had been provincial congress-men, committee-men, justices and the like, though out of the way of immediate danger, ran to take the advantage of the proclamation. Many of the whigs shifted about. Only a few of fortune stood firm to the cause. It was the middle rank of people in general that remained steadfast in the day of trial. The success of the royal army extended its influence also to Pennsylvania. Mr. Galloway, the family of the Allens, with some others, repaired to the commissioners to claim the benefits of the general pardon.

General Lee, with more than 3000 men, though repeated expresses were sent to him, continued in the rear of the royal forces, marching so slowly that Washington could not account for it. It at length proved fatal to his personal liberty. While he lay carelessly and without a guard at Baskinridge, some way distant from the main body, he was made prisoner. The circumstances of his situation were communicated to col. Harcourt, commanding the light horse, and who had then made a desultory excursion at the head of a small detachment, to observe the motions of that body. [Dec. 13.] The colonel conducted with such address and activity as to captivate and carry off the general. The capture was considered by the British officers as a matter of the greatest consequence. Their words were, "We have taken the American palladium;" such was the opinion they had of the general deficiency of military skill among the Americans, and the inexperience of their officers. The command of the troops, after Lee's capture, fell to gen. Sullivan, who soon after crossed the Delaware and joined gen. Washington. The general needed this reinforcement, notwithstanding his having been joined by the Philadelphia militia. He had sent gen. Mifflin to Philadelphia, while retreating before lord Cornwallis, and on the 27th of November, there was a large and general town-meeting, when the intelligence of the probability of gen. Howe's invading the state

was communicated, as also the request of congress that the militia of the cities and counties might march to the Jerseys. Gen. Mifflin, who was detained by congress for the purpose, enforced it by a spirited, animating and affectionate address to his fellow-citizens; who expressed their approbation of the measure proposed, and soon marched forward some hundreds of militia to join the commander in chief. After that, gen. Mifflin left Philadelphia by the direction of congress, who knew of what importance his influence was, and repaired to the back counties, where his exertions were equally successful, so that they poured in their yeomanry in support of the common cause.

[Dec. 14.] The royal forces lay much scattered in the Jerseys, and to all appearance in a state of security. Gen. Washington wished to strike them; sensible that a lucky blow in that quarter would be fatal to them, and most certainly raise the spirits of the people, which were quite sunk by the late misfortunes; but prudence would not admit of it. The Pennsylvania militia were ordered to Bristol, and the remainder of the troops were cantoned along the Delaware, so as to oppose any attempts of the royalists to cross it.

Should it be true, as reported, that the American general once wept while he fled through the Jerseys, that will not prove the want of personal fortitude. He is neither less nor more than man. Agitation of mind, occasioned by the threatening state of public liberty, and a reflection on the horrid calamities that would follow the loss of it, to the present and future generations, might produce that event, without any mixture of private concern for his own safety.

During the royal successes in the Jerseys, gen. Clinton, with two brigades of British and two of Hessian troops, with a squadron of men of war under Sir Peter Parker, was sent to attempt Rhode-Island. The American forces, being incapable of making effectual resistance, abandoned it on his approach; so that, on the day when gen. Washington crossed the Delaware, the British took possession of it without any loss, and at the same time blocked up commodore Hopkins's squadron and a number of privateers at Providence.

Let me now offer you a summary account of the captures made by gen. Howe and the forces under his command, during the campaign, down to the total evacuation of the Jerseys. Of privates there have been made prisoners, 4101—of officers 304—and of staff 25—in all 4430. The catalogue of

ordnance and military stores stands thus—Brass ordnance, 1 thirteen inch mortar—1 ten ditto—4 five and a half inch howitzers—5 six pounders—1 three ditto. Iron ordnance—2 thirteen inch mortars—1 ten ditto—1 eight ditto—30 thirty-two pounders—6 twenty-four ditto—8 eighteen ditto—24 twelve ditto—26 nine ditto—40 six ditto—55 four ditto—16 three ditto—26 dismantled. Brass ordnance 12. Iron ditto 235. Shells empty, 210 thirteen inch—1255 ten ditto—1535 eight ditto—1908 five and a half ditto—19,071 four and two-fifths ditto—total 23,979. Shells filled, with fusees drove, 5 thirteen inch—12 ten ditto—30 eight ditto—53 five and a half ditto—35 four and two-fifths ditto—total 145. Shot—2052 thirty-two pounders—9300 twenty-four ditto—548 eighteen ditto—3979 twelve ditto—332 six ditto—911 three ditto—total 17,122. Double-headed shot of all sorts, 2684—grape quilted, 140 thirty-two and twelve pounders, besides 42 boxes—case of all sorts 813, with powder 44—muskets of all sorts 2800—cartridges 400,000—barrels of powder 16—iron frize of four hundred weight each, intended to stop the navigation of the North-River 200—bar iron 20 tons—rod 5—entrenching tools of all sorts 500—sets of armourers tools 6—breast-plates for engineers armour 35—waggons covered 4—hand-barrows 200—1 gwyn complete—2 sling carts—iron crows 6—mantelets 52—chevaux-de-frize complete 81—besides 4000 barrels of flour at forts Washington and Lee—baggage, tents, long pikes, ammunition carts, and a large quantity of other stores of various kinds. These losses to the Americans are very considerable; but to the British are of small advantage. The civil affairs of New-York may now engage our notice. On the 16th of October, the inhabitants of the city and island presented a petition to lord Howe and gen. Howe, signed by David Horsemanden, Oliver Delancy, and 946 others, declaring their allegiance, and their acknowledgment of the *constitutional*, but not absolute *supremacy* of Great-Britain over the colonies, and praying that the city and county may be restored to his majesty's peace and protection. This petition was followed by another to the same purpose, from the freeholders and inhabitants of Queen's county, on Long-Island. It is observed of these petitions, that they are guardedly expressed, all mention of parliament being omitted, and the great, question of unconditional submission left totally at large. Let it be remarked, that though the inhabitants of York island and Queen's county, have given every testimony of their loyalty, their petitions have not been attended to, nor they

restored to the rights expected in consequence of the declarations, as well as of the law for the appointment of commissioners.

Let us pass to the southern states; and from thence travel northward, gathering up as we return, all the intelligence that offers.

In the month of July an invasion of East-Florida was projected, with the double view of securing Georgia and South-Carolina from the depredations of their more southern neighbors, and of drawing the attention of the British from their northern conquests. General Lee was entrusted with this business soon after the repulse of the British under Sir Peter Parker. After the troops had proceeded as far as Ogeechee, in Georgia, the general received orders to join the northern army, on which the expedition was given up.

While the general was at Savannah, he wrote a letter, on the 28th of August, to the French minister, which was committed to *Sieur de la Plaine*. In that letter he held up these ideas—That it was the exclusive commerce of the colonies which empowered Great-Britain to cope with France—gave to her a decided superiority in the marine department, and of course enabled her, in the frequent wars between the two nations, to reduce her rival to the last extremity—that if France can obtain the monopoly, or the greatest part of this commerce, her opulence, strength and prosperity, must grow to a prodigious height, and that if America is enabled to preserve the independence she has now declared, the greatest part of this commerce must fall to the share of France—that without the colour of injustice, but on the contrary, only assuming the patronage of the rights of mankind, France has it now in her power to become not only the greatest, but the most glorious monarchy which has appeared on the stage of the world—her possessions in the islands will be secured against all possibility of attack—the royal revenues immensely increased—her people eased of her present burdens—an eternal incitement be presented to their industry—and the means of increase, by the facility of providing sustenance for their families, multiplied—in short, there is no saying what degree of eminence, happiness and glory, she may derive from the independence of this continent—that some visionary writers have asserted, that could this country once shake off her European trammels, it would soon become more formidable alone, from the virtue and energy natural to a young people, than Great-Britain can be with her colonies united in a state of dependency—but the men who have built such hypotheses must be utter strangers to the manners, genius,

disposition, turn of mind, and circumstances of the continent. As long as vast tracts of land remain unoccupied, to which they can send colonies (if I may so express it) of their offspring, they will never entertain a thought of marine or manufactures—their ideas are solely confined to labor, and to plant for those nations who can, on the cheapest terms, furnish them with the necessary utensils for laboring and planting, and clothes for their families; and till the whole vast extent of continent is fully stocked with people, they will never entertain another idea—that this cannot be effected for ages, and what may then happen is out of the line of politicians to lay any stress upon; most probably they will be employed in wars among themselves before they aim at foreign conquests—that it is worthy of attention, what will be the consequence should Great-Britain succeed in the present contest—America will be wretched and enslaved—but a number of slaves may compose a formidable army and fleet, and the proximity of situation, with so great a force entirely at the disposal of Great-Britain, will put it into her power to take possession of the French islands on the first rupture—that it is for the interest, as well as the glory of France, to furnish the Americans with every mean of supporting their liberties, to effect which they only demand a constant, systematic supply of the necessaries of war, small arms, powder, field-pieces, woollens and linens to clothe their troops, with drugs, particularly bark, in return for which every necessary provision for the French islands may be expected, as corn, rice, lumber, &c. If indeed the French could spare a few able engineers and artillery officers, they may depend upon an honorable reception and comfortable establishment.

The Carolinians have been engaged in a successful war with the Cherokees, for the origin of which we must go back to the year 1775. John Stuart, esq. an officer of the crown, and wholly devoted to the royal interest, had for years the exclusive management of both them and the Creeks. When the appearance of a rupture between Great-Britain and the colonies took place, he conceived himself under obligations to attach the Indians to the royal interest. The state of public affairs in the colonies, furnished him with many arguments subservient to this design. It was easy for him to persuade them that the colonists had, unprovoked by Britain, adopted measures which prevented the Indians from receiving their yearly supply of arms, ammunition, and clothing. He might also insinuate, that if the colonists succeeded in opposing Britain, they would probably aim next at the extirpation of the Indians. A plan was at length settled by Mr. Stuart, in

concert with the king's governors and other royal servants, to land a British army in Florida, and to proceed with it to the western frontiers of the southern colonies, and there, in conjunction with the Tories and Indians, to fall on the friends of Congress at the same time that a fleet and army should invade them on the coast. Mr. Moses Kirkland, who has already been mentioned, was confidentially employed by Mr. Stuart, Governor Tonyn and other royalists to the southward, to concert with Gen. Gage the necessary means for accomplishing the above plan. The whole was fully detected by the providential capture of the vessel which was conveying Kirkland to Boston toward the close of 1775. The publication of the letters found in his possession, produced conviction in the minds of the Americans, that the British administration meant to employ the Indians for the effecting of their schemes. The discovery of the ministerial designs, made it necessary for Congress to attend to such measures as might effectually counteract the influence of Mr. Stuart. A meeting of their Indian commissioners with the Cherokees, was appointed at Fort Charlotte, in South-Carolina, and took place on the 22d of April, when about 630 were present. The Cherokees complained heavily of sundry encroachments made on them by the white people, which gave them the greatest uneasiness. When the commissioners came to make their presents, the Indians were displeased at the small quantity of goods and ammunition delivered to them. The commissioners pleaded, that they did not expect to meet with so great a number; and promised, that if the presents were received, they would try and purchase a few more and send them. The Cherokees were not satisfied with the proposal. The commissioners, without goods, were little more than cyphers. Talks alone, if ever so flattering, do not answer. Foreign manufactures were to the Indians indispensably requisite; and it was not to be thought that they could prefer American friendship, naked and hungry, to British, attended with all the necessaries and comforts of life. The British had carried great quantities of goods even to their towns. On the 27th, the Congress commissioners met at Augusta, in Georgia, in expectation of the Creeks, who did not attend till the 16th of May, and then amounted to about 350, when a few presents were given them. They were either satisfied, or stifled their resentments, from political principles, so as to decline hostilities. But the Cherokees being disgusted, and abandoned to the full operation of the royal superintendant's influence, began their massacres at the very time Sir Peter Parker attacked the fort on Sullivan's-Island. The speedy departure of

the fleet from the sea-coast, after his unsuccessful attack, gave an opportunity for uniting the whole force of South-Carolina against the invaders of the country. Though the British plan of a co-operation with the tories and Indians was for the present frustrated; yet the probability that it would be again resumed, determined the popular leaders to make a vigorous expedition into the country of the Cherokees. A joint attack on their settlements over the mountains was agreed upon by the southern states. Col. Williamson of the district of Ninety-Six, was chosen by the government of South-Carolina to command their forces on this occasion. The sixth regular regiment, part of the third, and a large body of militia, were appointed to serve under him. About the same time, and on the same business, gen. Rutherford, with upward of 1900 men from North-Carolina, crosses the Apalachian mountains. In their passage through the Indian country, the forces under col. Williamson were two or three times briskly attacked, but finally repulsed the Indians. The Americans upon this occasion traversed their whole country, and laid waste their corn fields. Above 500 of the Cherokees were obliged for want of provisions, to take refuge with Mr. John Stuart, in West-Florida, where they were fed at the expence of the British government. The Indian settlements to the northward were at the same time invaded by a party of Virginia militia, commanded by col. Christee, and to the southward by the Georgia militia under colonel Jack. Dismal was the wilderness through which the Americans had to penetrate. Many were the dangers they were exposed to from dark thickets, and rugged paths. They were frequently obliged to pass through narrow defiles, in which small parties might harass the bravest and most numerous army. They had to cross rivers, fordable only at one place, and overlooked by high banks, from whence an enemy might attack with advantage, and retreat with safety. They could have no accommodations, but a few plain necessities carried on pack-horses. They, for the most part, slept in open air, and experienced all the inconveniences of a savage life.

None of all the expeditions before undertaken against the Indians had been so successful as this first effort of the new-born commonwealth. In less than three months, viz. from the 15th of July to the 11th of October, the business was completed, and the nation of the Cherokees so far subdued, as to be incapable of annoying the settlements. The whole loss of the Americans did not exceed fifty men.

The means adopted by the British to crush the friends of congress, have been providentially over-ruled, so as to produce the contrary effect. Their exciting Indians to massacre the defenceless frontier settlers, promoted the unanimity of the inhabitants, and invigorated their opposition to Great-Britain. Several who called themselves tories in 1775, have become active whigs, and cheerfully taken up arms in the first instance against Indians, and in the second against Great-Britain, as the instigator of their barbarous devastations. Before this event, some well-meaning people could not see the justice of contending with their formerly protecting parent state; but Indian cruelties, excited by ministerial artifices, soon extinguished all their predilection for the country of their forefathers^[32].

The delegates of *Maryland*, assembled in full convention the 14th of August, have agreed upon the constitution and form of government for that state; to which they have prefixed a declaration of rights. The convention of the *Delaware* state, formerly stiled “The government of the counties of Newcastle, Kent and Sussex upon Delaware,” after a declaration of rights resolved upon their constitution in September. When the deputations, from the committees of the several counties, met in Philadelphia, they agreed upon the number the general convention should consist of, the time they should meet, and the manner in which they should be elected. No person was excluded from voting: many however, as must have been expected, chose to exclude themselves, as they would not appear by voting to countenance the establishment of a new mode of government. The convention met the 15th of July, and continued by adjournments to the 28th of September, during which period the constitution was settled by a declaration of rights and a frame of government.

Great numbers in Pennsylvania are not satisfied with their constitution, apprehending that it possesses too great a proportion of democracy; and that the state is not sufficiently guarded against either the evils which may result from the prevalency of a democratic party, or the dangerous influence of demagogues. Mr. Samuel Adams has been thought, or known to have concerned himself so unduly in the business, as to have provoked some drop distant hints of an assassination. While the constitution was forming, a motion was made to add a second assembly to the legislative body, under the name of a senate or council. It was urged by several members, some for the affirmative, and some for the negative. Before the question was put, the opinion of the president, Dr. Franklin, was requested. He rose and said, that

“Two assemblies appeared to him like a practice he had somewhere seen, of certain waggoners, who, when about descending a steep hill, with a heavy load, if they had four cattle, took off one pair from before, and chaining them to the hinder part of the waggon, drove them up hill; while the pair before, and the weight of the load, overbalancing the strength of those behind, drew them slowly and moderately down the hill.” The simile drew the generality of the convention into an opinion, that the doctor was for a single assembly, and it wrought accordingly. Some imagine however, that the answer was designedly that of a Delphic oracle, to be taken either way, as inclination might dictate the interpretation. “The real force of the simile was certainly misunderstood; if there is any similitude or any argument in it, it is clearly in favor of two assemblies. The weight of the load itself would roll the waggon on the oxen, and the cattle on one another, in one scene of destruction, if the forces were not divided and a balance formed; whereas by checking one power by another (as was the wish of those who were for a second assembly) all descend the hill in safety, and avoid the danger.”^[33]

We cannot quit Philadelphia without making mention of the acts of congress. It has been resolved to confiscate the property of the subjects of Great-Britain, taken on the high seas, or between high and low water mark, but the inhabitants of the Bermudas, and Providence or Bahama Islands are excepted. General Washington has been empowered to agree to the exchange of governor Skeen for Mr. Lovell, who was made close prisoner at Boston by order of general Howe; and to whose inflexible fidelity to his country, congress bore testimony the beginning of January. Mr. Lovell contrived to send out intelligence to the Americans, while investing Boston; and the reasonable suspicion of it, without positive proof might occasion his confinement. Commodore Hopkins, has been censured for not paying a regard to the tenor of his instructions, which directed him to annoy the enemy’s ships upon the coasts of the southern states; and his reasons for not going from Providence immediately to the Carolinas, have been declared by no means satisfactory. To prevail on the foreign officers, if possible, to quit the royal army, congress have proposed, upon their choosing to become citizens of the states, to give to them and their heirs in absolute dominion, unappropriated lands in the following proportions: to a colonel, 1000 acres; to a lieutenant-colonel, 800; to a major, 600; to a captain, 400; to a lieutenant, 300; to an ensign, 200; and to every non-commissioned person,

100. They complied with general Howe's proposal of exchanging general Sullivan for general Prescott, and lord Stirling for gen. M'Donald, on the 4th of September.

[Sept. 16.] They resolved upon raising eighty-eight battalions to serve during the war, and agreed upon bounties to all who enlist during that term, unless sooner discharged. The enlistment is further encouraged by a proposal for granting lands; each non-commissioned officer and soldier is to have 100 acres; a colonel 500; and the other officers in proportion. The congressional offer of lands, whether to foreigners or natives, is no present actual expence, as the event of the war must determine whose they will be; but the proposal may counteract the effect of a similar measure adopted by the British government, which has engaged to grant large tracts of vacant lands, at the close of the troubles, to the highland emigrants, and other new troops raised in America, as a reward for their expected zeal and loyalty in the reduction of the country. It may also destroy the influence of intimations thrown out to the mercenaries, of their being to be rewarded in like manner. The appointment of all officers in the battalions, and filling up vacancies (except general officers) is left to the governments of the several states; every state has its respective quota assigned, which it is to furnish with arms, clothing and every necessary. The quotas will never be answerable in the numbers of men to the numbers of the battalions, so that the actual strength of the continental forces will be far short of the appearance.

[Sept. 26.] It being resolved to appoint three commissioners to the court of France, congress balloted, and elected Messrs. Franklin, Deane and Jefferson. Dr. Franklin, notwithstanding his great age, was unanimously elected. Dr. Rush sat next him when the choice was announced, and was the first in congratulating him; the reply was, "I am old and good for nothing, but as the shop keepers say of their fragments of cloth, you may have me *for what you please*." Mr. Deane was so little in the good graces of his own state, that it was the only one out of the thirteen that declined voting for him. He had been before appointed by the secret committee, commercial agent with Mr. Thomas Morris, and moreover *political* agent; and had arrived in France so long back as in June. This appointment was a natural introduction to his being elected one of the commissioners. Mr. Jefferson having declined through a present incapacity for going, Mr. Arthur Lee has been chosen in his room.

Congress may have been encouraged to this measure, by a letter of last June to Dr. Franklin, wherein his correspondent writes, “I have been at Versailles to see the ministers, and every thing which approaches them. I have obtained among other things, under the name of Mr. de la Thuillerie, the undertaker of a manufactory of arms, that there shall be delivered to him immediately, from the kings arsenal, fifteen thousand muskets for the use of infantry, to be employed in his commerce, on condition that he replaces them in the run of a year. I hope your brave soldiers will be pleased with them; but you must caution not to trust to the ordinary muskets of commerce, which are called muskets for exportation, that are almost as dangerous to friends as to enemies.” But without such or any other direct encouragement, they must have adopted the measure through the urgency of their affairs. The commissioners are to arm and fit for war any number of vessels not exceeding six, at the expence of the United States, to war upon British property, provided it will not be disagreeable to the court of France. There has been approved in congress a plan of a treaty with his most christian majesty, which has been delivered to the commissioners with instructions to the following purport:—

“You are to use every means in your power for concluding a treaty conformable to the plan you have received. If you shall find that to be impracticable, you are hereby authorised to relax the demands of the United States, and to enlarge the offers agreeable to the subsequent directions. The eighth article will probably be attended with some difficulty. If you find his most christian majesty determined not to agree to it, you are empowered to add to it as follows: “That the United States will never be subject, or acknowledge allegiance, or obedience to the king, or crown, or parliament of Great-Britain, nor grant to that nation any exclusive trade, or any advantages, or privileges in trade, more than to his most christian majesty, neither shall any treaty for terminating the present war between the king of Great-Britain and the United States, or any war which may be declared by the king of Great-Britain, against his most christian majesty, in consequence of this treaty, take effect until the expiration of six calendar months after the negotiation for that purpose shall have been duly notified, in the former instance by the United States to his most christian majesty, and in the other instance by his most christian majesty to the United States, to the end that both these parties may be included in the peace if they think proper.” If his majesty should be unwilling to agree to the 16th and 26th articles, you are

directed to consent, that the goods and effects of the enemy on board the ships and vessels of either party, shall be liable to seizure and confiscation. You will solicit the court of France for an immediate supply to twenty or thirty thousand muskets and bayonets, and a large supply of ammunition, and brass field-pieces to be sent under convoy by France. The United States engage for the payment of the arms, artillery and ammunition, and to indemnify France for the expence of the convoy. It is highly probable that France means not to let the United States sink in the present contest; but as the difficulty of obtaining true accounts of our condition, may cause an opinion to be entertained, that we are liable to support the war on our own strength and resources longer in fact than we can do, it will be proper for you to press for the immediate and explicit declaration of France in our favor, upon a *suggestion* that a re-union with Great-Britain may be the consequence of a delay. Should Spain be disinclined to our cause, from an apprehension of danger to her dominions in South-America, you are empowered to give the strongest assurances, that that crown will receive no molestation from the United States in the possession of these territories.”

“You will transmit to us, the most speedy and full intelligence of your progress in the business, and of any other transactions that it may import us to know. You are desired to get the best and earliest information that you possibly can, of any negociation that the court of London may be carrying on for obtaining foreign mercenaries to be sent against these states the next campaign: and if any such design is in agitation, you will endeavor to prevail with the court of France to exert its influence, in the most effectual manner, to prevent the execution of such designs. You are desired to obtain as early as possible, a public acknowledgment of the independency of these states on the crown and parliament of Great-Britain by the court of France.”

“In conducting this important business, the congress have the greatest confidence in your address, abilities, vigilance, and attachment to the interests of the United States, and wish you every success.”

Though it has not been already mentioned, yet as far back as July, the congress refused to ratify the cartel settled between gen. Arnold and capt. Forster, at the Cedars. They declared gen. Arnold’s agreement to be no more than a sponsion, subject to be ratified or annulled, at their discretion, he not being invested with powers for the disposal of prisoners not in his possession, nor under his direction; and refuse to deliver the prisoners to be

returned on their part, till the British commander in Canada delivered into their hands the authors and abettors of the murders committed on the American prisoners, and made indemnification for the plunder at the Cedars, taken contrary to the faith of the capitulation. Thus the hostages have been left in Canada unredeemed. Capt. Sullivan has written to his brother the general, from Montreal, August the 14th, and expressed his surprise at hearing that congress, instead of redeeming him and the other hostages according to the cartel, had demanded capt. Forster to be delivered up; and declared in the most solemn manner, that not a man living could have used more humanity than capt. Forster did, after the surrender of the party to which he belonged. Such gentlemen of the army as speak of it at head-quarters, seem to wish the treaty had been ratified rather than disallowed; and the commander in chief appears to be like minded.

[Oct. 1.] General Mifflin was requested to resume the office of quarter-master-general, and it was resolved that his rank and pay as a brigadier should be continued. Congress determined upon borrowing five millions of continental dollars for the use of the United States, and the faith of the states is pledged for the payment of principal and interest. To encourage gentlemen of abilities to engage as commission-officers in the battalions to be raised, the pay, from the colonel to the ensign is to be increased. It has also been recommended to the respective states, to use their utmost endeavors, that all the officers to be appointed, be men of honor and known abilities, without a particular regard to their having before been in the service.

[Oct. 17.] Mr. Duche having by letter informed the president that the state of his health (probably influenced by the bad aspect of the American cause) and his parochial duties were such as obliged him to decline the honor of continuing chaplain to congress, they resolved that the president return the thanks of the house, for the devout and acceptable manner in which he discharged his duty during the time he officiated; and that 150 dollars be presented to him as an acknowledgment of his services. In about a fortnight he expressed his obligations to congress, in a polite letter, and requested, as he accepted their appointment from motives perfectly disinterested, that the money voted him, might be applied to the relief of the widows and children of such of the Pennsylvania officers as have fallen in the service of their country. Several French officers have been commissioned; the chevalier Matthias Alexis Roche de Fermoy, upon applying to be employed, was

appointed a brigadier general. Dr. Franklin sailed for France on the twenty-seventh.

[Nov. 18.] Congress agreed upon the scheme of a lottery by which they mean to raise a sum of money for defraying the expences of the next campaign. The recruiting service proving very unsuccessful, they resolved, [Nov. 21.] that each state be at liberty to direct their recruiting officers to enlist their men either for the war, or three years. The reduced state of the army, together with the successes and superiority of the enemy put congress upon ordering the president to write to the four New-England governments, and request them to use their utmost influence in raising their respective quotas, and to hasten their marches with all possible diligence to the places of rendezvous. The Massachusetts assembly have ordered a fourth of the militia to be raised for the reinforcement of the army to the southward, and proposed paying a bounty of 15l. sterling a man to those of their state who will enlist for three years or during the war. This proposal however congress could not assent to; as it tended to excite an expectation of the same bounty in the rest of the troops.

[Dec 10.] The probability of the enemy's advancing to Philadelphia, induced congress to direct gen. Putnam, who was stationed in the city, immediately to parade the several recruits and other continental troops in it, and to proceed without delay to make the proper defences for its security. The next day, they recommended to all the United States as soon as possible to appoint a day of fasting and humiliation. It is left to each state to issue out proclamations, fixing the day that appears most proper within its own bounds. On the 12th, generals Putnam and Mifflin being called to a conference, and having by strong arguments urged the necessity of the congress's retiring, it was thereupon resolved to adjourn to Baltimore in Maryland, to meet on the 20th inst. inasmuch as the movements of the enemy had rendered the neighbourhood of Philadelphia the seat of war.—Till congress should otherwise order gen. Washington was to possess full power to direct all things relative to the department, and the operations of war.

It remains, that we take a survey of what has been doing to the northward, and under gen. Gates.

Toward the latter end of July, one lieutenant Whitcomb, a green mountain boy, who was out with a scouting party, was guilty of a most base, and

villainous action, from no other principle, than a desire of plunder. He wanted a sword and a watch; and in order to supply himself shot general Gordon as he was riding unarmed from St. John's toward Chamblee. The general died a few days after. This, as was natural, raised the resentment of Sir Guy Carleton's army. It is a pity, that he could not have been delivered up instantly to Sir Guy; but through the weakness of government and military discipline, he will escape deserved punishment. Colonel Beedle and major Butterfield, instead of being shot for their cowardly conduct in the business of the Cedars, are only cashiered, and rendered incapable of bearing any commission in the army of the United States. The new articles of war, agreed upon in September, will subject men to deserved punishment for the future.

When general Arnold had reached Crown-Point with the army and the goods he had brought from Montreal (which he was careful to keep with, all he could) persons soon followed with invoices, and claimed pay for them. Silks and other valuable articles were missing. General Arnold upon this brought col. Hazens before a court-martial. He was tried on a charge, that the packages had been pillaged, and the goods lost, through his refusing to take care of them. The colonel was honorably acquitted; but such was the behavior of the general before the court, in challenging every man of them, and abusing them all, that they demanded of general Gates his being put under arrest; the moment the demand was made, general Gates thought himself obliged to act dictatorially, and to dissolve the court; that so the United States might not be deprived of the services of one whom he viewed as an excellent officer, at an important period, when they were much wanted. The court however, did not dissolve till they had finished their other business, and given judgment; and had prepared the account of the trial, and put it in the way to be forwarded to general Washington or the congress. Gates had fixed upon Arnold to command the American fleet to be opposed to the British, on Lake Champlain, and therefore would pay no attention to any charges brought against him. Colonel Brown complained of him, for accusing him of plundering the officers baggage taken at Sorel, contrary to the articles of capitulation, and praying that he might be put under arrest and brought to trial; but it was to no purpose. The command for which Arnold was destined, superseded all other considerations for the present.

The utmost efforts were made on the side of Canada by the British, for obtaining a superiority on the lake, and for the reduction of Tyconderoga and Mount Independence. A fleet of above thirty fighting vessels, of different kinds and sizes, had been little less than created; though a few of the largest were re-constructions, having been first framed in Great-Britain, then taken to pieces and sent over. Add to this, that a gondola weighing thirty tons, with above four hundred batteaux, had been dragged up the rapids near Chamblee. The objects in view were answerable to all these exertions. If the royal army under Sir Guy Carleton could have forced their way down to, and possessed themselves of Albany before the severity of the winter set in, the northern states would have been exposed in their most defenceless parts, and have had the communication with the southern cut off, while one between generals Carleton and Howe would have been established; and thus Carleton's army would have had a principal share in the honor of bringing the war to a speedy conclusion.

The Americans had not equal advantages with the British for the construction of vessels. They labored under immense difficulties; and had to bring ship-builders, artillery, and most of the materials for a naval equipment from a great distance. But by an assiduity, perseverance and spirit, which did not fall short of what was employed against them, they had by the 18th of August, at Crown-Point, 1 sloop, 3 schooners and 5 gondolas, carrying 55 guns, twelve, nine, six and four pounders, beside 70 swivels, and 395 men; and completely fitted for action. With some or all of these, gen. Arnold sailed down the lake to reconnoitre and gain intelligence. He wrote to gen. Gates, "This morning [Sept. 16.] at one o'clock, Antonie Grouse, (his real name was Girard) a Frenchman, whom I sent to St. John's, returned, and gives the following account, viz.—that at Isle-aux-Noix there are three thousand troops encamped, and forty pieces of cannon mounted on their lines—at St. John's three thousand men, one hundred and fifty batteaux, and he was told that two hundred were at Chamblee—that two schooners are completed and manned, one mounting twelve, and the other fourteen brass twelve pounders—small vessels on the stocks to carry three guns each—one gondola taken from us, and three new ones built, these to mount three guns each—a number of flat-bottomed boats, to carry one gun each, and a floating battery with two masts, nearly done, to carry twenty-four eighteen pounders and two mortars. He imagines the whole will be completed in a fortnight. I think him placed as a spy on us; have sent him

to you to be disposed of as you think proper. From the accounts of the two men who have viewed Isle-aux-Noix, the account of this Frenchman must be false, and a story formed for him by the English officers.” The poor Frenchman was put in irons, and sent to Albany. The two men never went to the isle, but made up a story to screen their own baseness: a close and separate examination of them might have detected the imposition. When by their unremitting industry the British entered the lake about the time the Frenchman conjectured, the fleet consisted of the ship *Inflexible*, which had been re-constructed at St. John’s, from whence she sailed in twenty-eight days after laying her keel, and mounted with 18 twelve pounders—the *Maria* schooner, mounting 14 six pounders—the *Carleton*, 12 ditto—the *Thunderer*, a flat-bottomed radeau, carrying 6 twenty-four pounders and 6 twelve, beside two howitzers—some gondolas, one having 7 nine pounders—twenty gun-boats, carrying each a brass field-piece, from 9 to 24 pounders, and some with howitzers—and four long boats, with each a carriage gun, serving as armed tenders. These were all designed for, or appertained to battle, and were attended with a vast number of vessels, batteaux and boats destined for the transportation of the army, with its stores, artillery, baggage and provisions. The armament was conducted by capt. Pringle, and the fleet navigated by about 700 prime seamen, of whom 200 were volunteers from the transports, who boldly and freely partook with the others in the danger of the expedition. The guns were worked by detachments from the corps of artillery. The equipment was well appointed and amply furnished with every thing necessary.

The Americans went on with the greatest possible dispatch, and, before any action could commence, had reinforced gen. Arnold with a cutter, 3 gallies and 3 gondolas, carrying from 4 to 18 pounders. The American force was in no degree equal to the British, either as to the goodness of the vessels, the number of guns, the weight of metal, or other furniture of war. Gen. Arnold had only two schooners with him, and so but 15 vessels, when Sir Guy Carleton proceeded up the lake, and found him forming a strong line to defend the passage between Valicour-Island and the western main. A warm action ensued [Oct. 11.] and was vigorously supported on both sides for some hours; but the wind being unfavorable, the *Inflexible*, with some other vessels of force, could not be worked up, so that the weight of the action fell upon the schooner *Carleton* and the gun-boats, which (say the British) they sustained with the greatest firmness, men and officers

displaying such extraordinary efforts of resolution as merited and received the highest applause from their commanders. The Americans therefore could not have been deficient in their exertions, but must be entitled to a proportionable share of praise for having made such a formidable resistance. Gen. Waterbury fought most intrepidly, walking upon the quarter-deck the whole time; all his officers were killed or wounded, excepting a lieutenant, and the captain of the marines.

The continuance of the impediments which prevented the Carleton and gun-boats being seconded by the Inflexible and other vessels, induced capt. Pringle, with the approbation of Sir Guy, to withdraw those that were engaged, from the action. Two of their gondolas were sunk, and one blown up with 60 men. The Americans had a schooner burnt, and a gondola sunk. Being now sensible of their inferiority, they took the opportunity of the night for attempting an escape. Gen. Arnold executed his design with ability, and they were out of sight by next morning. But the chase was continued, and one gondola taken on the 12th. The rest were overtaken and brought to action, a few leagues short of Crown-Point, about noon on the 13th. A warm engagement followed. The Washington galley, commanded by gen. Waterbury, had been so shattered, and had so many killed and wounded in the first action, that she struck after receiving a few broad sides. The Congress galley was attacked by the Inflexible and the two schooners, two under her stern and one on her broad-side, within musket shot. The British kept up an incessant fire on the Americans for four hours, with round and grape shot, which was returned as briskly. Gen. Arnold was determined that his people should not become prisoners, nor the vessels a prey to the enemy. He covered the retreat of the few which escaped, at the expence of one-third of his crew; and then with equal resolution and dexterity, ran the Congress galley, in which he was, with four gondolas, on shore in such a manner as to land his men safely and blow up the vessels, in spite of every effort to prevent both. Officers and men behaved with the utmost gallantry. Some vessels, they had lost all their officers, continued fighting, for the crews refused to yield but with their lives. The Americans glory in general Arnold's bravery, though unsuccessful, and much in the dangerous attention he paid to a nice piece of honor, in keeping his flag flying, and not quitting his galley till she was in flames, lest the enemy should have boarded her and struck it. The American fleet consists now of

only two gallies, two schooners, one sloop and one gondola, for the 8th is missing.

But though general Arnold's bravery is highly applauded, he is thought by many to have been guilty of a great oversight, in not having stationed his fleet just above Split Rock,^[34] about thirty-five miles from Ty, so as to have brought the guns of every one of his vessels to have borne upon the British as they should have passed through singly, which they must have done from the narrowness of the channel at that place.

On Monday morning [Oct. 14.] the wind came about, and blew fresh after the remainder of the fleet got in, and so continued for eight days, and prevented the enemy's coming up the lake to Ty. Within that period the Americans made carriages for forty-seven or more pieces of cannon, and mounted them; finished and strengthened their works; surrounded their redoubts with abettis; received a considerable reinforcement, and acquired a preparedness for defence in every quarter. Could the enemy have proceeded immediately on the Monday to Tyconderoga, they must have succeeded. You will be entertained with some sprightly letters written by an officer, at the moment and upon the spot, to the daughter of a next door neighbor; take the copies of them, and judge who it is that saves the Americans from impending ruin. "Tyconderoga the twentieth of October, six o'clock—The returns of the shattered remains of our fleet soon let us know the worst.—A fine story! after all the pompous accounts of our naval superiority.—Fine as it is, Jenny, it is true.—However we did all that men could do, in the time and with the advantages we had.—Can our country expect more?—I would not have you think we are defeated however.—The fleet was strong, but our posts are much stronger.—The enemy may give us another defeat, but it will cost them dear.—We expect an attack every moment.—I have been up these two hours, and through the guards and posts—to see them alert and vigilant. We will endeavor not to be surprised.—The attack whenever it comes will be furious, and the defence obstinate, cruelly obstinate.—We are busy in making every preparation for the most effectual security of our posts—and shall in two or three day more, have little to fear from an assault." "Ty—Oct. 21, 1776. The fear is now past, Jenny, but not the hurry.—Heaven has been pleased to give us a southerly wind for almost the whole week past—this has allowed us time for a very considerable preparation. We would now gladly be attacked—in two or three more days. The enemy are at Crown-Point, and we expect that

they may fancy this ground in a day or two: they must pay a great price for it however, as we value it highly." "Ty—Oct. 27. If we are not attached within six days, gen. Carleton deserves to be hanged.—We expect him indeed every morning.—We have been favored with a strong southerly wind, almost constantly since the defeat of the fleet, and are now *ready*.—The enemy have forsaken us—I am not sorry indeed, Jenny.—We should have been much at a loss had they invested us.—An attack we were prepared for, but they must have been madmen, to risque their all on the event of *a-day*, when a few weeks perseverance would have given them all they could wish.—How much is gained by chance or as the doctor will call it, Providence.—They did not happen to know our situation, but supposed we must be *internally*, what our *external* appearance (formidable enough) pronounced us, and what they, with our advantages, would have been.—Providence indeed, has once more saved us."

General Gates was about 12,000 strong, when the enemy was at Crown-Point. Most of the men were effective, many of the troops having recovered. For some days after gen. Arnold's defeat, Gates had only two ton of powder, and when he had received a supply, no more than eight. It has been thought, from information gained since, that the enemy sent one of their engineers, disguised like a countryman, into the American camp, as a spy; and that after two or three hours he returned; and by his reports might occasion their going off the next day. The day they went off, Mr. Yancey, the commissary general, had no flour in store for the army. Gen. Gates sent him out of the way, that as he had no flour to deliver out, the men might be kept easy, under a notion of their being enough in the store, and upon the plea that they should be supplied on his speedy return, but that it would not do to break open the doors. The commissary had not even a barrel under his care. The Yorkers, chiefly of Dutch extraction, inhabiting the neighborhood of *Lake George*, declined crossing it with the supplies designed for the army, through fear of the Indians. This fear however was needless; for gen. Carleton, while he allowed them to take prisoners, laid them under strict restraints not to kill and scalp. When he found he could not keep them from scalping, he acted with dignity, and dismissed every one of them, saying, he would rather forego all the advantage of their assistance, than make war in so cruel a manner. This conduct reflects great honor upon his character, as the gentleman and the soldier. The day Sir Guy withdrew from Crown-Point, Gates, upon being assured of the fact, instantly dismissed the militia,

with thanks for their service, which he wished not to prolong—for he had no provision for them. For near a week after, the army had but a daily supply of between 20 and 30 barrels by land from Bennington.

General Carleton, before he commenced his operations on the lake, had prudently shipped off the American officers (made prisoners in Canada) for New-England, supplying them at the same time with every thing requisite to render their voyage comfortable. The other prisoners, amounting to about 800, were returned also by a flag, after being obliged to take an oath not to serve during the war, unless exchanged: many of these, being almost naked, Sir Guy clothed, out of compassion. By his tenderness and humanity, he has gained the affections of those Americans, who had fallen into his hands; and has done more toward subduing the rest than ever could have been effected by the greatest cruelties.

The only danger to be guarded against by the Americans at Ty, and the neighbouring posts, is, gen. Carleton's attempting to possess himself of them, when Lake Champlain shall be frozen over, so as to be capable of bearing horses, which probably will not be till the middle of January. The troops occupying these posts will not tarry longer than the end of the year: before that there is time enough to procure a sufficient force from the Massachusetts, Connecticut and New-Hampshire, to defend them. And if the weeks, between Sir Guy's returning to Canada and the frost's setting in so as to suspend all operations, are duly improved, something considerable may be wrought toward securing the entrance into the northern states. During the summer season, a road has been cut through the woods, for some miles, leading to Mount Independence, and communicating with the one leading to Hubbardton, so that the intercourse between that post and the northern states can be carried on by land, without coming either through Lake George, or by water from Skeensborough. That the road is horridly bad for carriages and horses in many places but not impassable, my own experience convinces me. Teams have travelled them with heavy loads, though not without ropes fastend to each side, and men attending to keep them from falling over, through the unevenness of the ground. But it is astonishing, that loads of tent-poles should be sent scores of miles to pass through these woods to the American camp, instead of being ordered to cut in the neighbourhood, where there was little other than woodland. By some strange fatality, or folly, the Americans conduct their business in a most expensive way, whereas they ought to exercise the greatest œconomy

practicable without injuring the common cause. If the fate of war depends upon the expenditure of money, and the ability of the parties to continue the expences, the United States must be a-ground much sooner than Great-Britain, unless the latter practises and continues an equal degree of extravagance and profusion.

Mr. James Lovell, who has at length recovered his liberty by an exchange, was chosen, ten days ago, by the Massachusetts general court, one of their delegates to congress.

LETTER VI.

Roxbury, April 16, 1777.

Let the present letter begin with mentioning, that the representatives of the freemen of the state of North-Carolina elected and chosen for that purpose, assembled in Congress at Halifax, and after a third reading, ratified their form of government, with a declaration of rights prefixed, on the 18th of last December.

When gen. Washington retreated with a handful of men across the Delaware, he trembled for the fate of America, which *nothing but the infatuation of the enemy could have saved*^[35]. Though they missed the boats with which they expected to follow him immediately into Pennsylvania, yet Trenton and the neighbourhood could have supplied them with materials, which industry might have soon constructed into sufficient conveniences for the transportation of the troops, over a smooth river, and of no great extent in some places. But they were put into cantonments for the present, forming an extensive chain from Brunswick to the Delaware, and down the banks of the Delaware for several miles, so as to compose a front at the end of the line, which looked over to Philadelphia. Mr. Mercerau was employed by the American general to gain intelligence, and provided a simple youth^[36], whose apparent defectiveness in abilities prevented all suspicion, but whose fidelity and attention, with the capacities he possessed, constituted him an excellent spy: he passed from place to place, mixed with the soldiers, and having performed his business, returned with an account where they were cantoned, and in what numbers. Gen. Fermoy was appointed to receive, and communicate the information to the commander in chief: upon the receipt of it, he cried out, “Now is our time to clip their wings while they are so spread.” But before an attempt could be made with a desirable prospect of success, [Dec. 21.] gen. Washington was almost ready to despair, while he contemplated the probable state of his own troops within the compass of ten days. He could not count upon those whose time

expired the first of January: and expected, that as soon as the ice was formed, the enemy would pass the Delaware. He found his numbers on enquiry less than he had any conception of; and while he communicated the fact, thus charged his confidant—"For Heaven's sake keep this to yourself, as the discovery of it may prove fatal to us." Col. Reed wrote the next day from Bristol, and proposed to the general the making of a diversion, or something more at or about Trenton, and proceeded to say, "If we could possess ourselves again of New Jersey, or any considerable part, the effect would be greater than if we had not left it. Allow me to hope you will consult your own good judgment and spirit, and let not the goodness of your heart subject you to the influence of the opinions of men in every respect your inferiors. Something must be attempted before the sixty days expire which the commissioners have allowed; for, however many may affect to despise it, it is evident a very serious attention is paid to it; and I am confident, that unless some more favorable appearance attends our arms and cause before that time, a very great number of militia officers here, will follow the example of Jersey, and take benefit from it. Our cause is desperate and hopeless if we do not strike some stroke. Our affairs are hastening apace to ruin if we do not retrieve them by some happy event. Delay with us, is near equal to a total defeat. We must not suffer ourselves to be lulled into security and inactivity because the enemy does not cross the river. The love of my country, a wife (formerly miss De Berdt) and four children in the enemy's hands, the respect and attachment I have to you, the ruin and poverty that must attend me and thousands of others, will plead my excuse for so much freedom." The general on the 23d answered, "Necessity, dire necessity will—nay, must justify any attempt. Prepare, and in concert with Griffin, attack as many posts as you possibly can with a prospect of success. I have now ample testimony of the enemy's intentions to attack Philadelphia, as soon as the ice will afford the means of conveyance. Our men are to be provided with three days provision, ready cooked, with which and their blankets they are to march. One hour before day is the time fixed upon for our attempt upon Trenton. If we are successful, which Heaven grant! and other circumstances favor, we may push on. I shall direct every ferry and ford to be well guarded, and not a soul suffered to pass without an officer's going down with the permit."

The origin of the present distress was stated in a letter of the same date, from a member of congress to his friend, in these words, "The causes of our

present unhappy situation have long been known; the consequences of them were often foretold, and the measures execrated by some of the best friends of America; but an obstinate partiality (in the New-England delegates) to the habits and customs of one part of this continent, has predominated in the public councils, and too little attention has been paid to others. It has been my fate to make an ineffectual opposition to all short enlistments, to colonial appointments of officers, and other measures pregnant with mischiefs; but these things either suited the genius and habits, or squared with the interests of some states that had sufficient influence to prevail; and nothing is now left but to extricate ourselves from difficulties as well as we can."

Colonel Griffin, unacquainted both with the plan and the time for attacking Trenton, crossed over from Philadelphia into the Jerseys, unknown to general Washington, and being joined with a few of the Jersey militia, proceeded to Mount-Holly, which induced colonel Donop to quit Bordentown; he returned however to his station before the attack upon colonel Rall. The commander in chief would have comprehended in his plan, a diversion for count Donop by general Putnam; but the latter gave such a representation of the militia, of the confusion that prevailed, and of his apprehensions of an insurrection in Philadelphia, in case of his absence, that it was laid aside. The question for independency had been carried in Pennsylvania by a great majority; but that did not lessen the bitterness of those who opposed it, among whom were most of the quakers. These coalesced with the royalists of other denominations, and composed so formidable a party in the city, that it was dangerous, in the present crisis, to withdraw the militia serving in it on the side of the American cause.

The plan was, to have crossed the Delaware in three divisions, one from the neighborhood of Bristol, which miscarried by a strange inattention to the tide and state of the river, so that it was impossible for the horses and cannon to land on the Jersey shore, through the heaps of ice cast upon it with the change of the tide—a second at Trenton ferry, under gen. Erwing; but the quantity of ice was so great, that though he did every thing in his power to effect it, he could not get over; and finding it impossible to embark his artillery, he was obliged to desist—the third and principal, was commanded by gen. Washington, assisted by generals Sullivan and Greene, and col. Knox of the artillery. It was meant to attack early on the morning of

the 26th, from the supposition that the festivity of the preceding day would make surprise more easy, and conquest more certain.

On the evening of the 25th, gen. Washington orders the troops, which are about 2400, to parade at the back of M'Kenky's ferry, that they may begin to cross as soon as it grows dark; for he imagines that he shall throw them all over, with the necessary artillery, by twelve o'clock, and arrive at Trenton, nine miles below, by five. The quantity of ice made in the night, impedes the boats, and it is three before the artillery gets over, and near four before the troops take up their line of march, which makes the general despair of surprising the town, as they cannot reach it before full day-break; but as there is no making a retreat without being discovered and harassed, he determines to push on at all events. Colonel Rall has received information of an intended attack, and that the 25th at night is thought to be the time fixed upon. His men are paraded and his picket is looking out for it. Captain Washington,^[37] commanding a scouting party of about fifty foot soldiers, has been in the Jerseys about three days, without effecting any exploit. He therefore concludes upon marching toward Trenton; advances, and attacks the picket. He exchanges a few shot, and then retreats. As he is making for the Delaware, on his return to Pennsylvania, he meets with general Washington's troops. [Dec. 26.] Conjecturing their design, he is distressed with an apprehension that by the attack he has alarmed the enemy, and put them on their guard. The enemy, on the other hand, conclude from it, after a while, that it is all the attack which is intended; and so retire to their quarters and become secure; many get drunk. General Washington forms his detachment into two divisions; one takes the lower road to Trenton, while the other, with the general, marches along the upper or Pennington^[38] road. The upper division arrives at the enemy's advanced post exactly at 8 o'clock; and in three minutes after, the fire in the lower road announces the arrival of the other division. When the enemy's picket^[39] discovers, in the grey of the morning, the advance of the general's troops, they suppose it to be only the scouting party returned. The out guards make but a small opposition; though they behave well for their number, keeping up a constant retreating fire behind houses. The main body forms; the Americans press the men hard, and soon get possession of half their artillery. Finding, from the position of their enemy, that they are surrounded, and must inevitably be cut to pieces if they make any further

resistance, they agree to lay down their arms, to the number of 23 officers and 886 men.

General Greene and col. Knox (elected by ballot a brigadier the next day, before the news had reached congress) would have persuaded the commander in chief to have pushed on and improved the alarm given to the enemy, to which he was inclined; but the generality of the officers were against it, and his excellency did not then think he could answer going contrary to the judgment of a majority of a council or war. He has since regretted his not seizing the golden opportunity.

Seven of the enemy's officers were wounded, beside col. Rall mortally. There were about thirty others killed and wounded. The regiments of Rall, Lossberg and Knyphausen, were obliged to surrender. The light-horse, chasseurs, a number of privates, with a few officers, in all to the amount of about 600, escaped by the road leading to Bordentown. The Americans lost about two men; beside two or three frozen to death. Captain Washington, who assisted in securing the artillery, was wounded in both hands. The Americans took in all, 918 prisoners; as many muskets, bayonets and cartouch boxes; 12 drums and 4 colours—an ample compensation for all the sufferings of the preceding night, though they were not trifling. The weather was sleety, snowy and intensely cold, and the road slippery. A more disagreeable, severe, wintry night, is seldom to be met with, even in America.

In the evening gen. Washington repassed the Delaware, carrying with him the prisoners, their artillery and colours—and elevated hopes that this successful attack would draw after it a train of the most beneficial and important consequences. It has excited not less astonishment in the British and auxiliary quarters, than it has done joy in those of the Americans. The Hessians will be no longer terrible; and the spirits of the Americans will rise amazingly. But before this happened, a small party in the neighborhood of Quaker-town had flown to arms, with a resolution not to lay them down more, while they had enemies near them; being provoked to it by the insufferable behavior of some British light-horsemen.

Though gen. Cadwallader did not pass over the Delaware at the time intended, yet the day after the surprise [Dec. 27.] he crossed about two miles above Bristol, with 1500 men, imagining that gen. Washington was still on that side. Receiving intelligence that the enemy had left Mount

Holly, he determined upon proceeding to Burlington (even after learning that the successful troops had re-crossed) and upon marching the next day to Bordentown; which was accordingly done, the enemy going off in the utmost confusion on the alarm of his approach. The day he crossed, 500 men were sent from Philadelphia, who passed over to Burlington on the morning of the 28th; in the evening gen. Mifflin sent over 300 more, and soon followed with a further reinforcement of some hundreds, designing to join gen. Cadwallader as soon as possible. Pennsylvania was now roused, and coming in great numbers to the aid of the commander in chief. On the last mentioned day, gen. Greene crossed afresh into the Jerseys with 300 militia. The time for which many of the militia were to serve, was just expiring. In order to prevail with them to continue, they were harangued. Their pride was addressed. They were told that if they withdrew, it would be charged upon them that they were afraid. Application was artfully made to every passion; and not altogether in vain.

[Dec. 29.] General Washington reached Trenton with about 1800 continentals. Twelve hundred of them were released from their enlistment the first of January. Attempts were made to engage them to continue a month or six weeks longer. Ten dollars extra pay was offered; they took the bounty, and near one half went off in a few days after, before the critical moment arrived: It was soon debated whether to order up the Pennsylvania militia from Bordentown, Mount Holly, and elsewhere, to join general Washington. Gen. Knox had prepared Dr. Rush, a member of congress, to assist in effecting the scheme. He was asked in to give his opinion, and declared in favor of ordering them up, which was then done. [Jan. 1, 1777.] The junction of the militia with the continentals (making in the whole about 5000 men) emboldened the latter to remain in their position after hearing that the enemy was advancing toward them. The alarm which had been given, induced the British and auxiliary troops to assemble; and general Grant, with the forces at Brunswick and in that quarter, marched speedily for Princeton. Lord Cornwallis was gone to New-York in his way to Great-Britain; but upon this unexpected turn of affairs, concluded upon deferring his voyage, and returning to the defence of the Jerseys. He pressed on with the greatest expedition; left the fourth brigade, consisting of the 70th, 40th, and 55th regiments, under the command of lieut. col. Mawhood, at Princeton, and the second brigade, under general Leslie, at Maidenhead, and joined the main body by the time they got near Trenton.

Gen. Greene is sent out with a considerable detachment to support a party stationed about a mile off, and to check the march of the enemy; but finds them advancing in such force and so expeditiously, that he is at some difficulty in making a good retreat with the whole of the Americans. Mean while general Washington makes a disposition for an action; which, as the enemy do not come on directly, is afterward varied to prevent their getting in on the American rear. The bridge over Sanpink Creek, is well secured; but can be of little advantage, as the stream is fordable in many places. The American army has between thirty and forty pieces of artillery in front, facing the creek. The fate of the continent seems suspended by a single thread; and the independence of America to hang on the issue of a battle which appears inevitable; and in which the most sanguine son of liberty can scarce flatter himself with the hope of a victory, the enemy being so superior in numbers and discipline. A defeat must be totally ruinous, from the nature of the ground which the Americans occupy.

Sir William Erskine, according to report, advises lord Cornwallis to an immediate attack, saying, "Otherwise Washington, if any general, will make a move to the left of your army: if your lordship does not attack, throw a large body of troops on the road to your left." The attack is put off till the morning; his lordship might act upon what is said to be a military principle, that the strongest army ought not to attack toward night. Mean while gen. Washington calls a council of war. It is known that they are to be attacked the next day, by the whole collected force of the enemy. The matter of debate is, "Shall we march down on the Jersey side, and cross the Delaware over against Philadelphia, or shall we fight?" Both are thought to be too hazardous. On this gen. Washington says, "What think you of a circuitous march to Princeton?" It is approved, and concluded upon. Providence favors the manœuvre. The weather having been for two days warm, moist and foggy, the ground is become quite soft, and the roads to be passed so deep that it will be extremely difficult, if practicable, to get on with the cattle, carriages and artillery. But while the council is sitting, the wind suddenly changes to the north-west, and it freezes so hard that by the time the troops are ready to move, they pass on as though upon a solid pavement. Such freezings frequently happen in the depth of winter, upon the wind's coming suddenly about to the north-west. This sudden change of weather gives a plausible pretext for that line of fires which gen. Washington causes to be kindled soon after dark, in the front of his army; and by which he

conceals himself from the notice of the enemy, and induces them to believe he is still upon the ground, waiting for them till morning. The stratagem is rendered the more complete by an order given to the men who are entrusted with the business, to keep up the fires in full blaze, till break of day. While the fires are burning, the baggage and three pieces of ordnance are sent off to Burlington for security, and with the design, that if the enemy follow it, the Americans may take advantage of their so doing. The troops march about one o'clock, with great silence and order, and crossing Sanpink Creek, proceed toward and arrive near Princeton a little before day-break. The three British regiments are marching down to Trenton on another road, about a quarter of a mile distant. The centre of the Americans, consisting of the Philadelphia militia, under gen. Mercer, advances to attack them. Col. Mawhood considers it only as a flying party attempting to interrupt his march, and approaches with his 17th regiment so near before he fires, that the colour of their buttons is discerned. He repulses the assailants with great spirit, and they give way in confusion; officers and men seem siezed with a panic, which spreads fast, and indicates an approaching defeat. Gen. Washington perceives the disorder, and penetrates the fatal consequence of being vanquished. The present moment requires an exertion to ward off the danger, however hazardous to his own person. He advances instantly; encourages his troops to make a stand; places himself between them and the British, distant from each other about thirty yards; reins his horse's head toward the front of the enemy; and boldly faces them while they discharge their pieces; their fire is immediately returned by the Americans, without their adverting to the position of the general, who is providentially preserved from being injured either by foe or friend. The scale is turned, and col. Mawhood soon finds that he is attacked on all sides by a superior force; and that he is cut off from the rest of the brigade. He discovers also, by the continued distant firing, that the fifty-fifth is not in better circumstances. His regiment having used their bayonets with too much severity on the party put to flight by them in the beginning, now pay for it in proportion; near sixty are killed upon the spot, beside the wounded. But the colonel and a number force their way through, and pursue the march to Maidenhead. The fifty-fifth regiment being hard pressed, and finding it impossible to continue its march, makes good its retreat, and returns, by the way of Hillsborough, to Brunswick. The fortieth is but little engaged; those of the men who escape, retire by another road to the same place.

It was proposed to make a forced march to Brunswick, where was the baggage of the whole British army, and gen. Lee; but the men having been without either rest, rum or provisions, for two days and two nights, were unequal to the task. It was then debated whether to file off to Cranberry, in order to cross the Delaware and secure Philadelphia. Gen. Knox urged their marching to Morristown, and informed the commander in chief, that when he passed through that part of the country, he observed that it was a good position. He also remarked, that they should be upon the flank of the enemy, and might easily change their situation, if requisite. By his earnest importunity he prevailed, and the measure was adopted. Gen. Greene was with the main body, which was advanced; and had put it into the Morristown road, without having been first acquainted with the determination. Just as that was concluded upon, the enemy were firing upon the rear of the Americans. Lord Cornwallis had been waked by the sound of the American cannon at Princeton; and finding himself out-generaled, and apprehensive for his stores and baggage, had posted back with the utmost expedition. The army under general Washington marched on to Pluckemin in their way to Morristown, pulling up the bridges as they proceeded, thereby to incommode the enemy and secure themselves. By the time they got there, the men were so excessively fatigued, that a fresh and resolute body of five hundred might have demolished the whole. Numbers lay down in the woods and fell asleep, without regarding the coldness of the weather. The royal army were still under such alarming impressions, that it continued its march from Trenton to Brunswick, thirty miles, without halting, longer at least than was necessary to make the bridges over Stony-Brook and Millstone passable.

Gen. Howe admits that the loss in this affair, was 17 killed, and nearly 200 wounded and missing. But the Americans say, they have taken near 300 prisoners, of whom 14 are officers, all British. Capt. Leslie, the son of the earl of Leven, who was killed in the engagement, was buried by the Americans with the honors of war, not only as a British officer, but in testimony of respect to his lordship's worth. The American officers commended the bravery of the troops under colonel Mawhood; one of the generals, observing how they fought, exclaimed, "When will our men fight like those fellows!" General Mercer met with hard usage, being bayoneted in three places, of which wounds he is since dead. He was a deserving character, and merited different treatment. Some may pronounce the

treatment that captain Philips, of the thirty-fifth grenadiers, has met with, much baser; but not when they have the case properly represented.—The captain, as he was returning from New-York, to join his company, was surprised between Brunswick and Princeton, by a party of militia, who threatened him in case he attempted to escape; regardless of the threat, he clapped spurs to his horse and pushed forward, on which they fired and killed him. General Gates, who is married to the captain's sister, blames the captain more than the men.

The eagerness of the royal army to reach and secure Brunswick, occasioned their marching through Princeton with such expedition as to divert their attention from either carrying off or destroying the curious orrery belonging to Nassau college. It was contrived and made by an original genius and self-taught astronomer, Mr. Rittenhouse of Philadelphia. There is not the like in Europe. An elegant and neatly ornamented frame raises perpendicular near upon eight feet. In the front of which you are presented, in three several apartments, with a view of the celestial system, the motions of the planets round the sun, and the satellites about the planets. The wheels, &c. that produce the movements, are behind the wooden perpendicular plane, on which the orrery is fixed. By suitable contrivances, you in a short time tell the eclipses of the sun and moon for ages past and ages to come; the like in other cases of astronomy. It is said that lord Cornwallis intended to have carried it over to Great-Britain; no man of conscience can blame his taste, which may have preserved it from ruin, by securing to it that protection while in the hands of the enemy, that might otherwise have been denied. But the children of the *alma mater*, whose it is, triumph in its preservation, though somewhat damaged. The college library did not escape so well as the orrery; but suffered considerable.

Let us attend for a while upon the congress at Baltimore, where they met according to adjournment the 20th of December, and soon after passed the following act—[Dec. 27.] “The congress, having maturely considered the present crisis, and having perfect reliance on the wisdom, vigor and uprightness of gen. Washington, do hereby resolve, That gen. Washington shall be, and he is hereby vested with full, ample and complete powers, to raise and collect together, in the most speedy and effectual manner, from any or all of these United States, 16 battalions of infantry, in addition to those already voted by congress; to appoint officers for the said battalions of infantry; to raise, officer and equip three thousand light-horse, three

regiments of artillery, and a corps of engineers, and to establish their pay; to apply to any of the states for such aid of the militia as he shall judge necessary; to form such magazines of provisions, and in such places as he shall think proper; to displace and appoint all officers under the rank of brigadier general, and to fill up all vacancies in every other department in the American armies; to take, wherever he may be, whatever he may want for the use of the army, if the inhabitants will not sell it, allowing a reasonable price for the same; to arrest and confine persons who refuse to take the continental currency, or are otherwise disaffected to the American cause; and return to the states of which they are citizens, their names, and the nature of their offences, together with the witnesses to prove them; and, that the foregoing powers be vested in gen. Washington, for and during the term of six months from the date hereof, unless sooner determined by congress.”

They also “Resolved, that the council of safety of Pennsylvania, be requested to take the most vigorous and speedy measures for punishing all such as refuse continental currency; and that the general be directed to give all necessary aid to the council of safety, for carrying their measures on this subject into effectual execution.”

[Dec. 28.] “Resolved that two large floating batteries be built on Lake Champlain, to cover the boom and the bridge at Tyconderoga; that a fort be constructed on Mount Independence; that the navigation of the lake near that place, be obstructed by sunken cassoons, joined together by string-pieces, so as, at the same time, to serve for a bridge between the fortifications on the east and west side; and that fort Stanwix be strengthened, and other fortifications made at proper places near the Mohawk river.”

[Dec. 30.] It was “Resolved, That commissioners be forthwith sent to the courts of *Vienna, Spain, Prussia* and the grand duke of *Tuscany*—that the several commissioners of the United States be instructed to assure the respective courts, that notwithstanding the artful and insidious endeavors of the court of Great-Britain, it is their determination, at all events, to maintain their independence—that they be directed to use every mean in their power to procure the assistance of the emperor of Germany, and of their most Christian, Catholic and Prussian majesties, for preventing German, Russian, or other foreign troops, from being sent to America for hostile purposes

against these United States, and for obtaining a recal of those already sent—and, that his most Christian majesty be induced, if possible, to assist the United States in the present war with Great-Britain, by attacking the electorate of Hanover, or any part of the dominions of Great-Britain, in Europe, the East or West-Indies.” His mos Christian majesty was to be assured, “That should his forces be employed, in conjunction with those of the United States, to exclude his Britannic majesty from any share in the cod-fishery of America, by reducing the islands of Newfoundland and Cape-Breton, and ships of war be furnished, when required by the United States, to reduce Nova-Scotia; the fishery shall be enjoyed equally and in common, by the subjects of his most Christian majesty and of these states, to the exclusion of all other nations and people whatever; and half the island of Newfoundland shall be owned by, and be subject to the jurisdiction of his most Christian majesty, provided the province of Nova-Scotia, the island of Cape-Breton, and the remaining part of Newfoundland be annexed to the territory and government of the United States.” If these proposals were not sufficient to produce a declaration of war, and it could not be otherwise accomplished, his most Christian majesty was to be assured, “That such of the British West-India islands, as in the course of the war shall be reduced by the united forces of France and these states, shall be yielded in absolute property to his most Christian majesty: and the United States engage, on timely notice to furnish at their expence, and deliver in some convenient port or ports, in the said United States, provisions for carrying on expeditions against the said islands, to the amount of two millions of dollars, and six frigates mounting not less than twenty-four guns, each manned and fitted for the sea; and to render any other assistance which may be in their power as becomes good allies.”

The commissioners of the courts of France and Spain were to consult together, and prepare a treaty of commerce and alliance, to be proposed to the court of Spain, adding thereto, “that if his Catholic majesty will join the United States in a war against Great-Britain, they will assist in reducing to the possession of Spain the town and harbour of Pensacola, provided the citizens and inhabitants of the United States shall have the free and uninterrupted navigation of the Mississippi, and use of the harbour of Pensacola; and will, provided it be true, that his Portuguese majesty has insultingly expelled the vessels of these states from his ports, or has confiscated any such vessels, declare war against the said king, if that

measure shall be agreeable to, and be supported by the courts of France and Spain.”

[Jan. 3, 1777.] “Whereas congress hath received information, that Richard Stockton, esq. of New-Jersey, and a member of this congress, hath been made a prisoner, and ignominiously thrown into a common jail, and their detained—Resolved, That gen. Washington be directed to make immediate enquiry into the truth of this report, and if he finds reason to believe it well founded, that he send to gen. Howe, remonstrating against this departure from that humane procedure which has marked the conduct of these states to prisoners who have fallen into their hands; and to know of gen. Howe, whether he chooses this shall be the future rule for treating all such on both sides, as the fortune of war may place in the hands of either party.”

The capture of gen. Lee has proved inconvenient to both sides, and calamitous to individuals. Somewhat like a cartel was before established for the exchange of prisoners between generals Howe and Washington. Gen. Lee being particularly obnoxious to government, and Howe perhaps having received prior instructions how to conduct himself with respect to him individually, (for he can have had none as yet upon the news of his capture) his exchange was refused. Washington having no prisoner of equal rank, proposed six Hessian field officers to balance that disparity: and, if this was not accepted, required that he should be treated suitable to his situation, and the precedent already set by the Americans in regard to the British officers they had captivated. It was answered, that as Lee was a deserter from his majesty’s service, he could not be considered as a prisoner of war, nor come within the conditions of the cartel, nor receive any of its benefits. A fruitless discussion ensued: and Lee was still confined, watched and guarded with the utmost strictness and jealousy; which produced the following congressional act—[Jan. 6.] “Congress being informed that major gen. Lee hath, since his captivity, been committed to the custody of the provost, instead of being enlarged on his parole, according to the humane practice that has taken place with officers of the enemy who have fallen into the hands of the American troops; a treatment totally unworthy of that gentleman’s eminent qualifications, and his rank in the service of the United States, and strongly indicative of further injuries to his person:—Resolved, That gen. Washington be directed to send to general Howe, and inform him, that, should the proffered exchange of gen. Lee for six Hessian field officers

not to be accepted, and the treatment of him as abovementioned be continued, the principles of retaliation shall occasion five of the Hessian field officers, together with lieut. col. Archibald Campbell, or any other officers that are or shall be in our possession equivalent in number or quality, to be detained in order that the said treatment which gen. Lee shall receive may be exactly inflicted upon their persons:—Ordered, that a copy of the above resolution be transmitted to the council of the Massachusetts-bay, and that they be desired to detain lieut. col *Campbell*, and keep him in safe custody till the further order of congress; and that a copy be also sent to the committee of congress in Philadelphia; and that they be desired to have the prisoners, officers and privates, lately taken, properly secured in some safe place.”

When the resolution was received by the Massachusetts council, instead of conforming solely to the words of the order *to keep the colonel in safe custody*, they sent him to Concord jail; where he was lodged in a dungeon of twelve or thirteen feet square whose sides were black with the grease and litter of successive criminals. Two doors with double locks and bolts, shut him from the yard, with an express prohibition from entering it, either for health, or the necessary calls of nature. A leathsome black hole, decorated with a pair of fixed chains, was granted him for his inner apartment; from whence a felon had been removed but the moment before, and in which his litter and excrements remained a fortnight after it was appropriated to the use of the colonel. The attendance of a single servant on his person was denied him, and every visit from a friend positively refused. When he had transmitted an account of these and other matters to Sir William Howe on the 14th of February, and the same had been communicated to gen. Washington, a letter was directly written on the 28th, in which the general says, “You will observe that exactly the same treatment is to be shewn to col. Campbell and the Hessian officers, that gen. Howe shews to gen. Lee; and as he is only confined to a commodious house, with genteel accommodations, we have no right or reason to be more severe upon col. Campbell, who I would wish should be immediately removed from his present situation, and put into a house where he may live comfortably.”

The enemy have in their power and subject to their call, near 300 officers belonging to the army of the United States; while the Americans have not more than 50 belonging to the enemy. The resolve therefore, of putting in close confinement col. Campbell and the Hessian officers, in order to

retaliate Lee's punishment, seems injurious in every point of view, and to have been entered into without due attention to the consequences. Gen. Lee's misfortune has sunk him greatly in the opinion of many Americans; and serves to convey a lively idea of the inconstancy and ingratitude of mankind. Some of those very people who, when he was marching to join Gen. Washington, regarded him as the guardian angel that was to deliver America, not only censure him bitterly, but even insinuate that he was treacherous. The Americans however, have reaped one advantage by that event—the enemy are convinced that they have not gotten the palladium of America, as they fondly boasted.

Congress have been often, and for a considerable time, in a committee of the whole, upon the state of the treasury, and the means of supporting the credit of the continental currency. At length they have "Resolved [Jan. 14.] That all bills of credit emitted by authority of congress, ought to pass current in all payments, trade and dealings in these states, and be deemed in value equal to the same nominal sums in Spanish milled dollars; and that whosoever shall offer, ask or receive more in the said bills, for any gold or silver coins, bullion, or any other species of money whatsoever, than the nominal sum or amount thereof in Spanish milled dollars, or more in the said bills for any lands, houses, goods or any commodities whatsoever, than the same could be purchased at of the same person or persons, in gold, silver or any other species of money whatsoever; or shall offer to sell any goods or commodities for gold or silver coins, or any other species of money whatsoever, and refuse to sell the same for the said continental bills; every such person ought to be deemed an enemy to the liberties of these United States, and to forfeit the value of the money so exchanged, or house, land or commodity so sold or offered to sale. And it is recommended to the legislatures of the respective states, to enact laws inflicting such forfeitures and other penalties on offenders as aforesaid, as will prevent such pernicious practices—that it be recommended to the legislatures of the United States, to pass laws to make the bills of credit issued by the congress, a lawful tender in payments of public and private debts; and a refusal thereof an extinguishment of such debts; that debts payable in sterling money, be discharged with continental dollars, at the rate of four and six-pence sterling per dollar; and that in discharge of all other debts and contracts, continental dollars pass at the rate fixed by the respective states for the value of Spanish milled dollars."

The several states will undoubtedly make the continental bills a legal tender, agreeable to the recommendation; though therein they establish the perpetration of iniquity by law. There are too many debtors in every state, and general assembly, who will by the help of it clear themselves of incumbrances; and who will feel nothing, or but little, at the injustice they commit in paying their creditors with a depreciated currency, while they have the law of the land in their favor. But all these attempts of congress to keep up the value of the bills, are delusive; and will deceive those most who have the greatest confidence in the wisdom of the present measure. It is scarce possible that they can so far impose upon their own judgments, as to view it in any other light than a momentary relief from a present evil, by subjecting themselves to a greater in future, but which, when it shall arrive, they flatter themselves they shall get rid of by some new expedient.

[Jan. 16.] Congress “Resolved, That a committee of seven be appointed to enquire into the conduct of the British and Hessian generals and officers toward the officers, soldiers and mariners in the service of the United States, and any other persons, inhabitants of these states, in their possession, as prisoners of war or otherwise, and also into the conduct of the said generals and officers, and the troops under their command, toward the subjects of these states and their property, more especially of the states of New-York and New-Jersey.” This committee will undoubtedly authenticate the cruelties of the royal army, which have been too frequent and notorious. The very orders of gen. Howe have not been sufficiently guarded for the preventing of abuses. When the enemy fled from their cantonments in the Jerseys, his orders to col. Donop fell into the hands of the Americans; they expressed that “all salted and meal provisions, which may be judged to exceed the quantity necessary for the subsistence of an ordinary family, shall be considered as a magazine of the enemy, and seized for the king, and given to the troops as a saving for the public.”

When the royal army entered the Jerseys, the inhabitants pretty generally remained in their houses, and many thousands received printed protections, signed by order of the commander in chief. But neither the proclamation of the commissioners, nor protections, saved the people from plunder any more than from insult. Their property was taken or destroyed without distinction of persons. They showed their protections; Hessians could not read them, and would not understand them; and the British soldiers thought they had as good a right to a share of booty as the Hessians. The loyalists

were plundered even at New-York. Gen. De Heister may be pronounced the arch-plunderer. He offered the house he lived in at New-York, to public sale; though the property of a very loyal subject, who had voluntarily and hospitably accommodated him with it. The goods of others, suffering restraint or imprisonment among the Americans, were sold by auction. The carriages of gentlemen of the first rank, were seized, their arms defaced, and the plunderer's arms blazoned in their place; and this too by British officers. Discontents and murmurs increased every hour at the licentious ravages of the soldiery, both British and foreigners, who were shamefully permitted, with unrelenting hand, to pillage friend and foe in the Jerseys.^[40] Neither age nor sex was spared. Indiscriminate ruin attended every person they met with. Infants, children, old men and women, were left in their shirts, without a blanket to cover them, under the inclemency of winter. Every kind of furniture was destroyed and burnt; windows and doors were broken to pieces; in short, the houses were left uninhabitable, and the people without provisions; for every horse, cow, ox and fowl, was carried off. Horrid depredations and abuses were committed by that part of the army which was stationed at or near Penny-town. Sixteen young women fled to the woods, to avoid the brutality of the soldiers, and were there seized and carried off. One man had the cruel mortification to have his wife and only daughter (a child of ten years) ravished. Another girl of thirteen, was taken from her father's house, carried to a barn about a mile off, there dishonored, and afterward abused by five others. A most respectable gentleman in the neighborhood of Woodbridge, was alarmed with the cries and shrieks of a most lovely daughter; he found a British officer in the act of violating her, and instantly put him to death. Two other officers rushed in with their fuses, and fired two balls into the father, who was languishing under his wounds the beginning of January.^[41]

These enormities, though too frequently practised in a time of war by the military, unless restrained by the severest discipline, so exasperated the people of the Jerseys, that they flew to arms immediately upon the army's hurrying from Trenton, and forming themselves into parties, they way-laid the men, and cut them off as they had opportunity. The militia collected. The Americans in a few days over-ran the Jerseys. The army was forced from Woodbridge. Gen. Maxwell surprised Elizabeth-Town, and took near 100 prisoners, with a quantity of baggage. Newark was abandoned. The royal troops were confined to the narrow compass of Brunswick and

Amboy, both holding an open communication with New-York by water. They could not even stir out to forage but in large parties, which seldom returned without loss. [Jan. 20.] Gen. Dickenson, with about 400 militia and 50 of the Pennsylvania riflemen, defeated near Somerset court-house, on Millstone river, a foraging party of the enemy, of equal number; and took 40 waggons, upward of 100 horses, beside sheep and cattle which they had collected. They retreated with such precipitation that he could make only nine prisoners; but they were observed to carry off many dead and wounded in light waggons. The general's behavior reflects the highest honor upon him; for though his troops were all raw, he led them through the river middle deep, and gave the enemy so severe a charge, that although supported by three field-pieces, they gave way and left their convoy.

The whole country was now become hostile to the British army. Sufferers of all parties rose as one man to revenge their personal injuries and particular oppressions, and were the most bitter and determined enemies. They who were incapable of bearing arms, acted as spies, and kept a continual watch, so that not the smallest motion could be made by the royalists, without its being discovered before it could produce the intended effect. This hostile spirit was encouraged by a proclamation of general Washington [Jan. 25.] which commands every person having subscribed the declaration of fidelity to Great-Britain, taken the oaths of allegiance, and accepted protections and certificates from the commissioners, to deliver up the same, and take the oath of allegiance to the United States of America. It grants however, full liberty to all such as prefer the interest and protection of Great-Britain to the freedom and happiness of their country, forthwith to withdraw themselves and families within the enemy's lines. But it declares, that all who neglect or refuse to comply with the order, within thirty days from the date, will be deemed adherents to the king of Great-Britain, and treated as common enemies to these American States. Some days before the proclamation was issued, a number of the Pennsylvania militia, having served the time fixed upon, were desirous of returning, which was complied with, and the general took the earliest opportunity of returning his most hearty thanks to those brave men, who in the most inclement season of the year nobly stepped forth in defence of their country. He also acknowledged with pleasure the signal services done by the said militia; and with additional satisfaction, the good services of those battalions, who determined to remain with him after the expiration of their times of service.

The militia of Pennsylvania are not only entitled to the hearty thanks of the commander in chief, but of the United States; for greatly through their instrumentality, the Jerseys have been nearly recovered, and a victorious and superior army been reduced to act upon the defensive, as well as Philadelphia saved, and Pennsylvania freed from danger. Nor will gratitude forget the share which gen. Mifflin had in exciting them to rise in favour of public liberty.

Toward the end of January a plan was formed for taking Fort Independence, near Kingsbridge, and by so doing, to obtain a passage into New-York island. About 4000 militia of the Massachusetts, Connecticut, and New-York states, in four divisions, under generals Heath, Wooster, Parsons and Lincoln, were destined for the service. Gen. Heath was commander in chief. They marched, the division under Heath from White-Plains—under Wooster and Parsons from New-Rochelle—and under Lincoln from toward Tarry-town. All met on the heights about and near Kingsbridge. The fort had but a trifling garrison, which could have made no effectual resistance, had a vigorous push been instantly made; and the men were in spirits for the attempt. In this way only could it be carried, was defence attempted, as the Americans had no other artillery than three field-pieces. With these they fired a number of shots at eighty or a hundred Hessians, and a few light-horse, who collected on the other side of Haerlem river; the Hessians were thrown into a momentary confusion, but soon formed again. Gen. Heath demanded a surrender of the fort, and threatened in case of non-compliance. The threat was disregarded. The troops were employed chiefly in picking up Tories, and in foraging and taking stores that had been in the possession of the enemy, till more artillery should arrive from Peek's-kill which a council of war had agreed to send for. About nine days from the first appearance of the Americans before the fort, the artillery came to hand, and consisted of one brass 24 pounder, and two howitzers. The twenty-four pounder was fired twice, when the carriage broke; and a few shells were thrown, without any execution. A great number of teams were then employed in carrying off forage, &c. The enemy who had been reinforced during these delays, sallied out, but were repulsed: soon after the Americans retired, upon a report that some ships were gone up the North-River. Gen Heath's conduct was censured by men of sense and judgment, who were with him on the expedition. It was fraught with so much caution, that the army was disappointed, and in some degree disgraced. His

summons, as he did not fulfil his threats, was idle and farcical, and tended to bring upon all of them the ridicule of their enemies. The Americans suffered much from the weather, and not less from the failure of the expedition. Many of them afterward crossed the North-River, and proceeded to Morristown.

About the time this fruitless expedition commenced, and three days before gen. Washington's proclamation, plundering had become so prevalent among the American troops, that his excellency had inserted in general orders—"The general prohibits, both in the militia and continental troops, in the most positive terms, the infamous practices of plundering the inhabitants, under the specious pretence of their being tories. It is our business to give protection and support to the poor distressed inhabitants, not to multiply and increase their calamities. After this order, any officer found plundering the inhabitants under the pretence of their being tories, may expect to be punished in the severest manner. The adjutant general to furnish the commanding officer of each division with a copy of these orders, who is to circulate copies among his troops immediately." You will regret, that while the British and Hessians plunder the Americans upon the plea of their being rebels; these should plunder their own countrymen upon the plea of their being tories. Humanity and good sense should dictate a different line of conduct, from a belief, that men of opposite sentiments may act conscientiously, while taking contrary parts in a civil contest.

Near upon 2000 of the British went on a foraging party from Amboy. They attacked the American guards and drove them five or six miles. When the latter were reinforced by gen. Maxwell, with about 1400 men, chiefly militia, the others retreated with such precipitation, as to be able to return but two fires, and left behind them six of their men prisoners and two dead. Thus are the troops under lord Cornwallis watched, straitened, and obliged to undergo the hardships of a most severe and unremitting duty; though he has been strengthened by a brigade of British, and some companies of grenadiers and light infantry from Rhode-Island. The order for these troops was sent to lord Percy, gen. Clinton being gone to England. Lord Percy did not immediately comply: but returned for answer, that the enemy were collecting a large force near Providence, of which circumstance he supposes gen. Howe was unacquainted; that he thought it his duty to represent this matter, and to add, that he apprehended it would be dangerous to the service there, to send away so large a corps. Gen. Howe replied, that lord Percy

knew the consequence of disobedience of orders, trial by court martial, and certain sentence of being broke; but that he was inclined to show his lordship all the indulgence that his services deserved, at the same time he insisted upon his orders being punctually obeyed. His lordship's feelings have been so hurt by this reply, that it is apprehended, he will not remain long in a situation that subjects him to gen. Howe.

The American recruiting service went on most wretchedly.—The returns which gen. Washington received from different quarters, were of so extraordinary a nature, that he suspected the most abominable fraud and embezzlement of the public money. The accounts of desertion almost surpassed belief, and afforded him the highest probability that officers were tempted, by the great bounty allowed, to exhibit a number of pretended recruits, that were never in reality inlisted. But the evil he complained of, was owing greatly to the prevailing method of inlisting men, viz. the paying of them the bounty, and then suffering them to ramble about the country, by which means they inlisted with half a dozen officers. Instead of being formidable by the middle of March, he wrote, [March 6.] “After the fifteenth, when gen. Lincoln's militia leave us, we shall only have the remains of the five Virginia regiments, who do not amount altogether to more than five or six hundred men, and two of the other continental battalions very weak. The rest of our army is composed of small parties of militia from this state and Pennsylvania; and little dependence can be put upon the militia, as they come and go when they please, if the enemy do not move it will be a miracle; nothing but ignorance of our numbers, and situation, can protect us.” He has since owned, that during the latter part of this last winter, he and his army have remained at the mercy of the royal troops, with sometimes scarcely a sufficient body of men to mount the ordinary guards, liable every moment to be dissipated, if the enemy had only thought proper to march against them. The general's whole force, including militia, at Morristown and the several out-posts, amounted often to not more than 1500 men; and it has been asserted, upon apparently good authority, that he repeatedly could not muster more at Morristown than between three and four hundred. In writing officially upon the subject to the governor and council of Connecticut the representation he gave of affairs drew tears from the eyes of those who heard the letter read. While gen. Washington was at this low ebb with his army, gentlemen of five thousand

pounds fortune or more, and many others who were men of substance, though not equal to that, did duty as centinels at his doors and elsewhere.

Though gen. Howe made no capital stroke at the commander in chief of the Americans; yet he concerted an operation against the post which gen. M'Dougall occupied, and where a considerable quantity of provisions and stores was deposited. A detachment of 500 men under col. Bird was convoyed by the Brunc frigate to Peek's-kill, near fifty miles from New-York. They landed on the 23d of March. As the general had but 250 men fit for duty, insted of 600 to guard the place, which lay in a bottom and was not tenable, he fired the principal store-houses, and then quitted the town in order to occupy the important pass through the highlands, on the east side of the river, about two miles and a half distant. The fire rendered useless the only wharf where it was practicable to embark the remaining stores in convenient time, which made it expedient to destroy the greater part. Col. Bird having done it, and hearing a reinforcement was expected by the Americans, re-embarked the same day. The loss of rum, molasses, flour, biscuit, pork, beef, wheat, oats, hay, tallow, iron pots, camp kettles, canteens, bowls, nails, waggons and carts, barracks, store-houses, sloops and pettiaugers laden with provisions, was very considerable, far beyond what was given out by the Americans, though not of that importance and magnitude, as to answer the expectations of gen. Howe. Gen. Washington had repeatedly guarded the commissary against suffering any large quantities of provisions to lie near the water, in such places as were accessable to the enemy's shipping; but he had not been properly attended to.

The want of muskets occasioned a delay in forwarding the new troops from the Massachusetts: but many of the militia from that state were persuaded to remain at Morristown for some weeks longer than the fixed time of service. Fifteen hundred of the new troops would have been upon their march, but the general court could not supply them with arms. The perplexity occasioned by this circumstance was however of short continuance. On the day of its commencement or the following, a vessel of fourteen guns from France arrived at Portsmouth with 364 cases, containing 11,987 stand: she had also on board a thousand barrels of powder, 11,000 gun-flints, 48 bales of woollens, and a small quantity of handkerchiefs, cottons, linens, and other articles. Congress were under a similar distress with the Massachusetts general court, as to the procuring of arms for gen.

Washington's army; but obtained a similar relief, by the arrival of a vessel, [March 24.] with 10,000 stand, beside a great number of gun-locks. These seasonable arrivals will furnish an ample supply of arms: the main difficulty will now be to get men to use them. Dr. Franklin arrived at Nantz the 13th of December.

The brilliancy of the successes, which have attended the American army since last Christmas, and their most happy consequences in changing the complexion of the times, must raise the character of gen. Washington as highly in Europe as it had done in America; and may lead sanguine spirits, who are strangers to the real circumstances of the country, to imagine that he will soon be able to drive all before him; but it will require his utmost abilities to act in so defensive a manner, as to secure himself from injury, and at the same time frustrate the offensive plans of the enemy. He is indeed to have the assistance of a body of cavalry, which will be of considerable advantage.

You will scarce think it beneath remarking, that when the royal army had possessed themselves of the Jerseys, and the American affairs were at the lowest ebb, there was not a single state, or capital town or city (if not wholly in the power of the enemy) that made advances toward submission. But in the month of January, the tories rose to a great head, in the counties of Somerset and Worcester, in the state of Maryland; so that in the beginning of February, the congress were obliged to employ several battalions (before they could march forward to join gen. Washington) in suppressing the insurgents.

Committees, from the four New-England states, had a meeting; since which their proceedings were laid before congress; and the last have resolved, [Feb. 15.] "That the plan for regulating the price of labor, of manufactures, and internal produce within those states, and of goods imported from foreign parts, except military stores, be referred to the consideration of the other United States; and that it be recommended to them to adopt such measures, as they shall think most expedient to remedy the evils occasioned by the present fluctuating and exorbitant prices of the articles aforesaid:—That for this purpose it be recommended to the legislatures, or in their recess, to the executive powers of the states of New-York, New-Jersey, Pennsylvania, Delaware, Maryland and Virginia, to appoint commissioners to meet at Yorktown in Pennsylvania, on the third

Monday in March next, to consider of and form a system of regulation adapted to those states, to be laid before the respective legislatures of each states, for their approbation:—That for the like purpose it be recommended to the legislatures, or executive powers in the recess of the legislatures of the states of North-Carolina, South-Carolina and Georgia, to appoint commissioners to meet at Charleston in South-Carolina on the first Monday in May next.” Some of the New-England states had passed acts for regulating prices, before these resolutions.

On the 27th, congress adjourned to meet at Philadelphia the following Wednesday. Before adjourning they recommended to the several states, the passing of laws to put a stop to the distilling of grain.

Congress having dismissed doctor Samuel Stringer, director of the hospital in the northern department of the army, (at the same day they dismissed Dr. Morgan) gen. Scuyler took offence at it, and expressed himself unguardedly in some of his official letters: upon that it was “Resolved, [Mar. 15.] That as congress proceeded to the dismissal of Dr. Stringer, upon reasons satisfactory to themselves, gen. Scuyler ought to have known it to be his duty to have acquiesced therein:—That the suggestion in gen. Scuyler’s letter to congress, that it was a compliment due to him to have been advised of the reasons of Dr. Stringer’s dismissal, is highly derogatory to the honor of congress; and that the president be desired to acquaint gen. Scuyler, that it is expected his letters for the future, be written in a style more suitable to the dignity of the representative body of those free and independent states, and to his own character of their officer:—Resolved, That it is altogether improper and inconsistent with the dignity of this congress, to interfere in disputes subsisting among the officers of the army, which ought to be settled, unless they can be otherwise accommodated, in a court martial, agreeable to the rules of the army; and that the expression in gen. Scuyler’s letter of the fourth of February—“That he confidently expected congress would have done him that justice, which it was in their power to give, and which he humbly conceives they ought to have done”—were to say the least, ill-advised and highly indecent.”

[Jan. 24.] “Resolved, That gen. Washington be informed that it never was the intention of congress that he should be bound by the majority of voices in a council of war contrary to his own judgment:—That the commander in chief in every department be made acquainted, that though he may consult

the general officers under him, yet he is not bound by their opinion; but ought finally to direct every measure according to his own judgment.”

In the month of January gen. Howe discharged all the privates who were prisoners in New-York. Great complaints were made of the horrid usage the Americans met with after they were captured. The garrison of Fort Washington surrendered by capitulation to gen. Howe the 16th of November. The terms were, that the fort should be surrendered, the troops be considered prisoners of war, and that the American officers should keep their baggage and side arms. These articles were signed, and afterward published in the New-York papers. Major Otho Holland Williams, of Rawlings's rifle regiment, in doing his duty that day, unfortunately fell into the hands of the enemy. The haughty, imperious deportment of the officers, and the insolent scurrility of the soldiers of the British army soon dispelled his hopes of being treated with lenity. Many of the American officers were plundered of their baggage and robbed of their side arms, hats, cockades, &c. and otherwise grossly ill-treated. He and three companions were (on the third day) put on board the *Baltic Merchant*, an hospital ship, then lying in the Sound. The wretchedness of his situation was in some degree alleviated by a small pittance of pork and parsnip, which a good natured sailor spared him from his own mess. The fourth day of their captivity, Rawlings, Hanson, M'Intire, and himself, all wounded officers, were put into one common dirt cart, and dragged through the city of New-York, as objects of derision, reviled as rebels, and treated with the utmost contempt. From the cart they were set down at the door of an old *waste* house (the remains of Hamden-hall) near Bridewell, which because of the openess and filthiness of the place, he had a few months before refused as barracks for his privates; but now was willing to accept for himself and friends, in hopes of finding an intermission of the fatigue and persecution they had perpetually suffered. Some provisions were issued to the prisoners in the afternoon of that day; what quantity he could not declare; but it was of the worst quality he ever, till then, saw made use of. He was informed the allowance consisted of six ounces of pork, one pound of biscuit and some peas per day for each man, and two bushels and a half of sea-coal per week for the officers, to each fire-place. These were admitted on parole, and lived generally in waste houses. The privates, in the coldest season of the year, were close confined in churches, sugar-houses and other open buildings which admitted all kinds of weather and consequently were subjected to the

severest kind of persecution that ever unfortunate captives suffered. Officers were insulted, and often struck for attempting to afford some of the miserable privates a small relief. In about three weeks he was able to walk, and was himself a witness of the extreme wretchedness his countrymen suffered. He could not describe their misery. Their constitutions were not equal to the rigor of the treatment they received, and the consequence was the death of many hundreds. The officers were not allowed to take muster-rolls, nor even to visit their men, so that it was impossible to ascertain the numbers that perished; but from frequent reports and his own observations, he verily believed, as well as had heard many officers give it as their opinion, that not less than fifteen hundred prisoners perished in the course of a few weeks in the city of New-York, and, that this dreadful mortality was principally owing to the want of provisions and extreme cold. If they computed too largely, it must be ascribed to the shocking, brutal manner of treating the dead bodies, and not to any desire of exaggerating the account of their sufferings. When the king's commissary of prisoners intimated to some of the American officers, gen. Howe's intention of sending the privates home on parole, they all earnestly desired it; a paper was signed expressing that desire; the reason for signing was, they well knew the effects of a longer confinement; and the great numbers that died when on parole, justified their pretensions to that knowledge. In January almost all the officers were sent to Long-Island on parole, and there billeted on the inhabitants at two dollars per week.^[42]

The filth in the churches (in consequence of fluxes) was beyond description. Seven dead have been seen in one of them, at the same time, lying among the excrements of their bodies. The British soldiers were full of their low and insulting jokes on those occasions, but less malignant than the tories. The provision dealt out to the prisoners was not sufficient for the support of life; and was deficient in quantity, more so in quality. The bread was loathsome and not fit to be eaten, and was thought to have been condemned. The allowance of meat was trifling, and of the baser sort. The consequence was, a suspicion of a premeditated and systematical plan to destroy the youths of the land, thereby to deter the country. The integrity of these suffering prisoners was hardly credible. Hundreds submitted to death, rather than enlist in the British service, which they were most generally pressed to do. It was the opinion of the Ameaican officers that gen. Howe perfectly understood the condition of the private soldiers; and they from

thence argued, that it was exactly such as he and his council had devised. After general Washington's success in the Jerseys, the obduracy and malevolence of the royalists subsided in some measure. The surviving prisoners were ordered to be sent out for an exchange; but several of them fell down dead in the streets, while attempting to walk to the vessels.^[43]

Gen. Washington wrote to gen. Howe in the beginning of April, "It is a fact not to be questioned, that the usage of our prisoners while in your possession, the privates at least, was such as could not be justified. This was proclaimed by the concurrent testimony of all who came out. Their appearance sanctified the assertion, and melancholy experience, in the speedy death of a large part of them, stamped it with infallible certainty." The cruel treatment of the prisoners being the subject of conversation among some officers captured by Sir Guy Carleton, gen. Parsons, who was of the company, said, "I am very glad of it." They expressed their astonishment, and desired him to explain himself. He thus addressed them. "You have been taken by gen. Carleton, and he has used you with great humanity; would you be inclined to fight against him?" The answer was no. "So," added Parsons, "would it have been, had the troops taken by Howe been treated in like manner; but now, through his cruelty, we shall get another army." The hon. William Smith, esq.^[44] now at Haverstraw, learning how the British used the prisoners, and concluding it would operate to that end by enraging the Americans, applied to the committee of the New-York state, for leave to go into the city, and remonstrate with the British upon such cruel treatment, which he doubted not but that he should put a stop to. The committee, however, either from knowing what effect the cruelties would have in strengthening the opposition to Britain, or from jealousies of his being in some other way of disservice to the American cause, or from these united, would not grant his request. Gen. Gates has been repeatedly heard to say to the following purport—"Had gen. Howe seen to it, that the prisoners and Jersey inhabitants, when subdued, were treated with as much humanity and kindness as Sir Guy Carleton exercised toward his prisoners, it would have been all up with the Americans."

The congress commissioners for treating with the Indians of the Six Nations, and their brethren on the Susquehanna, have had repeated meetings with them. They had one the last August at the German Flats; when Adam, an Oghuaga Sachem, made mention of the line that was settled between the Indians and whites at the treaty at Fort Stanwix; and observed,

that by the agreement the whites were not to encroach upon their lands; but that of late some of the white people had made encroachments, by surveying their hunting grounds, close up to their habitations. He desired the commissioners to consider it, and hoped for redress. They assured the Indians, that the great council at Philadelphia would effectually put a stop to such wicked practices, and punish every person that should offend against their orders. "If any persons (say they) shall come upon your lands, we desire you will immediately bring them to the minister, that he may write down their names, and inform us of it, and then we shall immediately proceed against them. Brothers, you may all rest assured, that no white people will be suffered to pass the line settled at Fort Stanwix; for although that agreement was made with the king, yet as you are satisfied with it, we shall take care that it is complied with." Since then, some of the Indians have complained of a number of people who have gone over the line, and settled on the west branch of the Susquehanna, contrary to the Fort Stanwix treaty, and threatened they would not suffer them to stay. The people have not any legal claim to the ground in the opinion of the commissioners; who suppose that col. Butler, upon coming to Niagara, seized upon this affair as a fit instrument to foment a difference. But the difference, it is hoped, will be prevented by a late treaty at Easton, which ended February the sixth, to mutual satisfaction. The commissioners say, "We remember the agreement at Fort Stanwix. Our people ought not to have bought, and your people not to have sold lands contrary to the former agreement. We blame both. We will tell this matter to congress, who will enquire, and not suffer the old agreement to be broken by any of their people. They will call the intruders back, and do strict justice to both sides." The Indians seemingly mean to adhere steadily to their engagements of neutrality; and absolutely protest against either the enemy marching through their country by way of Niagara, to attack the United States, or the army of the latter marching that way to attack their enemy.

The Americans were not in readiness to begin their naval hostilities at a distance from their own coasts till late in the last year. That circumstance however, was of no great disadvantage, by reason of an unexpected occurrence. The discovery of an intended conspiracy among the negroes of Jamaica, detained the fleet till after the customary time of sailing. Through this detention, it sailed at a season that was accompanied with much tempestuous weather, which scattered the ships, and exposed them to such

American cruisers, as lay in wait for them in the latitudes through which they were to pass in their voyage homeward. The consequence was, that many of them were taken by the American privateers. The trade from the other islands suffered proportionably; so that by the close of the year, the British loss in captures, exclusive of transports and government store-ships, was considerable higher than a million sterling. The privateers were at no difficulty as to the disposal of their prizes. The ports of France and Spain especially the first, were open to them, both in Europe, and in their American dominions. In the last the captors sold them openly, without any colours of disguise. On remonstrances from the British court, a little more decorum was observed in Europe, and a check given to the avowed sale of them; for a while they were obliged to quit the harbours, and were purchased at the entrance or in the offing. But in the West-India islands the real inclinations of the French were undisguised. They not only purchased the prizes as fast as they could be brought into port; they moreover fitted our privateers, under American colours and commissions, and with a few American seamen on board (at times probably not any) carried on a war upon the British commerce.

Though many have been the captures made by the ships and armed vessels of the British navy, they have not counterbalanced, either in number or value those taken by the Americans from Great-Britain. Several of them indeed were laden with flour, and other articles for the trade in the West-Indies; and so proved a timely relief to the British islands, which were suffering much, through the depravation they lay under, of those various supplies with which they had been before furnished from the American continent.

The ministerialists at New-York will undoubtedly amuse the nation with accounts of the thousands, who have formed themselves into military corps under the auspices of gen. Sir William Howe, as he is now to be stiled from the honor conferred upon him, for his success on Long-Island. But when the campaign comes to be opened by Sir William, you will find that they are reduced to hundreds; and that the acquisition of strength derived from the country, whatever flattering appearance it may have upon paper, is no wise answerable to the report. Governor Tryon made a parade in black and white before lord George Germain, with his two thuosand [typo: thousand] nine hundred and seventy inhabitants of New-York, who have qualified by taking an oath of allegiance and fidelity to his majesty. By the aid of the

mayor, he may increase them to three thousand and twenty. He may add those attested on Staten-Island and elsewhere, and make the whole amount to five thousand six hundred men. He may also tell of the loyal inhabitants of Queen's county, who have received eight hundred stand of arms, with demonstrations of joy, and with a professed resolution to use them in defence of the island^[45]. But the service they will be of to government, in the great American contest, will be next to nought.

The *Georgia* representatives, met in convention, unanimously agreed in a constitution for that state, on the 5th of Februray.

LETTER VII.

London, June 7, 1777.

FRIEND G.

Mr. Sayre sued lord Rochford, in the court of Common Pleas, about this time twelvemonth, for illegal imprisonment; the jury granted him a thousand pounds damages, subject to the opinion of the court upon a point of law. Thus ended an affair, which in the commencement occasioned a great bustle among the people.

An unaccountable indifference possessed the nation, through the last summer. When at length the American cruisers, not only scoured the Atlantic, but spreading over the European seas, brought alarm and hostility to our doors—when the destruction which befel the homeward bound richly laden West-India fleets, poured equal ruin upon the planters in the islands, and the merchants at home—even in that state of public loss and private distress, an unusual phlegm prevailed, and the same tranquil countenance was preserved, by those who had not yet partaken of the calamity.

Administration had acquired such an appearance of stability, as seemed to render them, for some considerable time to come, superior to the frowns of fortune. Supported by an irresistible majority in parliament, they were already armed with every power which they were capable of desiring for the establishment of their American system. But the conduct of the French and Spaniards gave them just cause of alarm.—The French and Spanish ministry not only connived at the encouragement given to the American privateers, but filled the ports of both kingdoms with such indications as denoted that objects of far higher and more dangerous importance were in contemplation. The naval preparations carried on by the house of Bourbon, became at length so formidable, that sixteen British ships of the line were suddenly put into commission; [Oct. 25.] and the unusual methods taken for manning them by a very hot unexpected press, and the opening houses of

rendezvous for such seamen, as would enter voluntarily upon the proffered bounty. Some days after a proclamation was issued for a general fast through England and Wales, to be observed the 13th of December following.

The news of gen. Howe's success on Long-Island, gave the highest satisfaction to administration, and the strongest hopes of the most decisive good consequences, The messenger of the operations had been but two days in London, before a title and badge of honor was bestowed upon the general.

On the last of October, the session of parliament was opened. The royal speech seemed to breathe indignation and resentment against the people of America; and the receipt of assurances of amity from the several courts of Europe was still acknowledged. When the address of the house of commons in answer to it was produced, an amendment was moved for by lord John Cavendish, and supported by a speech perhaps the most remarkable of any that had been delivered since the commencement of the troubles, for the freedom and pointedness with which it was expressed. It entered into a comprehensive view of the conduct of the British ministry respecting America; and approached them with the pursuits of schemes formed for the reduction and chastisement of a party, supposed to consist of some inconsiderate and factious men, but which had in the issue, driven thirteen large colonies into an open and armed resistance. Every act of parliament, it said, proposed as a mean of procuring peace and submission, had proved, on the contrary, a new cause of opposition and hostility. The nation was now almost inextricably involved in a bloody and expensive civil war, which threatened to exhaust the strength of the British dominions, and to lay them open to the most deplorable calamities. No hearing had been given to the reiterated petitions of the colonies, nor any ground laid for a reconciliation, the commissioners nominated for the purpose of restoring peace, not being furnished with sufficient powers to bring about so desirable an end. It observed, that it must have been expected, that the American seamen and fishermen, being indiscriminately prohibited from the peaceable exercise of their occupations and declared open enemies, would betake themselves to plunder, and wreak their vengeance on the commerce of Great-Britain. After a variety of other observations, it concluded with declaring—"We should look with the utmost shame and horror, upon any events that would tend to break the spirit of any part of the

British nation, and to bow them to an abject, unconditional submission to any power whatsoever, to annihilate their liberties, and to subdue them to servile principles and passive habits, by the force of foreign mercenary arms; because amidst the excesses and abuses which have happened, we must respect the spirit and principles operating in these commotions. Our wish is to regulate, not to destroy them; for though differing in some circumstances, those very principles evidently bear so exact an analogy with those which support the most valuable part of our own constitution, that it is impossible, with any appearance of justice, to think of wholly extirpating them by the sword, in any part of the British dominions, without admitting consequences, and establishing precedents the most dangerous to the liberties of this kingdom.” Debates pro and con succeeded. It was the same in the house of lords, where the royal speech underwent a no less severe scrutiny. Since the declaration of independence, the debates in parliament are less interesting to the Americans than formerly, brevity in the account of them will therefore be most acceptable. The opposition said —“What can ministers mean by assurances of friendly and pacific sentiments from abroad? Poor politicians must they be, who depend upon such assurances, in the best of times, from those quarters whence they now come. Old grudges are not so easily forgotten; and this nation has every thing to apprehend from those to whom it has done so much mischief in the last war. Resentment and ambition will go on hand in hand upon this occasion, and will not lose so fair an opportunity of revenge, as that which is opened by this fatal quarrel between Great-Britain and her colonies. The preparations, of those powers who speak so friendly a language are no secret; their partiality to the Americans shows their intentions to this country; their encouragement to the privateers, which are capturing the British merchantmen, is a sufficient earnest of the designs that are uppermost in their councils, and is but a prelude to what we are to expect, as soon as circumstances have brought their plans to maturity. A war with the whole house of Bourbon, and perhaps with other powers, will be the inevitable consequence of continuing hostilities in America; but such a war at present, will no longer resemble those who have formerly waged with the princes of that family. Powerful as they were at that time, they will still be much more formidable now that the strength of America will be thrown into their scale. It is a sorrowful, but a true reflection, that one half of the British nation is become an instrument in the hands of our natural enemies, with

which most effectually to distress the other. Impelled with these cogent reasons, it is the duty of every man who feels them, to oppose an address approving of measures which must, if persisted in, terminate in calamities that will give such deadly wounds to Britain, as may prove incurable, and bring her to such a state of debility as will, from one of the first powers in the world, reduce her to hold but a secondary rank among the European nations.”

Administration urged in favor of the address—“Nothing is recommended by it that tends to oppose the Americans; no more is required of them than a return to the same obedience which every other subject is bound to pay. Is it consistent with the wisdom of the nation, to throw away the fruits of the infinite cares and expences it has bestowed upon the colonies, while any hope remains of reclaiming them from their defection? To give them up, will be to resign the wealth, the strength and the importance of Great-Britain; these are evidently at stake in the present contest; should the issue of it be contrary to what is hoped by all well-wishers to their country, its fall and degradation will be the necessary consequence. The season for arguing is over. The Americans have bid us defiance, and are become our enemies; the sword is therefore to decide; it is now to be seen whether we can reduce them to obedience by superior force. It is time to assert our national dignity and supremacy; we are in full strength and vigor; the resources of the country are far from being exhausted. They cannot be employed upon a more critical and necessary occasion than the present. The successes of the last campaign in America, afford a well grounded prospect of settling affairs to our satisfaction. A spirited prosecution of the business in hand will speedily conclude it. Much is threatened from abroad, and great terrors are held out, and we are told that occasion will be taken from these unhappy broils, to do Great-Britain irreparable damage. But the prudence of government has fully obviated these objections. A sufficient force is preparing to face all dangers at home; and the prosperity of our arms abroad has, it is well known, cast a damp on all the partisans of the Americans throughout Europe. However well they may wish them, the most inveterate of our foes will not venture to engage in so distant a quarrel, until they see better signs of its terminating to the advantage of our opponents. We are now in the career of victory; and it will betray weakness to be driven out of it by mere apprehensions. The people at large are now greatly alienated from the Americans; however they might once have been inclined to favor

them, they are full of resentment at their late conduct. The declaration of independence has entirely altered their opinion of the colonists.”

The conclusion of the debates was the carrying of the address in the house of lords by 91 votes to 26; and in the house of commons by 232 to 83. The declaration of independence lost the Americans many advocates; but the great bulk of those who had hitherto espoused their cause, dreaded the success of ministerial measures against them, from an apprehension of the danger which would result from it to the liberties of this country. They were therefore, before and after the opening of the session, indefatigable in representing the necessity of putting an end to a dispute, which they considered as ruinous, in every shape, whether the British arms did or did not prevail.

[Nov. 6.] A motion was made in the house of commons by lord John Cavendish, for a revival of all those acts by which the colonies thought themselves aggrieved. It was grounded on a paragraph in the declaration of the commissioners, given at New-York, the 19th of September, in which mention is made of “the king’s being most graciously pleased to concur in the revival of all acts by which his subjects in the colonies may think themselves aggrieved.” The motion was opposed with great warmth; and in the sequel of the debate, it was asserted by ministry, that until congress had rescinded the declaration of independence, no treaty could be entered into with America. Such an assertion was severely censured by opposition, as being no less than a denunciation of war, and all its calamities, unless the Americans implicitly admitted the principal point in litigation, without any preliminary stipulation. The motion was rejected by a majority of 109 to 47. This rejection exasperated the minority so violently, that a part of them avowedly withdrew whenever any questions relating to America were proposed, and from this period left the house to the full and undisturbed possession of the majority.

They justified this secession, by alledging that an attendance on these matters was nugatory; the weight of numbers was irresistible, and baffled all arguments. It was a degrading office alway to contend with a certainty of being defeated. There was a time when reasoning was listened to, and had its due influence; but as experience had shown, that time was no more, it was wiser to acquiesce in silence than to undergo the fatigue of a fruitless opposition. The season was not yet come for the nation to be undeceived. It

was the interest of so many to continue the deception, that it would last till an accumulation of calamities had oppressed the public so as to be felt by all degrees. Such amazing numbers were benefitted by the measures of ministry, that till defeats, disappointments and losses of every kind, had disabled them from pursuing their schemes any longer, they were sure of a ready support from those whom they employed in their execution. For these reasons they judged it necessary to refuse their presence to transactions which they disapproved, and could not hinder; but whenever they perceived that adversity had, as usual, opened the eyes of men, they would then come forth anew, and endeavor, if possible, to remedy the evils which it was not at present in their power to prevent.

The strength of ministry was now so decisive, that whatever was proposed, was immediately approved and carried, without any opposition or debate.

A bill was brought in for granting letters of marque and reprisals against the Americans. This was followed by another to empower the crown to secure such persons as were accused or suspected of high treason (committed either in America or at sea) or of piracy. By the provisions of this bill, they were liable to be detained in custody without bail or trial, while the law continued in force; it was reserved solely to the privy council to admit them to either. His majesty was also empowered by warrant, to appoint one or more places of confinement within the realm, for the custody of such prisoners.

This bill spread a general alarm through the metropolis; and a petition was presented by the city against it, condemning the measures proposed in it, as violent and unconstitutional, subversive of the sacred and fundamental rights of the people, subjecting them to the most cruel oppression and bondage, and introductive of every species of mischief and confusion. The petition was ordered to lie upon the table; but probably made way for the introduction of a provisional clause, enacting “that no offences shall be construed to be piracy within the meaning of the act, except acts of felony committed on the ships and goods of his majesty’s subjects, by persons on the high seas.”

The bill however, did not pass without opposition and severe animadversion. It was said, that it armed ministers with an unconstitutional and dangerous power. A mere pretended suspicion or foolish credulity in a

mercenary tool of a ministerial magistrate, might render the inhabitants of above half the empire liable to imprisonment without bail or mainprise. It did not require an oath, nor that the parties should be heard in their own justification, nor confronted with the witnesses, nor that two witnesses should be deemed necessary for the colourable ground of a commitment. The few who opposed it, contended that no lawful or obvious reason subsisted for investing the crown with so unusual a power. Such an extraordinary measure could only be tolerated in cases of great domestic danger, when the realm or constitution were immediately threatened; but neither of these could be pleaded in the present instance. After a long debate, the bill passed by a majority of 195 to 43. The opposition would have been stronger, but the seceding party would not afford their assistance.

“Before this act, every man putting his foot on English ground, every stranger, even a negro slave, became as free as every other man who breathed the same air with him. As things now stand, every man in the West-Indies, every inhabitant or these unoffending provinces on the American continent, every person coming from the East-Indies, every gentleman who has travelled for his health or education, every mariner who has navigated the seas, is, for no other offence, under a temporary proscription.”^[46]

The two bills received the royal assent on the third of March.

Toward the close of the last year, and in the beginning of the present, much confusion, apprehension and suspicion, was excited by the machinery of a wretched enthusiast and incendiary, since well known by the appellation of *John the Painter*, but whose real name was James Aitkin, born at Edinburgh, and bred a painter—a most profligate and abandoned villain.

After having committed the most atrocious crimes, he shipped himself off for America, where he continued about two years, and from whence he returned in March 1775. The violence of the language and sentiments then held in political matters, by the people among whom he lived, gave birth to that enthusiastic madness which afterward became so dangerous.—Under its baneful influence he returned to England with the most dreadful antipathy to the government and nation; and adopted the design of subverting, in his own single person, that power which he so much abhorred, by setting fire to the dock-yards, and burning the principal trading

cities and towns, with their shipping, of whatsoever sort, so far as it could possibly be done. He constructed fire-works, machines and combustibles for the purpose, but was strangely unsuccessful in all his attempts.—Owing to this failure in his machines, the nation was providentially saved from receiving some dreadful or irretrievable shock. He however succeeded in setting fire to the rope-house in the yard at Portsmouth, the beginning of last December. The next month, while party and political disunion prevailed among the inhabitants of Bristol, he attempted, first to burn the shipping, and afterward the city. He succeeded only so far as to set fire to some warehouses near the quay, six or seven of which were consumed. He was soon after his departure from Bristol, taken up on some suspicious circumstances; and being circumvented by one Baldwin, another painter, the whole scene of iniquity was brought to light. Baldwin pretended to sympathize with him under his misfortunes, and to hold principles similar to his own; and often visited him, till he at length obtained his confidence, and drew from him the history of his crimes. He told Baldwin that he had been in France, and seen Mr. Silas Deane, who had given him some money, and encouraged him to set fire to the dock-yards at Portsmouth, Plymouth, &c. as the best means of distressing Great-Britain, and had promised to reward him according to the service he should do to the American cause. He said that Deane, as an earnest of what should follow, had given him a recommendation to, and bills upon a merchant in London, to the amount of £.300, which however, he had found it necessary to burn, to prevent a discovery; and that in consequence of this encouragement he procured a passport from the French king. He was condemned at Winchester assizes, and executed at Portsmouth dock gate, the tenth of March, and then hung in chains. While he lay at Winchester, after condemnation, and before taken away to execution, he denied his having recommendations and bills, and burning the same. It was while working at Titchfield, in Hampshire, that he conceived the idea of setting fire to the dock-yards. He then went, as he said, to France, and applied to Mr. Deane, who told him that when the work was done he should be rewarded. He added, that on his return, and after setting fire to the ropery at Portsmouth, he went to London, and waited on Dr. Bancroft, to whom he had a verbal recommendation from Mr. Deane, but that the doctor gave him no countenance, and did not approve of his conduct.

When general Lee's capture came to be known by the gazette of February the 25th, the rejoicing in Great-Britain on the occasion, was great. Personal animosities contributed not a little to the triumph and exultation it produced. But the same gazette furnished more than a counterpoise to the joy, in the accounts it contained of general Washington's successes at Trenton and Princeton.

The name of Lee reminds me of Mr. Arthur Lee. The latter received timely notice of the acts of congress, so as to withdraw and get to Paris a few days after Dr. Franklin's arrival. While in England he was particularly commissioned by a certain body, and that under every sacred promise of secrecy, to make discoveries and transmit them to America; he was also personally consulted by Monsieur *Caron de Beaumarchais*, upon a project which the latter had formed, of establishing a commercial house, sufficiently powerful and spirited to hazard the risks of the sea and enemy in carrying stores and merchandise for the American troops. A correspondence was afterward opened between them; and on the 21st of June, 1776, Mr. Lee, under the name of Mary Johnson, wrote in cyphers to Mr. Beaumarchais, that the army of Great-Britain in America, would consist of forty thousand men, and their fleet of a hundred ships, and but two only of seventy-four guns. He advised the dispatching secretly ten large ships of war to the Cape or Martinico; and their joining the American fleet, scouring the American coast, and destroyiag the whole British fleet, dispersed as it would be, upon which success the land army could be easily defeated. "By this stroke," says he "the English fleet will be mortally wounded. Do you fear that this will kindle a war between the two nations? But how will England be able to support a war without fleets, without colonies, without seamen, without resources? On the contrary, if you suffer America to fall again under the dominion of England, the latter will be forever invincible." If this proposal was communicated to the French minister, it was adjudged too venturous to be prosecuted. Though France must, for her own interest, wish to have the American states perpetually separated from Great-Britain, yet the court will be cautious of risking a war with this country till the prospects of success are extremely encouraging. This accounts for the French king's issuing out, about the month of February, a proclamation, prohibiting the sale of English prizes taken by American privateers, in any of the ports of France; but as the purchase of them is not prohibited, and the sale of them only in the ports, the Americans will find no difficulty in

disposing of them to Frenchmen. The police of France is so well constructed, that they can easily convey to the extremities of the kingdom, the views and sentiments of the court, and secure a ready compliance with them. It is only for the minister to give the farmers-general his instructions, and for them, through their lines of connection with every province, city, town and village, to distribute their directions; on which the inhabitants of the most distant parts will think, speak and act mechanically, in unison with their betters at Versailles.

On the 20th of February, the British ambassador at the Hague, presented a memorial to their high mightinesses, containing various complaints; and closing with an express demand of a formal disavowal of the salute by Fort George at St. Eustatia, to the American flag, and of the dismissal and immediate recal of the governor; followed by a further declaration, that till that satisfaction was given, they were not to expect that his majesty would suffer himself to be amused by mere assurances, or would delay one instant to take such measures as he should think due to the interests and dignity of his crown. Their high mightinesses disdaining the spirit and manner of the complaint, passed by the ambassador (Sir Joseph Yorke) and also the secretary of state, and commanded their minister at London, the count de Walderen, to address himself directly to the king, and to deliver their answer into his own hands; which was done March the 26th. They complained of the reproaches contained in the ambassador's memorial, and the menacing tone which reigns in it, strained beyond what ought to take place between two sovereign and independent powers. They did not disguise the poignant sensation with which it had impressed them. They afterward mentioned their having ordered the governor home to give the necessary information of what had passed, and their resolution to disavow every act or mark of honor that actually tended in the least degree to recognise the independence of the North-American colonies. On the 10th of April, lord Suffolk, by letter, assured the court, that his majesty accepted with satisfaction, the memorial he had addressed to him; but that his majesty could not perceive in Sir Joseph Yorke's memorial, any thing contrary to what ought to take place between sovereigns and independent powers in the weighty circumstances in question.

In February and April, Messrs. Franklin and Deane sent to lord Stormont, two letters on the subject of an exchange of British seamen, prisoners in the hands of the captain of an American frigate, for an equal number of

American seamen, prisoners in England; and of the cruel treatment the American prisoners meet with in Europe, in being either compelled by chains, stripes and famine, to fight against their friends and relations, or sent to Africa and Asia, remote from all probability of exchange. They had for answer—"The king's ambassador receives no applications from rebels, unless they come to implore his majesty's mercy." They pronounced it an *indecent* paper, and returned it for his lordship's more mature consideration. The news of gen. Clinton's being created a Knight of the Bath, will be no otherwise important to the Americans, than as a direction how to address him in future.

A fresh effort was made in the house of lords, to bring about a reconciliation between Great-Britain and her colonies, as they are here still called. The earl of Chatham had been prevented of late, by his advanced age and infirm state of health, from taking an active part in the disputes of the house. But viewing with concern the dangers which menaced the kingdom, he determined again to come forth from his retreat, and endeavor to influence the contending parties to listen to terms of accommodation. On the 30th of May he entered the house, wrapped in flannel, and bearing a crutch in each hand. His lordship, sitting in his place and with his head covered, delivered a speech, herein he explained the grounds of the motion he was about to make. He recapitulated and reprobated the measures which had been taken with the Americans, from the voting away of their property without their consent, to the attempting of their conquest by the aid of German mercenaries. He endeavored to show the absurdity of relying longer on the force of arms, and very pathetically pressed the necessity of a speedy conciliation. After speaking for fifty minutes, he moved for an address to the throne, "most humbly to advise his majesty to take the most speedy and effectual measures, for putting a stop to hostilities, upon the only just and solid foundation, namely, the removal of accumulated grievances; and to assure his majesty, that the house will enter upon this great and necessary work with cheerfulness and dispatch, in order to open to his majesty the only means of regaining the affection of the British colonies, and of securing to Great-Britain the commercial advantages of those invaluable possessions; fully persuaded that to heal and redress will be more prevalent over the hearts of generous and free born subjects, than the rigors of chastisement and the horrors of civil war, which have hitherto served only to sharpen resentments and consolidate union, and if continued,

must end finally in dissolving all ties between Great-Britain and the colonies.”

This brought on an interesting and animating debate, which terminated in the question's being put, when lord Chatham's motion was rejected by a majority of 99 to 28. The ministry had obtained all they wanted from parliament; were confident in their own conceit and in the success of their measures; and would attend to no remonstrances of reason.

The general assembly of the church of Scotland, in an address to his majesty, among many expressions of loyalty, declared that, sensible of their own felicity, they observed with concern, the first appearance of a turbulent and ungovernable spirit among the people of North-America; that they had with astonishment contemplated its alarming progress, and beheld fellow-subjects, who enjoyed in common with them, the blessings of his majesty's mild administration, take up arms in opposition to lawful authority, disclaim the supremacy of the British legislature, reject with disdain the means of reconciliation, and labour to erect their unlawful confederacy into separate states. They then, with reverence and gratitude to Divine Providence, offer their congratulations for the success which has attended the fleets and armies, that have been employed to oppose the violence of rebellious subjects, and to reclaim them to a sense of their duty: and conclude with acknowledging it their immediate duty, in the present situation of public affairs, to increase their diligence, not only in confirming the people under their care in sentiments of loyalty, but by inciting them to such reformation in their hearts and lives, as will avert from their country those judgments which their iniquities justly deserve.

[June 6.] His majesty went to the house of peers, and after giving his royal assent to a number of bills, closed the session with a speech which finished with saying, “My lords and gentlemen, I trust in Divine Providence, that by a well-concerted and vigorous exertion of the great force you have put into my hands, the operations of this campaign, by sea and land, will be blessed with such success as may most effectually tend to the suppression of the rebellion in America, and to the re-establishment of that constitutional obedience which all the subjects of a free state owe to the authority of the law.”

In the beginning of May, a captain Cunningham, in a privateer fitted out from Dunkirk, took and carried into that port the British packet going to

Holland. Not understanding thoroughly the business on which he was sent, and being hurried, he was not careful to secure instantly, upon the capture of the vessel, the packet intrusted with the king's messenger, which he therefore missed of; but the mail was taken and forwarded to the American commissioners at Paris. Adieu.

LETTER VIII.

Roxbury, October 30, 1777.

Be not surprised at reading that there is in the United States, one enemy more formidable than famine, pestilence and the sword—a prevailing corruption in American hearts, a depravity more incompatible with their republican governments than darkness with light. Such languor and supineness reigns every where, that they seem unable to effect any point, though ever so important and interesting. In the military department, it looks as if all public spirit was sunk into the means of making money by the service, or quarrelling upon the most trivial points of rank. Did you know the pullings and haulings, the jealousies and emulations of the military and other gentlemen, which come before congress, you would be greatly confirmed in your ideas of the sameness of human nature in Britain, here, and every where.

[April 8.] Congress concluded upon the erection of a monument to the memory of gen. Warren, in the town of Boston; and another to the memory of gen. Mercer, in Fredericksburgh in Virginia; and that the eldest son of gen. Warren, and the youngest son of gen. Mercer, be educated from henceforward at the expence of the United States. They conveyed in a few words the highest eulogium on the characters and merits of the deceased. As Mercer had a good landed estate, the propriety of adopting his youngest as the child of the public was obvious.—Through inattention, gen. Warren, who fell on Breed's Hill, had not been properly noted when congress passed their resolve respecting gen. Montgomery the prososal for paying due respect to the memory of Mercer, led to the like in regard to Warren.

But to advert to military operations. Gen. Lincoln was posted with only 500 men fit for duty at Boundbrook, to guard an extent of five or six miles, which occasioned their flanks being exposed. Lord Cornwallis formed the design of attacking this post, and chose the morning of the 13th for his execution. The plan was exceedingly well laid, and nearly as well executed.

—Gen. Lincoln had expected a manœuvre of this kind, and been particularly cautious against a surprise. The enemy however, through the neglect of the patrols, crossed the Rariton just above the general's quarters, undiscovered till they had advanced within 200 yards of him. At the head of this party, consisting of about 1000 men, were generals Cornwallis and Grant. About 1000 were advanced up each side of the Rariton to Boundbrook, to attack the Americans in front, where the action began nearly at the same time the others were surrounding Lincoln's quarters.—This happened between day break and sun rise. The general and one of his aids had just time to mount and leave the house before it was surrounded. The other aid, with the general's papers and their baggage, fell into the hands of the enemy. The artillery consisting of one six pounder, and two three pounders, were also taken. Gen. Lincoln went immediately to give directions to those engaged in front;—while lord Cornwallis flung a party into the rear of the right of the Americans. Another party, from their reserve body of about 2000, was flung over Boundbrook in the rear of the left, with the design of encircling the Americans and preventing their retiring to the neighbouring mountain. Lincoln was hereby reduced to the necessity of being either imprisoned with the whole party in front, or of passing between the two columns of the enemy, which had nearly closed. But he effected his passage with the small loss of not more than 60 killed, wounded and taken.—The enemy soon evacuated the place after destroying twenty barrels of flour, a few casks of rum, and some other articles.

Congress are well assured that Sir William Howe had the last year instructions from ministry, to secure the North-River, and thereby to separate the northern from the southern states.—The general's successes carried him into the Jerseys, and led him to believe that the business with the Americans was at a close, so that the North-River was neglected. Under a persuasion that Philadelphia was the object this year, congress resolved upon forming a camp immediately on the western side of the Delaware.

[April 15.] The following prudential act was passed—"Whereas the continental battalions are all on footing, liable to the same kind of services, and entitled to equal privileges; Resolved, That the appellations—congress's own regiment—gen. Washington's life guards, &c. given to some of them, are improper and ought not to be kept up; and the officers of the said battalions are required to take notice hereof, and to conform themselves accordingly."

[April 17.] “Resolved, that the stile of the committee of secret correspondence be altered, and that for the future it be stiled—the committee of foreign affairs; that a secretary be appointed to the said committee. Congress proceeded to the election of the said secretary, and the ballots being taken, Thomas Paine was elected,”—the author of *Common Sense*.

“The committee appointed to inquire into the conduct of the enemy, reported [April 18.]

“That in every place where the enemy has been, there are heavy complaints of oppressions, injury and insults suffered by the inhabitants from officers, soldiers and Americans disaffected to their country’s cause. The committee found these complaints so greatly diversified, that it was impossible to enumerate them, so it appeared difficult to give a distinct and comprehensive view of them, or such an account as would not if published, appear extremely defective, when read by the unhappy sufferers or the country in general.”

“In order however, in some degree, to answer the design of their appointment, they determined to divide the object of their inquiry into four parts—First, the wanton and oppressive devastation of the country and destruction of property.—Second, the inhuman treatment of those who were so unhappy as to become prisoners.—Third, the savage butchery of many who had submitted or were incapable of resistance.—Fourth, the lust and brutality of the soldiers in the abusing of women.”

“They will therefore now briefly state what they found to be the truth upon each of these heads separately, and subjoin to the whole, affidavits and other evidence to support their assertions.”

“1. The wanton and oppressive devastation of the country and destruction of property.”

“The whole track of the British army is marked with desolation and a wanton distruction of property, particularly through West-Chester county in the state of New-York; the towns of Newark, Elizabeth-town, Woodbridge, Brunswick, Kingston, Princeton and Trenton, in New-Jersey. The fences destroyed, the houses deserted, pulled in pieces or consumed by fire, and the general face of waste and devastation spread over a rich and once well cultivated and well inhabited country, would effect the most unfeeling with melancholy or compassion for the unhappy sufferers, and with indignation

and resentment against the barbarous ravagers. It deserves notice, that though there are many instances of rage and vengeance against particular persons, yet the destruction was very general and often undistinguished: those who submitted and took protections, and some were known to favor them, having frequently suffered in the common ruin. Places and things, which from their public nature and general utility, should have been spared by a civilized people, have been destroyed, or plundered, or both. But above all, places of worship, ministers and religious persons of some particular protestant denominations, seem to have been treated with the most rancorous hatred, and at the same time with the highest contempt.”

“2. The inhuman treatment of those who were so unhappy as to become prisoners.”

“The prisoners, instead of that humane treatment which those who were taken by the United States experienced, were in general treated with the greatest barbarity. Many of them were near four days kept without food altogether. When they received a supply, it was both insufficient in point of quantity, and often of the worst kind. They suffered the utmost distress from cold, nakedness and close confinement. Freeman and men of substance, suffered all that a generous mind could suffer, from the contempt and mockery of British and foreign mercenaries. Multitudes died in prison; and when others were sent out, several died in the boats while carrying ashore, or upon the road attempting to go home. The committee, in the course of their enquiry, learned, that sometimes the common soldiers expressed sympathy with the prisoners, and the foreigners more than the English. But this was seldom or never the case with the officers; nor have they been able to hear of any charitable assistance given them by the inhabitants who remained in, or resorted to the city of New-York; which neglect, if universal, they believe was never known to happen in any similar case, in a christian country.”

“3. The savage butchery of those who had submitted and were incapable of resistance.”

“The committee found it to be the general opinion of the people in the neighborhood of Princeton and Trenton, that the enemy, the day before the battle of Princeton, had determined to give no quarter. They did not however, obtain any clear proof that there were any general orders for that purpose; but the treatment of several particular persons at and since that

time, has been of the most shocking kind, and gives too much countenance to the supposition. Officers wounded and disabled, some of them of the first rank, were barbarously mangled or put to death. A minister of the gospel in Trenton, who neither was nor had been in arms, was massacred in cold blood, though humbly supplicating for mercy.”—[Mr. Roseburgh, of the Forks of Delaware.]

“4. The lust and brutality of the soldiers in the abusing of women.”

“The committee had authentic information of many instances of the most indecent treatment, and actual ravishment of married and single women; but such is the nature of that most irreparable injury, that the persons suffering it, and their relations, though perfectly innocent, look upon it as a kind of reproach to have the facts related, and their names known. They have however, procured some affidavits, which will be published in the appendix. The originals are lodged with the secretary of congress.”

“Some complaints were made to the commanding officers upon the subject, and one affidavit made before a justice of peace; but the committee could not learn that any satisfaction was ever given or punishment inflicted, except that one soldier, at Pennington, was kept in custody for part of a day.”

“On the whole, the committee are sorry to say, that the cry of barbarity and cruelty is but too well founded; those who are cool to the American cause, have nothing to oppose to the facts, but their being incredible, and not like what they are pleased to stile the generosity and clemency of the English nation. The committee beg leave to observe, that one of the circumstances most frequently occurring in the enquiry, was the opprobrious, disdainful names given to the Americans; these do not need any proof, as they occur so frequently in the news-papers printed under their direction, and in the intercepted letters of those who are officers, and call themselves gentlemen. It is easy therefore to see what must be the conduct of a soldiery greedy of prey, toward a people whom they have been taught to look upon, not as freemen defending their rights on principle, but as desperadoes and profligates, who have risen up against law and order in general, and wish the subversion of the society itself.”

“This is the most candid and charitable manner in which the committee can account for the melancholy truths which they have been obliged to report. Indeed the same deluding principles seems to govern persons and

bodies of the highest rank in Britain; for it is worthy of notice, that not pamphleteers only, but king and parliament, constantly call those acts lenity, which on their first publication filled this whole continent with resentment and horror.”

“Resolved, That the said report be accepted, and that the committee who brought it in, publish the same, with the affidavits.”

The royalists, or tories as they are generally called, in the Maryland counties of Somerset and Worcester, became so formidable that an insurrection was dreaded; and it was feared that the insurgents would in such case be joined by a number of disaffected persons in the county of Sussex, in the Delaware state. Congress, to prevent the evil [April 20.] recommended the apprehension and removal of all persons of influence or of desperate characters, within the counties of Sussex, Worcester and Somerset, who manifested a disaffection to the American cause, to some remote place within their respective states, there to be secured; and authorised the governor of Maryland to detain the weakest continental battalion till further orders.

From appearances, the friends of America had reason to believe, that the tories in the New-England governments and New-York state, had also concerted an insurrection. [April 23.] General Gates, who had been sent to command in the northern department, wrote to general Fellows—“The committee of Albany, alarmed at the amazing increase and plots of the tories in this and the Mohawk’s country, have desired me to apply to you and the committee of Berkshire, to send immediately a strong reinforcement of militia, not less than a complete regiment, to secure this place (Albany) and the magazines at different posts between Albany and Lake George.”

Sir William Howe having obtained intelligence that the Americans had deposited large quantities of stores and provisions in Danbury and the neighborhood, ordered an expedition to be undertaken for the destruction of them, under the command of gov. Tryon, who had accepted of the rank of major-general of the provincials, and aspired after a military character. Sir William very prudently appointed gen. Agnew and Sir William Erskine to accompany him upon the service. A detachment of about 2000 men passed through the Sound, under the convoy of a proper naval armament, and landing between Fairfield and Norwalk, a little before sun-set, advanced without interruption, and arrived the following day [April 26.] a little after

one in the afternoon, at Danbury, about 23 miles distant. The handful of continentals there, was obliged to evacuate the town, having previously secured a small part of the stores, provisions, &c. The enemy, on their arrival, began burning and destroying the remainder, together with 18 houses, their furniture, linen, &c. which were judged from circumstances, to have been singled out for that purpose. In one they killed two elderly men and a negro, and then burnt them with the house. Not one of the tory houses was damaged. They destroyed at Danbury 1800 barrels of pork and beef, 700 barrels of flour, 2000 bushels of wheat, rye, oats and Indian corn, clothing for a whole regiment, and 1790 tents, which, through their scarcity, were a great loss to the Americans. To these must be added about 100 barrels of flour and 100 hogsheads of rum, which met with the same fate upon the road by which they returned; these are the main articles that were destroyed. The burning of the houses appears to have been unnecessary, and wholly the effect of malevolence.

On the first approach of the British armament, the country was alarmed; and early the next morning, gen. Silliman, with about 500 militia (all that had then collected) pursued the enemy. He was joined on his way by generals Wooster and Arnold, and a few more militia. A heavy rain so retarded their march, that they did not reach Bethel (a village two miles from Danbury) till eleven at night. An attack on the British was postponed till they should be upon their return. On the 27th in the morning, the royal troops quitted Danbury. The Americans were early in motion. Two hundred remained with gen. Wooster; and about 400 were detached under generals Arnold and Silliman. About nine o'clock gen. Wooster was informed that the enemy had taken the road to Norwalk, on which he pursued them; came up with, and harassed their rear, and took 40 prisoners, but was mortally wounded. General Arnold, by a forced march across the country, reached Ridgfield at eleven; made a barricade on a rising ground across the road; posted his small party of 500 men (100 having joined him) so as to have his right flank covered by a house and barn, and his left by a ledge of rocks; and thus waited the approach of the enemy, who, upon discovering the Americans, drew up and advanced in a heavy column, extending themselves in order to outflank and surround them. They marched up, and received several fires, which they returned briskly. For ten minutes the action was very warm, till they had made a lodgment on the rock, when a retreat was ordered. After gaining the rock, they levelled a whole platoon at

gen. Arnold, within 30 yards, and yet but one shot had effect, and that killed his horse. He had presence of mind to take his pistols, and got safe off by shooting a soldier dead who was advancing hastily to run him through with his bayonet. The Americans continued to keep up a scattering fire for the remaining part of the day. The British halted all night at Ridgfield, and in the morning attempted to burn the church, in which was a considerable quantity of pork and wheat, but the fire was extinguished without having done any material damage. They however fired four private houses, which were consumed. Monday [April 28.] about sun-rise they renewed their march; but perceiving that Arnold, with a number of men, was on the road to Norwalk, they filed off to the east, forded Sagatuck river, and marched by the side of it on a ridge of hills. The Americans kept on the west side, nearly half a mile from them. Each cannonaded the other at times very warmly. About three o'clock in the afternoon, col. Deming and a small party of continental troops forded the river up to their middle, undiscovered by the enemy, and fell on their rear and left, and galled them exceedingly. The Americans marched on till they got to Sagatuck bridge, about two miles from Campo, of which the enemy possessed themselves after landing; when both being upon high land, a furious cannonading ensued, which continued for fifteen minutes. The British then pushed on with vigor to reach their shipping. Arnold, with a division, pursued closely, and by a quick march gained an eminence on the right flank of the enemy's rear. An incessant fire of field-pieces and small arms followed for a small time, but with little or no execution. The Americans could not pursue further without being exposed to the fire of the ships. The van of the British immediately embarked. The centre and rear formed on the hill. While the field-pieces were playing on the boats, col. Lamb, of New-York, advanced with a party of 200 men within 100 yards of the enemy on the hill, and galled them from behind a stone wall. They in about ten minutes sent a party from their right, to flank the Americans, and advanced another party from their front, who came running down the hill with great fury. Notwithstanding the spirited exertions of col. Lamb, his party instantly retreated in great disorder, and were pursued to the foot of the hill; and not a single man would venture to support them. Those who were at hand, sought their own safety by a speedy flight. The remainder of the British soon after embarked without further molestation.

Thus ended an affair which reflects much honor on gen. Arnold for his personal bravery; but not much upon gen. Tryon's expedition (if the plan was his) as the destruction of American property was not a sufficient compensation for the loss which the detachment under him sustained. The enemy allow that the excursion cost them dear; and from various accounts and circumstances, there is little reason to doubt, but they had at least four hundred killed, wounded and taken. A great number of the Connecticut militia assembled, but not more than 6 or 700 of them subjected themselves to any order, the rest were mere spectators; of such as did subject themselves, too many behaved in a disgraceful cowardly manner. Their assembling however, and exerting themselves as they did, served to show in a striking point of view, the spirit of opposition prevailing among the people. The loss of the Americans was about twenty men killed and forty wounded. Doctor Atwater, a gentleman of considerable influence, was among the slain. Col. Lamb received a violent contusion on his back from a grape shot, while attempting to rally his men. Gen. Arnold was exposed at the same time, and had his horse shot through the neck. Gen. Wooster languished for a few days under the wound he had received, and died on the 2d of May. Congress resolved that a monument should be erected to his memory, as an acknowledgment for his merit and services. The gen. behaved with great valor, and lost his life gloriously, in defending the liberties of America at the advanced age of seventy. Proper notice was taken of gen. Arnold on the twentieth of May, when congress resolved, "That the quarter-master-general be directed to procure a horse, and present the same, properly caparisoned, to major-gen. Arnold, in the name of this congress, as a token of their approbation of his gallant conduct in the action against the enemy in their late enterprize to Danbury, in which gen. Arnold had one horse killed under him, and another wounded." They had chosen him major-general on the second of May.

General Washington concluding that a bridge which the British had been preparing at Brunswick, was intended for the conveying of them across the Delaware, directed Mr. Mersereau to procure the exact breadth of the river from Corriel's ferry to the falls, that so knowing that and the length of the bridge, which he meant to obtain, he might penetrate where it was that they designed to pass over. Instead of his army's gathering strength proportionable to the exigencies that existed, he had to complain of the uncommon prevalency of desertion in it. The deficiency in some of the

corps which joined him, from that and other causes, was almost incredible. It was the case, that too many convict servants were purchased from their masters by the recruiting officers; and on such there could be no reliance. [May 21.] The general wrote, "Nothing, but a good face and false appearances have enabled us hitherto to deceive the enemy respecting our strength."

Gen. Parsons, knowing that the British commissaries had been employed in procuring forage, grain and other necessities for the royal army, which were deposited at Sagg-harbour, projected a scheme for destroying them; and employed col. Meigs in executing it. The col. left New-Haven, with his men in thirteen whale-boats, on the 21st of May, and proceeded to Guilford. The wind being high and the sea rough, he could not pass the Sound till Friday the 23d. He then left Guilford at one o'clock in the afternoon, with one hundred and seventy men of his detachment, under convoy of two armed sloops, and in company with another unarmed to bring off prisoners, and crossed the Sound to the north branch of the island, near Southhold, where he arrived about six in the evening. He ordered the whale-boats, with most of the men, over land to the bay, where they re-embarked, to the number of one hundred and thirty, and at about twelve o'clock arrived safe across the bay (which separated between the north and south branch of the island) within about four miles of Sagg-harbour; the boats being first secured in the wood, under the care of a guard, the colonel marched with the remaining detachment, in the greatest order and silence, and at two o'clock arrived at the harbour. [May 24.] The several divisions with fixed bayonet, attacked the guards and posts assigned them. The alarm soon became general, when a schooner of twelve guns and seventy men began a fire: the Americans returned it, and fired the vessels and forage, killed and captivated all the soldiers and sailors, except six who escaped under cover of the night. Twelve brigs and sloops (one an armed vessel with twelve guns) about a hundred tons of pressed hay, oats, corn (meaning Indian) and other forage, ten hogsheads of rum, and a large quantity of merchandize were consumed. The colonel returned safe with all his men to Guilford by two o'clock in the afternoon, with ninety prisoners (having in twenty-five hours, by land and water, transported his men full ninety miles) without having a single man killed or wounded. The enemy had six killed. Congress have since ordered an elegant sword to be presented to him.

General Washington at length being somewhat reinforced, quitted Morristown toward the end of May; and advancing within a few miles of Brunswick, took possession of the strong country about Middle-Brook. His whole force however, present and fit for duty, including what was under gen. Sullivan (who lay at a small distance from him) with matrosses and one hundred and eighty cavalry, amounted, on the 9th of June, to no more than 7271.^[47] He wrote on the 12th, "A council of general officers all agreed, that our present army was insufficient to make a proper resistance, or to attack Howe's united force, or to make an impression upon him should he leave us unmolested, and march through the flat country toward the Delaware." The plea that Sir William Howe made for not taking the field, was the want of tents and field equipage, which were not sent him in time.

The articles arriving, together with a body of Anspachers, and a number of British and German recruits, he passed over to the Jerseys, and marched from Brunswick on the night of the 13th, and took the field. But he was not attended with that number of provincials which was expected. "Mr. Oliver Delancey, reputed the most likely man in New-York to induce the loyalists of that province to join the king's troops, was appointed a brigadier general, and authorised to raise three battalions, to consist of 1500 privates. Every possible effort was used by him and gov. Tryon, not only in the districts possessed by the king's troops, but by employing persons to go through the country, and invite the well-affected to come in. Several of the officers, anxious to complete their corps, sought for recruits among the prisoners, and ventured to hold out to them the temptations of pay, liberty and pardon. Notwithstanding all these efforts and encouragements, gen. Delancey raised only 597 men."—Mr. Courtland Skinner, who is acknowledged to possess considerable influence in Jerseys, was also appointed a brigadier general, and authorized to raise five battalions, to consist of 2500 privates.—The same efforts were made as for the raising of Delancey's corps, but Skinner's number amounted only to 517."^[48] No sooner had gen. Howe taken the field, but the Jersey militia turned out in a very spirited manner, as though determined, in conjunction with the continentals, to harrass and oppose the royal army on their march through the country. The gen. came out as light as he could, leaving all his baggage, provisions, (except enough to subsist the troops two or three days at a time) boats and bridges at Brunswick; which, in the judgment of general Washington, forcibly contracted the idea of an expedition toward the Delaware. Every appearance coincided to

confirm the opinion, that Howe intended in the first place a stroke at his army. The American general reasoned thus: “Had their design in the first instance been to cross the Delaware, they would probably have made a strict rapid march toward it, and not have halted, as they have done to awaken our attention, and give us time to make every preparation for obstructing them^[49].”——Of the sudden retreat of the royal army. The general wrote on the 20th, “The enemy decamped the night before last, and have returned to their former position. It appears to have been in consequence of a sudden resolution, as they had raised a chain of redoubts from Somerset to Brunswick. What may have determined them to change their plan is hard to tell. Whether alarmed at the animation among the people—disappointed in the movements they may have expected us to make, thence concluding their design impracticable—or whether they may have an operation in view in some other quarter, the event must show.”——Howe’s front extended to Somerset Court-house, about nine miles; his rear remained at Middle-Bush, half way between that and Brunswick. Washington was encamped upon his right flank (as he marched) at the distance of about five miles. His troops were so disposed under Sullivan and himself, as to have been capable of giving a pretty successful opposition. When the royal army retreated back to Brunswick, they burnt and destroyed the farm houses upon the road. Their cruelties to the inhabitants were inexpressible, they ruined and defaced every public edifice, particularly those dedicated to the Deity. They removed their baggage to Amboy, for which place they set out on the 22d. The evening before, several pieces of information, and a variety of circumstances, made it evident to the American general, that a move was in agitation, and it was the prevailing opinion that it would be the next morning. The general therefore detached three brigades under gen. Greene, to fall upon the rear and kept the main body paraded to support them, if necessary. A party of col. Morgans’ light-infantry attacked, and drove the Hessian picket about sun-rise. The enemy, upon the appearance of Wayne’s brigade, and Morgan’s regiment opposite Brunswick, immediately crossed the bridge to the east side of the river, and threw themselves into redoubts. The Americans advanced briskly upon them, upon which they quitted the redoubts without making opposition, and retired by the Amboy road. In the pursuit, col. Morgan’s riflemen exchanged several sharp fires with the enemy which did considerable execution. From intelligence through various

channels, there was reason to believe, that their loss was considerable and fell chiefly on the grenadiers and light infantry, who formed their covering party. Gen. Howe arrived at New-York on Sunday afternoon the whole of which day was employed in removing the wounded soldiers from the docks to the hospitals there, said to amount to some hundreds.^[50] One of the American generals humorously wrote concerning Sir William Howe's returning to Brunswick by night—"Gen. Howe remained five days, and then sneaks off by night, and it is well he did—for had he went by day, we could have done nothing, but have looked at him."

Lieut. col. Palfrey, formerly an aid-de-camp to gen. Washington, and now pay-master-general, wrote to his friend, "I was at Brunswick just after the enemy had left it. Never let the British troops upbraid the Americans with want of cleanliness, for such dog kennels as their huts were my eyes never beheld. Mr. Burton's house, where lord Cornwallis resided, stunk so I could not bear to enter it. The houses were torn to pieces, and the inhabitants as well as the soldiers have suffered greatly for want of provisions."

[June 24.] Gen. Washington, upon the enemy's retreat to Amboy, with the advice of his general officers, moved the whole army to Quibble-town, that he might be nearer to the royal forces, and might act according to circumstances. The British general, after sending over from Amboy to Staten-Island, the heavy baggage and all the encumbrances of the army, ordered a number of the troops to follow; with an intention of deceiving the Americans into an opinion, that they had nothing more to apprehend from that quarter. The troops returned the evening of the 25th, and the next morning, the general advanced unexpectedly with his whole army, in two columns, from Amboy. Gen. Washington conjectured, that so sudden a movement, was designed either to bring on a general engagement, upon terms disadvantageous to the Americans; or to cut off their parties, and lord Stirling's division, which had been sent down to support them: or to possess the heights and passes in the mountains on the left of the continental army. The two last were adjudged to be the first object of Howe's attention, as his march was rapid against these parties, and indicated a strong disposition to gain the passes. Upon this gen. Washington judged it absolutely necessary to move his force from the low ground to occupy the heights before the enemy, which was affected with much dispatch. The enemy fell in with some of the light parties, and a part of lord Stirling's division. His lordship was in no hurry to retreat, but preferred engaging for a while, wherein he

made a wrong choice, for he had nearly been cut off, by the right column under lord Cornwallis. He lost three field pieces, but the loss of men was trifling. The enemy's loss in the several skirmishes of the day, was thought to be more considerable than that of the Americans. The royal army continued the pursuit as far as Westfield; but the woods and intense heat of the weather prevented its effect. When the American general had gained the passes, he detached a body of light troops to watch their motions, and afterward ordered Morgan's riflemen to join the service. The British remained till the next day about three in the afternoon, and then returned to Rahway and the day following to Amboy. On the 30th, at ten o'clock in the morning, the troops began to cross over to Staten-Island, and the rear guard passed at two in the afternoon, without the least appearance of an enemy. Thus they evacuated the Jerseys, to enter upon new conquests, in hope of reducing the United States to unconditional submission. Unless they can hold, when they have conquered, they will never accomplish the business assigned them by the British ministry.

Let us leave gen. Howe engaged in embarking his army from Staten-Island, and preparing for some grand expedition; that we may attend to the affairs of the northern department.

Gen. Scuyler presented a memorial to congress explaining the expressions in his letter which had given them offence. They resolved, on the 8th of May, that the explanation was satisfactory, and that now they entertained the same favourable sentiments concerning him, which they entertained before that letter was received. This seems to have been designedly preparative to what followed a fortnight after, when it was resolved, "That Albany, Tyconderoga, Fort Stanwix and their dependencies, be henceforth considered as forming the northern department—that major-general Scuyler be directed forthwith to proceed to the northern department, to take the command there." It was said that he was the only single man who could keep the New-York subjects united against the common enemy, and that his presence was absolutely necessary for their immediate succour and service, as well as that of the United States, closely connected therewith. The New-England delegates, the president excepted, opposed his being directed to take the command, as it superseded general Gates. But they were obliged to yield to numbers, at a time when unluckily some men were absent, who would otherwise have turned the scale. The choice of general Scuyler caused great boasting, though there were only five states

out of eleven in favor of the measure, and others were either against it, or could not vote for want of the requisite number of delegates, or their being equally divided. There is what numbers deem a New-York party in congress, whose proceedings have in some instances been mysterious. An absolute order for relinquishing the western lines and Tyconderoga, was pushed for before the choice of Scuyler, but did not prevail; however it was resolved, that general Gates should be empowered to abandon Tyconderoga at pleasure.

It was incumbent on the states of New-Hampshire, Massachusetts in particular, and Connecticut, to furnish the troops necessary for the defence of the northern posts; but a strange remissness prevailed, greatly from an expectation that Tyconderoga would not be attacked. The Massachusetts general court learning that this was the opinion of the commander in chief, neglected forwarding their quota of men. Reports (occasioned probably by the arts of the enemy) were spread, that the troops in Canada were to join gen. Howe. Members of congress were deceived by them, so that gen. Gates, after he had taken the command, wrote that he had the strongest assurances from congress, that the king's troops were all ordered round, by the river St. Lawrence, to New-York, leaving only a sufficient number to garrison their forts. Gates estimated, that for the defence of Ty and its dependencies, 11,700 continentals, beside the aid of the militia, would be wanted. Scuyler afterward estimated them at 10,000, but then he thought the lines at Mount Independence not one half so extensive as he found them.

The British operations against this department, were taken out of the hands of Sir Guy Carleton, and committed to the charge of gen. Burgoyne. The force allotted to them, consisting of British and German troops, amounted to more than 7000 men, exclusive of the artillery corps. Of these the Germans, mostly Brunswickers, exceeded 3200. Arms and accoutrements were amply provided to supply those royalists who were expected to join the army as soon as it penetrated the frontiers of the United States. A powerful brass train of artillery was furnished, probably the finest, and the most excellent supplied as to officers and private men, that had ever been allotted to second the operations of any army not exceeding the present in number. Beside the regular forces, several tribes of Indians were induced to come into the field. It has been generally supposed, that Carleton's scruples upon the point of employing them, were by no means acceptable to

ministry. They were considered as a principal number of the force destined to the prosecution of the northern war; and the governor of Canada was accordingly enjoined to use his utmost influence in bringing them forward in support of it. In the execution of the proposed operations, gen. Burgoyne was seconded by able and excellent officers, gen. Philips, of the artillery, generals Frazer, Powel and Hamilton, with the Brunswick generals Baron Reidesel and gen. Specht. The army was, in every respect, in the best condition; the troops were in the highest spirits, admirably disciplined, and uncommonly healthy. Colonel St. Leger was detached by way of Oswego, to make a diversion on the Mohawk river. He had 220 men, from the eighth and thirty-fourth regiments, Sir John Johnson's corps of New-Yorkers, lately raised, some Hannau chasseurs, a company of Canadians and a party of Indians, beside the expectation of being joined by a much larger number. His force did not probably exceed 800 men. The main army, under gen. Burgoyne, proceeded up Lake Champlain, landed, and encamped at no great distance from Crown-Point, where he met the Indians in congress, and afterward, in compliance with their customs, gave them a war feast. He made a speech to them [June 21.] calculated to excite their ardor in the common cause, and at the same time to repress their barbarity. He enjoined it upon them, that they should only kill those who opposed them in arms; that old men, women, children and prisoners, should be held sacred from the knife or hatchet, even in the heat of actual conflict; that they should only scalp those whom they had slain in fair opposition; but that under no pretence should they scalp the wounded, or even dying, much less kill persons in that condition. They were promised a compensation for prisoners, but informed that they should be called to account for scalps. Four days before this speech, gen. Scuyler arrived at Ty; but did not find the post in so good a state of defence as he expected. He imagined that the proposed obstructions (which had been ordered by congress the last December, and which had been backed by his order given in February, and repeated the fifth of June) would have been completed, or at least considerably more advanced. That they were carried on with no more dispatch, was imputed greatly to the late arrival of such troops as could not be brought to work in spirit; to artificers not coming by the time they were ordered, and to a want of working cattle. Gen. St. Clair would before this have called in the militia, but for the state of his magazine; which made him

apprehend, that should they come in fast, they might eat him out before the arrival either of the enemy or a supply.

[June 29.] General Burgoyne issued out a proclamation, meant to spread terror among the Americans who avowedly professed themselves the friends of congressional measures; and especially to excite in them a fear of the Indians, whose number was magnified, and eagerness to be let loose on their prey, described with uncommon energy. Protection and security, clogged with conditions, were held out to the peaceable, who continued in their habitations. All the outrages of war, arrayed in their most terrific forms, were denounced against those who persevered in their hostility. But the people at large were so far from being frightened, that they diverted themselves with the proclamation, as a complete model of pomposity.

General St. Clair hoped that the enemy would have assaulted him; and depended on that for rendering his small garrison serviceable to his country, as he was persuaded that his troops were brave, and in case of an assault, would have given a good account of the assailants. But the moment he was informed of Burgoyne's numbers, and saw that a regular siege was meant, he was certain that the effectual defence of the posts was impossible. The old French lines at Ty, had been strengthened with additional works. There were other posts with works and blockhouses toward Lake George. Opposite Ty, on the eastern shore of the inlet by which the waters from Lake George empty themselves into Lake Champlain, a high circular hill, alias Mount Independence, was strongly fortified. These two posts were joined by a floating bridge, below which a slight boom was thrown across the lake, and large cassoons were sunk above, but this arduous work for obstructing the navigation, was not completed. Instead of a full complement of troops to man the extensive lines and defend the numerous works, the whole force consisted only of 2546 continentals, beside 900 militia, badly equipped and worse armed, particularly in the article of bayonets, which not above one in ten had. The smallness of the garrison would not admit of their possessing themselves of Sugar-hill, alias Mount Defiance, which by its height and proximity, had such an entire command both of Ty and Mount Independence, that an enemy might from thence have counted their very numbers, and enfiladed every part of their works, as had been discovered months before, upon trial, when a cannon had been drawn up and fired from the top of it.

[July 2.] On the near approach of the right wing of the royal army upon the Tyconderoga side, the Americans abandoned their works toward Lake George, and left gen. Philips to possess the advantageous post of Mount Hope, without making any resistance, which must have been ineffectual, and could have answered no good purpose. That apparent supineness and want of vigor with which they were chargeable, was not occasioned by cowardice or incapacity, but actual imbecility. Gen. Burgoyne's troops proceeded with much expedition in the construction of their works, the bringing up of artillery, stores and provisions, and the establishment of their posts. But what gave the greatest alarm, was the very rapid progress they made in clearing a road and getting artillery on Sugar-hill. When once they had erected a battery on this height, only a few hours more would have been required to have invested the Americans on all sides, which might have been effected by occupying the ground on the east side of Lake Champlain, below Mount Independence, where the pass from the lake to East-Creek is very narrow. The same reason which prevented gen. St. Clair's calling in the militia when the royal army was at a distance, prevailed when they drew nearer. Having received intelligence by spies, that in 24 hours the investiture would be completed, when he should be cut off from all possibility of succour, gen. Scuyler, not having force sufficient at Fort Edward to relieve him, he determined to evacuate his posts, though he knew it would produce such astonishment as had not happened since the commencement of the war. If he was sensible at the time, that should he remain there, he would save his character but lose the army; whereas did he go off, he should save the army but lose his character, and did he courageously conclude upon sacrificing the last to the cause in which he was engaged, he deserves the warmest commendations. A council of war was called, and it was unanimously concluded upon to evacuate as soon as possible. The general, by evacuating, intended to throw his troops between the country and the royal army, that the militia might have a body to collect to, whereas Burgoyne would otherwise be at liberty to pursue his operations without any obstacle. Proper measures were immediately taken for effecting the evacuation. Orders were given to the troops to take with them, before they left the ground 8 days provisions, sufficient to have carried them to the North-River had they pursued the route intended. The general meant to push for Skeensborough, and there to have met the 200 boats and 5 armed gallies, on board of which were embarked at night as much cannon, stores

and provisions as time would permit. The officer in the Jersey redoubt was to continue firing his cannon every half hour, toward the battery the enemy were erecting opposite to him till further orders, that there might be no suspicion of the manœuvres going forward. All the cannon that could not be removed were to be spiked up, and many were. The knocking off of the trunnions was omitted, as it might alarm the enemy. Previous to the striking the tents every light was to be put out. Though the evacuation was resolved upon about three in the afternoon, it could not be carried into execution till night; and it was at a season when the nights were at the shortest, and when it was moon light. The necessity of keeping the matter a secret until the very moment prevented any preparatory steps to expedite the business. Hence difficulties arose, which occasioned some irregularities in the different embarkations and made it impossible to prevent all disorder. But for want of gen. Fermoy's circulating proper orders in season to his brigade, and of due attention on his part, every thing appeared in the greatest confusion on Mount Independence.

[July 6.] At two o'clock in the morning St. Clair left Tyconderoga. About three, the troops were put into motion for the evacuation of the Mount, but Fermoy having set fire to his house (contrary to positive orders) the whole Mount was enlightened by it, so that the enemy had an opportunity of seeing every movement, which damped the spirits of the Americans, and induced them to push off in a disorderly manner. Colonel Francis brought off the rear guard in good order about four o'clock. Many regiments after a while recovered from their confusion through the exertion of St. Clair. Upon the army's arriving at Hubbardton they were halted for near two hours.—The rear guard was increased by many who at first did not belong to it, but were picked up, through an inability of keeping up with their regiments. Most of the stragglers and rear guard having joined, the army was again put in motion. The rear guard was here given to col. Warner, with orders to follow as soon as the whole came up, and to halt about a mile and a half short of the main body (which was to continue that night at Charlestown, about six miles from Hubbardton) and to march in the morning by four and join it. Charlestown is thirty miles from Ty, and twelve from Skeensborough. Col. Warner, with the rear-guard and stragglers, amounting to near 1200, determined to remain at Hubbardton that night, because the men were much fatigued. In the morning the general paraded the army, and waited near two hours for the rear-guard.

When general Frazer perceived in the morning, that the Americans were retiring, he commenced a pursuit with his brigade, consisting of the light troops, grenadiers and some other corps. General Reidesel, with most of the Brunswickers, was ordered by the British commander to join in the pursuit, either to support Frazer or to act separately. The latter continued the pursuit through the day; and receiving intelligence that St. Clair's rear was at no great distance, ordered his troops to lie that night on their arms. In the morning he came up with the Americans, commanded by colonel Warner, who had beside his own, the regiments of colonels Francis and Hale. The British advanced boldly [July 7.] and the two bodies formed within about sixty yards of each other. Frazer began the attack about seven o'clock, expecting every moment to be joined by Reidesel, and apprehending that if he delayed, the enemy would escape. Hale being apprized of the danger, never brought his regiment to the charge, but fled; so that Warner could bring into action no more than about seven hundred men. The conflict was bloody. Francis fell fighting with great bravery. Warner, officers and soldiers, behaved with much resolution and gallantry, so that the British broke and gave way, but soon formed again, and running on the Americans with their bayonets,^[51] the latter were put into no small confusion, which was increased by the critical arrival of gen. Reidesel with the foremost of his column, consisting of the chasseur company, and eighty grenadiers and light infantry, who were immediately led into action. They now fled on all sides. Gen. St. Clair heard when the firing began, and would have supported Warner; but the troops that were nearest, two militia regiments, would not obey order, and the others were at too great a distance. Hale, who had attempted to get off by flight, fell in with an inconsiderable party of British, and surrendered himself, with a number of his men prisoners. The Americans lost 324 in killed, wounded and prisoners. Among the last were 12 officers. The royal troops, including British and Germans, had not less than 183 killed and wounded. They had three officers killed and twelve wounded.^[52] While St. Clair was at Castleton, an officer of one of the galleys arrived with information that the British were pursuing in force toward Skeensborough and would reach it before he could get there. This determined him to change his route, and to strike into the woods on his left, lest he should be intercepted at Fort Anne. Two New-England regiments of militia, Leonard's and Well's discovered such a plundering disposition on their march, and behaved so disorderly during the whole retreat, that two

days after leaving Castleton he was obliged to dismiss them from the army with disgrace.^[53] General Burgoyne confiding in Frazer's abilities to conduct the pursuit of the Americans by land, turned his attention to the pursuit by water. The boom and the other obstructions of the navigation, not having been completed were soon cut through; so that the gun-boats, the Royal George and the Inflexible frigates had passed by nine o'clock in the morning. Several regiments embarked on board the vessels, and the pursuit was supported with such vigor, that by three in the afternoon, the foremost brigade of gun-boats were engaged with the enemy's galleys near Skeensborough falls. Upon the approach of the frigates, opposition ceased, two of the galleys were taken, and the other three blown up. The Americans not being in sufficient force to make an effectual stand, set fire to the works, fort, mills and batteaux; and escaped as they could up Wood Creek to Fort Anne, where they were joined by others, ordered thither by gen. Scuyler, who lay at Fort Edward. On the day of the engagement at Hubbardton, the general was obliged to strip the men at the last fort, to send to the troops at the former; by which his own were left without lead for some days, except a mere trifle from Albany, obtained by stripping the windows. At this period he had not above seven hundred continentals, and not above twice the number of militia; and could not furnish small cannon sufficient for a couple of little schooners on Lake George. Lieut. col. Hill was detached by gen. Burgoyne from Skeensborough with the ninth regiment, to take post near Fort Anne, and watch the motions of the Americans. The next morning [July 8.] at half past ten, they attacked him in front, with a heavy and well-directed fire. A large body passed the creek on the left, and fired from a thick wood across the creek on the left flank of the regiment; they then began to recross the creek, and attack it in the rear. It took post on the top of a hill on the right to prevent being surrounded. No sooner had it taken post, than they made a vigorous attack, which continued for upward of two hours, and would certainly have carried their point, had it not been for some Indians, who arrived and gave the Indian war-whoop, which was answered by the regiment with three cheers, after which the Americans soon gave way.^[54] They then fired the fort, and retreated to Fort Edward. The artillery lost by the evacuation of the northern posts, and taken or destroyed in the armed vessels at Skeensborough, was prodigious, amounting to no less than 128 pieces serviceable and unserviceable. The loss of flour, biscuit, pork and beef was also very considerable.

Gen. St. Clair joined gen. Scuyler at Fort Edward on the twelfth, after a fatiguing march, in which the army suffered much from bad weather and want of provisions. Three days after, their whole strength did not exceed 4400 men, including militia. The day following the affair at Fort Anne, Scuyler ordered a brigade of militia to begin, as near the fort as possible, to fall trees; to take up the bridges, and burn the covering and timber; and to make the utmost obstructions. [July 16.] A continental brigade was directed to assist in destroying and completely stopping the roads. The same day gen. Scuyler took out of a canteen with a false bottom, a letter written by Mr. Levis to gen. Sullivan. Scuyler prepared an answer designedly worded so as to deceive and perplex Burgoyne; which he signed Canteen, communicated to several gentlemen, and then forwarded. The British general when it was received, could not tell what to make of it. He was puzzled for two or three days, and at a loss whether to proceed or retreat; the latter was so completely enigmatical.^[55]

Happily for the Americans, the British general continued for several days, with the army partly at Skeensborough, and partly spread in the adjoining country, waiting the arrival of tents, baggage and provision. In which time no labor was spared in opening roads for advancing toward Scuyler, and in clearing Wood Creek of all impediments laid in the way, in order to open a passage for the batteaux. Like exertions were used at Ty, in carrying gun-boats, provision vessels and batteaux over land into Lake George. By reason of the route which the general took, he did not arrive at Hudson's-River, and fix his head-quarters near Fort Edward, till the 30th of July. Fort Edward is no more than the ruins of a former fort, and of no consequence to any party. It could afford no cover to general Scuyler, and only gave a name to the place where it was situated. The general left it several days before Burgoyne gained its neighborhood. He gave this state of his army on the 27th, at Moses' Creek, in an official letter—"It consists of about 2700 continental troops—of militia from the state of Connecticut—one major—one captain—two lieutenants—two ensigns—one adjutant—one quarter-master—six sergeants—one drummer—six sick—and three rank and file fit for duty—the rest, after remaining three or four days, deserted us—Of those from the county of Berkshire (in the Massachusetts) who consisted of upward of 1200, half of which were to have remained, somewhat more than 200 are left, the remainder having also deserted—Of colonel Mosely's regiment, from the county of Hampshire (Massachusetts)

about ten or twelve are left, the rest having deserted—Of colonel Porter's regiment, of the county of Hampshire, about 200 left—Of the militia of the county of Albany, 1050 are left, being forty-six more than half of what were upon the ground when it was resolved to let half return to their habitations." He added, "That torpor, criminal indifference and want of spirit which so generally prevails, is more dangerous than all the efforts of the enemy. Nor is that jealousy and spirit of detraction which so unhappily prevails, of small detriment to our cause." The next day he wrote from Saratoga, twenty miles below Fort Edward and thirty-seven above Albany, "Every effort of the enemy would be in vain, if our exertions equalled our abilities, if our virtue was not sinking under that infamous venality which pervades throughout, and threatens us with ruin."

The desertions above mentioned, were not to the enemy, but to their own homes; Scuyler was, for some reasons, a very unacceptable commander to the New-England militia. They were in general disgusted with, and would not serve under him. There were no desertions to the royal army worth noticing, which argues there were no lurking seeds of disaffection to the American cause.

Had the British commander returned immediately to Ty, and advanced from thence in the most expeditious manner, with a few light field-pieces, instead of suffering any delay, in order to his dragging along with him a heavy train of artillery, he might have been at Albany by the time he got to Hudson's-River.^[56] Your correspondent, the fifth of October, the last year, breakfasted with general Gates, at Ty; sailed in company up Lake George (about 35 miles long) with their horses in batteaux; landed, stayed a while, and reached Fort Edward (about 9 miles from Fort George) at night, a little after eight. From Ty to Lake George is rather more than two miles. The two small schooners on the lake, could have made no long resistance against a brigade of gun-boats. Fort George was well adapted to keep off Indians and small parties, but not to stop the royal army. The Americans there, instead of defending the fort or opposing the landing of the army, would undoubtedly have retreated to gen. Scuyler, at Fort Edward. The latter felt himself so weak, that by the first of August he drew back from Saratoga to Stillwater (25 miles north of Albany) from whence he wrote on the 4th, "We have not above 4000 continental troops; if men, one third of which are negroes, boys and men too aged for the field, or indeed any other service, can be called troops. The states from whence these troops came, can

determine why such boys, negroes and aged men were sent. A great part of the army took the field in a manner naked, without blankets, ill armed, and very deficient in accoutrements. Too many of our officers would be a disgrace to the most contemptible troops that were ever collected; and have so little sense of honor that cashiering them seems no punishment. They have stood by and suffered the most scandalous depredations to be committed on the poor, distressed, ruined and flying inhabitants.” He had also about fifteen hundred militia.

The evacuation of Tyconderoga and Mount Independence, surprised gen. Washington, and spread astonishment and terror through the New-England states. The general was led to believe that the garrison was much stronger. The Massachusetts general court were faulty in not having seasonably forwarded their quota of troops, agreeable to the requisition of congress. The apprehensions of the Massachusetts people were the greater, as their military friends with gen. Washington’s army, informed them that the expedition which Sir William Howe had undertaken, and for which he was embarking his troops from Staten-Island, was meant against Boston. But amid all the disasters which had happened, and the consequent terrors, no sort of disposition to comply with British propositions, appeared in any quarter. Notwithstanding the success that had attended the northern army, and the military storm that was gathering at Sandy-Hook, and no one state knowing where it would fall, yet each discovered a determination to remain independent. The American commander in chief received information that the common report among the sailors and soldiers was, that the fleet was going to the Delaware; but as Howe’s conduct was to him puzzling beyond measure, so were the informations he obtained. One time the ships were standing up toward the North-River. In a little while they were going up the Sound; and in an hour after, they were sailing out of the Hook. Before their sailing, a spirited adventure took place on the side of Rhode-Island, which not only fully retaliated the surprisal of general Lee, but procured an indemnification of his person. Lieutenant colonel Barton, of a militia regiment belonging to that state, with several other officers and volunteers, to the number of forty, passed by night [July 10.] from Warwick Neck to Rhode-Island, and though they had a passage of ten miles by water, eluded the watchfulness of the ships of war and guard-boats which surrounded the island. They conducted their enterprize with such silence and dexterity, that they surprised general Prescott in his quarters, about one mile from the water

side, and five from Newport, and brought him, with one of his aids-de-camp, safe to the continent, which they had nearly reached before there was any alarm among the enemy. This adventure, which with impartial judges must outweigh col. Harcourt's capture of gen. Lee, produced much exultation on the one side, and much regret on the other, from the influence it would necessarily have on Lee's destination. But more than a month before, congress had received information that Lee was treated by gen. Howe with kindness, generosity and tenderness, which had led them to desire that col. Campbell and the five Hessian officers should be treated in a similar manner, consistent with the confinement and safe custody of their persons. They resolved, within a few days after hearing of Prescott's being taken, that an elegant sword should be provided and presented to colonel Barton.

The British fleet and army which lay at Sandy-Hook, were destined for the reduction of Pennsylvania, particularly of Philadelphia, in pursuance of a plan which had been settled between Sir William Howe and lord George Germain; but did not sail till the 23d of July. The land force consisted of thirty-six British and Hessian battalions, including the light-infantry and grenadiers, with a powerful artillery, a New-York corps called the queen's rangers, and a regiment of light-horse, estimated altogether, at about 16,000. The fleet consisted of 267 sail. General Washington, upon the fleet's sailing, marched his army toward Pennsylvania, and halted it at Corriel's ferry, Howel's ferry, and Trenton. He wrote from Corriel's ferry on the 30th ——"Howe's (in a manner) abandoning Burgoyne, is so unaccountable a matter, that till I am fully assured it is so, I cannot help casting my eyes continually behind me." He mentioned his halting the army till the fleet should appear in the Delaware, and put the matter out of doubt; and that he had ordered gen. Sullivan's division to halt at Morristown, that it might march southward or northward, upon the first advice of the enemy's throwing any force up the North-River.

General Washington's perplexity for some days, cannot be so well conceived of as by extracts from his own letters; read then, and judge for yourself. "July 31. The enemy's fleet arrived at the Capes of Delaware yesterday, therefore order the two brigades thrown over the river, to march immediately." "Chester, August 1. I had proceeded thus far to look out for a proper place to arrange the army, when I received the provoking account, that the enemy's fleet left the Capes yesterday, and steered eastward. I shall

return with the utmost expedition to the North-River; a sudden stroke is certainly intended by this manœuvre. Call in every man of the militia to strengthen the highland posts.” “August 1. The enemy’s fleet put to sea yesterday morning at eight o’clock, and were out of sight three hours when the express came away. It appears gen. Howe has been practising a deep feint to draw our whole force to this point. Counter-march your division, and proceed with all possible expedition to Peek’s-kill.” “August 3. The conduct of the enemy is difficult and distressing to be understood.” “August 11. On the seventh the enemy was off Sinepuxent Inlet, about 16 leagues to the southward of the Capes of Delaware, on which I have halted for further intelligence.” “August 22. The enemy’s fleet have entered Chesapeake. There is not now the least danger of Howe’s going to New-England; forward this account to governor Trumbull, to be by him sent on to the eastward.”

Sir William Howe, while off the Capes, received that information which led him to judge it most advisable to proceed to Chesapeake-Bay instead of going up the Delaware. Such information could not relate to the measures taken for rendering the navigation of the river impracticable. These measures were matters of so great notoriety, that he must have been strangely deficient in procuring intelligence, if he did not know them before he left the Hook. Beside, the obstructions in the river did not reach so low down as either Newcastle or Wilmington; as high as either of which places the fleet might have come with safety; and had he landed at the first of them, he would have been within 36 miles of Philadelphia, and fourteen miles nearer than the Head of Elk. The information most probably related to gen. Washington’s having marched the continental army within a certain distance of Philadelphia; and perhaps, to a prospect of his being joined by a number of disaffected Americans in the states of Maryland and Delaware, upon his going up the Chesapeak and landing in Maryland. Be that as it may, through unfavourable winds he did not enter the Chesapeak till the 16th of August; and the difficulty of the navigation made it the 25th, before the army landed at Elk ferry. One part advanced to the Head of Elk, the other continued at the landing place to protect and forward the artillery, stores and necessary provisions. The day Sir William entered the Chesapeak, he received from lord George Germain, a letter of May the 18th, wherein was given him the first intimation, that any support whatever would be expected from him in favor of the northern expedition under gen.

Burgoyne, in words to this purpose—"I trust that whatever you may meditate, it will be executed in time to co-operate with the army ordered to proceed from Canada." Gen. Washington upon advice of the British army's having landed, marched toward the Brandywine river, with his troops, amounting in the whole to 11,000 present and fit for duty, including 1800 of the Pennsylvania militia. Gen. Greene attended with gen. Weedon, was sent to reconnoitre and find out an eligible spot for their encampment. He pitched upon one at the Cross Roads, near six miles distant from the royal army, which he judged suitable, as the Americans would there have an open country behind them, from whence they could draw assistance, and would have opportunities of skirmishing with the enemy before they were organized and provided with teams and horses, &c. for marching; and as Howe's troops would be a long while cramped before they could get what was wanting in order to their proceeding. He wrote to the commander in chief, acquainting him with the spot he had chosen. But the information was received too late: a council of war had determined the same day it was transmitted, to take a position upon Red-Clay Neck, about half way between Wilmington and Christianna, alias Christeen, with their left upon Christeen-neck, and their right extending toward, Chad's Ford. When the reason for it, that it would prevent the enemy's passing on for Philadelphia, was assigned to gen. Greene, he maintained, that they would not think of Philadelphia, till they had beaten the American army; and upon his observing the position which had been taken, he condemned it as being greatly hazardous, and such as must be abandoned, should the enemy when organized advance toward them. The Americans however, spent much time and labour in strengthening the post.

Let us break off here to mention some of the congressional proceedings. In the beginning of June, they approved general Washington's conduct as to the cartel for exchange of prisoners, and his reasoning upon the subject. The general had acquainted Sir William Howe, that he did "not hold himself bound either by the spirit of the agreement, or by the principles of justice, to account for those prisoners, who, from the rigor and severity of their treatment, were in so emaciated and languishing a state at the time they came out, as to render their death almost certain and inevitable, and which, in many instances, happened while they were returning to their homes, and in many others after their arrival." He said to him "You must be sensible that our engagement, as well as all others of the kind, though in letter it

expresses only an equality of rank and number, as the rule of exchange, yet it necessarily implies a regard to the general principles of mutual compensation and advantage. This is inherent in its nature, is the voice of reason, and no stipulation as to the condition in which prisoners should be returned, was requisite. Humanity dictated, that their treatment should be such as their health and comfort demanded. Nor is this the language of humanity alone—justice declares the same. The object of every cartel, or similar agreement, is the benefit of the prisoners themselves, and that of the contending powers—on this footing it equally exacts, that they should be well treated, as that they should be exchanged: the reverse is therefore an evident infraction, and ought to subject the party, on whom it is chargeable, to all the damages and ill consequences resulting from it.”^[57]

[June 14.] Congress “resolved, That the flag of the Thirteen United States be thirteen stripes, alternate red and white; that the union be thirteen stars, white in a blue field, representing a new constellation.” [June 20.] “Resolved, That a corps of invalids be formed, consisting of eight companies, each company to have one captain, two lieutenants, two ensigns, five sergeants, six corporals, two drummers, two fifers and a hundred men. This corps to be employed in garrison and for guards in cities and other places, as also to serve as a military school for young gentlemen, previous to their being appointed to marching regiments.” Lewis Nicola, esq. was immediately after elected colonel of the said corps.

The inhabitants of the New-Hampshire grants having set up an independent government, presented a petition to congress, praying that they might be considered as a free and independent state, and that delegates from them might be admitted to seats in congress. [June 30.] Their petition was dismissed. But though it was dismissed, the petitioners have not dissolved their government, but are resolutely determined to continue a free and independent state.

[July 7.] Congress resumed the consideration of certain letters from generals Sullivan, Greene and Knox, all dated the first of July; whereupon congress came to the following unanimous resolution: “That the president transmit to gen. Washington copies of the letters from generals Sullivan, Greene and Knox to congress, with directions to him to let those officers know that congress consider the said letters as an attempt to influence their decisions, an invasion of the liberties of the people, and indicating a want of

confidence in the justice of congress; that it is expected by congress, the said officers will make proper acknowledgments for an interference of so dangerous a tendency; but if any of those officers are unwilling to serve their country under the authority of congress, they shall be at liberty to resign their commissions and retire.” Their letters are supposed to have related to the affair of Monsieur du Coudray and other French officers, which will be immediately mentioned; and to have contained an intimation, that placing any of these over their heads would be preventive of their serving their country longer. If they have made any acknowledgments to congress, the same have been printed in the journals, or have hitherto escaped my search.

About the latter end of April, the *Amphitrite* arrived at Portsmouth from France, with military stores, intrenching tools, &c.—By the same or a similar opportunity, Mous. du Coudray, and several more officers, came over with a view of serving in the American army, upon terms agreed between them and Mr. Deane. Mr. Deane contracted with du Coudray for half a hundred officers. Coudray was to be commander in chief of the artillery and engineers; to have the rank of major-general; to precede some others by express stipulation and all by the preeminence usual to artillery. He was to be under no order but of congress and general Washington; to have the pay of a major-general in a separate department; and to be pensioned for life. Congress was embarrassed. There was no establishing of such an agreement without offering an insult to their own American officers of the first rank, and obliging them (in honor) to quit the service, unless they would ever after be esteemed the spiritless tools of congress. On the 11th of July, a committee of the whole resolved, “That Mr. Silas Deane had not any powers or authority from congress to make the treaty with Mr. du Coudray, and the other French gentlemen therein mentioned, and therefore that congress are not by any means bound to fulfil the terms thereof.” Mr. Deane’s instructions was to engage engineers *not exceeding* four. The next day it was resolved, “That it is the opinion of this committee, that the said agreement is inconsistent with the interest, honor and safety of these United States. This report being made, was smothered out of tenderness, and laid on the table, that a trial might be made to quiet the military ambition of du Coudray. They therefore on the 15th, “resolved, That a committee of three be appointed to confer with Mons. du Coudray; that they inform him, congress cannot comply with the agreement he has entered into with Mr.

Deane; but sensible of the services he has rendered these states, and having a favourable opinion of his merits and abilities, they will cheerfully give him such rank and appointments as shall *not* be inconsistent with the honor and safety of these states, or interfere with the great duties they owe to their constituents.” They afterward ordered money to be advanced to him, for the support of himself and the gentlemen who came with him from France; and on the 11th of August appointed him inspector general of ordnance and military manufactories, with the rank of major-general.

[July 31.] “Whereas the marquis de la Fayette, out of his great zeal to the cause of liberty, in which the United States are engaged, has left his family and connections, and at his own expence come over to offer his service to the United States without pension or particular allowance, and is anxious to risk his life in our cause:—Resolved, That his service be accepted, and that in consideration of his zeal, illustrious family and connections, he have the rank and commision of major-general in the army of the United States.”

The proceedings of congress must be suspended, till some account has been given of this noble phænomenon.

In 1776, the marquis at the age of nineteen, espoused the cause of the Americans, and determined upon joining them in person. He communicated his intention to the American commissioners at Paris, who failed not to encourage it, justly concluding that the eclat of his departure would be serviceable to their cause. Events however immediately occurred, which would have deterred from this undertaking a person less determined than the marquis. News arrived in France, that the remnant of the American army, reduced to 2000 insurgents as they were called, had fled toward Philadelphia through the Jerseys, before an army of 30,000 regulars. This news so effectually extinguished the little credit which America had in Europe, that their commissioners could not procure a vessel to forward this nobleman’s project. Under these circumstances they thought it but honest to discourage his prosecuting the enterprize, till a change in affairs should render it less hazardous or more promising. It was in vain however that they acted so candid a part. The flame which the American sons of liberty had kindled in his breast, could not be interrupted by their misfortunes. “Hitherto (said he, in the true spirit of heroism) I have only cherished your cause; now I am going to serve it. The lower it is in the opinion of the people, the greater effect my departure will have; and since you cannot get a

vessel, I shall purchase and fit out one to carry your dispatches to congress, and me to America.” He accordingly fitted out a vessel, and in the mean while made a visit to Great-Britain, that the part he was going to act might be rendered the more conspicuous.

A step so extraordinary, a patron of so much importance, did not fail to engage universal attention. The French court, whatever were their good wishes toward America, could not at that time overlook his elopement. He was overtaken by an order forbidding his proceeding to America, and vessels were dispatched to the West-Indies, to have him confined in case he was found in that quarter. He acknowledged the receipt of the order, but did not obey it; and keeping clear of the West-Indies, arrived in Charleston. Congress could not hesitate a moment about paying a due attention to so remarkable a character, when intelligence of the same was communicated. The marquis had left a pregnant consort, and the most endearing connections. Independent of the risks he has now subjected himself to, in common with the leaders of the American revolution, he has exposed himself to the loss of every thing at home, in consequence of the laws of France, after hazarding a long confinement without the chance of being acknowledged by any nation, had he fallen into British hands on his passage to America.

He received the congress’s mark of approbation with great condescension; and yet not without exacting two conditions, which displayed the dignity of his spirit—the one, that he should be permitted to serve at his own expence—the other, that he should begin his services as a volunteer. After joining the army, he lived with the commander in chief, and was happy in his friendship and affection.

Now to resume the narration of what was done in the great council of the United States.

Congress directed general Washington to order such general officer as he should think proper, to repair immediately to the northern department, to relieve general Scuyler in his command there; but upon his wishing to be excused, they resolved, [August 4.] to proceed to the election of one; when the ballots being taken, it appeared that general Gates was elected by the vote of eleven states.

Congress having made new regulations in the department of the commissary-general of purchases, Mr. Joseph Trumbull resigned his

commission, and signified his intention of discontinuing his service on the 20th of the month. [August 6.] They upon that “resolved, That Mr. Trumbull, with the officers under him, be desired to continue in the business of supplying the army, under the former establishment, until the commissaries-general of purchases and issues shall signify their readiness to proceed therein under the new regulations.”

To what influence Mr. Trumbull imputed the regulations that occasioned his resignation, and what was his opinion as to the manner of conducting business in congress, may be gathered from a letter of his, wherein he wrote, on the first of September, “I have quitted the commissary department. The regulations which are the ground on which I have quitted, were formed by the junto. Is it known in your state (the Massachusetts) that the president is with the Yorkers and southern Bashaws; that if he wants any thing moved, his brother delegates are not applied to, but the motion comes from Duane, or some other person of no better character; and that there is no harmony between him and his brethren?”

[August 23.] “Resolved, that the president inform general Washington, that congress never intended by any commission hitherto granted by them, or by the establishment of any department whatever, to supersede or circumscribe the power of general Washington, as the commander in chief of all the continental land forces within the United States.”

The British troops stationed on Staten-Island were often making incursions into the Jerseys, and carrying off inhabitants, cattle, &c. This induced gen. Sullivan to settle a plan with col. Ogden, for attacking the island. The latter had, properly speaking, a separate command, but agreed to join the general in the expedition. The general was to go from Elizabeth-Town point; and the col. with his own and col. Dayton’s regiment, joined by a hundred militia, were to cross from another spot, to pass up Fresh-kill creek, and to come to the rear of col. Lawrence, who was encamped near the ferry with about 150 men, whom he was to attack by day-break. The general selected from the brigades of generals Smallwood and De Borre, such men as were best able to endure the march, amounting to near 1000. These he ordered to march at two o’clock in the afternoon from Hanover to Elizabeth-Town, about 16 miles, where they arrived in the evening. On the 22d of August they crossed over before day-light. The colonel proceeded to execute the part of the plan allotted him. It had been settled that the general

should send two regiments to the neck of land separating the quarter where the col. was to begin his attack from the rest of the island, by their possessing of which the retreat of the enemy would be cut off, and a surrender necessarily follow. When the col. had succeeded in the commencement of his operations, and saw numbers flying to the neck, he expected they would have been stopt there; but was surprised at observing the contrary, and that the occupancy of the ground had not taken place. Unhappily the general, upon landing, instead of keeping to the plan proposed, marched seven miles toward the forts, which occasioned a loss of time, and increased the fatigue of the troops, many of whom had marched near upon twenty miles to the place where they crossed. Their fatigue occasioned several dropping behind, and being picked up by the enemy. The colonel having captured 130 privates and some officers, and having taken a king's shallop, put them on board and sent them off to Elizabeth-Town. The person who had the care of them, being but an indifferent hand, though the best that could be spared, was not sufficiently attentive to circumstances, so that the boats which were to have attended general Sullivan's motions, and which had transported his division, rowed off, the boatmen concluding from the regimentals of the prisoners upon deck and other appearances, that the king's shallop was in pursuit of them. The troops of that division destroyed some stores, burnt a magazine of hay and seven vessels, and did other damage; but the grand design of the expedition failed by the general's varying from the plan concerted between him and the colonel. When the general was advancing toward the ground occupied by the latter, no horsemen were sent forward to reconnoitre or to inform the colonel of the general's approach, so that Ogden was at a loss for some time whether it was a friend or an enemy that was marching up to him. When the general joined him, though the boats which were to have attended Sullivan were wanting, and the deficiency in number of those present, made dispatch in transporting the troops absolutely necessary, the general used no expedition in getting them over, but loitered away the precious time that should have been improved to the utmost, so that the misfortune of the day was increased. The rear-guard, consisting of a hundred men, could not get off before the enemy appeared in force to attack them. They were commanded by majors Steward and Tillard, and took post on an eminence, where they defended themselves bravely for a while, and then retreated to another eminence, and so to a third. They maintained their ground with

great valor, till their ammunition was all spent, when a number of them, who could not possibly get off, surrendered prisoners of war. The Americans lost in the course of the day, in killed, wounded and prisoners, about 200. The killed, wounded and prisoners on the other side, might be nearly the same. General Sullivan captured eight and twenty Tories, and Col. or Capt. Barton, who was too unwieldy to run off with his comrades. He joined to them the other prisoners, and sent the whole to Philadelphia in triumph. While upon the expedition, the Gen. gained possession of some records and papers belonging to the Quakers, which, with a letter, were forwarded to Congress, and referred to a committee. On the 28th of August, the committee reported, "That the several testimonies which have been published since the commencement of the present contest betwixt Great-Britain and America, and the uniform tenor of the conduct and conversation of a number of persons of considerable wealth, who profess themselves to belong to the society of people commonly called Quakers, render it certain and notorious, that those persons are with much rancor and bitterness disaffected to the American cause; that as these persons will have it in their power, so there is no doubt it will be their inclination, to communicate intelligence to the enemy, and in various other ways to injure the counsels and arms of America; that when the enemy, in the month of December, 1776, were bending their progress toward the city of Philadelphia, a certain seditious publication, addressed "To our friends and brethren in religious profession, in these and the adjacent provinces, signed John Pemberton, in and on behalf of the meeting of sufferings, held at Philadelphia, for Pennsylvania and New-Jersey, the twenty-sixth of the twelfth month, 1776," was published, and as your committee is credibly informed, circulated amongst many members of the society called Quakers, throughout the different states; that as the seditious paper aforesaid, originated in the city of Philadelphia, and as the persons whose names are undermentioned, have uniformly manifested a disposition highly inimical to the cause of America, therefore—Resolved, That it be earnestly recommended to the supreme executive council of the state of Pennsylvania, forthwith to apprehend and secure the persons of Joshua Fisher, Abel James, James Pemberton, Henry Drinker, Israel Pemberton, John Pemberton, John James, Samuel Pleasants, Thomas Wharton, sen. Thomas Fisher, son of Joshua and Samuel Fisher, son of Joshua, together with all such papers in their possession, as may be of a political nature."

“And whereas there is strong reason to apprehend that these persons maintain a correspondence and connection highly prejudicial to the public safety, not only in this state, but in the several states of America—Resolved, That it be recommended to the executive powers of the respective states, forthwith to apprehend and secure all persons, as well among the people called Quakers as others, who have in their general conduct and conversation evidenced a disposition inimical to the cause of America; and that the persons so seized, be confined in such places and treated in such manner, as shall be consistent with their respective characters and security of their persons; that the records and papers of the meetings of sufferings in the respective states, be forthwith secured and carefully examined, and that such parts of them as may be of a political nature, be forthwith transmitted to congress. The said report being read, and the several paragraphs considered and debated, and the question put severally thereon, the same was agreed to.” “Ordered, That the board of war remove under guard, to a place of security out of the state of Pennsylvania, the hon. John Penn, esq. and Benjamin Chew, esq. and that they give orders for having them safely secured, and entertained agreeable to their rank and station in life.”

A number of Quakers beside those mentioned, together with several persons of a different denomination, were taken up by the supreme executive council of Pennsylvania, concerning whom congress resolved on the 8th of September, “That it be recommended to the said council, to order the immediate departure of such of the said prisoners as refuse to swear or affirm allegiance to the state of Pennsylvania, to Stanton, in (Augusta county) Virginia.”

Eight days before, on the last of August, a member of congress, writing upon public affairs, thus expressed himself, “The frauds, the peculations, the profusion, which have done us more injury than the whole force of our foreign enemies, have been chiefly owing to the want of government and the want of discipline. Howe has planned his operations in such a manner as to give us a vast advantage both of him and Burgoyne.”

Reports prejudicial to gen. Sullivan were circulated, upon which congress resolved, on the first of the month, “That gen. Washington be directed to appoint a court of enquiry on the late expedition by gen. Sullivan, against the British forces on Staten-Island.” The statement of the particulars enquired into, was so formed that he obtained an honorable acquittal, such

as was highly pleasing to congress; but had major Joseph Bloomfield been enough recovered of his wound to have attended the court, he would scarce have escaped so well.

Let us resume the transactions of Sir W. Howe and gen. Washington. Sir William was so distressed for want of horses (numbers having died on their passage) and of other necessities to aid his march, that it was not till the third of September that the royal army moved forward. On its advancing near to the Americans, these abandoned their ground, perceiving that it would not answer their first expectation; crossed the Brandywine at Chad's Ford, and took possession of the heights on the east side of it, with an evident intention of disputing the passage of the river. Upon an apprehension that the royal forces would attempt crossing at Chad's Ford, gen. Washington posted his main strength at that point; and gen. Maxwell with about 1000 light troops, was sent over to possess himself of the opposite height; and in the night of the 10th, they formed a slight breast-work with limbs of trees.

[Sept. 11.] By day-break the next morning, the British army advances in two columns; the right under the command of gen. Knyphausen, which marches directly for Chad's Ford. A party is moved on to dislodge Maxwell, which he repulses; they are reinforced, and come on a second time without succeeding. On this a strong detachment is sent round a piece of woods to come upon his flank, while the other attack him anew in front. Perceiving this movement, he retreats across the river with a trifling loss. Gen. Knyphausen keeps up a cannonade, and an appearance of forcing the ford, till he shall hear that the left column has attacked the Americans, and then he means to attempt it. This second column, under the command of lord Cornwallis, generals Grey, Matthews and Agnew, marches for the forks of the Brandywine. The movement is early observed. Gen. Sullivan writes to the commander in chief, that it is clearly his opinion, that the enemy will come round on their right flank. He sends him two messengers in the forenoon confirming the same. Lient. col. James Ross forwards, at eleven o'clock, from Great-Valley road, this intelligence—"A large body of the enemy, from every account five thousand, with sixteen or eighteen field-pieces, marched along this road just now. Their front must be now at the ford; we are close in their rear, with about seventy men. I believe general Howe is with this party, as Joseph Galloway was here known by the inhabitants, with many of whom he spoke, and told them that general Howe

was with him.” Other accounts corroborating the movement of the second column toward the forks, gen. Washington settles it with gen. Greene, that he shall cross with his division, at the lower ford, and attack gen. Knyphausen. He at the same time sends word to Sullivan to cross the Brandywine with his, and fall upon the enemy’s left, while the army crosses below to attack their right. The commander in chief hopes, by defeating Knyphausen, to secure those advantages which will outweigh any that gen. Howe may gain by forcing the troops opposed to his left column, to retreat. Sullivan is preparing to execute Washington’s order, when major Spears comes up and tells him that there is not the least appearance of the enemy in that quarter; which is confirmed by a sergeant Tucker, of the light-horse, sent out purposely to make discoveries. Sullivan conceives it to be his duty to convey Spears’s information to the commander in chief. This unfortunate intelligence deranges the disposition that has been determined on in consequence of prior information; so that general Greene, who has crossed with his advanced-guard, is recalled. Mean while the second or left column of the British army cross the forks of the Brandywine, the first branch at Trimble’s Ford and the second at Jeffery’s Ford, about two o’clock in the afternoon, taking from thence the road to Dilworth’s, in order to turn the right of the Americans, consisting of three divisions, general Sullivan’s, lord Stirling’s and another officer’s. The British form and advance in order of battle. Sullivan, upon information of what has taken place, marches to reinforce the two other divisions nearest the British. He takes rather too large a circuit, and is so late upon the ground as to exclude all possibility of making a perfect disposition. Before he has time to ride from one end of the line to the other, he is suddenly attacked by numbers unknown to him, and upon ground that he never saw before; so that his troops are thrown into confusion, and retreat with the utmost precipitation. This happens between four and five in the afternoon. Generals Washington and Greene being together, and hearing the firing, conclude that Sullivan is attacked. Greene immediately hastens his first brigade, commanded by gen. Weedon, toward the scene of action with such uncommon expedition, that in forty and two minutes it advances near four miles. The second brigade is ordered by Washington to march a different route, as it cannot be up in time for service. General Knyphausen, finding that the parties on his left are deeply engaged, crosses at Chad’s Ford, attacks the division under gen. Wayne and the light troops under Maxwell, obliges them to retire after a severe conflict, and

possesses himself of the entrenchment, battery and cannon which were meant for its defence. Greene, as he approaches the scene of action, perceives that Sullivan's defeat is a perfect route. A council of war was held upon the field, and it is agreed that Greene's brigade should cover the retreat of the flying troops. Greene keeps firing his field-pieces in the rear as he retreats, and continues retreating half a mile, till he comes to a narrow pass, well secured on the right and left by woods. Here he draws up his force, consisting of the Virginia troops and a regiment or Pennsylvanians, commanded by col. Stewart, and sends his artillery on, that it may be safe in case of his being under the necessity of making an hasty retreat. A warm engagement commences, which lasts from the sun's being three-quarters of an hour high till dark. The tenth Virginia regiment, commanded by col. Stephens, supports the attack of the British cannonade and musketry for fifteen minutes, though they have never before been engaged. The whole brigade exhibits such a degree of order, firmness and resolution, and preserves such a countenance in extremely sharp service, as would not discredit veterans. Wayne and the North-Carolinians, with the artillery and light troops, after their defeat by Knyphausen, pass the rear of it in their retreat. At dark, that also is withdrawn by gen. Greene; the extreme fatigue of the royal troops, together with the lateness and darkness of the evening, prevents its being pursued.

A few hours more of day-light might have so animated the conquerors, notwithstanding all their fatigue, as to have produced those exertions which would have been productive of a total and ruinous defeat to the Americans. Gen. Greene is apprehensive that they lost in killed, wounded and prisoners, twelve or thirteen hundred; and that the royal army did not suffer, on their part, short of seven or eight hundred in killed and wounded. The Americans lost also ten small field-pieces and a howitzer, of which all but one were brass.

A great number of French officers were in the action. The baron de St. Ouary, serving as a volunteer, was taken. The congress will undoubtedly do all they can to obtain his release. Policy will oblige them to it, no less than a regard to his rank and merit in the French army. The marquis de la Fayette gave the first proof of his military character in this engagement, and was wounded in the leg on the spot where the effort of the enemy was greatest. The wound however did not force him from the field, where he continued his endeavors to rally the Americans, as well by his words as example. Count

Pulaski, a Polish nobleman, with a party of light-horse, rode up to reconnoitre the enemy, within pistol shot of their front; and on the fourth day after the action, was elected by congress a commander of the horse, with the rank of brigadier. Captain Louis de Fleury's horse was killed under him. He showed much courage, and was so useful in rallying the troops, that congress, within two days, ordered him to be presented with another horse, as a testimonial of the sense they had of his merit. Considering that general Washington had to fight the British army with an inferior number of raw troops, and how the attack upon him was circumstanced, through the false intelligence he received, he may be thought to have suffered less than could have been expected. He discovered a true magnanimity of mind, in that (though he attributed the misfortunes of the day principally to the information of major Spears) he never blamed general Sullivan for conveying it, but declared that he should have thought him culpable had it been concealed. He retreated after the action to Chester, and the next day to Philadelphia.

The evening after the battle, a party of British was sent to Wilmington, who took the governor of the Delaware state, Mr. M'Kinley, out of his bed, and possessed themselves of a shallop lying in the creek, loaded with the rich effects of some of the inhabitants, together with the public records of the county, a large quantity of public and private money, all the papers and certificates belonging to the loan-office and treasury-office there, articles of plate, &c.

General Greene has been rather dissatisfied with gen. Washington's omitting to take special notice of Weedon's brigade in general orders, for its bravery. But the commander in chief, considering that there was a prevailing apprehension that Greene was his favorite, and that the Virginians were his own state troops, declined it, that so he might not excite a disagreeable jealousy, and give offence to the troops of other states.

[Sept. 15.] A letter from Mons. du Coudray to Mr. Chase, was laid before congress and read, "wherein he requests for himself and sundry gentlemen who accompanied him to this country from France, to have an opportunity of fighting in the American army without running the risk of not being subjects of exchange, should they by the fortune of war be made prisoners; mentions that any rank which congress may think proper to give him and them, will be acceptable; and asks for him only the rank of captain, for the

commissioned officers who accompanied him, the rank of lieutenants, and for the non-commissioned, the rank of ensigns; whereupon it was resolved, that his request be complied with, and that commissions be made out accordingly.”

The same day gen. Washington left Philadelphia, and re-crossed the Schuylkill, with a firm intent of giving Sir. W. Howe battle wherever he could meet him; he accordingly by the next day had advanced as far as the Warren tavern, on the Lancaster road. Mons. du Coudray, with a number of French gentlemen, set off to join the army as volunteers [Sept. 16.] about twelve o'clock. He rode a young mare, full of spirits, into the flat-bottomed boat used for ferrying across the Schuylkill, and not being able to stop her career, she went out at the other end into the river, with her rider on her back. Coudray disengaged himself from her, but was drowned, notwithstanding all the attempts made to save him.

General Howe, while marching the army in two columns, toward Goshen, heard that the Americans were within five miles of it, and immediately determined to push forward and attack them. Intelligence was brought [Sept. 17.] to general Washington, of his approach. Gen. Sullivan was directed to draw up the American troops in order of battle. Gen. Greene observed, that at a little distance in their rear, was a large piece of water, extending their whole length, and which, in case of a defeat, would prevent their retreating. He rode to gen. Washington, acquainted him with what he had noticed, and asked whether he meant that the troops should fight in that situation. He was desired to arrange them differently. Mean time gen. Wayne, with the advance, was engaged with the enemy a considerable distance off. While Greene was removing the army to a new position, it began to rain. Soon after it poured like one incessant thunder shower. It continued raining till the next day. Thus both parties were rendered equally and totally incapable of action. The Americans have reason to be thankful for this providential interposition, as it is highly probable that an engagement with troops flushed with the preceding victory, better disciplined and more experienced, would have determined greatly to their disadvantage. On examining their arms on the 18th, they were found to be much impaired. Beside, all the ammunition in the cartouch boxes was entirely ruined. General Washington therefore withdrew the army to a place of security, and filed off toward Reading.

Gen. Greene, in company with col. Tilghman, one of Washington's aids, reconnoitred for a position, and fixed upon the range of mountains from Valley Forge toward the Yellow Springs. He considered the ground as strong, difficult of access, and yet allowing of an easy descent; and as favorable for partial actions without admitting of any very decisive. Gen. Wayne being in the rear of Sir William Howe, Greene concluded that the position would bring all the American force partly upon Sir William's flank and rear, and within striking distance of him, if he attempted crossing the Schuylkill, and would oblige him to fight the Americans on their own terms. He thought also, that the position would afford them the probability of beating him; or at least of so crippling him, as that he would not venture to possess himself of Philadelphia; and that in case of their being beaten, it would afford them a safe retreat. He transmitted his sentiments to the commander in chief by letter, but not before hearing from him that it had been determined in council, to cross the Schuylkill above French-creek, and take a position in front of gen. Howe.

On the 19th gen. Washington wrote to Wayne—"By the advice of the general officers, I have determined that the army under my immediate command, cross the Schuylkill at Parker's Ford, and endeavor to get down in time to oppose the enemy in front, whilst the corps under your command, in conjunction with general Smallwood and colonel Gist, act to the greatest advantage in the rear."

General Howe, upon intelligence that Wayne was lying in the woods with a corps of 1500 men and four pieces of cannon, in the rear of the left wing of his army, detached general Grey, on the 20th, late at night, with two regiments and a body of light-infantry, to surprise him. [Sept. 21.] Grey gained Wayne's left about one o'clock in the morning. Some out sentries were early missed by an American officer going his rounds, and an alarm was given in time for the men to turn out; but unhappily for them, Wayne paraded them in the light of their fires, instead of withdrawing them to the back of their encampment. Thus the British were directed where to rush with their bayonets, as ordered by their commander, without firing a gun. They did great execution, killing and wounding near 300 on the spot. They took between 70 and 80 prisoners, including several officers, a great many arms, and eight waggons loaded with baggage and stores; and had only one captain of light-infantry and three privates killed, and four men wounded.

The darkness of the night, and some prudent dispositions of Wayne's, prevented their further success.

In the afternoon of the 22d, Sir William Howe having by various manœuvres drawn gen. Washington 30 miles from Philadelphia, instead of attacking him upon the right, agreeable to the idea he had seemingly affected to impress, ordered the grenadiers and light infantry of the guards to cross the Schuylkill at Fat Land Ford, and to take post, and the chasseurs to do the same at Gordon's Ford, both below the left of the Americans. At midnight the army moved, and crossed the river at Fat Land Ford without opposition; the rear-guard, with the baggage, passed it before two in the afternoon, and the whole were encamped by night of the 23d. This event was not expected by the American commander. Advice was received in the night of the enemy's having crossed the river at Gordon's Ford, which was afterward contradicted. This last information was credited, so that when the gentlemen at head-quarters were assured the next morning that Howe's army had crossed the Schuylkill and was marching toward Philadelphia, every one was astonished.

The congress had before hurried away in the night of the 18th. After the adjournment of that day, the president received a letter from colonel Hamilton, one of general Washington's aids, intimating the necessity of their removing immediately from Philadelphia; whereupon they left the city, and agreeable to a resolve of the fourteenth, repaired to Lancaster. The letter, the immediate hurry, and the alarm of the enemy's being at Sweed's Ford, threw the city into the utmost confusion, and at the same time roused all who wished to quit it, into a preparation for a speedy removal.

On the 26th Sir William Howe made his triumphal entry into Philadelphia, with a very small part of his army, where he was most cordially received by the generality of the Quakers and a few other royalists; the bulk of his troops were left in and about Germantown, a village forming one continued street for near two miles. Gen. Washington's army was encamped near Shippach-creek, about eighteen miles from thence.

[Sept. 30.] The congress removed to York-town by the end of the month. Before they had quitted Philadelphia they had elected baron de Kalb major-general; and had entered upon their journals—"Whereas Mons. du Coudray, colonel-brigadier in the service of his most christian majesty the king of

France, and commander in chief of the artillery in the French colonies in America, gallantly offered to join the American army as a volunteer, but in his way thither was most unfortunately drowned in attempting to cross the Schuylkill—Resolved, That the corpse of the said Mons. du Coudray be interred at the expence of the United States, and with the honors of war.” They also resolved, “That gen. Washington be authorised and directed to suspend all officers who shall misbehave, and to fill up all vacancies in the American army, under the rank of brigadiers, until the pleasure of congress be communicated; to take, wherever he may be, all such provisions and other articles as may be necessary for the comfortable subsistence of the army under his command, paying or giving certificates for the same; to remove and secure, for the benefit of the owners, all goods and effects which may be serviceable to the enemy; provided that the powers hereby vested, shall be exercised only in such parts of these states as may be within the circumference of 70 miles of the head-quarters of the American army, and shall continue in force for the space of 60 days, unless sooner revoked by congress.”

Lord Howe, after the affair of Brandywine, took the most speedy measures for conducting the fleet and transports round to the Delaware; which when arrived, were anchored along the Pennsylvania shore, from Reedy-Island to Newcastle; the passage near Philadelphia being yet impracticable. When the British troops had taken possession of the city, their first object was the erecting of batteries to command the river. The day after, the American frigate the Delaware, of 32 guns, anchored within 500 yards of the unfinished batteries, and being seconded by another frigate with smaller vessels, they commenced a heavy cannonade, both upon the batteries and town. Through inattention the Delaware was suffered to ground upon the falling of the tide, and could not be got off, (say the British) which being perceived by the grenadiers, they brought their battalion field-pieces to play upon her with such effect, that she soon struck her colours; but the Americans say, the crew rose, confined the captain, and purposely ran the ship ashore. The whole fire of the battalion guns was afterward directed against the other vessels, which were compelled to retire with the loss of a schooner driven ashore.

The Pennsylvanians had, at a vast labor and expence, constructed great and numerous works, to obstruct the passage up to Philadelphia, some of which have been already mentioned.—They had erected works and

batteries on Mud-Island, and called the whole Fort Mifflin, in honor to general Mifflin.—On the opposite shore, at a place called Redbank, they had formed a fort or redoubt, covered with heavy artillery. In the deep navigable channel, under the cover of these batteries, they had sunk several ranges of chevaux-de-frize, before described. It was equally difficult to weigh or cut through them; but no attempt could be made for raising them, or for opening the main channel, till the command of the shores was obtained. About three miles lower down they had sunk other ranges of these machines, and were constructing works for their protection, at a place on the Jersey side called Billing's-point. These works and machines were further supported by several gallies mounting heavy cannon, together with two floating batteries, a number of armed vessels, small craft of various kinds, and some fire-ships.

Upon the representation of capt. Hammond of the Roebuck (lying off Chester 15 miles below Philadelphia) who had arrived before lord Howe, the general detached two regiments, under col. Stirling, to dislodge the enemy from Billing's-point. The detachment having crossed, [Oct. 1.] the enemy heard of their approach, immediately spiked their artillery, set fire to the barracks, and abandoned the place with precipitation. This success, enabled capt. Hammond to cut away and weigh up so much of the chevaux-de-frize, notwithstanding the great opposition he met with, as opened a narrow passage for large ships through the lower barrier.

General Washington, having been reinforced by 1500 men from Peek's-kill, and 1000 from Virginia, and having received intelligence through two intercepted letters, that gen. Howe had detached a part of his force for the purpose of reducing Billing's-point works and the forts on the Delaware, entertained the thought of attacking the main body as it lay at Germantown. The line of encampment crossed the town at right angles about the centre: the left wing extended to the Schuylkill. It was covered in front by the mounted and dismounted chasseurs: a battalion of light-infantry, and the queen's American rangers were in the front of the right: and the 40th regiment, with another battalion of light-infantry, were posted at the head of the town, upon Chesnut-hill road, three quarters of a mile in advance. Lord Cornwallis lay at Philadelphia with four battalions of grenadiers. When gen. Washington had communicated to his council of war the account he had obtained, the general officers unanimously agreed upon an attack, and to its being made in several places, to produce the greater confusion and

distraction, and to hinder the several parts of the enemy's forces affording support to each other. It was to be sudden and vigorous, in expectation of carrying the point speedily, from an apprehension that the Americans would not persevere in a prolonged attack, for want of better discipline and more acquaintance with military service. Was it found that they could make no impression upon the enemy, they were after a while to make an expeditious retreat. The divisions of Sullivan and Wayne, flanked by Conway's brigade, were to enter the town by way of Chesnut-hill; while Armstrong, with the Pennsylvania militia, got upon the enemy's left and rear. Col. Thomas Conway, knight of St. Louis, had been elected so early as May, a brigadier gen. upon the recommendatory letters he brought from France. The divisions of Greene and Stephens, flanked by M'Dougall's brigade, were to enter by taking a circuit, at the market-houses, and to attack the right wing; and the militia of Maryland and Jersey, under generals Smallwood and Freeman were to march by the old York road, and fall upon the rear of the right. Lord Stirling, with Nash's and Maxwell's brigades, were to form a corps de reserve.

They begin their march about seven o'clock in the evening of October the third. Gen. Washington is with the divisions of Sullivan and Wayne. He expects, that if the enemy has gained timely intelligence of his march, they will wait for him on Chesnut-hill, and receive him as he comes out of the woods.—When arrived on the hill without any appearance of opposition, he is congratulated upon the persuasion that the British will be completely surprised. About sun-rise on the fourth the attack is begun on the 40th regiment, and the battalion of light-infantry which accompanies it. These corps are overpowered and pursued. In this exigence lieutenant colonel Musgrave throws himself with six compananies of the fortieth regiment, into Mr. Chew's stone house, lying full in the front of the Americans.—These halt. A discourse ensues between generals Knox and Reed in the presence of the commander in chief, whether or not to advance without first reducing the house. Knox urges, that it is contrary to all military rule to leave a fort possessed by an enemy in their rear. Reed exclaims—"What! call this a fort, and lose the happy moment!" Conway is inquired after to give his judgment but cannot be found. It is agreed to send a flag to the house and summons the British officer to surrender. A young person undertakes to carry it. He approaches, is fired upon, and killed. Mean while gen. Greene gets up with his column, and attacks the right wing of the

enemy. The morning being exceeding foggy, prevents the Americans from fully improving the advantages they gain. Col. Matthews of Greene's column, attacks with uncommon spirit, routs the parties opposed to him, kills a great number, and makes 110 prisoners; but, through the fog, loses sight of the brigade he belongs to, is separated from it, and is taken prisoner with his whole regiment, accompanied with the release of all whom he had captured. A number of Greene's troops are stopped, by the halt of the division before Chew's house, where near or quite one half of gen. Washington's army remains some time inactive. During this inactivity, gen. Gray, bringing the front of a great part of the left wing by a timely movement to German-town, leads on three battalions of the third brigade and attacks with vigor, being supported by gen. Agnew at the head of the fourth brigade. A warm engagement ensues. At the same time two British regiments attacks on the opposite side of the town; while general Grant moves up the 49th regiment, to the aid of the 4th, which is employed in supporting the troops engaged with Greene's column. The fog is so great that at times you cannot see twenty yards before you, and frequently not more than fifty. It occasions the American parties mistaking each other for the enemy, and prevents their observing the true situation of the latter. Owing hereto in a great measure, the Americans quit every part of the town: and when gen. Grey, having passed it, advances with the British right wing upon their left, they leave the field hastily and entirely, in spite of every effort that can be made to rally them. Lord Cornwallis arrives with a squadron of light-horse just in season to join in the pursuit. Greene with his own and Stephen's division, happens to form the last column of the retreating Americans. Upon coming to two roads, and thinking it will be safest, and may prevent the enemy's advancing by either so as to get a head of him; and that the divisions may aid each other upon occasion, he marches one division on the one road, and the second on the other. While continuing his retreat, Pulaski's cavalry who are in his rear, being fired upon by the enemy, ride over the second division, and throw them into the utmost disorder as they know not at first but that they are the British dragoons. The men run and scatter, and the general is apprehensive that he shall loss his artillery. He cannot collect a party sufficient to form a rear guard, till he hits upon the device of ordering the men to lay hold of each other's hands. This answers. He collects a number, and by the help of the artillery, brings the enemy to give over the pursuit, after having continued it

near five miles. The Americans then proceed in their march back to Shippach-creek without further disturbance.

The British officers acknowledged soon after this affair, that it was the severest blow they had met with; that it was planned with judgment and executed with spirit; and that they were at a loss for its not being followed up, unless it was for want of ammunition. The Americans lost in killed 25 continental officers commissioned and non-commissioned—wounded 102, and an equal number missing. The militia officers were, 3 killed—4 wounded and 11 missing. Of rank and file, continentals, 109 were killed, and 378 wounded—militia, 7 killed and 19 wounded. They had artillery officers, 2 killed and 11 wounded; and matrosses 6 killed and 7 wounded. The total of their killed was 152; and of their wounded 521.^[58] Upward of 400 were made prisoners, among whom were 54 officers. The number of missing among the Americans is no rule by which to judge of the number captured by the enemy, as many of the missing, who do not return to their colours, go home. Gen. Nash of North-Carolina was among the slain, and will be honored by congress with a monument the same as other generals who have fallen in action, bravely contending for the independency of the United States.

The loss of the royal army, including the wounded and a few prisoners, amounted by their own acknowledgment, to 535; but the slain scarcely exceeded 70. Among these however were some distinguished officers, particularly gen. Agnew, and lieut. col. Bird. They suffered probably more than they allowed.^[59] The battle, by general Knox's watch, held two hours and forty minutes.

General Washington is of opinion that the Americans retreated at an instant when victory was declaring in their favor. The royal army was indeed completely surprised; and appearances in the beginning were evidently on the side of the former. But it is said that a certain colonel, not being sufficiently experienced, instead of pressing with fixed bayonets on the enemy whom he had driven, kept ordering his men, as they advanced, to load and fire, by which they expended their ammunition; and that, instead of halting on the ground till furnished afresh, he ordered his regiment to retreat. This retrograde manœuvre enabled and encouraged the enemy to recover themselves, while the other Americans, who were advancing, were disheartened and disconcerted by the retreating regiment, not knowing the occasion of such retreat. It is admitted however, that the colonel behaved boldly, by keeping himself in the rear, next to the enemy. Gen. Stephen was

guilty of un-officer like behavior in the retreat, owing to inattention or want of judgment, which might occasion a whisper to be circulated unfavorable to gen. Greene. But upon gen. Reed's asking the commander in chief whether he was dissatisfied with Greene's conduct, he candidly answered "No, not at all; the fault lay with ourselves;" referring to the column with which he was, and their stopping to attack Chew's stone house. Several causes might co-operate to effect the precipitate retreat of the American army. And yet had that column advanced without delay, leaving only a sufficient corps, with a couple of field-pieces, to guard the house, the obstacles to success that afterward offered, might have been removed or prevented, and Howe's army have been totally defeated, unless the superiority of their discipline and bravery could have hindered.

A general who was in the action, wrote some time after to his correspondent—"At German-town fortune smiled on our arms for hours. The enemy were broke, dispersed and flying on all quarters; we were in possession of their whole encampment, together with their artillery park, &c. A *wind-mill* attack was made on a house into which six light companies had thrown themselves to avoid our bayonets—this gave time to the enemy to rally—our troops were deceived by this attack; taking it for something formidable, they fell back to assist in what they deemed a serious matter. The enemy finding themselves no further pursued, and believing it to be a retreat, followed.—Confusion ensued, and we ran away from the arms of victory ready to receive us."

Let us turn our attention for a moment to South-Carolina. The successes of the preceding year had humbled the Cherokees most completely. The Carolinians had built, held and continued to occupy Fort Rutledge, at Seneca, quietly and unopposed. The Indians, finding themselves thus vanquished, sued in the most submissive terms for peace. A treaty between them and South-Carolina took place, at which commissioners from Georgia attended, who concurred in and signed the articles of pacification on the 20th of May. By this treaty the Cherokees ceded a considerable part of their land to South-Carolina. By the eighth and last article, it is agreed—"The hatchet shall be for ever buried, and there shall be an universal peace and friendship re-established between South-Carolina, including the Catawba and Georgia, on the one part, and the Cherokee nation on the other; there shall be a general oblivion of injuries; the contracting parties shall use their utmost endeavors to maintain the peace and friendship now re-established,

and the Cherokees shall at all times, apprehend and deliver to the commanding officer at Fort Rutledge, every person, white or red, who in their nation or settlements, shall by any means endeavor to instigate a war by the Cherokee nation, or hostility or robbery by any of their people, against or upon any of the American states, or subjects thereof.”

Before we resume the narrative of military operations, let me mention that the New-York convention, authorised for that purpose the 20th of last April, have established the constitution of that state. When this was done, the freeholders chose for their governor, gen. George Clinton, a gentleman excellently well qualified to be at the head of the state at so interesting and perplexed a period. His namesake, Sir Henry, made an incursion into Jersey, from the 12th to the 16th of September, chiefly to collect cattle. He brought away 400 head, including 20 milch cows, 400 sheep and a few horses; in effecting it, he had 8 rank and file killed, 17 wounded, together with a lieutenant, 9 missing, beside a drummer, and 5 taken prisoners by the different parties of Americans that opposed him. The expedition contributes nothing toward subduing the country. The loss of the inhabitants will be the less felt on account of the uncommonly good crops of Indian corn with which they have been this year favored. It is surprising to find that country in so good order already. The harvest has been truly plentiful. Lest it should be forgotten, let me mention that most of the damage which the college building at Princeton sustained, must be charged to the American troops, who destroyed also the leaden pipes for the organ (which had been spared by the royal army) in order to supply themselves with a few bullets to fire at the enemy.

Now let us return to the northern department.

Lieut. col. St. Leger, whom gen. Burgoyne had early sent off toward the Mohawk river, after combating all the difficulties, natural and artificial, which offered on his way, invested Fort Stanwix, now Fort Scuyler, on the third of August. It was in so poor a state of defence, that an immediate attempt to drive off the enemy and relieve it, was absolutely necessary. Gen. Herkimer, a leading person in Tryon county, marched with more than 800 militia, on this service. St. Leger had with him about 700 Indian warriors, who with their wives, children, other men and women, made up near 1400. He detached Sir John Johnson, with some troops and the Indians, to lie in ambush in the woods and intercept the militia. [August 6.] Herkimer fell

into the snare, and was surprised; but several of the chief Indians fell by the first fire he gave them; soon after which the battle was a scene of confusion beyond any thing the Indians had ever seen. The white people, consisting of the militia and Sir John Johnson's tory troops, as his own corps is called, got together in parties of twenty or thirty, so that they could not fire, but pulled and hauled, drew their knives and stabbed each other. The Indians, who consisted of Shawanese, Delawares, Senecas, and others, after a while conjectured, from their own loss and the confusion which prevailed, that both Sir John's people and Herkimer's intended to destroy them; at length some of their chiefs told the young warriors, that it was a plot of the white people to draw them into a scrape and cut them off; and then ordered them to kill all white people whatever. It is thought that near as many of Sir John's tory party were killed by the Indians as by the militia. A number of Herkimer's ran off; about a hundred were so surrounded that they could not get away; but they possessed themselves of an advantageous post behind logs, &c. where they continued fighting the Indians with great bravery, till Sir John drew off his men, fearing that the garrison would sally out and fall upon him; near upon seventy of the hundred by this mean escaped. Two hundred and fifty men, under lieutenant-colonel Willet, sallied out about that time, and routed two of the Indian and tory encampments, destroying their provisions and carrying off kettles, blankets, muskets, tomahawks, spears, clothing, deer skins, a variety of Indian affairs, and five colours; which on their return to the fort were displayed under the continental flag. The loss on the side of the militia was 160 killed, beside the wounded. Gen. Herkimer was among the slain; congress have resolved to honor him with a monument. Many of the principal leaders on the American side, were either killed or wounded, so that all expectation of further attempts to relieve the fort by the assistance of militia, was at an end. The Indians however, were greatly disgusted. St. Leger had brought down with him a number who were neutral, to be spectators of the British conquering the Americans; and had engaged to them and the others, that he and his troops would clear the way for them to Albany. The victory gained had been purchased exceeding dear, according to their ideas; for they had more than seventy killed, and among them several of their most distinguished and favorite warriors. St. Leger left no mean untried to make the most of his victory. On the 8th he sent a flag to the fort, and endeavored to intimidate the garrison by magnifying his own strength; telling them that Burgoyne, after destroying every thing in his

way, was at Albany; and declaring that the Indians were determined, if they met with further resistance, to destroy all the men, women and children on the Mohawk river, and as soon as they got into the fort, to kill every man belonging to it. Colonel Gansevoort, the commandant, refused making any answer, or to listen to any proposals unless made in writing. The next day St. Leger tried the same scheme by letter, and receiving for answer, that the colonel being entrusted with the charge of the garrison by the United States of America, he would defend the fort at every hazard, and to the utmost extremity. It was shrewdly remarked by those who were within, that not half the pains would have been taken to have displayed the force immediately without or the success at a distance, if they were any wise proportionable to the representation. The night before the letter was sent, col. Willet and lieut. Stockwell, a good woodsman (as they stile him who can steer his wished for course through the shady and pathless woods with a degree of certainty and readiness) undertook to attempt conveying intelligence down into the country, of the danger the fort was in, and of the necessity of relieving it. They left it at night, and crept upon their bellies for near half a mile, ere they could reach the Mohawk river. After passing it, they had to cross the path from the Indian camp, on which the Indians were continually going forward and backward; for a long time they had the Indian yells sounding in their ears on each side of them. They escaped every danger, and after travelling thirty miles, breakfasted the next morning upon blackberries, and pursued their journey about twenty miles further to German-flats. Gen. Scuyler, upon receiving the information at Stillwater, forwarded a continental brigade under gen. Learned; when to his great satisfaction Arnold offered to go and conduct the military operations in Tryon county, for the relief of the fort. After Herkimer's battle, a nephew of his, Mr. Jost Cuyler, was taken and secured on suspicion of being a spy. A scheme was laid to make him serviceable to the business going forward. He was brought to Arnold, and it was settled, that if he would go and alarm the enemy, with representations of great numbers being on their march against them, so as to occasion their retreat, he should be liberated, and have his estate, which was very large, secured to him. He undertook it, being well qualified from his acquaintance with the Indian language and manners, and his possessing a good share of subtilty. The mode of procedure was settled in concert with some friendly Indians; by advice of one of their head men, Cuyler's coat was shot though in two or three places,

that so the tale he had to relate might be the more readily believed. The necessity of aggravating the numbers marching to the relief of Fort Scuyler was apparent, for when gen. Arnold had got to German-flats, he was convinced from the intelligence procured of the enemy's strength, that it was much superior to his own; so that on the 21st he wrote to gen. Gates, who arrived at Stillwater and re-assumed the command of the northern department on the 19th, to send him a reinforcement of 1000 light troops. Cuyler proceeded immediately to the Indian camp, informed their warriors that vast numbers were coming against them; that major Butlar was taken, (which was a truth) and that several shot passed though his coat though he got off unhurt. When the Indian camp was thoroughly alarmed, one of the American friendly Indians arrived, an hour or two after Cuyler, with a belt, waited upon the chiefs, and confirmed the intelligence, adding, that the Americans did not want to hurt one of them—all they desired was to fall upon the British. An Indian in camp, unknown to Arnold, was secretly prevailed upon to aid the project, by going off unobserved, taking a circuit, and then coming into that part of the camp, where were those Indians who were most inimical, with a similar story to that of Cuyler's. The Indians were completely frightened, and determined to go off. St. Leger in vain used every art to prevent it. He attempted making them drunk with rum, and then getting them to alter their resolution. Fond as they are of rum, they would not be taken in at this season of apprehending danger. He then would have prevailed with them to keep in the rear, while the other troops retreated. Neither would they do that; but told him—"You mean to sacrifice us. When we marched down, you told us there would be no fighting for us Indians; we might go down and smoke our pipes; whereas numbers of our warriors have been killed."—Nothing could change their determination. They went off, and St. Leger was obliged to decamp, about noon of the 22d, in such hurry and confusion, as to leave his bombardier asleep in the bomb battery. His tents, with most of the artillery and stores, fell into the hands of the garrison. Some of the Indian Sachems, who were highly disgusted with him, concluded to play upon him, and divert themselves at his expence. In the evening, the flying troops came to a clay soil, pretty soft. St. Leger and Sir John Johnson were in an altercation, St. Leger reproaching Sir John about his Indians, and Sir John blaming St. Leger for not carrying on the siege differently. A couple of Indian chiefs upon a rising hill at a small distance, with light enough to observe their situation, and near enough to

notice their wranglings which proceeded almost to fighting, directed an Indian to withdraw some considerable way behind them and then to run after them, crying out with all imaginable earnestness in the Indian language, *they are coming, they are coming* and to continue it. St. Leger and Sir John, upon hearing the dismal note, made off as fast as they could, but often tumbled into the dirt. The men threw away their packs, and pushed off in the greatest hurry. The Indians renewed the joke; and continued thus and in the like ways to divert themselves, till the royalists arrived at the Oneida lake. The animosity between the two commanders rose at last to such height that they drew upon each other, meaning to settle the contest by the point of the sword. The Indians being fully satisfied that they had carried the jest far enough, and not being in a blood-thirsty humor, approached the parties with much gravity and friendship, interposed their good offices, recommended peace, made them friends, and carried off the secret of their own management, wherewith to entertain themselves and favorites in future^[60]. Considering the predominant disposition of the Indians while retreating in consequence of the ill success that had attended St. Leger, and the loss they had sustained, it was not in the least surprising that they plundered several of the boats belonging to the army, and took even from the baggage of the officers what they fancied.

When gen. Washington perceived from events in the north, that a proper officer must be chosen to command the eastern militia, he sent on gen. Lincoln, having learned that he had influence over them, and that they confided in him. He arrived at Manchester, from the southward, on the 2d of August, and found about 600 militia there, including 250 that arrived a few days before from New-Hampshire. Lincoln wrote to the Massachusetts council, that a body of troops in that part would not only cover the eastern states, but being in the rear of Burgoyne, oblige him to leave so considerable a part of his army at the different posts he possessed, as would weaken him. Scuyler, attending mainly to making head against Burgoyne's front, wrote to Lincoln on the 4th, to march his whole force, except Warner's regiment, and join him with all possible dispatch. On the 6th Lincoln had not been joined by any of the Massachusetts militia, saving a man or two; but was the same day reinforced by the arrival of brigadier gen. Stark, with about 800 more men, from New-Hampshire. That state had been applied to for a large body of militia. Stark, who was one of their brigadier generals, had considerable influence among them; but he was exceedingly

secured, thought himself neglected, and that he had not had justice done him by the congress. He had fought courageously at the battle of Breed's Hill; and shewn himself to be a soldier of sterling courage. He had also no particular liking for Scuyler. When, therefore, he was to be entrusted with the New-Hampshire militia, he would not take the command, but upon the condition of being left at liberty to serve or not under a continental commander, as he pleased; and he determined not to join the continental army till the congress gave him his rank in it. He had about 1400 brave men under him, well officered. Many of them had been in service the two preceding campaigns, and were not raw militia. Scuyler urged him repeatedly to join him; but he declined complying. He was induced so to do, not only from the forementioned reasons, but from considering that Burgoyne would not care what number of enemies he had in front, if he had none in his rear, and the country was open to his incursions. Stark resolved therefore to hang upon his rear, and neglected Scuyler's application. The matter was brought before congress, so that on the 19th they resolved, "That the council of New-Hampshire be informed, that the instructions which gen. Stark says he has received from them, are destructive of military subordination, and highly prejudicial to the common cause at this crisis; and that therefore they be desired to instruct gen. Stark to conform himself to the same rules which other general officers of the militia are subject to, whenever they are called out at the expence of the United States." But before this resolve, Stark had assured Scuyler, that he would do every thing to promote the public good, but was not for doing any thing that might prove inconsistent with his own honor; however, if it was thought best that he should march immediately to the camp, he would acquiesce. On the 13th he wrote, that he should throw away all private resentment when put in balance with the good of his country. Gen. Washington did not approve of Scuyler's apparent intention of uniting all the militia and continental troops in one body, and of making an opposition wholly in front. He was of opinion, that a sufficient body of militia should always be reserved to fall upon Burgoyne's flanks or rear, and to intercept his convoys. Stark however had concluded, on the day last mentioned, upon marching from Bennington to meet Lincoln at a certain appointed place, and to proceed with him and join Scuyler; but while writing to the former, he received information that the enemy were on their march to Cambridge.

Gen. Burgoyne's progress toward Albany was delayed through the want of a speedy and sufficient supply of provisions. He considered in what way the difficulty was to be surmounted. According to information, the Americans had a great deposit of corn, flour and store cattle at Bennington, which was guarded only by militia. Every day's account confirmed the persuasion of the loyalty of one description of the inhabitants in that part of the country, and of the panic of the other. He therefore entertained the design of surprising the stores at Bennington, and of sending a very large detachment upon the expedition; but was diverted from the latter (as supposed) by major Skeen, who assured him, "The friends to the British cause are as five to one, and they want only the appearance of a protecting power, to show themselves." Relying upon their attachment, the gen. sent the German lieut. col. Baum, with only about 500 men and 100 Indians, who carried with them two light pieces of artillery. To facilitate the operation, the army moved along the east shore of Hudson's-River, and encamped nearly opposite to Saratoga; and a bridge of rafts being thrown over, the advance corps passed to that place. Lieut. col. Breymen's corps, consisting of the Brunswick grenadiers, light-infantry and chasseurs, were posted at Batten-kill, in order, if necessary, to support Baum. Stark hearing that a party of Indians was at Cambridge, sent lieut. col. Gregg, with 200 men to stop their progress. Toward night he was informed by express, that there was a large body of regulars in the rear of the Indians. On that he drew together his brigade and the militia who were at hand, in order to stop their march; sent to Manchester for col. Warner's regiment, and forwarded expresses to the neighbouring militia to join him with all speed. He then marched, in the morning of the 14th, with colonels Warner, Williams and Brush, and the men present, and in about seven miles met Gregg retreating, and the enemy within a mile of him. The troops drew up in order of battle; and the enemy, upon coming in sight, halted upon a very advantageous piece of ground. Baum perceiving that the Americans were too strong to be attacked by his present force, sent an express to Burgoyne with an account of his situation; and Breymen was immediately dispatched to reinforce him. Mean while small parties of the Americans skirmished with the enemy, killed and wounded 30 of them with two Indian chiefs, without any loss to themselves, which had a good effect upon their courage. The ground Stark occupied, not being suitable for a general action, he retreated about a mile

and encamped. In a council of war it was agreed, to send two detachments into the enemy's rear, while the rest of the troops attacked in front.

[Aug. 15.] It rained all day, which retarded the intended assault, however there were frequent skirmishings in small parties. The heavy rain, together with the badness of the roads, prevented also Breyman's advancing to Baum's assistance with dispatch. The next day, [Aug. 16.] Stark being joined in the morning by colonel Seymonds from Berkshire, pursued his plan. Baum in the mean while had intrenched and rendered his post as defensible as time and its nature would admit. Stark detached col. Nichols with 200 men to the rear of his left: col. Henrick, with 300 men, was sent to the rear of his right: they were to join, and then attack. Colonels Hubbard and Stickney, with 200 were ordered still further on his right. A hundred men were also advanced toward his front to draw his attention that way. About three o'clock in the afternoon all were ready for the attack. Before Nichols and Henrick could join, the Indians pushed off between the two corps, but receiving a fire as they passed, had three killed and two wounded. Nichols then began the assault upon Baum, and was followed by the rest; those in front pushing forward. In a few minutes the action became general and lasted about two hours, with one continued noise like the ruffling of a drum. Baum made a brave defence; and the German dragoons kept together after having expended their ammunition, and led by their colonel charged with their swords, but were soon overpowered. The whole detachment, though well enclosed by two breast works, were forced to give way to the superior number and courage of the Americans, who with their brown firelocks, scarce a bayonet, little discipline, and not a single piece of cannon, ventured to attack 500 well-trained regulars, furnished with the best and completest arms and accoutrements, having two pieces of artillery, being advantageously posted, and accompanied by 100 Indians. When the militia had gained the victory, they dispersed to collect plunder, which they were very desirous of securing. This nearly proved fatal to them. While thus busied, Stark received information, that the reinforcement under Breyman was within two miles of him. Happily at that instant, Warner's continental regiment, which had been sent for from Manchester, came up fresh, marched on and began to engage; mean while the militia collected as fast as possible, and pushed on to its assistance. The action became general; and the battle continued obstinate on both sides till sunset, when the Germans gave way partly through a failure of ammunition, leaving their two pieces

of artillery behind them, and a number of prisoners. They retreated in the best manner they could, improving the advantage of the evening and of the night.

The Americans took four brass field-pieces, twelve brass drums, two hundred and fifty dragoon swords, four ammunition waggons, and about 700 prisoners, among whom was lieut. col. Baum. Three hundred dead are said to have been found upon the spot: but if so surely the slain on each side must have been included. The Americans lost but about 100 killed and wounded. The courage of the men was sharpened by the prospect of advantage, for in gen. Stark's orders they were promised all the plunder that should be taken in the enemy's camp. The royal officers were astonished to see how undauntedly they rushed on the mouths of the cannon. Both men and officers are entitled to much honor for their gallant behavior. Colonels Warner and Henrick's superior skill in military matters was of service to the general, who was less conversant with them than they; but his rank in the army of the United States was afterward given him by congress, on the 4th of October, when they "resolved, That the thanks of congress be presented to gen. Stark of the New-Hampshire militia, and the officers and troops under his command, for their brave and successful attack upon, and signal victory over the enemy in their lines at Bennington: and that brigadier Stark be appointed a brigadier general in the army of the United States." Never were thanks more deservedly bestowed. This was the first turn of affairs in favor of the Americans in the northern department after the death of gen. Montgomery. It raised the spirits of the country and made the militia willing to turn out beyond what would otherwise have been done. When gen. Gates wrote to the commander in chief some days after his arrival at Stillwater, he thus expressed himself—"Upon my leaving Philadelphia, the prospect this way appeared most gloomy, but the severe checks the enemy have met with at Bennington and in Tryon county, has given a more pleasing view of public affairs. I cannot sufficiently thank your excellency for sending col. Morgan's corps (of riflemen.) They will be of the greatest service to the army; for until the late successes this way, I am told it was quite panic struck by the Indians, and their tory and Canadian assassins in Indian dress. Few of the militia demanded are yet arrived, but I hear of great numbers on their march." Stark's victory gave reputation to the militia, as well as increased their courage. They found that neither British nor German regulars were invincible; but that they could beat both. The artillery and

other trophies excited their hope and confidence. While the Americans were exulting upon the occasion on the one side, the royal army under Burgoyne experienced a degree of depression on the other; especially as the disaster at Bennington not only added to their delay, but gave Gates the opportunity of strengthening himself, by the arrival of the militia, who were upon their march to reinforce him. When he was upon his journey to take the command, he was much dejected, no less than the troops which were to be under him; but the Bennington affair put them both in better spirits, and afforded them some promising expectations. They relied on his abilities, so that his appearance at camp, and his mode of conducting military business, at once filled them with courage and resolution; and in a few days they faced about and advanced toward Burgoyne.

On the 30th of August, the British commander had occasion to write to him; and in his letter complained of inhumanity exercised toward the provincial soldiers in the king's service after the affair of Bennington; and then hinted a retaliation. Gen. Gates, in his answer of September the 2d, invalidated the charge, and then retorted the Indian cruelties, which he imputed to Burgoyne, saying, "Miss M'Rea, a young lady, lovely to the sight, of virtuous character and amiable disposition, engaged to an officer of your army, was with other women and children, taken out of a house near Fort Edward, carried into the woods, and there scalped and mangled in a most shocking manner. Two parents with their six children, were all treated with the same inhumanity, while quietly residing in their once happy and peaceful dwelling. The miserable fate of Miss M'Rea was particularly aggravated, by her being dressed to receive her promised husband, when she met her murderer employed by you. Upward of 100 men, women and children, have perished by the hands of the ruffians, to whom, it is asserted, you have paid the price of blood." General Burgoyne, in his reply of the 6th of Sept. vindicated his own character; showed that Miss M'Rea's death was no premeditated barbarity; and declared that instance excepted, Gates's intelligence, respecting the cruelties of the Indians, was false. It might be erroneous in point of numbers and other circumstances; but Burgoyne was undoubtedly mistaken in pronouncing it all false, with only a single exception. The number of Indians that joined him was 500. The first party sent out paid attention to the restrictions he had laid them under, in his speech of June the 21st, near Crown-Point; and when they had made several of the Americans prisoners in the heat of the action, treated them with

European humanity. But they could not long brook such restraints. They grew uneasy, and reverted to their cruelties and habits of plunder; and several persons became victims to their mode of war. My account of Miss M'Rea's death will differ only circumstantially from Burgoyne's. Mr. Jones, her lover, anxious on her account, engaged some Indians of two different tribes to convey her away from among the Americans for the purpose of security. He might fear for her on account of her father's being interested in the royal cause and of her attachment to himself. He promised to reward the person, who should bring her safe to him, with a barrel of rum. The two who took her and carried her to some distance, disputed who of them should convey her to Mr. Jones. Each was anxious for the reward; and that the other might not receive it, one of them struck his tomahawk into her skull and killed her.^[61] As no whisper contrary to her being of an unblemished character ever reached me, in any place or company; be it far from any future European writer to tomahawk her reputation.^[62] Upon the first intelligence of what had happened, Burgoyne obliged the Indians to deliver up the murderer, and threatened to put him to death. Many thought the threat would have been executed; but he was pardoned, upon the Indians agreeing to terms enjoined them by Burgoyne, which the general thought would be more efficacious, than an execution to prevent similar mischiefs. He told their interpreter, that he would lose every Indian rather than connive at their enormities, or to that effect.^[63] They were not however satisfied and to his astonishment some of the tribes told him, at a council held the beginning of August, that they intended to return home, and demanded his concurrence and assistance. The general was convinced, that a cordial reconciliation was only to be effected by a renunciation of all his former prohibitions, and an indulgence in blood and rapine; but he firmly adhered to the controuls he had established; and the speech he made to them seemed to have the desired effect. But a desertion took place the next day, and they went off by scores, loaded with what plunder they had collected.

The murder of miss M'Rea exasperated the Americans; and from that and other cruelties, occasion was taken to blacken the royal party and army. The people detested that army which accepted of such Indian aid, and loudly reprobated that government which could call in such auxiliaries. General Gates was not deficient in aggravating, by several publications, the excesses which had taken place; and with no small advantage to his own military operations.

General Lincoln, about this time marched from Manchester to Pawlet, with the few militia that had joined him. Having received some reinforcement, in order to divide and distract the royal army, he sent off, with the advice of his officers, on the 13th, colonel Brown and five hundred men, to the landing at Lake George, to release the prisoners and destroy the British stores there; and the same number of men under colonel Johnson, to Mount Independence. The latter was to give a diversion to the enemy, while the former executed his command; and if an opportunity offered without risking too much, to push for Mount Independence, while col. Brown attempted Tyconderoga. Further to amuse and divide the enemy, by attacking the out-posts, &c. a like number of men were sent under col. Woodbridge, to Skeensborough, thence to Fort Anne, and so on toward Fort Edward. He doubted not but that these movements would meet with general Gates's approbation, though made without his knowledge. He would have mentioned the design, and not have put the plan into execution without his advice, could he have been sure that the information would not have fallen into the hands of the enemy.^[64]

Colonel Brown conducted his operations with such secrecy and address, that he effectually surprised all the out-posts [Sept. 18.] between the landing at the north end of Lake George and the body of the fortress at Tyconderoga. Mount Defiance, Mount Hope, the French lines and a block-house, with 200 batteaux, an armed sloop, and several gun-boats, were almost instantly taken. Four companies of foot, with nearly an equal number of Canadians, and many of the officers and crews of the vessels, amounting in the whole to 293, were made prisoners, and 100 Americans released. Brown, beside taking a number of arms and other things, retook the continental standard left at Ty when the fort was evacuated. His loss in killed and wounded was trifling. Finding after four days trial, that he and Johnson could not master Ty and Mount Independence, they abandoned the design and returned.

While the aforementioned expedition was carrying on, gen. Burgoyne having at length obtained about thirty days provision, with other necessary stores, resolved upon passing the Hudson's-River with the army, which having executed, he encamped on the heights and in the plain of Saratoga. He took this measure upon himself, on the supposition that he was not authorised to call any officers in council, as the peremptory tenor of his orders, and the season of the year admitted of no alternative. He then

advanced along the side of the river, and encamped on the heights about two miles from general Gates's camp, which was three miles above Stillwater. On the eighteenth the Americans marched out, three thousand strong, in order to attack him, but found that to be prudentially impracticable.—However, they drew up in full view of him, and there tarried till dark. Gates was careful to keep colonel Morgan's regiment of riflemen and a large corps of light-infantry under colonel Durbin, always in advance, ready to oppose the approach of the enemy. Large scouting parties from this advanced body were continually patrolling, to prevent a surprise. The next day gen. Burgoyne put himself at the head of the British line, which composed the right wing; this was covered by gen. Frazer and colonel Breyman, with the grenadiers and light infantry of the army, being themselves covered by the Indians, provincials and Canadians, in the front and flanks. He advanced toward the American left wing, through some intervening woods of no great extent, while the left of the royal army and artillery, under the generals Philips and Reidesel, kept along the great roads and meadows by the river side.

[Sept. 19.] Some of the American scouting parties fall in with those of the British, and with great boldness begin the attack, about one o'clock at noon. The firing is no sooner heard by gen. Philips, than he makes his way, with a part of the artillery, through the wood, and renders essential service. Each commander supports, reinforces, and orders different regiments to engage; and the battle is hot and obstinate on both sides till about half past two o'clock, when it ceases for half an hour. The American and British line, being fully formed, the action is renewed and becomes general at three. Both armies appear determined to conquer or die. There is one continual blaze of fire for three hours without intermission. The report of the muskets resembles an incessant roll beating on a number of drums. The Americans and British alternately drive and are driven by each other. Three British regiments, the 20th, the 21st, and the 62d, are in constant and close fire for near four hours. All suffer considerable loss; the 62d, which was 500 strong when it left Canada, is reduced to less than 60 men, and to 4 or 5 officers. The 24th regiment, belonging to Frazer's brigade, with the grenadiers and a part of the light-infantry are brought into action. Breyman's riflemen, and some other parts of his corps, are also of service; but only act occasionally. The American troops in action, are those under Morgan and Durbin; the first, second and third New-Hampshire regiments; the eighth, ninth and

tenth Massachusetts; the second and third New-York; and a Connecticut regiment of militia. The ninth Massachusetts regiment, col. Wesson's, is warmly engaged, and greatly distinguishes itself. Col. Scammell, of the first New-Hampshire regiment, is peculiarly active, enterprising and brave; and leads on his men close to the enemy with great undauntedness, before he suffers them to fire. Capt. Jones, with his brigade of British artillery, behaves with the utmost intrepidity. His four cannon are repeatedly taken and retaken. He is killed; other officers are wounded; and thirty-six out of forty-eight of the matrosses, are killed or wounded. Few actions have been characterized by more obstinacy in attack or defence, than is the present. The British bayonet is repeatedly tried without effect. During the engagement many Americans place themselves in high trees in the rear of their own line; and there is seldom a minute's interval of smoke in any part of the British line, without officers being taken off by a single shot. One is aimed at Burgoyne, but passes through the arm of captain Green, aid-de-camp to Philips, while delivering a message. The British commander's escape is owing to the captain's having a laced furniture to his saddle, which occasions his being mistaken for the general. Toward the close of the day, gen. Gates orders out of camp to the field of battle the 10th Massachusetts regiment under col. Marshall.^[65] When he comes upon the open ground, he is perceived by a British officer, who has entered the neighboring wood with his soldiers, and is upon the point of overpowering an American regiment. The British officer quits the wood, calls out to him not to fire, for that he is a friend. Marshall suspects it, but the dusk of the evening prevents his distinguishing the regimentals; he therefore orders his men to make ready. He observes the officer directing his soldiers by the motion of his sword, how to form; and at length discerns the grenadier-caps, on which he calls out to his men *fire*. The British officer falls, and after a while the regiment seeks its safety in a retreat, which terminates the action in this quarter. In another spot, the Americans give way to the British bayonet and quit the field. Gen. Reidesel by exerting himself, brings up a part of the left wing, and arrives just in time to charge some of the Americans. But a regiment of the latter remains longest on the field of battle, by continuing upon it hours after the action totally ceases. Lieut. col. Brooks who commands the eighth Massachusetts regiment, by order of gen. Gates, goes to the left of all the American troops, so as to out flank the British, when he forms his line; but perceives troops in front of him, whom

he cannot clearly distinguish because of the lateness of the evening, and the dusk being increased by the trees. They soon fire, and kill one of his men wounding others; on which he immediately engages them, and they give way. He concludes they are Germans from the brass cases on their breasts, for containing lighted match. Brooks remarking that the other American regiments are withdrawn, and that he cannot be supported in case the enemy advance upon him, and hearing them talk at a distance, changes his position, and falls back into the open road leading to the camp, and there remains. At length he sends to Gates for orders how to act, who directs him to return into camp; where it was before apprehended all the troops had collected that had been in action.—It is near upon eleven o'clock at night when he quits the ground and returns.

The British lost in this action rather more than 500 in killed, wounded and prisoners.^[66] The loss of the Americans was, officers included, 64 killed, 217 wounded, and 38 missing, in all 319.^[67] None of the right wing or centre were engaged, except Marshall's regiment. The number that engaged was about 2500. Gates's whole army, with the militia present was about 7000. Lincoln had not then joined him with his militia; neither was he in the action, but at or in the neighborhood of Bennington. Arnold's division was out in the action, but he himself did not head them; he remained in the camp the whole time. The foreign officers said, that in all the engagements in which they had been, whether in Flanders or elsewhere, they never knew so long and hot a fire. The American army expended nearly all their ammunition and had but about forty rounds a man left them. After the action the general was under the necessity of sending not only for powder, but also to Albany for all the window leads and other lead that could be gotten for the making of bullets. He had never more than three days provision of flour at a time; but on the day of action the army had none, for it did not arrive till the 20th. It had been constantly the practice of gen. Gates, to take the precaution of having the baggage loaded every morning, and of being ready for a sudden movement; some of the British officers not knowing this was his practice wrongly inferred from his being taken the morning after the action, that he was apprehensive of being pushed, and of being obliged to give way. The royal army however discovered apprehension, by lying all the ensuing night upon their arms, at some distance from the field of battle. The next day they took a position nearly within cannon shot of the Americans, and fortified their right. The

engagement answered so little to the expectation of their Indian auxiliaries, that a fresh desertion among them took place, in this season of danger and distress: while a number of other Indians repaired to the American camp. The last were attending a treaty with the American commissioners; who, finding they were inclinable to engage in a war, prepared a speech, and the next day offered them the war belt, which was immediately and solemnly accepted by warriors of the Oneidas, Tuscaroras, Onondagos and Mohawks. On the 17th the war feast was prepared, at which the belt was solemnly accepted by the whole. The 18th and 19th passed in equipping them. Being informed the 19th at night, that the American army was engaged, many of the Indians marched off without delay, and with such dispatch as to reach Gates, before noon next day though the distance was very considerable, and by night the remainder arrived in camp, making in all near 150.

The proximity of the two armies induced the American general to redouble his ardor in strengthening his left. The Americans are expert beyond all other nations, in the mode of defence by intrenchment, covered with strong abatis.^[68] From the 20th of September to the 7th of October, the armies were so near, that not a night passed without firing and sometimes concerted attacks upon the British advance pickets. No foraging party could be made by the royal troops, without great detachments to cover it. It was the American plan to harrass the enemy by constant alarms.^[69] Mean while gen. Lincoln, agreeable to the orders sent him, marched toward the camp. By the 29th, he joined Gates with about 2000 militia.

General Burgoyne had from the beginning, a firm hope of being powerfully succoured when wanted, and at any rate of being met and joined at Albany, by a strong force from the army at New-York. With great difficulty he received on the 21st, a letter in cypher from Sir H. Clinton, informing him, that the latter intended making a diversion on the North-River, by attacking Fort Montgomery. Though this fell short of the aid he expected, he hoped it might afford essential service by obliging Gates to divide his army. He returned the messenger; and afterward dispatched two officers in disguise, and other confidential persons, all separately by different routes, to acquaint Clinton with his exact situation and condition, and to press him urgently to the immediate prosecution of his design, and to inform him that in point of provision he could, and was determined to hold his present position, in hope of favorable events, until the 12th of October. The British commander had to encounter disappointments and difficulties;

and the Americans was not exempted. The latter wrote to gen. Washington on the 5th of October, "I am sorry to repeat to your excellency the distress I have suffered for want of a proper supply of musket cartridges from Springfield, or the materials to make them.—My anxiety also on account of provisions has been inexpressible. A greater error has not been committed this war, than the changing the commissariat in the middle of the campaign."

Sir H. Clinton's intended diversion did not commence so soon as proposed; for the British reinforcement under gen. Robertson, amounting to near 2000 men, did not arrive from Europe till about the beginning of October. They were three months on their passage, owing partly to contrary winds, and partly to their being on board heavy sailing Dutch bottoms. Had they arrived a month sooner, the state of affairs would undoubtedly have been widely different. When they did arrive, Clinton lost no time in employing them. Numbers of them were immediately removed to proper vessels, and joined in the expedition against the forts in the highlands. The arrangements being made he proceeded up the North-River with about 4000 men; and landed on the 4th of October at Tarry-town, meaning to excite an apprehension in gen. Putnam, that his post at Peek's-kill was the object. A thousand continental troops had been left him, therewith to defend it, but the effectives were fewer: he had made repeated application for militia from New-York state and Connecticut, but had been joined by very few, they having been called away from an expedition against the royal force on Rhode-Island. At eight at night he wrote to gov. Clinton, and informed him of the arrival of the British, and what he thought was their destination. The governor, upon the receipt of the letter, penetrated his namesake's design; prorogued the assembly the next day; and hastened to Fort Montgomery, where he arrived at night. The royal troops were secretly transferred across the river, and dispositions made, for an assault upon the forts on the 6th.

[Oct. 6.] The American advanced party is attacked by the enemy at Doodle-town, about two miles and a half from Fort Montgomery. They receive the enemy's fire and retreat to Fort Clinton. The enemy then advance to the west side of the mountain, to attack the Americans in the rear. Gov. Clinton orders out a detachment of 100 men toward Doodle-town, and another of 60 with a brass field-piece, to a very good spot on a different road. They are both attacked soon by the enemy's whole force, and obliged to give way; but behave with spirit, and retreat with great order till

they reach the fort. The governor immediately posts his men in the most advantageous manner; but it is not many minutes before his post, as well as Fort Clinton, is invaded on all sides. He is summoned when the sun is about an hour high to surrender in five minutes; but refuses. In about ten minutes after, the British make a general and desperate attack on both posts, which is received with spirit. Officers and men, as well as militia as continentals, behave well. A most incessant fire is kept up till dusk, when the assailed are overpowered by numbers, who force the lines and redoubts at both posts. Not a few of the Americans fight their way out, others mix with the enemy, and so make their escape, knowing all the avenues in the mountains, and being favored by the night. The governor, and his brother gen. James Clinton, who is wounded, but not dangerously, get off clear. The former is joined the next day by better than 200 of the garrison; and is in expectation of many more.

The whole garrison consisted of but 600 men, not one half of whom had bayonets, wherewith to oppose those of the enemy, whose repeated assaults with that weapon at length prevailed.—When it was evident that the enemy meant an attack upon these posts, application was made for a reinforcement from Peek's-kill; but through mistake, and the treachery of the issuing commissary at Fort Montgomery, it was not sent in time: the forts were carried while it was crossing the river, which occasioned its return. A seasonable supply of 500 men might have secured them. They were no sooner lost, but Fort Constitution was demolished without the orders of the governor, and without first removing the artillery and stores. The Americans set fire also to two fine new frigates, and some other vessels, which with their guns and stores were all consumed. Gen. Tryon was sent off with a detachment, and destroyed a new settlement, called Continental-village, which contained barracks for 1500 men, beside many stores.

The cannon, stores, ammunition, &c. taken and destroyed by the British, were very considerable; but the main advantage obtained by them was the opening of the passage up the North-River. This had been obstructed by a boom and chain running across the river from fort Montgomery. The chain weighed above 50 ton, and the links were about 2 & 1–2 inches square. There was another inferior boom near Fort Constitution. These booms and chain cost the Americans an amazing deal of labour and more than fifty thousand pounds sterling, as is supposed, in paper continental money. The reduction of the forts put the British into immediate possession of the power

of removing there obstructions, and passing up to Albany. Gen. Putnam was in such expectation of their improving this advantage, that he wrote to gen. Gates on the 8th, "I cannot flatter you or myself with the hopes of preventing the enemy's advancing, therefore prepare for the worst." The next day he said, "The Connecticut militia came in yesterday, and the day before in great numbers, but I am sorry to say, they already begin to run away. The enemy can take a fair wind, and with their flat-bottomed boats which have all sails, to go to Albany or Half-Moon with great expedition, I believe without any opposition." Half-Moon is sixteen miles below where Gates was encamped. The same day a spy was brought before gov. Clinton, and confessed—"That he was charged by Sir Henry to go to Burgoyne and acquaint him, that on Monday, the 6th, he stormed and carried the forts with the loss of lieut. col. Campbell, majors Grant and Sill slain; besides a number of other officers, and upward of 300 rank and file, killed and wounded: that a number of people were employed, who were constantly from one army to the other:—That gen. Clinton intended to push up the river;—and that a capt. Campbell of Burgoyne's army, lately arrived with dispatches to Sir Henry and set off on his return, the Wednesday morning with the news of the reduction of Fort Montgomery." The captain however, did not get back to Burgoyne till the night before the convention was signed. The spy did not mention the death of count Grabouski a Polish nobleman, who was killed in the attack, while acting as aid-de-camp to Sir Henry Clinton.

Let us now attend the motions of generals Burgoyne and Gates. In the begining of October, the British commander judged it expedient to lessen the soldiers' rations of provision, to which they submitted with cheerfulness. Things continued in this state with the royal army till the 7th, when no intelligence having been received of the expected co-operation, and four or five days for their limited stay in the camp only remaining, it was thought advisable to make a movement to the left of the Americans, not only to discover whether there was any possible mean of forcing a passage, should it be necessary to advance, or of dislodging them for the convenience of a retreat; but also to cover a forage of the army in the greatest distress by the present scarcity.

Before general Gates has gained any knowledge of this intended movement he has ordered out a party of about 300 men in the morning; soon after he directs lieut. col. Brooks to repair to head-quarters when he

gives him the command of them, and desires him to call between one and two o'clock, for particular directions. The party is destined to go into the rear of Burgoyne, to drive in his out-posts, and to occasion an alarm, which Gates means to take advantage of, if opportunity offers. But unknown to him, a royal detachment of 1500 regular troops with two twelve-pounders, two howitzers, and six six-pounders, are ordered to move, being commanded by Burgoyne in person, seconded by generals Philips, Reidesel and Frazer. The guard of the camp upon the high grounds is committed to generals Hamilton and Specht; that of the redoubts and plain near the river to brigadier Gall. The force of the Americans in front is thought to be so much superior, that it is not judged safe to augment the detachment beyond the number stated.

While Brooks is waiting at the American head-quarters, a serjeant arrives with an account of the motion of the royal detachment; which is speedily confirmed. On this the party he was to have commanded is dismissed; and the officers and men present are ordered to their posts. Burgoyne's scouting parties are driven in by col. Morgan's riflemen and the corps of light-infantry: but his troops continue advancing, and are formed within three quarters of a mile of Gates's left. The artillery is posted on a clear spot of ground, in a great measure surrounded by woods, the two medium twelve-pounders on a small eminence, nearly in the centre of it. The irregulars are pushed on through by-ways to gain the American rear, and to keep them in check. Gen. Arnold, who had mounted his horse, receives a message from Gates, directing him to be cautious, for that he apprehends that Burgoyne designs to make his main attack on the right. Arnold shows much displeasure at it, expresses himself improperly, and says, "I will be answerable for consequences." He orders out Cilly's New-Hampshire regiment with others, and soon follows them. About four o'clock in the afternoon, the American column approaches the royal detachment and is immediately fired upon by the twelve-pounders and the four six-pounders; notwithstanding which, the men draw up along the skirts of the woods behind trees, about 200 yards distant from the artillery. They make a very sudden and rapid attack upon the British grenadiers, who are posted to support the left wing of the line. Major Ackland at the head of them sustains this fierce attack with great resolution. General Gates having ordered out more regiments, the number of the Americans enables them soon to extend the attack along the whole front of the Germans, who are posted

immediately on the right of the grenadiers. It is therefore impracticable to remove any of the Germans, for the purpose of forming a second line to the flank where the stress of the fire lies. The right is still unengaged; but it is observed that the Americans are marching a large corps round their flank in order to cut off their retreat. To oppose this bold and dangerous attempt, the light-infantry, with a part of the 24th regiment, which are joined with them at the post, are directed to form a second line, in order to cover the retreat of the troops into camp. While this movement is in process, the Americans push forward a fresh and strong reinforcement to renew the action on Burgoyne's left which is totally overpowered and compelled to give way; on this the light-infantry and 24th regiment are obliged, by quick movement, to attempt saving that wing from being totally ruined; but in doing it Gen. Frazer is mortally wounded. The situation of the detachment is now exceeding critical; but the danger to which the lines are exposed, is still more alarming. Generals Philips and Reidesel are ordered to cover the retreat; and those troops which are nearest or most disengaged, return as fast as they can for the defence of the lines. A little after five, in the height of the action, lieut. col. Brooks, by Gates's order, quits the camp at the head of col. Michael Jackson's regiment, and directs his march to the warmest fire. On advancing into the field, he finds the royal detachment has given way in all quarters, and Arnold pushing with Paterson's brigade for the works possessed by the British light-infantry assisted by some of the line, who have just thrown themselves into the same, with great precipitation, by means of a circuitous retreat. The brigade has a large abatis to cross, and many other obstructions to surmount, in the face of a brave enemy, occupying works advantageously constructed and completed, it is therefore at length compelled to retire. But during the contest, Jackson's regiment passing the rear of the brigade, falls into the fire on its left, having in front two stockade redoubts occupied by some Canadians, and the left of the works, in which are the German grenadiers, under colonel Breyman. At some considerable distance on the left of Brooks, are Wesson's regiment, Morgan's corps, and the York troops. Paterson's brigade failing, Arnold leaves it, and comes to Jackson's regiment, which he orders instantly to advance, and attack the lines and redoubts in front. Brooks commands two platoons from the right to attack the stockades; they move with great rapidity, carry the point with charged bayonets, and suffer little more than the loss of two lieutenants killed. The regiment instantly makes an assault

on the main lines, though manned with double its number. Arnold having given Brooks his orders, passes on to the left; and having ordered the Americans there to make a general assault, returns to Jackson's regiment, the left of which has arrived at the works; and a small sally-port presenting, Arnold and a part of the left platoon pass through together. The enemy retire firing, and gain their tents about thirty or forty yards from the works, but finding the assault is general, they give one fire, and either retreat to the British camp or throw down their arms. By this last fire Arnold is wounded, and a sergeant of Jackson's regiment, standing near the general, killed. Orders are given by Burgoyne for the recovery of the entrenchments of the German reserve; but they are not executed, and the Americans remain in possession of an opening on the right and rear of the royal army. The night puts an end to the action.

The heat of it, with small arms, lasted about forty minutes; but the cannonading continued after the royal detachment had given way. In the course of it, a shot passed through gen. Burgoyne's hat, and another tore his waistcoat. A battalion of Brunswickers ran, though not one of them was killed, and would never come on again.^[70] To this misbehavior some may be ready to ascribe the want of success on the side of the British, and as a consequence of it, the loss of the whole army. Whatever such behaviour might contribute toward the event, the bravery of the Americans had certainly a very considerable share in it. The royal detachment was driven by them near upon two miles, and had scarce entered the camp when it was stormed by them with great fury; for they rushed on to the lines under one of the heaviest cannonades of artillery, grape-shot and rifle fire ever beheld, and never gave way till they met the British grenadiers. Some of the British officers were astonished at hearing the fire of the American musketry kept up with such vigor and constancy, after undergoing so heavy a fire of artillery.^[71] One of the bravest of them^[72] is ready to declare, that whenever he has been opposed to the Americans, they have fought with courage and obstinacy. He found it so in the above action. General Arnold was next to military mad. He appeared, in the heat of the engagement, so beside himself as scarce to know what he did. He struck several of the officers with his sword, without any apparent reason; and when they told him of it the next day, meaning to remonstrate and require satisfaction, he declared he recollected nothing at all of it, and was sorry if it was so. Some of his orders were exceedingly rash and injudicious, and argued thoughtlessness rather

than courage.^[73] His attack upon the British varied so from established military maxims, that the royal officers inferred from it, that gen. Gates did not personally command in the action. Gates remained for the most part in the camp, as on the 19th of September, that he might the better guide the general operations, and give the necessary directions as they were wanted. Arnold's left-handed variation might however contribute greatly toward obtaining the victory. The British have been at length taught by experience, that neither American attacks nor resistance, are to be despised.

Nothing could easily exceed the distress and calamity of the royal army when the day was closed. The Americans halted half a mile in the rear of them; and between twelve and one o'clock at night, gen. Lincoln (who during the action, was in the centre of the encampment, commanding within the works) marched with his division to relieve the troops that had been engaged, and to possess the ground they had gained. The situation of the British made a total change of position necessary to secure them from certain destruction. It was executed during the night with a great degree of coolness, silence, order and intrepidity. It was a general remove of the whole army, of the camp and artillery, from its late ground to the heights above the hospital; with the design, by an entire change of the front, of reducing the Americans, if possible, to the necessity of forming a new disposition. This remove was accomplished without any loss whatever. The day of action proved fatal to numbers. The officers suffered exceedingly. Several who had been grievously wounded in the former action, and disdained absence from danger, were again wounded. Beside general Frazer, Sir James Clark, Burgoyne's aid-de-camp, was mortally wounded and taken prisoner. Major Williams of the artillery, and major Ackland were also taken, the latter being wounded. Lieut. col. Breyman was killed when the intrenchment where he commanded was forced. The lists of killed and wounded, though avowedly imperfect, and not including the Germans are very considerable. The loss of the Americans was trifling both in men and officers. They took officers and privates, to the amount of rather more than 200: beside 9 pieces of brass artillery, and the encampment of a German brigade with all their equipage. But what was of the utmost consequence, they obtained a large supply of ammunition from among the spoils of the field, under an excessive scarcity of which they had long laboured. The same troops were engaged as on the 19th of September, with detached regiments, from generals Glover and Paterson's brigades, together with a

strong brigade of New-Hampshire militia, and Green Mountain boys, alias Vermont militia.

The royal troops were under arms the whole day of the 8th of October, in continual expectation of an action, and were cannonaded during the greatest part of it; but all that happened was a succession of skirmishes, which occasioned loss on both sides. Gen. Lincoln was wounded in his leg by a random shot of the enemy, as riding in company with gen. Gates. About sun set, the corpse of gen. Frazer was brought up the hill, attended only by the officers who had lived in his family, for he desired it might be carried, without parade, by the soldiers of his corps to the great redoubt, and there buried. It necessarily passed within view of both armies; generals Philips, Reidesel and Burgoyne, standing together, were struck with the humility of the procession. Their conforming to that privacy which had been requested, might be construed into neglect. They could neither endure that reflection, nor restrain their natural propensity to pay their last attention to his remains. They followed the corpse to the grave. The incessant cannonade during the solemnity:—the steady attitude, and unaltered voice with which the chaplain officiated, though frequently covered with dust, thrown up on all sides of him by the shot:—the mute but expressive mixture of sensibility and indignation upon every countenance:—together with the growing duskiness of the evening, may be hereafter described by the pen of the British commander, as marking a character of that juncture, which makes one of the finest objects for the pencil of a master, that the field ever exhibited.^[74] But had gen. Burgoyne acquainted the American commander with the intended procession, the serenity would have been varied; for Gates instead of admitting the cannonade, would rather have ordered minue guns to have been fired in honor to the deceased; and could he have gained in time the knowledge of what was going forward, would undoubtedly have silenced the former.

General Gates previous to the action, posted 1400 Americans on the heights opposite the ford of Saratoga, and 2000 in the rear to prevent a retreat to Fort Edward; afterward on the 8th, he posted 1500 at the ford higher up. Gen. Burgoyne, having received intelligence of it, and apprehending that Gates meant to turn his right, which when effected would have enclosed him completely resolved on an immediate retreat to Saratoga. The army began to move at nine o'clock at night and the movement was made without loss; but the hospital with the sick and wounded, was

necessarily abandoned. In this instance, as well as in every other which occurred in the course of these transactions, Gates behaved with such attention and humanity, to all whom the fortune of war threw into his hands, as does honor to his character. The badness of the roads, and the starving condition of the cattle for want of forage, together with one incessant rain, like a continued thunder shower from about eight in the morning of the 9th till long after the day closed, and other difficulties, prevented the army's reaching Saratoga though no more than about six miles distant, before night, and then worn down with excessive fatigue. During the rain a body of militia continued their march, and got in above Gates' army, but some way below Fort Edward. Gates being informed of their arrival ordered them immediately to the fort. They arrived there the next morning early, about two or three hours before a detachment sent off by Burgoyne to possess that post could get up to it. The detachment finding it occupied by the Americans, returned much dispirited.

When the royal artillery and army had passed the fords of the Fish-kill creek, a little to the northward of Saratoga on the morning of the 10th, they found a body of Americans already arrived, who retired at their approach over a ford of Hudson's-River, and there joined a greater force stationed to prevent the passage of the British. No hope remained, but that of effecting a retreat at last to Fort George. Artificers were sent forward to repair the bridges: but they were not long departed from the camp with a strong escort, when the sudden appearance of the Americans, on the opposite heights, with an apparent preparation to pass the Fish-kill, and bring on an engagement, rendered it necessary to recall the 47th regiment, and Frazers's marksmen—these with M'koy's provincials formed the escort. The workmen had only commenced the repair of the first bridge, when they were abandoned by their provincial guard, who ran away and left them to shift for themselves, upon a slight attack of an inconsiderable party of Americans.

On the morning of the 11th of October, gen. Gates called the general officers together, and informed them of his having received certain intelligence, which might be depended upon, that the main body of Burgoyne's army was marched off for Fort Edward with what they could take, and that a rear guard only was left in the camp, who after a while were to push off as fast as possible, leaving the heavy baggage behind. On this it was concluded to advance and attack the camp in half an hour. The officers

repaired immediately to their respective commands. Gen. Nixon's, being the eldest brigade, crossed the Saratoga creek first. Unknown to the Americans, Burgoyne had a line formed behind a parcel of brush wood, to support the post of artillery, where the others meant to make their attack. Gen. Glover was upon the point of following Nixon. Just as he entered the water, he saw a British soldier making across, whom he called and examined. The soldier said he had deserted, that he belonged to the bullock guard (the guard placed over the cattle) and that he was going to the Americans. Glover asked him about Burgoyne's army. The soldier answered, It is encamped the same as days past. Glover told him—"If you are found attempting to deceive me, you shall be hung in half an hour; but if you speak nothing but the truth, you shall be protected, and meet with good usage." He then asked him—"Have not numbers been sent off to Fort Edward?" The deserter replied—"A small detachment was sent off a day or two ago, but are returned on finding the passes occupied by the Americans, and the whole army is now in camp." Glover, though the junior officer to Nixon, sent off immediately to him, to desist and recross the creek; and at the same time dispatched his aid-de-camp, with the deserter behind him on horse-back to Gates; who having examined the soldier, hurried away the aid-de-camp, the adjutant general and others, to countermand the former orders and prevent the attack. Gen. Nixon upon Glover's message retreated; but before he had recrossed, the fog cleared off, and the rear of the brigade was galled by the enemy's cannon, which killed several of his men. Before the orders from gen. Gates arrived, the British deserter's information was confirmed by like intelligence from a German deserter.^[75] Glover's message was received by Nixon in the critical moment; a quarter of an hour later would probably have proved fatal to his whole brigade, and given a turn to affairs in favor of the royal army. On incidents of this kind may depend the rise and fall of mighty kingdoms, and the far distant future transfer of power, glory, and riches, of arts and sciences, from Europe to America. Are they blind unmeaning casualties? Or are they the direct orderings of a Divine Being, for the establishment of his own purpose, by a superintending Providence, and the jarring devices of mortals?

Gates after a victory acknowledged in general orders a Providence, but did not presume upon it, so as to neglect the dictates of human prudence. That he might secure all the advantages of the successful action on the 7th, he applied to the New-Hampshire assembly for more troops. The speaker,

John Langdon, esq. upon receiving the application, immediately proposed that the assembly should adjourn, and that as many of the members as could, should set off directly as volunteers for the camp, taking with them all the men they could collect: which was agreed to and done by himself and others.

In the course of the above transactions, large quantities of baggage, provision, boats, &c. were taken by both the continentals and militia. The latter were extremely eager after plunder; and even robbed the former, as opportunity offered, of what they had secured, and made sale of it for their own advantage. The irregularities in this business were so gross, that the American commander, on the 12th, gave out in general orders—"The general sees so many scandalous and mean transactions, committed by persons who seek more after plunder than the honor of doing their duty in a becoming and soldier-like manner, that he is obliged to declare his unalterable resolution, to have the first person who shall hereafter be detected pillaging the baggage and stores taken from the enemy, tried and punished with the utmost severity of the military law. Officers, who know their duty and have virtue to practise it, will not be seeking plunder, when they ought to be doing their best service in the field; it is only the worthless and the pilfering that are so truly infamous. For the future, all plunder taken from the enemy is to be delivered to lieut. col. Hay, deputy-quarter-master general who is to give a receipt for the same, and after three days public notice in general orders, it shall be sold by auction in the most central place in the rear of the army and the money for which the plunder is sold, shall be properly and fairly divided, to such persons as in the impartial judgment of the general, have a right to receive a share: when there is a sum sufficient to divide among the non-commissioned officers and soldiers of the whole army, they may be assured of such having their just quota."

It is believed, that gen. Burgoyne when upon the point of retreating, said to major Skeen to this purport—"you have been the occasion of getting me into this difficulty, now advise me how to get out of it,"—referring to the advice the major gave in relation to the Bennington expedition; and that the major answered—"scatter your baggage, stores and every thing else that can be spared, at proper distances; and the militia will be so engaged in collecting and securing the same, that the troops will have an opportunity of getting clear off." The major certainly knew the cast of the militia; and if military honor and other circumstances, had admitted of trying the proposed

expedient, it might have succeeded; for though gen. Gates had the continentals under good discipline, it would have been next to impossible for him to have prevented the militia's being taken in by the hopes of immediate gain.

Burgoyne was at length reduced to the necessity of conforming in a degree to the expedient. The only measure that appeared practicable for the escape of the army, though difficult and dangerous, was by a night march to gain Fort Edward, the troops carrying their provisions on their backs. The impossibility of conveying, in their present situation, the artillery and carriages, was too evident to admit of a question. It was proposed to force the fords at or near the fort. But all hope of effecting this manœuvre soon failed. The Americans who had been ordered there, were too strongly posted. Beside, they made a discovery, which they greatly improved. Below the fort, close in with the river, they found the appearance of a grave, with an inscription on a board—*Here lies the body of lieutenant* —. They were at a loss what it should mean.—On searching, they discovered three boats, instead of a body.—These the enemy had concealed. Having none of their own, they by the help of them sent scouting parties across the river, which by falling into a track a mile and a half beyond, discouraged the enemy's parties from attempting an escape that way.—A continental captain, on furlough for his health being at hand and thoroughly acquainted with the woods, collected a number of men together, and went off six miles further, where he fell in with another track, just in time to prevent a large corps of Canadians and others getting off by the same. Perceiving them as they advanced, he concealed his men till they were near enough, and then gave them a volley, attended with yells, shouts, and other sounds, which put them into such confusion, that they fled back to Burgoyne's camp, with the report that the woods are filled with thousands of Americans. The certain intelligence that was received, the flying reports that were spread, and the various circumstances that existed, rendered the state and situation of the royal army deplorably calamitous. They had been obliged for some days to lie continually upon their arms.

On the 13th, gen. Burgoyne finding that the troops had only three days provision in store, on short allowance, and no apparent means of retreat remaining, called into council all the generals, field-officers, and captains commanding corps. There was not a spot of ground in the whole camp for holding the council of war, but what was exposed to cannon or rifle shot.

While the council was deliberating, an eighteen pound ball crossed the table. By the unanimous advice and concurrence of the council, the general was induced to open a treaty with gen. Gates. The first proposals of the latter were rejected, and the sixth article with disdain, wherein it was required that the British army should lay down their arms in the entrenchments. Burgoyne's counter-proposals were unanimously approved; and being sent to Gates, were agreed to on the 5th, without any material alteration. The proposals not being signed by either party, and captain Campbell returning in the night of 16th to Burgoyne, with the news of the reduction of Fort Montgomery and other intelligence, the general submitted it to consideration, whether it was consistent with public faith, and if so, expedient to suspend the execution of the treaty, and trust to events. The opinion of different officers was asked, in regard to the condition of their respective corps, and what might be expected from them severally in desperate cases. Some entertained doubts of part of the troops, if the negociation ceased; and others of a greater part for want of bodily strength, if desperate enterprises were to be afterward undertaken. The majority of the council determined, that the public faith was *bona fide* plighted.^[76] Burgoyne, from the intelligence brought in the night by Campbell, entertained a slight hope of remote relief, and accordingly gave his voice against the majority; but the majority having determined differently, the concurrence for signing the treaty was unanimous.^[77] Gates, jealous lest the signing would be unnecessarily delayed, and fearful of the consequences which might follow, should gen. Vaughan, with his troops, come up in time to Burgoyne's assistance, determined upon bringing the matter to an immediate issue. On the morning of the 17th, he got every thing in readiness for attacking the royal army. This done, he took out his watch, the time agreed upon for signing being come; sent col. Grea-ton, on horseback, to Burgoyne, with a message, requiring their general to sign; and allowed him no more than ten minutes to go and return. He was back in time. The treaty was signed: all hostile appearances ceased; and the Americans marched into their lines, to the tune of Yankee Doodle. They were kept there until the royal army had marched out of their lines, and deposited their arms at the place appointed by the treaty.

The delicacy with which this business was conducted, reflects the highest honor upon the American general. It intimated, that he was sensible of the mortification attending a reverse of fortune; and that he was unwilling to

aggravate the painful feelings of the royal troops, by admitting the American soldiery to be eye-witnesses to the degrading spectacle of piling their arms. His humanity and politeness are the more praise-worthy, as some late, as well as former circumstances, had highly enraged the militia. The extraordinary and severe measures pursued upon the North-River by the British, and to be related below, might also have afforded too much colour for a different mode of conduct.

When the arms was deposited agreeable to treaty, the royal troops were served with bread by the Americans, as they had neither any left nor flour to make it. They had only one day's salt meat remaining.

The treaty is stiled—*A convention between lieutenant-general Burgoyne and major-general Gates*. The articles follow:—1. The troops under lieut. gen. Burgoyne, to march out of their camp with the honors of war, and the artillery of the intrenchments to the verge of the river where the old fort stood, where the arms and artillery are to be left.—The arms to be piled by word of command from their own officers:—2. A free passage to be granted to the army under lieut. gen. Burgoyne to Great-Britain, upon condition of not serving again in North-America during the present contest; and the port of Boston to be assigned for the entry of transports, to receive the troops, whenever gen. Howe shall so order:—3. Should any cartel take place, by which the army under lieut. gen. Burgoyne, or any part of it, may be exchanged, the foregoing article to be void, as far as such exchange shall be made:—4. The army under lieut. gen. Burgoyne is to march to Massachusetts-Bay, by the easiest and most expeditious and convenient route; and to be quartered in, near, or as convenient as possible to Boston, that the march of the troops may not be delayed when transports arrive to receive them:—5. The troops to be supplied on the march, and during their being in quarters, with provisions, by major-general Gates's orders, at the same rate of rations as the troops of his own army; and if possible, the officers horses and cattle are to be supplied with forage at the usual rates:—6. All officers, to retain their carriages, bat-horses, and other cattle, and no baggage to be molested or searched; lieut. gen. Burgoyne giving his honor, that there are no public stores contained therein. Major-gen. Gates will of course take the necessary measures for the due performance of this article: should any carriages be wanted during the march, for the transportation of officers baggage, they are, if possible, to be supplied by the country at the usual rates:—7. Upon the march, and during the time the army shall remain

in quarters, in the Massachusetts-Bay, the officers are not, as far as circumstances will admit, to be separated from their men. The officers are to be quartered according to their rank, and are not to be hindred from assembling their men for roll-callings, and other necessary purposes of regularity:—8. All corps whatever of lieut. gen. Burgoyne's army, whether composed of sailors, batteaux men, artificers, drivers, independent companies, and fowlers of the army, of whatever country, shall be included in the fullest sense and utmost extent of the above articles, and comprehended in every respect as British subjects:—9. All Canadians, and persons belonging to the Canadian establishment, consisting of sailors, batteaux-men, artificers, drivers, independent companies, and many other followers of the army, who come under no particular description, are to be permitted to return there: they are to be conducted immediately, by the shortest route to the first British post on Lake George, are to be supplied with provisions in the same manner as the other troops, and to be bound by the same condition of not serving during the present contest in North-America:—10. Passports to be immediately granted for three officers, not exceeding the rank of captains, who shall be appointed by lieut. gen. Burgoyne, to carry dispatches to Sir Wm. Howe, Sir Guy Carleton, and to Great-Britain by the way of New-York; and major-general Gates engages the public faith, that these dispatches shall not be opened. These officers are to set out immediately after receiving their dispatches, and are to travel by the shortest route, and in the most expeditious manner:—11. During the stay of the troops in the Massachusetts-Bay, the officers are to be admitted on parole, and are to be permitted to wear their side arms:—12. Should the army under lieut. gen. Burgoyne find it necessary to send for their clothing and other baggage from Canada, they are to be permitted to do it in the most convenient manner, and necessary passports to be granted for that purpose:—13. These articles are to be mutually signed and exchange tomorrow morning at nine o'clock; and the troops under lieut. gen. Burgoyne, are to march out of their entrenchments at three o'clock in the afternoon. Camp at Saratoga, October 16, 1777.

HORATIA GATES, *Major General*.

To prevent any doubts that might arise from lieut. gen. Burgoyne's name not being mentioned in the above treaty, major-general Gates hereby

declares, that he is understood to be comprehended in it as fully as if his name had been specifically mentioned.

HORATIA GATES.

Such was the impatience of some of the militia to return home before the royal army had been brought to surrender, and so little their concern to be spectators of the event, that one of the Northampton regiments went off the day before the flag came out from Burgoyne. Another regiment took itself away while the treaty was in agitation. But the fate of the army will confirm the truth of what its commander wrote to lord George Germain, "August the 20th, the great bulk of the country is undoubtedly with the congress in principle and zeal." When after the convention the officers went into the American camp, they were surprised; and some of them said, that of all the camps they had ever seen in Germany or elsewhere, they never saw any better disposed and secured.

The return signed by gen. Burgoyne, of the foreigners at the time of the convention, amounted to 2412. The British consisted according to him of 10 officers present—145 commissioned—the staff 26—sergeants and drummers 297—rank and file 2901—in all 3379: this added to the Germans, makes 5791. The American account, to show what was the sum total of the royal army acting in the northern department against the country, goes on to reckon, the sick taken 928—the wounded 528—prisoners of war before the convention 400—deserters 300—lost at Bennington 1220—killed between the 17th November to the 18th of October 600—taken at Tyconderoga 413—killed in gen. Herkimer's battle about 300—making in all 4689. According to this way of reckoning, the royal force was 10480. It was probably full 10000 strong, including Canadians and provincials and exclusive of Indians, drivers, sutlers, &c. Among the prisoners taken were six members of parliament.

The train of brass artillery was a fine acquisition; it consisted of 2 twenty-four pounders—4 twelves—20 sixes—6 threes—2 eight inch howitzers—5 five and a half royal ditto—and 3 five and a half inch royal mortars—in all, 42 pieces of ordnance.—There were 4647 muskets—6000 dozen of cartridges, beside shot, carcasses, cases, shells, &c.

Burgoyne was desirous of a general return of the army commanded by Gates at the time of the convention. The latter understood him, and was careful not to lessen the return by suppressing a single man. The continentals, all ranks included, were 9093: the militia 4129, in all, 13222; but of the former, the sick on furlough were 2103; and of the latter, 562. The number of the militia was continually varying; and many of them were at a considerable distance from the camp.

We now enter upon the retaliation of the measures pursued by the British below Albany. You have been told what were the sentiments of gen. Putnam, on the 9th, as to their sailing up to within sixteen miles of the American camp, before removed from the neighborhood of Stillwater. Sir H. Clinton, however, instead of pushing up the river, intrusted the business to Sir James Wallace and gen. Vaughan. The latter had under him 3600 men. Sir James commanded a flying squadron of light frigates, accompanied with the necessary appendage of barges, batteaux and boats, for landing the troops, and all other movements. By the 13th they reached Kingston alias Æsopus, a fine village, as you would call it; but on this side the Atlantic, a good town. Upon Vaughan's landing the troops, the Americans, being too weak to make resistance, abandoned their battery of three guns, after spiking them. They left the town immediately for their own safety, without firing from the houses upon the British. Vaughan, however, was told that Burgoyne had actually surrendered;^[78] and the town was doomed to the flames. The whole was reduced to ashes, and not a house left standing. The American governor Clinton was a tame spectator of the barbarity, but only for want of a sufficient force to attack the enemy. This seemingly revengeful devastation was productive of a pathetic but severe letter from gen. Gates (then in the height of victory) to gen. Vaughan. The latter with a flood tide might have reached Albany in four hours: there was no force to have hindered him. When he burnt Livingston's upper mills, had he proceeded to Albany and burnt the American stores, Gates, as he himself has declared, must have retreated into New-England. The royalists may justly remark upon the occasion—"Why a delay was made of seven days after Clinton had taken the forts we are ignorant of. The highland forts were taken the 6th of October; Æsopus was burnt the 13th; Burgoyne's convention was signed the 17th. There was no force to oppose even open boats on the river; why then did not the boats proceed immediately to Albany? Had Clinton gone forward, Burgoyne's army had been saved.

Putnam could not have crossed to Albany. The army amused themselves with burning *Æsopus*, and the houses of individuals on the river's bank."^[79] While the British were manœuvring in and about the North-River, doing mischief to individuals, without serving their own cause in the least, gen. Gates had express upon express, urging him to send down troops to oppose the enemy. On the 14th he wrote to governor Clinton, "I have ordered the commanding officer at Fort Scuyler to send Van Schaak's regiment without delay to Albany—desired brigadier-general Gansevoort to repair to that city, and take the command of all the troops that may assemble there—and have sent down the two *Æsopus* regiments, the Tryon county militia, and most of the militia of Albany county." But he would not weaken his hold of Burgoyne by any detachment of continentals from his own army or of New-England militia. The New-York state militia, that repaired to the governor to assist the inhabitants, did as much mischief as the enemy, the burning of houses and other buildings excepted. It is too much the case of all militia, that when they march to the assistance of their countrymen against a common enemy they do the former a great deal of damage. The laxness of their discipline, and their unreasonable claims, of indulgences from those whom they are to protect, made them expensive and disageeable guests.

When the convention troops began their march to Boston, the Americans lined the hill and road on each side. They expected to have met with many insults while passing through the centre of them, supposed to be between 11 and 12 thousand; but to their great surprise, not even the least gesture was made us of by way of insult. When they had marched on, Gates pushed the army forward, with the utmost expedition, to stop the cruel career of the British up the North-River. Upon the approach of the Americans Vaughan and Wallace retired to New-York.

It will be some days, before the vessel for France with the news of Burgoyne's fate, can sail; which admits of my adding to the present letter, destined to go by that conveyance, some other matters proper for insertion.

The Rev. Mr. Duche, formerly the chaplain of congress, made an attempt, by writing, on the patriotism of gen. Washington; nothing more need be said of the transaction than what the general has done, in a letter of October the 16th,—"To Mr. Duche's ridiculous illiberal performance I made a very short reply by desiring the bearer, Mrs. Ferguson of Graham-park, if she

should hereafter, by any accident, meet with Mr. Duche, to tell him, I should have returned it unopened, if I had had any ideas of the contents.”

Some persons in congress have been and are manœuvring to get gen. Conway promoted, which occasioned the commander in chief’s writing the next day to a confidential friend—“I ask why the youngest brigadier in the service (for I believe Conway is so) should be put over the heads of the eldest? I am assured they will not serve under him, I have been a slave to the service; I have undergone more than most men are aware of, to harmonize so many discordant parts; but it will be impossible for me to be of any further service, if such inseperable difficulties are thrown in my way.”

Before the last year’s Massachusetts general court expired, they passed an act to support and enforce the regulating act, made in January, under the title of an act to prevent monopoly and oppression. By this new act, committees were vested with most extraordinary powers, “which,” as the act says, “can only be justified in cases wherein the very existance of the community is depending.” The vanity and folly however of regulating acts has been so seen and felt, that they have been repealed by the new general court, within these five days.

Boston and Marblehead have been under great difficulties for want of flour and Indian corn; and must have suffered much had it not been for the state importations. On the 15th of August there was not flour in the capital sufficient for the inhabitants longer than the next day, except what belonged to the state. The sea-ports and neighboring towns of this state have been used to receive their supplies of flour mostly by water, and from the places now in the hands of the British; they are therefore liable to be distressed by the operations of the war, though happily exempted from being the seat of it, since the evacuation of Boston.

A secret expedition has been carrying on against Newport, without gen. Washington’s having ever been consulted upon it, or knowing from whence or whom it originated. Gen. Spencer was stationed at Providence, and of course conducted it.—The states of Rhode-Island, Connecticut and Massachusetts furnished almost the whole of the troops. The militia who were called out upon the occasion, readily engaged in the service, for they were filled with the expectations of success, and the hopes of plunder. Every thing went on well for some time, without the British troops knowing

that preparations were making for passing over to Rhode-Island, and attacking them. At length a half-witted fellow, without seeing consequences, of his own head carried over in his boat to the island a Jew, whom he landed, and who was to go to Newport, and the neighbourhood, and procure all the intelligence he could and then to return with his information to gen. Spencer. The Jew went to the enemy and acquainted them with the expedition that was going forward. Upon this the British immediately took proper measures for their security. Gen. Spencer however, perfected his preparations. The time and manner for carrying the militia over was settled. Brigadier Palmer, who headed those from the Massachusetts, had his orders given him, but instead of executing them with life and spirit, he neglected and disobeyed them. His conduct occasioned a failure of the expedition. Spencer's courage would have led him to have attempted carrying the island, after this disappointment, and with a smaller body of troops than were originally to have been employed; but others would not consent to it. The employing of the Connecticut militia in this service, contributed greatly to, if not wholly caused that weakness in the American force stationed on the North-River, which occasioned the loss of the forts Montgomery and Clinton.

A long letter for doct. Fothergill goes by the present opportunity. The writer mentions that the Americans are determined not to part with their independence, and proposes that there should be an immediate acknowledgment of it, on the part of Great-Britain, and an entering upon a commercial alliance with the United States, before any foreign power interferes.—Numbers have been for some time dissatisfied with the French, because of their not affording more speedy, open, and important assistance. They flatter themselves that the capture of Burgoyne's army will produce a change in the politics of France. An adoption of the above proposal will be the best expedient for over-reaching her in any design of injuring our native country.

LETTER IX.

Roxbury, January 29, 1778.

MY DEAR SIR,

The military operations in Pennsylvania, are to be the subjects of our immediate attention. About a fortnight after the German-town battle on the 19th of October the royal army under the command of Sir William Howe, removed to Philadelphia.

Measures being concerted between the general and admiral for clearing the Delaware of its obstructions, the former ordered batteries to be erected on the western or Pennsylvania shore, to assist in dislodging the Americans from Mud-Island. He also detached a strong body of Hessians across the river, who were to march down and reduce the fort at Red-bank, while the ships and batteries on the other side were to attack Mud-Island.—Count Donop commanded the detachment, consisting of three battalions of grenadiers and the regiment of Mirback, beside, light-infantry and chasseurs. The Americans were about four hundred under col. Christopher Greene of Rhode-Island. [Oct. 22.] When near enough, the count sent a flag and demanded a surrender of the fort in the most peremptory terms. The colonel concealed the greatest part of his men, so that the officer with the flag thought the garrison very small. Greene answered—“I shall defend the fort to the last extremity.” Donop attacked the intrenchments, after a sharp action carried an extensive outwork, not half completed; but in the body of the redoubt, which afforded a better covering, the defence was equally vigorous and far more successful. Here indeed the Americans meant to risk the fate of the fort, as they would have the greater advantage of the assailants. The Count was mortally wounded and taken prisoner. Several of the best officers were killed or disabled; and the Hessians, after a desperate engagement, were repulsed. The second in command being also dangerously wounded, the detachment was brought off by lieut. col.

Linsing. It suffered not only in the assault but in the approach to and retreat from the fort by the fire of the American galleys and floating batteries. The whole loss was probably not less than 4 or 500 men. Congress have since resolved to present col. Greene with an elegant sword. The men of war and frigates destined for the attack of Mud-Island, alias Fort Mifflin, were equally unfortunate. The ships could not bring their fire to bear with any great effect upon the works. The extraordinary defences with which the free course of the river had been intercepted, had affected its bed, and altered its known and natural channel. By this mean the Augusta man of war and Merlin sloop were grounded so fast, that there was no possibility of getting them off. The Augusta while engaged took fire, and the Merlin was hastily evacuated. The greater part of the officers and crew of the Augusta were saved: but the second lieutenant, chaplain, gunner, and no inconsiderable number of the common men perished.—Notwithstanding this ill success, the British commanders prosecuted with vigor the business of opening the navigation.—Nor were the Americans idle; for they left nothing undone to strengthen their defences.

[Oct. 29.] General Washington gave the following state of his army, —“Our whole force by the last returns is 8313 continental troops; and 2717 militia rank and file, fit for duty; beside the garrison of Mud-Island amounting to 300 continentals, of Red-bank 350, and a detachment of militia (on the 26th to reinforce it) 300; and the troops on the other side of Schuylkill 500, making together 1450.” Thus it appears that his whole strength was 12480 men. Sir W. Howe’s probably amounted to more than 10000 rank and file present fit for duty. It had received no increase worth mentioning from among the inhabitants of Pennsylvania or the neighboring states, though large promises had been made (by some sanguine gentlemen who had joined him) that thousands of loyal subjects would repair to the royal standard as soon as it should make its appearance in Pennsylvania. The American commander in chief certainly supposed that gen. Howe’s force exceeded his own in number, for, on the 13th of November, he wrote, —“The army which I have under my immediate command has not, at any one time since gen. Howe’s landing at the head of Elk, been equal in point of numbers to his. In ascertaining this, I do not confine myself to continental troops but comprehend militia. I was left to fight two battles, in order if possible to save Philadelphia, with less numbers than composed the army of my antagonist, whilst the world has given us at least double. This

though mortifying in some points of view I have been obliged to encourage; because next to being strong it is best to be thought so by the enemy, and to this cause principally, I think is to be attributed the slow movement of Howe." The cause was different in the northern department. There the states of New-York and New-England resolving to crush Burgoyne, continued pouring in their troops till the surrender of his army. Had the same spirit prevailed the people of Pennsylvania and the neighboring states. Washington might, before the date of his letter, had Howe nearly in the same situation with Burgoyne. The Pennsylvania militia were said to be 30,000, but about 3000 was the highest number brought into the field. In the estimation of some New-England gentlemen, "the peasants of that country are extremely ignorant and brutish. They are a mixture of high and low Dutch, and so exceeding illiterate, that few of them can read and scarce any can write. They have no other ideas of liberty or slavery, than as it effects their property; and it is immaterial to them, whether Great-Britain or America prevail, so that they may be exempted from paying their proportion of the expences of the war." Ignorance is the high road to slavery.

While the British were entirely occupied in possessing the city of Philadelphia, gen. Washington sent off lieut. col. Samuel Smith of the Maryland line, with 200 men, who were to proceed and possess themselves of Mud-Island. By quick marches he arrived with his party at the lower ferry, and with difficulty threw himself into the fort, which he found in a wretched condition without ammunition, provision or stores, garrisoned by about thirty militia. He had with him two excellent officers of artillery, to whom he assigned fifty of his best men, who were trained to the guns. The colonel, with commodore Hazlewood and captain Robinson, a brave naval officer, visited Province-island, principally under water, the banks having been cut by order. The colonel pointed out two dry places, where the enemy might erect works, the nearest about 4 or 500 yards from that side of the American works where the defences were only palisades, one gun and two weak block-houses. With great labor he undertook to erect a two gun battery without the fort, so as to make a cross fire on the spot. He had not finished, before the enemy took possession of the ground he most dreaded; but by a well directed fire from the block-house batteries and gallies, ere they had a gun ready, the Americans wounded the commander, and the party delivered themselves up prisoners. While these were removing

another party came down from the heights, and deceiving major Billard with offers of submission, till too near to be prevented, repossessed themselves of the battery, from whence they annoyed the garrison very much. Many of the men and officers having sickened through the unhealthiness of the place, the colonel was reinforced by the first Virginia regiment of about 120 men. The enemy having got up part of the chevaux-de-Frieze, brough in their shipping, and made an attack as above related. One American squadron of four gallies behaved well, the others kept aloof, the commodore being at the distance of more than a mile. The British, after that unsuccessful attack, applied themselves to the strengthening of their batteries on shore, and nightly sent up their boats with provision to the city, by the passage between Mud and Province islands, while the commodore absolutely refused attempting to prevent them, upon the plea that a single bomb from the enemy would destroy any of his gallies. There came three or four days of uncommon high tides, which drowned some of the British, and hindered their working any of their guns except one howitzer. This opportunity of annoying them considerably, was not duly improved by the gallies. On the decrease of the tides, the British renewed their fire with double vigor, and soon destroyed the American two gun battery, blew up the north-west block-house and laboratory, and compelled the garrison to seek cover in the fort. Colonel Smith, after having defended it from the latter end of September, till the 11th of Nov. a few days excepted, was wounded by a spent cannon-shot, and greatly bruised by the bricks it threw on him, which occasioned his removal to the main. His fatigues and dangers had been extreme; and he supported them with uncommon patience and fortitude. Upon his removal the command devolved on lieut. col. Russel, of the Connecticut line, but he being exhausted with fatigue, and totally destitute of health, requested to be recalled. Upon the 12th, the commander in chief signified his orders to the commanding general on the Jersey side, who directed all the military operations below Philadelphia, "to defend Mud-Island as long as possible, without sacrificing the garrison." The commanding general, for insuperable reasons, could not detach an officer in rotation. Major Thayer, of the Rhode-Island line, presented himself a volunteer, and was appointed.

The British having every thing in readiness, the Isis and Somerset men of war pass up the east channel to attack the works on Mud-Island in front; several frigates draw up against an American fort, newly erected on the

Jersey side, situated so as to flank the men of war in their station; and two armed vessels, the Vigilant, an East-Indiaman cut down to a battery of 20 twenty-four pounders on one side, and a hulk with 3 twenty-four pounders, successfully make their way through a narrow channel on the western side, a matter of the greatest importance, as these two vessels, in concert with the batteries on Province-Island, enfilade the principal works on Mud-Island. On the morning of the 15th of Nov. the whole British fire is displayed from their land batteries and their snipping in the river. The small garrison of 300 men, sustain and repel the shock with astonishing intrepidity for several hours, assisted by the American gallies and the batteries on the Jersey shore. By the middle of the day their defences are levelled with the common mud, and the officers and men expect each other's fate in the midst of carnage. During the day more than 1030 discharges of cannon, from thirty-two to twelve-pounders, are made in twenty minutes, from the batteries and shipping of both sides. Early in the evening, major Thayer sends all his garrison ashore, excepting forty, with whom he remains, braving all danger. At twelve at night, many of the military stores having been previously sent away, the barracks are fired, when the major and his few brave companions quit, and cross to Red-Bank.^[80]

In this affair there were near two hundred and fifty of the garrison killed and wounded. Three councils of war had been called upon the subject of relieving fort Mifflin; and in the last, it was concluded to attempt it, though it was believed that a general engagement would be the consequence; this, however, the Americans did not regard, the ground being such as they wished, if called to fight the enemy. The night before the attempt could be made, the fort was of necessity evacuated. The congress, before this event, had voted lieut. col. Smith an elegant sword for the defence he had made on the 22d of October; but as they had voted at the same time, the like to commodore Hazlewood, commander of the naval force in the Delaware, he did not think himself much honored by it, and declined the present. Men of courage and judgment pronounce the commodore a poltron, and say that if all the officers in the marine department had behaved with equal bravery to what the land officers did, the fort would not have been taken. Several of them are reckoned to have acted a dastardly part. It was observed of Hazlewood, that he was fond of long shot, and was shy of coming to close quarters. The reduction of the fort secured to the British the safe

opportunity of sending up their small craft, at the back of the island, to the Schuylkill with provisions and stores, by day as well as by night.

On the 18th, at night, lord Cornwallis marched with a considerable force, and the next day crossed the Delaware, in his way to Red-Bank, which the Americans abandoned, leaving behind them their artillery, and a considerable quantity of cannon-ball. Some continental generals were appointed to give their opinion upon the spot to col. Greene. They favored an evacuation, and wished that he would join them. He answered, "I shall follow your direction, either to evacuate or defend the fort. I know what we have done when the works were not half completed. Now they are finished, and I am not afraid." But the direction was to evacuate, which was complied with, though with manifest reluctance. The marquis de la Fayette accompanied gen. Greene into Jersey, though his wound was not yet healed; and on the 25th of Nov. with only a handful of riflemen and militia, attacked a party of Hessians and British grenadiers, which he obliged to retreat. After this congress resolved that he should take the command of a division in the army.

The American shipping having now lost all protection, several of the gallies and other armed vessels, took the advantage of a favorable night, kept close in with the Jersey shore, passed the batteries of Philadelphia, and escaped to places of security higher up. The remaining seventeen finding an escape impracticable, were abandoned by the crews and fired. The British however confessed, that the long and unexpected opposition which they received from Red-bank and Mud-island, broke in upon their plans for the remainder of the campaign.

A detachment from the northern army, of some of the New-England brigades, was ordered down to join the American commander in chief. When arrived at Fish-kill, a number of the New-Hampshire troops, to the amount of near 200, mutinied at the barracks on the evening of November the 4th, paraded with their arms, and began to march off in order. The exertions of the officers suppressed them, but capt. Beal was shot and mortally wounded; he killed however the soldier that shot him. The cry was, "We have no money, nor breeches, and will not cross the river till we have received these articles." It was feared that some officers were at the bottom of the mutiny. As it was soon quelled without infecting the other troops, the whole marched on, till they joined gen. Washington; who being thus

reinforced, advanced to White Marsh, within 14 miles of Philadelphia, and encamped in a strong position. Sir W. Howe, hoping that he meant to hazard a battle for the recovery of Philadelphia, or that some part of his camp was vulnerable, and would admit of a successful impression, marched the army from the city on the night of the 4th of December. The day before, gen. Greene gave this distressing picture of the American army to the commander in chief—"One half of our troops are without breeches, shoes and stockings; and some thousands without blankets. Last winter's campaign will confirm this truth, that unless men are well clothed, they must fall a sacrifice to the severity of the weather, when exposed to the hardships of a winter's campaign." Howe's further proceedings take in Washington's words, written on the 10th—"I had reason to expect Howe was preparing to give us a general action. On Friday morning his troops appeared on Chesnut-hill; at night they changed their ground. On Sunday from every appearance there was reason to apprehend an action. About sunset, after various marches and counter-marches, they halted, and still supposed they would attack us in the night, or early the next morning, but in this I was mistaken. On Monday afternoon they filed off, and marched toward Philadelphia. Their loss in skirmishing was not inconsiderable. I sincerely wish they had made an attack, the issue would in all probability have been happy for us. Policy forbade our quitting our posts to attack them."

[Dec. 11.] The American army marched from White Marsh to Sweed's-ford. The want of clothing was so extreme that gen. Washington was under the absolute necessity of granting warrants to different officers to impress what the holders would not willingly part with, agreeable to the powers with which congress had invested him. He removed with the troops, on the 19th, to Valley-ford where they hutted about sixteen miles from Philadelphia. When the mode of hutting was first proposed, some treated the idea as ridiculous, few thought it practicable, and all were surprised at the facility with which it was executed. It was certainly a considerable exertion for the remnant of an army, exhausted and worn down, by the severity of a long and rather unsuccessful campaign, to sit down in a wood, and in the latter end of December to begin to build them huts. Through the want of shoes and stockings, and the hard frozen ground, you might have tracked the army from White Marsh to Valley-ford by the blood of their feet.^[81] The taking of this position was highly requisite. Had the army

retired to the towns in the interior parts of the state, a large tract of fertile country would have been exposed to ravage and ruin; and they must have distressed in a peculiar manner the virtuous citizens from Philadelphia, who had fled thither for refuge.

Sir W. Howe has plainly the advantage of the American general, but nothing to boast of; for all the fruits derived from his various manœuvrings and engagements, from the beginning to the close of the campaign, amount to little beside good winter quarters for his army in Philadelphia, while the troops possess no more of the adjacent country than what their arms immediately command. Certain persons indeed are permitted to carry provisions into the city; that so upon their return they may supply the Americans with intelligence. These must submit to spare a little for such purposes, though in the utmost want themselves. At one time the army remained quiet for four days together without bread; on the fifth two regiments refused to do duty upon the account; but the prudence and persuation of the commander in chief restored order. To a similar event there was probably an allusion, in the following extract from his letter of the 23d—"This brought fourth the only commissary in the purchasing line in this camp, and with him this melancholy alarming truth, that he had not a single hoof of any kind to slaughter, and not more than twenty-five barrels of flour, and could not tell when to expect any. The present commissaries are by no means equal to the execution of the office, or the disaffection of the people is past all belief. The change in that department took place contrary to my judgment, and the consequences thereof were predicted. No man ever had his measures more impeded than I have, by every department of the army. Since the month of July we have had no assistance from the quarter-master-general, and to want of assistance from this department the commissary-general charges geat part of his deficiency. We have by a field return this day, no less than 2898 men in camp unfit for duty, because they are barefoot and otherwise naked. Our whole strength in continental troops (including the eastern brigades, which have joined us since the surrender of Burgoyne) exclusive of the Maryland troops sent to Wilmington, is no more than 8200 in camp fit for duty. Since the fourth our number fit through hardships, particularly on account of blankets (numbers have been, and still are obliged to sit up all night by fires, instead of taking comfortable rest in a common way) have decreased near two thousand men.—Upon the ground of safety and policy, I am obliged to conceal the true state of the army from

public view, and thereby expose myself to detraction and calumny.—There is as much to be done in preparing for a campaign, as in the active part of it.” Gen. Mifflin in a letter of October the eighth, had represented to congress, that his health was so much impaired, and the probability of a recovery so distant, that he thought it his duty to return to them their commissions to him of major general and quarter-master-general. While the army was suffering as above related for want of shoes, &c. hogsheads of shoes, stockings and clothing, were at different places, upon the road and in the woods, lying and perishing, for want of teams, and proper management, and money to pay the teamsters.

Nothing great has happened in the neighbourhood of New-York, since the return of the troops under general Vaughan from their expedition up the North-River; but it may not displease you to read the following particulars. On the 18th of November, gen. Tryon sent about one hundred men under capt. Emmerick to burn some houses, on Philip’s manor, within about four miles of gen. Parsons’ guards. They effected it with circumstances of barbarity, stripping the clothing off the women and children and turning them almost naked into the streets in a most severely cold night. The men were made prisoners, and led with halters about their necks, with no other clothes than their shirts and breeches in triumph to the British lines. A few days after Parsons wrote to Tryon upon the occasion, expostulating with him upon the business, and told him, That he could destroy the houses and buildings of col. Philips and those belonging to the Delancey family, each as near their lines as the building destroyed were to his guards; that notwithstanding all their vigilance, the destruction could not be prevented and that it was not fear or want of opportunity, but a sense of the injustice and savageness of such a line of conduct, that had hitherto saved the buildings. Tryon answered from Kingsbridge on the 23d, and said among other things, “Sir, could I possibly conceive myself accountable to any revolted subjects of the king of Great-Britain, I might answer your letter of yesterday respecting the conduct of capt. Emmerick’s party upon the taking of Peter and Cornelius Vantassel. As much as I abhor every principle of inhumanity or ungenerous conduct, I should, were I in more authority, burn every committee-man’s house within my reach, as I deem them the wicked instruments of the continued calamities of this country; and in order the sooner to purge the colony of them, I am willing to give twenty silver dollars for every acting committee-man who shall be delivered up to the

king's troops." The stinging repartee made to this letter was contained in an expedition undertaken immediately after to Greenwich, about three miles from New-York, where a small party arrived in the evening, advanced to Mr. Oliver Delancy's house secured the sentry, dismissed a few ladies in peace, though rather hastily, made a few men prisoners, burnt the house, occasioned the firing of the alarm guns in New-York, then crossed the river and got safe off.

New-York reminds me of the American prisoners confined in that city, and Philadelphia. In the course of letters that passed between generals Howe and Washington, the former alluded to the cases of royal prisoners of war being injuriously and unjustifiably loaded with irons. The latter, in one of November the 14th, says—"If there is a single instance of a prisoner of war being in irons, I am ignorant of it, nor can I find on the most minute inquiry, that there is the least foundation for the charge. I wish you to particularize the cases you allude to, that relief may be had, if the complaints are well-founded. Now we are upon the subject of grievances, I am constrained to observe that I have a variety of accounts, not only from prisoners who have made their escape, but from persons who have left Philadelphia, that our private soldiers in your hands, are treated in a manner shocking to humanity, and that many of them must have perished through hunger had it not been for the charitable contributions of the inhabitants. It is added in aggravation, that this treatment is to oblige them to enlist in the corps you are raising. I must also remonstrate against the cruel treatment and confinement of our officers. This I am informed is not only the case of those in Philadelphia but of many in New-York. Many of the cruelties exercised toward prisoners are said to proceed from inhumanity of Mr. Cunningham, provost marshal, without your knowledge or approbation. I transmit the depositions of two persons of reputation who are come from Philadelphia, respecting the treatment they received. I will not comment upon the subject. It is too painful." Howe particularized by saying—"Major Stockdon, and other officers of the New-Jersey volunteers, were put in irons at Princeton. The major and captain of that regiment were marched out of that place, under guard and hand-cuffed together." Washington rejoined—"When major Stockdon was first captured, I believe that he and one or two officers taken with him, suffered the treatment which you mention. This was without my privity or consent; as soon as I was apprised of it, relief

was ordered.—But surely this event, which happened so long ago, will not authorise the charges in your letter of the 6th.”

On the 10th of December, all the American officers were removed from the ships back to Long-Island, from whence they had been taken and carried on board. The inhabitants received them in again, upon Mr. Lewis Pintard’s engaging to pay for them at the rate of two hard dollars per week. There was 250 of them. He acted for Mr. Boudinot. Had he not engaged, their former board not having been paid for, they would have been returned to the ships. All the privates there have been clothed by him. He observed, when informing his principal of these particulars—“The privates should have a little fresh beef, especially the convalescents, who on leaving the hospitals are put to salt meat, and relapse immediately; the consequence of which is, they are dying very fast. I advise sending in weekly a quantity of fresh provision for their consumption.”

The board of war had a conference with Mr. Boudinot, the commissary general of prisoners, at York-town on the 21st of December, and after having carefully examined the evidences produced by him, agreed upon reporting, beside other matters—“That there are about 900 privates, and 300 officers in the city of New-York, and about 500 privates and 50 officers in Philadelphia:—That the privates in New-York have been crowded all summer in sugar-houses, and the officers boarded on Long-Island, except about 30, who have been confined in the provost guard and in the most loathsome jails:—That since the beginning of October all these prisoners, both officers and privates, have been confined in prison-ships, or the provost:—That the privates in Philadelphia have been kept in two public jails, and the officers in the state-house:—That, from the best evidence which the nature of the subject will admit of, the general allowance of prisoners at most does not exceed four ounces of meat, and as much bread (often so damaged as not to be eatable) per day, and often much less, though the professed allowance is from eight to ten ounces:—That it has been a common practice with the enemy, on a prisoner’s being first captured, to keep him three, four, or even five days without a morsel of provisions of any kind, and then to tempt him to enlist to save his life:—That there are numerous instances of prisoners of war perishing in all the agonies of hunger from their severe treatment:—That being generally stripped of what clothes they have when taken, they have suffered greatly for the want thereof during their confinement.” This ill-treatment of the American

prisoners, though it shortens the lives of numbers, tends only to lengthen the war, by irritating the people at large, among whom it is quickly reported.

Let us now quit the military for the civil department, though with respect to dates we must be retrograde.

On Wednesday, October the 29th, Mr. President Hancock closed the business of the morning by taking leave of congress in the following speech —“Gentlemen, Friday last completed two years and five months since you did me the honor of electing me to fill this chair. As I could never flatter myself your choice proceeded from any idea of my abilities, but rather from a partial opinion of my attachment to the liberties of America, I felt myself under the strongest obligations to discharge the duties of the office, and I accepted the appointment with the firmest resolution to go through the business annexed to it in the best manner I was able. Every argument conspired to make me exert myself, and I endeavored by industry and attention to make up for every other deficiency. As to my conduct both in and out of congress in the execution of your business, it is improper for me to say any thing. You are the best judges. But I think I shall be forgiven, if I say I have spared no pains, expence, or labour, to gratify your wishes, and to accomplish the views of congress.—My health being much impaired, I find some relaxation absolutely necessary, after such constant application; I must therefore request your indulgence for leave of absence for two months. But I cannot take my departure, gentlemen, without expressing my thanks for the civility and politeness I have experienced from you. It is impossible to mention this without a heart felt pleasure.—If in the course of so long a period as I have had the honor to fill this chair, any expressions may have dropped from me that may have given the least offence to any member, as it was not intentional, so I hope his candor will pass it over. May every happiness, gentlemen, attend you, both as members of this house and as individuals; and I pray Heaven, that unanimity and perseverance may go hand in hand in this house; and that every thing which may tend to distract or divide your councils, may be for ever banished.”

The congress in the afternoon, ordered, “That the secretary wait on the president, and request him to furnish the house with a copy of the speech with which he took leave of congress.” When the secretary laid it before them, the Friday following, one of the New-York delegates introduced an

answer he had prepared, which breathed too much the soothing air of servility, and possessed too small a portion of republican independency, and was therefore rejected. But it was moved, "That the thanks of congress be presented to John Hancock, esq. for the unremitted attention and steady impartiality which he has manifested in discharge of the various duties of his office as president, since his election to the chair, on the 24th day of May, 1775." Previous to the determination of this motion, it was moved "to resolve, as the opinion of congress, that it is improper to thank any president for the discharge of the duties of that office." The South-Carolina delegates being divided, and the New-Jersey delegate not voting, the states were equally divided, four and four. The question being put on the first motion, and these delegates voting in the affirmative, it was accordingly carried, six against four.

When Mr. Hancock was first elected, in consequence of Mr. Peyton Randolph's being under a necessity of returning to Virginia, it was expected that as soon as the latter repaired again to congress, the former would resign. Of this he was reminded by one of his Massachusetts brethren, when Mr. Randolph got back; but the charms of presidency made him deaf to the private advice of his colleague, and no one could with propriety move for his removal that the other might be restored. In the early stage of his presidency, he acted upon republican principles; but afterward he inclined to the aristocracy of the New-York delegates, connected himself with them, and became their favorite. He at length fell in so fully with their plans, that a Rhode-Island delegate lectured him upon it, and told him that he had forgotten the errand on which he was sent to congress, and advised him to return to his constituents. This versatility in political sentiments, though it chagrined, did not surprise his Massachusetts brethren; for they remembered, that at a certain period he was upon the point of joining the tory club at Boston (as it was called) whereby he alarmed the liberty party most amazingly, and obliged them to exert all their influence to prevent so dangerous and mortifying an event.

In the chair he so acquitted himself, that a member of congress wrote in May, when it was thought he would return to the Massachusetts—"This letter will go by president Hancock, for whose absence from congress I am much concerned, though his great fatigue and long attendance entitle him to some relaxation. How we shall do without him I know not, for we have never yet put in a chairman on a committee of the whole house, that could

in any measure fill his place. He has not only dignity and impartiality, which are the great requisites of a president of such a body, but has an alertness, attention and readiness to conceive of any motion and its tendency, and of every alteration proposed in the course of debate, which greatly tends to facilitate and expedite business.” The chair is known to be his fort. As chairman of a committee, or any other body, he presides with much advantage to himself; but it has been and is observed, that the number at the head of whom he is, whether many or few, makes a wide difference in him; when great, he appears to be in his own element, and is all animation; if small it is otherwise. This is common to public characters, especially where there is a fondness for popularity.

[Nov. 1.] “Congress proceeded to the election of a president; and the ballots being taken the honorable Henry Laurens was elected.” He is a South-Carolina delegate, a gentleman of a large estate, and of an approved character. He was in England when the troubles were coming forward, and upon learning the intentions of ministry, returned with a fixed determination to risk all in the cause of his country and liberty. Gen. Washington has pointed out to him gen. Greene, as the most suitable person in his judgment, to succeed in the chief command of the American army, in case he himself should be taken off by death or in any other way.

[Nov. 3.] Colonel Wilkinson, who brought the dispatches from gen. Gates, attended and delivered a message from him to congress, in the following words, “I have it in charge from major gen. Gates, to represent to the honorable congress, that lieut. gen. Burgoyne, at the time he capitulated, was strongly entrenched on a formidable post with twelve days provision: that the reduction of fort Montgomery and the enemy’s consequent progress up the Hudson’s-River endangered our arsenal at Albany, a reflection which left gen. Gates no time to contest the capitulation with lieut. gen. Burgoyne, but induced the necessity of immediately closing with his proposals, hazarding a disadvantageous attack, or retiring from his position for the security of our magazine; this delicate situation abridged our conquests, and procured lieut. gen. Burgoyne the terms he enjoys. Had our attack been carried against lieut. gen. Burgoyne the dismemberment of our army must necessarily have been such as would have incapacitated it from further action. With an army in health, vigor and spirits, major gen. Gates now waits the commands of the honorable congress.” Beside thanking Gates, Lincoln, Arnold, and the rest of the officers and troops under his command

the congress resolved the next day, that a medal of gold should be struck in commemoration of the convention, and in the name of the United States presented by the president to major gen. Gates.

[Nov. 7.] Congress resolved, That major gen. Mifflin's resignation of the office of quarter-master-general be accepted, but that his rank and commission of major general be continued to him, without the pay annexed to that office, until further order of congress." In October they resolved, "That a board of war be established, to consist of three persons not members of congress." They now took up that business and proceeded to the election of the board, when major gen. Mifflin, col. Timothy Pickering and col. Robert H. Harrison were elected. A fortnight after, in consequence of a conference between some of the members and Mifflin, they resolved, "That two additional commissioners be appointed to execute the department of the war office;" and Harrison declining to serve, they on the 27th proceeded to the election of three commissioners, when major gen. Gates, Joseph Trumbull, and Richard Peters, esq's. were elected; it was then resolved, "That major gen. Gates be appointed president of the board of war." Gates was to retain his rank as major general in the army, and to officiate at the board or in the field as occasion might require.

The great business of the CONFEDERATION calls for our next attention. It was on the 11th of June, 1776, that it was resolved to appoint a committee to prepare and digest the form of one. By the 12th of July they brought in a draught, which was read and ordered to be printed for the consideration of congress alone; and no member was to furnish any person with his copy, or take any steps by which the said confederation might be re-printed. After having been before congress nine and thirty times, on different days; a copy of the confederation being made out, and sundry amendments made in the diction, without altering the sense, the same was agreed to on the 15th of last November, and is as follows:

ARTICLES OF CONFEDERATION AND PERPETUAL UNION between the states of New-Hampshire, Massachusetts-bay, Rhode-Island and Providence Plantations, Connecticut, New-York, New-Jersey, Pennsylvania, Delaware, Maryland, Virginia, North-Carolina, South-Carolina and Georgia.

Article 1. The stile of this confederacy shall be "*The United States of America.*"

Article 2. Each state retains its sovereignty, freedom and independence, and every power, jurisdiction and right, which is not by this confederation *expressly* delegated to the United State in congress assembled.

Article 3. The said states hereby severally enter into a firm league of friendship with each other, for their common defence, the security of their liberties and their mutual and general welfare: binding

themselves to assist each other against all force offered to, or attacks made upon them or any of them on account of religion, sovereignty, trade, or any other pretence whatever.

Article 4. The better to secure and perpetuate mutual friendship and intercourse among the people of the different states in this union, the free inhabitants of each of these states (paupers, vagabonds and fugitives from justice excepted) shall be entitled to all privileges and immunities of free citizens in the several states, and the people of each state shall have free ingress and regress to and from any other state, and shall enjoy therein all the privileges of trade and commerce, subject to the same duties impositions and restrictions as the inhabitants thereof respectively, provided that such restrictions shall not extend so far as to prevent the removal of property imported into any state to any other state, of which the owner is an inhabitant; provided also that no imposition, duties or restriction, shall be laid by any state on the property of the United States or either of them.

If any person guilty of or charged with treason, felony or other high misdemeanor in any state, shall flee from justice and be found in any of the United States, he shall upon demand of the governor or executive power of the state from which he fled, be delivered up and removed to the state having jurisdiction of his offence.

Full faith and credit shall be given in each of these states to the records, acts and judicial proceedings of the courts and magistrates of every other state.

Article 5. For the more convenient management of the general interests of the United States, delegates shall be annually appointed in such manner as the legislature of each state shall direct, to meet in congress on the first Monday in November, in every year, with a power reserved to each state to recal its delegates or any of them, at any time within the year, and to send others in their stead, for the remainder of the year.

No state shall be represented in congress by less than two nor by more than seven members; and no person shall be capable of being a delegate for more than three years in any term of six years; nor shall any, person being a delegate, be capable of holding any office under the United States, for which he or any other for his benefit, receives any salary, fees or emolument of any kind.

Each state shall maintain its own delegates in any meeting of the states, and while they act as members of the committee of the states.

In determining questions in the United States in congress assembled, each state shall have one vote.

Freedom of speech and debate in congress shall not be impeached or questioned in any court or place out of congress; and the members of congress shall be protected in their persons from arrests and imprisonments, during the time of their going to and from and attendance on congress, except for treason, felony or breach of the peace.

Article 6. No state, without the consent of the United States in congress assembled, shall send any embassy to, or receive any embassy from, or enter into any conference, agreement, alliance or treaty with any king, prince or state; nor shall any person holding any office of profit or trust under the United States, or any of them, accept of any present, emolument, office or title of any kind whatever from any king, prince or foreign state; nor shall the United States in congress assembled, or any of them, grant any title of nobility.

No two or more states shall enter into any treaty, confederation or alliance whatever between them, without the consent of the United States in congress assembled, specifying accurately the purposes for which the same is to be entered into, and how long it shall continue.

No state shall lay any imposts or duties, which may interfere with any stipulations in treaties entered into by the United States in congress assembled with any king, prince or state, in pursuance of any treaties already proposed by congress to the courts of France and Spain.

No vessels of war shall be kept up in time of peace by any state, except such number only, as shall be deemed necessary by the United States in congress assembled for the defence of such state or its

trade: nor shall any body of forces be kept up by any state, in time of peace, except such number only as, in the judgment of the United States in congress assembled, shall be deemed, requisite to garrison the forts necessary for the defence of such state; but every state shall always keep up a well regulated, and disciplined militia, sufficiently armed and accoutred, and shall provide and have constantly ready for use, in public stores, a due number of field-pieces and tents, and a proper quantity of arms, ammunition and camp equipage.

No state shall engage in any war without the consent of the United States in congress assembled, unless such state be actually invaded by enemies, or shall have certain advice of a resolution being formed by some nation of Indians to invade such state, and the danger is so imminent as not to admit of a delay till the United States in congress assembled can be consulted; nor shall any state grant commissions to any ships or vessel of war, nor letters of marque or reprisal, except it be after a declaration of war by the United States in congress assembled, and then only against the kingdom or state and the subjects thereof against which war has been so declared, and under such regulations as shall be established by the United States in congress assembled, unless such state be invested by pirates, in which case vessels of war may be fitted out for that occasion and kept so long as the danger shall continue, or until the United States in congress assembled shall determine otherwise.

Article 7. When land forces are raised by any state for the common defence, all officers of or under the rank of colonel shall be appointed by the legislature of each state respectively by whom such forces shall be raised, or in such manner as such state shall direct; and all vacancies shall be filled up by the state which first made the appointment.

Article 8. All charges of war and all other expences that shall be incurred for the common defence or general welfare, and allowed by the United States in congress assembled, shall be defrayed out of a common treasury, which shall be supplied by the several states in proportion to the value of all land within each state, granted to or surveyed for any person, as such land and the buildings and improvements thereon shall be estimated, according to such mode as the United States in congress assembled shall from time to time direct and appoint.

The taxes for paying that proportion shall be laid and levied by the authority and direction of the legislatures of the several states within the time agreed upon by the United States in congress assembled.

Article 9. The United States in congress assembled shall have the sole and exclusive right and power of determining on peace and war, except in the cases mentioned in the sixth article—of sending and receiving ambassadors—entering into treaties and alliances, provided that no treaty of commerce shall be made, whereby the legislative power of the respective states shall be restrained from imposing such imposts and duties on foreigners as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatsoever—of establishing rules for deciding in all cases, what captures on land or water shall be legal, and in what manner prizes taken by land or naval forces in the service of the United States, shall be divided or appropriated—of granting letters of marque and reprisal in time of peace—appointing courts for the trial of piracies and felonies committed on the high seas, and establishing courts for receiving and determining finally appeals in all cases of captures, provided that no member of congress shall be appointed judge of any of the said courts.

The United States in congress assembled shall also be the last resort on appeal in all disputes and differences now subsisting or that hereafter may arise between two or more states concerning boundary jurisdiction, or any other cause whatever; which authority shall always be exercised in the manner following whenever the legislative or executive authority or lawful agent of any state in controversy with another shall present a petition to congress, stating the matter in question and praying for a hearing, notice thereof shall be given by order of congress to the legislative or executive authority of the other state in controversy, and a day assigned for the appearance of the parties by their lawful agents, who shall then be directed to appoint by joint consent commissioners or judges to

constitute a court for hearing and determining the matter in question; but if they cannot agree, congress shall name three persons out of each of the United States, and from the list of such persons each party shall alternately strike out one, the petitioners beginning, until the number shall be reduced to thirteen; and from that number not less than seven nor more than nine names, as congress shall direct, shall in the presence of congress be drawn out by lot; and the persons whose names shall be so drawn, or any five of them, shall be commissioners or judges to hear and finally determine the controversy, so always as a major part of the judges, who shall hear the cause, shall agree in the determination; and if either party shall neglect to attend at the day appointed, without showing reasons which congress shall judge sufficient, or being present shall refuse to strike, the congress shall proceed to nominate three persons out of each state, and the secretary of congress shall strike in behalf of such party absent or refusing; and the judgment and sentence of the court to be appointed, in the manner before prescribed, shall be final and conclusive; and if any of the parties shall refuse to submit to the authority of such court, or to appear or defend their claim or cause, the court shall nevertheless proceed to pronounce sentence or judgment, which shall in like manner be final and decisive, the judgment or sentence and other proceedings being in either case transmitted so congress, and lodged among the acts of congress for the security of the parties concerned: provided, that every commissioner, before he sits in judgment, shall take an oath to be administered by one of the judges of the supreme or superior court of the state, where the cause shall be tried, “well and truly to hear and determine the matter in question, according to the best of his judgment, without favor, affection, or hope of reward;” provided also, that no state shall be deprived of territory for the benefit of the United States.

All controversies concerning the private right of soil claimed under different grants of two or more states, whose jurisdictions as they may respect such lands and the states which passed such grants and adjusted, the said grants or either of them being at the same time claimed to have originated antecedent to such settlement of jurisdiction, shall on the petition of either party to the congress of the United States, be finally determined, as near as may be in the same manner as is before prescribed for deciding disputes respecting territorial jurisdiction between different states.

The United States in congress assembled shall have the sole and exclusive right and power of regulating the alloy and value of coin struck by their own authority, or by that of the respective states—fixing the standard of weights and measures throughout the United States—regulating the trade and managing all affairs with the Indians not members of any of the states; provided that the legislative right of any state within its own limits be not infringed or violated—establishing and regulating post offices from one state to another throughout all the United States, and exacting such postage on the papers passing through the same as may be requisite to defray the expences of the said office—appointing all officers of the land forces in the service of the United States, excepting regimental officers—appointing all the officers of the naval forces, and commissioning all officers whatever in the service of the United States—making rules for the government and regulation of the said land and naval forces, and directing their operations.

The United States in congress assembled, shall have authority to appoint a committee to sit in the recess of congress, to be denominated “*a committee of the states*,” and to consist of one delegate from each state, and to appoint such other committees and civil officers as may be necessary for managing the general affairs of the United States under their direction—to appoint one of their number to preside, provided that no person be allowed to serve in the office of president more than one year in any term of three years—to ascertain the necessary sums of money to be raised for the service of the United States, and to appropriate and apply the same for defraying the public expences—to borrow money or emit bills on the credit of the United States, transmitting every half year to the respective states an account of the sums of money so borrowed or emitted—to build and equip a navy—to agree upon the number of land forces—and to make requisitions from each state for its quota, in proportion to the number of white inhabitants in such state; which requisitions shall be binding, and thereupon the legislature of each state shall appoint the regimental officers, raise the men, and clothe,

arm and equip them in a soldierlike manner, at the expence of the United States; and the officers and men so clothed, armed and equipped, shall march to the place appointed, and within the time agreed on by the United States in congress assembled; but if the United States in congress assembled, shall on consideration of circumstances, judge proper that any state should not raise men, or should raise a smaller number than its quota, and that any other state should raise a greater number of men than the quota thereof, such extra number shall be raised, officered, clothed, armed and equipped in the same manner as the quota of such state, unless the legislature of such state shall judge that such extra number cannot be safely spared out of the same, in which case they shall raise, officer, clothe, arm and equip as many of such extra number as they judge can be safely spared. And the officers and men so clothed, armed and equipped, shall march to the place appointed and within the time agreed on by the United States in congress assembled.

The United States in congress assembled, shall never engage in a war nor grant letters of marque and reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expences necessary for the defence and welfare of the United States, or any of them, nor emit bills, nor borrow money on the credit of the United States, nor appropriate money nor agree upon the number of vessels of war to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander in chief of the army or navy, unless nine states assent to the same; nor shall a question on any other point, except for adjourning from day to day, be determined unless by the votes of a majority of the United States, in congress assembled.

The congress of the United States shall have power to adjourn to any time within the year, and to any place within the United States, so that no period of adjournment be for a longer duration than the space of six months, and shall publish the journal of their proceedings monthly, except such parts thereof relating to treaties, alliances or military operations, as in their judgment require secrecy; and the yeas and nays of the delegates of each state on any question, shall be entered on the journal, when it is desired by any delegate; and the delegates of a state, or any of them, at his or their request, shall be furnished with a transcript of the said journal, except such parts as are above excepted, to lay before the legislatures of the several states.

Article 10. The committee of the states, or any nine of them, shall be authorised to execute, in the recess of congress, such of the powers of congress as the United States in congress assembled, by the consent of nine states, shall from time to time think expedient to vest them with; provided that no power be delegated to the said committee, for the exercise of which, by the articles of confederation, the voice of nine states in the congress of the United States assembled, is requisite.

Article 11. Canada acceding to this confederation, and joining in the measures of the United States, shall be admitted into, and entitled to all the advantages of this union; but no other colony shall be admitted into the same, unless such admission be agreed to by nine states.

Article 12. All bills of credit emitted, monies borrowed, and debts contracted by or under the authority of congress, before the assembling of the United States, in pursuance of the present confederation, shall be deemed and considered as a charge against the United States, for payment and satisfaction whereof the said United States and the public faith, are hereby solemnly pledged.

Article 13. Every state shall abide by the determinations of the United States in congress assembled, on all questions which by this confederation are submitted to them. And the articles of this confederation shall be inviolably observed by every state, and the union shall be perpetual; nor shall any alteration at any time hereafter be made in any of them; unless such alteration be agreed to in a congress of the United States, and be afterwards confirmed by the legislatures of every state.

These articles have been forwarded to the legislatures of all the United States, to be considered; and if approved of by them, the said legislatures are advised to authorise their delegates to ratify the same in the congress,

that so they may become conclusive. They have been accompanied with a circular letter, recommending them to the immediate dispassionate attention of the legislatures; and urging them to hasten the conclusion of the plan for confederation. They will be supported in this state by the influence of Mr. Samuel Adams and Mr. John Adams, who obtained leave of absence to visit their families a week before the finished copy was agreed to by congress. These two gentlemen stand in the relation of second cousins to each other.

The same day the copy was agreed to, a committee was appointed to collect and digest some late discoveries for making molasses and spirits from the juice of Indian corn-stalks, and to report a plan for communicating such discoveries to the inhabitants of the several states. The scarcity and dearness of molasses and spirits, and the difficulty of procuring a supply from the West-Indies, have induced some ingenuous enterprising minds to grind the Indian corn-stalks, while in a certain state of verdure, and to obtain from the juice, by boiling it, a kind of molasses. Several have followed the example; and the expectation of the public in many places is raised; but the quantity of molasses produced is too small, and the quantity too poor, to answer expences and to supply the demands of the market, so that this mode of obtaining it will soon cease.

[Nov. 20.] It was reported by a committee, "That an inroad has been made on the western frontiers of Virginia and Pennsylvania by some savage tribes of Indians, wherein a number of helpless people have been cruelly massacred, and the peaceable inhabitants driven from their homes, and reduced to great distress: and that, from a number of papers stiled proclamations, under the hand and seal of Henry Hamilton, lieut. gov. of Fort Detroit, as well as from other information and circumstances, it appears that these savages have been instigated by British agents and emissaries, and particularly by the said H. Hamilton to this barbarous and murderous war."

Congress having received information, that the enemies of the United States endeavored to propagate in Europe groundless reports, that a treaty had been held between congress and the commissioners of the king of Great-Britain, by which it was probable that a reconciliation would take place, resolved, "That the commissioners, of the said United States, at the several courts in Europe, be authorised to represent to the courts at which they respectively reside, that no treaty whatever has been held between the

king of Great-Britain, or any of his commissioners and the said United States, since their declaration of independence. They also resolved, “That all proposals of a treaty between the king of Great-Britain, or any of his commissioners, and the United States of America, inconsistent with the independence of the said states, or with such treaties or alliances as may be formed under their authority, will be rejected by congress.” The communication however of this last resolve, was to be suspended until upon a general consultation of the commissioners a majority should judge it necessary. Congress (plunged into difficulties through an excess of paper currency, which they are continually increasing by new emissions) have been and are attempting remedies that can never answer. Some are of that nature as necessarily to produce baneful consequences, and yet are persisted in after trial; of this kind is the regulating and ascertaining the price of labor, manufactures, internal produce, and commodities imported from foreign parts. It has been recommended to all the states to appoint commissioners to convene, some in one place on the fifteenth of January, some in another on the fifteenth of February, for the regulating of prices; and after that, to enact suitable laws to enforce the observance of such regulations. They have also resolved, “That it be earnestly recommended to the several states, as soon as may be, to confiscate and make sale of all the real or personal estates therein of such of their inhabitants and other persons who have forfeited the same, and the right to the protection of their respective states; and to invest the money arising from the sales in continental loan office certificates, to be appropriated in such manner as the respective states shall hereafter direct.” This resolve will encourage the states to make sale of the estates alluded to, but will not bind them to the disposal of the purchase-money in the manner proposed. Artful individuals will avail themselves of it for their own emolument, but it will be of little or no benefit to the public at large.

[Dec. 8.] Mr. Silas Deane has been mentioned in a former letter. Congress came to a final resolution respecting his recall, in these words —“Whereas it is of the greatest importance, that congress should at this critical conjuncture, be well informed of the state of affairs in Europe; and whereas congress have resolved, that the honorable Silas Deane, esq. be recalled from the court of France, and have appointed another commissioner to supply his place there: Ordered, That the committee for foreign affairs write to the honorable Silas Deane, esq. and direct him to

embrace the first opportunity of returning to America, and upon his arrival to repair with all possible dispatch to congress.” The explanation of this business will be best conveyed in the language of one of the committee —“Mr. Deane not being recalled upon a motion made at the time of our disavowal of Du Coudray’s treaty, a new motion was made by one of the committee on September the 8th.—On that day, “The congress took into consideration the report of the committee on foreign applications, wherein they set fourth, That besides a number of officers who are come from Europe and the West-Indies of their own accord to solicit for rank and employment in the American army there are others who have proceeded upon the encouragement of conventions made and signed at Paris by Silas Deane, esq. as agent for the United States of North-America:—That Mr. Deane had no authority to make such conventions;—and That congress therefore are not bound to ratify or fulfil them.” This referred to a new list of major generals, brigadiers, colonels, &c. who were ready to relinquish all the parts of their agreement except rank; but said the committee, “The American army having been arranged before the arrival of these gentlemen in America there expectations cannot be complied with, without deranging it, and thereby injuring at so critical a juncture the American cause.” The report was agreed to, and the motion made—“Whereas Silas Deane, esq. *when agent under the committee of secret correspondence*, entered into conventions with several foreign officers, which congress have declared themselves not bound to ratify, and which in the present situation of affairs they could not comply with, without deranging the army, and thereby injuring at this critical juncture the American cause: And whereas the credit, reputation and usefulness of Silas Deane, esq. now one of the American commissioners in France, will be greatly impaired by the consequences of his indiscretion in having entered into such conventions, his recall becomes necessary for the interest of these United States—therefore resolved, That Silas Deane, esq. now one of the American commissioners in France be forthwith recalled, and that from the day of his receiving this resolve, all and every power with which he hath been vested by congress, do cease and determine, and that he take the earliest opportunity to embark for North-America, and repair to congress.” The person who read this in his place was, upon being seconded, entreated to withdraw it, in which he acquiesced, upon a general avowal of the necessity of recalling Mr. Deane in some milder way.—On Nov. 21, partiality and tenderness struck away all

preamble, and a naked resolve passed, “That Silas Deane, esq. be recalled from the court of France, and that the committee for foreign affairs be directed to take proper measures for speedily communicating the pleasure of congress herein to Deane and the other commissioners of the United States at the court of France;—That Monday next be assigned for the choosing a commissioner to the court of France, in place of Silas Deane, esq.” On the 28th, Mr. John Adams was chosen. No time being limited for Mr. Deane’s return, the larded resolve of December the 8th was made. Had a proper dignity been maintained on the 8th of September, the recal would not have been a seeming mystery, or rather a compliment. Though the chairman of the committee for foreign applications was the mover of the proper resolves, yet he finally gave into the over-tenderness of the house, when he acted for foreign affairs in his letter of December the 8th, and in his private letter to Dr. Franklin.

Congress resolved, “That the commissioners at the courts of France and Spain be directed to exert their utmost endeavours to obtain a loan of two millions sterling, on the faith of the Thirteen United States.” They also received accounts from gen. Gates relative to the retreat of the British from Tyconderoga and Mount Independence. By letters of gen. Conway’s writing to particular members, they were led into a resolution, “That an appointment be made of inspectors general agreeable to the practice of the best disciplined European armies:” and from thence to elect him an inspector general, and a major general. This promotion, which took place the thirteenth of December, occasioned much uneasiness among the officers; and they requested gen. Washington not to publish it till they had met, and made a proper representation of their grievances. Conway thought himself entitled to a superiority over them, from his having served more than thirty years; and before some of the brigadiers were born, and from the number of men he had commanded for many years in an old army. But these reasons did not reconcile them to his being put over their heads. They might be the more disgusted from his declaring that no two regiments manœuvred alike, and that there were hardly two officers in each regiment able to command the manœuvres. On the 3d of January, the brigadiers sent a remonstrance against his appointment. The objections against him were that he was, intriguing at congress in concert with generals Gates and Mifflin, in order to remove gen. Washington—that he gave himself at congress the merit of the German-town affair—that his powers of inspector general tended to

diminish the power of gen. Washington—and that, in a paragraph of a letter, he reflected severely upon the commander in chief and his counsellors. Such is the prevailing dislike to him, that he will be of little service in future. The uneasiness which his promotion produced, did not escape his notice, but has led him to renew a former proposal of returning to France.

[Dec. 20.] In order to obtain a supply of clothing for the army, the congress resolved to recommend to the respective legislatures the enacting of laws, appointing persons to seize, for the use of the continental army, all necessary articles of clothing, which may be in the possession of any persons inhabitants of or residents within their respective states, for the purpose of sale; and that the value of such goods be ascertained at the rate which the said articles shall be stated at by the convention of the committees agreeable to the late recommendation. A memorial from lieut. col. Barton, who took gen. Prescott prisoner, was read in congress, on which they resolved, [Dec. 24.] “That on account of his enterprising spirit, and merit in taking the general, he be promoted to the rank and pay of a colonel in the service of the United States, and that he be recommended to gen. Washington, to be employed in such services as he may deem most adapted to his genius.” In testimony of their approbation of the patience, fidelity and zeal of the officers and soldiers under the immediate command of gen. Washington, they directed, six days after, that one month’s extraordinary pay should be given to each; which was no more than justice, considering what they had suffered. The next, being the last day of the year, they had under consideration, the information sent them from Boston by Mr. Samuel Otis, their deputy-clothier-general in the Massachusetts acquainting them, that he had contracted with sundry persons for a large quantity of clothing at the rate of ten to eighteen hundred per cent. and that some of the holders of the said goods refuse to deliver them untill they should receive the cash. Upon this they resolved, “That Mr. Otis be directed to pay only for such of the said clothing as he may have actually received, at the rate for which he may have contracted for such clothing; and That it be most earnestly recommended to the legislative authority of the state of Massachusetts-Bay immediately to take and seize the residue of the clothing, which the holders thereof have refused to deliver to the said Samuel Otis, agreeable to the resolutions of the congress of the 20th inst. which clothing shall be paid for in manner, and at the rate mentioned therein, and not otherwise.” A letter was written to the president of the council upon the occasion, in which they

failed not to attempt exciting resentment against the proprietors of the goods for the crime of extortion, and the greater one of refusing to deliver the goods upon the credit of the Thirteen United States. "This irrefragable evidence of the depravity of morals in so many of the citizens of these states, is a most alarming circumstance," say they, "and if the several governments do not speedily exert their authority effectually to suppress such unheard of extortion, it will unquestionably issue, and at no very distant period, in the destruction of the liberties of this continent. Shall we then tamely see ourselves compelled by the wicked conduct of some of the citizens of these states, to the cruel necessity of submitting to the mercy of an enraged tyrant?" The president was desired to lay the resolutions before the general assembly, who were requested to keep them and their proceedings thereon secret, till carried into execution. The general court instead of interfering, has prudently left the business to take its own course. Those traders, who want to go to market again and make fresh purchases, cannot sell upon the credit of even the Thirteen United States. The encreasing depreciation of the currency is another reason against it. The paper emission is now more than three hundred per cent. for hard money, and by the end of April will probably be four for one; so that when this, the risks of the sea, the scarcity of the commodity, the few returns that can be made, the advance of expences through the rise of provision, labor, &c. and other circumstances are taken into consideration, the rate of from ten to eighteen hundred per cent. has far more the appearance than the reality of extortion.

The convention and convention troops demand our next attention.

While upon their march to the neighborhood of Boston, the British behaved with such insolence as confirmed the country in their determination never to submit; for the people said, "If they are thus insolent now they are prisoners, what would they be were they our masters? The Germans stole and robbed the houses, as they came along of clothing and every thing on which they could lay their hands, to a large amount. When at Worcester, indeed they themselves were robbed, though in another way. One Dawes, the issuing commissary, upon the first company's coming to draw their rations, balanced the scales by putting into that which contained the weight, a large stone; when that company was gone (unobserved by the Germans, but not by all present) the stone was taken away before the next came, and all the other companies except the first had short allowance. The

troops having finished their march were quartered in the barracks near Cambridge. It was with difficulty gen. Glover could procure quarters for the generals Burgoyne, Reidesel, and Philips, in the town itself. The inhabitants were totally averse to accommodating them. They could not forget the burning of Charlestown. A remonstrance was soon presented to Burgoyne by the officers, complaining, that instead of being conveniently lodged, according to their different ranks, agreeable to the convention, they were put into barracks made of single boards, five, six and seven in a room, without any distinction of rank. Unfortunately for them, there was upon the committee appointed by the general court to the business of quartering them, one John Taylor, who, though of the council, was of a base spirit, and had raised himself by it to the possession of considerable property and influence. He disgraced religion by making a great profession. The last however, gave him much weight with well-meaning men who had only a superficial acquaintance with him. This person could put up with any lodging; and thought that what would do for him, might do for British prisoners, though officers. Thus it happened that they were no better accommodated. They had reason to complain; but the treatment which gen. Burgoyne personally met with, was pleasing. He went to Boston and dined at gen. Heath's, who commands in this department. He observed with great satisfaction, the good behavior of the town's people. There was no rabble collected to insult him, either going or returning. He remarked, when re-crossing the ferry to where Charlestown stood (when his eyes surveyed with admiration its awful majestic conflagration) that he should have met with very different treatment even in London.

Suspensions began to be entertained lest the general had some sinister design of conveying the troops to New-York or elsewhere when they could be embarked, instead of sailing with them to Great-Britain; and the public wished to have some pretence for detaining them. It was hinted to congress, that should Sir W. Howe continue obstinately to refuse settling an equitable cartel for the exchange of prisoners, they would be justified in ordering the fulfilling of the convention of Saratoga to be delayed, until the United States received justice in that particular. Congress soon ordered a committee to consider a return of ordnance and stores taken from the enemy, which was enclosed in a letter of the 10th of November, accompanying that hint. Upon the report of the committee, on the 22d, the president was directed immediately to send an express to gen. Gates, desiring answers of several

questions. On December the third, the general wrote from Albany to the president—"I had the honor to receive your excellency's letter of the twenty-third ult. by Mr. Pierce, and immediately proceeded to dispatch to the congress the required answers. Respecting the standards, gen. Burgoyne declared upon his honor, that the colours of the regiments were left in Canada. As to the military chest, its contents might be so easily disposed of, that to have sought for it would have been ineffectual. The British army, all last war, left the paymaster-general and the military chest in some secure town, and warrants were granted upon the paymaster-general there. From the best accounts the enemy's army had been lately cleared off; so that it is not probable there was any military chest. The medicines were left with the general hospital, which gen. Burgoyne left behind him at Freeman's farm. Many of the cartouch-boxes were left, and some were carried away. The mentioning of the accoutrements was forgotten in the convention. Those that have been carried off have been sold upon the road to Boston for drams. The quantity of field ammunition and musket cartridges taken, are by no means inconsiderable. The rest was used and destroyed before the treaty commenced. The muskets will ever be less in number than the prisoners, as the drummers and staff officers do not carry firelocks. Many arms were lost in the two hundred batteaux that were taken from the enemy in their retreat from Freeman's farm, and many others were plundered by the militia on the east side of the river. The bayonets were also pilfered by our own people. The very guards themselves supplied their wants from the piles. Many of the scabbards for the bayonets were disposed of in the like manner. I believe there was no destruction of military stores after the convention, by or with the privity of general Burgoyne or his officers. It is so extraordinary for a British army to surrender their arms, that we ought not to wonder at the violent and disappointed for committing some irregularities; but I do not conceive that any thing of sufficient consequence was done, to justify our charge of their having violated the convention. On the day general Burgoyne surrendered, I received repeated expresses to inform me, that the enemy's fleet had advanced up to within a few hours sailing of Albany. The removal of the army was therefore immediately necessary, to cover that city and secure our magazines. My principal attention was of course directed towards that object. Generals Glover and Whipple gave me their assistance and entire approbation in the settlement of the convention. When things of such importance must be done in a hurry,

some articles of seeming importance never fail to be omitted. The arms were piled up agreeable to the letter of the convention, and their condition as good as can be expected upon such occasions. Their being wholly unfit for service, is partly owing to the land and water carriages, but chiefly to the want of proper packages to secure them. Our own men have changed them; but here I think we should not imprudently expose the infant state of our military discipline.

General Burgoyne was desirous of altering the place for the embarkation of the convention troops from the port of Boston to that of Rhode-Island or the Sound, contiguous to New-York, which as well as Rhode-Island was possessed by the British. He wrote to gen. Washington upon the subject on the 25th of November. The American commander forwarded the letter to congress. They, on the day it was received, the 17th of December, resolved, "That gen. Washington be directed to inform gen. Burgoyne, that congress will not receive, nor consider any proposition for indulgence or altering the terms of the convention of Saratoga, unless immediately directed to their own body." The next day they received gen. Gates's letter of December the 3d, enclosing a letter to him from gen. Burgoyne, of November the 14th, wherein he declared, that the public faith, plighted in the convention of Saratoga, was broken on the part of the United States, inasmuch as the officers included in the convention, had not, since their arrival in Massachusetts-Bay, been accommodated with quarters agreeable to their respective ranks. Congress had now obtained what they wanted, a plea for detaining the convention troops. Some of the members, not attending sufficiently to dates and circumstances, imagined that Burgoyne expected to have sailed before his letter of the 14th could have reached congress time enough for them to have detained him; but it was scarce possible that such an expectation could have existed, when he did not write to general Washington on the subject of changing the place of embarkation before the 25th, and could not, till permission was received, possibly embark at Rhode-Island, to which port the transports were sent, and of whose arrival he was informed by letter of December the fifth. The coming from New-York through the Sound, to Rhode-Island, was so much more convenient and less hazardous than going round by Long-Island and Cape-Cod to Boston, especially at such a season, that the application for changing the place of embarkation was natural.

[Jan. 2, 1778.] Congress resolved, “That the charge made by gen. Burgoyne, of a breach of public faith on the part of these states, is not warranted by the just construction of any article of the convention of Saratoga; that it is a strong indication of his intention, and affords just grounds of fear that he will avail himself of such pretended breach of the convention, in order to disengage himself and the army under him, of the obligations they are under to these United States; and that the security which these states have had in his personal honor, is hereby destroyed.” The next day they resolved therefore—“That the embarkation of gen. Burgoyne and the troops under his command, be suspended till a distinct and explicit ratification of the convention of Saratoga shall be properly notified by the court of Great-Britain.” It was then ordered, “That the resolutions, and the report on which the same are grounded, be recommitted.”

[Jan 8.] They took into consideration afresh, the report of the committee, which says, that the cartouch-boxes, &c. agreeable to the spirit of the convention and the technical interpretation of the word *arms*, ought to have been delivered up. It considers Burgoyne’s refusal to give the descriptive lists, which congress had directed to be taken, in an alarming point of view, more especially as nine days previous to the refusal, he had in his letter to Gates declared, that the public faith was broken. It insists upon this charge as a breach of faith, being a deliberate act of judgment, and so of a most serious nature, pregnant with alarming consequences. It attempts to invalidate the charge, and asserts, that by an examination of the articles it will appear, that the stipulation for quartering the officers was not to be construed in that rigorous sense in which Burgoyne affects to consider it, but on the contrary was “agreed to as far as circumstances would admit.” This assertion reduces the stipulation to a mere non-entity, if it is left with the stipulating party wholly to judge of these circumstances. The committee who made the report mentioned, but forbore “to lay any stress on the seemingly inadequate number of vessels (being only twenty-six transports) for an army consisting of 5642 men, in a winter’s voyage to Europe; or on the improbability of the enemy’s being able, on so short a notice, to victual such a fleet and army for a voyage of such length.” It is happy that they did not lay any stress upon it, as it would have manifested how much they were biassed by an eagerness to vindicate the measures they were desirous of adopting. The committee was a committee of the whole. Twenty-six transports, of 250 ton each, would carry 6500 men, allowing a ton for every

man. In winter time they could safely stow more close than in warmer weather. The voyage, though long, in going from America to Europe, is performed generally much sooner in that than any other season, by reason of the prevalency of the north-west winds; so that less provision is required for the passage.

The former resolves were passed the second time, but not till congress had resolved, “that as many of the cartouch-boxes and several other articles of military accoutrements, annexed to the persons of the non-commissioned officers and soldiers, included in the convention of Saratoga, have not been delivered up, the convention, on the part of the British army, has not been strictly complied with—that the refusal of general Burgoyne to give descriptive lists of the non-commissioned officers and privates belonging to his army, subsequent to his declaration that the public faith was broke, is considered by congress in an alarming point of view; since a compliance could only have been prejudicial to that army in case of an infraction of the convention on their part.” It was in vain that the general explained the intention and construction of the passage objected to in his letter: or that his officers, in order to remove the difficulty occasioned by it, respectively signed their parole. He even pledged himself, that his officers would still join with him in signing any instrument that might be thought necessary for confirming or renewing the validity of the convention: but it was to no purpose. Congress have been unalterable; and the detention of the troops is now settled.

On the ninth of January, the Massachusetts general court permitted Dr. Benjamin Church, whose treachery had subjected him to a long confinement, to take passage on board a brigantine bound to Martinico.^[82]

The American privateers and continental shipping have taken a large number of vessels belonging to Great-Britain, and sent them into their own harbors. They have undoubtedly taken many others upon the European coasts, that we have not heard of. We have had accounts of several; and that the coasts of Great-Britain and Ireland have been insulted by them, in a manner never before ventured upon by your hardiest enemies; so as to produce the appointment of a convoy (for the first time ever known) to protect the linen ships from Dublin and Newry.—We learn also that the General Mifflin privateer, after making repeated captures arrived at Brest, and saluted the French admiral, who returned the salute in form, as to the

vessel of a sovereign independent state. We are likewise told, that though lord Stormont, on his threatening to return immediately to Great-Britain, unless satisfaction was given, obtained an order requiring not only all American privateers, but their prizes, to leave the French ports, the same is evaded. However, his majesty's vessels on the American station have not been idle; for they have captured very considerable on these coasts and the West-Indies. Their captures indeed, are generally not of much value singly, yet they have furnished at times some rich prizes, and in the aggregate have been of great amount. But the balance of property will most certainly be in favor of the Americans. The continental frigate Hancock, of thirty-two guns, mostly twelve-pounders, commanded by capt. Manly, was taken on the 8th of July, by Sir George Collier, of his majesty's ship the Rainbow.

Sir George, in company with the Victor brig, discovered three sail in the morning of the sixth. He chased with all the sail he could crowd: but observing the next day that they steered different courses, about two in the afternoon he tacked after the Hancock, which appeared the largest ship. She seemed at first rather to outsail the Rainbow; but Manly endeavouring to make his ship sail better, started all his water forward, and so put her out of trim. At half past eight the next morning Sir George hailed her, and let the men know, that if they expected quarters, they must strike immediately. Manly endeavoured to avail himself of a fesh breeze just springing up. Sir George therefore fired into him, on which he struck after a chase of thirty-nine hours. He had lately taken the Fox of twenty-eight guns on the banks of Newfoundland; which was one of the three sail, and being discovered by the Flora on the seventh was chased till retaken. The third was the Boston continental frigate of thirty guns, commanded by capt. M'Neal, which escaped. The public are not satisfied with the conduct of the latter, imagining that if he had not left his consort, and that if both had behaved well, neither would have been captured. The Hancock's compliment was 290 men, near as many as the Rainbow's.

On the first of December, the ship Flamand, capt. Landais, arrived at Portsmouth, from Marseilles. Mr. John Baptiste Lazarus Thevaneau de Francey is come supercargo and agent for the house of Roderique Hortales and company, alias Mr. Pierre Augustin Coron de Beaumarchais. The ship has brought 48 pieces of brass cannon, four-pounders, with carriages complete—19 nine inch mortars—250 bombs, nine inches—2,000 four-pound balls—a quantity of intrenching tools—3000 fusees—1110 of

another quality for dragoons—about 18,000 pounds of gun-powder—and 61,051 of brimstone.

The continent is looking out for important news from France.

LETTER X.

Roxbury, June 1, 1778.

The hint you have received of a design to remove general Washington from the command of the American army, will have made you desirous of knowing more of that business; let it then be first related. The general being applied to by one of his correspondents, answered from Valley-forge, January the 23d, 1778—"Whether a serious design of placing general Lee, (before captivation) at the head of the army, had ever entered into the head of a member of congress or not, I never was at the trouble of enquiring. I am told a scheme of that kind is now on foot by some, in behalf of another gentleman—whether true or false—serious or merely to try the pulse—I neither know nor care. Neither interested nor ambitious views led me into the service. I did not solicit the command; but accepted it after much entreaty, with all that diffidence which a conscious want of ability and experience equal to the discharge of so important a trust must naturally excite in a mind not quite devoid of thought; and after I did engage, pursued the great line of my duty, and the object in view (as far as my judgment could direct) as pointedly as the needle to the pole. So soon as the public gets dissatisfied with my services, or a person is found better qualified to answer her expectation, I shall quit the helm with as much pleasure, and retire to a private station with as much content, as ever the wearied pilgrim felt upon his safe arrival at the holy land, or haven of hope; and shall wish most devoutly, that those who come after, may meet with more prosperous gales than I have done, and less difficulty. If the expectation of the public has not been answered by my endeavors, I have more reasons than one to regret it; but at present I shall only add, that a day may come, when the public cause is no longer to be benefited by a concealment of our circumstances, and till this period arrives, I shall not be among the first to disclose such truths as may injure it, however my character in the mean while may suffer." On the 15th of February he had occasion for writing—"I

can assure you that no person ever heard me drop an expression that had a tendency to resignation. The same principles that led me to embark in the opposition to the arbitrary claims of Great-Britain, operate with additional force at this day; nor is it my desire to withdraw my services while they are considered of importance in the present contest. But to report a design of this kind, is among the arts which those who are endeavoring to effect a change, are practising to bring it to pass. There is not an officer in the service of the United States, that would return to the sweets of domestic life with more heart-felt joy than I should, but I mean not to shrink in the cause. The design is not only seen through, but reprobated.” On the 20th, Patrick Henry, esq. governor of Virginia, forwarded an anonymous letter which had been sent him, to the general, and added—“There may be some scheme or party forming to your prejudice. The enclosed leads to a suspicion. Believe me, Sir, I have too high a sense of the obligations America has to you, to abet or countenance so unworthy a proceeding. I really think your personal welfare, and the happiness of America are intimately connected.” The anonymous letter was dated—York-Town, January 12, 1778. It begins with highly complimenting Mr. Henry, and then proceeds to sketch out a dismal picture, and to hint at the remedy—“America can be only undone by herself. Her representation in congress is dwindled to only twenty-one members—her Adams—her Wilson—her Henry—are no more among them. Her counsels weak—and partial remedies applied constantly for universal diseases. Her army—what is it? *a mob*. Discipline unknown, or wholly neglected—the quarter-masters and commissioners departments filled with idleness, ignorance and peculation.—Our hospitals crowded with six thousand sick, and more dying in one month than perished in the field during the whole of the last campaign. The country distracted with the Don Quixote attempts to regulate the price of provisions. An *artificial* famine created by it, and a *real* one dreaded from it. The northern army has shown what Americans are capable of with a *general* at their head. The southern army is no ways inferior. A Gates, a Lee, or a Conway, would in a few weeks render them an irresistible body of men. The last in one of his letters to a friend, says, “A great and good God hath decreed America to be free; or the—and weak counsellors would have ruined her long ago. You may rest assured of *each* of the facts related in this letter.” When Conway had recovered his original letter, which was written in October, he said to gen. Washington, in one of January the 27th—“I find, with great

satisfaction, that the paragraph so much spoken of, does not exist in said letter, nor any thing like it. I must depend upon your justice, candor and generosity, for putting a stop to this forgery.” Had he sent the letter itself, the conviction of the forgery might have been deemed much stronger; whereas many will doubt whether there was a forgery, upon being told that one of his warmest friends quoted the paragraph as authentic so early as October the 21st. Periodical letters were published and circulated in the continental newspapers, under the signature of De Lisle, and the pretence of being translations from the French, artfully calculated to promote the design against Washington, by insinuating into the mind of the reader, ideas tending to lessen him in the eye of the public. The writer of the preceding anonymous letter, is supposed to be the author of them. The design has not succeeded. The general has had too great a share of the people’s confidence and affection, to admit of an open attempt to remove him. Several members of congress were engaged in the business—some of the Massachusetts delegates—particularly Mr. Samuel Adams. The army was so confident of it, and so enraged, that persons were stationed to watch him as he approached the camp, on his return home. But he is commonly possessed of good intelligence, and was careful to keep at a safe distance. Had he fallen into the hands of the officers when in that paroxism of resentment, they would probably have handled him so as to have endangered his life, and tarnished their own honor.

The plan seems to have been this—To engage the Massachusetts assembly and Virginia house of burgesses to give instructions to their delegates in congress, to move for an enquiry into the causes of the ill success attending the campaign of 1776; and then to contrive that such resolves should be given into, as would either remove the general or produce his resignation. Mean while the names of Gates and Mifflin were held up, and played off to ripen the measure. But the anonymous attempt upon the governor of Virginia was reprobated by him, and the Massachusetts assembly was not in a temper to admit of the trial to ensnare them. As to generals Gates and Mifflin, they had cleared themselves from having any design of removing the commander in chief. The former has written to an intimate correspondent—“York-Town, 4th April, 1778. Dear Sir, Last night I received your affectionate letter of the 16th last; that of the 25th of February came to hand a few days before. Your remarks upon the works and defences of your capital city are just; and I am convinced the

town is lost in a very few hours after they are attacked. I have daily and weekly been telling your, and the other eastern delegates, that not only the metropolis, but the whole coasts of New-England were, in my opinion, the grand object of the enemy's resentment for the ensuing campaign; they were a parcel of blundering blockheads not to make that their object the last year. I think they might then have united their whole force, and have made a much more honorable end of their summer's work than it pleased Heaven to give them. I find by your letters, that Boston, as well as this part of the continent, is infected by incendiaries, who endeavor, by every villainous art, to impress a belief that general Mifflin and myself, are in a league with other designing and ambitious spirits, to supersede general Washington. Nothing can be more wicked, nothing more false, than this diabolical calumny. General Mifflin, to whom I made known the industry of his enemies and mine, and the tricks of their emissaries, writes to you by this conveyance. You know his honor, merit and services to the public; you also know that whenever I have been called forth, I have done my best for the establishment of independence and peace: Is it generous, therefore, that we two should be selected for a sacrifice to a junto? For my part, I solemnly declare, I never was engaged in any plan or plot for the removal of general Washington,^[83] nor do I believe any such plot ever existed—so help me—Yours most truly.”

You may credit Gates's not believing such plot; but you must believe differently. The stile of general Mifflin's letter was—“Dear Mr.—*Audi et alterem partem*. I declare to you, with the greatest sincerity and solemnity, that I never formed a plan or a party to injure general Washington's command. I never desired to have any person whomsoever, take the command of the American army from him; nor have I said or done any thing of, or respecting him, which the public service did not require; and which I would not have said, with great freedom to you, as his friend, and as a friend to American independency. I never aspired, in thought, to the command of the army; and always would have deprecated the idea as improper and dangerous to myself and to America, had that idea occurred, which it never did to me—I hope to see you before long—I most ardently wish it—and I pledge myself to you and my country, that I can and will justify my character of a patriot *in all points*, to your satisfaction.” This disagreeable relation will finish with a paragraph from general Washington's letter of March the 28th.—“My caution to avoid every

thing that could injure the service, prevented me from communicating, but to a very few of my friends, the intrigues of a faction which I know was formed against me, since it might serve to publish our internal dissensions; but their own restless zeal to advance their views, has too clearly betrayed them, and made concealment on my part fruitless.”

Let us pass on to another event, which has the appearance of being related to some plot. On Monday, January the 12th, the president laid before congress a packet containing blank papers, which he received the day before from capt. John Folger, who was sent by the commissioners at Paris with dispatches to congress. Mr. Folger was ordered to be confined in close prison; but in the beginning of May, the committee who were appointed to examine into his conduct reported, “That they have made as full an examination into that business as the evidence they were able to obtain would permit, and on the whole have no proof of any guilt in Mr. Folger;” whereupon the captain has been permitted to go home, and has had all his expences paid him. The committee suspect there has been foul play somewhere.—They have taken off the seal from the packet, and sent it back to Paris, to be examined by the original impression, that they may see if the fraud can be detected by that mean. What makes the affair more mysterious, is, that the other dispatches brought by the captain, contained state papers directed for the late president Mr. Hancock, and had no appearances of having been searched. Time must produce an explanation of this dark business; which has been rendered the more suspicious by the arrival of Mr. Francey with a letter from Mr. Deane *only*, dated Paris, September the 10th, 1777, recommending him as Mr. Beaumarchais’ agent, and pressing the execution of the business which he came upon. The committee for foreign affairs, in their first letter to the commissioners after his arrival, said, “We think it strange that the commissioners did not *jointly* write by Mr. Francey, considering the very important designs of his coming over, viz. to settle the mode of payment for the past cargoes, sent by Roderique Hortales and comp. [alias Mr. Beaumarchais] and to make contracts for future. It is certain that much eclaircissement is, at this last moment, wanting.” Mr. Francey from time to time sent to the committee of commere, letters upon the business with which he was intrusted, which were reported to congress for their consideration. After being before them once and again, Mr. Francey, as agent for Roderique Hortales and company, settled his contract with them, on the 8th of April. By that contract it was stipulated among

other articles, that the costs of the several cargoes *already* shipped by the said company, were to be fairly stated at the current prices and usual mercantile charges in France, of the dates at which they were shipped.

Let us for a while employ ourselves about military concerns.

[Jan. 1. 1778.] The condition of the army at Valley-forge, was far from being the most eligible or respectable: and in case the enemy had come out of Philadelphia, and made a general push, would have been exceeding hazardous. Gen Washington was compelled by necessity to employ the troops in making seizures; which excited the greatest uneasiness imaginable among their best and warmest friends, beside spreading disaffection among the people. He ever regrets being forced upon such a measure, and considers it among his worst misfortunes; as it not only occasions a dreadful alarm, but never fails, even in veteran armies, under the most rigid and exact discipline, to raise in the soldiery a disposition of licentiousness, plunder and robbery. The relief obtained was of no long continuance.

He thus described the distresses of the army on the 16th of February —“For some days past there has been little less than a famine in camp. Naked and starving as they are, we cannot enough admire the incomparable patience and fidelity of the soldiery, that they have not, ere this, been excited by their suffering to a general mutiny and dispersion. This is the second time in the present year, that we have been upon the verge of a dissolution for want of provision.” As to clothing, “he was continually tantalized with accounts from all quarters, of the prodigious quantity that was purchased and forwarded for the use of the army, while none reached them, or so badly sorted as to be totally useless. The poor soldier had a pair of stockings given him without shoes, or a waistcoat without a coat or blanket to his back; and thus he derived little benefit from what he received. Perhaps by mid-summer he may receive thick stockings, shoes and blankets, which he will contrive to get rid of in the most expeditious manner. In this way, by an eternal round of the most stupid management, the public treasure is expended to no kind of purpose, while the men have been left to perish by inches with cold and nakedness.”

Upon a full conviction that the salvation of the cause depended on making provision for the half-pay of the officers, the general communicated his thoughts to some of the congress in the following words—“With far the greatest part of mankind, interest is the governing principle. Almost every

man is more or less under its influence. Motives of public virtue may for a time, or in particular instances, actuate men to the observance of a conduct purely disinterested; but they are not of themselves sufficient to produce a persevering conformity, to the refined dictates and obligations of social duty. We find it exemplified in the American officers as well as in all other men. At the commencement of the dispute, in the first effusions of their zeal, and looking upon that service to be only temporary, they entered into it without paying any regard to pecuniary or selfish considerations; but finding its duration to be much longer than they at first suspected, that instead of deriving any advantage from the hardships and dangers to which they were exposed, they on the contrary were losers by their patriotism, and fell far short of a competency to supply their wants, they have gradually abated in their ardor; and with many an entire disinclination to the service under its present circumstances has taken place. When an officer's commission is valuable to him, and he fears to lose it, you may then exact obedience from him. It is not indeed consistent with reason or justice, to expect that one set of men should make a sacrifice of property, domestic ease and happiness, and encounter the rigors of the field, the perils and vicissitudes of war, to obtain those blessings which every citizen will enjoy in common with them, without some adequate compensation. It must also be a comfortless reflection to any man, that after he may have contributed to securing the rights of his country, by the risk of his life, and the ruin of his fortune, there will be no provision made for preventing himself and family from sinking into indigence and wretchedness. Nothing would serve more fully to re-animate their languishing zeal and interest them thoroughly in the service, than a half-pay and pensionary establishment." The general supported his interposition in behalf of the officers, by a second letter of April 21st—"Men may speculate as they will; they may talk of patriotism; they may draw a few examples from ancient story of great achievements performed by its influence, but whoever builds upon it, as a sufficient basis for conducting a long and bloody war, will find himself deceived in the end. We must take the passions of men as nature has given them, and those principles as a guide which are generally the rule of action. I do not mean to exclude altogether the idea of patriotism. I know it exists, and I know it has done much in the present contest: but I will venture to assert, that a great and lasting war can never be supported on this principle alone. It must be aided by a prospect of interest or some reward. For a time it may of itself

push men to action, to bear much, to encounter difficulties, but it will not endure unassisted by interest. Without arrogance, or the smallest deviation from truth, it may be said, that no history now extant, can furnish an instance of an army's suffering such uncommon hardships as ours has done, and bearing them with the same patience and fortitude. To see men without clothes to cover their nakedness, without blankets to lie on, without shoes, (so that their marches might be traced by the blood from their feet) and almost as often without provision as with, marching through frost and snow, and at Christmas taking up their winter quarters within a day's march of the enemy, without a house or hut to cover them, till they could be built, and submitting to it without a murmur, is a mark of patience and obedience, which, in my opinion, can scarce be paralleled." Within a week after, congress resolved that there should be a provision of half-pay for the life of the officers; but then they further resolved, that nothing contained in the foregoing resolution shall be construed to extend to prevent the United States from redeeming, at any time, the half-pay of such officers as they judge proper, by paying them a sum equal to six years half-pay." But before these resolves were passed, between two and three hundred officers had resigned their commissions, reckoning from last August.

Gen. Washington being desirous of effecting an exchange of prisoners, wrote to congress, on the 7th of March—"It may be thought contrary to our interest to go into an exchange, as the enemy would derive more immediate advantage from it than we should: but on principles of genuine extensive policy, independent of the consideration of compassion and justice, we are under an obligation not to elude it. An event of this kind is the general wish of the country. I know it to be the wish of the army, and it must be the ardent wish of the unhappy sufferers themselves. Should the exchange be deferred, till the terms of the last resolve of congress on the subject are fulfilled, it will be difficult to prevent our being generally accused with a breach of good faith. Speculative minds may consider all our professions as mere professions, or at best, that interest and policy are to be the only arbiters of their validity. I cannot doubt that congress, in preservation of the public faith and my personal honor, will remove all impediments, that now oppose themselves to my engagements, and will authorise me, through commissioners, to settle as extensive and competent a cartel as may appear advantageous and necessary, any resolutions heretofore to the contrary notwithstanding." Congress in a few days removed the impediment, by

resolving that he might proceed in the exchange of prisoners without waiting for the settlement and the discharge of their accounts: but no cartel has been agreed upon. Commissioners were appointed on both sides, and held several meetings, without effecting the business. This led congress to resolve, on the 21st of April—"That congress are sincerely desirous of settling a cartel for the exchange of prisoners, on principles of justice, humanity, and mutual advantage, and agreeable to the customary rules and practice of war among civilized nations, and that they lament the obstacles raised by gen. Howe and his commissioners during the negotiations held for this desirable purpose." However, partial exchanges of individuals have taken place, and will be continued. When major Otho Williams was exchanged, he sent a letter to American head-quarters, relating how the prisoners had been treated at New-York, and then said—"Before I conclude, permit me to acknowledge to you and the world, that I am much obliged to Daniel Chamier, esq. auditor general, for lending me money; to doctor Richard Huddleston of the seventh British regiment, for several offices of kindness to myself and other prisoners, and that I was treated in a very courteous genteel manner by major Ackland of the twentieth, for whom I was exchanged."

In January congress concluded upon a winter's irruption into Canada, and appointed the marquis de la Fayette, generals Conway and Stark to conduct it. The two former repaired to Albany, and were afterward joined by baron de Kalb. But in a while, the expedition was dropt, for want of men, money, clothing, sleighs, provisions and forage; and on the 22d of April, Conway requested leave to resign his commission, which was granted. Baron de Steuben, who arrived the beginning of December, with sundry letters of recommendation to congress, and was desired by them to repair to gen. Washington's quarters, soon succeeded him as inspector general. The same day Conway's resignation was accepted, on the 28th of April, Washington wrote to congress—"I can be no longer silent as to the merits of baron de Steuben. I consider him as an acquisition to the service, and recommend him to the attention of congress." May the 5th, it was resolved, "The congress approve gen. Washington's plan for the institution of a well organized inspectorship: That baron de Steuben be appointed to the office of inspector-general, with the rank and pay of major-general; his pay to commence from the time he joined the army and entered into the service of the United States; That there be two ranks of inspectors, under the direction

of the inspector-general, the first to superintend two or more brigades, and the other to be charged with the inspection of one brigade: That general Washington be authorized to appoint such persons to be inspectors and brigade-inspectors for the main army, as he shall think best qualified to execute the several duties of those offices.” The commander in chief and the baron being in perfect unison, the discipline of the army has been mightily improved, and the exercise of the battalions has become uniform. In order to establish these points, the officers were formed into a body, and when completely exercised and instructed, were put upon doing the like by their men. When the baron manœuvred the battalions, the brigades, the divisions, or the army, he explained matters to the respective commanding officers, and taught them to understand the meaning and intention of the various movements. The office of inspector-general was one of the regulations in view for the reform of the army, some time before Conways’ appointment; and the foreign officers who had no commissions, and no commands, and who were of ability, were to have been recommended, and particularly baron D’Arendt, with whom the idea originated.

The sufferings of the army for want of provision, led congress to think at length of changing the commissary-general; they therefore directed the president to write to col. Jeremiah Wadsworth of Connecticut, requesting his attendance on matters of consequence. When informed of his arrival, they appointed a committee of four to confer with him, and inquire whether he would undertake the office of commissary-general of purchases. The colonel was not a stranger to the nature of the business, nor the way in which it was necessary to conduct it, for the service of the army. He considered the matter thoroughly; laid his own plan; and informed the committee upon what terms he would undertake the conducting of that department; from these he would not recede. He would not be tied up by any regulating acts, but would be left at liberty to purchase as he was able. After repeated conferences, “Congress proceeded to the election of a commissary-general of purchases, and the ballots being taken Jeremiah Wadsworth, esq. was unanimously elected,” on the 9th of April. In five days more, upon the resumption of the consideration of the report of the committee appointed to confer with him, they resolved, “That the commissary-general of purchases have full power to appoint and remove every officer in his department:” which was followed by various other resolutions, and closed with one declaring, “That all former regulations of

Congress, relative to the department of the commissary-general of purchases, which interfere with the foregoing resolutions, be repealed.” Thus they abandoned that plan, which induced their first commissary-general, col. Joseph Trumbull, to quit the department: and in its operation, had nearly destroyed their army.

Congress began the year with authorising a committee to take every necessary measures for the immediate relief of the sick soldiers, and to report whether alteration in the medical department might be requisite. They soon after recommended it to the clergy of all denominations in the middle district, to solicit charitable donations of woolens and linens, made and unmade, for the service of the sick; many of whom were lost for want of these articles. They also ordered doctor Shippen, the director-general of the hospitals, and doctor Rush, physician-general of the middle district, to attend them on the 26th of January. A committee of five upon their arrival was chosen to send for, and to hear them and to report specially. The afternoon of the 27th, and the next morning, were spent in that service. A gentleman who could not but know what passed, wrote on the 28th—“Doctor R—— says in a letter, “that *one half of the soldiers that died last year, perished by the present medical establishment*. A shocking black picture indeed doctor Rush painted—but by all accounts it is a just one. It is a very melancholy reflection, that buildings erected for the relief and comfort of the sick and wounded, should become tombs to them. A bad system and a bad administration have produced great mischiefs in the hospital. Peculation and embezzlement of stores, prevail as much in this department as in others. I do not alledge these things without authority or proof. They are facts too well authenticated.” Another, in his correspondence, expressed himself thus upon matters—“The *wealth of worlds* could not support the expence of the medical department alone, above two or three years. There is but *one* right system for a military hospital, and that is the one made use of by the British army. That would save half a million a year to the continent, and, what is more, would produce perfect satisfaction and happiness.” On the 30th Dr. Rush requested leave to resign, which was accepted. Congress on the 6th of February, came to various resolutions upon the report of the first committee, for the better regulating the hospitals of the United States. On the 25th Dr. Rush sent a letter from Princeton, to general Washington, containing a well attested certificate from Bethlehem, setting forth, that the wine allowed the hospital

was so adulterated as to have none of the qualities of Madeira—that none of the patients under the care of the signers, eat of venison, poultry and wild fowl (unless purchased by themselves) and that large quantities were purchased by the director-general—that the director entered the hospital but once during six weeks residence in Bethlehem, though the utmost distress and mortality prevailed—that the sick were too much crowded, and wanted blankets, shirts, straw and other necessaries—that there died in the place two hundred soldiers (eight tenths of them by a putrid fever caught in the hospital) within three months. Dr. Rush mentioned that Dr. Shippen, in the height of the mortality, wrote to congress—“No fatal disease prevails in the hospitals, very few die, and the hospitals are in very good order.” He said—“Our director-general was employed in selling large quantities of Madeira wine, brown and loaf sugar, &c. (which had been transported through the country in hospital waggons, and secured as hospital stores) under the name of private property.” This and another letter from the doctor, were read in congress the third of April, when a committee was appointed and directed to enquire into the charges contained in the letters, against Dr. Shippen, and into his conduct as director-general, and to report specially to congress. The diminution of the army by sickness, has been very great; and you will easily conceive whence it was that no more of the sick recovered. The sickness of the soldiers, before going to the hospitals, was brought upon them not altogether through the want of clothes or provision, but of cleanliness in their huts and in the camp. Notwithstanding repeated positive orders enjoining cleanliness, in some places of the camp the stench was intolerable, through the neglect or the want of necessaries.

It has been resolved that count Pulaski shall raise and have the command of an independent corps, to consist of 68 horse and 200 foot; the horse to be armed with lances, and the foot equipped in the manner of light-infantry.

No mention has been yet made of one captain Lee, of the light-dragoons, a bold, enterprising young officer, who, if spared, is like to make a considerable figure; but a resolve of congress leads us to notice him. By the 22d of November, he and his little troop had taken a hundred and two of the enemy prisoners. The whole tenor of his conduct during that campaign, proved him to be brave and prudent. He rendered essential service to his country, and acquired to himself and the corps he commanded, distinguished honor. The congress, to reward his merit, have resolved, “That capt. H. Lee be promoted to the rank of major commandant; that he be

empowered to augment his present corps, by enlistments, to two troops of horse, to act as a separate corps. These enlistments are not to be made from among the prisoners. The commander in chief opposes every thing of that kind, and has written—"We have always complained against Howe, and still do, for obliging or permitting the prisoners in his hands to enlist, as an unwarrantable procedure. The practice on our part, would justify it in him. I believe no prisoners have ever been enlisted by us. I am sure none have through compulsion." But in the Massachusetts, a number of the convention troops, upon offering themselves, were enlisted; which occasioned the general's writing, "Burgoyne could hardly suggest a more effectual plan for plundering us of so much money, reinforcing Mr. Howe with so many men, and preventing us from recruiting a certain number of regiments." All the British deserters sent on from this state as recruits for one regiment, went off to the enemy by the end of March; and of a detachment of sixty of them, which marched to join col. Henley, only twelve or thirteen reached the camp. Part of the others made their escape, and the rest formed a plan for the same purpose, mutinied, and were thrown into prison. The conduct of enlisting the convention troops, was sufficiently mortifying; but it was far more provoking to observe the backwardness of the states in furnishing the recruits that were wanted. Instead of the army's being reinforced with eight or ten thousand troops, it was scarcely joined by so many hundreds by the twelfth of April.

Lut us change the subject, and confine ourselves, for a time, more particularly to the proceedings of congress.

On the 19th of January, they resolved to grant a brevet of lieut. col. to the chevalier de Maduit du Plussis, as a reward for his services. Gen. Washington recommended him in a letter adding, "that the gallant conduct of this young gentleman at Brandywine, Germantown, and at Port Mercer, (on the Delaware) entitles him to the particular notice of congress:" that he made several judicious alteration in the works at Red-bank, and showed great good conduct during the action in which the Hessious were repulsed;" and that "after the evacuation was determined on he became the means of saving some valuable artillery and stores, and cheerfully undertook as volunteer the hazardous operation of blowing up the magazine, &c. without apparatus usually provided upon such occasions;" and concluding with—"he possesses a degree of modesty not always found in men who have performed brilliant actions."

Two days after, congress, on the report from the board of war, respecting the treatment of the American prisoners in New-York and Philadelphia, resolved among other things, “That the allowance of two dollars a week to officers, who are prisoners of war to these United States do cease, unless to those officers who may be, entitled thereto by any contract made on or before their captivity or surrender. That in return for permission given to purchase provisions of the American commissaries for the use of the enemy’s prisoners, gen. Washington be directed to demand of gen. Howe liberty to purchase clothing in such places as may be under his power for the use of the American prisoners: That the commissary-general of prisoners and his respective deputies, be fourthwith directed to call in all the officers and privates belonging to the enemy, and to confine them in such places, and order them to be subsisted and treated in such manner as shall render their situation similar, in all respects, to that of the officers and privates who are prisoners with the enemy; and that they continue this mode of treatment, till such time as a change of conduct on the part of the enemy shall induce congress, or the commander in chief of the armies of these states, to give directions for a different line of conduct on their part.” This threat of retaliation will have little effect upon the British commander; and if no other consideration should prevent, the general humanity of the people would be a bar to its execution. That some different measures ought to be adopted as to the British officers, than what are at present given into, must be admitted upon another account; for they have done much mischief to the American cause. During their captivity, they have formed connections in the country; have confirmed the disaffected; converted many ignorant people; and frightened the lukewarm and timid by their stories of the power of Great-Britain.

On the 27th of Feb. congress resolved, “That whatever inhabitant of these states shall kill, or seize, or take any loyal citizen or citizens thereof, and convey him, her or them, to any place within the power of the enemy, or shall enter into any combination for such purpose, or attempt to carry the same into execution, or hath assisted or shall assist therein; or shall by giving intelligence, acting as a guide, or in any other manner whatever, aid the enemy in the perpetration thereof, he shall suffer death by the judgment of a court-martial, as a traitor, assassin and spy, if the offence be committed within seventy miles of the head-quarters of the grand or other armies of these states, where a general officer commands.” This resolution has been

introduced to show you what a stretch of power congress have been guilty of. They have hereby suspended in particular cases the judicial authority of the Massachusetts state, which is not the seat of war; and subjected certain criminals to a trial by a court-martial, instead of leaving them to the laws of the state. At Providence a general officer commands a small army, at the distance of only forty-five miles from Boston. All bodies of fallible men possessed of or claiming power, ought to be narrowly watched, or from good or bad intentions, they will transgress the limits of their constitution, without a real necessity.

Major gen. Greene was appointed on the second of March, quarter-master-general; but allowed to retain his rank in the army. The next day, congress upon the report of a committee, resolved, “that lieut. gen. Burgoyne, on account of his ill state of health, have leave to embark for England by Rhode-Island; or any other expeditious route, with the officers of his family and servants.” He is engaged by parole, in case the embarkation of the convention troops is prolonged beyond the time apprehended, to return to America upon demand and due notice given, and to re-deliver himself into the power of congress unless regularly exchanged.

Congress have not lost sight of the importance of having the North-River and the passes in the Highlands well secured, so as to render any sudden attempt upon Albany by the same impracticable. Had Sir W. Howe, instead of going by sea to Philadelphia, bent his whole force for the mastering of these, as gen. Washington strongly suspected he would do, the independency of the United States must have tottered to the very foundation, if the have been completely subverted. Whether the plan of making the grand diversion southward, originated with the ministry, himself, or a Pennsylvania refugee—by his leaving the troops under Burgoyne to shift for themselves, in case the reinforcement from Europe did not arrive in time, the subjugation of the country may be entirely prevented. Gen. Gates was directed, on the 15th of April, to repair forthwith to Fish-kill, and to take the command of all the troops on the North-River and in the whole northern department. He was also to take effectual measures, to secure the communication between the eastern and southern states, by maintaining the possession of the river; and for that purpose was empowered to provide gallies, gun-boats, fire-rafts, chains, cassoons and chevaux-de-Frise, and to erect all necessary fortifications. West-Point has for some time been pitched upon as a proper spot; and the troops have

begun, and are going on to fortify it. When the works are completed, it will be a much stronger post than Fort Montgomery, and is higher up the river, and projects into it. The soldiers, whether militia or continentals, will according to custom, be employed upon them till finished without putting the states to any particular charge for labor in erecting them.

Congress were expecting that something would turn up in Europe favorable to America; and were confirmed in their expectation, upon the receipt of draught of a bill for declaring the intention of the British parliament as to the exercise of their right of imposing taxes on the Americans as also the draught of a bill to enable the king to appoint commissioners with powers to treat, consult and agree upon the means of quieting certain disorders with the colonies. These draughts were sent from Philadelphia to gen. Washington who forwarded them to York-Town. [April 22.] congress took them into consideration, and, observing that they had been industriously circulated in a partial and secret manner, ordered that they should be forthwith printed for the public information; but at the same time took care to counteract their influence by the remarks they published respecting them. They declared their belief, that the parliament would confer on them the usual solemnities of their laws and then observed, that upon a supposition the matters contained in them should really go into the British statute book, they would serve to show, in a clear point of view, the weakness and wickedness of the enemy: on these they expatiated. This done they said—"It appears evident that the said bills are intended to operate upon the hopes and fears of the good people of these states, so as to create divisions among them, and a defection from the common cause; and that they are the sequel of that insidious plan, which from the days of the stamp-act down to the present time, hath involved this country in contention and bloodshed." Congress went on to pronounce, that if any man or body of men presume to make any separate or partial convention or agreement with the British commissioners, they ought to be considered and treated as open and avowed enemies of the United States. They declared, "That these United States cannot with propriety hold any conference or treaty with any commissioners on the part of Great-Britain unless they shall, as a preliminary thereto either withdraw their fleets and armies, or else in positive and express terms acknowledge the independence of the said states." They then, from an apprehension that it is the design of the enemy to lull them into a fatal security, call upon the states to use the most

strenuous exertions to have their respective quotas of continental troops in the field as soon as possible, and to hold all their militia in readiness to act as occasion may require. The congress at this period had no knowledge of a treaty's having been entered into by France with their commissioners; but they conjectured that there would be a rupture in Europe between the French and British nations; and to avail themselves of the occasion, and detach the tories from the enemy, they the next day recommended to the states the offering of pardon, under the restrictions that might be thought expedient, to such of their inhabitants or subjects who had levied war against them, or had adhered to the enemy, as should surrender themselves to any civil or military officer of any of the states, or return to the state they belonged to before the 10th of next June. The arrival of the conciliatory bills at New-York and Philadelphia, excited equal astonishment and indignation in the royal forces. These thought their personal honor wounded in the recantation now made of all that high language and treatment, which they had been accustomed to hold or to offer to the Americans. The disappointment was the greater, as the bills were the substitute to a reinforcement of twenty thousand men, which they had expected. But the feelings of the numerous body of American refugees is not to be described.

A committee of congress was appointed on the 1st of May, "to inquire into the laws and customs of nations respecting neutrality and to report whether the conduct of the king of Portugal in forbidding the vessels of the United States to enter his ports and ordering those already there to depart at a short day, is not a breach of the laws of neutrality and will not justify acts of hostility against the subjects of the said kingdom." On the third, during the Sunday's adjournment, Mr. Simeon Deane, brother to Silas Deane, esq. arrived express from France, with sundry important dispatches, whereupon congress was convened, and the dispatches opened and read, among which, to their inconceivable joy, were a treaty of commerce and a treaty of alliance, concluded between his most Christian majesty the king of France and the United States of America. The treaties were duly weighed and considered separately the next day, and upon each it was unanimously resolved, "That the same be and is hereby ratified." There was an act separate and secret in the following terms—"The most Christian king declares, in consequence of the intimate union which subsists between him and the king of Spain, that in concluding with the United States of America this treaty of amity and commerce, and that of eventual and defensive

alliance, his majesty hath intended and intends to reserve expressly, and he reserves by this present separate and secret act to his said Catholic majesty, the power of acceding to the said treaties, and to participate in their stipulations at such time as he shall judge proper.—It being well understood nevertheless, that if any of the stipulations of the said treaties are not agreeable to the king of Spain, his Catholic majesty may propose other conditions analagous to the principle aim of the alliance, and conformable to the rules of equality, reciprocity and friendship.” This act being duly weighed, it was resolved unanimously, “That the same be and is hereby ratified.” The next resolution was, “That this congress entertain the highest sense of the magnanimity and wisdom of his most Christian majesty, so strongly exemplified in the treaty of amity and commerce, and the treaty of alliance; and the commisioners representing these states, at the court of France, are directed to present the grateful acknowledgements of this congress to his most Christian majesty, for his truly magnanimous conduct respecting these states, in the said generous and disinterested treaties, and to assure his majesty, on the part of this congress, it is sincerely wished that the friendship so happily commenced between France and these United States may be perpetual.” On the 5th they resolved, “That the commissioners be instructed to inform the court of France, that although congress have readily ratified the treaties and the act separate and secret; yet from a sincere desire of rendering the friendship and alliance so happily begun, permanent and perpetual, and being apprehensive that differences may arise from the 11th and 12th articles in the treaty of amity and commerce, congress are desirous that the said articles may be utterly expunged.” Mr. Lee was against admitting these articles, and assigned his reasons to Messrs. Franklin and Deane on the 30th of January; who on the first of February wrote to Mr. Gerard, that they concurred in desiring that the same might be omitted, notwithstanding which they were retained. You will not expect me to delineate the inexpressible satisfaction that the report of these treaties spread through the United States. The people were in raptures. The several brigades of the army, by gen. Washington’s orders, assembled in the morning of the 6th, when their chaplains communicated the intelligence, offered up a thanksgiving, and delivered a discourse suitable to the occasion. They were then formed into two lines, when thirteen cannon were discharged; at the firing of the last, a running fire of infantry began on the right and continued through the whole front line; it

was then taken up on the left of the second line, and continued to the right. A signal was given and the whole army huzzaed,—“Long live the king of France.” The artillery fired as before, which was succeeded by a second general discharge of all the musketry in a running fire, and by a “Long live the friendly European powers.” The military ceremony was reiterated, and closed with a huzza “for the American states.” The remainder of the day passed away in universal joy and gladness. Every American will soon have, from the publication of the treaties, an opportunity of learning their contents; mean while congress have recommended to all, “to consider the subjects of his most Christian majesty as their brethren and allies, and to behave toward them with the friendship and attention due to the subjects of a great prince, who with the highest magnanimity and wisdom hath treated with these United States on terms of perfect equality and mutual advantage, thereby rendering himself the protector of the rights of mankind.”

The congress, after receiving the treaties, had a stronger feeling of their own importance than before, and resolved, “That the commissioners appointed for the courts of Spain, Tuscany, Vienna and Berlin, should live in such stile and manner at their respective courts as they may find suitable and necessary to support the dignity of their public character.” They elected Ralph Izard, esq. commissioner for the court of Tuscany; and William Lee, esq. for the courts of Berlin and Vienna. On the 8th of May they agreed to a draught of “An address to the inhabitants of the United States of America.” In it they recapitulate in a masterly and affecting manner, the occurrences and state of the three preceding years. Their language is calculated to seize and lead the passions captive at pleasure. When they come to the French treaties they say—“You have still to expect one severe conflict. Your foreign alliances, though they secure your independence, cannot secure your country from desolation, your habitations from plunder, your wives from insult or violation, nor your children from butchery. Foiled in the principle design, you must expect to feel the rage of disappointed ambition. Arise then! to your tents! and gird you for battle. It is time to turn the headlong current of vengeance upon the head of the destroyer. They have filled up the measure of their abominations, and like fruit, must soon drop from the tree. Although much is done, yet much remains to do. Expect not peace while any corner of America is in possession of your foes. You must drive them away from this land of promise, a land flowing indeed with milk and honey. Your brethren at the extremities of the continent, already

implore your friendship and protection. It is your duty to grant their request. They hunger and thirst after liberty. Be it yours to dispense to them the heavenly gift. And what is there now to prevent it?" They afterward hold up to their view, the sweets of a free commerce with every part of the earth, soon to reimburse them for all the losses they have sustained; the full tide of wealth to flow in upon their shores, free from the arbitrary impositions of those whose interest and whose declared policy it is to check their growth; and the nourishing and fostering of their interests by government, whose power will be derived from their grant; and that will therefore be obliged, by the influence of cogent necessity, to exert it in their favor. They close with—"It is to obtain these things that we call for your strenuous, unremitted exertions. Yet do not believe that you have been, or can be saved merely by your own strength. No! It is by the assistance of Heaven; and this you must assiduously cultivate by acts which Heaven approves. Thus shall the power and happiness of these sovereign, free and independent states, founded on the virtue of their citizens, increase, extend and endure, until the Almighty shall blot out all the empires of the earth." That this animated, but in some instances, extravagant address, might have its full operation, and to the utmost extent, they recommended to ministers of the gospel of all denominations, the reading, or causing of it to be read immediately after divine service, to the inhabitants of the United States, in their respective churches and chapels, and other places of religious worship. A week after, they resumed the subject of making an allowance to officers after the war, and then resolved unanimously, "That all military officers commissioned by congress, who now are or hereafter may be in the service of the United States, and shall continue therein during the war, and not hold any office of profit under these states, or any of them, shall, after the conclusion of the war, be entitled to receive annually, for the term of seven years, if they live so long, one half of the present pay of such officers; provided that no general officer of the cavalry, artillery or infantry, shall be entitled to receive more than the one half part of the pay of a colonel of such corps; and provided that this resolution shall not extend to any officer, unless he shall have taken an oath of allegiance to, and shall actually reside within some one of the United States."

All later proceedings of congress must be deferred till another opportunity.

On April the twenty-fifth, the Massachusetts assembly sent a letter to congress, giving the reasons why they refrained from passing the regulating act, viz. their apprehensions that it could not be carried into execution, and that it would be attended with the most fatal consequences. They have passed an act for prescribing and establishing an oath of fidelity and allegiance. Persons refusing it, are to be sent off by order of council, within forty days after such refusal, to some port in the dominions of the kingdom of Great-Britain.

The declaration of independence made it necessary for the South-Carolinians to new model their temporal form of government. The inhabitants, instead of choosing delegates to meet in convention, for that business, entrusted their representatives with it; and the elections in every part of the state, were conducted on the idea that the members chosen, over and above the ordinary powers of legislators, should have that of framing a new constitution. Thus authorised, in January, 1777, they entered upon the business. They did not proceed to give a final sanction to their deliberations; but the model they had agreed to was printed in the form of a bill, and submitted to the examination of the people at large for the space of a year. Such was the prevailing approbation, that when it came before the legislature, the general assembly and legislative council proceeded in March 1778, to give it a final sanction in the form of a law, and presented it to president Rutledge for his assent. He refused passing it, and gave his reasons in a speech addressed to both houses. He urged the oath he had taken to preside according to the constitution agreed to by the representatives in 1776; that the bill offered to him annihilated one branch of the legislature, and transferred the right of electing another branch from the general assembly of the people, and that nothing appeared clearer to him than that they had not lawful power to do so. He observed that the good of the people being the end of government, that is the best form under which they are happiest; and that they are the fittest judges of what will be most productive of their happiness. He surmised that “The people preferred a compound or mixed government to a simple democracy, or one verging toward it, perhaps because, however unexceptionable democratic power may appear at the first view, its effects have been found arbitrary, severe and destructive.” “Certain it is,” said he, “that systems which, in theory have been much admired, on trial have not succeeded; and that projects and experiments relative to government, are of all schemes the most dangerous

and fatal.” He concluded his address with resigning the office of president and commander in chief, into their hands, and requesting them to accept it, and elect some person in his stead. A majority of their suffrages were in favor of the honorable Arthur Middleton, but he had his difficulties as to passing the bill, and declined the office. The honorable Rawlins Lowndes was soon after elected, and on the 19th of March gave his assent to the bill containing the new constitution.^[84]

Some weeks before this law was passed the Randolph frigate, of 36 guns and 305 men, commanded by captain Biddle, sailed on a cruise from Charleston. The Yarmouth, of 64 guns, discovered her and five other vessels in the evening of the 7th of March, and came up with her by nine o’clock at night. Captain Vincent hailed her to hoist colours, or he would fire into her, on which she hoisted American, and immediately gave the Yarmouth her broad side, which was returned, and in about a quarter of an hour she blew up. Four men were saved upon a piece of her wreck, and subsisted for five days upon nothing more than rain water, which they sucked from a piece of blanket they had picked up. On the fifth, the Yarmouth being in chace of a ship, happily discovered them waving; the captain humanely suspended the chace, hauled up to the wreck, got a boat out, and brought them on board.^[85] Three days before this, the Alfred frigate, of 20 nine pounders, was taken by the Ariadne and Ceres. The Americans have also lost the Virginia frigate.

The crew of an American privateer, in the night of the 27th of January, took the fort of New-Providence, being joined by a number of Americans in the place. They continued two days in possession of it, during which time they made themselves masters of a ship of 16 guns, that was repairing some damage sustained by running on a reef of rocks. They likewise possessed themselves of five prizes that had been sent in by a letter of marque. The letter of marque returned, prepared to attack, and got very near the privateer, when she cut her cables and sailed off, having about half an hour before sent away the ship and three of the prizes, and set fire to the other two.

Captain James Willing, in the service of the United States, arrived with a detachment of men from Fort Pitt, at the Natches, a British settlement in West-Florida, on the evening of the 19th of February; and the next morning early sent out sundry parties, who almost at one and the same time made the inhabitants prisoners of war on their parole. The colours of the United

States being hoisted, and the country taken possession of in their name, the inhabitants fearing the confiscation of their property, waited on captain Willing, to propose terms of accommodation, to which he readily agreed. They are not to take up arms against the United States, or to assist their enemies; but are to observe a strict neutrality. During such neutrality, their persons, slaves and other property, of what kind soever, are to remain safe and unmolested; but the property of all public officers of the British crown is excepted, as also the property of all British, who are not residents in the district. The agreement was signed by the delegates from the people and their associates, on the one part, and by the captain on the other, the 21st of February.

Since the earliest return of Spring, a succession of detachments from gen. Howe's army, having ranged the country for many miles round Philadelphia and in the Jerseys, chiefly to open the communication for bringing in supplies, and to collect forage. They have been pretty successful. Col. Hand, in answer to col. Mawhood, charged his troops not only with denying quarters, but butchering the Americans who had surrendered prisoners, and bayonetting, on the 21st of March, in the most cruel manner, in cold blood, men who were taken by surprise, when they neither could nor did attempt to make any resistance, and some of whom were not fighting men. The successful surprise of a party of Americans, consisting of some hundreds, posted about seventeen miles from the city, took place on the 4th of May. On the 7th, the second battalion of British light-infantry, in flat-boats, attended by three gallies and other armed boats, proceeded up the Delaware, in order to destroy all the American ships and vessels lying in the river, between Philadelphia and Trenton. They landed the next morning, advanced toward Bordentown; drove the Americans that opposed them, entered the town, and burnt four store-houses containing provisions, tobacco, some military stores and camp equipage. The country being alarmed and a strong body collected, the battalion crossed to the Pennsylvania shore. The next day they resumed their operations, and at sun-set embarked and returned to Philadelphia. While upon the expedition they burnt two frigates, one of 32 guns, the other of 28—nine large ships—three privateer sloops of 16 guns each—three of 10—twenty-three brigs—with a number of sloops and schooners. Two of the ships were loaded with tobacco, rum and military stores.

Thus ends, most probably, the history of general Howe's successes in North-America; for Sir Henry Clinton arrived at Philadelphia on the 8th of May, to succeed the former, who will soon return to Great-Britain.

The British officers to express their esteem for Sir William Howe, prepared a magnificent entertainment with which to grace his departure for Great Britain. It consisted of a variety of parts, on land and water; was called the Mischianza; and was given on Monday the 18th of May. It was indeed magnificent, began at four in the afternoon, and concluded at four the next morning. There was a grand and beautiful exhibition of fire works; toward the conclusion of which, a triumphal arch appeared gloriously illuminated, with Fame blowing from her trumpet in letters of light—"Thy laurels shall never fade."—This prediction would be more likely to receive a fulfilment, had the military achievements of the general been more answerable to the force he has commanded against the Americans. The American officers planned a different entertainment for him; which had proved fatal to themselves, but for the oversight of one British general.

Marquis de la Fayette, with a select corps of about 2500 men rank and file, crossed the Schuylkill, and proceeded to take post at Barron-hill, about twelve miles in front of the army at Valley-ford. He planned his pickets and videttes, and sent out patrols on all the roads by which it was probable the enemy would approach him. About two miles on his left was White-marsh, where a number of roads form a junction. The marquis intrusted the guard of these roads to some militia, whom he ordered there, but who never went. A quaker inferring from the marquis' directing him to provide lodgings for the night, that he intended remaining there, sent information of it to the enemy, who by their spies having obtained intelligence of the marquis' situation, formed an instantaneous design of surprising him. For that purpose, on the night of May the 19th, general Grant marched out of Philadelphia with full 7000 men, and a number of cannon. By taking the Frankfort road, and crossing the country through the old York road and White-marsh the next morning he entered the road on which the marquis was about two miles in his rear, at Plymouth meeting-house. From this place to Matson's-ford on the Schuylkill is about one-mile and a quarter, the only ford by which the marquis could effect a retreat and about two miles from Barron-hill church. Other troops were advancing to take the marquis in front, and to co-operate with gen. Grant; who instead of hastening to and securing the ford, marched down toward the marquis on the main road, by

which means the letter gained intelligence of the other's being in his rear. The marquis happily by an instant decision retreated by the road leading from Barron-hill church to Matson's-ford, and had nearly effected his retreat over the Schuylkill before the enemy were sensible of their error. They then doubled their pace to come up with his rear; but his retreat was so handsome and timely, that the troops were all crossed and formed before they could come near the ford in force. His whole loss was no more than nine men. The American army had early information of the marquis' danger, and were in great anxiety about him. They began firing some of their heaviest artillery, hoping as the wind being fair, the sound would be conveyed to the enemy in such a manner as to excite mistaken apprehension; which they think was the case, as the enemy, after the marquis had crossed, made a precipitate march back to Philadelphia, seemingly under an apprehension that they should be pursued and attacked by the whole army. Had gen. Grant marched down at once to Matson's-ford and secured it, the marquis with his select-corps, must have surrendered or been cut to pieces. Their loss would have obliged the rest of the American army to have made an hasty flight, in a most distressing situation, the chief of them being without shoes and stockings, and otherwise badly provided. The orderly manner in which the Americans retreated, and which contributed much to their escaping, is to be ascribed to the improvements made in their discipline, owing greatly to the baron de Steuben, the inspector-general.

LETTER XI.

Rotterdam, June 1, 1778.

FRIEND GORDON,

You will not be surprised at seeing from whence this is dated; nor be at a loss to account for my removal. The present residence will be more favorable to general intelligence than Great-Britain, as it affords an opportunity of visiting and hearing from Paris without danger. My last year's letter closed with the account of capt. Cunningham's having taken the packet for Holland, in the beginning of May 1777. The captain and his crew were committed to prison for some irregularities: and to save appearances were continued there for a short time by the French; but were speedily released from their mock confinement, and permitted to purchase and fit out a much stronger vessel avowedly to infest the British commerce. Mr. Hodge, whom you know, was committed also to the Bastile, at the request of lord Stormont, for having acted publicly as Cunningham's agent, in fitting out the privateer that took the Prince of Orange packet. While in the Bastile he was treated with the utmost politeness and civility; and entertained in the most elegant manner. But the American commissioners being dissatisfied with his confinement and expressing themselves in strong terms upon the subject, he was released, that the harmony between the French and Americans might not suffer an interruption.

Upon some reports tending to discourage the French commerce with the Americans, Mr. de Sartine, minister of the marine, assured the several chambers of commerce by a public instrument, signed the 4th of July 1777, and in direct contravention to all the British navigation laws, that the king was determined to afford the fullest protection to their commerce, and would reclaim all ships taken under that pretext. Still the policy of Versailles prevented France's being hurried into a rupture. She determined to riske no decisive step, till the issue of the American campaign was

known, her sailors were returned from the Newfoundland fishery, and her naval equipments were compleated. Therefore when the British ministry made heavy complaints attended with manaces, on account of the many prizes carried into the French ports by the American privateers, and there disposed of, as also of the countenance and protection given to the said privateers, she granted lord Stormont, an order for all of them to depart immediately.

The news of gen. Burgoyne's success at Tyconderoga and advance toward Albany, excited the greatest triumph on the side of administration. The promising prospect of the northern expedition's answering fully the wishes of ministry, enabled them to press France harder than ever; and dictated to the latter greater pliability and complaisance. Express orders were sent to Nantz, and all the other parts of the kingdom, forbidding the admittance of any American privateers, unless they entered in order to refit, or were driven in by stress of weather or want of provisions, and in either of these cases they were to be gone as soon as possible. "Notwithstanding all this parade, privateers come in, tarry and take military stores: and their prizes are publicly sold, but as formerly practised after similar complaints, at the mouth of the harbor to people who go off in boats to buy them; and are then brought in and unloaded.—Lord Stormont hears of it, flies to court, complains and threatens afresh: the court storms at and threatens its officers, the officers make their excuses; and the affair is soon hushed up, or terminates in a tedious controversy, by which the wished for time is gained." Before the subject of shipping is dropped, let it be noted that the king's cruisers have taken several American vessels and privateers and retaken some of their prizes; and will be likely soon to check the progress of American success in naval operations on the European coasts.

By the beginning of November, advices were received of the Bennington action, the failure of St. Leger's expedition against Fort Stanwix, and Burgoyne's first engagement. These advices overthrew in a great measure, the sanguine expectations that had been formed of speedily reducing the colonies: and were a bad prelude to the meeting of parliament, which took place the 20th of November. The royal speech was in the usual tone, but mentioned an augmentation of the naval force, considering that the armaments in the ports of France and Spain continued. It concluded with a resolution of pursuing the measures in which administration was engaged. When the address of the commons was before the house, the marquis of

Granby proposed an amendment, and that his majesty should be requested to adopt measures for accommodating the differences with America, and that a cessation of hostilities should be recommended. It was strenuously supported by the opposition on the following grounds, that three years war, at an immense expence, with 55,000 land forces, and 100 ships of war, had only left the nation in nearly the same situation as when it began. They had lost Boston and had gained New-York; and every hope of obtaining a revenue from America had been long over. The country gentlemen were unusually blank; they saw not only an end of all their expectations of an American revenue; but found themselves saddled, with the burden of a war infinitely more ruinous than any other in which the nation had ever been involved. Some of the ministerial party however threw out hints for their consolation, that America when subdued would be taxed. Mr. Hartly mentioned in the debate, that there was one ray of hope left to the British, if they had wisdom to seize the opportunity of opening a treaty with the Americans, while these were discontented with the cool and dilatory proceedings of the court of France. After all that could be advanced by opposition, the amendment was rejected by a majority of 243 against 86. The earl of Chatham moved for an amendment in the house of lords. He was for bringing about an accomodation with the Americans by a treaty, and rested the stress of his argument upon this point, that the house of Bourbon was upon the eve of breaking with us. His motion was rejected by 97 to 28.

When the news of the Saratoga convention reached France, and was communicated to the court of Versailles by the American commissioners, the latter were almost instantly received and publicly treated in that character. The capture of Burgoyne's army convinced the French, that the American opposition to Great-Britain was not owing to a faction, a few leading men that had gotten into power, but that the body of the people must be engaged, and that they were numerous, or that they could not have made such an effort as not only to have stopped a conquering army, but to have captivated it. It was therefore determined by a majority of the French court, to take the Americans by the hand, and to acknowledge their independence. They knew that Great-Britain could not subdue, though they might distress France; and that if the United States would persevere, these must at length establish their independence in connection with France, though they might be reduced to greater difficulties than they had already felt. The marquis de la Fayette's correspondence with his family and

friends, undoubtedly proved influential in procuring the determination. His letters were eagerly sought after; and counteracted those prejudices that were raised by several Frenchmen who returned from America in disgust. His sentiments were imbibed from their being frequently confirmed by events. The American cause being now popular in his native country, and the French court having adopted it, they cannot longer resent the early part he took in it, notwithstanding the offence given at the moment by his disobedience and departure.

Such is the present state of the contest between Great-Britain and the Americans, that it will more than ever suffice to give you a few occasional hints upon the parliamentary debates respecting it. In one that took place on the second of December, a federal commercial union was talked of by some, as the only hope left with regard to America; but reprobated by ministry. Fox moved for laying certain papers before the commons—while the matter was debating, intelligence was received that a similar motion had been complied with in the house of lords, by the lords in administration agreeing to it; and yet such was the influence of the ministry in the house of commons, that Mr. Fox's motion was, in a manner which in other seasons would have been deemed incredible, rejected upon a division of 178 to 89.

[Dec. 3.] The succeeding day was marked with the melancholy catastrophe of Burgoyne's expedition; a disclosure which excited no less grief and astonishment in both houses, than dismay on the side of the ministers, who were bitterly reproached upon the occasion. The business relating to the pecuniary supplies, being finished, and little short of nine millions voted for the service of the ensuing year, by the 10th of December, an adjournment to the 20th of January, was that day moved for on the side of ministry, and after considerable debates, carried in both houses.

Two days after, the American commissioners at Paris, finding all attempts to establish a cartel with lord Stormont, ineffectual, transmitted a letter to lord North, couched in strong terms of complaint, on the subject of the rigorous treatment exercised toward the American prisoners. It contained a particular charge which has not been publicly refuted, that a number of them were in a state of bondage, on the coasts of Africa and in the East-Indies, being compelled to submit to that condition, under the menaces of an immediate and ignominious death.

On the 16th of December, Mr. Gerard delivered to the American commissioners the preliminaries of a treaty between France and America. The same conveyance that brought an account of the Saratoga convention to the commissioners, and the letter to Dr. Fothergill, brought also a letter from the Rev. Dr. Cooper, of Boston, to Dr. Franklin, in which was mentioned the opinion given in the one to Dr. Fothergill; before this last was sent to England, care was taken to open and procure a copy of it for the commissioners. Dr. Cooper's letter was long and full, contained much information, and urged that France should step forward at once in the cause of America, or that her opportunity of gaining a connection with the United States might be lost. Dr. Franklin communicated it to the French minister, on whom it had a good effect. A number of circumstances, not publicly known, came at the same time to the knowledge of the doctor; they were well adapted to quicken the court of France, and he improved them to the purpose of showing the importance and necessity of her taking an open and decisive part. The ministry however, were for keeping that part private when taken, as long as convenient to their own nation, and subservient to the general good of both countries.

December the 24th, there was a meeting of merchants at the King's Arms tavern, in Cornhill, for the purpose of raising a sum of money to relieve the distress of the American prisoners. A petition from several of these at Portsmouth prison, sent the 1st of the month, to certain lords and others, was read. The petition sets forth, that admiralty was petitioned the last year in behalf of certain sick prisoners, and the petition disregarded;—that they were about one hundred and forty, in want of warm clothing as well as of almost every comfort, many without shoes and stockings;—that they were under a man, as overseer, void of all humanity, who detains every charitable supply sent by humane neighbors, denies them the common supplies of milk, and allows them neither candle nor fire in that cold season;—that their whole allowance is only eight ounces of meat each man per day, including the bone, and beer that is very small indeed;—and that captains and other officers are penned up altogether like cattle, with the common sailors, and with their own servants. Lord Abingdon had taken up the matter in the house of peers, and moved for accounts relative to their treatment. No relief however was obtained by his effort in parliament; the merchants therefore engaged in the business, and by the 29th, fourteen hundred and eighty-six pounds six-shillings and six-pence was subscribed.

On Saturday, January the 3d, five gentlemen attended on the lords of the admiralty, who expressed their approbation of the humane motives of the subscribers, and promised official countenance to the application of the money, and to lay the committee under no other restraints than what were necessary for the good order and safe custody of the prisoners. Lord Sandwich, at the time, in the handsomest manner, directed the commissioners of sick and hurt to give immediate orders to the surveyor to erect a temporary building, where the prisoners might have the benefit of a fire in the approaching inclement season.

[Jan. 9.] The committee advertised, that the town subscriptions, (independent of the country) amounting to upward of three thousand seven hundred pounds, being fully adequate for the present to the end proposed, the subscription was therefore closed. Subscriptions had been opened at Bristol, Nottingham, in Yorkshire and other places. The whole sum by February the 17th amounted to four thousand six hundred and forty-seven pounds fifteen shillings, including what had been sent from the country.

During the recess of parliament, measures were pursued by the ministry and their friends for obtaining a body of new troops by a voluntary supply from the people. The towns of Manchester and Liverpool were leaders in this business; engaged in it with the greatest fervor; and immediately sent to court an offer to raise each a regiment of 1000 men. In other places, public meetings of towns, counties and great corporate bodies were encouraged, at which resolutions were proposed for the levying of men for the service. Much artifice was practised to draw the city of London into the like measure; and the ministerial party, with the chief magistrate at their head (who might have received instructions and encouragement from his superiors) expected to have effected it; but to their astonishment found themselves deserted by the greater part of those who had hitherto regularly obeyed all their mandates respecting elections to city offices. Such was the effect of the original aversion to the American war, and such the disgust toward ministry on the late unfavorable events. But the chief magistrate would not desist; he suddenly called a court on this business; when they met [Jan. 16.] it was softened down to a proposal for the city to give a bounty for the raising of men for the land and sea service. Warm debates ensued, and the motion was thrown out by a very great majority of the common council. Then followed a resolution, condemning in strong terms, the giving of any countenance to, or being in any manner instrumental in the further

continuance of the present ruinous and destructive war. The disappointed persons however, opened a subscription, "to support the authority of Great-Britain over her rebellious colonies in America;" the stile proving offensive, it was changed for the support of king and government; as they were monied men, and liberal, £.20,000 was soon subscribed.

A similar attempt was made in Bristol, and the event was similar. But a number of names to large sums of money, appeared in a private subscription, which rivalled in the amount, that at London. Neither of these subscriptions have been found to produce any great effect. The ministerial measure succeeded no better in the counties. A strong government interest was foiled in Norfolk; and the attempt produced a petition of uncommon force and energy from the freeholders of the county to parliament, against the American war.

The measure of raising new regiments was adopted in Scotland with the greatest avidity. The cities of Edinburgh and Glasgow, raised a regiment of 1000 men each; and were indulged, like Manchester and Liverpool, with the nomination of officers. Several individuals undertook and performed the raising of regiments in the highlands. The conditions were generally the same, and very advantageous to both the raisers and officers. Several independent companies, amounting to about a regiment in point of number, were raised in Wales; but the battalions, except those of Manchester and Liverpool, were all formed in Scotland.

When the measures of raising men and money came to be debated, a great law lord pronounced the measure of raising troops, without the consent and during the sitting of parliament, to be absolutely illegal, unconstitutional, and a high violation of the fundamental privileges of parliament; and declared that the committees at the London Tavern and at Bristol, who conducted the subscriptions in these cities, had acted a daringly illegal and truly alarming part, having assumed a legislative power, and acted in that capacity, in which, according to the spirit of the constitution, and the express meaning of the bill of rights, parliament only were empowered to act.

The question of benevolence and free gifts did not undergo less discussion, nor their being brought into practice incur less censure, than the doctrine of raising forces without the participation of parliament. They were declared to have been illegal at all times, and in all the stages of the

constitution. It was observed, that the present measure overthrew the only colourable argument ever brought to justify the conduct of parliament in endeavouring to tax the colonies. It had held out, "That if the colonies, now that they are grown powerful and opulent, should give free grants to the crown, as they have hitherto customarily done upon requisition, the crown may become independent on parliament for supplies." This, it was said, became the constant cry of ministers to amuse and deceive the people, and the cloak to hide their worst designs.

On the 6th of February, the treaties between France and the United States were signed. The alliance between these two powers had not been concluded much more than eight and forty hours before it was known by the British ministry.

Mr. Fox, in a debate five days after, made it appear from different calculations, that the number of men lost to the army, in killed, disabled, deserted, and from various other causes, since the commencement of hostilities, amounted to about twenty thousand.

The duke of Richmond in a committee of the house of lords stated, about the same time, the following facts—that since the commencement of hostilities, the number of vessels belonging to Great-Britain and Ireland, taken by the American ships of war and privateers, amounted to seven hundred and thirty-three; forty-seven of which had been released, and one hundred and twenty-seven retaken:—That the loss of the remaining five hundred and fifty nine appeared from the examination of merchants to have been worth at least two millions and six hundred thousand pounds: That of two hundred ships employed every year, in the African trade, before the present troubles, whose value upon an average was nine thousand pounds each, only forty remained in that branch of trade, which was therefore diminished one million four hundred and forty thousand pounds annually;—and that the number of American ships of war and privateers, amounted to one hundred and seventy-three, carrying two thousand five hundred and fifty-six guns, and about fourteen thousand seamen. Lord Sandwich on the other side, stated the number of American prizes that had been taken at nine hundred and four, which he estimated at two thousand pounds each, making altogether one million eight hundred and eight thousand pounds; to which he added the value of the fisheries, from which the Americans were excluded, and then fixed the damage they had sustained at two millions two

hundred thousand pounds. Upon another occasion the duke stated the extraordinary war-expences of each of the four last years separately; and the whole being ascertained, as near as could be possibly done for the present, amounted to the gross sum of twenty-three millions eight hundred ninety-four thousand seven hundred and ninety-two pounds. He showed also, that was a pacification to take place, no less than nine millions more would be requisite to bring all matters relating to the war to a final settlement.

[Feb. 17.] Lord North introduced his conciliatory propositions. His plan was to enable the crown to appoint commissioners to treat with the colonies concerning the means of putting an end to the present contest between them and Great-Britain. Five persons were to be invested with ample powers; and authorized to treat with congress as a lawful assembly, representing America—with any of the provincial assemblies—and with any individuals. They were to be empowered to order a suspension of arms; to suspend the operation of laws; and to grant pardons, immunities and rewards. The title of Independent States might be allowed till the treaty had been ratified by the king and parliament: The commissioners were to negotiate, upon a re-union of the empire, for a reasonable contribution to its common exigencies; but this demand was not to be insisted on, and to be given up rather than not terminate the quarrel. His lordship said in his speech, that Sir W. Howe had been, in the late actions and in the whole course of the campaign, not only in the goodness of troops, and in all manner of supplies, but also in point of numbers, much superior to the American army which opposed him in the field; that general Burgoyne had been in numbers, until the affair of Bennington, near twice as strong as the army of the enemy: that he promised a great army should be sent out; and that a great army had accordingly been sent out, to the amount of 60,000 men and upward. The speech was long, able and eloquent, and kept him up two full hours.—A dull melancholy silence for some time succeeded. It was heard with profound attention; but without a single mark of approbation. Astonishment, dejection and fear, over-clouded the whole assembly. It was conjectured that some powerful motive had induced ministry to adopt such an alteration of measures. The idea was confirmed by the positive assertion of Mr. Fox, that a treaty had been signed at Paris, between the colonies and France by which she recognized their independence. Some of the country gentlemen being piqued at Lord North's having said, that "they had not been misled or deceived," rose with great warmth, and asserted with indignation, that they

had been grossly deceived and misled by the uniform language of government for three years past. In general the party declared, that as the point of taxation, which could be the only rational ground of the war, was now given up, peace should be procured by any means, and in the speediest manner.”

His lordship should have early attended to the hints contained in the letter to Dr. Fothergill, which the doctor got transcribed and sent him, but the minister thought the doctor’s correspondent too sanguine. The intimation that a foreign power might interfere, should have produced a determination to treat immediately—a message to the American commissioners assuring them of it—and the introduction, if possible of the passing of the conciliatory bills before the delivery of the preliminaries to the commissioners on the 16th of December; whereas they were not passed till the 2d of March.

The day before the conciliatory propositions were introduced, a particular incident happened in the house of lords.—After the Saratoga convention, general Gates wrote a very pathetic and interesting letter to the earl of Thanet, with whom he had formerly lived upon a footing of great intimacy. It related chiefly to the situation of affairs between Great-Britain and America. He lamented the misfortunes that had befallen his native country, and the danger to which it was exposed; and then stated the necessity of speedily applying the only remedy remaining, for the cure of the many evils that afflicted or threatened Great-Britain. This remedy he declared to be an acknowledgment of American independence, which he said the United States never would part with. “A wise minister,” he added, “by rescinding the resolutions passed to support that system which no power on earth can establish, will endeavor to preserve so much of the empire in prosperity and honor, as the circumstances of the times, and the mal-administration of those who ruled before him, have left to his government. The United States of America are willing to be the friends, but never will submit to be the slaves of the parent country. They are by consanguinity, by language, and by the affection which naturally springs from these more attached to England than to any other country under the sun. Therefore spurn not the blessing which yet remains; instantly withdraw your fleets and armies; cultivate the commerce and friendship of America. Thus, and thus only can England hope to be great and happy. Seek that in a commercial alliance; seek it ere it be too late; for there only you must expect to find it.” The earl

of Thanet produced this letter in the house; and after some controversy it was read; and the duke of Richmond moved that it should lie upon the table. The motion was rejected after a warm debate, to the concern of several, who flattered themselves that the letter might have afforded an opening to a favorable accommodation.

The French ambassador delivered a rescript to lord Weymouth, in which he informed the court of London, that the king had signed a treaty of friendship and commerce with the United States of America. The knowledge of this transaction was communicated under the parade of cultivating the understanding subsisting between France and Great-Britain; and was accompanied with a declaration, that the contracting parties have paid great attention not to stipulate any exclusive advantages in favor of France; and that the United States have reserved the liberty of treating with every nation whatever, upon the same footing of equality and reciprocity. The rescript concludes with an intimation that the French king being determined to protect effectually the lawful commerce of his subjects, and to maintain the dignity of his flag, had, in consequence, taken eventual measures for these purposes, in concert with the United States of America. No sooner was the account conveyed to the French court, of the immediate effects which the delivery of the rescript seemed to have produced in London, than orders were issued for the seizure of all the British vessels in any of the French ports. The example was followed by a similar order in Great-Britain. But there were few ships in the ports of either. The French are still for preserving certain appearances, and therefore the king's ordinance, affording new and extraordinary advantages to the captors of prizes, although signed on the twenty-eighth of March, is kept dormant, without publication or effect.

The reception of this rescript was notified by the minister to the house of commons on the 17th. The notice was accompanied with a message from the king, intimating that he should be under the necessity of resenting so unprovoked and so unjust an aggression on the honor of his crown and the essential interests of his kingdom, and expressing his firm confidence on the zealous and affectionate support of his faithful people. An address was moved for in answer to it, to assure the king of the readiness of his people to stand by him in asserting the dignity of his crown and the honor of the nation, and to submit with cheerfulness and spirit, to the expences that would be requisite for that necessary purpose; and was carried after a long

debate. In the house of lords, the debates upon the like occasion, were attended with an acrimony of language and a freedom of thought, that seemed to scorn all restraint. In the course of them it was said in substance —“The treatment we have received from France is mortifying; but if we are wise, we shall suppress our resentment at the present hour, and reserve it for a more convenient opportunity. In the continual vicissitude of political events on the continent of Europe, we need not wait long for a favorable occasion of returning the blow given us by France in the present instance. Nor let us forget, that we have ourselves, on former occasions, acted a part similar to that of which we now so grievously complain. When the Seven United Provinces of the Netherlands, threw off the yoke of Spain, England befriended them in the same manner France does now the United States of America. When France was torn by civil dissensions, we made it our business to interfere, and to espouse the cause of one of the parties. The frequency of the practice, has rendered it a common rule of European politics. Every nation is watchful of what passes among its neighbors, to the well known intent of profiting by their divisions. It was by a strict and constant observance of this maxim, that some of the greatest princes and ministers had made so splendid a figure. Queen Elizabeth in England, and cardinal Richlieu in France, had ruled with so much prosperity, and risen to such fame, by never losing sight of it. The safest way of revenging ourselves, will be by following their example.” The question for an address was carried by a majority of nearly three to one.

[March 21.] A public audience and reception was given to the American commissioners, Messrs. Franklin, Deane and Lee, by the French monarch. They were introduced by Monsieur Vergennes, and received by the king with the usual formalities and ceremonials. This striking acknowledgment of the plenipotentiaries from the United States, must have mortified the ministry and crown of Great-Britain; and may be pronounced the political phenomenon of Europe. The day before it was exhibited, the French ambassador, in consequence of orders to quit London, set out for Paris.

An enquiry into the state of the nation had been proposed some time back, and continued with unabated assiduity in both houses. In the house of peers, the duke of Richmond, its principal conductor, brought all matters relating to it, into a clear and perspicuous arrangement. He at length, on the 7th of April, put an end to that intricate and laborious service, by one of the most resolute and animated speeches ever pronounced in that assembly. He

moved for an address to the king, in which a representation of the state of his dominions was given, and the conduct of the ministers severely censured, and his majesty urged to put an end to that system which had prevailed in his court and administration. He insisted upon it, as he had repeatedly done on former occasions, that the only measure of safety was to recal the British forces from the colonies, and to conclude an accommodation with them upon the most advantageous terms that could be obtained. He would even agree to their independence. Opposition was not, however, unanimous. The earl of Chatham resisted it with a strength of determination, and a vehemence of speech that were peculiar. The earl of Shelburne embraced similar sentiments. They jointly protested against any measure that tended to the dismemberment of the empire, and to the acknowledgment of American independence. The latter emphatically stiled it the “setting forever of the British sun.” All dangers and all trials were to be encountered sooner than to submit to such a dismemberment. Great-Britain was in possession of ample resources to prevent such a disaster. The numbers and spirit of her people, their riches and their strength, were greater than her foes suspected; and even than she herself could well ascertain till they had been justly tried. During the debate of the day, the earl of Chatham, while engaged in his eager speech against the acknowledgment of American independence, was seized with that fainting which was the prelude to his death on the 11th of May, in the seventieth year of his age. He has left behind him the character of one of the greatest orators and statesmen that this or any other country has ever produced; with the finest opportunities in his hands of acquiring an ample fortune, he left his family destitute of all suitable provision. The house of commons, however, to testify their gratitude to him for his important and eminent public services, provided for the payment of his debts, and settled an honorable income upon his posterity.

The Duke of Richmond’s proposed address was rejected by a great majority. But a protest was signed upon the occasion, by twenty peers, wherein they condemned, with the utmost freedom and asperity of language, the design to persist in the measures carried on in the colonies.

[April 13.] A French squadron which had for several months been equipping at Toulon, sailed from that port under the command of count d’Estaing. It consisted of twelve ships of the line, and four frigates of superior size. Mr. Silas Deane and Mr. Gerard, who has been appointed the

French minister to congress, were on board. On the 4th of May, authentic intelligence of his sailing, arrived at St. James's. Some of the ministers happening to be out of town, the cabinet could not meet till the sixth; when orders and instructions were instantly dispatched to Portsmouth; and on the next day all hands were employed in preparing for the immediate sailing of a powerful squadron. On Friday the 8th, the wind changed to the west, and it was not till the 20th that admirals Byron and Hyde Parker sailed from Portsmouth, with twelve ships of the line; but the British minister's not knowing whither count d'Estaing's squadron was destined, nor that Deane and Gerard were on board, they sent an express to stop their final sailing till further orders, so that they put into Plymouth. At length being relieved from their doubts by the 5th of June, they determined to send admiral Byron to America, and at the same time to give him the command on that station, by sending with him that leave to return which lord Howe had desired; and on the 9th the admiral sailed from Plymouth. Lord Howe had been deceived into his command; had been deceived while in the exercise of it; and being tired and disgusted, had required permission to resign.^[86]

[May 13.] General Burgoyne landed at Portsmouth. On his arrival at London, he soon discovered that he was no longer an object of court favor. He was refused admission to the royal presence; and from thence experienced all those marks of being in disgrace, which are so well understood, and so quickly observed by the retainers and followers of courts.

[May 14.] Sir George Saville moved for leave to bring in a bill for the repeal of certain penalties and disabilities provided in an act of the 10th and 11th of William III. entitled an act to prevent the further growth of popery. He proposed that a sufficient test might be formed, by which the papists should bind themselves to the support of the civil government by law established. The motion was received with universal approbation. A bill was brought in and carried through both houses with uncommon unanimity; ministry and opposition vied with each other in activity to forward it; the first considered it as a prelude to the employing of papists in the fleets and armies; that respectable body who called themselves *old whigs*, took the lead avowedly in support of it; and the bench of bishops co-operated heartily with the other promoters of it; it was passed without a single negative, and received the royal assent on the 27th of May. By this act the clause in the act of William III. for prosecuting of popish bishops, priests or

jesuits, is repealed; also that for subjecting papists keeping schools for the education of youth, to perpetual imprisonment; and that likewise which disables papists from inheriting lands by descent, and gives to the next of kin (being protestants) a right to inherit such lands; beside that which disables papists from purchasing manors, lands or hereditaments, in England or Wales; but the act leaves all lands in possession, just as they were, and all causes in litigation, as if it had never been made; and the benefits arising from it, rest on the condition of taking a certain prescribed oath of allegiance within six months of its passing into a law.

[May 25.] Sir William Meredith observed in the house of commons, that the British ministers had early and complete intelligence of the French preparations at Toulon. He said that on the 3d of January they had notice of the equipment; on the 8th of February they had advice of the number of ships that was to compose the squadron; and on the 28th of the same month, that the crews were all completed; and that they had early information of count d'Estaing's arrival, and of the day on which he intended to sail. He moved, among other matters, that it did not appear to the house, that any orders were sent until the 29th of April, for any fleet of observation, to attend the motions of that from Toulon; but the strength of ministry was too great to admit of its being carried.

On the 3d of June a period was put to the session of parliament; and on the 9th the earl of Chatham's remains were honorably interred in Westminster Abbey, at the public expence; at which also, a magnificent monument has been ordered to be erected in the same place, to his remembrance.

Warlike preparations are going forward in every part of Great-Britain; but the French have undoubtedly the start, and are in the greater forwardness. Admiral Keppel sailed from St. Helen's on a cruise off Ushant [June 13.] with twenty ships of the line; but not in that excellent order, nor so well manned, as the critical situation of affairs between the two nations appears to require.

What could not be mentioned in the order of time, must now be related, that capt. Jones, of the Ranger privateer, from Portsmouth, in New-Hampshire state, toward the end of April, landed in the night, at Whitehaven, in Cumberland, a party of 30 men, and set fire to one of the ships in the harbour; by the exertion of the inhabitants the flames were

extinguished before they had reached the rigging. He afterward landed some men on the western coast of Scotland, and plundered the house of Lord Selkirk, near Kirkudbright, of plate, jewels and other valuable articles. He is a Scotchman by birth, and is said to have lived formerly with his lordship.

You may expect from me the earliest intelligence of those important transactions, that are about to commence in this quarter of the world.

LETTER XII.

Rotterdam, Aug. 15, 1778.

FRIEND GORDON,

The French, to perplex the councils of the British court assembled a multitude of regiments from all parts of the kingdom, and marched them down to the sea side, where they formed large encampments opposite to the shores of Great-Britain.—These manœuvres occasioned the calling out and embodying of the militia of England upon the rising of parliament. The militia being joined by the regular forces, camps were formed in different places: but the nation trusted most to the navy.

My last closed with the account of Admiral *Keppel's* having sailed. He was deservedly in the highest esteem with his own profession, as well as the public. It was extremely proper therefore that he should be appointed to command that fleet, to which was committed the defence of the island, the protection of the homeward bound trade, and the preservation of the dignity of the British flag in the adjoining seas. On his arrival at Portsmouth toward the end of March, he found matters very different from the opinion that had been generally circulated, and from what he himself had been led to expect. Instead of a strong and well appointed fleet, he discovered to his astonishment, that there were only six sail of the line in any degree of condition for immediate service; even these on his reviewing them, with a seaman's eye, gave him no peculiar pleasure. The paucity and condition of both men and ships was not more alarming, than the deficiency of all kinds of naval stores was lamentable; but the admiral acted with such prudence and caution, as to prevent that increase of the public alarm, that a display of these circumstances must have occasioned. He urged his private applications to the admiralty, with such assiduity and effect, that a new spirit and unusual degree of vigor were suddenly seen to prevade the naval department: and such industry was used, that beside dispatching the twelve

ships for America under Byron, he was enabled to take the seas with a fleet of twenty sail of the line, at the time already mentioned. He had scarcely arrived at his station in the Bay of Biscay, when two French frigates, with two smaller vessels appeared in sight, and were evidently taking a survey of the fleet. War had not been declared nor reprisals ordered: but it was necessary to stop these frigates, as well to obtain intelligence, as to prevent its being conveyed. A general signal for chasing was made; a ship of the line got at length along side of the *Licorne* of 32 guns; on her firing a gun, the *Frechman* stood to her and was brought into the fleet. Mean while, the other French frigate, *La Belle Poule*, of twenty-six heavy twelve pounders, beside several others of lighter metal, with a schooner of ten guns in company were closely pursued by the *Arethusa* frigate of only twenty-eight six pounders, and the *Alert* cutter, till ought of sight of the fleet. The *Arethusa* getting up with her chase, captain *Marshall* requested the French officer, lieutenant *Chedeau de la Clocheterie* to bring to, and acquainted him with the order for conducting him to the admiral. A compliance being refused, the captain fired a shot across the *Belle Poule*, which she instantly returned, by pouring her whole broadside into the *Arethusa*. A desperate engagement ensued with unusual warmth and animosity for above two hours, each side vying with the utmost degree of national emulation to obtain the palm of victory, in this first action and opening of a new war. The *Belle Poule* had the superiority not only in the weight of metal, but to number of men. The *Arethusa* was so shattered, that she became almost unmanageable as there was little wind. The captain was obliged to act with the more caution, as he was upon the French coast, and close on shore at midnight. The *Belle Poule* having her head in with the land, and meeting with no further interruption from the *Arethusa*, embraced the opportunity of standing into a small bay. During the forepart of this action, the engagement was no less warm between the *Alert* cutter and French schooner.—Their force was about equal. The contest was well supported for upward of an hour, when the schooner was compelled to strike. Next morning an unexpected movement made by the *Licorne*, occasioned one of the convoy to fire a shot across her way, as a signal for keeping her course, when to the astonishment of admiral Keppel and the whole fleet, she suddenly poured her whole broad-side, accompanied with a general discharge of musketry, into the *America*, of 74 guns, at the instant lord Longford, her commander, was standing upon the gunwale, and talking in terms of the utmost

politeness to the French captain. The frigate instantly struck her colours, as soon as she had discharged her fire. Only four of the America's people were wounded. Notwithstanding the provocation, lord Longford had such command of his temper as not to return a single shot.—Another French frigate falling in with the fleet, was detained by the admiral, under the plea of hostility committed by the *Licorne*; but several French merchantmen were suffered to pass through the fleet unmolested. The capture of the French frigates afforded the admiral a source of the most critical and alarming information. He was now within sight of Ushant, when he discovered to his astonishment, that the French fleet in Brest road and Brest water, amounted to thirty-two ships of the line, beside ten or twelve frigates, while his own force consisted only of twenty of the former and three of the latter. The odds between the two fleets was so vast, that he could not justify risking an action, which might prove fatal to the kingdom. But it gave him the greatest uneasiness to find himself obliged to turn his back on France. The French no sooner determined to take a decided part with the Americans, than they assiduously applied themselves to the getting of their navy into the utmost forwardness for actual service; and had proceeded with such profound secrecy that the strength of it had not transpired so as to reach the British ministry, who appear to have been wanting in procuring good and early intelligence; which was a matter of so much importance in the estimation of the French, that they used every means for obtaining it. The Brest fleet lay ready for sailing; and was only detained till the destination of admiral Byron's force could be ascertained at Paris.

[June 27.] On the return of the British fleet to Portsmouth, the admiral's conduct was branded with the most opprobrious terms, and ascribed to the most disgraceful motives, and his general character treated with the most indecent scurrility in those publications which he considered as under the immediate direction of the ministers. He bore all with wonderful temper; made no complaints; pressed forward the preparations for his return to sea, without noise or parade; and submitted to all the unmerited reproach thrown upon him, without being provoked to a justification, which, by the narration of the fact, must have criminated the first lord of the admiralty. The seasonable arrival of the two first of the British West-India fleets, and of the Levant trade, brought in a supply of seamen at the most critical period in which they could have been wanted. By this mean, and the exertions every where used by the admiralty, Keppel was enabled to put again to sea, on the

ninth of July, with 24 ships of the line, and was joined on the way by six more; he had also an addition of one frigate and two fire ships. Mean while the French king made use of the engagement with the *Belle Poule* and the taking of the other frigates, as the ostensible ground for issuing out orders for a reprisal on British ships, and the ordinance signed the 28th of March, was immediately published. Similar measures were pursued in Great-Britain, when the account of these transactions was received. Thus nothing of war was wanting between the two nations, excepting the formality of the declaration.

The force and destination of admiral Byron being at length made certain to the French ministry, orders were sent to the Brest fleet to proceed to sea. They instantly weighed anchor, and sailed the day preceding the departure of the British fleet from Portsmouth. They amounted to 32 ships of the line, and a cloud of frigates, and were divided into three squadrons, the whole under the command of the count d'Orvilliers, who was assisted in his own particular division, by admiral the count de Guichen. The second was commanded by the count Duchaffault, assisted by monsieur de Rochechovart; and the third by the duke of Chartres, a prince of the blood, seconded by admiral the count de Grasse. The duke was sent on board by the court to animate the fleet, and to intimate the greatness of the objects proposed, and how much reliance was placed on the courage and exertions of the officers and seamen. The British fleet was also thrown into three divisions, the van being commanded by Sir Robert Harland, and the rear by Sir Hugh Palliser. The commander in chief, with the centre division, was assisted by the voluntary services of admiral Campbell, a brave and experienced officer, who from ancient friendship and a long participation of danger and service, condescended to act as first captain in Keppel's own ship, the *Victory*. The two fleets came in sight of each other on the 23d, in the afternoon. From the movements of the French admiral, it was inferred that he had no knowledge of the increase of Keppel's strength; but considered his fleet as being in number the same as when on its station before Brest. He appeared disposed to bring on an immediate action; but when the fleets approached so near as to discover each other's force, he apparently relinquished that determination, and continued afterward to evade, with great caution and knowledge in his profession, all those endeavours which were used on the other side to bring on an engagement. Through a fresh gale and a change of wind in the night, the French gained

the weather gage, by which they had the advantage either of bringing it on, or of totally avoiding it. But two of their line of battle ships fell considerably to the leeward, and were so effectually cut off from the rest of the fleet, that they were never able to rejoin it during the remainder of the cruise. This put the hostile fleets on an equality in point of number, with respect to line of battle ships. The British fleet continued constantly to beat up against the wind in pursuit of the French, who declined coming to a general engagement, as they daily expected a strong reinforcement, and hoped to intercept the commercial fleets, that, while making for the British ports, would have to pass through the track in which their numerous frigates were stationed. Admiral Keppel penetrated their motives, and labored to bring them to action; and as the preserving of a regular line of battle with any hope of it was evidently impracticable, the signal for chasing to windward was kept constantly flying. [July 27.] Some sudden shifts of wind, together with an unexpected and unintentional effect produced by an evolution on the French side, being all improved by the most masterly efforts on the other, brought the two fleet so close that they could not part without an action. But the French endeavored to evade its consequences as much as possible; and by suddenly putting about on the contrary tack, altered the course of the ships in each fleet, so that they could engage only as they passed, instead of lying side to side, and thereby making an effectual impression.

The French began, by firing at a great distance on the headmost of Sir Robert Harland's division as the ships led up, but not a shot was returned till they were near the enemy. The example was followed, or a similar conduct pursued by the fleet in general, as fast as each ship could close up with the French; and notwithstanding their having been necessarily extended by the chase, they were all soon in battle. As the fleets passed each other very close on the opposite tacks, the cannonade was heavy, and the effect considerable. The action lasted about three hours. As the French in their usual way, directed their fire principally against the rigging, several of the British ships suffered considerably in their masts, yards and sails. The British fire which was principally levelled at the hulls of the enemy, was not deficient in its effect of another kind, the destruction of the seamen. The action being over for the present, admiral Keppel hauled down the signal for battle, till the ships could recover their stations, or get near enough to support each other on the renewal of the action. To call them together for

that purpose, he immediately made the signal to form the line of battle ahead, which was considered as commanding the most prompt obedience. Admiral Palliser was at this moment in his proper station; but quitted it and passing Keppel to leeward on the contrary tack, while the latter was advancing to the enemy, never came into the line during the rest of the day. Palliser being totally out of the line, other ships for astern, and 5 disabled in their rigging, at a great distance to leeward, the British admiral, about 3 o'clock in the afternoon, could not collect above twelve ships to renew the engagement. The French observing the exposed situation of the British ships which had fallen to leeward to repair their damages, edged away with an evident intention of cutting them off from the rest of the fleet. Adm. Keppel instantly discerned their design and the danger of the ships, and suddenly wore and stood athwart the van of the enemy, in a diagonal line, for their protection. He also dispatched orders to Sir Robert Harland to form his division at a distance astern of the Victory, to cover the rear and keep the enemy in check, till Palliser should, in obedience to the signal, come with his division into his proper station. The protection of the disabled ships being accomplished, and the French continuing to form their line, ranging up to leeward parallel to the centre division, it became the admiral's immediate object to form his as speedily as possible, in order to bear down upon them and renew the battle. Seeing Palliser still to windward, he sent capt. Windsor of the Fox frigate with express orders to him to bear down into his wake; and to tell him, that he only waited for him and his division to renew the attack. This order not producing the desired effect, the admiral threw out the signal for all ships to come into their stations; and again at seven o'clock, being wearied out with fruitless expectation, he made the signal for each particular ship of Palliser's division to come into her station in the line; but before they had complied with this signal, night put an end to all further operations.—From a motive of delicacy, no signal was particularly thrown out to the Formidable, Sir Hugh Palliser's own ship.

The French could have renewed the action during every hour of the afternoon, with apparent advantages, which from the situation of affairs could not possibly have escaped their observation. Their conduct the following night indicated their indisposition to a renewal of it. Three of their best sailing vessels were stationed at proper distances with lights to divert the attention of the British fleet, and to induce a belief that their whole line still kept its position. During this deception the rest of the fleet

withdrew in the most silent manner, without lights or other signals than the throwing up of some rockets; and made the best of their way to Brest, where they arrived the next evening. By day-light the French fleet had got at such a distance, that the British admiral concluded, he had not the smallest prospect of coming up with them, and that neither a general nor partial pursuit could answer any beneficial purpose. He therefore left only a proper force to protect the homeward bound trade, and then made the best of his way to Plymouth, as being the nearest port, in order to put the fleet into a proper condition to return in quest of the enemy.

It was observed on the day of action with equal surprise and regret, and by some of the bravest and most experienced British officers, that the French worked and manœuvred their ships, with a degree of seaman-like address and dexterity, which they never before perceived. The event of the day, and the consequent escape of the French fleet were to admiral Keppel intolerably grievous. By his consummate skill, and the most incessant industry, he had gained after four days pursuit of the enemy, one of the fairest opportunities of doing the most signal service to his country, in the most critical exigency, and of raising his own name to the summit of naval renown. He hoped to have made the 27th of July, “a proud day to Great-Britain.” All these mighty advantages and glorious rewards were unaccountably ravished from him, when they appeared within his grasp. In Plymouth, the failure of a complete victory was attributed to Sir Hugh Palliser; whose non-compliance with the admiral’s signals has been ascribed by many to the disabled condition of some of the ships in his division.

The admiral, with wonderful temper, and no less prudence, accommodated his conduct to the necessity of his situation, and made the public security and interest the only objects of his direction. He advanced no charge against Palliser. His public letter was short, general, and barren of information. It stated facts so far as it went, threw no blame upon any body, and commended the bravery of the officers in general, and of Sir Robert Harland and Sir Hugh Palliser in particular. But this approbation is to be applied only to the particular circumstances and immediate time of the action: the subsequent transactions of the afternoon, were in general thrown into the shade; and the causes that prevented a renewal of the engagement left in such obscurity, as has drawn no small share of censure upon Keppel himself.

The French fleet returned to Brest considerably damaged in their hulls, but glorying in an action, wherein they had engaged an equal number of British ships without the loss of a single vessel, as though they had gained a victory. It will be some time before they are fully repaired, through a scarcity of the necessary means.

The Americans have many friends in Holland, who will be ready to assist them when an opportunity offers; but not a-la-mode de Paris. They have not the same inducements with the French to venture on a war with Britain, in favor of the independence of your United States. Dutch policy will keep them from it, that they may enjoy the sweets of a neutrality while others are fighting. They may supply you with a loan; but they will not draw the sword in your behalf. Nothing will bring them to this unless Britain should add to their long catalogue of political errors, that of compelling them to it.

LETTER XIII.

Roxbury, Nov. 12, 1778.

Lieutenant colonel Ethen Allen was at length exchanged; and congress granted him a brevet commission of colonel, [May 14.] in reward of his fortitude and zeal in the cause of his country.

General Sullivan being sent to command at Providence, gen. Pigot who was at Newport, inferred that there was a design of attacking Rhode-Island whenever an opportunity offered: the latter therefore concluded upon an expedition that might delay or frustrate the event. Lieutenant col. Campbell, with about 500 British and Hessians was sent off in the night of the 24th, passed up the river, and landed from the ships, tenders, and boats before day, between Warren and Poppasquash-point. At day-light [May 25.] they marched in two bodies, one for Warren, and the other for the head of Kickemut-river, where they destroyed about seventy flat-bottomed boats, and set fire to one of the state gallies, which was extinguished without doing much injury. They burnt also a quantity of pitch, tar, plank, &c.—They then fired the meeting-house at Warren, and several dwelling houses; and retreated toward Bristol, where their ships and boats had fallen down to receive them. In Bristol they burnt two and twenty houses, and through mistake, the church instead of the meeting-house. The destruction of houses and places of worship, was afterward attributed chiefly to the licentiousness of the soldiers, who treated both friends and foes with cruelty, plundering houses and robbing women of their shoe-buckles, gold rings and handkerchiefs. They carried off with them a state galley. A few days after, a party of 150 men were sent from Newport, to burn the saw-mills and contiguous houses at Tiverton. They fired an old mill and old house near the place of landing; and then proceeded for the town, to execute the business they were sent upon; but the bridge leading to it being defended by five and twenty men, they could not cross, though they attempted it repeatedly. The advancing season will close these small excursions, by bringing forward

more capital operations; and for the counteracting of which the Americans must depend much upon supplies from France.—This reminds me, that on the 28th, a French 50 gun ship, with 350 men, a brig and a schooner, bringing arms and dry goods, arrived in James River, Virginia, from Rochford. Congress the next day, to commemorate the agreeable event which has taken place between France and the United States, resolved that a new continental frigate, built in the Massachusetts, and lately launched, should be called the *Alliance*. Within three weeks after, the command of her was bestowed upon captain Peter Landais.

In the beginning of June the Trident arrived in the Delaware, with the earl of Carlisle, Mr. Eden and governor Johnstone, three of the commissioners for restoring peace between Great-Britain and America. On the 9th Sir Henry Clinton informed gen. Washington of their being at Philadelphia, and requested a passport for doctor Ferguson, their secretary, with a letter from them to congress. The general declined granting a passport, which was unanimously approved by congress. The refusal made it necessary to forward the letter, with the acts, a copy of their commission and other papers, by the common intercourse. They were received by an express from Washington on the 13th, and the letter was read till some offensive language against his most Christian majesty offered, on which the further reading of it was suspended till the 16th, when the reading of that and the other papers was finished. They were referred to a committee, who drew up a letter to be sent by the president, in answer to the letter and papers from the commissioners, which was unanimously agreed to by the delegates on the 17th, and was as follows—“I have received the letter from your excellencies on the 9th instant, with the enclosures, and laid them before congress. Nothing but an earnest desire to spare the further effusion of human blood, could have induced them to read a paper containing expressions so disrespectful to his most Christian majesty, the good and great ally of these states, or to consider propositions so derogatory to the honor of an independent nation. The acts of the British parliament, the commission from your sovereign, and your letter, suppose the people of these states to be subjects to the crown of Great-Britain, and are founded on the idea of dependence, which is utterly inadmissible. I am further directed to inform your excellencies that congress are inclined to peace, notwithstanding the unjust claims from which this war originated, and the savage manner in which it hath been conducted. They will therefore be

ready to enter upon the consideration of a treaty of peace and commerce, not inconsistent with treaties already subsisting, when the king of Great-Britain shall demonstrate a sincere disposition for that purpose. The only solid proof of this disposition will be an explicit acknowledgment of the independence of these states, or the withdrawing his fleets and armies.—I have the honor to be, your excellencies most obedient and humble servant.” Before this letter could be received by the commissioners, a movement took place at Philadelphia, which must have completely frustrated all negotiation, had the same been even in a train answering to the wishes of the British agents, for it indicated an apprehension of great danger to the royal forces should they continue in the city.”

Mr. Eden brought with him secret orders for the speedy evacuation of Philadelphia; they were so secret as not to be made known either to himself or governor Johnstone. Whether the earl of Carlisle met with the like treatment, is not yet ascertained. It has been publicly asserted, that the orders were dated exactly three weeks before the commissioners sailed from England, which carries the date back to the last of March. On their delivery, Sir Henry Clinton immediately applied himself to the putting of them into execution. By the eighteenth every thing being ready, the British army evacuated the city, at three o'clock in the morning. They proceeded to Gloucester-Point, three miles down the river, and before ten the whole had passed in safety across the Delaware, into New Jersey. At ten they began their march to Haddonfield, which they reached the same day. Your curiosity may make you desirous of knowing in what condition the British left Philadelphia. An American son of liberty, who visited it in the beginning of July, wrote to his friend—“The whole north side of the city, before you enter, is a promiscuous scene of ruin. Upon getting into the city, I was surprised to find it had suffered so little. I question whether it would have fared better, had our own troops been in possession of it, that is, as to the buildings.” The necessary preparations for its evacuation, could not be concealed from general Washington; when the appearance of their intending to march through Jersey became serious, he detached general Maxwell's brigade, in conjunction with the militia of that state, to impede the progress of the royal troops, so as to give the American army time to come up with them, and to take advantage of any favorable circumstances that might offer. Some time before, gen. Lee having been exchanged, had joined the army at Valley-forge. The evening preceding the evacuation, the principles

of the operations proper to be adopted, were taken up and fully discussed by his excellency and the general officers, when it appeared to be the common sentiment, that it would be highly criminal to hazard a general action with the enemy at present, as by it they might lose every advantage which a three years war, combined with many fortunate circumstances, had given to America. The next day his excellency, after observing, "near 11,000 men would be able to march off the ground in a condition for service," proposed in writing, a set of queries to the several general officers, in order to learn the particular opinion of each, as to "what is to be done?" which was to be returned on paper. The answers were in common the same with the prevailing sentiment of the council on the preceding day. Gen. Mifflin was not of the number consulted. He would have gloried in being present to have taken an active part upon this occasion; but by some secret manœuvres was thrown at a distance. He desired and obtained leave of congress, on the 4th of May, to join the army, and repaired to Valley-forge. Some of the general officers were disgusted at the thought of his returning to his command now the campaign was opening, to share in the honors it might yield, when he had not shared with them in the peculiar distresses of their winter-quarters. When their sentiments came to be known to certain members of congress, measures were taken to produce and perfect the following motion on June 11th, "That gen. Washington be directed to order an enquiry to be made into the conduct of major-general Mifflin, late quarter-master-general, and the other officers who acted under him in that department; and if it shall appear that the extraordinary deficiencies thereof, and the consequent distresses of the army were chargeable to the misconduct of the quarter-master-general, or any of the said officers, that a court-martial be held on the delinquents." When this enquiry was ordered to be made, he was with the army, and in a fair way of obtaining a just proportion of his countrymen's confidence. He clearly saw the meaning of the stroke; but the order made it necessary for him to obtain leave of absence for some weeks, to collect materials for his justification.

When intelligence of Sir Henry Clinton's having evacuated Philadelphia and marched to Haddonfield, reached the American head-quarters, the next measure to be taken by gen. Washington, was apparent. Gen. Greene, by his conduct and industry as quarter-master-general, had effected such a happy change in the line of his department, as enabled his excellency with great facility to move with the whole army and baggage from Valley-forge in

pursuit of the enemy. The troops proceeded to and crossed the Delaware at Corriel's ferry; when a select corps of 600 men were immediately detached under col. Morgan, to reinforce gen. Maxwell. The slow advance of Sir Henry, led his excellency to suspect that he had a design of bringing on a general action, could he draw the Americans into the lower country. This consideration, and a desire of refreshing the troops after the fatigues they had endured from rainy and excessive hot weather, determined the American general to halt about five miles from Princeton. While there he stated to the general officers [June 24.] the following facts—"the enemy's force is between 9 and 10,000 rank and file—the American army on the ground is 10,684 rank and file, beside the advanced brigade under general Maxwell, of about 1200, and about 1200 militia," on which he proposed the question, "Will it be advisable to hazard a general action?" The answer was—"Not advisable, but a detachment of 1500 to be immediately sent to act as occasion may serve, on the enemy's left flank and rear, in conjunction with the other continental troops and militia already hanging about them, and the main body to preserve a relative position, to act as circumstances may require.—Lee, Stirling, Greene, Fayette, Steuben, Poor, Paterson, Woodward, Scott, Portail, Knox." The detachment was immediately made under general Scott. The same day Sir Henry concluding that gen. Washington, who had alway hitherto avoided a general action, would not now give into it against every dictate of policy, and that the American views were directed against his baggage, in which part he was indeed vulnerable, determined to take the right hand road leading to Sandy-Hook, instead of making for the Rariton, where he suspected general Gates with the northern army might join that under general Washington. Gates arrived at Fishkill about the middle of May, to take the command in that quarter. The troops under him were so few, that he could not answer for the defence of that pass through the highlands, with which he was entrusted; and was persuaded that if the enemy made a sudden and determined push to carry it, the militia would not come in time to save it. On the 17th of June draughts arrived, and militia were hourly expected; after mentioning this in a letter to congress, he exclaims—"Thank heaven for the precious time the enemy have so foolishly lost!" He had no idea of marching for the Rariton; but his cavalry, and a considerable body of infantry, was at this period so posted, as to give the alarm of an attack upon New-York: and he proposed moving the main body of his army to White-Plains, and taking a strong camp in that

neighbourhood, to keep up the alarm: which was highly approved of by gen. Washington, and procured him thanks. On the 25th his excellency moved his army to Kingston. Upon receiving intelligence that Sir Henry was prosecuting his route towards Monmouth court-house, he dispatched 1000 select men under brigadier gen. Wayne, and sent the Marquis de la Fayette to take the command of the whole advanced corps, with orders to seize the first fair opportunity of attacking the enemy's rear. Gen. Lee declined the command, as he was against attacking, on which it was offered to the marquis, who accepted it with pleasure. In the evening of the same day, the whole army marched from Kingston, intending to preserve a proper distance for supporting the advanced corps, and arrived at Cranberry early the next morning. The intense heat of the weather, and a storm coming on, made it impossible to resume the march that day without great injury to the troops. The advanced corps, being in consequence hereof too remote from the main body, and too far upon the right to be supported, the marquis had orders sent him to file off by his left toward English-town, which he executed early in the morning of the 27th. Sir Henry being sensible of the approach of the American army, changed the disposition of his troops, and placed in the rear what were deemed the best, consisting of all the grenadiers, light-infantry and chasseurs of the line; at the same time gen. Knyphausen was requested to take the baggage of the whole army under the charge of his division, which made the first column. Under the head of baggage was comprised, not only all the wheel carriages of every department, but also the bat-horses—a train which, as the country admitted but of one rout for carriages, extended near twelve miles. The alteration made by Sir Henry laid gen. Washington under the necessity of increasing the number of the advanced corps. His excellency embraced this opportunity of gratifying gen. Lee, with the consent of the marquis. Lee observed that his having declined the command of the advanced corps had lessened him in the opinion of officers and soldiers, wished to be appointed afresh. Washington would not consent to remove the marquis; but a reinforcement being wanted, he detached Lee with two brigades to join the marquis at English-town, and of course to take upon him the command of the whole. The main body marched the same day, and encamped within three miles of that place. Morgans corps was left hovering on Sir Henry's right flank, and the Jersey militia, amounting to about 700, under gen. Dickinson, on his left. The royal army was strongly encamped in the

neighbourhood of Monmouth court-house, where they halted till the morning of the 28th. When once arrived at the heights of Middletown, about twelve miles in advance, there would have been no possibility of attempting any thing against them with a prospect of success, the American general therefore determined to attack their rear the moment they moved from their present ground, and communicated his intention to Lee, who was ordered to make the necessary disposition, and to keep his troops in readiness for the shortest notice. The like was done with respect to the troops under his own immediate command.

[June 28.] General Knyphausen moved at day-break: Sir Henry, that he might not press upon him, did not follow till near eight o'clock, with the other division, composed of the 3d, 4th, and 5th brigades of British, two battalions of British grenadiers, the Hessian grenadiers, a battalion of light-infantry, the guards, and the 16th regiment of light-dragoons, a body of troops not easily to be equalled.

About one o'clock in the morning, gen. Lee received a letter from gen. Washington, and in pursuance of the directions it contained, wrote to gen. Dickinson to select some hundreds of his best men, and detach them as nigh to the British rear as he could. These troops were to act as a corps of observation, and to forward the earliest intelligence respecting the enemy. He also ordered col. Morgan to advance with the men under his command so near as to attack them on their first movement: but it was left to him how to act, only he was to take care and not expose his troops, in that manner as to disable him from acting in conjunction with Lee, should there be a necessity for it. Orders were likewise sent to Grayson, as the commanding officer of the two brigades (of Scot and Varnum) consisting of about 600 men, to get them instantly in readiness to march. By daylight they entered English-town; but it was not till between five and six that they marched from thence toward Monmouth court-house, having been detained for want of guides. Nearly at the same time, Lee gave orders to the several detachments and Maxwell's brigade, to prepare for marching immediately, leaving their packs behind under proper guard: they followed the two just mentioned brigades about seven o'clock. About five Dickinson sent an express to general Washington, informing that the front of the enemy had began their march. His excellency instantly put the army in motion, and sent orders to Lee to move on and attack them, unless there should be *very powerful reasons to the contrary*;^[87] and acquainted him that he was

marching to support him, and for doing it with the greater expedition and convenience, should make the men disencumber themselves of their packs and blankets. The exceptive clause in the orders rendered them discretionary; they manifested the earnest desire of the commander in chief, that an important blow might be struck which the enemy should feel; but Lee could not consider them as requiring him to risk a general engagement, in direct repugnancy to the spirit of those councils of war that had been repeatedly held upon the subject. While Lee was advancing with his column, he sent forward an aid to order Grayson to push on as fast as possible and attack the enemy. Before the aid overtook him, he had passed Freehold meeting-house with the two brigades. The aid delivered Lee's orders: but gave it as his opinion, that Grayson had better not move on, for that he had been informed that the main body of the enemy was near Monmouth court-house and was thought to be marching to attack them, of which circumstance he supposed Lee was ignorant. The aid on his return fell in with Dickinson, who gave him the same information, and charged him with a message to Lee. Lee conformed to it on its delivery, and gave orders for posting two militia regiments upon a hill for the securing of a particular road, and then pushed forward over a morass or ravine, by the bridge or sauseway, to a height where Dickinson was with a few militia. During his stay on this height, intelligence of the most extraordinary nature was continually brought him. Some asserted, that the enemy had moved off with precipitation, and that it was only a covering party which remained; others averred, that the main force was still on the ground, and filing off in columns to the right and left—one while the enemy's troops were turning the flanks of the American's—at another, pushing in front. These opposite reports occasioned Varnum's brigade, and part of Scott's, and col. Durgee's brigade of Lee's column, to pass and repass the bridge over the morass several times, as it was universally agreed to be by no means warrantable to risk an action, with a ravine in the rear, over which there was only one good passage. While these marchings and counter-marchings took place, the marquis de la Fayette arrived at the head of the main body of Lee's troops; when the general having reconnoitred a wood, into which it had been reported a battalion or two of the enemy had thrown themselves, and being satisfied that it was groundless, determined to march on, and ascertain with his own eyes, the number, order and disposition of the enemy, and then to conduct himself accordingly. His whole command amounted to about 4000

men, exclusive of Morgan's corps and the Jersey militia; and consisted of gen. Scott's detachment, gen. Wayne's, gen. Maxwell's brigade, gen. Varnum's, general Scott's and col. Jackson's regiment. When they had nearly passed through the woods, with which the country abounds, and were arrived at a point facing the court-house, and on the edge of a plain about three miles in length and one in breadth, they were formed, but within the skirt of the wood, that the enemy might not discover them. Here they remained while generals Lee and Wayne, and a few others, went out upon the right and rode forward to reconnoitre. From the observations Lee made, and the intelligence he obtained, he concluded that the forces he saw, were no other than the enemy's covering party, and entertained hopes of an interval between them and the main body, sufficient to afford him the opportunity of cutting them off. That he might perfect this business, Wayne was appointed to command 700 men, to whom were attached two pieces of artillery. Wayne was to attack the covering party in the rear faintly, so as to halt them, but not with vigor lest that should occasion their retreating with celerity to the main body, or drawing from it so powerful a reinforcement as to defeat the principal design.—Mean time Lee was to endeavor, by a short road leading to the left, to gain the front of the party. While marching on this road, one of gen. Washington's suite came up to procure intelligence. Lee, with a fixed firm tone of voice and countenance which suggested confidence of success, desired him to inform his excellency, that the enemy did not appear well to understand the roads; that the route he was on cut off two miles; that the rear of the enemy was composed of 1500 or 2000; that he expected to fall in with them, and had great certainty of cutting them off; and that general Wayne and col. Butler were amusing them with a few loose shot while he was performing the route. Wayne's command was advanced to the right and drawn up. The enemy appeared just in the edge of the wood upon an eminence with their light-dragoons. A few of the American light-horsemen were advanced upon the right, at a very considerable distance. One of Lee's aids-de-camp observed the queen's light-dragoons parading as though they meant to charge these American light-horsemen, who had no officer of eminence to head them: he therefore rode up and advised them to let the British dragoons come as near as could be done with safety, and then to retreat off to where gen. Wayne was, and let him receive them. The British horse pursued till they came near the general, when receiving a fire from col. Butler's regiment, posted on the skirt of a wood, they wheeled and

galloped off in great haste to their own body; as they were retiring, the two pieces of artillery fired a few shot at them. Wayne then advanced, and encouraged his men to follow on, and charge the enemy with bayonets. The aid rode back to Lee, who immediately sent him forward to Wayne, with orders that he should only feign an attack, and not push on too precipitately, as that would subvert his plan and disappoint his intentions. Lieut. col. Oswald, who commanded the artillery, supposed that the enemy were retreating, and so passed the morass in front, over a causeway, into a grain field, and began to cannonade. This happened after ten o'clock.—About the same time a part of Lee's troops issued out of a wood on the left of, and about a mile below the court-house, in small columns, and in an oblique direction with respect to the royal forces, rather toward their right, and within cannon shot.—These were drawn up ready to face the Americans, with their right near a wood, and their left on open ground, covered by their cavalry, and forming an obtuse angle with the court-house. The cavalry filed off to the left, as if with design to attempt something on the right of Lee's troops, which occasioned an order to the marquis de la Fayette to wheel his column by his right, and to gain and attack the enemy's left flank. Lee having also ordered to the right the three regiments in Wayne's detachment, Wesson's, Stewart's and Livingston's, rode toward Oswald's artillery and reconnoitred the enemy, who appeared in full view, marching back again toward the court-house, and in greater numbers than was expected, so that Lee said, he believed he was mistaken in their strength.

Let us now advert to the manœuvres of Sir Henry Clinton. Soon after he had begun with his column to follow gen. Knyphausen, reconnoitring parties of the Jersey militia appeared on his left flank. The queen's rangers fell in with, and dispersed some detachments among the woods in the same quarter. His rear-guard having descended from the heights above Freehold into the plain, some American columns appeared likewise descending into it, and began the cannonade on his rear, which was returned by a superior fire. At this instant intelligence was brought to Sir Henry, that the enemy were discovered marching in force on both his flanks. He conjectured that the object of the Americans was the baggage, which at that juncture was engaged in defiles that continued for miles. He conceived that the only means of parrying the apprehended blow, was by facing about, attacking the corps which harrassed his rear, and pressing it so hard as to oblige the detachments to return from his flanks to its assistance. Thinking that the

measure might possibly draw on a general action, he sent for a brigade of British, and the 17th light dragoons from Knyphausen's division, and at the same time gave directions that on their arrival they should take a position for covering his right flank. He then made a disposition, and advanced in a direction toward the right of the Americans.

This happened while Lee was reconnoitring. The American column to the left of him, under gen. Scott, quitted the wood, crossed a morass, and formed in the plain field, about a hundred yards in front of Maxwell, who expected an opportunity to form his brigade by Scott's moving to the right, as there was a vacancy between the latter and the troops with Lee. These were at that moment moving to the right, and every step they gained came nearer to the royal forces, who were also pushing to the right of the Americans. Lee's discernment led him immediately to send off one of his aids with orders to Scott, whom he supposed to be in the wood on the other side of the morass, to halt his column in the wood, and continue there till further orders; that there might be no possible misconception, another aid was speedily dispatched with similar orders. Before these could be delivered, Scott had mistaken the movements on his right for a retreat; and apprehended danger to his own column in case of its remaining where he was, notwithstanding his detachment and Maxwell's brigade, with the other troops to the left, made full two-thirds of Lee's whole command, and though the enemy appeared to bend their course from the left to the right of the Americans. Under such apprehension, Scott re-crossed the morass, re-entered the wood, and retreated; Maxwell and the others did the like of course. When the first aid reached that part of the wood to which he had been directed, and found that Scott had marched off the ground, he rode back; while returning he met the second aid, and acquainted him with what had taken place; upon their coming to Lee, and communicating their information, the general discovered much surprise, and expressed his disapprobation of Scott's conduct in strong terms; but immediately upon the intelligence, directed a light-horse officer to carry orders to the marquis de la Fayette to return to the court-house. A general retreat now commenced on the right, till the troops reached Freehold and a neighboring wood. When these were quitted, the British pursued as far as the village, where they halted. Mean while the Americans marched on and passed the next morass in front of Carr's house, about half a mile from the village. The retreats and advances which took place were attended with cannonadings on each side.

The halt of the British, on account of the intense heat of the weather, and their having suffered severely from fatigue, admitted of the Americans halting also for a considerable space, which heat and fatigue had rendered equally necessary for them. But upon the advance of the British from Freehold, and Lee's discerning that the position he at first meant to occupy with the design of receiving the enemy and baffling their attack, was not suitable; the whole of his command, Scott, Maxwell, and the others having now joined the corps which before formed the right, were ordered to retreat from the neighbourhood of Carr's house toward a wood and eminence behind the morass they had crossed in the morning, which had been pointed out to him as a desirable and proper spot. Before they had wholly left the ground about Carr's house, the British cavalry made a sudden and rapid charge upon some parties of the American horse, who were in the rear reconnoitring. It was expected they would have attempted a charge on the whole rear, but they did not venture upon it.

Soon after Lee with his columns issued out of the woods below the court-house into the plain, gen. Washington was advancing with the main body of the army between English-town and Freehold meeting. Expecting from the information brought him, that the van of Lee's command and the rear of the British would ere long engage, he ordered the right wing under gen. Greene to go to the right to prevent the enemy's turning his right flank: and then prepared to follow with the left wing directly in Lee's rear to support him. While this disposition was making, he learned, to his great surprise, from a countryman, that the continental troops were retreating. Though the account was confirmed by two or three persons whom he met on the road, after moving a few paces forward, yet he appeared to discredit it, having not heard any firing except a few cannon a considerable time before. He rode on, and between Freehold meeting and the morass, which he had just crossed, met the retreating troops marching toward the same, as Lee meant that they should re-pass it and then occupy the ground behind it, where he proposed making a stand against the enemy. Washington was exceedingly alarmed at finding the advanced corps falling back upon the main body, without the least notice given him. He desired one of the retreating colonels to march his men over the morass, halt them on the eminence, and refresh them. Seeing Lee at the head of the next column, he rode up to him with a degree of astonishment and indignation, and proposed certain questions that implied censure. Lee felt it, and answered with warmth and unsuitable

language. Hard and irritating words passed between them for a short space, when Washington rode on toward the rear of the retreating troops. He had not gone many yards before he met his secretary, who told him that the British army were within fifteen minutes march of that place, which was the first intelligence he received of their pushing on so briskly. He remained there till the extreme rear of the retreating troops got up, when looking about, and judging the ground to be an advantageous spot for giving the enemy the first check, he ordered col. Stewart's and lieut. col. Ramsay's battalions to form, and incline to their left, that they might be under cover of a corner of woods, and not be exposed to the enemy's cannon in front. Lee having been told by one of his aids, that Washington had taken the command, answered, "Then I have nothing further to do;" turned his horse and rode after his excellency in front. Washington on his coming up asked, "Will you command on this ground or not? If you will, I will return to the main body and have them formed upon the next height." Lee replied, "It is equal to me where I command." Washington then told him, "I expect you will take proper measures for checking the enemy." Lee said, "Your orders shall be obeyed, and I will not be the first to leave the field." Washington then rode to the main army, which was formed with the utmost expedition on the eminence with the morass in front. Immediately upon his riding off a warm cannonade commenced between the British and American artillery on the right of Stewart and Ramsay; between whom and the advanced troops of the British army a heavy fire began soon after in the skirt of the woods before mentioned. The British pressed on close, their light-horse charged upon the right of the Americans, and the latter were obliged to give way in such haste, that the British horse and infantry came out of the wood seemingly mixed with them. The action then commenced between the British and col. Livingston's regiment together with Varnum's brigade, which had been drawn up by Lee's order, and lined the fence that stretched across the open field in front of the bridge over the morass, with the view of covering the retreat of the artillery and the troops advanced with them. The artillery had timely retired to the rear of the fence, and from an eminence discharged several grapes of shot at the British, engaged with Livingston's and Varnum's troops; these were soon broken by a charge of the former and retired. The artillery were then ordered off. Prior to the commencement of the last action, Lee sent orders to col. Ogden, who had drawn up in the wood nearest the bridge, to defend that post to the last extremity, thereby to

cover the retreat of the whole over the bridge. Lee was one of the last that remained on the field, and brought off the rear of the retreating troops. Upon his addressing general Washington, after passing the morass, with —“Sir, here are my troops, how is it your pleasure that I should dispose of them?” he was ordered to arrange them in the rear of English-town.

The check the British received, gave time to make a disposition of the left wing and second line of the main army in the wood and on the eminence to which Lee had been directed and was retreating. On this were placed some batteries of cannon by lord Stirling, who commanded the left wing, which played upon the British with great effect, and seconded by parties of infantry detached to oppose them, effectually put a stop to their advance. Gen. Greene, who had early filed off to the right, on intelligence of the retreat of the advanced corps, marched up, and took a very advantageous position on the right of Stirling. The British finding themselves warmly opposed in front, attempted to turn the American left flank, but were repulsed. They also made a movement to the American right, with as little success. Greene having advanced a body of troops with artillery to a commanding piece of ground, which not only disappointed their design, but severely infiladed those in the front of the left wing. In addition to this, Wayne advanced with a body of troops, and kept up so severe and well directed a fire, that the British were soon compelled to give way. They retired and took the position about Carr’s house, which Lee had before occupied. Here their flanks were secured by thick woods and morasses, while their front could be approached only through a narrow pass. Washington however, resolved to attack them; and for that purpose ordered gen. Poor, with his own and the Carolina brigade, to move round upon their right, and gen. Woodward to their left; and the artillery to gall them in front; but they were prevented getting within reach before dark. They remained upon the ground which they had been directed to occupy, during the night, with an intention to begin the attack early the next morning, and the main body continued lying upon their arms in the field of action, to be in readiness for supporting them. During the action, Washington animated his forces by his gallant example; and by exposing his person to every danger common to the meanest soldier, taught them to hold nothing too dear for the good of their country. At night he laid down and reposed himself in his cloak, under a tree, in hope, as may be supposed, of a general action the ensuing day; for it appears from several

circumstances, that he was all along rather desirous of that event, notwithstanding the prevailing contrary opinion of the general officers whom he consulted. In the mean time Sir Henry Clinton's troops were employed in removing their wounded; and about twelve o'clock^[88] at night, they marched away in such silence, that though Poor lay extremely near them, their retreat was effected without his knowledge. They left behind them four officers and about forty privates, whose wounds were too dangerous to permit their removal.

The extreme heat of the weather, the distance Sir Henry had gained by marching in the night, and the fatigue of the Americans, made a pursuit on the part of gen. Washington impracticable and fruitless. It would only have been fatal to numbers of the men, several of whom died on the day of action through the excessive heat; for Farenheit's thermometer was at 96 degrees in the Jerseys, and is said to have been 112 at Philadelphia. It was a deep sandy country through which they marched, almost destitute of water; but had there been a plenty, many more would probably have perished by unguarded drinking to allay their thirst; some were lost in that way. Sir Henry, without having been joined by the brigade of British and the 17th light dragoons from Knyphausen's division, secured by his manœuvres the arrival of the royal army in the neighborhood of Sandy-Hook on the 30th of June, without the loss of either the covering party or the baggage; but not without a considerable diminution of troops; for by a moderate calculation, from the evacuation of Philadelphia down to that day, about eight hundred deserted, a great number of whom were Hessians. By the returns of the officers who had the charge of the burying parties, they left 245 non-commissioned and privates on the field, and four officers. There were also beside these, several fresh graves and burying holes found near the field, in which they had put their dead before they had quitted it.^[89] Fifty-nine of their soldiers perished without receiving a wound, in the same manner as several of the Americans, merely through fatigue and heat. The loss of lieutenant-col. Monckton, who was slain, was much lamented by the British. Upward of a hundred were made prisoners, including the officers and privates left upon the field. On the part of the Americans, lieutenant-colonel Bonner and major Dickinson, officers of distinguished merit, were slain; beside six others of inferior rank, and 61 non-commissioned and privates. The wounded were 24 officers and 136 non-commissioned and privates. The missing amounted to 130, but many of them, having only dropped through

fatigue, soon joined the army. General Washington commended the zeal and bravery of the officers in general, but particularized Wayne as deserving special commendation. The behavior of the troops in general, after recovering from the first surprise, occasioned by the retreat of the advanced corps, was mentioned as what could not be surpassed. The public acknowledgments of congress were very flattering to the army, and particularly so to the general and his officers. The general having declined all further pursuit, detached only some light troops to attend the motions of the royal forces, and drew off the main body of his army to the borders of the North-River.

The general, on his second interview with Lee upon the day of action, intimated by his reinstating and leaving him in the command of the advanced corps, that he meant to pass by what had happened without further notice; but the latter could not brook the expressions used by the former at their first meeting; and therefore wrote him two passionate letters, which occasioned his being put under an arrest, and brought to trial four days after the action, on the following charges, exhibited against him by his excellency—1st, For disobedience of orders, in not attacking the enemy on the 28th of June, agreeable to repeated instructions—2dly, For misbehavior before the enemy on the same day, by making an *unnecessary, disorderly and shameful retreat*—3dly, For disrespect to the commander in chief, in two letters, dated the 1st of July and the 28th of June. The letter dated 1st of July, was so dated through mistake, being written on the 28th of June. On the 12th of August, the court-martial, at which lord Stirling presided, found him guilty upon every charge, and sentenced him to be suspended from any command in the armies of the United States of North-America, for the term of twelve months. The terms of the second charge were softened down, as he was only found guilty of misbehavior before the enemy, by making an unnecessary, and in some few instances, a disorderly retreat. Many were displeased with the conduct of the court-martial; and thought he ought not to have been found guilty, except upon the last charge. They argued, “It appears from Washington’s own letter, and other circumstances, that it was submitted to Lee’s judgment whether to attack, in what manner, and when. There was manifest proof of Lee’s intending to attack, in hope of cutting off the enemy’s covering party; but he altered his opinion as to the promising prospect he had of doing it, on his coming into the plain, reconnoitring the enemy, and concluding that they were more numerous than before

supposed; and upon finding Scott had quitted the point of wood where he meant to order him to remain, he judged an immediate retreat necessary. The detachment with which Lee was, amounted to no more than one-third of his whole command; Scott's column, Maxwell's brigade, and the other troops to his left, being full two-thirds. When he began to retire, the main body was more than six miles distant, though advancing. The enemy's force was rendered the more formidable by their great superiority in cavalry, which was thought to be between four and five hundred. The ground being open, was by no means advantageous to the Americans, as the British cavalry could have turned their flank. Would then an immediate attack, under these circumstances, though it might have distressed the enemy's rear on the first onset, have been advisable, as it might probably have involved a general action before the detachment could have received support? Did not prudence dictate falling back, and taking a new position, rather than hazarding an action in the plain? If Lee's judgment determined for the affirmative, how could he be declared guilty of disobeying orders?" The circumstances already noted are in favor of the retreat's being necessary in the first instance; and when commenced, the prosecution of it was absolutely necessary till a good position could be taken for making an effectual stand against the enemy, to which position Lee was marching when met by Washington. The strenuous efforts of the British after the main army was drawn up in that position, before they retired three miles from the scene of action, tend also to justify the commencement of the retreat. No mention should have been made of its being in a few instances, unless such instances were really chargeable to Lee's misconduct; whereas of these few it is certain, that some were owing to fatigue and the enormous heat of the weather. The very sentence of the court-martial is in favor of Lee's innocence as to the two first charges; for a year's suspension from command is in no wise proportioned to his crimes, if guilty. Several are of opinion that he would not have been condemned on these two, had it not been for his disrespectful conduct toward Washington. On the other hand, some have surmised, that his manœuvres were owing either to treachery or want of courage; but they who have the opportunity of knowing him most, will be furtherest from such apprehensions.^[90]

No sooner had Sir Henry Clinton with the army evacuated Philadelphia, than lord Howe prepared to sail with the fleet for New-York. Repeated calms retarded his passage down the Delaware, so that he could not quit the

river till the evening of June the 28th: however he anchored off Sandy-Hook the next day, followed by the transports. The succeeding day Sir Henry arrived, and the artillery, baggage, and part of the troops were removed from the main, as the weather permitted: the rest of the army passed, on the 5th of July, over a bridge of boats across a narrow channel to Sandy-Hook. They were afterward carried up to New-York. On the 7th, lord Howe received advice that the Toulon squadron was arrived on the coast of Virginia. Count d'Estaing anchored at night on the 8th at the entrance of the Delaware, after being 87 days at sea. On that day the count wrote to congress: on the receipt of his letter, they sent word to gen. Washington, that it was their desire he would co-operate with the count, in the execution of such offensive operations as they should mutually approve. The same day the congress resolved that a suitable house should be provided for Monsieur Gerard and chose a committee of five to wait on him upon his arrival, and conduct him to his lodgings. The next morning d'Estaing weighed and sailed toward the Hook, and in the evening of the 11th anchored without it. Had not bad weather and unexpected impediments prevented, the count must have surprised Howe's fleet in the Delaware, as the latter would not have had time to escape after being apprized of his danger.—The destruction of the fleet must have been the consequence of such surprisal; and that must have occasioned the inevitable loss of the royal army, which would have been so enclosed by the French squadron on the one side, and the American forces on the other, that the Saratoga catastrophe must have been repeated. This fatal stroke would have been of an amount and magnitude (with respect to both the marine and land service, and the consequences hanging upon it) not easily to be conceived. The prevention of it, by the various hindrances that d'Estaing met with on his voyage, ought to be considered by Great-Britain as a signally providential deliverance.

Lord Howe's fleet consisted only of six 64 gun ships, three of 50, and two of 40, with some frigates and sloops. Count d'Estaing had twelve ships of the line, several of which were of great force and weight of metal, one carrying 90, another 80, and six 74 guns each; he had beside present with him three of the four stout large frigates that had attended him on his voyage. He anchored on the Jersey side, about four miles without the Hook; and American pilots of the first abilities, provided for the purpose, went on board the fleet: among them were persons whose circumstances placed

them above the rank of common pilots. Lord Howe had the advantage of possessing the harbor formed by Sandy-Hook, the entrance of which is covered by a bar, and from whence the inlet passes to New-York. As it could no be known whether the French would not attempt passing in force over the bar, it was necessary that the British should be prepared to oppose them. On this occasion a spirit displayed itself not only in the fleet and army, but through every order and denomination of seamen, that is not often equalled. The crews of the transports hastened with eagerness to the fleet, that it might be completely manned; masters and mates solicited employment, and took their stations at the guns with the common sailors, the light-infantry, granadiers, and even wounded officers so contended to serve as marines on board the men of war, that the point of honor was obliged to be decided by lot. In a word, the patriotism, zeal, bravery and magnanimity which appeared at this juncture, was a credit even to Great-Britain. It must however be acknowledged, that the popularity of lord Howe, and the confidence founded on his abilities, contributed not a little to these exertions. But the American pilots declaring it impossible to carry the large ships of d'Estaing's squadron over the bar into the Hook, on account of their draught of water, and gen. Washington pressing him to sail to Newport, he left the Hook after eleven days tarriance, [July 22.] and in a few hours was out of sight. Nothing could be more providential. While he remained, about twenty sail of vessels bound to New-York fell into his possession: they were chiefly prizes taken from the Americans; but had he stayed a few days longer admiral Byron's fleet must have fallen a defenceless pray into his hands. That squadron had met with unusual bad weather and being separated in different storms, and lingering through a tedious passage, arrived, scattered, broken, sickly, dismasted, or otherwise damaged, in various degrees of distress, upon different and remote parts of the American coast. Between the departure of d'Estaing and the thirtieth of July, the Renown of 50 guns from the West-Indies, the Reasonable and Centurion of 64 and 50 from Hallifax, and the Cornwall of 74 guns, all arrived singly at Sandy-Hook. By his speedy departure a number of provision ships from Cork escaped also, together with their convoy.—They went up the Delaware within fifty miles of Philadelphia after lord Howe had quitted the river, not having obtained any information of what had happened. The British ministry had neglected countermanding their destination, though orders for the evacuation of Philadelphia had been sent

off so early as to have admitted of their receiving fresh directions where to have steered, before sailing. Great rejoicings were made at New-York upon their safe arrival, especially as provisions were much wanted by both the fleet and army.

As the bar prevented all attempts on the part of d'Estaing against Howe's fleet within the Hook, a plan was concerted for attacking Rhode-Island; and gen. Sullivan, who commanded at Providence, was employed in assembling an additional body of New-England militia. Such was the eagerness of people to cooperate with their new allies, and their confidence of succeeding and reaping laurels, that some thousands of volunteers, gentlemen and others from Boston, Salem, Newbury-Port, Portsmouth, &c. engaged in the service. When d'Estaing was arrived off point Judith on the 29th, the pilots who were to have facilitated his entrance into Newport, were wanting, which occasioned a delay. But on the morning of August the 5th, his operations commenced, when the British set fire to the Orpheus, Lark, Juno and Cerbarus frigates and several other vessels at the appearance of two of his fleet standing in near Prudence island to attack them. The Flora and Falcon were sunk afterward. The next day the American troops marched from Providence to Tiverton under the command of general Greene, who had been dispatched by gen. Washington from the main army to assist in the expedition. His excellency also sent on the marquis de la Fayette at the head of two thousand troops, who by a rapid march joined the militia in season. Gen. Sullivan's first letter to the count informed him, that he was not ready to act, and desired that the attack might be suspended. It was agreed between them that they should land their forces at Portsmouth on the tenth in the morning. On the eighth the French fleet went up the middle passage leading into Newport harbour, when the British batteries began a severe cannonade, which was returned with great warmth.

The royal troops on the island, having been just reinforced with five battalions, were about 6000 under the command of Sir Robert Pigot, who took every possible means of defence. The force under general Sullivan was composed of about 10,000 men. Upon his receiving intelligence early on the ninth, that the enemy had evacuated their works on the north end of the island, and retreated within their lines, about three miles from Newport, regardless of the agreement with d'Estaing, he concluded (as it appeared to him best) to push over without loss of time. The army was immediately put in motion; about eight o'clock the right wing, under gen. Greene, began to

cross from Tiverton, and the rest of the Americans followed in order. The Massachusetts militia were attended by Mr. Hancock as their major-general. About two in the afternoon a fleet consisting of near 25 sail, was discovered standing in for Newport, which came to off Point Judith for the night. Lord Howe had determined to attempt the preservation of the island; but notwithstanding all his exertions, could not reach sight of it till the day after the French fleet had entered the harbour. Though his own exceeded the other in point of number, yet it was far inferior with respect to effective force and weight of metal. He had one ship of 74 guns—seven of 64—five of 50—six from 44 to 32—and twelve smaller vessels including fire ships and bomb ketches. When he first appeared, the garrison were much elated, but upon learning that he brought no provision, of which they were nearly exhausted, they were equally dejected. A sudden change of wind favoring the count, he stood out to sea with all his squadron, about eight o'clock the next morning. They were severely cannonaded as they passed by the batteries, but received no material damage. Howe deeming the weather gage of too great an advantage to be added to the superior force of the count, contended for that object with all the skill of an experienced seaman; while the count was as eager to preserve it. This contest prevented an engagement on that day; but the wind on the following still continuing adverse to the design of Howe, he determined to make the best of present circumstances, and wait the approach of the count. A strong gale, which increased to a violent tempest, and continued for near forty-eight hours, put by the engagement. Two of the French ships were dismasted and others much damaged. The Languedoc, of 90 guns, d'Estaing's own ship, lost her rudder and all her masts; and was met in that condition on the evening of the 13th, by the Renown, of 50 guns. Captain Dawson bore down without hoisting colours. The count ordered captain Caleb Gardner, who was on board as a pilot, to hail him, that he might know what ship it was. Dawson made no answer, but ran with a full sail and fair wind till he was under the stern of the Languedoc, then hoisted English colours, fired in great and small shot, and musketry, and sailed off. The Languedoc upon that fired two chace guns after him, when he never attempted to approach her more. The same evening the Preston, of fifty guns, commodore Hotham, fell in with the Tonant of eighty guns, with only her main mast standings, and attacked her with spirit, but night put an end to the engagement. The junction of six sail of the French squadron, prevented all further attempts upon their two

disabled ships by the Renown and Preston in the morning. On the 16th the Isis of 50 guns, capt. Raynor, was chased by the Cæsar, capt. Bouganville, a French 74 gun. Neither had suffered in the tempest. A close and desperate engagement was maintained on both sides, with the greatest obstinacy, for an hour and an half, within pistol shot. The Cæsar at length put before the wind and sailed off, the captain having lost his arm, the lieutenant his leg, a number of men being killed and wounded, and the ship considerably damaged. The Isis had suffered so in her mast and rigging that she could not attempt a pursuit.

The troops under gen. Sullivan now demand our attention. When they had landed, they possessed themselves of the heights near the north end of the island. They suffered no less than the ships by the tempest. The wind blew most violently, attended with a flood of rain through the whole day of the 12th, and increased so at night that not a marquee or tent could stand; several of the soldiers perished by the severity of the storm, many horses died, the greatest part of the ammunition delivered to the troops was damaged, and the condition of the army was deplorable. On the 14th, the storm was over, and the weather clear and fine. The garrison having enjoyed better accommodations, and greater security than the Americans, Sir Robert Pigot had a fair opportunity of attacking the latter while dispirited and worn down by the painful scenes from which they had just emerged. Gen. Greene and some British officers are of opinion, that a bold and vigorous onset under these circumstances would have been highly proper and successful. But as nothing of this kind happened the day was spent by the Americans in drying their clothes, &c. and getting in order for an advance. The next morning they marched at six o'clock, and took post about two miles from the British lines. By the 20th they had opened two four gun batteries; but their approaches were slow. About two o'clock in the afternoon the French fleet was discovered standing for Newport. At seven gen. Greene and the marquis de la Fayette went on board the Languedoc, to consult upon measures proper to be pursued for the success of the expedition in which they were engaged. They urged d'Estaing to return with his fleet into Newport harbor. He was apparently inclined to a compliance: but all the captains and principal officers on board were rather unfriendly to him. He being a land officer, they thought it an affront to their understandings, and a piece of injustice done to their merits and services, to have him appointed to the command over their heads. They therefore

crossed him in every measure, that looked like giving him any kind of reputation, in order if possible, to bring him into disgrace. His instructions from the court of France were to go to Boston, if the fleet met with any misfortune, or if there appeared a superior British fleet upon the coast. The count had met with a misfortune, the Cæsar which had steered for Boston was missing, and a superior British fleet was expected. All the officers insisted upon his following the instructions, and entered into a formal protest against prosecuting the expedition any further. About twelve o'clock at night of the 21st, Greene and the marquis returned, and made a report of what had passed. The next day letters went on board from generals Sullivan and Hancock; as also a protest dated—Camp before Newport, Aug. 22, 1778—and signed by John Sullivan, N. Greene, John Hancock, J. Glover, Ezek. Cornell, Wm. Whipple, John Tyler, Solomon Lovell, Jon. Fitconel. They protested in a solemn manner against the count's taking the fleet to Boston, as derogatory to the honor of France, contrary to the intention of his most Christian majesty and the interest of his nation, and destructive in the highest degree to the welfare of the United States of America, and highly injurious to the alliance formed between the two nations. One of the reasons assigned for the protest was, that the army and stores collected for the reduction of the island would be liable to be lost, by an opportunity's being given to the enemy to cut off the communication with the main, and totally to prevent the retreat of the army. The best apology that can be made for this protest is, that it was designedly as a finesse to induce the captains of the French fleet to consent to its returning into the harbour of Newport. But it had not this effect and met with a spirited answer from the count, who sailed on the same day for Boston. Sullivan was so chagrined at the departure of the fleet, that contrary to all policy, he gave out in general orders on the 24th, "The general cannot help lamenting the sudden and unexpected departure of the French fleet, as he finds it has a tendency to discourage some who placed great dependence upon the assistance of it, though he can by no means suppose the army or any part of it endangered by this movement. He yet hopes the event will prove America able to procure that by her own arms, which her allies refuse to assist in obtaining." Two days after, in new orders, he endeavoured to smooth off the reflection contained in it, by declaring that he meant not to insinuate that the departure of the French fleet was owing to a fixed determination not to assist in the enterprise, and would not wish to give the least colour to

ungenerous and illiberal minds to make such unfair interpretations. Count d'Estaing, when arrived in Boston port, wrote to congress on the 26th, and in his letter mentioned—the embarrassments of the king's squadron as well on account of water as provisions, how his hopes were deceived with regard to these two articles, which were growing more and more important—that it was necessary for him to confine all his attention to the preservation of the squadron, and restoring it to a condition to act—that he was no longer at liberty to depend on deceitful expectations of watering and getting provisions. He justified his repairing to Boston from the situation of his ships, the advices of a squadron from Europe, the ignorance of what was become of lord Howe's fleet, and the advantage that his lordship would have had for attacking him had he returned into Newport. He also expressed his displeasure at the protest.

It appears unreasonable to censure the count for repairing to Boston, when all his officers insisted so upon the measure; though, had he returned into Newport, the garrison would most probably have capitulated before Howe could have succoured them. Upon the fleet's sailing for Boston, it was said—"There never was a prospect so favorable, blasted by such a shameful desertion." A universal clamor prevailed against the French nation and letters were sent to Boston containing the most bitter invectives, tending to prejudice the inhabitants against d'Estaing and all his officers, to counteract which the cooler and more judicious part of the community employed their good offices. Between two and three thousand volunteers returned in the course of twenty-four hours, and others continued to go off, and even many of the militia, so that in three days Sullivan's army was greatly decreased; it was soon little more in number than that of the enemy. An attempt to carry their works by storm, would have been too hazardous, had all the volunteers and militia remained, for the bulk of the troops had never been in action: the necessity of a retreat was therefore apparent (as soon as there was a certainty of the French fleet's being gone) though in the morning of the 23d, the Americans had opened batteries consisting in the whole of 17 pieces of heavy artillery, 2 ten inch mortars and three five and a half inch howitzers. Greene was against retreating hastily, lest the appearance of timidity and inferiority should bring out the enemy upon them: but he and Glover prepared for an expeditious retreat, in case Clinton should arrive with a reinforcement, that so no damage might ensue from the delay. By the 26th all the spare heavy artillery and baggage were sent off

the island; and on the 28th at night, between nine and ten o'clock, the army began to move to the north end. It had been that day resolved in a council of war, to remove thither, fortify the camp, secure a communication with the main, and hold the ground, till it could be known whether the French fleet would soon return to their assistance. The marquis de la Fayette, by request of the general officers, set off for Boston to request their speedy return. The count could not consent to the return of the fleet, but made a spirited offer of leading the troops under his command from Boston, and of co-operating against Rhode-Island. The march of Sullivan's army was conducted with great order and regularity, and the troops arrived on their ground about three in the morning, with all the baggage, stores, &c. About seven, [Aug. 29.] they were alarmed by a brisk fire of musketry in their front, between their advanced corps of infantry and the enemy, who had pushed out after them upon discovering the retreat. Sullivan asked the opinion of the generals upon the occasion, and Greene advised to march and meet them, for he truly supposed that they were come out in small detachments which might be cut to pieces; and further apprehended that by advancing in force upon the western road, they might possibly head that part of the enemy which marched down upon the eastern, and so unexpectedly possess themselves of Newport.—Had this measure been adopted, the Americans would probably have gained very great advantages, as the whole of the enemy's force on the western road consisted only of the Hessian chasseurs and the Anspach regiments of Voit and Seaboth under gen. Lossberg. On the east road was gen. Smith with the 22d and 43d regiments, and the flank companies of the 38th and 54th. To the latter were opposed col. Henry B. Livingston and his light troops; to the former lieut. col. Laurens with his. The enemy's superiority in numbers obliged each to give way, but a retreating fire was kept up with the greatest order. The advanced corps being reinforced, they gave the enemy a check, made a gallant resistance, and at length repulsed them. But the British commander sending reinforcements to both Lossberg and Smith, the Americans were obliged to retire nigh to the front line of the main army, which was drawn up in order of battle. The British advanced very near to the American left, but were repulsed by Glover, and retired to Quaker-hill. The royal troops soon availed themselves of two heights on Sullivan's right; where they placed several pieces of artillery, and began about nine o'clock, a severe cannonade on a redoubt, an advanced post on his right, which was returned with double force. Skirmishing continued

between the advanced parties until near ten; when two British sloops of war and other armed vessels, having gained his right flank and began a fire, their associates on land bent their force that way, and endeavored to turn Sullivans's right, under cover of the ships, and to take his advanced redoubt; which brought on a warm and brisk fire of musketry between the contending parties, that was kept up by each side's throwing in reinforcements, till the action became in some degree general, and near 1200 Americans were engaged. The last of these that were sent forward, got up just in time to prevent the success of the enemy, who were making their third effort to take the redoubt; but they were broken, and retreated to the heights in great confusion, leaving on the field many of their killed and wounded. After the retreat, the field of battle could not be approached by either party without being exposed to the cannon of the other army. The heat of the action was from two till near three o'clock in the afternoon. The firing of artillery continued through the day; the musketry, with intermission, six hours. The Americans make their loss in killed 30, in wounded 132, and in missing 44. The British account makes their killed 38, wounded 210, and missing 12. General Greene, in a letter to the commander in chief, said, "Our troops behaved with great spirit, and the brigade of militia under general Lovell advanced with great resolution and in good order, and stood the fire of the enemy with great firmness. Lieut. col. Livingston, col. Jackson, and col. H. B. Livingston, did themselves great honor in the transactions of the day; but it is not in my power to do justice to col. Laurens, who acted both the general and partizan. His command of regular troops was small, but he did every thing possible to be done by their numbers." The brigade under general Lovell belonged to the Massachusetts. Greene, who commanded in the attack, did himself the highest honor by the judgment and bravery he exhibited. He attended strictly to the action the whole time, watching the movements of the enemy, and where to throw in the necessary reinforcements. Gen. Sullivan the next morning received advice that lord Howe had again sailed; that a fleet was off Block-Island; and that d'Estaing could not come so soon as he expected; on which it was concluded to evacuate Rhode-Island. The sentries of both armies being within 400 yards of each other, the greatest attention was requisite. To cover the design of retreating, a number of tents were brought forward [Aug. 30.] and pitched in sight of the enemy, and the whole army employed in fortifying the camp. At the same time the heavy baggage and stores were

falling back and crossed through the bay. At dark the tents were struck, the light baggage and troops passed down, and by twelve o'clock the main army had crossed. It was about that time when the marquis de la Fayette arrived from Boston. He was most sensibly mortified that he was not in the action. That he might not be out of the way in case of one, he had rode from the island to Boston, near 70 miles distant, in seven hours, and returned in six and a half. He got back, time enough to bring off the pickets and other parties that covered the retreat of the army, which he did in excellent order; not a man was left behind, nor the smallest article lost. The honor arising from so good a retreat, though great, did not compensate for the sore disappointment gen. Sullivan met with when in full expectation of taking Newport. The place must have fallen had not count d'Estaing left the harbour, or had he returned after chasing lord Howe to a considerable distance. The glory of vanquishing a British squadron, and of obtaining a triumph over a first rate naval officer, and a country against which he had a personal animosity (though in prospect only) tempted him as may be thought into a situation that proved the ruin of the principal object in view when he steered from before Sandy-Hook for Newport, and agreed upon a co-operation with Sullivan's army. The fleet off Block-Island was bound for Rhode-Island, and had on board Sir Henry Clinton, with about 4000 troops. Sir Henry hoped to have effected a landing, so as to have made Sullivan's retreat very precarious, but the latter was completed the night before his arrival. [Sept. 1.] The day after, lord Howe, who had changed his course upon hearing that d'Estaing had left Rhode-Island, arrived off the entrance of Boston port in the evening. Upon observing the position of the French fleet, and deeming every attempt against them ineligible, he left the Boston coast the next morning; but this appearance in and standing up the bay to the entrance of the port, spread a prodigious alarm. Sir Henry being disappointed, returned for New-York; but off New-London left the fleet, with directions to gen. Grey to proceed to Bedford and the neighborhood, where several American privateers resorted, and a number of captured ships lay. They reached the place of destination on the fifth of September; the troops were immediately landed, and between six in the evening and twelve the following day, destroyed about 70 sail of shipping, beside a number of small craft. They also burnt the magazine, wharfs, stores, ware-houses, vessels on the stocks, all the dwelling-houses at M'Pherson's wharf, and the principal part of the houses at the head of the river, together with the mills

and some houses on the east side of the river. Bedford, or as it is frequently called Dartmouth, suffered to the amount of near £.20,000 sterling in rateable property, viz. buildings. The other articles destroyed were worth a much more considerable sum. The troops proceeded from thence to Martha's Vineyard, where they destroyed a few vessels, and made a requisition of the militia arms, the public money, three hundred oxen, and 10,000 sheep, which was complied with. The last contribution was a most desirable one, and afforded a grateful repast to thousands upon being safely conveyed to New-York.

Here let me close our account of military operations, with an extract from gen. Washington's letter of August the 20th, and then attend to the negociations of the British commissioners, and the acts of congress, His excellency thus expressed himself—"It is not a little pleasing, nor less wonderful to contemplate, that after two years manœuvring and undergoing the strangest vicissitudes, that perhaps ever attended any one contest since the creation, both armies are brought back to the very point they set out from, and the offending party in the beginning, is now reduced to the use of the spade and pick-axe for defence. The hand of Providence has been so conspicuous in all this, that he must be worse than an infidel that lacks faith, and more than wicked that has not gratitude enough to acknowledge his obligations."

Governor Johnstone, meaning to avail himself of former connections, endeavored to commence or renew a private correspondence, with several members of congress, and other persons of consideration. In his letters to them, he used a freedom with the authority under which he acted, not customary with those intrusted with delegated power, and gave such a degree of approbation to the conduct of the Americans in the past resistance which they had made, as is seldom granted by negociators to their opponents. In a letter to Joseph Reed, esq. of April the 11th, he said—"The man who can be instrumental in bringing us all to act once more in harmony, and to unite together the various powers which this contest has drawn fourth, will deserve more from the king and people, from patriotism, humanity and all the tender ties that are effected by the quarrel and reconciliation, than ever was yet bestowed on human kind." On the 16th of June, he wrote to Robert Morris, esq.—"I believe the men who have conducted the affairs of America incapable of being influenced by improper motives; but in all such transactions there is risk, and I think, that

whoever ventures should be secured: at the same time, that honor and emolument should naturally follow the fortune of those who have steered the vessel in the storm, and brought her safely to port. I think Washington and the president have a right to every favor that grateful nations can bestow, if they could once more unite our interest, and spare the miseries and devastations of war.” On Sunday the 21st of June, Mr. Reed received a written message from Mrs. Ferguson, expressing a desire to see him on business which could not be committed to writing. On his attending in the evening, agreeable to her appointment, after some previous conversation, she enlarged upon the great talents and amiable qualities of governor Johnstone, and added, that in several conversations with her, he had expressed the most favorable sentiments of Mr. Reed; that it was particularly wished to engage his interest to promote the objects of the British commissioners, viz. a re-union of the two countries, if consistent with his principles and judgment; and that in such case it could not be deemed unbecoming or improper in the British government to take a favorable notice of such conduct; and that in this instance Mr. Reed might have ten thousand pounds sterling, and any office in the colonies in his majesty’s gift. Mr. Reed, finding an answer was expected, replied—“*I am not worth purchasing, but such as I am, the king of Great-Britain is not rich enough to do it.*” However right the principles might be, on which this insinuating scheme of conciliation was adopted, its effects were untoward. On the ninth of July congress ordered—“That all letters received by members of congress from any of the British commissioners or their agents, or from any subject of the king of Great-Britain, of a public nature, be laid before congress.” The above letters being communicated, and Mr. Reed making a declaration [Aug. 11.] of what has been above related, congress resolved that the same “cannot but be considered as direct attempts to corrupt and bribe the congress—that as congress feel, so they ought to demonstrate, the highest and most pointed indignation against such daring and atrocious attempts to corrupt their integrity—and that it is incompatible with the honor of congress to hold any manner of correspondence or intercourse with the said George Johnstone, esq. especially to negotiate with him upon affairs in which the cause of liberty is concerned.” Their proceedings in this business were expressed in the form of a declaration, a copy of which was ordered to be signed by the president, and sent by a flag to the commissioners at New-York. This declaration drew

out an exceeding angry and vehement one from the gentleman in question, in which the immediate operations of passion were rather too apparent. The tone of his publications accorded but badly with the high and flattering eulogiums which he had so lately bestowed on the Americans in those very letters which were the subject of the present contest. It was dated the 26th of August, and transmitted to congress, together with a declaration of the same date from lord Carlisle, Sir Henry Clinton and Mr. Eden, which went to a total and solemn disavowal, so far as related to the present subject, of their having had any knowledge, directly or indirectly, of those matters specified by congress. The declarations were accompanied by a requisition from the three last named commissioners respecting the troops lately serving under gen. Burgoyne, in which they offered to ratify the convention, and required permission for the embarkation of the troops. But congress resolved, [Sept. 4.] "That no ratification of the convention, which may be tendered in consequence of powers, which only reach that case by construction and implication, or which may subject whatever is transacted relative to it to the future approbation or disapprobation of the parliament of Great-Britain, can be accepted by congress."

When all hope of further negotiation with congress was at an end, the commissioners directed their future publications in the manner of appeals to the people at large: Whereby they seemingly realized the charge repeatedly made, that their only object was, under the insidious appearance of conciliation, to excite either a separation among the colonies, or the people to tumults against their respective governments. Congress not only permitted, but forwarded the republication of all matters upon the subject: while different American writers undertook to obviate the effect, which the publications issued by the commissioners might have upon the body of the people. The strongest argument which the Americans advanced upon the occasion was, that they had already concluded a solemn treaty with France for the establishment and on the footing of their independence, that should they break their faith with France, they would forfeit their credit with all foreign nations, be considered as faithless and infamous, and forevermore be cut off from even the hope of foreign succour; and at the same time they should be thrown on the mercy of those, who had already pursued every measure of fraud, force, cruelty and deceit, for their destruction: as neither the king, the ministers, nor the parliament of Great-Britain, would be under the necessity of ratifying any one condition which they agreed upon with

the commissioners; or, if they even found it necessary to ratify them for present purposes, it would be only to call a new parliament and then to undo the whole.

The appeals of the commissioners to the people proving ineffectual, they changed their conduct and denounced hostility and destruction, in their most terrific forms, to those who had rejected conciliation and friendship. They published [Oct. 3.] a signal valedictory manifesto and proclamation; and therein warned the people of the total and material change which was to take place in the future conduct of hostilities, should they still persevere in their obstinacy; and more especially as that was said to be founded upon the pretended alliance with France.—The Americans were virtually threatened with all the extremes of war, and to have their country desolated. Be it noted that “The concessions made in the manifesto and proclamation by the commissioners, contain a renunciation of every principle upon which the king’s ministers have pretended to justify the foundation, or the pursuit of any one object of the war. Thus the irretrievable disgrace of having waged a cruel war for unjustifiable and destructive ends, is fixed upon Britain, by a public avowal upon principle, that the terms offered by America in 1774, before the war, ought to have been accepted as foundations of peace, from their own intrinsic equity and merit, as being *more beneficial to the mother country, and more safe to all parties.*”^[91] Several packages of manifestos, which enclosed a number translated into the German language, and one printed on vellum and signed by lord Carlisle, Sir Henry Clinton, and William Eden, esq. were made up in order to be sent with flags to congress and the particular states in the union. Congress upon being informed of it, declared that the agents employed to distribute the said papers were not entitled to protection from a flag, while engaged in the prosecution of such nefarious purposes; and recommended it to the several states to secure and keep them in close custody, but at the same time to print the manifestos in the news-papers, to convince the people of the insidious designs of the commissioners. [Oct. 30.] They also published a manifesto, on their part, in which they complained bitterly of the mode practised by the British in carrying on the war, of the treatment their soldiers and sailors had met with, and of their meanly assailing the representatives of America with bribes, with deceit, and the servility of adulation. After other charges, expressed in the severest language, they concluded with solemnly declaring—“If our enemies presume to execute

their threats, or persist in their present career of barbarity, we will take such exemplary vengeance as shall deter others from a like conduct. We appeal to that God who searcheth the hearts of men, for the rectitude of our intentions; and in his holy presence declare, that as we are not moved by any light and hasty suggestions of anger or revenge, so, through every possible change of fortune, we will adhere to this our determination.”

The commission has been attended with the singular circumstance of a letter from the marquis de la Fayette, to the earl of Carlisle, challenging that nobleman, as first commissioner, to the field, there to answer in his own person, and in single combat, for some harsh reflections on the conduct of the French court and nation, which appeared in those public instruments that he and his brethren had issued in their political capacity. The inexperience and heat of youth hurried him into this impropriety against the advice of his warmest American friends, who foresaw that his challenge would of necessity be slighted.

The other proceedings of congress, which have been passed over, while the negotiation has been considered, are now to be related.

Congress being convinced by experience, that the regulation of prices was an evil, and increased instead of lessening the difficulties it was meant to cure, recommended in the beginning of June, to the several legislatures that had adopted the measure, the suspension or repeal of their laws for that purpose. The commissary general, col. Wadsworth, had no hope of feeding the army, while the regulating acts prevailed. Before the recommendation it was supplied by a violation of the acts, or by contracts made before they took place. [June 27.] Congress adjourned to meet the Thursday following at the state-house in Philadelphia. When a sufficient number of states were represented, [July 7.] they had before them a packet of letters which had passed between gen. Heath and gen. Philips, consequent to the death of lieut. Richard Brown of the 21st British regiment, belonging to the convention troops at Cambridge. He determined upon passing the lines on the 17th of June (in a chaise, between two women of easy virtue) contrary to general orders. The sentry upon stopping him was treated with contempt. The lieutenant would go on without assigning any reason, though repeatedly ordered to stop, on which the sentry shot him through the head at Prospect-hill. The language of Philip's letter upon the occasion, was so offensive, that Heath confined him to his quarters, under a guard; and

insisted on his signing a new parole. These measures produced other letters pro and con. The whole were submitted to the inspection of congress, who approved of Heath's conduct.

[July 16.] They had before them a paper from Mr. Gerard, wherein he thanked them for the quick dispatch with which they had provided for the first wants of the French squadron; it was accompanied with a memorandum of the provisions that would be further wanted. Congress meaning to procure it upon the easiest terms, appointed a committee to make the purchases; but Mr. Chase one of the Maryland delegates, improved the knowledge his seat secured him, for directing in season a private acquaintance to buy; and thereby counteracted the committee so effectually, that they could not answer the end of their appointment. It is no extravagant conjecture, that Mr. Chase shared in the profits made by his communications.

[Aug. 6.] The hon. Sieur Gerard was introduced to an audience by two members of congress appointed for the purpose, and being seated in his chair, his secretary delivered to the president a letter from his most Christian majesty, informing his *very dear great friends and allies*, that he had nominated the Sieur Gerard, to reside among them in the quality of minister plenipotentiary. The minister was after the reading of it, announced to the house whereupon he arose and addressed congress in a speech, which when finished in the French language, was delivered by his secretary to the president; to which the latter returned an answer in English. A profusion of compliments passed upon the occasion, in the hearing and presence of a numerous audience: for the vice-president, the supreme executive council, the speaker and assembly of Pennsylvania, were invited to be there; and each member of congress had the liberty of giving two tickets for the admittance of other persons. An entertainment given by congress to the Sieur Gerard, closed the novel, important and joyful transactions of the day.

[Sept. 11.] Congress resolved upon an application to Sir Henry Clinton for passports to American vessels to transport provisions and fuel to Boston for the use of the convention troops; and that if such passports were not granted within three days after application, or measures adopted by him for supplying them by the 5th of October, they would deem themselves justifiable in removing the said troops to such parts of the United States as they can be best subsisted in. The applications to Sir Henry having had no

effect, they resolved on the 16th of October, that the necessary steps should be taken for removing, with all convenient speed, the convention prisoners to Charlotte-ville, in Albemarle county, Virginia.

[Sept. 14.] Congress proceeded to the election of a minister plenipotentiary to the court of France, and the ballots being taken, Dr. Benjamin Franklin was elected. In their instructions to him on the 26th of October, he was directed to obtain, if possible, the French king's consent for expunging from the treaty of commerce the 11th and 12th articles, as inconsistent with that equality and reciprocity which form the best security for perpetuating the whole. The marquis de la Fayette had entered into arrangements with congress for co-operating with the court of France in an expedition against Canada; the plan of which the doctor was also to lay before the minister. It was proposed that 4 or 5000 French troops should be sent to assist in the business. The marquis's attachment to the American cause and thirst for glory, would naturally engage him in such a project (wherein he would be likely to hold a considerable command) with the utmost purity of intention. But how far Mr. Gerard might artfully insinuate the first idea into his mind, in expectation of introducing a larger body of French troops into Canada for distant political purposes, to which the marquis was a total stranger, cannot be easily ascertained. The doctor was to inculcate the certainty of ruining the British fishery on the banks of Newfoundland, and consequently the British marine by reducing Halifax and Quebec. The importance of such reduction to France on the one hand, and to America on the other, was stated.

The following observations on the finances of America were likewise to be communicated to the French minister.

“At the commencement of the war, it was obvious that the permanent revenues and resources of Great-Britain must eventually overbalance the sudden and impetuous sallies of men contending for freedom on the spur of the occasion, without regular discipline, determinate plan, or permanent means of defence. America having never been much taxed, nor for a continuing length of time, being without a fixed government, and contended against what was once the lawful authority, had no funds to support the war; and the contest being upon the very question of taxation, the levying of imposts, unless from the last necessity, would have been madness.—To borrow from individuals, without any visible means of repaying them,

while the loss was certain from ill success, was visionary.—A measure therefore which had been early adopted, and thence became familiar to the people, was pursued; this was the issuing of paper notes representing specie, for the redemption of which the public faith was pledged. As these were to circulate from hand to hand, there was no great individual risk unless from holding them too long, and no man refused to receive them for one commodity, while they would purchase every other.—This general credit however, did not last long. It menaced so deeply the views of our enemies, who had built their hopes on the defeat of our resources, that they and their partizans used every effort to impeach its value. Their success in one instance of this kind, alway made room for another, because he who could not relieve his wants with our paper would not part with his property to procure it.—To remedy this evil, the states as soon as formed into any shape of legislature, enacted laws to make the continental paper a lawful tender, and indeed to determine its value, fixing it by penalties at the sum of specie expressed on the face of it. These laws produced monopoly throughout.—The monopoly of commodities, the interruption of commerce, and the successes of the enemy, produced a depreciation: the laws devised to remedy this evil, either increased or were followed by an increase of it.—This demanded more plentiful emissions, thereby increasing the circulating medium to such a degree as not only to exclude all others, but furnish a superabundant quantity to increase the depreciation. The several states, instead of laying taxes to defray their own private expences, followed the example of congress, and issued notes of different denominations and forms. Therefore to counterfeit became easier, and the enemy did not neglect to avail themselves of this great, though base advantage; and hence arose a further depreciation. Calling the husbandman frequently to arms, who had indeed lost the incitements to industry from the cheapness of the necessaries of life in the beginning, compared with other articles, which took a more rapid rise, soon reduced that abundance which preceded the war; this, added to the greater consumption, together with the ravages and subsistence of the enemy, at length pointed the depreciation to the means of support. The issues from this moment became enormous and consequently increased the disease from which they arose, and which must soon have become fatal, had not the successes of America and the alliance with France kept it from sinking entirely. The certainty of its redemption being now evident, we only suffer from the quantity. This however, impairs not only

the value simply in itself, but as it calls for continued large emissions, so the certainty that every thing will be dearer than it is, renders every thing dearer than it otherwise would be; and *vice versa*. Could we possibly absorb a part of the inundation which overwhelms us, every thing would be cheaper, from the certainty that it would become cheaper. The money can be absorbed but three ways—The first is by taxation, which cannot reach the evil while the war continues; because the emissions must continue, to supply what is necessary over and above even the nominal produce of taxes; and the taxes cannot be very productive, by reason of the possession of part and ravagement of other parts of the country by the enemy; and also from the weakness of governments yet in then infancy, and not arrived to that power, method and firmness, which are the portion of elder states—The second method is by borrowing, and is not efficient, because no interest can tempt men to lend paper now, which paid together with that interest in paper a year hence, will not probably be worth half as much as the principal sum is at present; and whenever the case shall alter, then in proportion to the depreciation will be the loss of the public in what they borrow, to say nothing of the enormous burdens for which they must pay interest in specie, or what is equal to, if so much as what hath been emitted could be borrowed as to render the remainder equally valuable with silver.—The last method is by very considerable loans or subsidies in Europe, and is the only mode at once equal to the effect desired, and free from the foregoing exceptions, for if such a sum is drawn for, at the advanced exchange, as by taking up the greatest part of our paper to reduce the exchange to par, the paper then remaining will be fully appreciated, and the sum due will not nominally, and therefore in the event not actually exceed its real value.—But to this mode there are objections: 1. Subsidies by any means equal to our necessities can hardly be expected, while our allies, being engaged in a war, will want all the money they can procure: and 2. Loans cannot probably be obtained without good guarantee, or other security which America may not perhaps be able to procure or give.—But until our finances can be in a better situation, the war cannot possibly be prosecuted with vigor: and the efforts made, feeble as they must be, will be attended with an oppressive weight of expence, rendering still more weak the confederated states.—This will appear from the foregoing observations, and also from hence that the present, and in all probability the future seat of the war, (that is the middle states) is so exhausted, that unless by the strenuous voluntary exertions of

the inhabitants, no great number of men can possibly be subsisted; and such exertions cannot be expected without the temptation of money more valued than ours is at present.”

Five days before the date of the instructions above related congress, upon the application of the marquis de la Fayette, granted him leave to return to France, and directed the president to write him a letter of thanks for that disinterested zeal which led him to America, and for the services he had rendered to the United States by the exertion of his courage and abilities on many signal occasions. They also ordered Dr. Franklin to cause an elegant sword, with proper devices, to be made and presented him in the name of the United States: and crowned the whole with a letter recommending him to his most Christian majesty. The marquis took leave of congress, by letter, the 26th of October. The next day when it was received, a letter from the marquis was read, giving an account of the brave conduct of capt. Tonzar, in taking possession of a piece of artillery from the enemy, in which action he lost his right arm: whereupon congress promoted him to the rank of lieutenant colonel in the service of the United States, by brevet, and appointed him a pension for life, of thirty dollars per month.

Let us resume our narration of military operations.

So early as the 8th of February gen. Scuyler wrote to congress—“There is too much reason to believe that an expedition will be formed (by the Indians) against the western frontiers of this state (New-York) Virginia and Pennsylvania.” The next month he informed them—“a number of Mohawks, and many of the Onondagoes, Cayugas and Senecas will commence hostilities against us as soon as they can: it would be prudent therefore early to take measures to carry the war into their country; it would require no greater body of troops to destroy their towns than to protect the frontier inhabitants.” No effectual measures being taken to repress the hostile spirit of the Indians, numbers joined the tory refugees, and with these commenced their horrid depredations and hostilities upon the back settlers, being headed by col. Butler and Brandt, an half-blooded Indian, of desperate courage, ferocious and cruel beyond example. Their expeditions were carried on to great advantage, by the exact knowledge which the refugees possessed of every object of their enterprise, and the immediate intelligenc they received from their friends on the spot. The weight of their hostilities fell upon the fine, new and flourishing settlement of Wyoming

situated on the eastern branch of the Susquehannah, in a most beautiful country and delightful climate. It was settled and cultivated with great ardor by a number of people from Connecticut, which claims the territory as included in its original grant from Charles II. The settlement consisted of eight townships, each five miles square, beautifully placed on each side of the river. It had increased so by a rapid population, that they sent a thousand men to serve in the continental army. To provide against the dangers of their remote situation. Four forts were constructed to cover them from the irruptions of the Indians.—But it was their unhappiness to have a considerable mixture of royalists among them; and the two parties were actuated by sentiments of the most violent animosity which was not confined to particular families or places; but creeping within the roofs and to the hearths and floors where it was least to be expected, served equally to poison the sources of domestic security and happiness, and to cancel the laws of nature and humanity.

They had frequent and timely warnings of the danger to which they were exposed by sending their best men to so great a distance. Their quiet had been interrupted by the Indians, joined by marauding parties of their own countrymen, in the preceding year; and it was only by a vigorous opposition, in a course of successful skirmishes, that they had been driven off. Several tories, and others not before suspected, had then and since abandoned the settlement; and beside a perfect knowledge of all their particular circumstances, carried along with them such a stock of private resentment, as could not fail of directing the fury, and even giving an edge to the cruelty of their Indian and other inveterate enemies. An unusual number of strangers had come among them under various pretences, whose behaviour became so suspicious, that upon being taken up and examined, such evidence appeared against several of them, of their acting in concert with the enemy, on a scheme for the destruction of the settlements, that about twenty were sent to Connecticut, to be there imprisoned and tried for their lives, while the remainder were expelled. These measures excited the rage of the tories in general to the most extreme degree; and the threats formerly denounced against the settlers, were now renewed with aggravated vengeance.

As the time approached for the final catastrophe, the Indians practised unusual treachery. For several weeks previous to the intended attack, they repeatedly sent small parties to the settlement, charged with the strongest

professions of friendship. These parties, beside attempting to lull the people into security, answered the purposes of communicating with their friends, and of observing the present state of affairs. The settlers however, were not insensible of the danger. They had taken the alarm, and colonel Zebulon Butler had several times written letters to congress and gen. Washington, acquainting them with the danger the settlement was in, and requesting assistance; but the letters were never received, having been intercepted by the Pennsylvanian tories. A little before the main attack, some small parties made sudden eruptions, and committed several robberies and murders; and from ignorance or a contempt of all ties whatever, massacred the wife and five children of one of the persons sent for trial to Connecticut in their own cause.

At length, in the beginning of July, the enemy suddenly appeared in full force on the Susquehannah, headed by col. John Butler, a Connecticut tory, and cousin to col. Zeb. Butler, the second in command in the settlement. He was assisted by most of those leaders who had rendered themselves terrible in the present frontier war. Their force was about 1600 men, near a fourth Indians, led by their own chiefs; the others were so disguised and painted as not to be distinguished from the Indians, excepting their officers, who being dressed in regimentals, carried the appearance of regulars. One of the smaller forts, garrisoned chiefly by tories, was given up, or rather betrayed. Another was taken by storm, and all but the women and children massacred in the most inhuman manner.

[July 3.] Colonel Zeb. Butler, leaving a small number to guard Fort Wilkesborough, crossed the river with about 400 men, and marched into Kingston Fort, whither the women, children and defenceless of all sorts crowded for protection. He suffered himself to be enticed by his cousin to abandon the fortress. He agreed to march out and hold a conference with the enemy in the open field (at so great a distance from the fort as to shut out all possibility of protection from it) upon their withdrawing according to their own proposal, in order to the holding of a parly for the conclusion of a treaty. He at the same time marched out about 400 men well armed, being nearly the whole strength of the garrison, to guard his person to the place of parly, such was his distrust of the enemy's designs. On his arrival he found no body to treat with him, and yet advanced toward the foot of the mountain, where at a distance he saw a flag, the holders of which, seemingly afraid of treachery on his side, retired as he advanced; whilst he,

endeavoring to remove this pretended ill impression, pursued the flag till his party was thoroughly enclosed, when he was suddenly freed from his delusion by finding it attacked at once on every side. He and his men, notwithstanding the surprise and danger, fought with resolution and bravery, and kept up so continual and heavy a fire for three-quarters of an hour, that they seemed to gain a marked superiority. In this critical moment a soldier, through a sudden impulse of fear, or premeditated treachery, cried out aloud, "the colonel has ordered a retreat." The fate of the party was now at once determined. In the state of confusion that ensued, an unresisted slaughter commenced, while the enemy broke in on all sides without obstruction. Colonel Zeb. Butler and about seventy of his men escaped; the latter got across the river to Fort Wilkesborough, the colonel made his way to Fort Kingston, which was invested the next day [July 4.] on the land side. The enemy, to sadden the drooping spirits of the weak remaining garrison, sent in for their contemplation the bloody scalps of one hundred and ninety-six of their late friends and comrades. They kept up a continual fire upon the fort the whole day. In the evening the colonel quitted the fort and went down the river with his family. He is thought to be the only officer that escaped.

[July 5.] Colonel Nathan Dennison, who succeeded to the command, seeing the impossibility of an effectual defence, went with a flag to col. John Butler, to know what terms he would grant on a surrender; to which application Butler answered with more than savage phlegm, in two short words—*the hatchet*.—Dennison having defended the fort till most of the garrison were killed or disabled, was compelled to surrender at discretion. Some of the unhappy persons in the fort were carried away alive, but the barbarous conquerors, to save the trouble of murder in detail, shut up the rest promiscuously in the houses and barracks, which having set on fire they enjoyed the savage pleasure of beholding the whole consumed in one general blaze.

They then crossed the river to the only remaining fort, Wilkesborough, which in hopes of mercy surrendered without demanding any conditions. They found about seventy continental soldiers, who had been engaged merely for the defence of the frontiers, whom they butchered with every circumstance of horrid cruelty. The remainder of the men, with the women and children, were shut up as before in the houses, which being set on fire, they perished altogether in the flames.

A general scene of devastation was now spread through all the townships. Fire, sword, and the other different instruments of destructions alternately triumphed. The settlements of the tories alone generally escaped, and appeared as islands in the midst of the surrounding ruin. The merciless ravagers having destroyed the main objects of their cruelty, directed their animosity to every part of living nature belonging to them: shot and destroyed some of their cattle, and cut out the tongues of others, leaving them still alive to prolong their agonies.

The following are a few of the more singular circumstances of the barbarity practised in the attack upon Wyoming. Captain Bedlock, who had been taken prisoner, being stripped naked, had his body stuck full of splinters of pine-knots,^[92] and then a heap of pine-knots piled around him; the whole was then set on fire, and his two companions, captains Ranson and Durgee, thrown alive into the flames, and held down with pitch-forks. The returned Tories, who had at different times abandoned the settlement in order to join in those savage expeditions, were the most distinguished for their cruelty; in this they resembled the Tories that joined the British forces. One of these Wyoming Tories, whose mother had married a second husband, butchered with his own hands, both her, his father-in-law, his own sisters and their infant children. Another, who during his absence had sent home several threats against the life of his father, now not only realized them in person, but was himself, with his own hands, the exterminator of his whole family, mother, brothers and sisters and mingled their blood in one common carnage, with that of the ancient husband and father. The broken parts and scattered relics of families, consisting mostly of women and children, who had escaped to the woods during the different scenes of this devastation, suffered little less than their friends, who had perished in the ruin of their houses. Dispersed and wandering in the forests, as chance and fear directed, without provision or covering, they had a long tract of country to traverse, and many, without doubt, perished in the woods. But whatever distresses and cruelties have been experienced by the Wyoming settlers, the British cause, so far from being served by them, is much injured, through the bitter and lasting resentment they fix in the minds of the Americans.

Some expeditions were undertaken on the other side by the Americans. Colonel Clarke's expedition through the Indian country, which commenced last summer, is worthy of particular observation, from the successful spirit of enterprise, courage and prudence, with which it was conducted.

The col. left Virginia with a small party of between two and three hundred men. The object in view was the reduction of the French settlements planted by the Canadians on the Upper Mississippi, in the Illinois country, and at so vast a distance that they were obliged to traverse no less than about 1200 miles of an uncultivated and uninhabited wilderness. Much of the mischief which had fallen upon the southern and middle states, from the incursions of the Indians, had been attributed to the

governor of those settlements, who beside acting as an agent for the British government and paying large rewards for scalps, had been indefatigable in attempting to excite the Ohio and Mississippi Indians to undertake expeditions against the frontiers. This conduct was the motive to the present enterprise. The party, after a long course down the Monongahela, and a voyage on the Ohio, arrived at the great falls of the latter, within about 60 miles of its mouth, where they hid their boats, and bent their course by land to the northward. In this stage of the expedition, after consuming all the provision they had been able to carry on their backs, they endured a hard march of two days without any sustenance. They therefore, when arrived in this hungry state, about midnight, at the town of Kaskaskias, were unanimously determined to take it or perish in the attempt.

The town contained about 250 houses, and was sufficiently fortified to have withstood a much stronger enemy; but distance having forbidden all idea of danger among the inhabitants, of course superseded all precaution against surprise. Both town and fort were taken without noise or opposition before the people were well awake, and the inhabitants were so effectually secured that not a person escaped to alarm the neighboring settlements. The governor, Philip Rocheblave, was sent to Virginia, with all the written instructions he had received from Quebec, Detroit, and Michillimackinack, for setting on the Indians, and paying them great rewards for the scalps of the Americans.—The inhabitants were required to take an oath of allegiance to the United States, and the fort became the head-quarters of the victors.

A small detachment pushed forward from this place on horseback, and surprised, and took with as little difficulty three other French towns, lying from fifteen to about seventy miles farther up the Mississippi. The inhabitants in them and the neighbouring country made no difficulty of transferring their allegiance, which they would reasonably conclude could not be refused with safety, as they might naturally imagine the enemy was in force, being in the heart of the country: the dangerous situation of this small corps in the inner part of the Indian territory, at the back of some of the most cruel and hostile tribes, in the track of many others, and more or less in the way of all, was converted to peculiar advantage, by the extraordinary activity and unwearied spirit of the commander. He directed and timed his attacks with such judgment, and executed them with such silence and dispatch, that the Indians found their own mode of war effectually turned upon them. Surprised in their inmost retreats, and most

sequestered recesses, at those times and seasons, when they were scarcely less disposed for action, than unprepared for defence, they experienced in their own wigwams and families, that unexpected slaughter and destruction which they had so frequently carried home to others. Upon this they grew cautious and timid; and the continual danger to which their families were exposed, damped the ardor of their warriors for hostile expeditions.

Sir Henry Clinton, on the return of the troops from the Bedford expedition, determined upon another to Egg-harbor, on the Jersey coast, where the Americans had a number of privateers and prizes, and some considerable salt works. To draw away the attention of the Americans, and to procure at the same time forage and fresh provisions for the army, lord Cornwallis advanced into Jersey with a strong body of troops, while gen. Knyphausen advancing with another division of the army, took a position on the east side of the North-River, by which only the two divisions were separated; so that by means of their boats they could unite their whole force on either side of it, within twenty-four hours. Lieut. col. Baylor's regiment of hight-horse, with some militia, were detached to watch and interrupt the foragers. The colonel, it is to be feared, in order to avoid being under gen. Wayne's command, went with his men into the mouth of the British, and there lay in a state of unsoldierly security, which induced lord Cornwallis to form a plan for surprising the whole. Gen. Gray, with the light-infantry and some other troops, advanced by night on the left to surprise the enemy on that side, and a detachment was made from Knyphausen's corps on the right, which having passed the North-River, intended so to have enclosed the whole American force employed in watching them, as that few or none of them should have escaped. Some deserters from the column on their right prevented the completion of the scheme. These having at the most critical moment roused the militia, who lay at New-Taapan under gen. Wayne, afforded them the opportunity of escaping. But Grey conducted his division with such silence and order, that they not only cut off a serjeant's patrol of twelve men without noise, but completely surrounded Old-Taapan without any discovery, [September 27.] and surprised Baylor's horse asleep and naked in the barns where they lay. A severe execution took place, and numbers were dispatched with the bayonet. The men being so completely surprised and incapable of resistance, the refusal of quarters when implored, has led congress to deem the execution a massacre, after receiving the best information upon oath, that they could obtain concerning it. Of about a

dozen wounded soldiers who appeared to give evidence, three had received from nine to eleven stabs each, of bayonets, in the breast, back and trunk of the body, beside several wounds in other parts. Two others had received, the one five, and the other six stabs in the body. However the admiration of some, who reason from the nature of the weapon and the manner in which it is used, may be excited at these men being able in about three weeks time to give their testimony, as also being seemingly in a fair way of recovery; yet the positive evidence, given upon oath before gov. Livingston, whose penetration would have detected, and whose integrity would have discarded a false witness, will be credited by impartial persons. Baylor himself was wounded, but not dangerously: he lost in killed, wounded and taken, 67 privates out of 104, beside 70 horses. It is said, that Grey ordered no quarter to be given, and that the charges were drawn, and the flints taken out; but that one of the light-infantry captains ventured to disobey the order; and gave quarters to the whole fourth troop, which serves to account for the number of prisoners taken and carried to New-York, viz. 39 privates, beside a captain, two subalterns, a volunteer, and the surgeon's mate.

Captain Ferguson of the 70th regiment, with about 300 land forces, were detached on the expedition to Little Egg-harbour, under a proper convoy. They arrived off the bar on the evening of the 5th of October. The Americans had obtained some intelligence of the design and had suddenly sent out to sea, such of their privateers as were in any degree of readiness, to escape the impending danger. The larger of the remaining vessels, chiefly prizes, were hauled up the river to Chesnut-neck, about twenty miles from its mouth. The smaller privateers and craft of different sizes, were carried still further up into the country. The detachment proceeded to Chesnut-neck, burnt the vessels found there, destroyed the settlements, store-houses, and works of every sort, to prevent all privateers being fitted out from thence for the future. On their return, they made excursions into the neighboring country, destroyed some considerable salt-works, as well as the houses and settlements of several persons who had taken a conspicuously active part on the side of America, or had been concerned in the fitting out of privateers.

When the troops had rejoined the squadron, a French captain, with some privates, who had deserted from count Pulaski's legion, gave such an account of the careless manner in which three troops of horse and as many companies of infantry were cantoned, at only a few miles distant, that the commanding officers by sea and land, concluded on an expedition to beat

up their quarters. They had the advantage of conveying the troops by water to within a small distance of their destination; the deserters also informed them of an unguarded bridge, the possession of which would serve, in case of necessity, effectually to cover their retreat back to the vessels. Two hundred and fifty men were embarked [Oct. 15.] who after rowing ten miles, landed long before day-light within a mile of the bridge, which they secured; and leaving a guard in possession of it, the remainder pushed on and completely surprised Pulaski's light-infantry, and destroyed about fifty of them, among whom was the baron de Bose and lieutenant de la Borderie. The attack being in the night, little quarter could be given; more would probably have been granted, had not the deserters falsely reported, that Pulaski had issued public orders forbidding his corps to grant any quarter to the British troops. The slaughter would not have ended so soon, if Pulaski had not on the first alarm, hastened with his cavalry to support the infantry, which then kept a good countenance. The British not long after made a hasty retreat, and returned to their boats.

Let me pass from hence to relate a disagreeable disturbance that happened in Charleston, South-Carolina, on the night of September the 6th. By some means a quarrel commenced on shore between the American and French sailors, when the former made use of indecent, illiberal and national reflections against the latter, which provoked resentment. The parties soon proceeded to open hostilities, when the French were driven from the town, and betook themselves to their shipping, whence they fired with cannon and small arms, which was returned by the Americans from the adjoining wharfs and shore. Several lives were lost, and many were wounded. The inhabitants were much alarmed, and the militia were obliged to be under arms a great part of the night. Proper measures were afterwards taken to prevent a repetition of the like disorders; and both the president and assembly expressed their deep concern, that the slightest animosities should prevail between any citizen of America and the subjects of their illustrious and good ally.

In the evening of the 8th, there was a violent affray at Boston between certain unknown persons and a number of French. It is said, though not proved, to have been begun by seamen captured in British vessels, and some of Burgone's army, who had enlisted in privateers, just ready to sail. A body of these fellows, we have been told, demanded bread of the French bakers employed for the supplying of the count d'Estaing's fleet; and being

refused, fell upon and beat them in a most outrageous manner. Two of the count's officers, attempting to compose the fray, were wounded, the chevalier de Saint Sauveur so badly that he died on the 15th; and the next day the Massachusetts house of assembly resolved to erect a monumental stone to his memory. None of the offending persons having been discovered, notwithstanding the reward that was offered, it may be feared that Americans were concerned in the riot; while political prudence charged it upon others, that less umbrage might be taken at the event. The count was much grieved at what had happened; but had too much calmness and good sense to charge it upon the body of the inhabitants, who were no less concerned at it than himself; so that it created no dissensions between them. On the 22d, the general court received the compliments of the count and his officers; all of whom were invited to dine, three days after, at a public dinner. The fleet had been so far repaired, and so well secured by formidable works on George's-Island, in which the count had mounted near a hundred heavy cannon, that they could with the utmost propriety be absent upon the occasion. For the greater security, the general court, under an apprehension that the British fleet and army might move to the northward, with a view of destroying the count's fleet, and repossessing themselves of Boston, had resolved on the 19th to raise a third of the militia. Three days before this resolve, admiral Byron arrived at New-York from Halifax. His squadron had suffered so in their voyage from Britain, that it was a full month before he could sail again, in order to observe d'Estaing's motions. The count lay at ease and in safety; and on the 26th of October, entertained a large company of gentlemen and ladies whom he had invited to dine with him on board the Languedoc. The entertainment was highly elegant. A full length picture of gen. Washington, presented to the count by Mr. Hancock, was placed in the center of the upper side of the room, and the frame of it was covered with laurels. The count having made this public return for the personal civilities he had received from numbers secured himself from all liableness to detention by points of honor: from a threatened detention of another nature, he had been happily relieved in season. It was generally expected from the scarceness of provisions of all sorts at Boston and the neighborhood, that he would have encountered great difficulties, if not actual distress. The impracticability of victualling his fleet at that port was dreaded, even the subsisting of it was doubted.—But he was freed from these apprehensions by a singular fortune. The New-England

cruisers took such a number of provision vessels on their way from Europe to New-York, as not only supplied the wants of the French, but furnished an overplus sufficient to reduce the rates of the markets at Boston. This seasonable supply occasioned great triumph among the inhabitants. The count being in hope of sailing within a few days, published a declaration to be spread among the French Canadians, and addressed them in the name of their ancient master the French king.—The design of it was to recal their affection to the ancient government and to revive all the national attachments of that people, thereby to prepare them for an invasion either from France or America, and to raise their expectations of no distant change of masters. Admiral Byron having repaired his fleet, appeared off Boston bay; but had not cruised there long before he was overtaken by a violent storm, in which the ships again suffered so much, that they were glad to get into shelter at Rhode-Island. The Somerset of 64 guns not being able to clear Cape Cod, run ashore and fell into the hands of the Bay-men, who saved her guns and many valuable articles. When the storm ended, the wind settled in the north-west, and blew fair for carrying the French fleet to the West-Indies. Count d’Estaing seized the opportunity, and sailed from Boston [Nov. 3.] with his ships thoroughly repaired, clean, and well victualled, and with his foces in full health and vigor.

The behaviour of the French officers and sailors, the whole time that their fleet lay in port, was remarkably good, far beyond any thing of the kind ever before, when several men of war were present. The count made a point of always lying on board at night. The officers conducted with the greatest regularity and decorum; but noticed a certain coolness in the gentlemen and ladies toward them, which was imputed to the want of so cordial an affection for France as what they had once entertained for Great-Britain, and had not wholly laid aside; but it was greatly owing to the unsuccessful expedition against Rhode-Island, and to what had been related concerning them respecting that affair. The common sailors were peaceably inclined; and engaged in no quarrels excepting what has been related, and one at night of October the 5th, in no wise material; and in neither of these do they appear to have been the aggressors.—They neither abused nor injured the town’s-people; nor made themselves a nuisance by their excesses and disorderly conduct. An opportunity at length offers for mentioning some detached articles.

The Raleigh Frigate, capt. John Barry, sailed from Boston the 25th of September, and was taken on the 29th, after bravely engaging for some time, and then being run on an island with a view to escape falling into the hands of two British men of war.

The Pigot schooner, of eight twelve-pounders and forty-five men, laying near Howland's ferry on the eastern side of Rhode-Island, a plan was laid for taking her. Major Talbot, with a number of troops, sailed on the 25th of October from Providence on board a small vessel. It was not till the 28th at night, that he ran down through Howland's ferry; when drifting after that under bare poles, for fear that the fort on Rhode-Island should fire upon him and alarm the Pigot, he passed on undiscovered; and at half past one in the morning of the 29th got sight of the schooner. When but at a small distance from her, she hailed him; and receiving no satisfactory answer, her marines fired upon him from her quarter deck. He reserved his fire till he had run his jib-boom through her fore shrouds, when he fired some cannon and threw in such a volley of musketry, loaded with bullets and buck-shot, that the men on deck immediately ran below begging for quarters, and they that were below never made their appearance on deck. The consequence was, his men ran out upon the jib-boom and boarded her, without the loss of a man. The captain of the Pigot behaved with the greatest resolution, and defended his vessel in his shirt and drawers for some time, without a single soul of his crew to assist him. Major Talbot's gunnel was eight feet lower than the nettings of the schooner. He carried her off with him, and ran to Stonnington. Congress as a reward of his merit, and for the encouragement of a spirit of enterprise, have presented him with the commission of lieutenant-colonel.

The Massachusetts general court passed an act in their first session to prevent the return to this state of certain persons therein named, and others who have left the state, or either of the United States, and joined the British. There are about 300 named in it. In case they return they are to be taken up and secured, till they can be transported to some place within the British dominions or in the possession of the British forces.—Should they return after transportation, without liberty first obtained from the general court, they are to suffer death. Among the persons thus interdicted, it is to be supposed there are many whose greatest crime is that of having left the country and preferred Britain for their place of residence, that so they might be exempted from the ravages and terrors of war.

The state of Virginia has passed an act for sequestering British property, and enabling those indebted to British subjects to pay off such debts by placing the money for the discharge of the same, in the loan-office of the commonwealth.

[Nov. 5.] General Gates arrived at Boston, having been directed forthwith to repair thither and take the command of the continental forces in the eastern district.

The present narrative of American matters shall close with part of a letter, ^[93] written from Philadelphia, the 27th of August, by a gentleman of eminence, to gov. Houston, of Georgia—"Were I to unfold to you, Sir, the scenes of venality, peculation and fraud which I have discovered, the disclosure would astonish you; nor would you, Sir, be less astonished were I, by a detail which the occasion would require, to prove to you, that he must be a pitiful rogue who, when detected or suspected, meets not with powerful advocates among those, who, in the present corrupt time, ought to exert all their powers in defence and support of these friend-plundered, much injured, and, I was going to say, sinking states. Don't apprehend, Sir, that I colour too high, or that any part of these intimations are the effect of rash judgment or despondency; I am warranted to say they are not; my opinion, my sentiments, are supported every day by the declaration of individuals; the difficulty lies in bringing men collectively to attack with vigor a proper object."

LETTER XIV.

Roxbury, April 14, 1779.

The present letter shall begin with an expedition through the remote and upper parts of Pennsylvania, on the 1st of October, under col. William Butler. It was directed not only against the Indians, but several considerable settlements belonging to the Tories, become particularly obnoxious from the violence of the past hostilities. The party, which consisted of a Pennsylvania regiment, covered by riflemen and rangers, took its departure from Schoharie, and having gained the head of the Delaware, marched down the river for two days; from whence turning off to the right, they struck across the mountains to the Susquehanna, which was the scene of action. They totally burnt and destroyed both the Indian castles and villages in that quarter and the other settlements; but the inhabitants, both Tories and Indians, escaped. The destruction was extended for several miles on both sides the Susquehanna. The difficulties, distresses and dangers which the party encountered, required no small share of that fortitude and hardness of body and mind, which can scarcely be acquired by any considerable number of men without long habitude, under certain marked circumstances of situation. They were obliged to carry six days provision on their backs; and thus loaded, continually to wade through rivers and creeks scarcely passable without any incumbrance, to men unused to such service. In these circumstances, after the toil of a hard march, they were obliged to endure chilly nights and heavy rains, without any mean for keeping even their arms dry. But these were small matters compared with the danger awaiting their return, and which they hardly escaped. This was the sudden risings of the creeks and the Susquehanna, occasioned by continual heavy rains, while they were still in the enemy's country, and with their provisions nearly expended. The last circumstance rendered their case desperate, so that though, on any other occasion, the crossing of the Susquehanna, when so high, would have been deemed impracticable, it was successfully attempted

by mounting the men on horses, which in some places were obliged to swim; and thus all the troops were safely transported, and by crossing the mountains, evaded two other dangerous places. They returned to Schoharie on the 16th, after having, with the greatest fortitude, surmounted every difficulty, and were, by order of the colonel, complimented with the firing of thirteen rounds of cannon, and a feu-de-joie.

Mr. Gouverneur Morris having acquainted congress, that he had received application from a person in New-York, to know whether he may, with safety to his person and property, continue in that city upon the evacuation thereof; and having further informed them that the said person is in a capacity to give useful intelligence, and probably will do it, if he receives assurances that it will be recommended to the state of New-York to afford him protection, they resolved, that the said G. Morris be empowered to give him such assurances, on condition that he shall give intelligence of whatever may come to his knowledge relating to the numbers, movements and designs of the enemy. Henry Laurens, esq. having filled the station of president for one year on the 31st of October, made his resignation of the presidency, lest any example taken from his continuance might hereafter become inconvenient. He was replaced by a unanimous vote.

Accounts have been received, that commodore Evans, being dispatched by adm. Montague, arrived on the 14th of September in St. Peter's road, and sent to the governor of the small islands of St. Pierre and Miquelon, acquainting him that the French had committed hostilities in America, and that therefore he demanded a surrender of the islands: which was complied with, as there was no force to make an effectual resistance. The governor and his suite, and the principle inhabitants, women and children amounting to 932, were embarked on board the vessels found at St. Pierre's, and sent to France.

The French alliance has proved the occasion of the British ministry's having ordered away a considerable part of their force from New-York. The same day that count d'Estaing sailed from Boston, [Nov. 3.] commodore Hotham with two 64 gun ships, and three of 50, beside frigates and a bomb ketch, having under convoy transports containing 5000 British troops, commanded by gen. Grant, left Sandy-Hook and steered for the West-Indies whither the count went.

The chevalier de Maduit du Plessis, lieut. col. of artillery in the continental army, having expressed an apprehension that the war is near a conclusion in this country, and a desire of returning to France to offer his service to his prince, congress ordered that a written testimonial of the high sense they entertained of his zeal, bravery and good conduct, should be given him. The committee upon the business, had resolved that a brevet commission of colonel should be granted him, which the congress negatived two days before, as it was high time to cease lavishing away promotions on foreigners. The ambition of the natives of France and of foreigners, in common, was unbounded; and the singular instances of rank which had been conferred upon them, in too many instances, occasioned general dissatisfaction and complaint. Fewer promotions in the foreign line would have been productive of more harmony among the continental officers. It is certain, that the army has a full proportion of foreign officers in their councils.

[Nov. 11.] Some hundreds of Indians, a large number of tories, and about 50 regulars, all under colonel Butler, entered Cherry-Valley within New-York state, by an old Indian path, which col. Alden, who command the American troops there stationed had neglected. The colonel was shot in attempting to reach the fort, called after him, Alden; on which the enemy commenced a heavy fire that lasted more than three hours, when they withdrew, having no further hope of carrying it. The next day they left the place after having killed, scalped and barbarously murdered 32 inhabitants, chiefly women and children, beside col. Alden and ten soldiers. They took prisoners the lieut. col., two or three other officers, 13 privates, and a number of inhabitants. The greatest inhumanities were practised on most of the dead.

[November 22.] John Roberts and Abraham Carlisle, of the quaker persuasion, were executed at Philadelphia, being convicted of high treason against the commonwealth of Pennsylvania. The unaccountable operations of the war have been the occasion of a woeful mistake in the general politics of that denomination. Encouraged by the reasonable prospect, that coercive measures properly planned and conducted would prove successful, the body of the American quakers have sided with the ministry, in hope of establishing their civil power in the state. They have disowned several worthy members for being active in the cause of their country; but not others for opposing it. Instead of maintaining a strict neutrality in the

present contest, their partiality has been such, that the British officers have extolled their alacrity as spies, guides and informers. They have suppressed letters of Dr. Forthergill upon the impropriety of their conduct, and because they were written decidedly in favor of liberty.—Let it be remembered however, that there are many deserving individuals among them, beside generals Greene and Mifflin, who by a uniform steady perseverance in measures friendly to the American cause, have justly conciliated the esteem of their countrymen.

[Nov. 27.] General Washington gave orders that no small parties should by any means be permitted to go upon Long-Island. Under pretence of procuring intelligence, they became mere plundering parties, and carried off clothes, linens, ribbons, cases of knives and forks, wine glasses, and whatever they could lay their hands upon, which they brought back and sold publicly, making at the same time a distinction in the sale between hard money and paper. They pretended that the articles were the property of tories, new-levy officers, &c. which, if true, their conduct was unpardonable, as it was not the business of their incursions. Their capacity made no discrimination between the inhabitants, many of whom, although obliged to remain on the island were well affected to the American cause.

The plan for reducing Canada was transmitted by congress to gen. Washington, with a request that he would make observations upon it. He communicated the same to them in a letter of November the 11th; which being referred to a committee, they reported on the 5th of December, that the reasons assigned by the general against the expedition to Canada appeared to be well founded, and to merit the approbation of congress. After that, a committee was appointed to confer with the commander in chief on the operations of the next campaign: he therefore repaired to Philadelphia on the 22d. After the conference the committee reported, “That the plan, proposed by congress for the emancipation of Canada, in co-operation with an armament from France, was the principal subject of the conference; that impressed with the strong sense of the injury and disgrace which must attend an infraction of the proposed stipulation on the part of these states, your committee have taken a general review of our finances, of the circumstances of the army, of the magazines, &c. &c.—That upon the most mature deliberation, your committee cannot find room for a well grounded presumption, that these states will be able to perform their part of the proposed stipulation:—That nothing less than the highest probability of

success could justify congress in making the proposition—Your committee are therefore of opinion, that the negociation in question should be deferred till circumstances shall render the co-operation of these states more certain, practicable and effectual:—That the minister of these states at the court of Versailles, the minister of France in Philadelphia, and the marquis de la Fayette, be respectively informed, that the operations of the next campaign must depend upon such a variety of contingencies, that time alone can mature and point out the plan which ought to be pursued:—That congress therefore cannot decide on the practicability of their co-operating the next campaign in an enterprise for the emancipation of Canada.” The report was accepted, and the Canada expedition laid aside after a full consideration of all circumstances, beside what appear in the report, which wrought strongly in the minds of some shrewd members of congress. Such might dread the introduction of a large body of French troops into Canada, and the putting of them into the possession of the capital of that province, attached to them by the ties of blood, habits, manners, language, religion, and former connection of government. They might argue—“France under the idea of 5000 troops, may introduce twice the number, and having entered Quebec, may declare an intention of holding Canada as a pledge and surety for the debts due from the United States. Canada would be a solid acquisition to France on all accounts; and no nation is to be trusted further than it is bound by its interest. Canada would be too great a temptation to be resisted by any power actuated by the common maxims of national policy. France with that in her possession, may have it in her power to give laws to the United States: these will have less to fear from its remaining in the hands of the British.” The committee subjoined to their report a draught of a letter to the marquis de la Fayette, which was also accepted. Gen. Washington forwarded it to Boston, [Dec. 29.] where the marquis lay waiting for the determination of congress. It was accompanied with one from the general, expressing a concern for his having been so delayed. Upon the receipt of them, the marquis embarked on board the Alliance frigate, Jan. 7, 1779.

The campaign in the northern states having yielded no advantage to the British, and the winter being the proper season for southern expeditions, Sir Henry Clinton concluded upon turning his arms against Georgia. He might propose to himself the reduction of all the southern states, and be strongly inclined to it by reason that these states produced the most valuable commodities in the European market, and carried on a considerable export

trade, which seemed little otherwise affected by the war, than as it suffered by the British cruisers: beside, their rice was devoted to the service of his enemies, while it was wanted for the support of his sovereign's fleet and army in America. A plan of operation was concerted with general Provost, who commanded in East-Florida; and it was intended, that Georgia should be invaded both on the north and south sides at the same time.

While the preparations for this conjunct expedition were carrying on, two armed bodies, consisting of regulars and refugees, made a sudden and rapid incursion into Georgia from East-Florida. One of them came in boats through the inland navigation, and the other marched over land by the way of the river Alatomaha. The first demanded the surrender of Sunbury; but on receiving from lieut. col. Mackintosh the laconic refusal—*come and take it*—they left the place. The latter pursued their march toward Savannah. Gen. Screven, with about a hundred militia repeatedly skirmished with the party in their advance through the country. In one of these engagements he received a wound from a musket ball, and fell from his horse, when several of the British came up and discharged their pieces at him. He died of his wounds much regretted for his private virtues, and public exertions in behalf of his country. The invaders pursued their march till within three miles of Ogeechee ferry, where Mr. Savage with his own slaves, had erected a breast work to prevent their passing. Col. Elbert, with about 200 continentals, took post in the works, and prepared to dispute the passage of the river. These obstacles, together with information that the other party had failed in their design upon Sunbury, determined them to retreat without attempting to cross. On their return, they laid waste the country for miles, burnt St. John's church, a number of houses, and all the rice and other grain within their reach, and also carried off all the negroes, horses, cattle, and plate they could remove either by land or water. When this desolating mode of carrying on war was complained of by the American officer to the British, the latter positively disclaimed any order or even approbation of such proceedings, but mentioned that the people under the immediate command of the former had given a precedent. The party rage which wrought on each side, led both into those cruelties, at which humanity shudders.

The expedition against Georgia was committed to col. Campbell, who had been taken in Boston-bay after gen. Howe had evacuated the town. The force appointed to act under him, consisted of the 71st regiment of foot, two

battalions of Hessians, four of provincials, and a detachment of the royal artillery. The transports with the troops, amounting to full 2500, sailed from Sandy-Hook, [Nov. 27.] being escorted by a small squadron under commodore Hyde Parker. The fleet arrived at the isle of Tybee near the mouth of the Savannah: [Dec. 29.] and six days after, the troops effected a landing. From the landing-place a narrow causeway of six hundred yards in length, with a ditch on each side, led through a rice swamp. This causeway, had it been in a proper state of defence, might have effectually resisted a vast superiority of force; but the small party under capt. Smith, which was posted at it to impede the passage of the British, was too inconsiderable to check their progress. They pushed on with such vigor that the Americans were almost instantly dispersed. The continental army, on which the defence of Georgia chiefly rested, had lately returned from a fruitless summer's expedition against East-Florida, in which they had suffered so great a diminution, that joined with those present of the state militia, the whole made but about 820 men. General Robert Howe, who commanded the Americans, had taken his station on the main road between the landing-place and Savannah, with the river on his left, and a swamp in front, extended beyond his right flank. The British advanced till within a few hundred yards of the American army, when Campbell manœuvred so as to cherish an opinion that he meant to attack their left. For that purpose he ordered the first battalion of the 71st to form on the right of the road, thereby to impress a full idea of his designing to extend his front in that quarter. At the same time a considerable part of the royal army was detached to cross the swamp so high up as to get into the rear of the Americans. Chance had thrown into the hands of Campbell, a negro, who knew a private path through the swamp, by which he promised to lead the troops without observation or difficulty. At length the British commander, presuming that the detachment had got effectually round upon the rear of the American, suddenly advanced, and Howe ordered an immediate retreat. A few minutes delay would have made it impossible, and it was then only practicable in the face and under the fire of that part of the British army which had effected its passage through the swamp. A small body of about a hundred Georgia militia had been previously posted in the rear of the barracks near Savannah, which made some opposition to the British as they were issuing from the swamp, but was soon compelled to retreat, and its commander col. Walton, was wounded and taken prisoner. The Americans

retreated with precipitation and in disorder. The British pursued with spirit and rapidity. No victory was ever more complete. Thirty-eight officers, and 415 non-commissioned and privates, 48 pieces of cannon, 23 mortars, the fort with its ammunition and stores, the shipping in the river, a large quantity of provisions, with the capital of Georgia were all in the space of a few hours in the possession of the conquerors. The British pursued the Americans through the town of Savannah. In the impetuosity of the pursuit, some of the inhabitants who had not been in the action, were bayoneted in the streets several were killed or wounded in their flight, and a large number, finding their secape impracticable without swimming a deep watery swamp were obliged to sue for quarters. The Americans saved three field-pieces out of four: but many lost their arms. That part of the army which escaped retreated up the river Savannah to Zubly's ferry, and crossed over into South-Carolina.^[94]

No place in similar circumstances suffered less by depredation than Savannah did upon this occasion. A strong circumstantial testimony, that those enormities so frequently attributed to the licentiousness of the soldiers, should with much more justice be charged to the indefensible conduct of their superiors; whether by a previous relaxation of discipline, an immediate participation in the guilt, or a no less culpable sufferance of the enormity. About the time that the embarkation took place at New-York, general Prevost marched from East-Florida into the southern parts of Georgia. The royal troops, in traversing the desert that separates the one from the other, were obliged to live for several days on oysters. After encountering many difficulties, they heard of colonel Campbell's arrival and success. They at length appeared before and surrounded the town and fort of Sunbury. The garrison, consisting of about two hundred men, made a show of defence, and gave the general the trouble of opening trenches; but all hope of relief being cut off by the fall of the capital, they surrendered at discretion. The general marched to Savannah, and took the command of the combined forces from New-York and St. Augustine, and consequently of Georgia. Previous to his arrival a proclamation had been issued to encourage the inhabitants to come in and submit to the conquerors, with promises of protection, on condition that "with their arms they would support royal government." Numbers submitted, but the determined republicans fled up into the western parts of the country, or into South-Carolina.

The attention of congress and the public has been much engaged about Mr. Silas Deane, since his return from France. You will recollect what has been written relative to his recal.—Congress, in August, desired him to give, from his memory, a general account of his whole transactions in France, from the time of his first arrival, as well as a particular state of the funds of congress, and the commercial transactions in Europe, especially with Mr. Beaumarchais. They appear not to have been thoroughly satisfied; and to have had apprehensions lest there had been a misapplication of the public money. Mr. Deane seems not to have relished his situation; but to have been desirous of changing it by returning to France, or exciting a general resentment against congress. He had not yet accounted for his expenditure of public money; and had *carefully* left his papers and vouchers behind him, though he had the opportunity of d’Estaing’s fleet to procure them a safe transportation to America. On the 30th of November he addressed a letter to congress, signifying his intentions of returning to France, and pressing to have his affairs brought to some conclusion. December the 1st, congress resolved, “that after to-morrow they will meet two hours at least each evening, Saturday’s excepted, beginning at six o’clock, until the present state of their foreign affairs be fully considered.” On the 4th Mr. Deane wrote again to them, acquainting them of his having received their notification of the resolve, and expressed his thanks; and yet, on the day following, he published in the newspapers, An address to the free and virtuous citizens of America, dated November, but without any day of the month. The address threw the public into a convulsion, and made them jealous and uneasy; for it expressed a necessity of appealing to them, and communicating that information against which their representatives had shut their ears—declared, or insinuated, that their public servants, Messrs. Arthur and William Lee, were deficient in abilities, application and fidelity, and were universally disgusting to the French nation—intimated a design to lead them into a breach of their national faith and honor, solemnly pledged to their ally—reflected upon the integrity of some leading members in congress—and strongly hinted at further important information to be brought forward if there should be occasion. Mr. Deane, by publishing his address on the Saturday, secured the advantage of the Sunday for its being more universally read in the city and neighborhood, while fresh from the press, than it would otherwise have been. In the morning of the day when it appeared, and before congress (as must be supposed) were acquainted with

its contents, they assigned Monday evening for hearing him, and ordered his being notified to attend. The intervening space gave the members an opportunity of perusing it, so that when they met on Monday evening at six o'clock, they resolved, "That Silas Deane, esq. report to congress, in writing, as soon as may be, his agency of their affairs in Europe, together with any intelligence respecting their foreign affairs, which he may judge proper; that Mr. Deane be informed, that if he hath any thing to communicate to congress in the interim, of *immediate importance*, he shall be heard to-morrow evening at six o'clock." Mr. Deane attending, was called in, and the foregoing resolutions were read. Thus were the ears of congress opened to him; but their good disposition was not improved for the communication of that wondrous information which he had threatened to give in his address. The conduct of Mr. Deane, in his address to the public, was the subject of debate in congress; many members were for having no more concern with him at present, but for leaving him to the public, as he had appealed to them, till he had done with them and they with him. They judged that the honor of congress bound them to this measure; but others apprehended that discontents would arise from a supposed inattention, and were therefore inclined to a different line of conduct. This division of sentiment on what might be supposed the honor of the house, occasioned Mr. Laurens, who adhered to the former opinion, to resign the chair on the 9th of December. The next day John Jay, esq. was elected president.

Such was the clamor rapidly raised, and the torture occasioned through the United States by Mr. Deane's publication, that Mr. Payne, under the former signature of *Common Sense*, endeavored to allay them in an address to him. This led on to further publications, pro and con, in which Mr. Payne made a conspicuous figure, and had great advantage from being secretary to the committee of congress for foreign affairs. They have brought to light several important secrets, and particularly the following: The commissioners, Messrs. Franklin, Arthur Lee and Deane, in their joint letter of February 16, 1778, say, "We hear Mr. Beaumarchais has sent over a person to demand a large sum of money of you, on account of arms, ammunition, &c. We think it will be best for you to leave that matter to be settled here (in France) as there is a mixture of public and private, which you cannot so well develope." [Though Mr. Deane was privy to Mr. Francey's coming, and had even by letter recommended the business he

came upon, yet in this joint letter he appears to know no more of the matter than the other two.] In the spring of 1776, a subscription was raised in France to send a present to America of £.200,000 sterling, in money, arms and ammunition. All that the suppliers wanted to know was, through what channel it should be remitted, and Mr. Beaumarchais was fixed upon as their agent. [If this subscription had not the pecuniary support, it undoubtedly had the countenance of the crown, for the despotic police of France would otherwise have immediately crushed it.] Mr. Beaumarchais appears to have been employed by the subscribers to offer the supplies purchased by their money as a present to America, and a contract was made for the freightage of them; they were sent in the Amphitrite, Seine, and Mercury, two years ago. The duplicates of the dispatches of October 6 and 7, 1777, which should have arrived by captain Folger, but who had received blank papers in their stead, were brought over with the treaty of alliance by Mr. Simeon Deane. These show, that had the despatches arrived safely, congress would have had a clue to guide them in settling with Mr. Francey, as Mr. Beaumarchais' agent, and have escaped paying for the present. Beside the general information communicated by the three commissioners in their joint letter of October the 7th, Mr. Arthur Lee, in his single one of the preceding day, gave a circumstantial account in what manner the present was first offered, and declared—"That for the money and military stores already given, no remittance will ever be required." The duplicates arrived a month too late, congress having on the 8th of April settled the business on which Mr. Francey was sent. While the packets for congress and colonel R. H. Lee, containing the before mentioned two letters, were filled up with blank white paper, a large handsome packet, directed to Mr. Hancock, president when the dispatches were written, beside one to Mr. Robert Morris, and another to Mr. Silas Deane's brother Barnaby, came in perfect safety by captain Folger.

Many are now very suspicious that the parties who possessed themselves of the missing dispatches, had a knowledge of their contents; and that Mr. Deane is capable of informing the public who they were, and what advantages they were to enjoy from Mr. Francey's success through the loss of the dispatches and the non-arrival of the duplicates in season. The public at large and their representatives in congress, were much divided by the publications relating to Mr. Deane. The army in general sided with him. Their attachment was increased by his declaring—"I am fully confident that

every intrigue and cabal formed against our illustrious commander in chief, will prove as ineffectual as those against Dr. Franklin.” This declaration brought forward to public view, part of Mr. Deane’s letter to the foreign committee, dated Paris, December 6, 1776—“I submit the thought to you, whether if you could engage a great general of the highest character in Europe, such for instance, as prince Ferdinand or M(arshal) B(roglio) or others of equal rank, to take the lead of your armies, such a step would not be politic, as it would give a character and credit to your military, and strike perhaps a greater terror in your enemies. I only suggest the thoughts, and leave you to confer with baron (Kalbe) on the subject at large.

[Jan. 5.] Mr. Gerard was so alarmed at the publications of Mr. Payne, that he presented a memorial to congress upon the occasion, by which they were led into the consideration of them. Various motions were made respecting the secretary; among the rest one for hearing him the next day, which being negatived, and the negative communicated to him, he wrote on the 8th a letter to congress, by which he resigned his office of secretary to the committee of foreign affairs. Two days after the French minister sent a second memorial; and on the twelfth congress “resolved unanimously, that the president be directed to assure the said minister, that the congress do fully, in the clearest and most explicit manner, disavow the publication referred to in the said memorials; and as they are convinced by indisputable evidence, that the supplies shipped in the Amphitrite, Seine and Mercury, were not a present, and that his most Christian majesty, the great and generous ally of these United States, did not preface his alliance with any supplies whatever, sent to America, so they have not authorized the author of the said publications to make any such assertions as are contained therein, but on the contrary, do highly disapprove of the same.” They were indeed convinced by the indisputable evidence of having been charged with, and drawn in to make themselves debtors for the supplies, that they were not a present; but had the dispatches been received, or the duplicates in time, so that they could have known that they were originally intended for a present, and that no remittance for them would ever be required, that invincible evidence would have been wanting. Had their generous ally really prefaced his alliance with any supplies, it would have been undoubtedly in such a guarded way as to have admitted of a negative, whenever the same became politically necessary. For the further satisfaction of Mr. Gerard, the congress “resolved [Jan. 24.] unanimously, That as

neither France or these United States may of right, so these United States will not conclude either truce or peace with the common enemy, without the formal consent of their ally first obtained, and that any matters or things which may be insinuated or asserted to the contrary thereof, tend to the injury and dishonor of the said states.”

Instead of proceeding further in the account of congressional acts and resolves, let me here relate certain articles of intelligence that have been necessarily omitted.

The confederation has been ratified by all the states excepting Maryland. On the 5th of December congress resolved, “That the sentence of the general court-martial upon general Lee, be carried into execution.” All but New-York and the Delaware counties were represented. Four voted in the affirmative, two in the negative; the other five were not sufficiently united to vote either way. It is probable that a regard to general Washington, and an apprehension that if the sentence was not confirmed he might resign, produced a confirmation. But the genuine patriotism of the commander in chief, would have prevented his declining to serve his country while his exertions were acceptable, had the resolve been different. In that case, no censure could have fallen upon him, it would have been only declaring, that upon a close attention to the evidence contained in the trial, with a copy of which every member was furnished, congress thought the court-martial mistaken.

Wednesday, the 30th of December, was observed by order of congress as a thanksgiving-day. At this very period, the affairs of the United States were in a most distressed, ruinous and deplorable condition. Idleness, dissipation and extravagance, seemed to have laid fast hold of the generality; and speculation, speculation and an insatiable thirst for riches, to have gotten the better of every other consideration, and almost of every order of men. Party disputes and personal quarrels, were the great business of the day, while the momentous concerns of the empire, a great and accumulated debt, ruined finances, depreciated money, and a want of credit (which in the consequences is the want of every thing) were but secondary considerations, and postponed by congress from time to time, as if their affairs wore the most promising aspect. The paper was sinking in Philadelphia daily 50 per cent. and yet an assembly, a concert, a dinner or supper (which cost two or three hundred pounds) did not only take men off

from acting, but even from thinking of this business. Some of the most disinterested and patriotic Americans, felt more real distress on account of this appearance of things, than they had done at any one time since the commencement of the dispute.

[Jan. 2.] Congress resolved, that as many counterfeits had appeared in circulation, of various denominations of the emission of May 20, 1777, and April 11, 1778, the whole emissions of those two dates, should be taken out of circulation. They were to be received, within a limited term, for continental debts and taxes, and into the continental loan offices, either to loan or be exchanged, at the election of the owners. The counterfeiting of the bills, according to my information, originated with either James or John Rankin, formerly of York county, in Pennsylvania. Having quitted their farms and joined the royalists, that government confiscated their estates; one of them, to compensate for his losses, and avenge himself upon the United States, entered upon the business of counterfeiting their paper currency, which was afterward practised by others.

The convention troops were sent off in the second week of November, to Virginia; the Germans marched from Cambridge, the British from Rutland, in which town they had been quartered for some time back. But as the people could not banish from their minds the notions they had imbibed of the cruelties the American prisoners had received, and as some were afraid of being plundered and others of being killed, the troops, while upon their march, met with great incivility from all ranks and degrees of men. The militia guard which escorted general Reidesel's baggage from Hartford to the York line, broke open some of the boxes and plundered them of several dozen of wine, a great number of spermaceti candles, and five dozen packs of cards.—The general was so much displeased with their conduct, that he wrote a letter to gen. M'Dougall, who returned a very polite answer, and furnished a guard of continental troops to escort the baggage to Sussex court-house in Jerseys.

[Feb. 9.] Mr. Gerard presented memorials to congress, the subject of which they determined to take into immediate consideration, at the same time informing him, that if he wished to communicate any thing further, they would receive the same from him in a private audience. He having a wish to make further communication, attended on the 15th, when congress was resolved into a committee of the whole. The committee reported on the

23d. "That upon the consideration of all the matters referred, they are of opinion, that his Catholic majesty is disposed to enter into an alliance with the United States of America; that he hath manifested this disposition in a decisive declaration lately made to the court of Great-Britain; that in consequence of such declaration, the independence of these United States must be finally acknowledged by Great-Britain and immediately thereon a negociation for peace will be set on foot between the powers of France, Great-Britain, and these United States, under the mediation of his Catholic majesty; or that Spain will take part in the war, and his Catholic majesty will unite his force with the most Christian king and the United States:— That in order to be in readiness for a negociation, the ministers of the United States ought to be instructed by congress on the several following particulars, viz. 1. What to insist upon as the ultimatum of these states; 2. What to yield or require on terms of mutual exchange and compensation." The committee reported their opinion upon these points, which were afterward the subjects of consideration in congress.

Mr. Gerard manifested a desire that the war might not be prolonged by too high and unreasonable demands; and that the United States would bring their ultimatum as low as possible.—He strongly recommended moderation. The fate of war was uncertain; and he hinted that a decisive naval engagement in favor of the British might give a great turn to their affairs. Mr. S. Adams was for insisting upon the cession of Canada and Nova Scotia; and some were for adding Florida. Congress agreed [March 19.] 1st, What should be the bounds of the Thirteen United States in the Ultimatum: 2d, That every port and place within the United States, and every island, harbor and road to them or any of them belonging, should be absolutely evacuated by the land and sea forces of his Britannic majesty, and yielded to the powers of the state to which they respectively belong.— The fishery is a point which the New-Englanders are much set upon having secured, and which will occasion repeated debates, and be long before it is fully and finally determined.

The Parisian minister, Monsieur Vergennes, does not confine his policy to the establishment of American independence; he aims at securing to the French the Newfoundland fishery to the exclusion of the United States, and to the Spaniards the sole navigation of the Mississippi, and the lands on the eastern side of it, at the back of the present settlements of the United States, and therefore called the Western lands. You must use this information as a

clew to guide you through the labyrinth of Mr. Gerard's negotiation. Nine days after he had his audience of congress, they received the account of the king of Naples having opened his ports to the flag of the United States of America.

The stroke aimed at gen. Mifflin by the congress resolve of June 11, 1778, having answered his intention, all further proceedings ceased; on which the general, on the 17th of August, sent a letter to congress enclosing his commission, which for reasons therein set forth he begged leave to resign. That and two more letters of an earlier date were referred to a committee of three who reported on the 23d of January, 1779, that it did not appear to them any proceedings had taken place since the resolve of June the 11th, and that if the said resolution was to be carried into execution, it should be done in the usual manner, and that general Washington should have directions accordingly. Still the matter rested, so that Mifflin on the 25th of February, informed congress that he had not heard what was their pleasure as to his resignation, and requested of them afresh to accept it, which they then resolved to do. Thus he has been impelled to lay aside his military character, which for the liberties of his country he had assumed, though of the quaker denomination: but he retains his patriotism, and will continue a volunteer in the service of the public. He resumed the quartermaster-general's department in October, 1776, (then vacant through a resignation) by the desire and order of congress, and not for any private view of emoluments of his own, so that he did not consider himself as responsible for the calamitous effects of any delay, which depended not on himself or his associates, but on congress.

Let us resume our account of military operations.

The South-Carolina delegates, rather with a view to conquest, than from any special apprehension of danger to their own or neighbouring state, from the troops under Sir Henry Clinton, requested the congress to appoint gen. Lincoln (on whose character they justly reposed great confidence) to the command of all their forces to the southward; accordingly they made the appointment on the 25th September, and ordered him to repair immediately to Charleston. When he took his leave of them in October, they had in contemplation the reduction of East-Florida, and put into his hands a scheme for effecting it, with the observations of two gentlemen on the strength of St. Augustine. The first hint of a destination of British troops for

Georgia appears to have been given to the commander in chief by a letter of the ninth of October, from a confidential correspondent at New-York. It was the 4th of December before the general arrived at Charleston. The North-Carolina state on the first intelligence of an intended embarkation from New-York for the southward, generously raised about 2000 militia to serve for five months; put them under the command of generals Ashe and Rutherford, and sent them forward without delay. They came on with such dispatch, that had they not been detained ten days near Charleston to be furnished with arms, they would have been in time to have joined gen. Howe before the reduction of Savannah. South-Carolina had not a sufficient stock of public arms for the militia of both states, and suspended the distribution of them till it became certain whether South-Carolina or Georgia was the object of the British armament, which could not be determined while it was in offing. On the morning of the 26th, two regiments of 150 men each from Charleston, with the levies and militia from North-Carolina amounting to about 950, marched for Georgia; they made their first junction with the American army after their retreat over the Savannah.

January the 3d, gen. Lincoln established his head-quarters at Purysburgh, about thirty miles from the mouth of the Savannah. He met with a sore disappointment. He had been encouraged to expect a force consisting of 7000 men, beside the militia of South-Carolina and Georgia, whereas he had only 1400 in the whole. He was also lead to believe, that he should meet with great plenty of supplies and military stores, instead of which there were no field-pieces, arms, tents, camp utensils or lead, and but very little powder; in short hardly any article in the arsenal or quarter-master's store, all occasioned by the want of a military chest. A large proportion of the South-Carolina militia was draughted, and marched under gen. Richardson for head-quarters. But they behaved very badly, refused to submit to the articles of war for the government, of the continentals, and left the camp and even their posts at pleasure with impunity: as general Lincoln had no hold of them, their own state law only imposing a fine, instead of putting them upon the same footing congress had ordered for all the militia when in pay of the continent, and acting with the regular troops. When ordered on command, and implicit obedience was expected, they would at times ask—"Whether are we going? And how long are we to stay?" By the 24th of January most of them had left the camp. There defection, however was in

some measure repaired by the arrival at length of general Ashe, near headquarters, on the 31st, with about 1100 men, which addition made the number of rank and file under Lincoln 2428, beside 367 on command.

While the greatest part of the American force consisted of such ungovernable militia, gen. Prevost joined col. Campbell with about 700 regular troops from St. Augustine. With this increase of numbers he wished to establish a post in South-Carolina, and detached 200 men to take possession of Port-Royal island. Soon after they landed, gen. Moultrie, at the head of an equal number, in which there were only nine regular soldiers, attacked and drove them off. [Feb. 3.] This advantage was principally gained by two field-pieces, well served by a party of the Charleston militia artillery. The British lost almost all their officers; and several prisoners were taken. The Americans had a lieutenant and seven privates killed, and 22 wounded. This success checked the British and for the present prevented an enterprise against South-Carolina; but they extended themselves over a great part of Georgia and established two posts, one at Ebenezer, and the other at Augusta. The last place being high up in the country, was a good position for awing the western inhabitants, and a convenient rendezvous for the royalists. Here the British endeavored to strengthen themselves by the addition of South-Carolina tories. They employed emissaries to encourage them to a general insurrection, and assured them, that if they would cross the Savannah, and add their force to that of the king's army at Augusta, they would have such a decided superiority, as would effectually crush their enemies, and make a speedy return to their homes practicable on their own terms. The army consisted of about 2000 regulars and royalists under col. Campbell. Several hundreds of the Carolina tories collected, embodied under the denomination of loyalists, and marched along the western frontiers of South-Carolina. They had such numbers of the most infamous characters among them, that their general complexion was that of a plundering banditti, more solicitous for booty than the honor and interest of their royal master. As they marched, they appropriated to their own use every kind of property they could carry off. Col. Pickens, upon intelligence of their progress and rapine, collected the whig militia of the district of Ninety-six. He left a guard at the Cherokee ford to impede their crossing the Savannah, while he went upon some other service; during his absence they made good their passage. He immediately followed them with about 300 men [Feb. 14.] came up with and engaged them about three-quarters of an hour, when

they gave way and were totally routed. They had 40 killed, including their leader, colonel Boyd, who had been secretly employed by the British to collect and head them.—Pickins had nine killed, and several wounded. By this action the tories were dispersed all over the country. Some ran to North-Carolina. Many returned home, and cast themselves upon the mercy of their state government. Being the subjects of South-Carolina, they were tried in a regular manner, and 70 were condemned to die; but sentence was executed only on five principals, and the rest were pardoned.

The British having extended their posts up the river, general Lincoln fixed encampments at Black Swamp, and nearly opposite to Augusta, on the north side. With a view of strengthening the last, and improving any advantages which might offer for crossing the river, and limiting the British to the sea-coast of Georgia, gen. Ashe was ordered to the upper parts of the country. He began his march on the 10th, with 1500 North-Carolina militia and the remains of the Georgia continentals; and on the 13th in the evening, reached general Williamson's camp, opposite Augusta. That same night col. Campbell made so hasty a retreat from Augusta, that by eight the next morning he had marched 14 miles lower down. This precipitate movement was owing to some false intelligence respecting either Ashe's force, or the arrival of a large body of continentals at Charleston; which Campbell credited, and from whence he inferred the necessity of an immediate retreat, to prevent his being cut off. Lincoln finding that he had quitted Augusta, wrote to Ashe [Feb. 16.] that it was of the greatest importance, that if the enemy was out of the upper part of the country, he should follow them down as fast as possible, lest by a forced march they should join their own troops below, attempt his post, and drive him from it, before he (Ashe) could come up with their rear. Lincoln on the 22d sent him the following intimation—"I think that Briar Creek will be a good stand for you until some plan of co-operation be digested, for which purpose, as soon as you arrive there, I will meet you at the two sisters, you appointing the time." Ashe crossed the Savannah with about 1200 troops, beside 200 light-horse. On Saturday morning the 27th, the army arrived at the lower bridge on Briar Creek. The next day generals Brian and Elbert took possession of a proper spot of ground at twelve o'clock, and encamped, Ashe being gone to meet Lincoln. On March the 2d, the officer of the day reported, that reconnoitring parties of the enemy's horse and foot had been seen within their pickets the night preceding. Ashe returned the evening of the 2d to

camp. On Wednesday the 3d, nothing was in forwardness for repairing the bridge which Campbell had destroyed in his return downward, though it had been reported five days before, that the repair would take but six hours. About two in the afternoon information was given, that one of their soldiers had six balls shot through his body; little or no notice was taken of it. Within an hour after an account was brought that 500 British regulars were at the ferry. At half past four, a few of the American horse returned from skirmishing with the enemy, when orders were issued for the troops to be formed into platoons from the right, and composed into a column: it was not long before the British light-infantry appeared. Lieut. col. Prevost, after a circuitous march of about 50 miles, in which he crossed Briar-Creek 15 miles above Ashe's encampment came unexpectedly on his rear with a detachment of about 900 men, including some horse. Upon the appearance of the British light-infantry, Ashe said to Elbert who commanded the continentals—"Sir you had better advance and engage them." They did not exceed 100 rank and file but upon Elberts ordering them they formed, advanced thirty yards in front of the enemy, and commenced a very sharp fire upon them, which continued about fifteen minutes. Ashe and the North-Carolina militia remained about 100 yards in the rear entirely inactive. Instead of advancing to support the continentals, they were struck with such a panic at being so completely surprised, that they went to the right about, and fled in confusion without discharging a single muskets. The few Georgia regulars, finding themselves thus deserted, and being surrounded by a great part of the enemy, broke and endeavored also to escape. Elbert did every thing to rally them but in vain. He and the survivors of his brave corps were made prisoners. About 150 Americans were killed, and 162 were captured. None had any chance of escaping but by crossing the river, in attempting which many were drowned; of those who got over safe, a great part returned home and never more rejoined the American camp; the number that joined it, did not exceed 450 men. This event deprived gen. Lincoln of one fourth of his number, secured to the British the possession of Georgia, and opened a communication between them, the Indians, and the Tories of South and North-Carolina.

Toward the end of the last year, an American camp was formed at Danbury, the sufferings it underwent you may collect from the following passage in a letter of a field officer of Jan. 23.—We were not under cover till the beginning of the present year. It was distressing to see our officers

and men in tents in such severe cold weather. Added to which, and the former list of grievances, was the want of provisions. From six to nine days were our men frequently without bread. A revolt took place in general Huntington's brigade; four hundred men got under arms, and marched off the ground to an advantageous post, where they expected to have been joined by the men of the other two brigades; but by the alacrity of the officers and general Putnam's influence, they were dispersed.

An expedition has been agreed on against the inimical Indians of the six nations. The command of it is to be entrusted with gen. Sullivan. The plan is to divide the force into three parts. The principal, consisting of about 3000, is to go by the way of Susquehannah. Another, of about one thousand, is to enter the Indian country by the Mohawk river; and the other, of about 500, is to attack by the Ohio and Alleghany rivers.—General Washington is endeavoring, by appearances of an expedition to Canada, to induce the British governor to keep his force at home; and with a view to it, beside jealousies which have been excited on the side of lake Champlain, he is trying to create others by the way of Coos. A considerable number of Americans was employed the last year in cutting a road from thence toward Canada. Colonel Hazen is now gone with his regiment to extend the road toward the Sorel, and give the appearance of an intention to invade the province by that passage. The American army are better clad and more healthy than they have ever been since the formation of the army.

The procuring of early and good intelligence, is of the highest importance to the American commander in chief. He has therefore directed one of his confidential correspondents to reside at New-York, to mix with and put on the airs of a tory, thereby to cover his real character and avoid suspicion. He has hinted to him an intimacy with some well informed refugees. Members of congress are not trusted with the names of such correspondents, concerning whom the strictest honor and the profoundest secrecy is observed, and every precaution taken to prevent a discovery by unforeseen accidents. They are furnished with two chymical liquids, or sympathetic inks, the one for writing, and the other for rendering what is written visible; the former of that nature as not to become visible by any mean whatever, but by having the latter rubbed over it.

The king's speech on opening the session of parliament, has been circulated through the United States more than a month ago. The popular

leaders have been diverting themselves with it. They triumph at observing, that it is replete with complaints of the unexampled and unprovoked hostility of the court of France—and while the professions of neutral powers are represented as friendly, their armaments are mentioned as suspicious—and that there is a total silence with regard to the American war.

A number of royal refugees had petitioned, and been permitted by Sir Henry Clinton to embody under proper officers, and to retaliate and make reprisals upon the Americans declared to be in actual rebellion against their sovereign. A party of them, who had formerly belonged to the Massachusetts, made an attempt upon Falmouth, in Barnstable county, but were repulsed by the militia. They renewed it, but not succeeding, went off to Nantucket [April 5.] and landed 200 men, entered the town, broke open ware-houses, and carried off large quantities of oil, whalebone, molasses, sugar, coffee, and every thing that fell in their way. They also carried off two brigs, loaded for the West-Indies, two or three schooners, and a large number of boats. In a proclamation they left behind, they took notice of their having been imprisoned, compelled to abandon their dwellings, friends and connections, had their estates sequestered, and been themselves formally banished, never to return on pain of death. Thus circumstanced, they conceived themselves warranted, by the laws of God and man, to wage war against their persecutors, and to use every mean in their power to obtain compensation for their sufferings.

The news of the French king's declaration of war, published at Martinico in the middle of last August, but signed at Versailles the 28th of June, and the capture of Dominica by the French, reached the continent as early as could be expected. By the accounts that are given, the British government had been at an unusual expence in fortifying that island, and the works had been lately covered with a numerous artillery, sent from Britain for the purpose. But though there were 160 pieces of cannon and twenty mortars, the regular troops who composed the garrison, amounted only to about a hundred. Neither the importance nor the weakness of Dominica, escaped the attention of the marquis de Bouille, governor-general of the French windward islands, whose residence was at Martinico. He therefore landed on the island with about 2000 men, under cover of some frigates and privateers, about day-break of last September the 7th, and proceeded to attack the different batteries and forts by land, as his marine force did by

sea. The handful of regulars, with the militia and inhabitants in general, did all that could be expected, but defence was fruitless, so that the lieut. gov. Stuart, to save the inhabitants from plunder and ruin, entered into a capitulation, which was soon concluded. The terms were the most moderate that could be conceived; the marquis, out of his great humanity, having nearly agreed, without discussion or reserve, to every condition proposed in favor of the people, whose only change was that of sovereignty. The smallest disorder or pillage was not permitted; and the marquis, in lieu of plunder, rewarded the soldiers and volunteers with a considerable gratuity in ready money. His stay was short: he left a garrison of 1500 men behind him, who with the strength of the works, and the powerful artillery in their hands, will be able to defend Dominica effectually. We are in expectation of hearing soon of count d'Estaing's operations.

An embargo having been laid in the southern states on the exportation of grain and flour to these eastern ones, occasioned a scarcity of bread at Boston. What from drought the last summer, a blight on the rye, the neglect of tillage by the husbandman's being called off to the army, and divers other causes, the inhabitants of the farming towns could not afford a sufficient supply to the sea-ports, these have fitted out a number of cruisers, which in some instances have procured a temporary relief: but "the trade and harbours upon the Massachusetts coast have been left in such an unguarded and defenceless situation, that where the Bay-men have taken one vessel from the enemy, their small privateers out of New-York have taken ten from them."^[95] The last month the Bostonians were in great distress for want of flour; but the other day [April 12.] a cargo of it happily arrived from Baltimore. The Massachusetts house of assembly, judging it absolutely necessary that so the army might be kept together, have engaged to make good the wages of the officers and soldiers raised in this state, at the close of the contest, provided it is not done by congress.

LETTER XV.

Rotterdam, May 14, 1779.

FRIEND G.

The present letter shall begin with what was a chief subject in the former—our British admiral Keppel. When he returned to Plymouth, he experienced the benefit arising from temperate conduct. Unanimity prevailed among the officers, and every exertion was made in refitting the ships: so that he sailed on his second cruise the 24th of August, and kept the sea as long as the approaching winter would admit. The French fleet left Brest a week before; but steered to the southward, and amused themselves about Cape Finisterre; thus their own coasts and the bay were abandoned to the British, who were in vain endeavouring to obtain intelligence of them. The French commerce now became a prey to the British cruisers, in a degree which few former wars had equalled for the time, while the trade of Britain arrived in a state of security, scarcely exceeded by that of peace.

The reception which admiral Keppel met with on his return from sea, both at court and at the admiralty, equalled his most sanguine expectations. An attempt, however was made on his character from an unexpected quarter. Sir Hugh Palliser, on the 9th of December, preferred to the lords of the admiralty articles of accusation against him, or offences supposed to have been committed on the 27th of the preceding July, after having withheld them near five months. A few hours after the charges were laid, the admiralty, without further inquiry, sent him notice to prepare for his trial. Sir Hugh mentioning in the house of commons, his having demanded a court-martial on admiral Keppel had the notification to hear his conduct in so doing, and also in publishing, a month before, in the newspapers, a vindication of his own behaviour on the 27th of July, openly and without reserve condemned by every gentleman, of whatever side or party, who spoke on the occasion. The admiral's trial commenced at Portsmouth on the 7th of January, 1779.—He gave notice to the admiralty, that he might find it useful to his defence to produce his instructions. The admiralty

communicated to him his majesty's pleasure, and informed him, that they could not consent that the same should be laid before his counsel, or be produced at the court-martial. Being willing to run every hazard for the benefit of the state, he neither produced them to his counsel, nor communicated their contents. His trial was not closed till the 11th of February; when the court acquitted him of every charge in the fullest, clearest and most honorable terms; further declaring that he had behaved as became a judicious, brave and experienced officer. They marked the conduct of his accuser, in the body of the sentence, by declaring—"that the charge was malicious and ill-founded." The sentence was a matter of notoriety the next day at Westminster, when it was carried in the house of commons, with only one dissenting voice, "That the thanks of this house be given to admiral Augustus Keppel, &c. for his having gloriously upheld the honor of the British flag on the 27th and 28th of July."—The thanks of the lords in nearly the same terms, were agreed to, four days after. Public and unusual rejoicings, in various and remote parts of the kingdom, succeeded the sentence. The illuminations in London and Westminster, were such as have scarcely been exceeded upon any occasion. Sir Hugh Palliser having become the object of general odium, resigned his seat at the admiralty board, his lieutenant-generalship of the marines, and his government of Scarborough castle: he also vacated his seat in parliament, and only retained his vice-admiralship, as a qualification for his trial by a court-martial, which was ordered to be held upon him. The same began on the twelfth of April, and closed the 5th of May, the court having, *after two days deliberation*, agreed upon their sentence. They gave it as their opinion, that his conduct and behaviour, on the 27th and 28th of July, were, in many respects, highly exemplary and meritorious; at the same time they could not help thinking it was incumbent upon him to have made known to the commander in chief the disabled state of his ship the Formidable. Notwithstanding his omission in that particular, the court were of opinion, that he was not, in any other respect, chargeable with misconduct or misbehaviour on those days, and therefore acquitted him.

Lord Shuldham and commodore Rowley sailed from Spithead, last December the 25th, with their respective squadrons and a convoy of near 300 sail. His lordship returned after seeing the West-India and New-York fleets safe to the distance of 226 leagues from the Lizard; and the commodore proceeded on his voyage to reinforce admiral Byron. On the

8th of March, admiral Hughes, with six ships of the line under his command, having the East and West-India fleets under convey, sailed from St. Helen's for the East-Indies, accompanied by several other men of war, some in different services, and others to return after attending the merchantmen to a certain latitude.

The following accounts have been received from the West-Indies.

[1778.] While the marquis de Bouille was engaged in reducing Dominica, admiral Barrington, with two ships of the line and some frigates, lay at Barbadoes, waiting merely for instructions which he had been ordered to expect at that place, and which were not yet arrived. It was the French declaration of war, published at Martinico, that first informed him of hostilities. The loss of two of Sir Peter Parker's frigates, taken by the French on the coast of Hispaniola, proved also the earliest mean of conveying intelligence to that admiral, as well as to the government of Jamaica, where he was stationed, that a war had actually commenced.

No sooner did admiral Barrington receive information of the invasion of Dominica, than he despatched with the violation of his orders, and proceeded to its intended relief. He was too late, as the conquest was but the work of a day; his small squadron, however, removed the panic which had spread through the neighboring islands, and effectually curbed the further enterprises of the enemy.

Count d'Estaing sailed from Boston, and commodore Hotham with the troops under gen. Grant from Sandy-Hook, each on the same day for the West-Indies. Both fleets were equally involved in a gale of wind while on their passage. The French were greatly dispersed, which probably saved the British convoy from the danger of encountering an unequal force, steered unknown to the commodore the like course with himself. The relative situation of the fleets was a secret to both commanders; but they were so near on the 28th of November, that a British brigantine with four horses, fell into the hands of d'Estaing.—The commodore's fleet was the most numerous; but he had the skill and happiness of keeping them together during the gale, and of getting the start of the count, so as to arrive without any other loss than that of the brigs at Barbadoes, where he joined admiral Barrington on the 10th of December.

An expedition for the reduction of St. Lucie, was immediately undertaken without suffering the troops to land. Within two days they sailed

for the island; and the reserve of the army, consisting of the 5th regiment, with the grenadiers and light-infantry of the whole, under gen. Meadows, landed at the grand Cul de Sac on the 13th in the evening. That officer immediately pushed forward with his detachment, to the heights on the north side of the bay, which were occupied by the French commandant with the regular forces and militia. These posts he soon forced. While this was doing, gen. Prescott landed, with five regiments, with which he guarded the environs of the bay, and pushed on advanced posts, so as to preserve a communication during the night with the reserve. When morning appeared, the reserve, supported by Prescott, advanced and took possession of the small capital of Morne Fortune. The chevalier de Michaud made what defence he was able, but was compelled by the superiority of force, to retire from one post to another, as the British pressed forward. Prescott took possession of the batteries and posts in the rear of the reserve as they advanced. Meadows pushed forward under the heat of a burning sun, and possessed himself of the Vierge, which commanded the north side of the Careenage harbour, and Sir Henry Calder, with the four remaining battalions, guarded the landing place, kept up the communication with the fleet, and sent detachments to occupy several posts on the mountains, which looked down upon and commanded the south side of the grand Cul de Sac.

The last French flag on those posts which were in sight among the neighboring hills, was scarcely struck when count d'Estaing appeared in view of the fleet and army, with a prodigious force. Beside his original squadron of twelve ships of the line, he was accompanied by a numerous fleet of frigates, privateers and transports, with a land force estimated at 9000 men. The count intended the reduction of Barbadoes, the Grenades and St. Vincents. In his way to the first, where he expected to have found Barrington with only two line of battle ships and a few frigates, he received intelligence of the attack on St. Lucie, which he might consider as a circumstance that seemed to throw the whole British force by sea and land, an easy prey into his hands. In all human probability, this must have been the inevitable event, had he arrived twenty-four hours sooner; but the day being far advanced, he deferred his operations till the ensuing morning. During the night adm. Barrington exerted all his power in getting the transports warped into the bottom of the bay, to be as remote from danger as possible, and the ships of war brought in their respective stations, so as to form a line effectually to cover its entrance, which was still further secured

by a battery on the southern, and another on the northern opposite points of land. His force consisted of a 74, a 70, two 64, and two 50 gun ships, beside 3 frigates. In the morning [Dec. 15.] the count stood in with his whole fleet for the Careenage, apprehending that the British had not possession of that part of the island. A well directed fire which his own ship received from one of those batteries that had so lately changed masters, convinced him of his mistake, and made him bear away with his fleet and transports. He was apparently disconcerted and at a loss how to act; but after much hesitation, bore down with ten sail of the line upon the British squadron, just before noon. He met with so warm a reception from the ships and batteries, that after a while he drew off. About four o'clock he made a fresh attack with twelve ships of the line; which was better supported and longer continued than the first. The French cannonade concentrated within a narrow direction, and was heavier than before; but this effort was not more effectual than the former. The count's fleet fell into evident confusion, and retired from action with great loss. On the following day he plied to the windward, and anchored in the evening off Gross-Islet, about two leagues to the northward. The night and the next morning he spent in landing his troops in Choc Bay, between Gross-Islet and the Careenage. The same time was employed by the British admiral in preparing for every possible future event.

General Meadows, with the reserve, was nearly shut up in the peninsula of the Viergie; for by his distance and situation, as well as the decided superiority of the enemy, he was totally cut off from the support of the main body, any further than what might be derived from those batteries commanding the land approaches to the Viergie, which that possessed. The good effect of those positions which had been taken by the British on their first landing, became now apparent to both armies. The chagrin and disappointment of the French was great, when after landing they discovered that Sir H. Calder's brigade was in possession of the mountains on the south side of the grand Cul de Sac; for the bombarding of the British fleet from those heights, was one great object they had in view; which, from the strong positions taken by that brigade, was unattainable without a general engagement by sea and land, the issue of which the French were not as yet for trying. They determined upon directing their first effort separately against Meadows. [Dec. 18.] For this purpose about 5000 of their best troops were drawn out, and advanced in three columns to attack the British

lines, reaching across the isthmus, which joins the peninsula to the continent. The right was led by count d'Estaing, the centre by Mr. Lovendahl, and the left by the marquis d'Bouille. The remainder of their troops were kept disengaged to watch the motions of Prescott's brigade, and to check any attempt to succour Meadows. On the near approach of the columns, they were enfiladed with great effect by the aforementioned batteries; however, they rushed on to the charge with great impetuosity, supported the conflict with much resolution, and suffered considerably before they were entirely repulsed.—As soon as they had recovered their breath and order, they renewed the attack with the same eagerness as before;—and were encountered with the same determined resolution. Though they suffered severely in these two attacks, they again rallied, and returned to the charge the third time. The affair was now soon decided. They were totally broken, and obliged to retire in the utmost confusion, leaving their dead and wounded in the power of the victors. Gen. Meadows was wounded in the beginning of the action, but would not quit the field, nor have the assistance of the surgeons, till the matter was decided. The French while employing their troops by land, attempted a diversion by sea, which had so little effect as to deserve no further notice. Their loss was four hundred killed upon the spot, five hundred desperately wounded, so as to be incapable of service, and six hundred more slightly wounded: the whole amounting to a number considerably superior to those whom they had encountered.

Count d'Estaing continued ten days longer on the island without making further attempts, and then relinquished a contest which had only manifested the courage of the French, without yielding any profit. He embarked his troops on the night of the twenty-eighth, and on the following day abandoned the island to its destiny. He was not out of sight, when the chevalier de Micaud, with the principal inhabitants, offered to capitulate and had favorable conditions granted them, which were signed on the 30th. Admiral Byron arrived off St. Lucie the 6th of January.

When the late law in favor of the English Roman Catholics was passed, a design was formed of extending it to Scotland, which was violently opposed. The opposition originated in Glasgow, the inhabitants of which are almost all on the side of administration in the American contest.^[96] The general indignation against the design showed itself in the different riots that happened at Edinburgh and Glasgow in February. In the metropolis, an

attack was made [Feb. 3.] upon a new house, in which the principal popish clergyman or bishop, with four other families of the same persuasion dwelt, and in which a room was laid out for a chapel, about 34 feet long. The house was set on fire and the flames continued until noon of the following day.—The inhabitants with difficulty escaped alive. During the demolition of this “main pillar of popery,” as it was called, a detachment from the main body of the people resorted to the old chapel. The house containing it was inhabited by several families (agreeable to custom, and the nature of many buildings in that city) whose property and effects, as well as the inside of the house and chapel, were totally destroyed, together with a considerable library belonging to the popish bishop. The rioters afterward directed their violence against the papists in other parts of the town, and totally destroyed the stock in trade and effects of two or three tradesmen of that profession. One or two ladies of fashion of that communion were obliged to take refuge in the castle. They at length concluded upon the punishment or destruction of these gentlemen, of whatever rank or religion, who had been supposed to favor the design of obtaining a relaxation of the laws against papists. Their first fury was pointed against Dr. Robertson the celebrated historian, and to that of Mr. Crosbie, an eminent advocate. The mob found the houses of these gentlemen so well armed, and guarded with so determined a resolution by their numerous friends, that they proceeded not to extremities, but retired without any further outrage than the breaking of some windows. The magistrates did not exert themselves for the suppression of the riots, till the last day of the week. The conduct of the magistrates in Glasgow was widely different. The populace made their first and principal attack [Feb. 9] upon Mr. Bagnal, an English papist from Staffordshire, who had for several years established and conducted a considerable manufactory of stone-ware. They burnt his house, totally destroyed all the works for carrying on his business, and obliged him and his family to fly to the fields for their lives. But the measures pursued by the magistrates and principal inhabitants soon restored order and security. Mr. Bagnal was also speedily acquainted, that he should be reimbursed for every part of his losses to the utmost farthing. Toward the end of march the citizens of Edinburgh agreed to make full restitution to the sufferers in that city. Through this religious combustion, and the circumstances attending it, administration have lost that strong hold of the temper and disposition of the people in Scotland, which perhaps nothing else could have loosened.

The British cruisers seized and carried into port the Dutch vessels bound for France, when laden with either naval stores or supposed French property. The merchants, owners and insurers, complained to their high mightinesses, by whose order a memorial was presented to the British court which was far from having the desired effect. The answer proposed the purchasing of the naval stores, the paying of the freight, and the indemnifying the proprietors; but expressed a determination to prevent, as much as possible, all naval and military stores being transported into the French ports, accompanied however with an assurance, that all possible regard for the rights of their high mightinesses should be exercised, and that the stipulations and spirit of the treaties between the king and their high mightinesses, would be adhered to in the strongest manner *as far as it should be practicable*—of which the British court would be judges. The merchants of Dort, Rotterdam and Amsterdam, not being satisfied with the answer, petitioned their high mightinesses for redress against the British treatment of their flag, and the violences committed against their property. The States General concluded upon such measures as should meet the wishes of the petitioners, and determined upon an augmentation of the fleet for their protection. Sir Joseph Yorke, after that, on the 22d of last November, proposed in a memorial by his sovereign's order a conference with their high mightinesses upon what was most proper to be done respecting the articles of complaint. The States General declined the offer, and insisted upon the literal and strict observance of the treaty between them and Great-Britain. The French king had in a regulation of the preceding July, concerning the navigation of neutral vessels, reserved to himself the power of revoking the advantages granted by the first article, in case the belligerent powers should not grant the like within the space of six months. The like not being granted on the part of Britain the king ordered such revocation, with respect to the subjects of the Dutch republic; but excepted the cities of Amsterdam and Haerlem, because of their patriotic exertions to persuade the republic to procure from the court of London the security of unlimited liberty to their flag. This measure was considered by that court, as designed to cause the republic to quarrel with Great-Britain, and occasioned the presentment [April 9.] of a memorial by Sir Joseph Yorke, in the name of his sovereign, to the States General; in which the literal and strict observance of the treaty insisted upon by them is pronounced incompatible with the security of Britain, and contrary to the

spirit and stipulations of all the former treaties between the two nations. His majesty also declares in it, that he cannot depart from the necessity he is under of excluding the transportation of naval stores to the ports of France and particularly timber, even if they are escorted by men of war; but flatters himself, that he shall never be obliged to take other measures toward the republic, than those which friendship, and good harmony may dictate.

The capture of the Dutch vessels occasioned a great dearth of naval stores at Brest, so that the repair of count d'Orvilliers' fleet has been exceedingly hindered. The Ville de Paris, which suffered much in the engagement with admiral Keppel, will not be ready for sea, much before the time for the fleet's sailing. Till April there was not a mast fit for her in all Brest.^[97] A number of store ships however got in from Holland, so that about the beginning of the year, several small squadrons were prepared and slipped out from different ports nearly at the same time: one under Mr. de Grasse for Martinico, to reinforce count d'Estaing. Another under the marquis de Vaudreuil, with a land force, sailed for Africa, and has taken the British forts, settlements, factories and property, at Senegal and other parts of that coast.

[1778.] The English East-India company, foreseeing actual hostilities, resolved, very soon after the delivery of the French rescript, on a bold and decisive measure, for the final reduction of the French power in India, and conducted the business with unusual secrecy. Their instructions were happily conveyed with uncommon expedition, and preparations were immediately made for besieging Pondicherry. Gen. Munro invested the fortress closely on the 21st of last August, with an army of 10,500 men, including 1500 Europeans. But before this had taken place, there was a warm engagement between Sir Edward Vernon, with a small squadron, and monsieur Tronjolly commanding the like, in which the French were so roughly handled, that to escape a second action they abandoned the garrison, to their fate on the day Pondicherry was invested. The garrison amounted to near 3000 men, of which 900 were Europeans. They were commanded by Mr. de Bellecombe, who disputed every point of his ground, and persevering to the last extremity in a determined and noble defence, held out to the 16th of October. An honorable capitulation was allowed in testimony of the garrison's gallantry, and every requisition that did not interfere with the public benefit was agreed to. The factories at

Chandenagor, Yaman, and Karical, with the settlement at Masulipatam, had been reduced before the capitulation.

[May 1, 1779.] The New-York, Quebec and Newfoundland fleets, to the number of 300, under the convoy of admiral Arbuthnot, sailed from Spithead: the admiral, with a squadron of men of war and a number of transports, is bound to New-York.

LETTER XVI.

Roxbury, August 5, 1779

The disasters which followed the American arms, after the landing the British in Georgia, roused the South-Carolinians vigorously to oppose the extension of their conquests. By an almost unanimous voice they chose John Rutledge, esq. their governor; and to him and his council was delegated, by the legislature, power “to do every thing that appeared to him and them necessary for the public good.” In execution of this trust a body of militia were assembled, stationed at Orangeburgh, near the centre of the state, and kept in constant readiness to march whithersoever the public service required. The governor sent orders to gen. Williamson, and directed him to push parties into Georgia, and destroy all the cattle, horses, provisions and carriages they should meet with in that state. [April 16.] Gen. Lincoln, in a letter, remarked upon the order, as affecting alike the innocent and guilty, the aged and infirm, &c. and concluded with saying —“As nothing but a conviction that it is an indispensable duty, would have led me to the disagreeable task of making the above remarks, so I shall avoid at present any other, however my own feelings may have been hurt.” The order, if at all needful, should have gone from the continental general, whom congress had empowered to command in that department. He in a letter of the preceding day, wrote to the president of congress, “We have lately exchanged some prisoners, those who have come out are in a most miserable condition, few of them fit for service. Their treatment on board the prison ships, and the measures adopted to oblige them to renounce their allegiance to the United States, and engage them in the British service, have been cruel and unjustifiable, many enlisted with them—many are dead—and others in a weak, dying state.”

[April 19.] A council of war was held at the general’s headquarters at Black-swamp, when it was agreed—“That as the number of militia in camp, with those at gen. Williamson’s camp, and 500 promised from

Orangeburgh, and 700 from North-Carolina now in the state, amounted to 5000 men, they would collect the remainder near to Augusta (after leaving 1000 here and at Purysburgh) and cross the Savannah, take some strong ground in Georgia, prevent the enemy's receiving supplies from the back parts of the country, circumscribe them within narrow limits, and prevent their junction with the unfriendly, and the savages, in Georgia and the back parts of this state."—The general began his march, [April 23.] leaving at Black-swamp and Purysburgh, the 5th and part of the 2d regiment of South-Carolina, and about 800 militia under gen. Moultrie. When the American army was 160 miles up the Savannah gen. Prevost availed himself of that moment, and crossed over to Purysburgh with 2400 men; he had beside a considerable body of Indians. The first night after entering Carolina, he made a forced march in hope of attacking Moultrie at Black-swamp, but was three hours too late. The latter had changed his quarters, and being joined by col. M'Intosh's party, which had made a timely retreat from Purysburgh, took post at Tullyfinny bridge, to prevent the further incursion of the British, and to keep between them and Charleston. Gen. Lincoln, on information of these movements, [May 1.] immediately detached 300 chosen continental troops to reinforce Moultrie, lest he should be mistaken in his idea, that Prevost only intended a feint to divert him from his general plan; in pursuit of which he crossed the Savannah near Augusta, and marched for three days down the country toward the capital of Georgia. But being informed by Moultrie's letters of the 4th and 5th, that his number of men was greatly diminished by the desertion of the militia, and that he was obliged to retire before the enemy, Lincoln re-crossed the river and country, as fast as possible, to come up with Prevost. Moultrie had no cavalry to check the advancing foe; who met with scarce any other interruption in their march, than the destruction of all the bridges by the retreating Americans. The absence of the main army under Lincoln, the retreat of Moultrie, the plundering and devastations of the invaders, and above all the dread of the royal auxiliaries, the Indians, diffused a general panic among the inhabitants and induced many to apply to the British for protection. The facility with which their army proceeded through the country, added to the repeated suggestions of the friends, to royal government, who positively assured Prevost, that Charleston would certainly surrender at his approach, induced him to change his original plan, and push for that place. Had he designed it at first and continued his march with the same rapidity he began

it, he would probably have carried the town by a coup-de-main; but he halted two or three days; when advanced more than half the distance. In this interval the lieut. governor and the council made the greatest exertions to fortify it on the land side. All the houses in the suburbs were burnt. Lines and abbatiss were in a few days carried from Ashley to Cooper rivers. Cannon were mounted at proper intervals across the whole extent of Charleston neck. The militia of the vicinity were summoned to the defence of the place; and they generally obeyed. General Moultrie's retreating army, governor Rutledge's militia from Orangeburgh, and the detachment of chosen continental troops under colonel Harris, which marched near forty miles a day for four days successively, all reached Charleston on the 9th and 10th of May.

[May 11.] Nine hundred of the British army, their main body and baggage being left on the south side of Ashley river, crossed the ferry, and soon appeared before the town. The same day count Pulaski's legionary corps of infantry crossed Cooper river to Charleston. They had scarcely arrived two hours when he led 80 of them out of the lines, and stationed them in a valley behind a small breast-work, with the view of drawing the British into an ambuscade. He advanced a mile beyond his infantry, and joined a party of regular horse and mounted militia volunteers, and with that force engaged the British cavalry for a while, and then retreated to his infantry, who from an eagerness to engage had quitted their breast-work, and so rendered abortive the advantages of the intended ambuscade, and were by superior numbers compelled to retreat. Pulaski, however, by discovering the greatest intrepidity, and by successful personal rencounters with individuals of the British cavalry, had a considerable influence in dispelling the general panic, and in introducing military sentiments into the minds of the citizens. Major Huger, a distinguished officer, while commanding a party without the lines, was killed at night, through mistake, by his countrymen. That the town might not be carried by surprise or a sudden assault, tar barrels were lighted up in front of the works. Its defence rested on the exertions of 3300 men, the greater part of whom were militia, wholly unacquainted with military operations. General Lincoln was marching with all expedition for its relief, but his timely arrival was dubious, and the crisis extremely hazardous; a proposition was therefore made by the civil authority to gen. Prevost—"That South-Carolina would remain in a state of neutrality till the close of the war, and then follow the

fate of its neighbors, on condition the royal army would withdraw.” The British commander rejected this advantageous offer, alledging that he did not come in a legislative capacity; and insisted, “that as the garrison was in arms, they should surrender prisoners of war.” Upon this they prepared for sustaining an immediate assault, but Prevost, fearing the consequences, declined making it. Some days after, he took an express coming from Lincoln; upon reading it, and discovering the movements and intentions of the latter, he cried out aloud, that he expected to be between two fires, and precipitately quitted his ground, re-crossed Ashley river, and to avoid Lincoln’s army, now in his rear, filed off from the main land to the island on the sea-coast. Both armies encamped within 30 miles of Charleston, watching each other’s motions till the 20th of June, when a part of the British army entrenched at Stono ferry, was attacked. By a pre-concerted plan, a feint was to have been made from James-Island, with a body of militia from Charleston, at the moment when gen. Lincoln began the attack from the main; but from mismanagement they did not reach their place of destination till several hours after the action. The American army consisted of about 1200 men, only half continentals, who were posted on the left, while the North and South-Carolina militia occupied the right. Col. Malmedy led a corps of light-infantry on the right, and lieut. col. Henderson on the left. The Virginia militia and the cavalry formed a corps of reserve. The British force consisted of 6 or 700 men. They had redoubts, with a line of communication, and field-pices advantageously posted in the intervals, and the whole secured with an abatis. That they might be harassed, or lulled into security, they were alarmed by small parties for several nights preceding the action. When the attack was made, two companies of the 71st regiment sallied out to support the pickets. Henderson ordered his light-infantry to charge them, on which they instantly retreated; only nine of them got safe within their lines. All the men at the British field-pieces between their redoubts, were either killed or wounded. The attack was continued for an hour and twenty minutes, and the assailants had manifestly the advantage; but the appearance of a reinforcement, to prevent which the feint from James-Island was intended, made a retreat necessary. The whole garrison sallied out on the Americans; their light troops, however, so effectually retarded the British, that they not only retreated with regularity, but brought off their wounded with safety. Lincoln lost in killed and wounded, 146, beside 155 missing. This attack accelerated the retreat of the

enemy, who with great assiduity and fatigue, passed over from island to island, until they arrived at Beaufort, from whence they had an open and free communication with Georgia by water, whither most of them went, leaving a sufficient garrison under colonel Maitland.

This incursion into South-Carolina added much to the wealth of the officers, soldiers and followers of the camp, and still more to the distresses of the inhabitants. The negroes, allured with hopes of freedom, repaired in great numbers to the royal army; and to recommend themselves to their new masters, discovered where their owners had concealed their property. It is supposed that the British carried out of the state about 3000 slaves, many of whom were shipped off and sold in the West-Indies; but the inhabitants lost upward of 4000, each worth, on an average, about fifty-six pounds sterling. Several hundreds of them died of the camp fever; and numbers laboring under diseases and afraid to return home, perished in the woods. The royal army also plundered the planters of several rice barrels full of plate. They spread over a considerable extent of country, and small parties visited every house, stripping it of whatever was most valuable, and rifling the inhabitants of their money, rings, jewels and other personal ornaments; and yet what was destroyed by the soldiers was supposed to be of more value than what they carried off. The devastations committed by them were so enormous, as that a particular relation of them would scarcely be credited by people at a distance, though the same would be attested by hundreds of eye-witnesses. It will be nearly as difficult to credit another species of depredation which certain Americans have committed upon general Washington's property. His debtors have been discharging in paper currency (at the rate of a shilling in the pound, through the depreciation) bonds which ought to have been paid him, and would have been realized before he left Virginia, but for his indulgence. Seven thousand pounds sterling would not compensate the losses he might have avoided by remaining at home and attending a little to his own concerns. Alas! what is virtue come to! What a miserable change has four years produced in the temper and disposition of many of the sons of America! It almost surpasses belief.

Sir Henry Clinton dispatched Sir George Collier and general Matthews, with about 2000 men, beside 500 marines, to make a descent upon Virginia. They sailed for Portsmouth, and upon their arrival landed the troops at a distance; then marched and took immediate possession of the town [May 10.] which was defenceless. The remains of Norfolk, on the opposite side of

the river, fell of course into their hands. On the approach of the fleet and army the Americans burnt several vessels; others were saved and possessed by the British. The guards were pushed forward 18 miles by night, to Suffolk, where they arrived by daylight, and proceeded to destroy a magazine of provisions, together with the vessels and naval stores found there. A similar destruction was carried on at Kemp's landing, Gosport, Tanner's Creek, and other places in that quarter; nor were the frigates and armed vessels less active or successful in their service. Within the fortnight that the fleet and army continued upon the coast, the loss of the Americans was prodigious. Above 130 vessels of all sorts, including some privateers and ships of force, were destroyed or taken by them; 17 prizes were brought away, beside 3000 hogsheads of tobacco, which fell into their possession at Portsmouth. Except the house of a widow and the church, they burnt every house in Suffolk; and all the principal houses of gentlemen in their route, shared the same fate. The Virginia assembly resolved, "that the governor be required to remonstrate to the British commander against such a cruel and unprecedented manner of waging war, not authorized by any civilized nation; but a sufficient military force to back it, was wanting. The fleet and army, with their prizes and booty, arrived safe at New-York before the expiration of the month. The troops were joined to others going up the North-River to attack the posts of Stony-point and Verplank, where the Americans had begun to construct strong works, for keeping the lower communication open between the eastern and southern states. Gen. Vaughan landed with the greater part on the east side; while the remainder, accompanied by Sir H. Clinton, advanced further up, landed on the west side, and took possession of Stony-point without opposition. Directly opposite, the Americans had completely finished a strong fort, which was defended by four pieces of artillery and a garrison of about 70 men. But it was commanded by Stony-point, to the summit of whose rocks cannon and mortars were dragged up during the night. By five in the morning a battery was opened, which poured a storm of fire over on the fort; while Vaughan with his division, making a long circuit through the hills, arrived and closely invested it by land. The garrison, finding themselves totally overpowered, surrendered prisoners of war. Sir H. Clinton moving his main body up the North-River, occasioned the American army's moving from their encampment at Middle-Brook, toward West-point, for which they were in no small apprehension, the garrison being few, and the fort not

completed. Sir H. Clinton gave immediate direction for perfecting the works of both posts, and particularly for putting Stony-point in the strongest state of defence; for their better support, and with a view to further operations, he encamped his army at Philipsburgh, about half way down the river to New-York island. By the loss of these posts, the Jersey people were obliged to make a circuit of about ninety miles through the mountains, to communicate with the states east of Hudson's-River.

We must here suspend our account of the operations under the direction of Sir Henry, and attend to very different expeditions.

One was ordered to be set on foot by lieut. governor Hamilton of Detroit, who was to be joined in the spring of this year by two hundred Indians from Michilimainoi, and 500 Cherokees and Chickasaws, and other nations; these were to penetrate up the Ohio to Fort Pitt, sweeping Kentucky on their way, having light brass cannon for the purpose. He was to be joined by all the Indians that could be procured; and had no doubt of forcing all West Augusta. Destruction from every quarter seemed to hover over the Virginia back settlers. Col. Clarke hearing that Hamilton (who had taken post at St. Vincent on the 15th of last December, and had fortified the same to be ready for and favor the expedition) had weakened himself by sending away his Indians against the frontiers, formed the desperate resolution of attacking him, as the only probable expedient for saving the country. After many difficulties he arrived [Feb. 23.] unexpectedly to the enemy, and made an assault. The town immediately surrendered, and assisted in the siege of the fort. The next day, Hamilton in the evening, agreed to surrender the garrison prisoners of war, in all 79, with considerable stores. Clarke had marched across the country with only 130 men, being all he could raise. He was 16 days on his route, through the inclemency of the season, drowned lands, &c.—While engaged with Hamilton, an Indian party, who had been to war, returned, knowing nothing of him and his men; Clarke sent a number to give them battle, took nine of them, and released two prisoners. Hearing of a convoy of provisions and goods on their way from Detroit, he detached a party of 60 men in armed boats, which met them before they got intelligence of their danger 40 leagues up the river, and made a prize of the whole, taking 40 prisoners, and about £.10,000 worth of goods and provisions. By Clarke's attacking Hamilton, the intended expedition of the enemy was ruined. The colonel on his return transmitted to the Virginia council, letters and papers relating to lieut. gov. Hamilton, Philip DeJain,

justice of peace for Detroit, and William Lamothe, capt. of volunteers, whom he had made prisoners of war in the Illinois country.

[June 16.] The board proceeded to consider them; and found that Hamilton had incited the Indians to perpetrate their accustomed cruelties on the citizens of the United States—had at the time of his captivity, sent considerable detachments of Indians against the frontiers, and had actually appointed a great council of them to meet him, and concert the operations of the present campaign—and that he gave standing rewards for scalps. It also appeared to them, that Dejain was, on all occasions, the willing and cordial instrument of Hamilton; and that Lamothe was a captain of the volunteer scalping parties of Indians and whites. They therefore, resolved to advise the governor, that they should be put in irons, confined in the dungeon of the public jail, debarred the use of pen, ink and paper, and excluded all converse, except with their keeper, being considered as fit subjects on which to begin the work of retaliation. The governor gave orders accordingly.

[April 19.] Colonel Goose Van Schaick marched from Fort Scuyler toward Onondaga on Lake Ontario, which he destroyed with a large quantity of grain, cattle, horses, arms and ammunition, except such as he could conveniently bring off.—Twelve Indians, mostly warriors, were killed, and 34 made prisoners, the rest fled to the woods. This expedition was performed in about five days and a half, (the distance going and returning one hundred and eighty miles) and without the loss of a single man.

The British generals were divided upon the subject, whether or no to carry on a predatory war against the Americans. They, sent home, and submitted it to the ministry, who determined in favor of waste and rapine. After which, Mr. Arthur Lee, forwarded to gov. Trumbull and the committee for foreign affairs, letters dated Paris, April 6, 1779, mentioning—"I have received intelligence, that it is determined in the British cabinet, to send over immediate orders to New-York for an expedition through the Sound up Connecticut river. The enemy are to land at Weathersfield, and proceed by land to New-Haven bay, where they are to embark, after having plundered, burnt, and destroyed all in their way." A member of the committee wrote to his correspondent, on the 16th of July, "Arthur Lee had intelligence, on the 6th of April, of the design upon Fairfield, but contrary winds and captures

of his originals, have prevented our getting seasonable warning.” Sir H. Clinton, having received the ministerial instructions, proceeded in conformity to the spirit of them, only varying circumstances so far as that required. Sir George Collier, with the necessary ships of war and transports, and, gov. Tryon at the head of 2600 land forces, seconded by gen. Garth, were appointed to the predatory expedition. While in the Sound, the commanders joined in an address to the inhabitants of Connecticut, which they signed on the 4th of July. In that they invited and urged them to return to their duty and allegiance: and promised all, remaining peaceably in their usual place of residence, protection in person and property, excepting the civil and military officers of the government; but threatened those who slighted the warning. The address was merely farcical, for instead of *leaving them to consult each other upon the invention*, as they stated it, they employed force before the people had time to consult each other after the invitation was received.

[July 5.] The troops were landed early on Monday morning, those under Tryon at East-Haven, and those under Garth at West-Haven. The last marched for New-Haven, which they entered between twelve and one, after being much harrassed and galled on their way by the militia, and others who joined them. The town was delivered up to promiscuous plunder, a few instances of protection excepted. Whigs and tories, indiscriminately, though not universally, had their money, plate, rings and other articles taken from them; and much of their furniture, which could not be carried off, was wantonly destroyed;—all the West-India goods and provisions were served the same. In such scenes of confusion, individuals could not escape personal abuse. The militia were collecting in such a manner, and the soldiers had got so disordered by liquor, that the next morning the troops made a sudden retreat, without tarrying to execute the original design of burning the town, or even to fire a single house in it. When they had provided for their own safety, they ventured to burn some stores on the long wharf. At East-Haven, where Tryon commanded in person, several houses were burnt, the cattle were also wantonly killed in the adjoining fields. By the afternoon, the militia became so numerous, and crowded so close upon him, that he retreated on board the fleet, which in the evening sailed for Fairfield [July 7.] There the troops, landed about three o’clock on Wednesday afternoon. As they anchored off the town in the morning, the militia had some little time for collecting. Gov. Tryon sent by a flag to col.

Whiting, who commanded them, the address; and gave him an hour's time to consider and to answer, so as to save the town. The colonel replied in behalf of the Connecticut inhabitants, "The flames have now preceded their answer to your flag, and they will persist to oppose to the utmost, that power which is exerted against injured innocence;" dated 7th July sun-set. That night and the next morning, they plundered and laid the town in ashes, burning the meeting-house, episcopal church, and the buildings in general, to the compass of two miles round, so as to reach Green-farms, though not Greenfield. On the Thursday they retreated to their shipping, the militia becoming more numerous than at New-Haven. They crossed the Sound to the shore of Long-Island; and from thence sailed afterward to Norwalk, whose fate was similar to that of Fairfield. The numbers killed and wounded on each side during these ravages were inconsiderable. But the conflagration list stands thus—burnt at Norwalk 2 houses of public worship, 80 dwelling houses, 87 barns, 22 stores, 17 shops, 4 mills and 5 vessels—at Fairfield 2 houses of public worship, 82 dwelling houses, 55 barns, 15 stores and 15 shops—at Green-farms 1 house of worship, 15 dwelling houses, 11 barns and several stores—beside the stores burnt at New-Haven and the houses at East-Haven. The prevailing humanity of my countrymen, will not relish these depredations in their genuine appearance, the accounts therefore transmitted or published, must be dressed up so as to make them palatable with the public; but be assured, that the burnings were designed, and without sufficient provocation, both as to private and public buildings; some of the latter, and many of the former, were to my knowledge not near to, but even at a considerable distance from other edifices. That gen. Tryon was not averse to engaging in such a service as Lee mentioned the cabinet to have determined upon, is inferred from the animosity he has to those who are attached to the American cause. He was however stopped from all further progress, by an order from Sir H. Clinton for the return of the fleet and troops. Some real or expected movement in the American army might produce such an order.

No sooner did gen. Washington observe how Sir H. Clinton had strengthened the posts of Stony-point and Verplank, than he entertained the design of attacking them. Toward the end of June, he ordered, that a trusty intelligent person should be employed to go into the works of the first; and on the 8th of July, he was informed by a deserter, that there was a sandy beach, on the south side of it running along the flank of the works, and only

obstructed by a slight abatis, which might afford an easy and safe approach to a body of troops. He formed plans for attacking both posts at the same instant; the executions of which were intrusted with gen. Wayne and gen. Howe. All the Massachusetts light infantry marched from West-point under lieut. col. Hull, in the morning of the 15th, and joined Wayne at Sandy-beach, 14 miles from Stony-point. The general moved off the ground at twelve o'clock. The roads being exceedingly bad and narrow, and the troops having to pass over high mountains, through difficult defiles and deep morasses, were obliged to move in single files the greatest part of the way. This, and the great heat of the day, occasioned much delay, that it was eight in the evening before the van arrived within a mile and a half of the enemy, where the men formed into columns, and remained till several of the principal officers, with gen. Wayne, returned from reconnoitring the works. At half after eleven o'clock, the whole moved forward, the van of the right consisting of 150 volunteers, under lieut. col. Fleury, the van of the left consisting of 100 volunteers under major Stewart, each with unloaded muskets and fixed bayonets, preceded by a brave and determined officer, with twenty picked men, to remove the abatis and other obstructions. The last, and the overflowing of the morass in front by the tide, prevented the assault's commencing till about 20 minutes after twelve. [July 16.] Previous to it, Wayne placed himself at the head of the right column, and gave the troops the most pointed orders not to fire on any account, but place their whole dependence on the bayonet, which order was faithfully obeyed. Such was the ardor of the troops, that in the face of a most tremendous and incessant fire of musketry, and from cannon loaded with grape-shot, they forced their way, at the point of the bayonet, through every obstacle, and both columns met in the centre of the enemy's works nearly at the same instant. Fleury struck their standard with his own hand. Notwithstanding the provocations given by the plunderings and burnings at New-Haven, East-Haven, Fairfield and Green-farms, of which they had heard, such was the humanity of the continental soldiers, that they scorned to take the lives of the foe calling for mercy, so that there were but few of the enemy killed upon the occasion. Great is the triumph of the Americans upon the success of this enterprise; and justly, for it would have done honor to the most veteran troops. Wayne had but 15 killed and 83 wounded, not above 30 of whom will be finally lost to the service. The general himself received a slight wound in the head with a musket-ball; but it did not prevent his going

on with the troops; and he is not included in the wounded. The enemy had only 63 killed. Lieutenant-colonel Johnston, who commanded the fort, with other officers and privates, amounting to 543, were made prisoners.

The attack upon Verplank, entrusted with gen. Howe, miscarried partly through delays occasioned by high winds, which prevented the timely transportation of artillery; but chiefly through the troops neglecting to take axes with them. The enemy, upon their approach, broke down all the bridges, and thereby cut off the communication by land. Before Howe could receive the means for constructing temporary bridges, Sir H. Clinton marched up troops enough to save the place. Gen. Washington not being in sufficient force to hold possession of Stony-point, resolved upon the removal of the cannon and stores, and upon the destruction of the works, which were accomplished with all dispatch. About a week before, a certain officer, whose station gave him the opportunity of catching deserters from the American camp, was so enraged at their being very numerous, that he informed the general he would cut off the head of the next that fell into his hands; the general wrote immediately, and prohibited such execution; but it had taken place before the letter was received, and the head was forwarded to general Washington. He was shocked at receiving it, and also greatly alarmed from an apprehension of its exciting a general disgust and uneasiness among the people at large, should it be known. Express orders were given to the officer to conduct himself properly for the future. His rashness was afterward atoned for in measure, by his contributing much to the success of the enterprise against Stony-point.

[July 26.] Congress unanimously resolved upon thanks to gen. Washington, for the vigilance, wisdom and magnanimity with which he had conducted the military operations of the states, and manifested particularly in his orders for the above enterprise. They also thanked gen. Wayne for his brave, prudent and soldierly conduct, in his spirited and well conducted attack. They highly commended the coolness, discipline and firm intrepidity of the officers and soldiers. They took proper notice of lieut. col. Fleury and major Stewart; and warmly applauded lieut. Gibbons and lieut. Knox, who led on the forlorn hope and preceded the vans of the two columns, and gave to each a brevet of captain. They further resolved, that a medal, emblematical of the action be struck, and that one of gold be presented to gen. Wayne, and a silver one to both Fleury and Stewart; and that the value

of the military stores taken, be ascertained and divided among the troops by whom Stony-point was reduced.

Being brought to mention congress, let me detail some of their further proceedings.

The first commissary-general, col. Joseph Trumbull, is no more; his decease has been thought to have been brought on by the proceedings of congress relative to him—they however resolved [March 30.] that with great care, industry, labor and attention, he instituted a plan by which the army, during his continuance in office, was amply supplied, with much œconomy and to general satisfaction; and that certain allowances should be made for the benefit of his legal representatives. They resolved [April 20.] “That suspicions and animosities have arisen among the late and present commissioners, namely, Dr. Franklin, Mr. Silas Deane, Mr. Arthur Lee, Mr. Ralph Izard, and Mr. William Lee, highly prejudicial to the honor and interest of the United States. It was resolved [April 27.] that the president inform the commander in chief, that if he wants specie for secret services, he may draw to the amount of 2000 guineas upon the treasurer, who will pay the same. Bills prepared by the committee of the treasury on doctor Franklin, in favor of the committee of commerce, for the sum of 360,000 *livres tournois*, for the purpose of importing military stores, were ordered to be signed by the president; and it was resolved, [June 10.] “That the faith of the United States be pledged to make good any contract or engagement which shall be entered into by their minister plenipotentiary at the court of France, for procuring money or credit to enable him to honor the said bills, and provide for their punctual discharge.” The next day it was agreed to borrow twenty millions of continental dollars, at an interest of six per cent. per annum. Three days after, it was resolved upon the report of a committee, “That congress are satisfied with the conduct of doctor John Morgan, while acting as director general and physician in chief, in the general hospitals of the United States; and that this resolution be published.” [June 14.] Congress in a letter of congratulation to his most Christian majesty on the birth of a princess, say among other things —“Permit us to request the favor of your majesty to oblige us with portraits of yourself and royal consort, that by being placed in our council chamber the representatives of these states may daily have before their eyes the first royal friends and patrons of their cause.” They in another letter request his majesty to furnish them with the necessary supplies of arms,

ammunition and clothing, the estimate of which their minister was to lay before him, and they pledged the faith of the states for the repayment with interest, of whatever sums may be advanced for the purpose, as soon as the restoration of peace shall enable them.

[July 12.] The minister of France had a conference with congress in a committee of the whole. He introduced the conference by saying, that he had received some dispatches from his court, which he was ordered to communicate to congress, but that he expected no answer;—that though it was not the usual practice to offer communications of this nature in writing, yet as it had been intimated to him by the president, that this mode would be most agreeable to congress, he had committed the heads of them to paper, not as a memorial, but merely for the assistance of the memory, in a form to which the term of *ad statum legendi* is appropriated by the usage of the courts of Europe;—that in reading the said paper, he would take the liberty of making some explanations and reflections.

Ad statum legendi delivered by the minister plenipotentiary.

1. The king has approved all the overtures that were made by his minister plenipotentiary to the honorable congress, respecting the affairs of Mr. de Beaumarchais; therefore a line ought to be drawn between the stores which this gentleman has been permitted to take out of the royal magazines, for which he has constituted himself debtor to the department of war, and between those articles which the same gentleman has brought in the way of common trade for the use of the United States.

2. A hint having been given to the minister plenipotentiary, that congress desire to recruit their ships in France, from the English prisoners there, the court in consequence of this representation, is willing to facilitate this mode of recruiting seamen.

3. The king and ministry were extremely pleased with the resolution congress has taken to maintain only one minister plenipotentiary at their court, as well as with the exclusive appointment of so steady and honest a man, and so firm and solid a patriot as doctor Franklin.

4. The congress has given a very great satisfaction to the court of France, by the convenient and spirited step which was taken to disavow a certain ill grounded and pernicious doctrine relating to the mutual obligation of the allies to conclude no truce or peace without the knowledge and consent of each other. The court of France is of opinion, that this doctrine could only

be maintained by those men whose aim would be to seek by any means, to weaken the ties of the alliance, and to create disgust and diffidence between the allies.

5. This court has received with some surprise, the intelligence that congress has published the treaties concluded with her, without the previous knowledge and consent of the interested party. It is not to be denied, that such proceedings is but little consistent with reason, and with the general practice of courts and nations; nevertheless, this observation involves not any kind of reproach, but the king thinks that so noble and so generous a system of politics could not but produce desirable effects by its publication.

6. The intelligence that in the first months of last winter, there were no adequate preparations made in America toward a vigorous and successful campaign, was received at Versailles with all the concern which the dangers of the United States and the prolongation of the present contest can create in the most friendly mind. The court of France is fully of opinion, that the exertions of the United States are necessary to bring the common enemy to a proper sense of all the disappointments which he shall meet with.

7. This court being very desirous to acquaint congress exactly with the state of affairs relating to the common cause, would not delay to inform this honorable body, that the court of London, showing on one side dispositions to a reconciliation with France, rejects on the other side, the very idea of a formal and explicit acknowledgment of the independence of the United States, which his most Christian majesty perseveres to hold up as a preliminary and essential condition. The behaviour of the common enemy in this respect, rendered a great deal more probable the conjecture which was communicated to congress some time ago, that the point of honor and pride of the king of England, will be the greatest obstacle to the conclusion of the peace upon those explicit terms: and perhaps the manner of overcoming this difficulty, will of course become the most decisive object of the deliberation of congress, when this honorable body shall determine to make peace. It is presupposed whatever *mezo termine* may be hit upon, that England shall treat with the United State as with a free people, and evacuate immediately all the territories belonging to them.

The substance of what the minister said at the conference, in explanation of the foregoing articles.

1. From the bills and accounts with which congress have been furnished by Mr. de Beaumarchais, congress would be enabled to distinguish those articles which were drawn from the royal magazines, and those which he supplied in a way of trade; for those last congress would without doubt make remittances to Mr. de Beaumarchais in their own way, to enable him to perform the contracts he had entered into as a merchant. That for the former articles, the king his master taking upon himself to be creditor to the United States, would wait until the congress should find it convenient to make compensation.

2. Though his court had not resolved to retaliate upon the prisoners in their hands for injuries done to prisoners by the common enemy; yet for the reasons assigned, the king his master had assented to the proposal; but in carrying this matter into execution, it would be proper to take such precautions, and to give such orders to the captains, or other persons employed in the business, that it might be managed with prudence.

3. There is every reason to believe that congress will receive very soon proofs of the confidence which his court was always willing to show to the servants of these states. The personal character of Dr. Franklin will enable the court to act with a frankness becoming the alliance; they will have no occasion to withhold any more the secrets which may interest the United States and the alliance.

4. The king his master, after this explicit step, relies with the highest confidence upon the candor and faithfulness of congress in understanding as well as in executing the treaty, and in rejecting every arbitrary and unnatural interpretation or construction, which fales, subtle or designing men can contrive. Congress by their own feeling must be sensible, that such interpretations and constructions are always hurtful, against common decency and dignity, and may oftentimes endanger mutual confidence, and of course the very existence of a treaty; but the sense of congress, as manifested in this particular affair, gives his court the greatest hope, that there shall be no further motive to the painful reflections which that affair excited.

5. He begged leave to add, that this publication interfered with the situation of affairs in Europe, and was in a certain degree disadvantageous to the common cause; because it gave the common enemy a full knowledge of our system and our mutual engagements without procuring us any reason

to guess at their views and resolutions. Happily these inconveniencies have not been felt, and ample compensation has been obtained by convincing the people of America, not only that the treaty was just and equal, but that the heavy task which France has taken upon her was magnanimous, gratuitous, and without reward; the whole world was at the same time convinced, that war, conquest and ambition, were not the objects of the alliance, nor of any of the allies, but only the peaceable enjoyment of the sovereignty, liberty, security and independence of these United States; and this conviction gave much honor, credit and consideration to the alliance.

6. On this he observed, that he had endeavored since the last fall, by order of his court, to impress on every mind, that England will never evacuate New-York willingly and could only be brought by proper exertions on the part of America, to think seriously of granting her independence. He believed that congress had adopted a system conformable to their engagements and the situation of affairs; his court was better informed than he was; but without reflecting on past events, the king hopes his amicable apprehensions will be overcome by the success of the campaign, that henceforth the United States will follow the example set them by his majesty, and that they will exert themselves in their own cause, as his majesty exerts himself for their sake and in their cause which he has adopted.

7. He said, that he was authorised to tell congress in confidence, that this reflection is the result of the observations which the court of Spain made upon the conduct of England, throughout her negotiations of mediation:— That the British ministry seem to be solicitous to be reconciled with France, and to keep up this negotiation; that from thence probable hopes may be entertained of their internal disposition to peace; but at the same time they reject with haughtiness the formal acknowledgment of the independence inserted by France and Spain. New orders have been given to the Spanish ambassador at London, to ascertain as nearly as possible those dispositions. In these circumstances the king his master ordered him to communicate this intelligence to the United States, that they may if they think proper take under consideration, if it would not be expedient to give their plenipotentiary instructions and full powers, founded upon the necessity of the conjectures, and upon the treaty of alliance, the express and formal terms of which are, that peace shall not be made without an express or tacit acknowledgement of the sovereignty, and consequently a fortiori of the

rights inherent in sovereignty, as well as of the independence of the United States in matters of government and commerce. This substantial alternative in an engagement, which is a mere gratuitous gift without any compensation or stipulation, ought indeed never to be forgot in a negociation for peace. France foresaw the extreme difficulties a formal and explicit acknowledgement might meet with. She knew by her own experience in similar contest, in which she has been deeply concerned respecting the republic of Holland, Genoa and the Swiss Cantons, how tenacious monarchs are, and how repugnant to pronounce the humiliating *formula*. It was only obtained for Holland tacitly after a war of thirty years, and explicitly after a resistance of seventy. To this day Genoa and the Swiss Cantons have obtained no renunciation, nor acknowledgment either tacit or formal from their former sovereigns; but they enjoy their sovereignty and independence only under the guarantee of France. His court thought it important to provide, that difficulties of this nature, which reside merely in words, should not delay or prevent America from enjoying the thing itself. From these considerations arose the very important and explicit stipulation in the treaty, which he just now related, and which hath received the sanction of the United States. The circumstances seem already such as call for the application of the alternative of tacit or explicit acknowledgment. All these considerations therefore are mentioned, that congress may, if they think proper, consider whether the literal execution of the treaty in this point is not become necessary, and whether the safety and happiness of the American people, as well as the essential principles of the alliance, are not intimately connected with the resolutions that may be taken on this subject: and it remains with the prudence of congress to examine, whether instructions on some particular conditions may not frustrate the salutary purpose of the treaty of alliance relative to a tacit acknowledgment, which the situation of affairs may require. "In thus executing the orders," continued he, "I have received, I cannot omit observing, that these orders were given with the full presumption, that the business which I laid before congress in Feb. last, would have been settled long before these dispatches should come to my hands. However sensibly my court will be disappointed in her expectations, I shall add nothing to the information and observations, which with the warmest zeal for the interest and honor of both countries, and by the duties of my office and my instructions, I found myself bound to deliver from time to time to congress in the course of this business. The

apprehension of giving new matter to those who endeavour to cast blame upon congress is a new motive for me to remain silent. I beg only to remind this honorable body of the aforesaid information and reflections, and particularly of those which I had the honor to deliver to an assembly similar to the present. I shall only insist on a single point which I established then and since in one of my memorials, namely the manifest and striking necessity of enabling Spain, by the determination of just and moderate terms to press upon England with her good offices, and to bring her mediation to an issue, in order that we may know whether we are to expect peace or war. This step is looked upon in Europe as immediately necessary. It was the proper object of the message I delivered in February last, I established then (in a private audience) the strong reasons which require, that at the same time, and without delay, proper terms should be offered to his Catholic majesty, in order to reconcile him perfectly to the American contest. I did not conceal, that it was to be feared that any condition inconsistent with the establishment of the alliance which is the binding and only law of the allies, and contrary to the line of conduct which Spain pursued in the course of her mediation, would lead her to drop the mediation, and prevent his Catholic majesty by motives of honor and faithfulness from joining in our common cause, and for completing the intended triumph. No loss, no unhappy event could be so heavy upon the allies as this. Indeed although the British forces are already kept in check by the combined efforts of France and America, it is nevertheless evident that the accession of Spain only can give to the alliance a decided superiority adequate to our purposes, and free us from the fatal chance, that a single unlucky event may overturn the balance.”

The committee then taking notice of what the minister had said concerning *a tacit assurance of the independence of these states*, requested to know his sense concerning the manner in which such tacit assurance could be given; to which he, premising that what he should now say ought to be considered only as his private sentiments, replied—That the British court would probably endeavor to avoid an express acknowledgment by imitating precedents that had occurred in Europe on similar occasions, instancing in the case of the Swiss Cantons, and of the United Provinces of Holland; that the mode adopted in the latter case had been for the arch-dukes, to whom the king of Spain had transferred his right of sovereignty, to treat with them as free and independent states; and that with respect to the

Cantons, France had not been able to obtain more for them in the treaty of Munster, than “a declaration that they should be in possession of full liberty and exemption from the empire, and be in no manner subject to the jurisdiction thereof;”—but that in his opinion, the circumstances of these states, and the manner in which they had conducted their opposition, would justify their expecting a more full declaration.

Mr. Gerard, by strongly urging congress, in February, to come to an ultimatum, that so no promising negotiations might be delayed or obstructed, contributed toward putting the states into a profound sleep. They amused themselves with idle dreams of peace, and hardly made any exertions for the war. Till about the time of the above conference, the army scarcely received a single recruit, though a large part of it dissolved in the course of last winter and spring, by the expiration of the term of service for which the men were engaged. Gen. Washington has a prospect of 1000 or 1500 levies, at enormous bounties, for nine months, from Massachusetts and Connecticut, which is all the reinforcement he expects. Inferior in strength to the enemy, he will be able to do little more than take care of himself, and guard the communication of the North-River. The distressing situation of public affairs, led the late president of congress, Mr. Laurens, to write to his friend—“[July 14.] Let us look around and enquire into the state of the army, the navy, the treasury—the view is truly affecting; but what is most of all to be deplored is, the torpitude of national virtue. How many men are there who now in secret say, could I have believed it would have come to this, I would——. I am not of that number.”

Captain Cunningham, who took and carried the Dutch packet into Dunkirk, being captured on board a private armed cutter in the West-Indies, was brought to New-York, put under a rigorous and ignominious confinement, and ordered to be sent to Great-Britain. Congress was induced by it to order a letter to be written [July 17.] to the British naval commander at New-York, demanding the reasons for the treatment he had met with; and resolved, that if they had not a satisfactory answer by the 1st of August, one or more persons should be confined, to abide the fate of the said Cunningham. Two days after, congress having well considered the letters before them, giving an account of the devastations of the enemy, and the burning of Fairfield, Norwalk and Bedford, “Resolved—That the marine committee be, and are hereby directed to take the most effectual means to carry into execution the manifesto of October 30, 1778, by burning and

destroying the towns belonging to the enemy in Great-Britain and the West-Indies.”

The operations of war demand our further notice.

A daring and dangerous enterprise against the enemy's post at Powles-Hook was committed to major Lee. The object was to throw a lustre upon the American arms by surprising the post, and immediately retiring with such prisoners as the major could conveniently make. Did it appear too hazardous, either in the execution or the difficulty of effecting a retreat, he was at liberty to abandon it. The necessity of making a timely and safe retreat, was strongly inculcated by the commander in chief, and the major was desired to lose no time in attempting to remove or destroy any stores, or even in collecting stragglers. The major, with a party of 300 Virginians, a troop of dismounted dragoons and one company from the Maryland line, proceeded on the service, and very early in the morning [July 19.] before day-light, completely surprised the post. Major Southerland, the commandant, with a number of Hessians, had the good fortune to escape, by reason of the darkness, to a small block-house on the left of the fort. Major Lee killed about 30 of the enemy, and took 161 prisoners, including 7 officers, at the expence of about half a dozen men killed and wounded. In conformity to his orders, he made an immediate retreat, without tarrying to destroy either barracks or artillery. The approach of day, and the vicinity of the enemy's main body, rendered it absolutely necessary. Lord Stirling took judicious measures to forward the enterprise, and to secure the retreat to Lee's party. This affair, for the size of it, may be ranked with the most heroic actions of the war, considering the peculiar position of Powles-Hook, and its being garrisoned by 200 men.

The expeditions carrying on against Penobscot by the Massachusetts, and against the Mohawks by the United States, will be related when brought to a close. Gen. Sullivan being called away to command the latter, gen. Gates left Boston and went to Providence. In May, a number of the troops under him, mutinied, and were upon the point of marching off for want of bread; he prevailed upon them to stay a few days. During that period he, by express, ordered flour immediately up from Boston, which however could not have been procured, had it not been from the captures just brought in by the cruisers. The American privateers, the state and continental vessels, have been very successful in capturing and getting safe into port a number

of West-India ships and others of great value, more than sufficient to counterbalance by much the losses the United States have sustained in a similar way. It was computed, on the 15th of July, that within six or seven weeks preceding, upward of 20,000 barrels of provisions, designed for the use of the enemy, had found their way into the Massachusetts ports. But for these and such like captures, the inhabitants would have been under the greatest difficulty through a prevailing scarcity. One while there was such a want of bread in Boston, that families who had lived well were without it many days. The price, however, of all articles, is rapidly raising in a continual succession, occasioned chiefly by the enormous quantity of paper currency, genuine and counterfeit, that is in circulation. The rise of commodities, and the associated depreciation of continental currency, has spread such an alarm, that at Philadelphia and in the Massachusetts, the inhabitants are attempting afresh to remedy both, by a regulation of prices—which like Sisyphus' stone, will never reach the summit of the evil.

We have heard within these few days, by a letter from Martinico of June 29th, that admiral Byron having left St. Lucie with an intention as it is thought of convoying a large British West-India fleet through the passages, count d'Estaing immediately embraced the opportunity, and planned an expedition against St. Vincent, which succeeded. We are also informed, that since then, Mr. de la Motte Piquet, with five ships of the line, had joined the count; who finding himself sufficiently strong, had planned an expedition against Grenada, and was to sail for that island the day after the date of the letter.

The count sent lieut. De Trolong du Romain to St. Vincent, with about 450 men, only half of them regulars, who landed the 16th of June, and were immediately joined by the Caribs; they then possessed themselves of the heights which commanded the town of Kingston. On the 18th the island was delivered up by capitulation without having made any resistance. This may have been owing partly to the inhabitants being in dread of the Caribs, and partly to their apprehended danger from attempting a defence, and none from changing sovereigns.

Mr. Gerard has obtained leave to return to France, on account of the ill state of his health; and the new minister plenipotentiary, the chevalier de la Luzerne, is arrived at Boston in a French frigate. Mr. John Adams accompanied him, his commission having been superseded the last

September, by the appointment of Dr. Franklin, minister plenipotentiary at the court of France. The carrying of this appointment was a favorite measure with Mr. de Vergennes as he expects from the doctor singly more obsequious devotion to the pleasure of the French court, than he could have obtained had the doctor been still joined to both or either of his former colleagues, Messes. John Adams and Arthur Lee.

LETTER XVII.

Rotterdam, Nov. 10, 1779

FRIEND G.

Toward the end of April, an expedition against the isle of Jersey was set on foot under Mr. de Nassau, who had no fortune, with a view of putting money into his pocket, from the rapine and plunder that would follow upon its success.^[98] It so happened that admiral Arbuthnot, who you have heard sailed the 1st of May, with a squadron of men of war, and a prodigious convoy of merchantmen, and transports for America, fell in with the vessel, going express to England, with an account of the attack, and the apparent imminent danger of the island.—Upon that he ordered the convoy to wait for him at Torbay, and proceeded to the relief of Jersey. Though the failure of the expedition was the consequence, the French comforted themselves when they saw it had the unexpected effect of detaining admiral Arbuthnot for a long time at Torbay, and of inducing the admiralty to order ten ships of the line, under admiral Darby, to join the former, for the safe escorting the convoy to a certain distance. Mr. Sartine upon obtaining information of this order, hurried the Brest fleet under count d’Orvilliers to sea.—There was not at the last moment, sailors sufficient to man it; but neither this, nor the non-arrival of two ships expected from Toulon, could prevail with him to risque losing the opportunity on the one hand of intercepting Darby on his return, and on the other of securing the junction of the French and Spanish fleets. Eight thousand land forces were put on board to serve as marrines, and to supply the defect of sailors. With this kind of equipage did the fleet sail on the 4th of June. There was a geeral exultation visible in the countenance of every Frenchman at Paris mixed with surprise, upon hearing that their fleet was sailed, and that there was no British force at sea to oppose them. Not a word was put into the Gazette of France of d’Orvilliers’ sailing. It is asserted, that Sartine being asked why he did not let a thing so public and so interesting, go into the gazette, his answer was—“The English ministry will not know it so soon any other way.” Darby, however, narrowly escaped, to the great disappointment of the keenest expectations of the French, who really looked upon his division as a sure prey. Foreigners are astonished at the present management of the British marine. They look back to former wars, when it was deemed a most consequential service, and the

most concise mode of crippling the marine of France, and rendering their projects abortive, to block up the harbours of Brest and Toulon. When d'Orvilliers had sailed, a profound secrecy reigned at the court of France, as to his destination; but by the 6th of July, certain advices were received of his having joined the Spanish fleet upon the 24th of June. Before the junction, though not its apparent certainty, a manifesto was presented [June 16.] by the marquis d'Almodovar, the Spanish ambassador, accompanied with the notice of his immediate departure. The manifesto established this fact, that Spain had taken a decided part with France and America against Great-Britain. It cost the court of Versailles great pains to goad the Catholic king's ministers to a decided resolution in the councils of Madrid; and after all, it has been said by respectable authority, "That there had been no declaration from Spain, if the English fleet had been at sea," in force and in season to have prevented the junction, which was regarded as that on which the very salvation of France depended. The spirits of the French were as drooping as can be well conceived, till they had heard of that event, and of the arrival of the two reinforcements forwarded to count d'Estaing.^[99]

When the Spanish ambassador once knew that d'Orvilliers sailed on the 4th of June, and that the British grand fleet remained at Spithead on the 14th, he must assure himself that the junction of the French and Spanish ones would take place, and could not be prevented by the other; and that therefore he might proceed without any demur to deliver the manifesto. This event will, most probably, be more favorable in the issue to the American states, than success in the Spanish mediation on the terms his Catholic majesty proposed, which were—That the two crowns of Great-Britain and France should disarm, and agree to a universal suspension of hostilities—that the plenipotentiaries of both should meet at an appointed place, to settle their respective differences—that a like suspension should be granted by Great-Britain to the American colonies (as they were stiled) which should not be broken, without giving to his Catholic majesty an anticipated notice of one year, that he might communicate it to the said American provinces; and that there should be a reciprocal disarming, and a regulation of the limits not to be passed by either, as to the places they might respectively occupy at the time of ratifying this adjustment—that there should come to Madrid one or more commissioners of the colonies and of his Britannic majesty, to agree in settling the preceding particulars, and others relative to the firmness of said suspension, and that, in the mean

time, the colonies should be treated as independent in acting. The contents of the manifesto were laid before both houses of parliament the day after its being presented, and were accompanied with a message from the king. They both concurred unanimously in resolving to support with spirit and vigor, the war against the house of Bourbon. An answer was transmitted by his majesty's secretary, lord Weymouth, to the masquis d'Almodovar, dated July 13th, ten days after the rising of parliament. This answer was received when a state paper was nearly printed off at Madrid, and which related the motives that induced the Spanish monarch to withdraw his ambassador and act hostilely against Great-Britain. This paper asserts that the British ministry, while they rejected the proposals made by Spain, were insinuating themselves at the court of France, by means of secret emissaries, and making great offers to her to abandon the colonies, and to make a peace with Britain, and at the same time were treating, by means of another emissary, with Dr. Franklin, to whom they made various proposals to disunite them from France, and to accommodate matters with Britain, not only holding out conditions similar to those which they had rejected when coming through his Catholic majesty, but including offers much more favorable to the Americans.

Count d'Orvilliers having received instruction, steered with the combined fleet, amounting to 66 ships of the line, for Plymouth. The coasts of Normandy and Brittany being at the same time crowded with troops, and the ports in the bay and channel with shipping, exhibited the appearance of an intended invasion of England or Ireland. D'Orvilliers passed Sir Chas. Hardy who was cruising in the bay, with near forty ships of the line (having sailed from Spithead the day on which the Spanish manifesto was presented) without their having the least knowledge of each other. He appeared off Plymouth in the evening [Aug. 16.] and the greatest part of the two following days; but without making any attempt, which, had it taken place immediately, must have succeeded, as the town was altogether in a defenceless state with "neither men, capable of standing to the guns, nor rammers, sponges, or other impliments for loading them."^[100]—The inhabitants and the neighbouring country were in the greatest confusion and the utmost alarm. But on Wednesday the 18th it providential began to blow almost a storm at east, which continued till the 22d, and forced the fleet below Plymouth; and the wind remaining strong in the same point for same days, prevented its return no less than Sir Charles Hardy's coming into the

channel.^[101] The Ardent of 64 guns, on her way from Portsmouth to join Sir Charles, mistaking the combined for the British fleet, was taken in sight of Plymouth. D'Orvilliers ranged about the Land's End, the Scilly Islands, and the chops of the channel, till the end of the month, without seeking to return and make an attack upon Plymouth. He might conclude, that it would be now too late, the first opportunity having been lost, especially as a very great sickness prevailed among the sailors and soldiers on board the fleet. Thus by a coincidence of circumstances, Plymouth, with the dock, the naval magazines &c.—were happily preserved, notwithstanding the criminal neglect of administration in not putting the place into a proper state of defence. It is a fact, that there was delivered to one of the ministry, on the 28th of July, a letter from France, acquainting him with the destination of the combined fleet, and the intention of attacking and destroying Plymouth.

[Aug. 31.] The wind favoring, Sir Charles Hardy gained the entrance of the channel in sight of the combined fleets, without their being able to prevent him. The enemy pursued him as high up as Plymouth, but did not venture much further. The sickness increasing on board the combined fleet to a most extreme degree, and their ships being otherwise much out of condition, and the equinox approaching, count d'Orvilliers thought it necessary to abandon the British coasts, and repair to Brest early in September. The whole country round about became an hospital, through the many thousands of sick that were landed. It was a most happy circumstance for the British merchants, that a large Jamaica fleet escaped and got into the channel about ten days before he first entered it; and that eight homeward bound East-Indiamen had timely notice of their danger, so as to have the opportunity of putting into Ireland.

In the beginning of September, adm. Barrington arrived with dispatches, giving an account of the taking of the isles of St. Vincent and Grenada, and of an action between adm. Byron and count d'Estaing. The count sailed for Grenada, and arrived off the island [July 2.] with a fleet of five or six and twenty ships of the line, about 12 frigates, and near 10,000 land forces, including marines. The defence of the place lay in about 150 soldiers, 350 militia, 200 volunteers, with some seamen; and its strength consisted in a fortified and entrenched hill, which commanded the fort, harbour, and capital town of St. George. The French landed between 2 and 3000 regulars, under count Dillon, the same evening; and the next day invested the hill, and made the necessary preparations for carrying it by storm the following

night, as they would lose no time, lest admiral Byron's fleet might arrive. The defence was obstinate, considering the force on each side. Although d'Estaing headed a column of the assailants in person, they were repulsed in the first onset, but their superior numbers at length prevailed, and the lines were carried after a conflict of about an hour and a half; the loss of the French, however, in killed and wounded, was considerable. The cannon taken on the top of the hill, being turned at break of day against the fort, the governor, lord Macartney, was under the necessity of proposing a capitulation. D'Estaing granted him but an hour for framing the articles, which, when presented, were rejected in the gross. The count proposed others so extraordinary that his lordship and the principal inhabitants thought it better to trust to the law and custom of nations, and to the justice of one court, and the interposition of the other, by surrendering at discretion, than to bind themselves to such unexampled conditions. His lordship, in expectation that the fortified hill was next to impregnable, had carried thither his plate, jewels and most valuable effects, and his principal officers had followed his example.^[102] The count is charged with having exercised great severity and oppression; and it is said that his soldiers were indulged in such unbridled licence that the condition of the inhabitants would have been deplorable beyond description, but for the humanity and tenderness of the officers and privates of Dillon's Irish regiment.

Meanwhile admiral Byron had returned to St. Lucie, from convoying the West-India fleet; but weakened through the ships he had sent with the trade to Great-Britain. He there received intelligence of the loss of St. Vincent; and immediately concluded with gen. Grant, to proceed with the land and naval forces for its recovery. On their passage they received information that d'Estaing had attacked Grenada, without being acquainted with de la Motte Picquet's having joined him. They changed their intention, and steered for the relief of Grenada.

The British commanders arrived within sight of the French fleet at break of day, [July 6.] Their force consisted of 21 ships of the line and a single frigate. They were embarrassed by the somewhat greater number of transports which conveyed the troops. The French having received previous information of the approach of the British fleet, were then mostly getting under way, and those ships which had not already hoisted their anchors, slipt their cables, and kept stretching out to sea. The objects of the hostile commanders were totally different. The British admirals wanted to bring the

enemy to close action in hopes of conquest and of saving Grenada. D'Estaing sought for no further advantage than the preservation of his new acquisition, which to him was a sufficient victory. His ships being cleaner, and consequently sailed better than the British, he chose a partial action, rather than be exposed to the doubtful issue of a desperate conflict. The first signal made by Byron was for a general chase; and the second, for the ships to engage and form as they could get up. By eight o'clock the action was commenced by adm. Barrington in the Prince of Wales, with the captains, Sawyer and Gardner in the Boyne and Sultan, they having closed with the van of the enemy. Being obliged to endure the whole weight of fire from that division, for a considerable time before they could be supported, and suffered accordingly; beside the damage of the ships and the loss of the men, the admiral was himself wounded. The French eluded every effort made by the British commanders to bring on a close and decisive engagement. When the evolutions on both sides, and the eagerness on one, threw a few of the British ships into a situation, which obliged them to endure a conflict with a much greater number of the enemy, a close engagement ensued. Thus the Grufton, the Cornwall and the Lion, sustained the whole fire of the French fleet. The Monmouth attempting singly to arrest the progress of the enemy's van, hoping thereby to bring on a general action, but failing, was reduced almost to a wreck. The Suffolk, adm. Rowley with the Fame, suffered also considerably in similar situations.

The action ceased about twelve o'clock; but although renewed at two, and at other times, in a degree, during the evening, yet nothing essential was effected. During the heat of it, some British ships pushing their way to the very entrance of the harbour of St. George's, beheld French colours on the fort, and were fired at by the batteries. The object of the British commanders was therefore totally changed. The relief of the island was at an end. The protection of the transports, along with that of the disabled ships, was now the main point to be considered. Three of the disabled ships were a great way astern: the Lion was obliged to bear away singly, in the best manner she could, before the wind. That and the other two might seemingly have been cut off by the French: but d'Estaing would not risk the bringing on of a decisive action by attempting their capture. In the evening, the Monmouth and the transports were ordered to make the best of their way to Antigua or St. Kitts. Byron drew up his line, reduced now to 19 ships, about three miles distant from d'Estaing, and expected to be attacked

in the morning; but during the night, the count returned to Grenada. The loss of men in the British fleet was moderate; the other circumstances of the action however were exceeding grievous; for the great damage sustained by the ships in their masts and rigging, which could not be easily remedied in that quarter, afforded an astonishing superiority of force to the French, which while it continues, will render it impossible for the British longer to dispute the empire of the sea with them in the West-Indies.—All accounts concur in describing the French loss of men in the action as prodigious. The published number of officers killed and wounded, both in the naval and land departments, is considerable. The other must be in a great degree conjectural.

The latter end of July, there sailed from Port l’Orient the Bon Homme Richard, of 40 guns and 375 men, commanded by capt. Paul Jones, the alliance of 36 guns, the Pallas, a French frigate of 32, the Vengeance an armed brig of 12 together with a cutter: Jones acted as commodore to the squadron. He steered for the Western coast of Ireland and appeared off Kerry. From thence he ranged round the north of Scotland, till he came off Forth Frith on September the 19th; when he directed his course to Flamborough Head. Being off the Head, he fell in with the fleet [Sept. 23.] from the Baltic, under the protection of the Serapis, capt. Pearson, and the Countess of Scarborough, capt. Piercy. Before noon, capt. Pearson received intelligence from the bailiffs of Scarborough, of the squadron under Jones being on the coast. Between twelve and one the headmost of the fleet got sight of it, when the Serapis made all the sail she could to get between the enemy and the convoy, which she soon effected. Capt. Pearson, by four o’clock plainly discerning from the deck, that the squadron consisted of three large ships, and a brig, (the cutter was not now with them) made the Countess of Scarborough signal to join him, which was done about half past five. A little after seven, the Bon Homme Richard brought to within musket shot of the Serapis, when the fight began, and was maintained with equal fury on both sides, each vessel using all possible means to gain an advantageous situation to rake the other. Capt. Pearson had infinitely the superiority over the Bon Homme Richard in working the Serapis, and obtained advantages in spite of every effort of Jones to prevent it. Jones to render such superiority useless, aimed at lying his ship athwart the hawse of the other. Though he did not succeed to his wish, yet as the bowsprit of the Serapis ran between his poop and mizen-mast, he seized the opportunity of

lashing the vessels together, when the wind driving the head of the Serapis against the bow of the Bon Homme Richard, they became so close fore and aft, that the muzzles of their guns touched each other's sides. In this position they engaged from half past eight till half past ten. But before it commenced, the Bon Homme Richard had received many 18lb. shot between wind and water, and was become very leaky. Her tier of 12 pounders was entirely silenced and abandoned. Her six 18 pounders, which were old, were of no service, and were fired but eight times in all. During the succeeding action, Jones made use only of three nine pounders, whose fire was seconded by that of his men in the round-tops. At the same time others threw such a quantity and variety of combustible matters into the decks, chains, and every part of the Serapis, that she was on fire not less than 10 or 12 times in different parts, and it was with the greatest difficulty that the same could be extinguished. At half past nine, by some accident the Serapis had a cartridge of powder set on fire, the flames of which communicating from one to another all the way aft, blew up all the people and officers abaft the main-mast, and rendered all those guns useless for the remainder of the action. When both ships were on fire together, as it happened at times, the spectacle was dreadful beyond expression. The Alliance repeatedly sailed round both while engaged, raking the Serapis fore and aft, and thereby killing or wounding many of her men on the quarter and main decks.^[103]—After ten she came up afresh, and renewed the fire; but through the darkness of the night, and both ships being so close along side each other, it was not poured into the Serapis alone, but also into the Bon Homme Richard, eleven of whose men were killed, beside an officer mortally wounded, by one of her broadsides. Capt. Pearson however, perceiving that it was impracticable to stand out any longer with the least prospect of success, struck, after having (by his conduct, and persevering bravery) secured to his convoy the opportunity of saving themselves. The Serapis was a much superior ship to the Bon Homme Richard, being built on an excellent model, and carrying 44 guns in two tiers, the lower 18 pounders. The number of men killed and wounded on each side was necessarily great. Both ships suffered much, but the Bon Homme Richard was reduced to a wreck; she had near seven feet water in her hold, which kept increasing. The wounded were removed, and only the first lieutenant of the Pallas, with some men left on board to keep the pumps going, while the boats were disposed within call to take them in when occasion required.

On the twenty-fifth the water rose to her lower deck and she went down; but nobody was lost with her.^[104] It still remains to be mentioned, that the Countess of Scarborough engaged the Pallas for near two hours, when capt. Piercy was obliged to strike. Commodore Jones, with the remains of his flying squadron and prizes, made for Holland, and on the 3d of October anchored off the Texel. The commodore estimates the prizes taken and ransomed by the Bon Homme Richard, during her cruize, at more than £.40,000.

Sir Joseph Yorke soon applied to their high mightinesses for the delivering up of the Serapis and Countess of Scarborough. On the 29th of October, he presented a memorial to them, in which by his majesty's order, he renews, "in the strongest and most pressing manner, his request that those ships and their crews may be stopped and delivered up, which the pirate Paul Jones, of Scotland, who is a rebel subject, and a criminal of the state, has taken." Jones is stiled a pirate upon the supposition that his letters of marque or commission are illegal for want of being granted by a sovereign power, which the British do not allow the congress to be. But it may be at length discovered, that Jones' letters are legal upon their own principles, and have been granted by the French, whatever, other letters he may possess. The whole of Jones' expedition was probably concerted at Versailles, with the design of catching the eastern fleet laden with naval stores, while the continental frigate, the Alliance was borrowed for a cover, and the command of the whole given to Jones on account of his acquaintance with the Irish and British coasts.—The memorial contains a threatening insinuation of serious consequences in case of non-compliance. The answer which their high mightinesses have given is in brief—"That they will, in no respect whatever, pretend to judge of the legality or illegality of the actions of those who have on the open sea, taken any vessels which do not belong to this country, and bring them into any of the ports of this republic; that they only open their ports to them to give them shelter from storms or other disasters, and oblige them to put to sea again with their prizes, without unloading or disposing of their cargoes, but letting them remain exactly as when they arrived; and that they are not authorized to pass judgment either on these prizes or the person of Paul Jones." What would be the fate of Jones, could the British once make him their prisoner, is hard to determine; considering that capt. Cunningham was brought in irons from New-York to Falmouth, and sent ironed to Pendennis castle;

from which however, he was removed in a few weeks to Mill prison, Plymouth; and being a native American, he is now rated as an exchangeable prisoner.

The present state of Ireland must not be passed over without notice.

The long continued embargo on provisions, the only staple export of that kingdom, has been viewed as particularly insulting and most highly resented by the people; on their reflecting that a set of contractors reaped the greatest benefit from it, while the interest of the country was sacrificed, and the whole nation distressed. Taxes became more numerous, and the national debt accumulated every session of parliament. Advantage was taken of these circumstances, and the peculiar situation of Great-Britain, by the most sagacious among the Irish, for the obtaining of those privileges which might otherwise never be secured. The doctrines of taxation without representation, and of unconditional submission, which ministry applied to America, were urged as matter of apprehension to Ireland; and it was openly said, that the chains forged for the former, in case of success, would afford a mode for the fetters which would soon be fitted for the latter. The smothered flame at length broke out with violence, on finding that parliament would afford them no effectual relief. Associations against the purchase and use of British manufactures, and for the encouragement of their own, became universal. But beside these, there were associations of a more effective and terrifying nature. Being alarmed with the danger of a French invasion, it was urged, that the defence of the kingdom must be placed in those who had the best interest in it. Military associations were therefore proposed, and universally adopted. The associators declared, that they were intended for the double purpose of defending their safety against foreign enemies, and their rights against domestic usurpation. In every part of the kingdom were seen instantly to arise, as if by magic, vast bodies of citizens, serving at their own charges, choosing their own officers, trained to great expertness, and obeying with remarkable regularity. No gentleman, no nobleman could show his face in the country, who did not fall in with the prevailing disposition. Men of considerable fortunes served in the ranks. All this business was accomplished without any sort of confusion or disorder; while the peace of the country, and obedience to the laws, were never more prevalent. The numbers of trained volunteers is supposed to be about 50,000; they are admirably appointed. Government saw these proceedings with astonishment. They wished to regulate this new and unexpected force

and to bring it to act under the authority of the crown; but after a few feeble attempts, it was thought best to concur in a measure that could not be prevented. The Irish patriots having thus provided for the defence of the kingdom against foreign enemies, began to look toward their own rights; and in general disclaimed the authority of the British parliament over them, and condemned its interference in their affairs. On the 12th of October, the Irish parliament met. Upon a motion for the address, in answer to the speech of the lord-lieutenant, an amendment was moved and carried in the house of commons, which occasioned the insertion of the following words in their address to the throne—"We beg leave humbly to represent to your majesty, that it is not by temporary expedients, but by a free trade alone, that this nation is now to be saved from impending ruin." The address from the lords contained similar expressions. Thus it appears that a free and unlimited commerce with the whole world is the *sine qua non* with the patriots of Ireland, from which they mean not to depart. The prevailing unanimity in political sentiments among the Irish, has been greatly forwarded by their parliament's having before followed the humane example of the British legislature in relaxing the penal restrictions of the laws against the English Roman Catholics. The addresses were carried up to the lord-lieutenant, with great parade, amid the acclamations of the people. The duke of Leinster, who commanded the Dublin volunteers, escorted the speaker in person upon the occasion, while, the streets were lined on both sides from the parliament-house to the castle, by that corps drawn up in their arms and uniforms. That nobleman had before moved for the thanks of the lords to the volunteer companies through the kingdom, which was carried with only one dissenting voice.

The present letter closes with mentioning, that the Spaniards have, for some months back, invested Gibraltar both by land and sea; the garrison seems to be under no apprehensions.

THE END OF VOLUME SECOND.

[1.](#) General Montgomery's letter of December 18.

[2.](#) Dr. Linn's letter to me.

[3.](#) Colonel Meig's manuscripts, and Dr. Linn's letter, have furnished most of the above particulars.

- [4.](#) See the Marquis de Chastellux's travels in North America, vol. ii. p. 275.
- [5.](#) Most of the above from March the 6th, is taken from the manuscript journal of a gentleman who continued in Boston, while in the hand of the British generals.
- [6.](#) Dr. Raffmsey's History of the Revolution of South Carolina, vol. 1. p. 82, and onward.
- [7.](#) Mr. Adam's defence of the American Constitutions, p. 18.
- [8.](#) Journals of Congress, vol. ii. p. 257.
- [9.](#) Afterward captain George, of Watertown, near Boston.
- [10.](#) Major, now col. Fuller, of Newtown, informed me of the particulars in which he was concerned.
- [11.](#) Letters of Mr. John Adams to Dr. Calkoen, p. 14.
- [12.](#) Letters of Mr. Adams, p. 13.
- [13.](#) The general's letter to me.
- [14.](#) It at length occasioned his death.
- [15.](#) General Lee's letter to congress.
- [16.](#) General Washington's letter.
- [17.](#) The particulars of the retreat are taken from Dr. Rodgers's thanksgiving sermon; from col. Glover's letters; and from the information of persons who were present.
- [18.](#) See M'Fingal, a modern Epic Poem, in four cantos, p. 82, Printed at Hartford, in Connecticut, 1782. The Author is known to be Mr. John Trumbull, the American Butler for wit and humor.
- [19.](#) See queen Elizabeth's bible, printed 1572, for Jugg, in Powle's Church Yard.
- [20.](#) Colonel Glover's letter.
- [21.](#) The board of war.
- [22.](#) General Washington's letter to general Gates.
- [23.](#) Mr. Griffiths, of New-York.
- [24.](#) The same was confirmed to me by other gentlemen, while at New-York, August 1785.
- [25.](#) Col. Glover's letter, dated North-Castle, Nov. 14, 1776.
- [26.](#) Colonel Henly told me in the evening of Feb. 26, 1784, that gen. Lee, when a prisoner asked gen. Howe, why he did not bring on a general engagement, and received for answer the reason above mentioned.

[27.](#) Colonel Glover's letter.

[28.](#) Board of war.

[29.](#) Mr. Vanbrugh Livingston, of New-York, told me he had this from major Ross, of Lancaster in Pennsylvania, who saw the soldier brought in.

[30.](#) Loyalist's letter, Nov. 10, 1777.

[31.](#) Mr. Mersereau, afterward an American deputy commissary of prisoners, was my informer.

[32.](#) See Doctor Ramsay's History, Vol. I. p. 153–161.

[33.](#) Mr. Adams's Defence of American Constitutions, p. 106–108.

[34.](#) It is known in the neighborhood by the name of Split Rock only, though generally put down in the maps Cloven Rock.

[35.](#) The general's words in his own letter.

[36.](#) After having been employed some time in similar services, the enemy grew suspicious of him, and upon that, without proof, put him into prison, where he was starved to death.

[37.](#) Since colonel of horse.

[38.](#) In the maps it is put down Pennington: but the Jersey inhabitants in common, would not know the place meant, unless you called it Penny-town.

[39.](#) What relates to the attack upon the picket, &c. was confirmed to me, August 11, 1785, at New York, by the Rev. Mr. Van Arsdelen, who had the story from the Hessian officer commanding the picket.

[40.](#) See the letters of a Loyalist.

[41.](#) Remembrancer, part IV. p. 307.

[42.](#) The major's letter to col. Harrison, one of gen. Washington's secretaries, after being exchanged for major Acland.

[43.](#) See col. Allen's pamphlets, and also the hon. William Henry Drayton's publication at Philadelphia, Oct. 24, 1778, addressed to the commissioners, Carlisle, Clinton and Eden.

[44.](#) Since appointed chief justice of Canada.

[45.](#) See his letter published in the Gazette, and in the Remembrancer, vol V. p. 101.

[46.](#) Mr. Edm. Burke's letter to the sheriffs of Bristol.

[47.](#) From the general returns of the army.

[48.](#) Sir William Howe's narrative, p. 49.

[49.](#) General Washington's letter of June 17.

[50.](#) A letter to gen. Washington, Remembrancer, Vol. V. p. 269.

[51.](#) Burgoyne's State: earl of Balcarras, and earl of Harrington's declaration.

[52.](#) This account of the killed, and wounded and prisoners, on both sides, is extracted from the journal of a British officer, who was afterward taken and who mentioned the names of the officers killed and wounded on his own side.

[53.](#) Consult the Trials of generals St. Clair and Scuyler for many facts related respecting them.

[54.](#) Major Forbes's account to the house of commons from Burgoyne's State.

[55.](#) When the general was prisoner, he made this acknowledgment to one of Scuyler's suit, whom he asked whether he knew any thing of it, and who pretended ignorance.

[56.](#) General Gates has repeatedly said as much in my hearing.

[57.](#) See the letters on this subject between Howe and Washington, and others, in the Remembrancer, Vol. V. p. 214 to 220, and p. 250.

[58.](#) The board of war.

[59.](#) When the royal army quitted German-town, the Americans found in one of the chimney hearths, some papers torn to pieces, and observing figures upon them, certain officers attempted putting them together, and found them to be the returns of the killed and wounded at German-town battle, amounting to about 800.

[60.](#) They afterward diverted themselves and gen. Scuyler with this relation. Many of the foregoing particulars were communicated to me by the Rev. Mr. Kirkland, who was part of the time at Fort Scuyler, with some of those Indians that were friendly to the Americans.

[61.](#) This is the substance of the relation given by Mrs. M'Neil who was in company with Miss M'Rea when taken by the Indians.

[62.](#) See Marquis de Chastelleux's Travels in North-America, Vol. I. p. 417.

[63.](#) Earl of Harrington before the house of commons.

[64.](#) Lincoln's letter.

[65.](#) He was lieut. col. of militia, when he gave evidence on the trial of the soldiers at Boston, in 1776.

[66.](#) Lieut. col. Kingston before the house of commons.

[67.](#) The board of war.

[68.](#) Burgoyne's State of the Expedition from Canada.

[69.](#) Item.

[70.](#) Captain Money's declaration in the house of commons.

[71.](#) Idem.

[72.](#) Earl of Balcarras.

[73.](#) Lieut. Col. Brooks was my informer.

[74.](#) Burgoyne's State.

[75.](#) General Glover's information given me at Boston, March 18, 1785.

[76.](#) Earl of Balcarras in the house of commons.

[77.](#) Idem.

[78.](#) Mr. James Beekman, an eminent merchant belonging to New York, and who quitted *Æsopus* when Vaughan approached it, informed me of these particulars, Sept. 29, 1783, at his house in Morris county, New Jersey.

[79.](#) See the Loyalists' Letters.

[80.](#) See James M. Varnum's letter of Aug. 2, 1786, in the *Providence Gazette*, who was the commanding general on the Jersey side.

[81.](#) General Washington mentioned it to me, when at his table; June 3, 1784.

[82.](#) She never reached her port, and has never been heard of since sailing.

[83.](#) When gen. Gates's letters were examined by me, at his seat in Virginia, the latter end of 1781, there was not a single paragraph to be met with, that contained any intimation of his being concerned in such a plan.

[84.](#) Dr. Ramsay's History, vol. i. p. 129–138.

[85.](#) Capt. Vincent's letter of March the 17th. Remembrancer, vol. vi. p. 143.

[86.](#) Lord Howe in the house of commons.

[87.](#) Gen. Washington's letter of July 1, 1778, to congress.

[88.](#) In the *London Gazette Extraordinary*, Aug. 24, 1778, Sir Henry Clinton is represented as writing in his official letter—"Having reposed the troops till ten at night, to avoid the excessive heat of the day, I took advantage of the moon-light to rejoin lieut. gen. Knyphausen." Poor Will's Almanack, printed at Philadelphia, by Joseph Crukshank, tells the public that the new moon was on June 24th, at ten in the morning, and that on the 28th of June it set 55 minutes after ten at night. Sir Henry could have had little advantage from the light of the moon but four days old, and that was to set in an hour's time, had he marched off his troops precisely at ten; but if at about twelve, as gen. Washington writes, and which is most likely to have been the case, the moon light, below the horizon, could not have been of any advantage.

[89.](#) General Washington's letters.

[90.](#) In compiling several of the preceding pages, recourse has been had to the public letters of Sir Henry Clinton and gen. Washington, to various private letters and information, and to gen. Lee's

trial.

[91.](#) Hartley.

[92.](#) Pine-knots are so replete with turpentine, that they are fired and used at night to illuminate the room; and lighted splinters are often carried about in the houses of the Carolina planters instead of candles.

[93.](#) This was a private letter; but was afterward published in Rivington's Royal Gazette, as written by the president of congress, Henry Laurens, esq. It was known by several to contain a strong mark of authenticity—the truth.

[94.](#) Dr. Ramsey's History of the Revolution in South-Carolina, vol. I. p. 1.

[95.](#) The Massachusetts council.

[96.](#) Dr. John Erskine's Considerations on the Spirit of Popery, p. 31.

[97.](#) Advocate M'I——'s Political Memoirs.

[98.](#) Political Memoirs.

[99.](#) Political Memoirs.

[100.](#) Mr. H—b—t's declaration. Gentleman's magazine for 1780, p. 109.

[101.](#) Gentleman's magazine for 1779, p. 421–423.

[102.](#) The Paris account of the taking of Grenada.

[103.](#) The account printed in the Courier de l'Europe of November 5, 1779, signed Paul Jones, states the matter so as to imply a denial of what asserted in the Gazette account signed R. Pearson; but from the known vanity of Jones, and the utter improbability of the Alliance's remaining totally inactive for so long a time, it is highly reasonable to conclude, that the first account is erroneous.

[104.](#) Captain Jones' account.

TRANSCRIBER'S NOTES

- Non-standard spelling not corrected.
- Used numbers for footnotes, placing them all at the end of the last chapter.

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